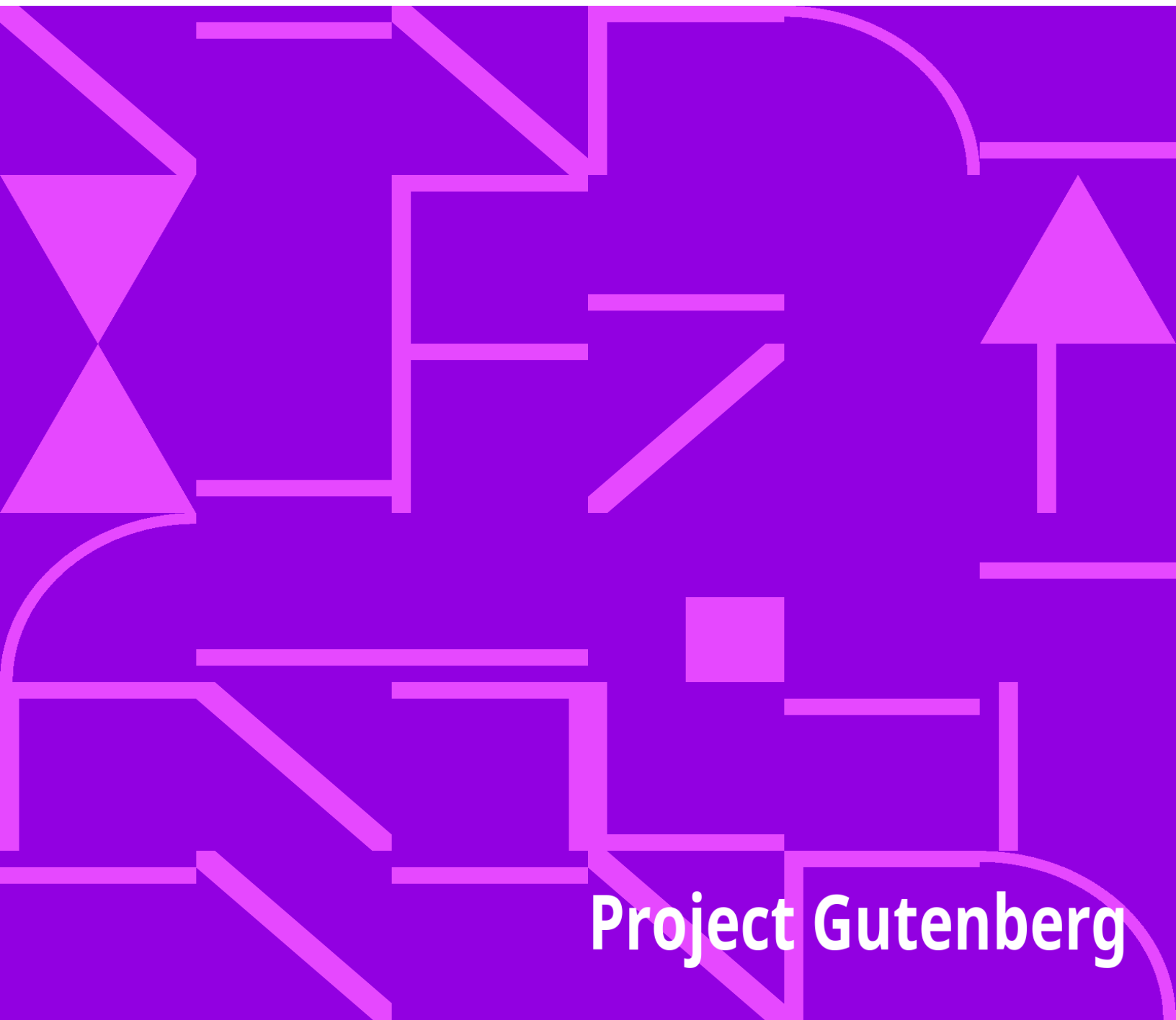


# Memoirs of Aaron Burr, Complete

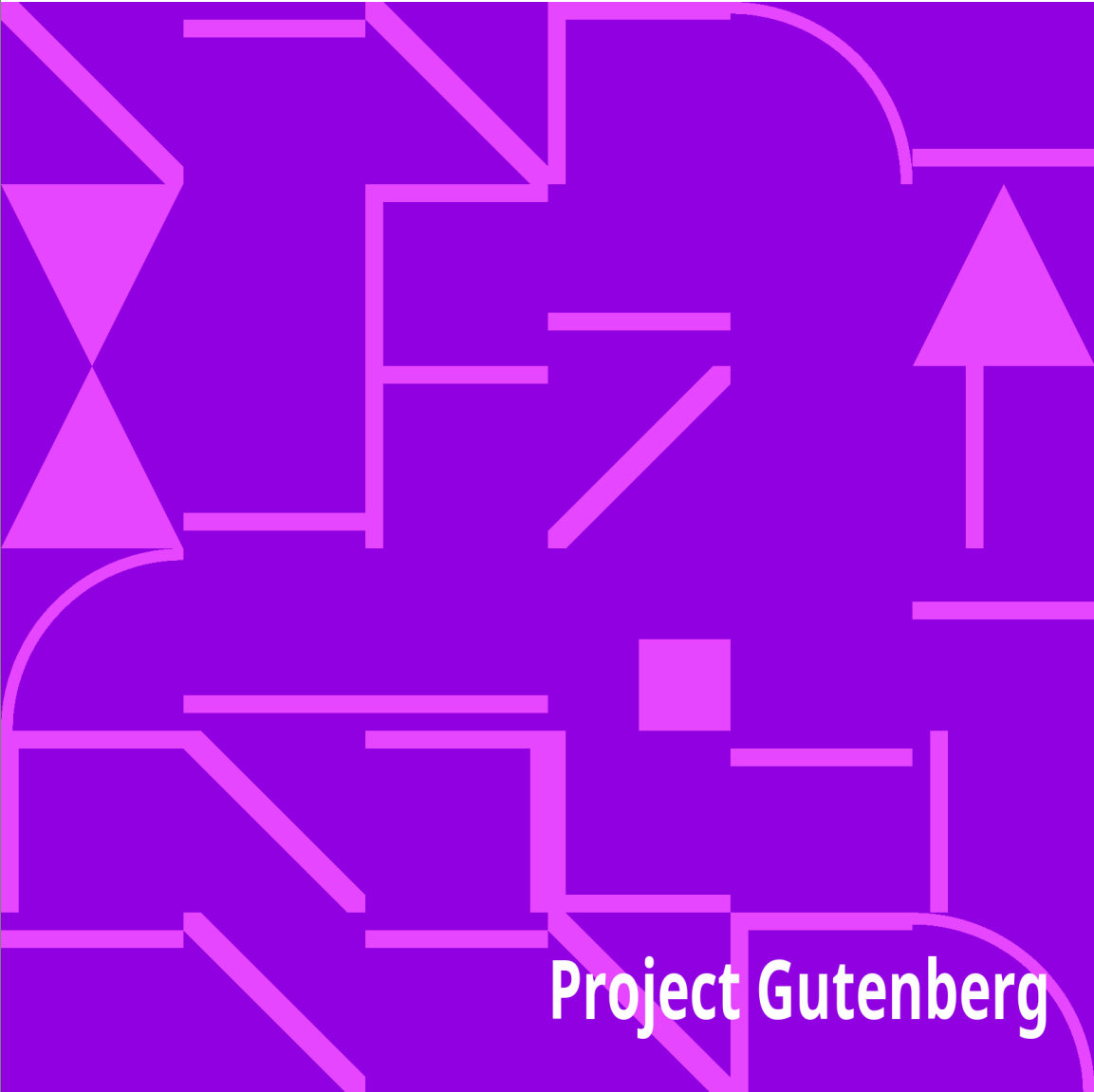
Aaron Burr and Matthew L. Davis



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**MEMOIRS OF AARON BURR.**

**WITH MISCELLANEOUS SELECTIONS**

**FROM HIS CORRESPONDENCE.**

**BY MATTHEW L. DAVIS.**

"I come to bury Caesar, not to praise him."

**IN TWO VOLUMES.**

**VOL. I.**

\* \* \* \* \*

Entered, according to Act of Congress, in the year 1836, by

**MATTHEW L. DAVIS,**

in the Clerk's Office of the Southern District of New-York.

\* \* \* \* \*

## PREFACE.

During a period of forty years I was intimately acquainted with Colonel Burr, and have reason to suppose that I possessed his entire confidence. Some time after his return from Europe in 1812, on different occasions, he suggested casually a wish that I would make notes of his *political life*. When the Memoirs and Correspondence of Mr. Jefferson were published, he was much excited at the statements which were made in his Ana respecting the presidential contest in Congress in 1801.

He procured and sent me a copy of the work, with a request that I would peruse the parts designated by him. From this time forward he evinced an anxiety that I would prepare his Memoirs, offering me the use of all his private papers, and expressing a willingness to explain any doubtful points, and to dictate such parts of his early history as I might require. These propositions led to frequent and full conversations. I soon discovered that Colonel Burr was far more tenacious of his *military*, than of his professional, political, or moral character. His prejudices against General Washington were immovable. They were formed in the summer of 1776, while he resided at headquarters; and they were confirmed unchangeably by the injustice which he said he had experienced at the hands of the commander-in-chief immediately after the battle of Long Island, and the retreat of the American army from the city of New-York. These grievances he wished to mingle with his own history; and he was particularly anxious

to examine the military movements of General Washington on different occasions, but more especially at the battle of Monmouth, in which battle Colonel Burr commanded a brigade in Lord Stirling's division. I peremptorily refused entering upon any such discussion; and, for some time, all communication on the subject ceased.

Colonel Burr, however, renewed the conversation relative to his Memoirs, and agreed that any thing which might be written should be confined to himself. With this understanding I frequently visited him, and made notes under his dictation. I never asked him a question on any subject, or in relation to any man or measure, that he did not promptly and willingly answer. On his part there was no desire of concealment; nor did he ever express to me a wish to suppress an account of any act of his whole life. So far as I could judge, his only apprehensions were that "*kind friends*," as he sometimes termed them, by attempts at explanation, might unintentionally misrepresent acts which they did not understand.

I devoted the summer of 1835 to an examination of his letters and papers, of which there is an immense quantity. The whole of them were placed in my hands, to be used at my discretion. I was authorized to take from among them whatever I supposed would aid me in preparing the contemplated book.

I have undertaken the work, aware of the delicacy and responsibility of the task. But, if I know myself, it has been performed with the most scrupulous regard to my own reputation for correctness. I have aimed to state facts, and the fair deductions from them, without the slightest intermixture of personal feeling. I am very desirous that a knowledge of Mr. Burr's character and conduct should be derived from his miscellaneous correspondence, and not from what his biographer might write, unsupported

by documentary testimony. With this view many of his private letters are selected for publication.

I entertain a hope that I shall escape the charge of egotism. I have endeavoured to avoid *that* ground of offence, whatever may have been my literary sins in other respects. It is proper for me, however, in this place, and for a single purpose, to depart from the course pursued in the body of the work. It is a matter of perfect notoriety, that among the papers left in my possession by the late Colonel Burr, there was a mass of letters and copies of letters written or received by him, from time to time, during a long life, indicating no very strict morality in some of his female correspondents. These letters contained matter that would have wounded the feelings of families more extensively than could be imagined. Their publication would have had a most injurious tendency, and created heartburnings that nothing but time could have cured.

As soon as they came under my control I mentioned the subject to Colonel Burr; but he prohibited the destruction of any part of them during his lifetime. I separated them, however, from other letters in my possession, and placed them in a situation that made their publication next to impossible, whatever might have been my own fate. As soon as Colonel Burr's decease was known, with my own hands I committed to the fire all such correspondence, and not a vestige of it now remains.

It is with unaffected reluctance that this statement of facts is made; and it never would have been made but for circumstances which have transpired since the decease of Colonel Burr. A mere allusion to these circumstances will, it is trusted, furnish ample justification. No sooner had the newspapers announced the fact that the Memoirs of Colonel Burr were to be written by me, than I received letters from various quarters of the country, inquiring into the nature of the revelations that the book would make, and deprecating



the introduction of individual cases. These letters came to hand both anonymously and under known signatures, expressing intense solicitude for suppression.

Under such circumstances, am I not only warranted in these remarks, but imperiously called upon to make them? What other mode remained to set the public mind at ease? I have now stated what must for ever hereafter preclude all possibility for cavil on one part, or anxiety on the other. I *alone* have possessed the private and important papers of Colonel Burr; and I pledge my honour that every one of them, so far as I know and believe, that could have injured the feelings of a female or those of her friends, is destroyed. In order to leave no chance for distrust, I will add, that I never took, or permitted to be taken, a single copy of any of these letters; and, of course, it is quite impossible that any publication hereafter, if any should be made of such papers or letters, can have even the pretence of authenticity.

**THE AUTHOR.**

New-York, November 15th, 1836.

\* \* \* \* \*

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## **MEMOIRS OF AARON BURR.**

## CHAPTER I.

The grandfather of Colonel Aaron Burr, the subject of these memoirs, was a German by birth, and of noble parentage. Shortly after his arrival in North America, he settled in Fairfield, Connecticut, where he purchased a large tract of land, and reared a numerous family. A part of this landed estate remained in the possession of his lineal descendants until long after the revolutionary war. During Colonel Burr's travels in Germany, in the year 1809, various communications were made to him, orally and in writing, by different branches of the Burr family, some of whom were then filling high and distinguished scientific and literary stations.

His father, the Rev. Aaron Burr, was born in Fairfield, on the 4th day of January, 1715, and was educated at Yale College. In a manuscript journal which he kept, and which has been preserved, he says, "In September, 1736, with many fears and doubts about my qualifications (being under clouds with respect to my spiritual state), I offered myself to trials, and was approved as a candidate for the ministry. My first sermon was preached at Greenfield, and immediately after I came into the Jerseys. I can hardly give any account why I came here. After I had preached for some time at Hanover, I had a call by the people of Newark; but there was scarce any probability that I should suit their circumstances, being young in standing and trials. I accepted of their invitation, with a reserve, that I did not come with any views of settling. My labours were universally acceptable among

them, and they manifested such great regard and love for me, that I consented to accept of the charge of their souls.

"A.D. 1738-39, January the 25th, I was set apart to the work of the ministry, by fasting, prayer, and imposition of hands. God grant that I may ever keep fresh upon my mind the solemn charge that was then given me; and never indulge trifling thoughts of what then appeared to me of such awful importance. The ministers who joined in this solemn transaction were Mr. Dickinson, who gave the charge, and Mr. Pierson, who preached. Mr. Dickinson, who presided at this work, has been of great service to me by his advice and instruction, both before and since my ordination.

"In November, 1739, I made a visit to my friends in New-England, and again in March, 1740. In the following August I was in a declining state of health, and by the advice of my physicians visited Rhode Island. From thence I proceeded to Boston. On the 19th of September I heard Mr. Whitefield preach in Dr. Colman's church. I am more and more pleased with the man. On the 21st, heard him preach in the Commons to about ten thousand people. On Monday, visited him, and had some conversation to my great satisfaction. On the 23d, went to hear him preach in Mr. Webb's church, but the house was crowded before Mr. Whitefield came. The people, especially the women, were put into a fright, under a mistaken notion that the galleries were falling, which caused them to hurry out in such a violent manner, that many were seriously injured and five killed. The same day, Mr. Whitefield preached at Mr. Gee's church. In the evening he preached at Dr. Sewall's church. On Saturday I went to hear him in the Commons; there were about eight thousand hearers. He expounded the parable of the prodigal son in a very moving manner. Many melted into tears. On the 4th of October, being on my return to New-Jersey, I arrived at Fairfield, where I remained two days with my friends."

In the year 1748, Governor Belcher, of New-Jersey, by and with the approbation of his Majesty's Council, granted a charter to the college of New-Jersey, subsequently known as Nassau Hall. This college was opened in Newark, the students living in private families. The Rev. Aaron Burr was appointed the first president. In the year 1754 or 1755, the trustees commenced erecting the college in Princeton; and in 1757 it was so far completed that the students, about seventy in number, were removed to the building.

In, June, 1752, President Burr, being then in his 38th year, was married to Esther Edwards, the daughter of Jonathan Edwards, a distinguished metaphysician and divine. He was the second president of Princeton College, being called to that station on the decease of his son-in-law, President Burr. Thus, the father of Colonel Aaron Burr, and the grandfather on his mother's side, were, in succession, at the head of that seminary of learning.

President Burr was alike celebrated for his eloquence and piety; but, withal, he possessed no inconsiderable degree of eccentricity. His courtship and marriage partook of it. Miss Edwards, after the preliminaries were arranged, was brought to New-Jersey to be married. The occurrence created much conversation, and gave rise to some newspaper commentary. The following is extracted from the New-York Gazette of the 20th of July, 1752.

"A letter to a gentleman from his friend, dated

"July 7th, 1752

"Sir,

"As you are a known and peculiar votary to the state of celibacy, I judged it would do you no disservice to acquaint you of a late occurrence, which

sufficiently evidences, that after the most mature consideration, some of our wisest and best men do prefer the endearment of the nuptial bed.

"About eight days since, the Rev. Aaron Burr, president of the College of New-Jersey, was married to a daughter of the renowned Mr. Jonathan Edwards, late of Northampton. She is a young lady of about twenty-one. Her person may be called agreeable; her natural genius seems to be sprightly, and, no doubt, is greatly improved by a very virtuous education. In short, she appears to be one every way qualified to make a man of sense and piety happy in the conjugal relation. As to the courtship or marriage, I shall not descend to particulars; but only observe, in general, that, for some centuries, I suppose there has not been one more in the patriarchal mode.

"I hope, sir, that this instance, both as to matter and form, will have its genuine influence upon you, and as well bear a part in convincing you that wedlock is incomparably preferable to the roving uneasiness of the single state, as to direct you, when you are choosing your mate, that, instead of acting the modern gallant, wisely to imitate this example, and endeavour to restore courtship and marriage to their original simplicity and design.

**"PHILOGAMUS."**

At different times Colonel Burr received friendly anonymous and other communications, recommending to him the practice of a religious life. It is a remarkable fact, that in almost every such instance he is referred to the letters of his mother. From a communication to him, written by a lady, the following is extracted. If it should meet her eye, as it probably will, it is hoped that she will pardon this freedom. Her name is suppressed, and will not be known, unless through her own instrumentality.



"My Dear Sir,

"I trust the purity of the motives by which I am actuated will find an apology in your bosom for the liberty I assume in addressing you on a subject which involves your eternal interest.

"Here, in the wilds of ——, I have found an extract of a letter, written by your inestimable mother nearly sixty years ago, of which you are the principal subject; and a transcript of which I shall enclose for your perusal. Perhaps you will think me a weak, presumptuous being; but permit me, dear sir, to assure you, this does not proceed from a whim of the moment. It is not a mere transient gust of enthusiasm. The subject has long been heavy on my mind. I have more than once resolved to converse with you freely; to tell you how my own feelings were affected relative to your situation; but my faltering tongue refused to obey the impulse of my soul, and I have withdrawn abruptly, to conceal that which I had not confidence to communicate. But meeting (I believe providentially) with this precious relic has determined me. I will write, and transmit it to you. I am too well convinced of the liberality of your sentiments; but I still believe you retain an inherent respect for the religion of your forefathers.

"I have often reflected on your trials, and the fortitude with which you have sustained them, with astonishment. Yours has been no common lot. But you seem to have forgotten the right use of adversity. Afflictions from Heaven 'are angels sent on embassies of love.' We must improve, and not abuse them, to obtain the blessing. They are commissioned to stem the tide of impetuous passion; to check inordinate ambition; to show us the insignificance of earthly greatness; to wean our affections from transitory things, and elevate them to those realities which are ever blooming at the right hand of God. When affliction is thus sanctified, 'the heart at once it humbles and exalts.'

"Was it philosophy that supported you in your trials? There is an hour approaching when philosophy will fail, and all human science will desert you. What then will be your substitute? Tell me, Colonel Burr, or rather answer it to your own heart, when the pale messenger appears, how will you meet him—'undamped by doubts, undarkened by despair?'

"The enclosed is calculated to excite mingled sensations both of a melancholy and pleasing nature. The hand that penned it is now among 'the just made perfect.' Your mother had given you up by faith. Have you ever ratified the vows she made in your behalf? When she bade you a long farewell, she commended you to the protection of Him who had promised to be a father to the fatherless." The great Augustine, in his early years, was an infidel in his principles, and a libertine in his conduct, which his pious mother deplored with bitter weeping. But she was told by her friends that 'the child of so many prayers, and tears could not be lost;' and it was verified to her happy experience, for he afterward became one of the grand luminaries of the church of Christ. This remark has often been applied to you; and I trust you will yet have the happiness to find that 'the prayers of the righteous' have 'availed much.'

"One favour I would ask: when you have done with this, destroy it, that it may never meet the eye of any third person. In the presence of that God, before whom the inmost recesses of the heart are open, I have written. I consulted him, and him only, respecting the propriety of addressing it to you; and the answer he gave was, freedom in writing, with a feeling of the deepest interest impressed upon my heart.

"Z. Y"

"To Col. A. BURR."

**EXTRACT OF A LETTER FROM MRS. BURR TO HER FATHER, PRESIDENT EDWARDS.**

"Princeton, Nov. 2, 1757.

"Honoured Sir,

"Your most affectionate, comforting letter, by my brother, was exceedingly refreshing to me, although I was somewhat damped that I should not see you until spring. But it is my comfort in this disappointment, as well as under all my afflictions, that God knows what is best for me and for his own glory. Perhaps I depended too much on the company and conversation of such a near, and dear, and affectionate father and guide. I cannot doubt but all is for the best, and I am satisfied that God should order the affair of your removal as shall be for his glory, whatever comes of me. Since I wrote my mother's letter, God has carried me through new trials, and given me new supports. My little son [1] has been sick with the slow fever ever since my brother left us, and has been brought to the brink of the grave. But I hope, in mercy, God is bringing him up again. I was enabled to resign the child (after a severe struggle with nature) with the greatest freedom. God showed me that the child was not my own, but his, and that he had a right to recall what he had lent whenever he thought fit; and I had no reason to complain, or say God dealt hard with me. This silenced me. But how good is God! He hath not only kept me from complaining, but comforted me, by enabling me to offer up the child by faith. I think, if ever I acted faith, I saw the fullness there was in Christ for little infants, and his willingness to accept of such as were offered to him. 'Suffer little children to come unto me, and forbid them not, for of such is the kingdom of God,' were comforting words. God also showed me, in such a lively manner, the fullness that was in himself of all spiritual blessings, that I said, Although all streams were cut off, yet, so long as my God lives, I have enough. He enabled me to say—'Although thou slay me, yet will I trust in thee.' In this

time of trial I was led to enter into a renewed and explicit covenant with God, in a more solemn manner than ever before, and with the greatest freedom and delight. After much self-examination and prayer, I did give up myself and children to God with my whole heart. Never, until now, had I a sense of the privilege we are allowed in covenanting with God! This act of my soul left my mind in a quiet and steady trust in God. A few days after this, one evening, in talking of the glorious state my dear departed must be in, my soul was carried out in such longing desires after this glorious state, that I was forced to retire from the family to conceal my joy. When alone, I was so transported, and my soul carried out in such eager desires after perfection, and the full enjoyment of God, and to serve him uninterruptedly, that I think my nature would not have borne much more. I think I had that night a foretaste of Heaven. This frame continued, in some good degree, the whole night. I slept but little; and when I did, my dreams were all of heavenly and divine things. Frequently since I have felt the same in kind, though not in degree. Thus a kind and gracious God has been with me in six troubles, and in seven. But, oh! Sir, what cause of deep humiliation and abasement of soul have I, on account of remaining corruption which I see working, especially pride! Oh, how many shapes does pride cloak itself in! Satan is also busy shooting his darts; but, blessed be God, those temptations of his that used to overthrow me, as yet, have not touched me. Oh to be delivered from the power of Satan as well as sin! I cannot help hoping the time is near. God is certainly fitting me for himself; and when I think it will be soon that I shall be called hence, the thought is transporting.

"Your dutiful and affectionate daughter,

"Esther Burr."

Such were the parents of Colonel Aaron Burr. Of the natural guardianship and protection of both he was deprived before he had reached the third year

of his age. He was born on the 6th of February, 1756, in Newark, State of New-Jersey. His father died in August, 1757, and his mother the year following, leaving two children, Aaron, and his sister Sarah. She subsequently became the wife of Judge Tappan Reeve, of Connecticut. On the decease of his father, Colonel Burr inherited a handsome estate.

In the year 1760 Aaron was sent to Philadelphia, under the care of an aunt and Dr. Shippen. For the family of the doctor he entertained a high degree of respect. He frequently spoke of them in the kindest terms, and recurred to this early period of his history with emotions of gratitude for their care and protection.

Boswell, in his *Life of Johnson*, remarks that, "In following so very eminent a man from his cradle to his grave, every minute particular which can throw light on the progress of his mind, is interesting." Johnson himself, in the *Life of Sydenham*, says "There is no instance of any man, whose history has been minutely related, that did not, in every part of life, discover the same proportion of intellectual vigour."

These high authorities are now quoted in justification of some of the details which will be given in the progress of this work, and which, in themselves, may appear trifling and unimportant. When Aaron was about four years old, he had some misunderstanding with his preceptor, in consequence of which he ran away, and was not found until the third or fourth day after his departure from home; thus indicating, at a tender age, that fearlessness of mind, and determination to rely upon himself, which were characteristics stamped upon every subsequent act of his life.

Footnotes:

1. Col. Burr, at that time about twenty months old.

## CHAPTER II.

In 1761 he was removed to Stockbridge, in Massachusetts, and placed in the family of Timothy Edwards, his mother's eldest brother. In 1762 his maternal uncle, Timothy, removed to Elizabethtown, New-Jersey. Aaron and his sister Sarah remained in the family until the former entered college, and the latter became the wife of Judge Reeve. A private tutor was employed for them in the house of Mr. Edwards. For a considerable portion of the time, Judge Reeve was engaged in that capacity.

When about ten years old, Aaron evinced a desire to make a voyage to sea; and, with this object in view, ran away from his uncle Edwards, and came to the city of New-York. He entered on board an outward-bound vessel as cabin-boy. He was, however, pursued by his guardian, and his place of retreat discovered. Young Burr, one day, while busily employed, perceived his uncle coming down the wharf, and immediately ran up the shrouds, and clambered to the topgallant-mast head. Here he remained, and peremptorily refused to come down, or be taken down, until all the preliminaries of a treaty of peace were agreed upon. To the doctrine of unconditional submission he never gave his assent.

In 1769 Burr entered Princeton College; where, owing to his extreme youth and smallness of stature, he was forced to commence with the sophomore, although, upon examination, he was found qualified to enter the junior class. This was a source of extreme mortification to him, and

especially as he had been prepared, and was every way qualified, to enter the preceding year. From his infancy Burr was of a slender frame, and appeared to be delicately formed; but exhibited great muscular strength, and was able to endure excessive fatigue of body and mind.

Previous to entering college, young Burr had formed extraordinary notions of the acquirements of collegiates; and felt great apprehension lest he should be found inferior to his classmates. He was therefore, at first, indefatigable as well as systematic in his studies. He soon discovered that he could not pursue them after dinner with the same advantage that he could before. He suspected that this was owing to his eating too abundantly. He made the experiment, and the result convinced him that his apprehensions were well founded. He immediately adopted a system of regimen, to which, in some degree, he adhered through life. So abstemious was he during the greater part of the first year after his entrance into college, that it operated powerfully upon him, and he was supposed to be in bad health. He was in the habit of studying sixteen or eighteen hours of the twenty-four, until the period of examination arrived, when he discovered that the progress he had made was so much beyond his associates, that he formed an opinion as contemptuous as it had been exalted of his college friends. The effect of this was ultimately very injurious upon his habits.

During the last year that he remained in college, he passed a life of idleness, negligence, and, in some measure, of dissipation. He applied himself but little to his studies, and was in the constant pursuit of pleasure. He graduated, however, when only sixteen years of age, with a reputation for talents, and receiving the highest academic honours the faculty could bestow.

In the year 1771-72, there was in the college what was termed, in religious phraseology, "an awakening." A large portion of the collegians



became converted. It was only a short time before Burr graduated, and in the midst of his hilarity and amusements. He was frequently appealed to by his associates, and threatened with the most terrific consequences if there was not an inward as well as an outward change. From his infancy Burr's education had been strictly moral; and strong impressions had been made upon his mind as to the existence of a Deity, and the accountability of man. Yet this awakening did not seem to him right in all its parts. He determined, therefore, to have a free and full conversation with Dr. Witherspoon, the then president of the college, on the subject. The result of that conversation in some measure tranquillized young Burr. The Rev. Dr. assured him that it was not true and rational religion, but fanaticism, that was operating upon his friends.

Among the papers preserved by Colonel Burr are the originals of a number of essays or orations, written and read by him, in conformity with the regulations of the college, while yet a student. They are without dates; but, as he graduated in 1772, they must have been composed when he was of an age between thirteen and sixteen. A few of them are here inserted, as exhibiting his manner of writing, and the maturity and tone of his mind. The opinions which he formed, while yet in college, as to public speaking and the selection of language, he appears never to have changed. The style which he then recommended seems ever after to have been his model.

\* \* \* \* \*

*Read in College, by Aaron Burr.—On Style.*

"I have often observed, that it is very common for those who are ambitious of excelling in composition, to study swelling words, pompous epithets, and laboured periods. This is often practised, especially by young writers. It is, however, generally condemned as a fault, and sometimes too by those who practise it themselves. An elegant simplicity of language is

what every one should strive to obtain. Besides the arguments which are usually offered on this head, there is one very important one, which is commonly not much attended to.

"It is the business of every writer to acquire command of language, in order that he may be able to write with ease and readiness, and, upon any occasion, to form extempore discourses. Unless he can do this, he will never shine as a speaker, nor will he ever make a figure in private conversation. But to do this, it is necessary to study simplicity of style. There never was a ready speaker, whose language was not, generally, plain and simple; for it is absolutely impossible to carry the laboured ornaments of language, the round period, or the studied epithet, into extempore discourses; and, were it possible, it would be ridiculous. We have learned, indeed, partly from reading poetry, and partly from reading vicious compositions, to endure, and too often to admire, such stiff and laboured discourses in writing; but if it were even possible for a man to speak in the same pompous diction in which Browne has written his vulgar errors, he would certainly be very disagreeable. This reason, among others, may be assigned for it; that however such false ornaments may please for a time, yet, when a long and steady attention is required, we are tired and disgusted with every thing which increases our labour, and diverts the attention from the subject before us. A laboured style is a labour even to the hearer. A simple style, like simple food, preserves the appetite. But a profusion of ornament, like a profusion of sweets, palls the appetite and becomes disgusting. A man might as soon think of filling his stomach with sweetmeats, as going through a long debate filled with pompous epithets and sounding language. If we have any doubt of its being ridiculous, let us only suppose a man arguing an abstruse subject in metaphysics, in the blank verse of Milton, or the exact rhymes of Pope. The absurdity is the same, only different in degree. I would not be understood to cut off an extempore speaker from sublime expressions; because I do not suppose these to be

inconsistent with simplicity of style. I really doubt if there be any such thing as sublimity of style, strictly speaking. But, indeed, rather believe that the sublime depends upon the thoughts, which are the more sublime by being clearly and simply expressed, This, however, is not material at present. It is certainly impossible for a speaker to carry laboured periods into his extempore discourses: it is no less certain, that in general, a simple style is to be preferred, and that he would be ridiculous and disagreeable if he could do it; and as extempore speaking is a great object, which we ought to have in view in the formation of our style, this may be used as one argument why we should study a simple style."

### *The Passions.*

"Amid the variety of literary pieces which have in all ages been ushered into the world, few, if any, afford greater satisfaction than those that treat of man. To persons of a speculative nature and elegant taste, whose bosoms glow with benevolence, such disquisitions are peculiarly delightful. The reason, indeed, is obvious; for what more necessary to be learned and accurately understood? what more near and interesting? and, therefore, what more proper to engage the attention? Well may I say, with our ethic poet,

""The proper study of mankind is man.'

"If we take a view of the body only, which may be called the shell or external crust, we shall perceive it to be formed with amazing nicety and art. How are we lost in wonder when we behold all its component parts; when we behold them, although various and minute, and blended together almost beyond conception, discharging their peculiar functions without the least confusion. All harmoniously conspiring to one grand end.

"But when we take a survey of the more sublime parts of the human frame; when we behold man's internal make and structure; his mental faculties; his social propensions, and those active powers which set all in motion—the passions,—what an illustrious display of consummate wisdom is presented to our admiring view! What brighter mark—what stronger evidence need we of a God? The scanty limits of a few minutes, to which I am confined, would not permit me, were I equal to the task, to enter into a particular examination of all man's internal powers. I shall therefore throw out a few thoughts on the passions only.

"Man's mental powers, being in their nature sluggish and inactive, cannot put themselves in motion. The grand design then of the passions is, to rouse them to action. These lively and vigorous principles make us eager in the pursuit of those things that are approved by the judgment; keep the mind intent upon proper objects, and at once awake to action all the powers of the soul. The passions give vivacity to all our operations, and render the enjoyments of life pleasing and agreeable. Without them, the scenes of the world would affect us no more than the shadowy pictures of a morning dream.

"Who can view the works of nature, and the productions of art, without the most sublime and rapturous emotions? Who can view the miseries of others, without being dissolved into compassion? Who can read human nature, as represented in the histories of the world, without burning to chastise the perpetrators of tyranny, or glowing to imitate the assertors of freedom? But, were we of a sudden stripped of our passions, we should survey the works of nature and the productions of art with indifference and neglect. We should be unaffected with the calamities of others, deaf to the calls of pity, and dead to all the feelings of humanity. Without generosity, benevolence, or charity, man would be a groveling, despicable creature. Without the passions, man would hardly rank above the beasts.

"It is a trite truth, that the passions have too much influence over our sentiments and opinions. It is the remark of a late author, that the actions and sentiments of men do as naturally follow the lead of the passions, as the effect does the cause. Hence they are, by some, aptly enough, termed the principles of action. Vicious desires will produce vicious practices; and men, by permitting themselves to think of indulging irregular passions, corrupt the understanding, which is the source of all virtue and morality. The passions, then, if properly regulated, are the gentle gales which keep life from stagnating; but, if let loose, the tempests which tear every thing before them. Too fatal observation will evince the truth of this.

"Do we not frequently behold men of the most sprightly genius, by giving the reins to their passions, lost to society, and reduced to the lowest ebb of misery and despair? Do we not frequently behold persons of the most penetrating discernment and happy turn for polite literature, by mingling with the sons of sensuality and riot, blasted in the bloom of life? Such was the fate of the late celebrated Duke of Wharton, Wilmot, earl of Rochester, and Villers, duke of Buckingham, three noblemen, as eminently distinguished by their wit, taste, and knowledge, as for their extravagance, revelry, and lawless passions. In such cases, the most charming elocution, the finest fancy, the brightest blaze of genius, and the noblest burst of thoughts, call for louder vengeance, and damn them to lasting infamy and shame.

"A greater curse cannot, indeed, befall community, than for princes and men in eminent departments to be under the influence of ill-directed passions. Lo Alexander and Cesar, the fabled heroes of antiquity, to what lengths did passion hurry them? Ambition, with look sublime, bade them on, bade them grasp at universal dominion, and wade to empire through seas of blood! But why need I confine myself to these? Do not provinces, plundered and laid waste with fire and sword; do not nations, massacred

and slaughtered by the bloody hand of war; do not all these dreadful and astonishing revolutions, recorded in the pages of history, show the fatal effects of lawless passions?

"If the happiness of others could not, yet surely our own happiness should induce us to keep our passions within the bounds of reason; for the passions, when unduly elevated, destroy the health, impair the mental faculties, sour the disposition, embitter life, and make us equally disagreeable to others and uneasy to ourselves. Is it not, then, of moment, that our passions be duly balanced, their sallies confined within proper limits, and in no case suffered to transgress the bounds of reason? Will any one deny the importance of regulating the passions, when he considers how powerful they are, and that his own happiness, and perhaps the happiness of thousands, depends upon it? The regulation of the passions is a matter of moment, and therefore we should be careful to fix them upon right objects, to confine them within proper bounds, and never permit them to exceed the limits assigned by nature. It is the part of reason to sooth the passions, and to keep the soul in a pleasing serenity and calm: if reason rules, all is quiet, composed, and benign: if reason rules, all the passions, like a musical concert, are in unison. In short, our passions, when moderate, are accompanied with a sense of fitness and rectitude; but, when excessive, inflame the mind, and hurry us on to action without due distinction of objects.

"Among uncivilized nations, the passions do, in general, exceed all rational bounds. Need we a proof of this? Let us cast our eyes on the different savage tribes in the world, and we shall be immediately convinced that the passions rule without control. Happy it is, that in polished society, the passions, by early discipline, are so moderated as to be made subservient to the most important services. In this respect, seminaries of learning are of the utmost advantage, and attended with the most happy

effects. Moreover, the passions are attended with correspondent commotions in animal nature, and, therefore, the real temper will, of course, be discovered by the countenance, the gesture, and the voice. Here I might run into a pleasing enumeration of many instances of this; but, fearing that I have already trespassed upon your patience, shall desist. Permit me, however unusual, to close with a wish. May none of those unruly passions ever captivate any of my audience."

*An Attempt to search the Origin of Idolatry.*

"It is altogether impossible to fix exactly the period when idolatry took its rise. Adam, coming immediately from the hands of God, had experienced too many manifestations of his power and goodness to be unacquainted with him, and must have preserved the purest idea of him in his own family, which, most probably, continued in the branch of Seth till the deluge. The posterity of Cain, on the contrary (the pure idea of God gradually wearing away, and by loose men being connected with sense), fell into idolatry, and every other crime, which brought on the deluge; a period about which Moses has said but little, and from what he has said we can draw no just conclusion with respect to the idolatry of those times.

"A certain author, being persuaded that idolatry did not take its rise till after the deluge, gives a very singular account of its origin. According to him, atheism had spread itself over the world. This disposition of mind, says he, is the capital crime. Atheists are much more odious to the Divinity than idolaters. Besides, this principle is much more capable of leading men into that excessive corruption the world fell into before the deluge. The knowledge of a God, of whatever nature he is conceived, and the worship of a Deity, are apt, of themselves, to be a restraint upon men. So that idolatry was of some use to bear down the corruption of the world. It is therefore

probable, that the horrid vices men were fallen into before the deluge, proceeded only from their not knowing nor serving a God. I am even of opinion (continues he) that the idolatry and polytheism after the deluge derived their origin from the atheism and impiety that reigned before it. Such is the temper of men, when they have been severely punished for any crime, they run into the opposite extreme. I conjecture (concludes the same author) this was the case with men after the deluge. As they reckoned that this terrible judgment, which carried such indications of Divine wrath, was sent for the punishment of atheism, they ran into the opposite extreme. They adored whatever seemed to deserve their worship.

"It is true, indeed, that idolatry is capable of furnishing a curb against irregularity of manners; but this author has conjectured, without foundation, that atheism reigned universally before the deluge. He ought, at least, to have excepted the posterity of Seth.

"However idolatry might have reigned before the deluge, it is certain that the knowledge and worship of the true God were again united in the family of Noah; and as long as the children and grandchildren of that patriarch made but one family, in all probability, the worship of the true God was little altered in its purity. Noah being at the head of the people, and Shem, Ham, and Japheth witnesses of God's vengeance on their contemporaries, is it probable that they, living in the midst of their families, would suffer them to depart from the truth? We read of nothing that can incline us to this belief. Various have been the conjectures concerning the authors of idolatry. Some believe it was Serug, the grandfather of Terah, who first introduced idolatry after the deluge. Others maintain it was Nimrod, and that he instituted the worship of fire among his subjects, which continues even to this day in some places in Persia. Others assert that Ham was the author of it, and then his son Canaan; and it is most probable that the unfortunate sons of an accursed father were the first who, following the propensity of their



own heart, sought out sensible objects to which they might offer a superstitious worship. As the two sons of Ham, Canaan and Mizraim, settled, the one in Phoenicia, and the other in Egypt, it is probable that these were the first nurseries of idolatry; and the sun, being looked upon as the purest image of the Creator, was the first object of it. It is not probable that men would choose beings like themselves for the first objects of their adoration. Nothing could be more capable of seducing than the beauty and usefulness of the sun, dispensing light and fertility all around. But, to conclude, we must not imagine that all idolatry sprang from the same country. It came by slow degrees, and those who made the first advances towards this impiety, did by no means carry it to that extravagant height to which it afterwards arrived."

## CHAPTER III.

In college, young Burr formed intimacies which ripened into lasting friendship. The attachment between him and Colonel Matthias Ogden, of New-Jersey, was both ardent and mutual; and, it is believed, continued during the life of the latter. Colonel Knapp says, "Samuel Spring, D. D., late of Newburyport, was in college with Colonel Burr, and part of their college life was his chum. The doctor was a student of mature age, and had a provisorial power over Burr in his daily duties. He has often spoken of his young friend with more than ordinary feeling. He, in fact, prophesied his future genius, from the early proofs he gave of intellectual power in the course of his college life."

At Princeton, Burr enjoyed the counsel and advice of the late William Paterson, subsequently one of the judges of the Supreme Court of the United States. To be thus early in life honoured with the respect and esteem of such a man as Judge Paterson, was highly flattering. Their correspondence commenced in 1772, and continued until the decease of the judge. Extracts from his letters to Colonel Burr will be given occasionally. He says, in a letter dated

"Princeton, January 17th, 1772.

"Dear Burr,

"I am just ready to take horse, and therefore cannot have the pleasure of waiting on you in person. Be pleased to accept of the enclosed notes on *dancing*. If you pitch upon it as the subject of your next discourse, they may, perhaps, furnish you with a few hints, and enable you to compose with the greater facility and despatch. To do you any little services in my power will afford me great satisfaction, and I hope you will take the liberty (it is nothing more, my dear Burr, than the freedom of a friend) to call upon me whenever you think I can.

"When I shall be here again is uncertain—perhaps not before vacation. Forbear with me while I say *that you cannot speak too slow*. Your good judgment generally leads you to lay the emphasis on the most forcible word in the sentence; so far you act very right. But the misfortune is, that you lay too great stress upon the emphatical word. Every word should be distinctly pronounced; one should not be so highly sounded as to drown another. To see you shine as a speaker would give great pleasure to your friends in general, and to me in particular. I say nothing of your own honour. The desire of making others happy will, to a generous mind, be the strongest incentive. I am much mistaken if such a desire has not great influence over you. You are certainly capable of making a good speaker. Exert yourself. I am in haste.

"Dear Burr, adieu.

"WM. PATERSON"

Another letter, dated

"Princeton, October 26th, 1772.

"Dear Burr,

"Our mutual friend, Stewart, with whom I spent part of the evening, informed me you were still in Elizabethtown. You are much fonder of that place than I am, otherwise you would hardly be prevailed upon to make so long a stay. But, perhaps, the reason that I fear it, makes you like it. There is certainly something amorous in its very air. Nor is this a case any way extraordinary or beyond belief. I have read (and it was in point, too) that a flock of birds, being on the wing, and bending their flight towards a certain town in Connecticut, dropped down dead just as they were over it. The people were at first fairly at a loss to account for this phenomenon in any natural way. However, it was at length agreed on all hands that it was owing to the noisomeness of the atmosphere, the smallpox at that time being very rife in the place. I should never have given credit to the report, had it not come from so good a quarter as that of New-England. For my part, I always drive through Elizabethtown as quickly as possible, lest the soft infection should steal upon me, or I should take it in with the very air I breathe.

"Yesterday I went to hear Mr. Halsey, and there, too, I saw his young and blooming wife. The old gentleman seems very fond of his rib, and, in good sooth, leers very wistfully at her as she trips along by his side. Some allowance, however, must be made; he is in the vale of life; love is a new thing to him, and the honey-moon is not yet over. 'They are amorous, and fond, and billing, Like Philip and Mary on a shilling.' I have promised to pay him a visit; Stewart, or some of the tutors, I believe, will accompany me, and I hope you will too.

"Since commencement I have been at a Dutch wedding, and expect to be at one or two more very shortly. There was drinking, and singing, and fiddling, and dancing. I was pleased extremely. Every one seemed to be in good-humour with himself, and this naturally led them all to be in good-humour with one another.

"When the itch of scribbling seizes me, I hardly know when to stop. The fit, indeed, seldom comes upon me; but when it does, though I sit down with a design to be short, yet my letter insensibly slides into length, and swells perhaps into an enormous size. I know not how it happens, but on such occasions I have a knack of throwing myself out on paper that I cannot readily get the better of. It is a sign, however, that I more than barely esteem the person I write to, as I have constantly experienced that my hand but illy performs its office unless my heart concurs. I confess I cannot conceive how I got into so scribbling a vein at present. It is now past eleven o'clock at night, and besides being on horse the greater part of the day, I intend to start early to-morrow for Philadelphia. There I shall see the races, and the play, and, what is of more value far than all, there, too, I shall see Miss ——, you know who.

"The enclosed letter to Spring I commit to your care. I should have sent it before, as I wrote it immediately after you left this place, but I really thought you were in New-England long ere now. I know not his address; perhaps he is at Newport, perhaps he is not. If, on inquiry, you find that the letter is wrongly directed, pray give it an envelope, and superscribe it anew. If he is still at Newport, it would, perhaps, more readily reach him from New-York than from any part of New-England that you maybe at. I have said that if I am mistaken in directing the within letter, you should cover it and give it the proper address. Do, dear Burr, get somebody who can write at least a passable hand to back it, for you give your letters such a sharp, slender, and lady-like cast, that almost every one, on seeing them, would conclude there was a correspondence kept up between my honest friend Spring and some of the female tribe, which might, perhaps, affect him extremely in point of reputation, as many people suppose that nothing of this kind can be carried on between unmarried persons of the two sexes without being tinged with love; and the rather so, since the notion of Platonic love is, at the present day, pretty generally, and I believe justly too,

exploded. Platonic love is arrant nonsense, and rarely, if ever, takes place until the parties have at least passed their grand climacteric. Besides, the New-England people, I am told, are odd, inquisitive kind of beings, and, when pricked on by foolish curiosity, may perhaps open the letter, which I do not choose should be common to every eye.

"You gave me some hopes that you would see my good friend Reeve before you returned. If you do, make him my respectful compliments, and tell him that I fully designed to write him, but that business prevented, that laziness hindered, that—in short, tell him any thing, so it does not impeach my affection, or lead him to think I have entirely forgotten him. I am,

"Dear Burr yours sincerely,

**"WM. PATERSON."**

In a letter to Dr. Spring, dated October 5, 1772, speaking of the commencement, Judge Paterson says:—"The young gentlemen went through their exercises in a manner passable enough. The speakers were all tolerable—none of them very bad nor very good. Our young friend Burr made a graceful appearance; he was excelled by none, except perhaps by Bradford. Linn, too, was pretty generally approved; but, for my part, I could not forbear thinking that he took rant, and rage, and madness for true spirit—a very common mistake."

For some months after Burr graduated (1772), he remained in college, reviewing his past studies, and devoting his time to general literature. Possessed of an ample income, having access to the college library, and continuing, from time to time, as his correspondence shows, to supply himself with scientific and literary productions, his mind was greatly improved during this period. It is true he continued to indulge in

amusements and pleasures; but, sleeping little, seldom more than six hours, he found ample time for study.

In the college there was a literary club, consisting of the graduates and professors, and still known as *The Clio-Sophic Society*. Dr. Samuel S. Smith, subsequently president of the college, was then (1773) a professor. With him young Burr was no favourite, and their dislike was mutual. The attendance of the professors was expected to be regular. The members of the society in rotation presided over its deliberations. On a particular occasion it was the duty of young Burr to take the chair. At the hour of meeting he took his seat as president. Dr. Smith had not then arrived; but, shortly after the business commenced, he entered. Burr, leaning on one arm of the chair (for, although now sixteen years of age, he was too small to reach both arms at the same time), began lecturing Professor Smith for his non-attendance at an earlier hour, remarking that a different example to younger members was expected from him, and expressing a hope that it might not again be necessary to recur to the subject. Having finished his lecture, to the great amusement of the society, he requested the professor to resume his seat. The incident, as may well be imagined, long served as a college joke.

FROM TIMOTHY DWIGHT.

New-Haven, March, 1772.

DEAR AARON,

By a poor candle, with poor eyes and a poorer brain, I sit down to introduce a long wished-for correspondence. You see how solicitous I am to preserve old connexions; or, rather, to begin new ones. Relationship, by the

fashionable notions of those large towns, which usurp a right to lead and govern our opinions, is dwindled to a formal nothing—a mere shell of ceremony. Our ancestors, whose honesty and simplicity (though different from the wise refinements of modern politeness) were perhaps as deserving of imitation as the insincere coldness of the present generation, *cousin'd* it to the tenth degree of kindred. Though this was extending the matter to a pitch of extravagance, yet it was certainly founded upon a natural, rational principle. Who are so naturally our friends as those who are born such? I defy a New-Yorker, though callous'd over with city politeness, to be otherwise than pleased with a view of ancient hospitality to relations, when exercised by a person of good-breeding and a genteel education.

Now, say you, what has this to do with the introduction of a correspondence? You shall know directly, sir. The *Edwardses* have been always remarkable for this fondness for their relations. If you have the least inclination to prove yourself a true descendant of that respectable stock, you cannot fail of answering me very soon. This (were I disposed) I could demonstrate by algebra and syllogisms in a twinkling; but hope you will believe me without either. I never asked for many connexions in this way; and was never neglected but once, and that by a Jersey gentleman, to whom I wrote and received no answer. I hope the disease is not epidemical, and that you have not determined against any communication with the rest of the world. It was a mortification, I confess; for I am too proud to be denied a request, though unreasonable, as many of mine are—therefore, I insist upon an answer, at least, and as many more as you can find in your heart to give me; promising, in return, as many by tale, though without a large profit. I shall not warrant their quality.

Your sincere friend,

**TIMOTHY DWIGHT, JUNR.**



FROM SAMUEL SPRING.

Newport, May 15th, 1772.

DEAR BURR,

It is a little strange to me that I have not heard any thing of you since your examination. I don't know but you are dissatisfied, since you are so backward to write; however, I will, if possible, keep such thoughts out of my mind till I hear from you in particular. If you are let down a peg lower, you may tell me of it. If you are permitted to live in college, you may tell me of it; and if you are turned out, you may tell me of it. If you passed examination, and have a syllogism to speak at commencement, *if you are able to make it*, I suppose you may tell me of that likewise; or, if you are first in the class, you may tell me, if you will only do it softly; indeed, you may tell me any thing, for I profess to be your friend. Therefore, since you can trust me so far, I expect you will now write, and let me know a little how matters are at present in college. In particular, let me know the state of the society (Cliosophic); and if I owe any thing to it, do you pay it, *and charge it to your humble servant*.

I hope you will write the first opportunity, as I trust you have got some very good news to tell me concerning the college in general, and yourself in particular. I have nothing particular to write. It is very pleasant to me where I am at present.

The study of divinity is agreeable;—far more so than any other study whatever would be to me. I hope to see the time when you will feel it to be your duty to go into the same study with a desire for the ministry. Remember, that was the prayer of your dear father and mother, and is the prayer of your friends to this time—that you should step forth into his place, and make it manifest that you are a friend to Heaven, and that you

have a taste for its glory. But this, you are sensible, can never be the case if you remain in a state of nature. Therefore, improve the present and future moments to the best of purposes, as knowing the time will soon be upon you when you will wish that in living you had lived right, and acted rationally and like an immortal.

Your friend,

**SAMUEL SPRING.**

In 1806-7 great excitement was produced, in consequence of Colonel Burr writing in cipher to General Wilkinson, In this particular he seems to have had peculiar notions. However innocent his correspondence, he was, apparently, desirous at all times of casting around it a veil of mystery. The same trait was conspicuous in his political movements and intercourse. This has been one of the weak points in Colonel Burr's character. He was considered a mysterious man; and what was not understood by the vulgar, was pronounced selfish or ambitious intrigue. Even his best friends were, often dissatisfied with him on this account. Acting upon this principle of mystery at every period of his life, he has corresponded with one or more individuals in cipher. While yet a student in college, the letters between his sister and himself are frequently written in cipher. So, also, much of his correspondence with his most intimate friend, Matthias Ogden, and with others in 1774 and 1775, is in cipher. Many of these letters, thus written, are now in existence. To those, therefore, acquainted with the character and peculiarities of Colonel Burr, the fact of his writing a letter in cipher would not be considered as any thing extraordinary; because it was a habit which he had adopted and pursued for more than thirty years preceding the period when this excitement was thus produced.

Before Burr left Princeton, and while he was indulging himself in pleasures and amusements, he accidentally visited a billiard-table. He engaged in play, and, although he had never before seen the game, he was successful, and won about half a Joe. On returning home with his gains, he reflected on the incident with great mortification, and determined never again to play; which determination he adhered to through life. Colonel Burr not only abstained from playing at billiards, but with equal pertinacity he refused to play at any game for the purpose of acquiring money.

Although he had been somewhat tranquillized by his conversation with Dr. Witherspoon on the subject of the awakening in college in 1772, yet he was not entirely at ease. In consequence of which he came to a resolution not to enter upon the concerns of life until this point was more satisfactorily settled in his own mind. He concluded, therefore, to visit and consult the Rev. Joseph Bellamy, a venerable and devoted friend of his late father, and to whom he was known by reputation.

Joseph Bellamy, D.D., was an eminent preacher and theological writer of Connecticut, and intimate friend of Colonel Burr's relative, the famous Jonathan Edwards, with whose particular opinion he fully agreed. He was celebrated in his days, before the establishment of theological seminaries, as an instructor of young men preparing for the ministry. The late Governor Wolcott used to speak of him with the highest respect for his talent and moderation. He died in 1790.

In the autumn of 1773, Burr visited him at Bethlehem, in Connecticut, and was received by his aged friend in a most kind and affectionate manner. His advice, and the use of his library, were promptly tendered. Burr commenced a course of reading on religious topics, and was thus occupied from sixteen to eighteen hours a day. His habits were those of great abstinence, and a recluse. His conversations with the reverend divine were

encouraged and indulged in with freedom, and his inquiries answered. Here he remained until the spring of 1774, when, to use his own language, he "came to the conclusion that the road to Heaven was open to all alike." He, however, from that time forward, avoided most studiously all disputation on the subject of religion.

An impression has been created that C<sup>ô</sup>lonel Burr was placed by his guardian under Dr. Bellamy, for the purpose of studying divinity. This is an error. His visit to the Rev. Dr. was not the result of a conference or communication with any person whatever; but the volition of his own mind, and for the purpose already stated. In fact, after Burr entered college, his studies and his future pursuits in life appear to have been left entirely under his own control. Whether this arose from indolence on the part of his guardian, or from pertinacity in young Burr, is uncertain; perhaps a little of both, united with the great confidence which his uncle reposed in his judgment and talents.

In the spring of 1774, while he yet resided at Dr. Bellamy's, he contemplated studying law; but was undecided whether he should read with Pierpont Edwards, or with his brother-in-law, Tappan Reeve, and upon this subject he wrote his guardian, who replies, in a letter dated

"Stockbridge, February 11th, 1774.

"Whether you study law with Mr. Reeve or your uncle Pierpont is a matter of indifference with me. I would have you act your pleasure therein. I shall write to your uncle upon it, but yet treat it as a matter of doubt. Your board I shall settle with Dr. Bellamy myself. I will send you cash to pay for your horse very soon. You may expect it in the forepart of March. If I had known of this want of yours sooner, I would have paid it before this.

"Your affectionate uncle,

**"TIMOTHY EDWARDS"**

## CHAPTER IV.

In May, 1774, he left the Rev. Mr. Bellamy's, and went to the house of his brother-in-law, Tappan Reeve, where his time was occupied in reading, principally history; but especially those portions of it which related to wars, and battles, and sieges, which tended to inflame his natural military ardour. The absorbing topics of taxation and the rights of the people were agitating the then British colonies from one extreme to the other. These subjects, therefore, could not pass unnoticed by a youth of the inquiring mind and ardent feelings of Burr. Constitutional law, and the relative rights of the crown and the colonists, were examined with all the acumen which he possessed, and he became a Whig from reflection and conviction, as well as from feeling.

At this period, Burr's most intimate and confidential correspondent was Matthias Ogden, of New-Jersey, subsequently Colonel Ogden, a gallant and distinguished revolutionary officer. He writes to Burr, dated

"Elizabethtown, August 9th, 1774.

"DEAR AARON,

"I received yours by Mr. Beach, dated Sunday. I am not a little pleased that you have the doctor (Bellamy) so completely under your thumb. Last Saturday I went a crabbing. Being in want of a thole-pin, I substituted a

large jackknife in its stead, with the blade open and sticking up. It answered the purpose of rowing very well; but it seems that was not the only purpose it had to answer; for, after we had been some time on the flats, running on the mud, as the devil would have it, in getting into the boat I threw my leg directly across the edge of the knife, which left a decent mark of nearly four inches long, and more than one inch deep. It was then up anchor and away. Our first port was Dayton's ferry, where Dr. Bennet happened to be, but without his apparatus for sewing, to the no small disadvantage of me, who was to undergo the operation. Mrs. Dayton, however, furnished him with a large darning-needle, which, as soon as I felt going through my skin, I thought was more like a gimlet boring into me; but, with the help of a glass of wine, I grinned and bore it, until he took a few stitches in the wound. So much for crabbing.

"I was at New-York about a fortnight since, on my way to Jamaica, Long Island. The object of this journey you understand. I stayed at Mr. Willett's three days, and then went to Colonel Morris's, and spent two days there very agreeably. Nothing occurred worth relating, unless it be some transactions of the greatest fool I ever knew.

"Mr. Elliot, collector of New-York, Mr. and Mrs. Delancey and daughter, dined there on Sunday. Witherspoon [1] was led in with a large bag tied to his hair, that reached down to the waistband of his breeches, and a brass locket hanging from his neck below his stomach. He was turned round and round by each of the company: was asked where he got that very neat bag, and the valuable locket? He readily answered, they were a present from Lady Kitty, who was violently in love with him, and he expected to marry her in a short time. He is so credulous that any child might impose on him. I told him that I came from Lord Stirling's, and that he might write by me to Lady Kitty. Accordingly, he wrote a long letter and gave me, which I opened there, and, by desire of Colonel Morris, answered it, when I got to

New-York, in Lady Kitty's name, informing him that he must tell Mr. Morris to provide himself with another tutor, as she intended marrying him without fail the first of September, which I suppose he will as sincerely believe as he does his existence.

"Yours affectionately,

"MATT. OGDEN."

TO MATTHIAS OGDEN.

Litchfield, August 17th, 1774.

DEAR MATT.,

Before I proceed any further, let me tell you that, a few days ago, a mob of several hundred persons gathered at Barrington, and tore down the house of a man who was suspected of being unfriendly to the liberties of the people; broke up the court, then sitting at that place, &c. As many of the rioters belonged to this colony, and the Superior Court was then sitting at this place, the sheriff was immediately despatched to apprehend the ringleaders. He returned yesterday with eight prisoners, who were taken *without resistance*. But this minute there is entering the town on horseback, with great regularity, about fifty men, armed each with a white club; and I observe others continually dropping in. I shall here leave a blank, to give you (perhaps in heroics) a few sketches of my unexampled valour, should they proceed to hostilities; and, should they not, I can then tell you what I would have done.

The abovementioned *sneaks all gave bonds for their appearance*, to stand a trial at the next court for committing a riot.



Yours affectionately,

A. BURR.

On the 11th of September, 1774, he again writes Ogden:—

I wrote you last Thursday, and enclosed one of the songs you desired, which was all I could then obtain. Miss ——, the fountain of melody, furnished me with it. I knew that she, and no one else, had the notes of the enclosed song. I told her I should be glad to copy them for a most accomplished young gentleman in the Jerseys. She engaged to bring them the first time she came in town, for she lives about two miles from here. I this day received it, precisely as you have it. You may depend upon its being the work of her own hands. If this don't deserve an acrostic, I don't know—sense, beauty, modesty, and music. Matter plenty.

Pray tell me whether your prayers are heard, and a good old saint, though a little in your way, is yet in Heaven. But remember, Matt., you can never be without plague, and when one gets out of the way, a worse, very often, supplies its place; so, I tell you again, be content, and hope for better times.

I am determined never to have any dealings with your friend Cupid until I know certainly how matters will turn out with you: for should some lucky devil step in between my friend and——, which kind Heaven grant may never be; in such a case, I say, I would choose to be untied, and then, you know, the wide world is before us.

Yours sincerely,

A. BURR.

Burr again writes him, dated

Litchfield, February 2d, 1775.

I sent you a packet by N. Hazard, and from that time to this I have not had the most distant prospect of conveying a letter to you. However, I have written a number of scrawls, the substance of which you shall now have.

The times with me are pretty much as usual; not so full of action as I could wish; and I find this propensity to action is very apt to lead me into scrapes. T. B. has been here since I wrote you last; he came very unexpectedly. You will conclude we had some confab about Miss ——-. We had but little private chat, and the whole of that little was about her. He would now and then insinuate slyly what a clever circumstance it would be to have such a wife, with her fortune.

T. BURR, [2] by his kindness to me, has certainly laid me under obligations, which it would be the height of ingratitude in me ever to forget; but I cannot conceive it my duty to be in the least influenced by these in the present case. Were I to conform to his inclination, it could give him pleasure or pain only as the consequence was good or bad to me. The sequel might be such as would inevitably cause him the most bitter anguish; and, in all probability, would be such if I should consult his fancy instead of my judgment. And who can be a judge of these consequences but myself? But even supposing things could be so situated that, by gratifying him, I should certainly be the means of his enjoying some permanent satisfaction, and should subject myself to a bare probability of misery as permanent, would it not stagger the most generous soul to think of sacrificing a whole life's comfort to the caprice of a friend? But this is a case that can never happen, unless that friend has some mean and selfish motive, such as I know T. Burr has not. I can never believe that too great deference to the judgment of another, in these matters, can arise from any greatness of soul. It appears to

me the genuine offspring of meanness. I suppose you are impatient for my reply to these importunities. I found my tongue and fancy too cramped to say much. However, I rallied my thoughts and set forth, as well as I was able, the inconveniences and uncertainty attending such an affair. I am determined to be very blunt the next time the matter is urged.

I have now and then an affair of petty gallantry, which might entertain you if you were acquainted with the different characters I have to deal with; but, without that, they would be very insipid.

I have lately engaged in a correspondence of a peculiar nature. I write once, and sometimes twice a week, to a lady who knows not that she ever received a line from me. The letters, on both sides, are mostly sentimental. Those of the lady are doubtless written with more sincerity, and less reserve, than if she knew I had any concern with them. Mr. —— received a letter from Miss ——-. He is very little versed in letter-writing, and engaged, or rather permitted, me to answer it, not thinking thereby to embark in a regular correspondence, but supposing the matter would thus end. I have had many scruples of conscience about this affair, though I really entered into it not with any sinister view, but purely to oblige——. I should be glad to know your opinion of it. You will readily observe the advantage I have over ——-. He is of an unsuspicious make, and this gives me an opportunity (if I had any inclination) to insert things which might draw from her secrets she would choose I should be ignorant of. But I would suffer crucifixion rather than be guilty of such an unparalleled meanness. On the contrary, I have carefully avoided saying any thing which might have the least tendency to make her write what she would be unwilling I should see.

Adieu.

**A. BURR.**

On the 12th of March, 1775, Burr writes Ogden:—

I have received your and Aaron's [3] letters. I was a little disappointed that you did not send an acrostic; but I still entertain some secret hope that the muse (who, you say, has taken her flight) will shortly return, and, by a new and stricter intimacy, more than repay the pains of this momentary absence. Your happiness, Matt., is really almost the only present thing I can contemplate with any satisfaction; though I, like other fools, view futurity with partiality enough to make it very desirable; but I must first throw reason aside, and leave fancy uncontrolled. In some of these happy freaks I have endeavoured to take as agreeable a sleigh-ride as you had to Goshen; but I find it impracticable, unless you will make one of the party; for my imagination, when most romantic, is not lively or delusive enough to paint an object that can, in my eyes, atone for your absence. From this you will conclude that the news you heard of me at Princeton is groundless. It is so far from being true, that scarce two persons can fix on the same lady to tease me with. However, I would not have you think that this diversity of opinion arises from the volatility of my constitution, or that I am in love with every new or pretty face I see. But, I hope, you know me too well to need a caution of this nature. I am very glad to hear of ——'s downfall. But, with all that fellow's low-lived actions, I don't more sincerely despise him than I do certain other narrow-hearted scoundrels you have among you. Mean as he is, he appears to me to have (or rather to have had) more of something at bottom that bordered on honour, than some who will pass through life respected by many. I say this, not so much to raise him above the common standard of d—ls, as to sink them below it. My idea of a d—l is composed more of malice than of meanness.

Since I commenced this letter I have passed through a scene entirely new. Now, as novelty is the chief and almost only ingredient of happiness here below, you'll fancy I have had some lucky turn. I think it quite the reverse, I

assure you. I have serious thoughts of leaving the matter here, that you may be on the rack of curiosity for a month or so. Would not this be truly satanic? What would be your conjectures in such a case? The first, I *guess*, that I was sadly in love, and had met with some mortifying rebuff.

What would you say if I should tell you that —— had absolutely professed love for me? Now I can see you with both hands up—eyes and mouth wide open; but don't be over scrupulous. Trust me, I tell you the whole truth. I cannot at present give you any further particulars about the matter, than that I felt foolish enough, and gave as cautious a turn to it as I could, for which I am destined to suffer her future hostility.

Last week I received a letter from T. Edwards, which I fear may prove fatal to the dear project of the 15th of April. He intends to be hereabout the middle of that month. Supposing he should come here the 13th of April, what could I do? Run off and leave him? Observe the uncertainty of all sublunary things. I, who a few months ago was as uncontrolled in my motions as the lawless meteors, am now (sad reverse!) at the beck of a person forty miles off. But all this lamentation, if well considered, is entirely groundless, for (*between you and me*) I intend to see you at Elizabethtown this spring. But even supposing I should fail in this—where is this sad reverse of fortune?—this lamentable change? Is it not a very easy matter to fix on another time, and write you word by T. Edwards?

I have struck up a correspondence with J. Bellamy (son to the famous divine of that name). He has very lately settled in the practice of the law at Norwich, a place about seventy miles S. E. of this. He is one of the cleverest fellows I have to deal with. Sensible, a person of real humour, and is an excellent judge of mankind, though he has not had opportunity of seeing much of the world. Adieu.

**A. BURR.**

## FROM JONATHAN BELLAMY

Norwich, March 14th, 1775.

To do justice to circumstances, which you know are of the greatest importance in order to form a true estimate of what a person either says or does, it is indispensably necessary for me to tell you that it not only rains very generously, but that it is as dark as it was before light was created. It would be ridiculous to suppose that you need information that nothing but the irresistible desire of writing could possibly keep me at home this evening.

I had received your February favour only just time to laugh at it once, when the melancholy news that Betsy Devotion, of Windham, was very dangerously sick, banished every joyous thought from my heart. This Betsy you may remember to have heard mentioned near the name of Natty Huntington, who died last December; and a very angel she was too, I assure you. You see I speak of her in the *past* sense, for she has left us; and her friends are sure she is not less an angel *now* than she was ten days ago. Very certain I am, that if a natural sweetness of disposition can scale Heaven's walls, she went over like a bird. But I believe we must leave *her* and all the rest of our departed friends to be sentenced by a higher Board.

"Transports last not in the human heart;  
But all with transports soon agree to part."

If nature, in spite of us, did not take care of herself, we could not but be perfectly wretched. Philosophy is the emptiest word in the dictionary. And you may observe, wherever you find them, that those persons who profess to place all their reliance upon it, under every affecting circumstance of life, do but make use of the term as a mask for an iron heart. "But" (as the devil said on another occasion) "put forth thine hand, and touch his bone, and his

flesh, and he will curse thee to thy face." They have as little fortitude as anybody when sufferings pinch home upon them.

Thus have I relieved a heart that perhaps felt a little too full; and if it is at the expense of my *head*, I have nevertheless the consolation that it will be received only as the overflowings of my present feelings.

"When and where shall I see you again?" somebody once asked me. The Lord only knows. Perhaps at the election at Hartford. If we can meet *there*—there will be time for notice. But, happen as it may, be assured that I am your most sincere friend,

JONATHAN BELLAMY.

"Stick my compliments in for him," says Hannah Phelps, a jolly girl of fourteen.

FROM MATTHIAS OGDEN.

Elizabethtown, March 18th, 1775.

Since we last saw each other, the 15th of April has been my mark, but the receipt of yours of the 12th has blotted it from my memory, for which nothing could atone but the expectation of seeing you here nearly as soon.

I read with pleasure your love intrigues; your anonymous correspondence with Miss ——, &c., and, with as much seriousness, the part relative to ——, Thaddeus Burr's overtures, &c.

*Steadily*, Aaron. Money is alluring, and there is a pleasure in gratifying a friend; but let not a fortune buy your peace, nor sell your happiness. Neither

be too much biased by a friend, or any one's advice, in a matter of so great consequence to yourself. Perhaps she is worthy your love, and, if I could think she was, I would not say a single thing to discourage you. Be cautious, Aaron; weigh the matter well. Should your generous heart be sold for naught, it would greatly hurt the peace of mine. Let not her sense, her education, her modesty, her graceful actions, or her wit, betray you. Has she a soul framed for love? For friendship? But why need I advise a person of better judgment than myself? It is not advice, my friend; it is only caution. You have a difficult part to act. If you reject, she curses: if you pity, she takes it for encouragement. Matters with me go on smoothly.

I am now making up a party to go to the Falls, to be ready against you come. My best regards to Mr. and Mrs. Reeve. I remain happy in the enjoyment of ——'s love, and am,

Your unfeigned friend,

**MATT. OGDEN.**

After the decease of President Burr, Lyman Hall was intrusted by the executors with the collection of sundry debts due to the estate. A removal, and his various avocations, prevented his performing that duty with the necessary promptitude. In consequence, the heirs were exposed to loss. A friend of the family, the Rev. James Caldwell, of New-Jersey, wrote him on the subject, and his answer is so honourable, that it is deemed only an act of justice to an upright man to record it here. It is another instance of the integrity in private life of those patriots that planned and accomplished the American Revolution. It will be seen that Mr. Hall was a member of the Congress of 1775 from the State of Georgia.



Philadelphia, 17th May, 1775.

REV. SIR,

Since I saw you, and afterwards Mr. Ogden, in Georgia, I have written to my attorneys and correspondents in Connecticut, to give me all the information they could obtain respecting the affairs and concerns of the late President Burr, left in my hands; which I had delivered over, before I left that colony in 1759, into the hands of Thaddeus Burr, of Fairfield; but no satisfactory answer can as yet be obtained. One debt, indeed, has been discovered, of about forty pounds New-York currency; but the bond on which it is due is as yet concealed.

On the whole, I find that it is not in my power to redeliver those securities for moneys which I was once in possession of; nor have I received the moneys due on those which were good; but am determined that I will make just satisfaction to the claimant heirs (orphans) of the late President Burr. It is, I know, my indispensable duty, and I have for that purpose brought a quantity of rice to this city, the avails of which, when sold, shall be appropriated to that use. I should be glad that you, or Mr. Ogden, the executor, could be here to transact the business, and, on a settlement, give me a power of attorney, properly authenticated, to recover any part of those moneys I can find due when I shall arrive in Connecticut, to which I propose going as soon as the Congress rises. As I am in Congress, I cannot see you directly; but, if liberty can be obtained, shall wait on you or Mr. Ogden, or both, in my way to New-York, in a few days; but I think Mr. Ogden, the executor, if it will suit, had better come here and settle it. I mention him because I suppose he is the proper person to discharge me, and give me a power of attorney.

I am, reverend sir,

With esteem, yours,

LYMAN HALL.

The Rev. JAS. CALDWELL, *Elizabethtown*

Footnotes:

1. A relative of President Witherspoon.
2. Uncle to Colonel Aaron Burr.
3. Subsequently Governor Ogden, of New Jersey, and brother of Matthias

## CHAPTER V.

In his retirement at the house of his brother-in-law (Judge Reeve), Burr was aroused by the shedding of his countrymen's blood at Lexington on the 19th of April, 1775. Immediately after that battle, he wrote a letter to his friend Ogden, requesting him to come on to Litchfield and arrange for joining the standard of their country. Ogden wrote for answer that he could not make the necessary arrangements. The battle of Bunker's Hill (on the 16th of June, 1775) followed in rapid succession; whereupon he started for Elizabethtown, New-Jersey, to meet Ogden, and aid him in preparations for the journey to Cambridge, where the American army was encamped.

Burr had been reading those portions of history which detailed the achievements of the greatest military men and tacticians of the age in which they lived. His idea of discipline and subordination was formed accordingly. With the most enthusiastic feelings, and under the influence of such opinions, Burr, in company with his friend Matthias Ogden, left Elizabethtown, in July, 1775, for Cambridge, with the intention of tendering their services in defence of American liberty. He had now entered his twentieth year, but, in appearance, was a mere stripling.

It has been seen that, whatever were Burr's pursuits or studies, his habits were those of intense application. He had already imbibed a military ardour

equalled by few—surpassed by none. Panting for glory on the battle-field, information and improvement as a soldier were now the objects that absorbed all his thoughts. On his joining the army, however, he was sadly disappointed in his expectations. The whole was a scene of idleness, confusion, and dissipation. From the want of camp-police, the health of the men was impaired, and many sickened and died. Of the officers, some were ignorant of their duty, while others were fearful of enforcing a rigid discipline, lest it should give offence to those who were unaccustomed to restraint. Deep mortification and disappointment preyed upon the mind of young Burr.

The following original letters are found among the papers of Colonel Burr, and, as casting some light upon the history of those times, are deemed of sufficient interest (and not inapplicable) to be inserted in this work. The patriotic reply of General Montgomery is above all praise.

## ROGER SHERMAN TO GENERAL DAVID WOOSTER.

Philadelphia, June 23d, 1775.

**DEAR SIR,**

The Congress, having determined it necessary to keep up an army for the defence of America at the charge of the United Colonies, have appointed the following general officers:—George Washington, Esq., commander-in-chief. Major-generals Ward, Lee, Schuyler, and Putnam. Brigadier-generals Pomeroy, Montgomery, yourself, Heath, Spencer, Thomas, Sullivan (of New-Hampshire), and one Green, of Rhode-Island.

I am sensible that, according to your former rank, you were entitled to the place of a major-general; and as one was to be appointed in Connecticut, I heartily recommended you to the Congress. I informed them of the arrangement made by our assembly, which I thought would be satisfactory to have them continue in the same order. But, as General Putnam's fame was spread abroad, and especially his successful enterprise at Noddle's Island, the account of which had just arrived, it gave him a preference in the opinion of the delegates in general, so that his appointment was unanimous among the colonies; but, from your known abilities and firm attachment to the American cause, we were very desirous of your continuance in the army, and hope you will accept of the appointment made by the Congress.

I think the pay of a brigadier is about one hundred and twenty-five dollars per month. I suppose a commission is sent to you by General Washington. We received intelligence yesterday of an engagement at Charlestown, but have not had the particulars. All the Connecticut troops are now taken into the continental army. I hope proper care will be taken to secure the colony against any sudden invasion, which must be at their own expense.

I have nothing further that I am at liberty to acquaint you with of the doings of the Congress but what have been made public. I would not have any thing published in the papers that I write, lest something may inadvertently escape me which ought not to be published. I should be glad if you would write to me every convenient opportunity, and inform me of such occurrences, and other matters, as you may think proper and useful for me to be acquainted with. The general officers were elected in the Congress, not by nomination, but by ballot.

I am, with great esteem,

Your humble servant,

ROGER SHERMAN.

DAVID WOOSTER, Esq.

JAMES DUANE, OF NEW-YORK, TO GENERAL  
MONTGOMERY.

Philadelphia, July 21st, 1775.

DEAR SIR,

I am directed by the Congress to acquaint you of an arrangement in the Massachusetts department, and the reason which led to it, lest, by misunderstanding it, you might think yourself neglected.

When brigadiers-general were to be appointed, it was agreed that the first in nomination should be one of the Massachusetts generals. The gentlemen from that province recommended General Pomeroy, who was accordingly fixed upon; but, before his commission arrived at the camp, he had retired from the army. Under these circumstances the Congress thought it just to fill up the commission designed for Mr. Pomeroy with the name of General Thomas as first brigadier. You, consequently, hold the rank to which you were elected.

I sincerely hope this may not give you any displeasure, as I am confident no disrespect was intended.

Be pleased to accept my sincere wishes for your honour and happiness, and particularly in the discharge of the important trust which you have undertaken.

I am, with regard,

Dear sir, your most obedient servant,

**JAS. DUANE.**

General MONTGOMERY.

## GENERAL MONTGOMERY'S ANSWER.

DEAR SIR,

I have been honoured with your letter of the 21st inst. My acknowledgments are due for the attention shown me by the Congress.

I submit, with great cheerfulness, to any regulation they, in their prudence, shall judge expedient. Laying aside the punctilio of the *soldier*, I shall endeavour to discharge my duty to society, considering myself only as the *citizen*, reduced to the melancholy necessity of taking up arms for the public safety.

I am, &c., R. M.

Answer.

The preceding is endorsed, in the handwriting of General Montgomery, on the back of Mr. Duane's letter.

The laxity of the discipline which pervaded the camp at Cambridge, the inexperience of the officers, and the contests and petty squabbles about rank, all tended to excite great jealousy and discontent in the army. As yet, Burr was attached to no particular corps. He mingled indiscriminately with conflicting factions, until, disgusted with the scene which he daily



witnessed, he was violently attacked with a nervous fever, by which he was confined to his bed.

One day he heard Ogden and some young men of the army conversing, in an apartment adjoining that in which he was lying, on the subject of an expedition. He called Ogden to his bedside, and inquired what was the nature of the expedition of which they were speaking. Ogden informed him that Colonel Arnold, with a detachment of ten or twelve hundred men, was about to proceed through the wilderness for the purpose of attacking Quebec. Burr instantly raised himself up in the bed, and declared that he would accompany them; and, so pertinacious was he on this point, that he immediately, although much enfeebled, commenced dressing himself. Ogden expostulated, and spoke of his debilitated state—referred to the hardships and privations that he must necessarily endure on such a march, &c. But all was unavailing. Young Burr was determined, and was immovable. He forthwith selected four or five hale, hearty fellows, to whom he proposed that they should form a mess, and unite their destiny on the expedition through the wilderness. To this arrangement they cheerfully acceded. His friend Ogden, and others of his acquaintance, were conveyed in carriages from Cambridge to Newburyport, distant about sixty miles; but Burr, with his new associates in arms, on the 14th of September, 1775, shouldered their muskets, took their knapsacks upon their backs, and marched to the place of embarkation.

FROM J. BELLAMY.

Litchfield, August 17th, 1775.

MY DEAREST SOLDIER,

I was infinitely surprised to hear from you in the army. I can hardly tell you what sensations I did not feel at the time. Shall not attempt to describe them, though they deprived me of a night's sleep. But that was not spent altogether unhappily. My busybody, *Fancy*, led me a most romantic chase; in which, you may be sure, I visited your tent; beheld you (unnoticed) musing on your present circumstances, apparently agitated by every emotion which would naturally fill the heart of one who has come to the resolution to risk his life for his country's freedom. You will excuse my mentioning, that from a deep, absent meditation, partly expressed by half-pronounced soliloquies, I beheld you start up, clap your hand upon your sword, and look so fiercely, that it almost frightened me. The scene, on your discovering me, immediately changed to something more tender; but I won't waste paper.

If you should happen to find Dr. James Cogswell, who is in Colonel Spencer's regiment, please to give my best love to him, and tell him he is a lazy scoundrel.

It rains, my boy, excessively. Does it not drop through your tent?  
Write often to

**JONA. BELLAMY.**

To A. BURR.

As soon as the guardian and relatives of young Burr heard of his determination to accompany Arnold in his expedition against Quebec, they not only remonstrated, but they induced others, who were friendly to him, to adopt a similar course. While he remained at Cambridge, he received numerous letters on the subject. The two following are selected:—

**FROM DR. JAMES COGSWELL.**

Camp in Roxbury, 9th September, 1775.

I am extremely sorry to hear that you are determined on the new expedition to Quebec. I am sorry on my own account, as I promised myself much satisfaction and pleasure in your company: but I am not altogether selfish; I am right-justified sorry on yours. The expedition in which you are engaged is a very arduous one; and those who are engaged in it must unavoidably undergo great hardships. Your constitution (if I am not much mistaken) is very delicate, and not formed for the fatigues of the camp. The expedition, I am sensible, is a glorious one, and nothing but a persuasion of my inability to endure the hardships of it would have deterred me from engaging in it. If this excuse was sufficient for me, I am persuaded it is for you, and ought to influence you to abandon all thoughts of undertaking it. I have no friend so dear to me (and I love my friends) but that I am willing to sacrifice for the good of the grand—the important cause, in which we are engaged; but, to think of a friend's sacrificing himself, without any valuable end being answered by it, is painful beyond expression. *You will die; I know you will die in the undertaking; it is impossible for you to endure the fatigue.* I am so exercised about your going, that I should come and see you if I had not got the Scriptural excuse,—a wife, and cannot come.

My dear friend, you must not go: I cannot bear the thoughts of it.  
'Tis little less melancholy than following you to your grave.

Your affectionate friend,

**JAMES COGSWELL.**

**FROM PETER COLT.**

Watertown, 11th September, 1775.

I cannot retire to rest till I have written you a few lines, to excuse my casting so many discouragements in the way of your journey to Quebec. At first I did not think it so hazardous; but, upon inquiring of those who had more knowledge of the country, thought it too fatiguing an undertaking for one of your years; and I find it altogether against the sentiments of your friends. I think you might be fairly excused, without the risk of being reported as timid, as the hopes of your family depend in a great degree upon you. I should have rejoiced to see you relinquish this expedition; but, as you are determined to pursue it, must beg you not to let any thing we have said to you depress your spirits, or damp your resolution, as it may otherwise have a fatal effect. We have held up the dark side of the picture, in order to deter you from going. You must now think only on the bright side, and make the least of every disagreeable circumstance attending your march. Let no difficulty discourage you. The enterprise is glorious, and, if it succeeds, will redound to the honour of those who have planned and executed it.

May God give you health and strength equal to the fatigue of the march, and preserve you safe from every danger you may encounter. Make Quebec a safe retreat to the forces. I hope to have a particular description of Canada from you when you return.

Don't turn Catholic for the sake of the girls. Again I beg you to forget what I have said to discourage you. It proceeded from love to you, and not a desire of rendering you ridiculous. Adieu, my dear friend.

Yours,

**PETER COLT.**

A day or two after Burr's arrival at Newburyport, he was called upon by a messenger from his guardian, Timothy Edwards, with instructions to bring the young fugitive back. A letter from his uncle (T. Edwards) was delivered to him at the same time. Having read the letter, and heard the messenger's communication, he coolly addressed him, and asked, "How do you expect to take me back, if I should refuse to go? If you were to make any forcible attempt upon me, I would have you hung up in ten minutes." After a short pause the messenger presented a second letter from his guardian, and with it a small remittance in gold. It was couched in the most affectionate and tender language, importuning him to return; and depicting, in the darkest colours, the sufferings he must endure if he survived the attempt to reach Quebec. It affected young Burr very sensibly, insomuch that he shed tears. But his destiny was fixed. He wrote, however, a respectful letter to his uncle, explanatory of his reasons for accompanying the army, and expressive of his gratitude for the kindness he had experienced.

On or about the 20th of September, 1775, the troops under the command of Arnold embarked at Newburyport. This detachment was to penetrate Canada about ninety or one hundred miles below Montreal, proceeding by the Kennebec river, and thence through the wilderness between the St. Lawrence and the settled parts of Maine. In this route, precipitous mountains, deep and almost impenetrable swamps and morasses, were to be passed. Arnold, in a letter to General Washington, dated *Fort Weston*, September 25th, 1775, says: "I design Chaudiere Pond as a general rendezvous, and from thence proceed in a body. I believe, from the best information I can procure, we shall be able to perform the journey in twenty days; the distance from this being about one hundred and eighty miles."

During the march through the wilderness, no regard whatever was paid to order or discipline. Every man was left to take care of himself, and make the best of his way through the woods. The sufferings of this detachment

from wet, and cold, and hunger, were excessive. From the latter, however, Burr suffered less than any of his companions. His abstemious habits in regard to eating seemed peculiarly calculated for such an expedition. Both Burr and Ogden had been accustomed, in small boats, to aquatic excursions round Staten Island and in its vicinity. They were skilful helmsmen, and in this particular, in passing the rapids, were frequently useful. Notwithstanding this qualification, however, Burr, with some soldiers in a boat, was carried over a fall of nearly twenty feet. One man was drowned, and much of the baggage lost. The weather was cold, and it was with great difficulty that he reached the shore.

"Arnold, who, at the head of the two first divisions, still prosecuted his march, was thirty-two days traversing a hideous wilderness, without seeing a house or any thing human. The troops were under the necessity of hauling their bateaux up rapid streams; of taking them upon their shoulders, with all their provisions, across carrying-places; and of traversing, and frequently repassing, for the purpose of bringing their baggage, deep morasses, thick woods, and high mountains. These impediments, notwithstanding the zealous and wonderfully persevering exertions of his men, so protracted his march, that, though he had expected certainly to enter Canada about the middle of October, he did not reach the first settlements on the Chaudiere, which empties itself into the St. Lawrence near Quebec, until the third of November.

"On the high grounds which separate the waters of the Kennebec from those of the St. Lawrence, the scanty remnant of provisions was divided among the companies, each of which was directed, without attempting to preserve any connexion with another, to march with the utmost possible celerity into the inhabited country. While those who gained the front were yet thirty miles from the first poor and scattered habitations which composed that frontier of Canada, their last morsel of food was consumed.

But, preceded by Arnold, who went forward for the purpose of procuring for them something which might satisfy the first demands of nature, the troops still persevered in their labours, with a vigour unimpaired by the hardships they had encountered, until they once more found themselves in regions frequented by human beings." [1]

On the arrival of Arnold's detachment at Chaudiere Pond, Burr was despatched with a verbal communication to General Montgomery. He disguised himself as a young Catholic priest. In this order of men he was willing to repose confidence. He knew that the French Catholics were not satisfied with their situation under the provincial government; but especially the priesthood. Feeling no apprehension for his own safety from treachery, he proceeded to a learned and reverend father of the church, to whom he communicated frankly who he was, and what was his object. Burr was master of the Latin language, and had an imperfect knowledge of the French. The priest was an educated man, so that a conversation was held with but little difficulty. He endeavoured to dissuade Burr from the enterprise. Spoke of it as impossible to accomplish. He represented the distance as great, and through an enemy's country. The boyish appearance of Burr induced the reverend divine to consider him a mere child. Discovering, however, the settled purpose of the young adventurer, the priest procured him a confidential guide and a cabriolet (for the ground was now covered with snow), and, thus prepared, he started on his journey. Without interruption, he was conducted in perfect safety from one religious family to another, until he arrived at Three Rivers. Here the guide became alarmed in consequence of some rumours as to the arrival of Arnold at the Chaudiere, and that he had despatched messengers to Montgomery to announce to him the fact. Under strong apprehensions, the guide refused to proceed any farther, and recommended to Burr to remain a few days until these rumours subsided. To this he was compelled to accede; and, for greater security, he was secreted three days in a convent at that place. At the

expiration of this period he again set off, and reached Montgomery without further detention or accident.

On his arrival at headquarters, he explained to the general the character of the re-enforcement he was about to receive; the probable number of effective men, and the time at which their arrival might be anticipated. General Montgomery was so well pleased with the details which had been given him, and the manner in which young Burr had effected his journey after leaving Arnold, that he invited him (Burr) to reside at headquarters, assuring him that he should receive an appointment as one of his aids. At this time Montgomery was a brigadier, and not entitled to aids, only in virtue of his being commander-in-chief of the army. Previous to his death, however, he was appointed a major-general, but the information did not reach him.

As soon as Burr had joined the family of the general, he entered upon the duties of an aid; but no formal annunciation was made until the army arrived before Quebec, when his appointment was announced in general orders. Arnold arrived at Point Levi, opposite to Quebec, on the 9th of November, 1775. He paraded for some days on the heights near the town, and sent two flags to demand a surrender, but both were fired upon as rebels with whom no communication was to be held. The true reason, however, was, that Colonel M'Clean, the British commandant, a vigilant and experienced officer, knowing the weakness of his own garrison, deemed it impolitic, if not unsafe, to receive a flag from Arnold.

The first plan for the attack upon the British works was essentially different from that which was subsequently carried into execution. Various reasons have been assigned for this change. Judge Marshall says, "that while the general (Montgomery) was making the necessary preparations for the assault, the garrison received intelligence of his intention from a



deserter. This circumstance induced him to change the plan of his attack, which had been originally to attempt both the upper and lower towns at the same time. The plan now resolved on was to divide the army into four parts; and while two of them, consisting of Canadians under Major Livingston, and a small party under Major Brown, were to distract the attention of the garrison by making two feints against the upper town of St. Johns and Cape Diamond, the other two, led, the one by Montgomery in person, and the other by Arnold, were to make real attacks on opposite sides of the lower town." [2]

Colonel Burr says, that a change of the plan of attack was produced, in a great measure, through the advice and influence of Mr. Antill, a resident in Canada, who had joined the army; and Mr. Price, a Montreal merchant of property and respectability, who had also come out and united his destiny with the cause of the colonies. Mr. Price, in particular, was strongly impressed with the opinion, that if the American troops could obtain possession of the lower town, the merchants and other wealthy inhabitants would have sufficient influence with the British commander-in-chief to induce him to surrender rather than jeopard the destruction of all their property. It was, as Colonel Burr thought, a most fatal delusion. But it is believed that the opinion was honestly entertained.

The first plan of the attack was agreed upon in a council, at which young Burr and his friend, Matthias Ogden, were present. The arrangement was to pass over the highest walls at Cape Diamond. Here there was a bastion. This was at a distance of about half a mile from any succour; but being considered, in some measure, impregnable, the least resistance might be anticipated in that quarter. Subsequent events tended to prove the soundness of this opinion. In pursuance of the second plan, Major Livingston, with a detachment under his command, made a feint upon Cape Diamond; but, for about half an hour, with all the noise and alarm that he and his men could

create, he was unable to attract the slightest notice from the enemy, so completely unprepared were they at this point.

While the first was the favourite plan of attack, Burr requested General Montgomery to give him the command of a small forlorn hope, which request was granted, and forty men allotted to him. Ladders were prepared, and these men kept in constant drill, until they could ascend them (standing almost perpendicular), with their muskets and accoutrements, with nearly the same facility that they could mount an ordinary staircase. In the success of this plan of attack Burr had entire confidence; but, when it was changed, he entertained strong apprehensions of the result. He was in the habit, every night, of visiting and reconnoitring the ground about Cape Diamond, until he became perfectly familiarized with every inch adjacent to, or in the vicinity of, the intended point of assault.

When the attack was about to be commenced, Captain Burr, and other officers near General Montgomery, endeavoured to dissuade him from leading in the advance; remarking that, as commander-in-chief, it was not his place. But all argument was ineffectual and unavailing. The attack was made on the morning of the 31st of December, 1775, before daylight, in the midst of a violent snow-storm. The New-York troops were commanded by General Montgomery, who advanced along the St. Lawrence, by the way of Auncie de Mere, under Cape Diamond. The first barrier to be surmounted was at the Pot Ash. In front of it was a block-house and picket, in charge of some Canadians, who, after making a single fire, fled in confusion. On advancing to force the barrier, an accidental discharge of a piece of artillery from the British battery, when the American front was within forty paces of it, killed General Montgomery, Captain McPherson, one of his aids, Captain Cheeseman, and every other person in front, except Captain Burr and a French guide. General Montgomery was within a few feet of Captain Burr; and Colonel Trumbull, in a superb painting recently executed by him,

descriptive of the assault upon Quebec, has drawn the general falling in the arms of his surviving aid-de-camp. Lieutenant Colonel Campbell, being the senior officer on the ground, assumed the command, and ordered a retreat.

Footnotes:

1. Marshall's Life of Washington
2. Marshall's Life of Washington, vol. i., p. 329.

## CHAPTER VI.

To evince the high sense entertained by his country for the services of General Montgomery, Congress directed a monument to be erected, with an inscription sacred to his memory. They "*Resolved*, That, to express the veneration of the United Colonies for their late general, Richard Montgomery, and the deep sense they entertained of the many signal and important services of that gallant officer, who, after a series of successes, amid the most discouraging difficulties, fell, at length, in a gallant attack upon Quebec, the capital of Canada, and to transmit to future ages, as examples truly worthy of imitation, his patriotism, conduct, boldness of enterprise, insuperable perseverance, and contempt of danger and death, a monument be procured from Paris, or other part of France, with an inscription sacred to his memory, and expressive of his amiable character and heroic achievements; and that the continental treasurer be directed to advance a sum, not exceeding three hundred pounds sterling, to Dr. Benjamin Franklin, who is desired to see this resolution properly executed, for defraying the expenses thereof."

This resolve was carried into execution at Paris by that ingenious artist, M. Caffieres, sculptor to Louis XVI., king of France, under the direction of Dr. Benjamin Franklin. The monument is of white marble, of the most beautiful simplicity and inexpressible elegance, with emblematical devices,

and the following truly classical inscription, worthy of the modest but great mind of Franklin.

**TO THE GLORY OF**

**RICHARD MONTGOMERY,**

**MAJOR-GENERAL OF THE ARMIES OF THE**

**UNITED STATES OF AMERICA,**

**SLAIN AT THE SIEGE OF QUEBEC,**

**THE THIRTY-FIRST OF DECEMBER, 1775,**

**AGED 38 YEARS.**

This monument was erected in front of St. Paul's Church, in the city of New-York, in the spring of 1789.

General Arnold temporarily became commander-in-chief of the American army near Quebec, and was accordingly removed to headquarters. Young Burr was now called upon to perform the duties of brigade major. Arnold's plan was, by a close blockade, to starve out the enemy; but, from the weakness of his force, he soon discovered that this was impracticable; and he knew that, on the opening of the spring, he could not retain his present position, but must retreat. He therefore resolved to send in a flag of truce, and demand a surrender. He informed Captain Burr that he was about to send him with a communication to General Carlton, the British commander. Captain Burr required that he should be made acquainted with its contents. Arnold objected; whereupon Burr remarked that, if the general wished it, he would resign; but that he could not consent to be the bearer of the communication without possessing a knowledge of its character. At length, it was exhibited to him. It was demanding a surrender of the fortress, but in

terms that Captain Burr considered unbecoming an American officer, and he so stated to the general; adding, that the bearer of such a message, if he were permitted to deliver it, would be treated by the British with contumely and contempt; and therefore declined the mission. Another officer was selected, and met the fate Burr anticipated. Shortly after (April 1st, 1776), General Wooster arrived from Montreal and took the command. He was succeeded by General Thomas about the 1st of May; and, on the 5th of May, it was determined in council to raise the blockade of Quebec, and that the sick and wounded should be immediately removed, with the artillery and stores, by boats, to Three Rivers, preparatory to a retreat.

Burr's perseverance and zeal during the march through the wilderness with Arnold, his subsequent boldness in joining Montgomery, and his intrepidity at the assault on Quebec, had acquired for him great reputation in the army, and had drawn towards him the attention of some of the most distinguished Whigs in the United Provinces. From every quarter he received highly complimentary letters. From a few of them extracts are made. Colonel Antill, a resident of Montreal, who had joined the American army, thus addresses him, five days after the fall of Montgomery:—

"La La Chine, 5th January, 1776.

"**DEAR BURR,**

"I have desired Mr. Price to deliver you my pistols, which you will keep until I see you. They are relics from my father's family, and therefore I cannot give them to you. The general (Wooster) has thought proper to send me to the Congress, where I shall have an opportunity of speaking of you as you deserve.

"Yours,

**"EDWARD ANTILL."**

On the 4th of January, General Wooster writes from Montreal to General Arnold:—

"Give my love to Burr, and desire him to remain with Colonel Clinton for the present. [1] Not only him, but all those brave officers who have so nobly distinguished themselves. I shall ever remember with gratitude and the highest degree of approbation, and shall not fail to represent them accordingly.

**"DAVID WOOSTER."**

From a college-chum of great merit, he received a letter, dated

"Philadelphia, January 24th, 1776.

**"DEAR BURR,**

"I am informed a gentleman is just setting off for Quebec, and snatch the opportunity of at once condoling with you for the loss of your brave general, and congratulating you on the credit you have gained in that action. 'Tis said you behaved well—you behaved gallantly. I never doubted but you would distinguish yourself, and your praise is now in every man's mouth. It has been my theme of late. I will not say I was perfectly disinterested in the encomiums I bestowed. You were a son of Nassau Hall, and reflected honour on the place of *my* education. You were my classmate and friend, and reflected honour on me. I make no doubt but your promotion will be taken care of. The gentlemen of the Congress speak highly of you.

"Your affectionate,

"WILLIAM BRADFORD, Jun."

Judge Tappan Reeve writes—

"Stockbridge, January 27th, 1776.

"DEAR BURR,

"Amid the lamentations of a country for the loss of a brave, enterprising general, your escape from such imminent danger, to which you have been exposed, has afforded us the greatest satisfaction. The news of the unfortunate attack upon Quebec arrived among us on the 13th of this month. I concealed it from your sister until the 18th, when she found it out; but, in less than half an hour, I received letters from Albany, acquainting me that you were in safety, and had gained great honour by your intrepid conduct. It gave us a kind of happiness that I should be very loath ever again to enjoy; for it never can be the case until you have again been exposed to the like danger, and have again escaped it, which I hope may never happen. To know that you were in safety gave great pleasure. It was heightened by hearing that your conduct was brave. Could you have been crowned with success, it would have been complete.

"It was happy for us that we did not know that you were an aid-de-camp, until we heard of your welfare; for we heard that Montgomery and his aid-de-camps were killed, without knowing who his aid-de-camps were.

"Your sister enjoys a middling state of health. She has many anxious hours upon your account; but she tells me that, as she believes you may serve your country in the business in which you are now employed, she is



contented that you should remain in the army. It must be an exalted public spirit that could produce such an effect upon a sister as affectionate as yours.

"Adieu.

**"T. REEVE."**

His friend, Jonathan Bellamy, writes, "Norwich, March 3d, 1776.

**"MY VERY DEAR FRIEND,**

"Be you yet alive? I have been infinitely distressed for you; but I hope it is now as safe with you as glorious. Doctor Jim Cogswell has left the army. A few days ago I received a letter from him. 'I doubt not,' he says, 'you have most sensible pleasure in the applauses bestowed on our friend Burr; when I hear of his gallant behaviour, I feel exquisite delight.'

"Curse on this vile distance between us. I am restless to tell you every thing; but uncertainty whether you would ever hear it bids me be silent, till, in some future happy meeting, I may hold you to my bosom, and impart to you every emotion of my heart.

"Yours sincerely,

**"JONA. BELLAMY."**

Immediately after the repulse of the Americans at Quebec, his friend Ogden returned to New-Jersey, but spent much of his time with the army in the city of New-York. He writes to Burr, dated

New-York, 20th March, 1776.

Some weeks have elapsed since I saw Walker and Price. To-day I met with Hopkins at this place. My first inquiry was for letters from you. I mean not to upbraid you. This is the third time of my writing since I left you. I shall continue it, with the hope of giving you some small satisfaction. Miss Dayton is well, and will soon be mine. Barber is appointed major in the third Jersey battalion, of which Dayton is colonel, and Walton White lieutenant-colonel. Hancock was particular in his inquiry after you, and was disappointed in not receiving a line from you. I was kindly received on my arrival at Philadelphia. The Congress have since appointed me lieutenant-colonel in the first Jersey battalion, in the room of Lieutenant-colonel Winds, who has the regiment in the stead of Lord Stirling, who is advanced to a brigadier-general.

Colonel Allen, who hands you this, is much of a gentleman, and worthy your attention. Melcher has hobbled himself. Inquire of Colonel Allen. General Thompson commands. To-morrow my appointment will be announced in general orders, whereupon I shall join my regiment, but shall obtain leave of absence for a week or two. Elizabethtown swarms with girls, among which is Miss Noel. I have not seen Miss Ricketts.

When I was in Philadelphia, Colonel Reed expressed a desire of serving me. He said there was a vacancy in General Washington's family, and doubted not his recommendation would procure it for me. I declined it, hoping to get a more active office, but desired he would procure it for you. If any thing offers at Quebec, accept it, as it will not hinder your appointment here. Washington is expected in New-York, when I shall have a better chance of bringing it about. The pay and rank are equal to a full major. I shall write you by Price. Miss Dayton is particular in her inquiries after you.

Yours sincerely,

MATT. OGDEN.

In the spring of 1776, the army moved from Montreal to the mouth of the Sorel. Major Burr yet remained with it. While at Montreal, he became disgusted with General Arnold, on account of his meanness and other bad qualities. On the march through the wilderness, he was far from being satisfied with the general. Burr thought he provided too carefully for himself; and that he did not sufficiently share the fatigues and privations of the march in common with the troops. Immediately after arriving at the Sorel, he informed the general of his desire to visit his friends, and to ascertain what was doing, as he wished more active employment. General Arnold objected somewhat petulantly. Burr remarked courteously, but firmly, "Sir, I have a boat in readiness. I have employed four discharged soldiers to row me, and I start to-morrow morning at six o'clock." He then designated the point at which he should embark. Arnold forbade his departure, whereupon Burr reiterated his determination.

The next morning, at the specified hour, he repaired to his boat, and shortly after discovered the general approaching. "Why, Major Burr," says he, "you are not going?"—"I am, sir," replied the major. "But you know, sir, it is contrary to my wish and against my orders."—"I know, sir, that you have the *power* of stopping me, but nothing short of force shall do it." The general then changed his tone and manner, and endeavoured to dissuade; but, after a few minutes' conversation, Burr wished him great success, then embarked, and took his departure without interruption.

On the Sorel an incident occurred which gave some alarm to the voyagers. Burr had taken into his boat, as a kind of companion, a young merchant. On the borders of the river they suddenly discovered a large brick

house, with wings, having loopholes to fire through, and in view, at the door, stood an Indian warrior, in full costume. The oarsmen were for attempting to retreat. Burr said it was too late, as they were within the reach of the Indians' rifles. The passenger was about to stop the men from rowing, when Burr threatened to shoot him if he interfered. The inquiry was then made—"What are we to do?" The major replied, "Row for the shore and land; I will go up to the house, and we shall soon learn what they are." By this time several other Indians had made their appearance. On reaching the shore, Burr took his sword and proceeded to meet the red men. An explanation ensued, and it was ascertained that they were friendly. The stores were landed from the boat, and a merrymaking followed.

Major Burr continued his route to Albany. On his arrival, and while there, he was notified verbally that it would be agreeable to the commander-in-chief (General Washington) that he should visit New-York. He forthwith proceeded down the river, and arrived in the city about the 20th of May, 1776. He immediately reported himself to the commander-in-chief, who invited him to join his family at headquarters until he received a satisfactory appointment. The quarters of General Washington were at that time in the house subsequently owned by Colonel Burr, and known as Richmond Hill. This invitation was accepted, and Major Burr occasionally rode out with the general, but very soon became restless and dissatisfied. He wrote to John Hancock, then president of Congress, and who had been an intimate friend of his father, that he was disgusted, and inclined to retire from the service. Governor Hancock objected, and asked him whether he would accept the appointment of aid-de-camp to Major-general Putnam, then in command in the city of New-York. Burr consented, and removed from the headquarters of the commander-in-chief to those of Major-general Putnam. About this period Burr received a letter from his friend, now Lieutenant-colonel M. Ogden, who had proceeded to the north with his regiment. He writes,

Fort George, 5th June, 1776.

DEAR BURR,

I this evening experienced the greatest disappointment I have met with since my memory. I yesterday saw Mr. Price; he informed me that you were on your way, in company with the commissioners, who, I was this day informed, were coming by the way of Skeenesborough. I altered my course, and went that way, till I met them on the road. They informed me you were coming by Lake George. I then turned about, very much afraid you would pass me before I came into the lake road. But what necessity for enumerating all these circumstances? I have missed you. D—n the luck. I never so much desired, nor had occasion so much for an interview. I have not received a single line from you since I left Canada. Perhaps you have not written, or perhaps they have miscarried. If they have miscarried, withered be the hand that held them back. Tell me you omitted through carelessness, neglect, hurry of business, or any thing, rather than want of friendship.

*General Washington desired me to inform you that he will provide for you, and that he expects you will come to him immediately, and stay in his family.* I should have acquainted you of this by letter, had I not expected to have seen you. You will now want your horse. I have sold him, and spent the money, and expect I shall not be able to refund it until my return.

I am, if I ever was,

Yours sincerely,

MATTHIAS OGDEN.

Before the preceding letter was received by Major Burr, he felt piqued at what he supposed the coldness and neglect of his friend Ogden, and, under the influence of such feelings, wrote the following:—

New-York, New-York, 18th Jane, 1776,

DEAR OGDEN,

A correspondence, which I flattered myself in former times was mutually agreeable, has of late somehow strangely found an end. You may remember, when you left Canada, I engaged to answer your first letter immediately, and to continue writing from that time, by every opportunity, as usual. I concluded your letters must have miscarried, and wrote you a line by Mr. Avery. I had no direct intelligence from you, till a verbal message by Mr. Duggan, the beginning of May. A few days after, I received a letter from *Colonel Ogden* by *Colonel Allen*. I should have answered it, but had determined to visit my native colony, and expected, by personal interview, to answer purposes which I scarce hoped the cold medium of ink and paper could effect.

That I unfortunately missed you on my way hither, I need not relate. At Albany I first heard you had passed me. I was upon the point of following you; but the character of troublesome fool struck me in so disagreeable a light, that, in spite of myself, I continued my journey.

There is in man a certain love of novelty; a fondness of variety (useful, indeed, within proper limits), which influences more or less in almost every act of life. New views, new laws, new *friends*, have each their charm. Truly great must be the soul, and firm almost beyond the weakness of humanity, that can withstand the smiles of fortune. Success, promotion, the caresses of the great, and the flatteries of the low, are sometimes fatal to the noblest minds. The volatile become an easy prey. The fickle heart, tiptoe with joy,

as from an eminence, views with contempt its former joys, connexions, and pursuits. A new taste contracted, seeks companions suited to itself. But pleasures easiest tasted, though perhaps at first of higher glee, are soonest past, and, the more they are relied upon, leave the severer sting behind. One cloudy day despoils the glow-worm of all its glitter.

Should fortune ever frown upon you, Matt.; should those you now call friends forsake you; should the clouds gather force on every side, and threaten to burst upon you, think then upon the man who never betrayed you; rely on the sincerity you never found to fail; and if my heart, my life, or my fortune can assist you, it is yours.

I go to-morrow to Elizabethtown, where I shall see the best of women—your wife. Whatever letters or commands she may have for you, I shall be careful to forward by the safest hands.

Your friend,

**AARON BURR.**

In the beginning of July, 1776, Major Burr was appointed aid-de-camp to General Putnam. At this time the headquarters of the general were in the large brick house, yet standing, at the corner of Broadway and the Battery. Burr continued occasionally to correspond with his friends, but was much occupied with his military duties, and those studies which were calculated to render him scientifically master of his profession. During the short period that he remained in the family of General Washington, he was treated with respect and attention; but soon perceived, as he thought, an unwillingness to afford that information, and those technical explanations of great historical military movements, which an inquiring and enlightened mind, like Burr's, sought with avidity and perseverance. He therefore became apprehensive, if

he remained with the commander-in-chief, that, instead of becoming a scientific soldier, he should dwindle down into a practical clerk—a species of drudgery to which his pecuniary circumstances did not render it necessary for him to submit, and for which neither his habits, his education, nor his temperament in any degree qualified him. He therefore determined promptly on a change, and was willing to enter the family of Major-general Putnam, because he would there enjoy the opportunities for study, and the duties which he would be required to perform would be strictly military. There is no doubt the short residence of Major Burr with General Washington laid the foundation for those prejudices which, at a future day, ripened into hostile feelings on both sides.

Judge Paterson thus writes him:—

New-Brunswick, July 22d, 1776.

**MY DEAR BURR,**

I did myself the pleasure of writing you by my brother, who is in General Sullivan's brigade, and who was in expectation of seeing you, as he was destined for the Canada department. Indeed, from the friendship which subsisted between us, I was in expectation of hearing frequently from you, and, to tell the truth, was not a little mortified that I was passed over in silence. Why, Burr, all this negligence? I dare not call it forgetfulness, for I cannot bear the thought of giving up my place in your esteem. I rejoice at your return, and congratulate you on your promotion. I was attending the convention at Burlington when you passed on to Philadelphia, and was full of the pleasing hope of having an interview with you. The Delaware, indeed, ran between us—a mighty obstacle, to be sure! I inquired when you designed to return, that I might plant myself at Bristol, and intercept you on



your way. The inquiry was of no avail. I have at times been violently tempted to write you a railing letter, and for that purpose have more than once taken up the pen. But I can hardly tell how, on such occasions, the Genius of Friendship would rise up to view, and soften me down into all the tenderness of affectionate sorrow—perhaps because I counted you as lost. I find I must e'en forgive you—but, remember, you must behave better in future. Do write me now and then. Your letters will give me unfeigned pleasure, and, for your encouragement, I promise to be a faithful correspondent. In the letter-way you used to be extremely careless; you know I am, in that respect, of a different turn.

This will be handed you by Mr. Hugg and Mr. Leaming, members of our convention, whom curiosity partly, and partly business, have impelled to New-York. As men, they are genteel, sensible, and deserving. As politicians, they are worthy of your regard, for they possess the genuine spirit of whiggism. They have no acquaintance in York. They are desirous of seeing the fortifications, and other things in the military line. Pray take them by the hand; and be assured 'that any kindness shown them will be acknowledged as an additional obligation conferred upon

Your affectionate

**WM. PATERSON.**

A. Burr replies to this letter:—

New-York, July 26th, 1776.

**MY DEAR PATERSON,**

I this day received your kind letter. It gave me a pleasure I seldom experience. Can it be that you have still in memory the vagrant Burr? Some fatality has ever attended our endeavours to meet. Why I have not written to you I cannot tell. It has not been for want of friendship, of inclination, or always of opportunity; but some unavoidable accidents prevented so long, that I began to fear a letter from me must be ushered in by some previous introduction, some anecdotes of the writer, which might renew your remembrance, and authorize a freedom of this nature. But your frank and kind epistle precludes fulsome apologies, which; though sometimes necessary, I esteem, at best, but a drug in letters.

I am exceedingly pleased with your friends, Messrs. Hugg and Learning, but was unfortunate enough to be from home the day they came in town, and had not the pleasure of seeing them till this afternoon. I felt myself so nearly interested in the welfare of the province whose constitution you are now framing, that I did not urge their stay with the warmth my inclination prompted. If any other of our Jersey friends should be coming this way, I should be happy in showing them every civility in my power.

As to promises of writing, I shall make you none, my dear Bill, till those already on hand, and of long standing, are discharged. I am no epistolary politician or newsmonger; and as to sentiments, a variety of novelties and follies has entirely dissipated them. This, however, is only a new apology for an old misfortune. But why this to you, who know me better than I know myself? This epistolary chat, though agreeable, is by no means satisfactory. The sincerity of my long-smothered affections is not to be thus expressed. I must contrive to shake you by the hand. Perhaps I may, ere long, be sent to Elizabethtown or Amboy on business, and will, undoubtedly, take Brunswick in my way. I have, or had once, an agreeable female acquaintance with Miss S. D., now Mrs. S., and with Miss S. was on tolerable terms of intimacy. Could I but reconnoitre a while, and find how

the land lay, I might, perhaps, be able to graduate my compliments with some propriety, from cold respects to affectionate regards. I think I must leave you discretionary orders on this head, begging you to make use of all the policy of war. There is no knowing of what importance it may be to

Your affectionate

**A. BURR.**

Footnotes:

1. James Clinton, afterwards general, brother of Governor George Clinton.

## CHAPTER VII.

From the year 1780 until the year 1795, Mrs. Margaret Coghlan made no inconsiderable noise in the court and fashionable circles of Great Britain and France. She was the theme of conversation among the lords, and the dukes, and the M. P.'s. Having become the victim, in early life, of licentious, dissolute, and extravagant conduct, alternately she was revelling in wealth, and then sunken in poverty. At length, in 1793, she published her own memoirs. Mrs. Coghlan was the daughter of Major Moncrieffe, of the British army. He was Lord Cornwallis's brigade major. Her father had three wives. She was a daughter of the first wife. His second wife was Miss L\*\*\*\*\*, of New-York, and his third wife Miss J\*\*, of New-York. Mrs. Coghlan is introduced here, because her early history is intimately connected with the subject of these memoirs.

In July, 1776, she resided in Elizabethtown, New-Jersey. Her father was with Lord Percy on Staten Island. In her memoirs, speaking of herself, she says:—"Thus destitute of friends, I wrote to General Putnam, who instantly answered my letter by a very kind invitation to his house, assuring me that he respected my father, and was only his enemy in the field of battle; but that, in private life, he himself, or any part of his family, might always command his services. On the next day he sent Colonel Webb, one of his aid-de-camps, to conduct me to New-York. When I arrived in the Broadway (a street so called), where General Putnam resided, I was received with

great tenderness, both by Mrs. Putnam and her daughters, and on the following day I was introduced by them to General and Mrs. Washington, who likewise made it their study to show me every mark of regard; but I seldom was allowed to be alone, although sometimes, indeed, I found an opportunity to escape to the gallery on the top of the house, where my chief delight was to view, with a telescope, our fleet and army at Staten Island. My amusements were few; the good Mrs. Putnam employed me and her daughters constantly to spin flax for shirts for the American soldiers; indolence, in America, being totally discouraged; and I likewise worked some for General Putnam, who, though not an accomplished *muscadin*, like our dilletantis of St. James's-street, was certainly one of the best characters in the world; His heart being composed of those noble materials which equally command respect and admiration. \* \* \* \* \*

"Not long after this circumstance, a flag of truce arrived from Staten Island, with letters from Major Moncrieffe, demanding me; for he now considered me as a prisoner. General Washington would not acquiesce in this demand, saying that I should remain a hostage for my father's good behaviour. I must here observe, that when General Washington refused to deliver me up, the noble-minded Putnam, as if it were by instinct, laid his hand on his sword, and with a violent oath swore that my father's request should be granted. The commander-in-chief, whose influence governed Congress, soon prevailed on them to consider me as a person whose situation required their strict attention; and that I might not escape they ordered me to Kingsbridge, where, in justice I must say, that I was treated with the utmost tenderness. General Mifflin there commanded. His lady was a most accomplished, beautiful woman; a Quaker," &c.

Mrs. Coghlan then bursts forth in expressions of rapture for a young American officer, with whom she had become enamoured. She does not name him; but that officer was Major Burr. "May these pages" (she says)

"one day meet the eye of him who subdued my virgin heart. \* \* \* \* \* To him I plighted my virgin vow. \* \* \* \* \* With this conqueror of my soul, how happy should I now have been! What storms and tempests should I have avoided" (at least I am pleased to think so) "if I had been allowed to follow the bent of my inclinations. Ten thousand times happier should I have been with him in the wildest desert of our native country, the woods affording us our only shelter, and their fruits our only repast, than under the canopy of costly state, with all the refinements of courts, with the royal warrior" (the Duke of York) "who would fain have proved himself the conqueror of France. *My conqueror* was engaged in another cause; he was ambitious to obtain other laurels. He fought to liberate, not to enslave nations. He was a colonel in the American army, and high in the estimation of his country. *His* victories were never accompanied with one gloomy, relenting thought. They shone as bright as the cause which achieved them."

The letter from General Putnam of which Mrs. Coghlan speaks is found among the papers of Colonel Burr, and is in the following words:—

New-York, July 26th, 1776.

I should have answered your letter sooner, but had it not in my power to write you any thing satisfactory.

The omission of my title, in Major Moncrieffe's letter, is a matter I regard not in the least; nor does it in any way influence my conduct in this affair; as you seem to imagine. Any political difference alters him not to me in a private capacity. As an officer, he is my enemy, and obliged to act as such, be his private sentiments what they will. As a man, I owe him no enmity; but, far from it, will, with pleasure, do any kind office in my power for him or any of his connexions.

I have, agreeably to your desire, waited on his excellency to endeavour to obtain permission for you to go to Staten Island. He informs me that Lieutenant-colonel Patterson, who came with the last flag, said he was empowered to offer the exchange of ——- ——- for Governor Skeene. As the Congress have reserved to themselves the right of exchanging prisoners, the general has sent to know their pleasure, and doubts not they will give their consent. I am desirous to inform you, that if this exchange is made, you will have liberty to pass out with Governor Skeene; but that no flag will be sent solely for that purpose.

Major William Livingston was lately here, and informed me that you had an inclination to live in this city, and that all the ladies of your acquaintance having left town, and Mrs. Putnam and two daughters being here, proposed your staying with them. If agreeable to you, be assured, miss, you shall be sincerely welcome. You will here, I think, be in a more probable way of accomplishing the end you wish—that of seeing your father, and may depend upon every civility from,

Miss,

Your obedient servant,

**ISRAEL PUTNAM.**

This letter is in the handwriting of Major Burr, and undoubtedly was prepared by him for the signature of the general. Miss Moncrieffe was, at this time, in her fourteenth year. She had travelled, and, for one of her age, had mingled much in the world. She was accomplished, and was considered handsome. Major Burr was attracted by her sprightliness and vivacity, and she, according to her own confessions, penned nearly twenty years afterward, had not only become violently in love with, but had

acknowledged the fact to him. Whether the foundation of her future misfortunes was now laid, it is not necessary to inquire. Her indiscretion was evident, while Major Burr's propensity for intrigue was already well known.

Burr perceived immediately that she was an extraordinary young woman. Eccentric and volatile, but endowed with talents, natural as well as acquired, of a peculiar character. Residing in the family of General Putnam with her, and enjoying the opportunity of a close and intimate intercourse, at all times and on all occasions, he was enabled to judge of her qualifications, and came to the conclusion, notwithstanding her youth, that she was well calculated for a spy, and thought it not improbable that she might be employed in that capacity by the British. Major Burr suggested his suspicions to General Putnam, and recommended that she be conveyed to her friends as soon as might be convenient. She was, in consequence, soon after removed to Kingsbridge, where General Mifflin commanded. This change of situation, in the work which she has published, is ascribed to General Washington, but it originated with Major Burr.

After a short residence at Kingsbridge, leave was granted for her departure to Staten Island. She accordingly set off in a continental barge, under the escort of an American officer, who was ordered to accompany her to the British headquarters. As the boat approached the English fleet, she was met by another, having on board a British officer, and was notified that she could proceed no further, but that the king's officer would take charge of the young lady, and convey her in safety to her father, who was six or eight miles in the country with Lord Percy. She says, in her memoirs, "I then entered the British barge, and bidding an eternal farewell to my dear American friends, *turned my back on liberty.*"



Miss Moncrieffe, before she had reached her fourteenth year, was probably the victim of seduction. The language of her memoirs, when taken in connexion with her deportment soon after her marriage, leaves but little room for doubt. Major Burr, while yet at college, had acquired a reputation for gallantry. On this point he was excessively vain, and regardless of all those ties which ought to control an honourable mind. In his intercourse with females he was an unprincipled flatterer, ever prepared to take advantage of their weakness, their credulity, or their confidence. She that confided in him was lost. In referring to this subject, no terms of condemnation would be too strong to apply to Colonel Burr.

It is truly surprising how any individual could have become so eminent as a soldier, as a statesman, and as a professional man, who devoted so much time to the other sex as was devoted by Colonel Burr. For more than half a century of his life they seemed to absorb his whole thoughts. His intrigues were without number. His conduct most licentious. The sacred bonds of friendship were unhesitatingly violated when they operated as barriers to the indulgence of his passions. For a long period of time he seemed to be gathering, and carefully preserving, every line written to him by any female, whether with or without reputation; and, when obtained, they were cast into one common receptacle,—the profligate and corrupt, by the side of the thoughtless and betrayed victim. All were held as trophies of victory,—all esteemed alike valuable. How shocking to the man of sensibility! How mortifying and heart-sickening to the intellectual, the artless, the fallen fair!

Among these manuscripts were many the production of highly cultivated minds. They were calculated to excite the sympathy of the brother—the parent—the husband. They were, indeed, testimonials of the weakness of the weaker sex, even where genius and learning would seem to be towering above the arts of the seducer. Why they were thus carefully preserved, is

left to conjecture. Can it be true that Moore is correct, when, in his life of Lord Byron, he says, "The allusions which he (Byron) makes to instances of *successful passion* in his career, were not without their influence on the fancies of that sex, whose weakness it is to be most easily won by those who come recommended by the greatest number of triumphs over others? Some of these productions had been penned more than sixty years. They were all committed to the flames, however, immediately after the decease of Colonel Burr. Of them, it is believed, "not a wreck remains."

The faithful biographer could not pass over in silence this strong and revolting trait in the character of Colonel Burr. It will not again be referred to. From details, the moralist and the good man must shrink with disgust and abhorrence. In this particular, Burr appears to have been unfeeling and heartless. And yet, by a fascinating power almost peculiar to himself, he so managed as to retain the affection, in some instances, the devotion, of his deluded victims. In every other respect he was kind and charitable. No man would go farther to alleviate the sufferings of another. No man was more benevolent. No man would make greater sacrifices to promote the interest or the happiness of a friend. How strange, how inconsistent, how conflicting are these allusions! They are nevertheless strictly true.

Many of the letters to and from Colonel Burr contain hints and opinions as to public men and measures. Thus far, they are links in the chain of history, in relation to the times when they were written. They serve, also, to illustrate the character and the principles of the writers themselves. With these views they are occasionally selected. Theodore Sedgwick is a name recorded in the annals of our country with distinction. He writes to Burr:—

Sheffield, 7th August, 1776.

**MY DEAR BURR,**

If you remember, some months since, you and I mutually engaged to correspond by letter. I told you then that you were not to expect any thing either entertaining, or in any degree worth the trouble of perusing. What can a reasonable being expect from an inhabitant of such an obscure, remote, and dead place as Sheffield, to amuse, instruct, or even to merit the attention of a young, gay, enterprising, martial genius? I know you will expect nothing, and I dare pledge my honour, therefore, that you will not, either now or in future, in this respect, be disappointed.

You recollect, perhaps, that when I had the pleasure to see you here, I informed you of a design to visit New-York and the southward. Soon after my business called me to Boston, and, on my return, I was obliged to go with the militia to Peekskill; from there I should have visited the city and my friends, had not some foolish accidents prevented. I now think, as soon as I can leave home, of making a tour; but this, like other futurities, is wholly uncertain.

The insignificant figure I make, in my own opinion, in this day of political and martial exertions, is an humbling consideration. To be stoically indifferent to the great events that are now unfolding, is altogether inconsistent, not only with my inclination, but even with my natural constitution; and to pursue a line of conduct which indicates such a disposition (I mean my continuance at home), is a mystery for which I will endeavour to account. Remember, I do not intend to libel the colony to which I belong.

Amid the confusion which was at once the cause and consequence of a dissolution of government, men's minds as well as actions became regardless of all legal restraint. All power reverted into the hands of the people, who were determined that every one should be convinced that *the people* were the fountain of all honour. The first thing they did was to

withdraw all confidence from every one who had ever any connexion with government. Lawyers were, almost universally, represented as the pests of society. All persons who would pay court to these extravagant and unreasonable prejudices became their idols. Abilities were represented as dangerous, and learning as a crime, or rather, the certain forerunner of all political extravagances. They really demonstrated that they were possessed of creating power; *for, by the word of their power, they created great men out of nothing*; but I cannot say *that all was very well*.

Observing these violent symptoms, I could not pursue that which was the only road to preferment; and I have never had an offer to go into the army, except the one I accepted; while I have seen, in more than one instance, men honoured with the command of a regiment for heading mobs. Well: with this, I believe, I have troubled you long enough. Pray, say you, what is it to me why you have not been in the army? Why, nothing, my dear friend; but it is something to me. You know, my dear Burr, I love you, or I should not submit such nonsense to your perusal. If Mr. Swift still lives, give him my best compliments. Pamela desires me to tell you she loves you. Answer this letter, and thereby oblige

Your sincere friend,

**THEODORE SEDGWICH.**

**FROM COLONEL M. OGDEN.**

Ticonderoga, July 26th, 1776.

**DEAR BURR,**

I have been waiting with the greatest impatience to know what is doing in York and Jersey. There are twenty different reports, that contradict each other, relative to Howe and his fleet. It has once been generally believed that a French fleet had arrived at New-York, and blocked up the British army. Independence is well relished in this part of the world. Generalship is now dealt out to the army by our worthy and well-esteemed general, Gates, who is putting the most disordered army that ever bore the name into a state of regularity and defence. If our friends in Canada, commanded by Burgoyne, will wait a few days, we shall give them a very proper reception.

The army are beginning to recruit fast, from the effects of a little fresh meat, and some rum, when on fatigue. Ten days ago there were not in our regiment eighty men fit for duty. We have now upwards of two hundred and thirty; and, in a few days, they will be all as rugged as New-Jersey is firm.

Colonel Winds is sent home on a fool's errand by the general, that he may be out of the way of doing any more harm to the regiment. The general assures me that I shall not be troubled with him again. I suppose, by that, he has written to have him detained below. A short history of this man will convince you that he ought to be nowhere but on his farm. He, in the first place, is a professed enemy to subordination, and has an utter aversion to discipline. He is positive, and prefers his own opinion to even the general's, because he was in the service last war. He is not possessed of one qualification that distinguishes a gentleman, nor has he genius or education. His whole study is to gain the applause of the private soldiers, at the expense of every officer in the regiment. He is hated by all his own officers except *two*, and despised by every gentleman in the army.

We are in great want of brigadier-generals—three, at least. I mean for the men that are now here. General Arnold will command the water-craft on the lake in person. There are three brigades, commanded by the colonels, Reed,

Stark, and St. Clair. The last of these I sincerely wish was appointed a brigadier by Congress. There is no better man; the other two have full enough already.

Please to forward the enclosed, with the letter to Mr. Spencer. My best respects to Generals Putnam, Greene, and Mifflin, and to Colonel Trumbull. Compliments to Webb. I wait, with the greatest impatience, some important news from New-York. Pray write particulars relative to the conduct of the Jersey men. Should any fall, mention their names.

I am yours sincerely,

**MATT. OGDEN.**

**TO T. EDWARDS.**

New-York, 10th of August, 1776.

Dear Uncle,

I have received your letters from Stockbridge, with my watch, for which I thank you. Our six galleys which went up the North river attacked the British ships. They behaved well, but were drove off with the loss of three killed and twelve or thirteen wounded. A second attack is proposed. Vessels and chevaux-de-frises are sunk in the North river. The channel is said to be effectually stopped. We are endeavouring the same in the East river. The British fleet have been largely re-enforced at different times. They are now said to be upwards of two hundred sail within the Narrows. They have drawn up seven of their heaviest ships in a line, nearly two miles advanced of the rest.

By two Virginia gentlemen who went to England to take the gown, who returned in a packet and landed on Staten Island, where they tarried several days, and were permitted to cross to Elizabethtown on Thursday last, we have some intelligence of the enemy. Clinton has arrived with his shattered fleet and about 3600 men. By this it appears that he has either fallen in with part of Dunmore's fleet, or picked up the remainder of his own, which had been separated, and were not in the action near Charlestown. Of the Hessians only 1300 or 1400 have arrived. The remainder, about 9000, are daily expected. They were left near the banks of Newfoundland. Those already here are not much esteemed as soldiers.

The king's land-army is at present about 15 or 16,000 strong. They expect very soon to exceed 25,000. They have taken on board all their heavy cannon from Staten Island, and have called in several of their outposts. Thirty transports have sailed under convoy of three frigates. They are to come through the Sound, and thus invest us by the North and East rivers. They are then to land on both sides of the island, *join their forces, and draw a line across, which will hem us in and totally cut off all communication, after which they will have their own fun.*

These Virginia gentlemen lodged in a house with several king's officers. They hold us in the utmost contempt. Talk of forcing all our lines without firing a gun. The bayonet is their pride. They have forgot Bunker's Hill.

Your nephew,

A. Burr.

FROM COLONEL M. OGDEN.

Ticonderoga, August 11th, 1776.

Dear Burr,

I yesterday received yours of July 29th and August 2d. The others I made mention of in the letter to Mrs. Ogden that I sent to you unsealed. In my last you had a very particular account of the numbers, force, names, &c., of our navy on the lake. As to our leaving Crownpoint for this place, the field-officers knew nothing of it till it was concluded on by the generals, Schuyler, Gates, and Arnold.

General Arnold is taking a very active part, I mean in the command of the fleet. He will sail himself in a few days. He says he will pay a visit to St. Johns. I wish he may be as prudent as he is brave. Well, now have at you for news. Last evening the flag of truce returned, bringing a letter directed to *George Washington, Esq.*, and a truly ridiculous copy of a general order, which you will see at General Washington's by the time you receive this. But there is one part of it in which I think they, in some measure, accuse us justly. I mean that of assassinating, as they term it with too much truth, Brigadier-general Gordon. He was shot by the Whitcomb I mentioned in my last, who had been sent there as a spy. The act, though villainous, was brave, and a peculiar kind of bravery, that, I believe, Whitcomb alone is possessed of. He shot Gordon near by their advanced sentinel; and, notwithstanding a most diligent search was made, he avoided them by mere dint of skulking.

I shall have the honour to command the New-Jersey redoubt, which I am now building with the regiment alone. It is situated on the right of the whole, by the water's edge. It is to mount two eighteen-pounders, two twelve, and four nine-pounders. In this I expect to do honour to New-Jersey. I yesterday received a letter from Colonel Dayton, dated the 28th of July, at



the German Flats. He informs me that he is to take the command at Fort Stanwix.

Should there be any thing to be had in New-York in the clothing way, should be glad if you will lay some aside, no matter what—either small-clothes, shirts, stockings, or any thing of the kind. My best compliments to General Putnam. If you will let Robert or Sawyer have the perusal of this, they would learn the news of this army. Paper is so scarce, that one letter must serve both, unless something particular.

Yours sincerely,

**MATT. OGDEN.**

At this time Major-general Greene had the command on Long Island, but his health was so bad that it became necessary for him to resign it. The commander-in-chief ordered General Putnam to assume the command. Major Burr was his aid-de-camp. The landing of the British had been previously effected on the 22d of August, 1776, without opposition, near Utrecht and Gravesend, on the southwest end of the island. The American troops, less than 12,000, were encamped on the north of Brooklyn heights. The British force, including Hessians, was more than 20,000 strong. The armies were separated by a range of hills, at that time covered with wood, called the Heights of Gowannus. Major Burr immediately commenced an inspection of the troops, and made to the general a most unfavourable report, both as to their means of defence and their discipline. The major proposed, however, several enterprises for beating up the quarters of the enemy. To all which General Putnam replied, that his orders were not to make any attack, but to act on the defensive only.

On the 27th the action was fought. The loss of the Americans, in killed, wounded, and prisoners, was about 1000. That of the British, less than 350. The Americans were driven within the works which they had thrown up. Major Burr, previous to the action, had expressed to General Putnam the opinion that a battle ought not to be risked; and that much was to be gained by placing the troops in a position where the navy of the enemy would not be so serviceable to them.

On the 28th, the British advanced in column to within 500 or 600 yards of the American works. General Robinson, who commanded a portion of the enemy, represents, in his parliamentary examination, that they approached much nearer. The American troops were formed in line to receive them; but gave such indications of alarm, that Major Burr rode to General Putnam, and informed him that he had no hope the men would stand more than a single fire before they retreated. No attack, however, was made. Burr continued to urge upon General Putnam and Mifflin (the latter of whom came over on that day from New-York) the necessity of a retreat. During the night of the 28th, General Mifflin went the rounds, and observed the forwardness of the enemy's batteries, and, on the morning of the 29th, pressed upon General Washington an immediate retreat. A council was held, and the opinion of Mifflin unanimously adopted. The embarkation of the troops was committed to General McDOUGALL. He was at Brooklyn Ferry by eight o'clock. In the early part of the night, the weather was very unfavourable; but about eleven o'clock every thing was propitious. A thick fog ensued, and continued until the whole army, 9000 in number, with all the field artillery, ordnance, &c., were safely landed in New-York. Major Burr was at Brooklyn. Here General McDOUGALL had an opportunity of noticing his efficiency. His reputation for talents and intrepidity had previously reached the ears of the general. From this night, the 29th of August, 1776, until Major Burr retired from the army, he possessed the entire confidence and esteem of General McDOUGALL. Subsequent

events, as will hereafter appear, tended to strengthen and confirm the correctness of those prepossessions, thus formed in the hour of peril, and in the midst of the most appalling dangers.

The situation of General Washington, after retreating from Long Island, was very distressing. The defeat which the Americans had experienced produced consternation and alarm in the ranks of a raw, inexperienced, and undisciplined army. In addition to other discouraging circumstances, within a few days after the retreat, nearly one fourth of the troops were on the sick-list. Colonel Glover says that the commander-in-chief divided his army, posting 12,000 at Kingsbridge, 6500 at Harlem, and 4500 in the city of New-York.

On Sunday, the 15th of September, 1776, General Howe, as commander-in-chief of the British forces, landed on Manhattan (New-York) Island. General Washington had previously made the necessary arrangements, and given orders for the troops to evacuate the city and retire to Harlem, distant about seven miles. The descent of the British created an alarm in the American ranks, and produced no inconsiderable degree of confusion in the retreat. By some unaccountable mismanagement, General Silliman's brigade was left in New-York, and conducted by General Knox to a small fort then in the suburbs, and known as Bunker's Hill. Major Burr having been despatched, at his own request, with a few dragoons, by General Putnam, to pick up the stragglers, discovered the error which had been committed, and galloping up to the fort, inquired who commanded. General Knox presented himself. Major Burr desired him to retreat immediately, or the whole brigade would be cut off and sacrificed. General Knox replied, that a retreat, thus in the face of the enemy, was impracticable, and that he intended to defend the fort. Burr remarked, that it was not bomb-proof; that it was destitute of water; and that he could take it with a single howitzer; and then, addressing himself to the men, said, that if they remained there,

one half of them would be killed or wounded, and the other half hung, like dogs, before night; but, if they would place themselves under his command, he would conduct them in safety to Harlem. Burr's character for intrepidity and military skill was already so well established, that they determined to follow him. In the retreat they had some skirmishing, but met with very little loss in effecting their union with the main body of the army. The following documents, furnished by officers in Silliman's brigade, contain the details.

SAMUEL ROWLAND TO COMMODORE RICHARD V. MORRIS.  
Fairfield, (Conn.),

29th January, 1814.

SIR,

In answer to the inquiries relating to the evacuation of New-York, in 1776, I can only observe, but few persons who were present, and eyewitnesses of the event, are now living in this part of the country. I find, however, the Rev. Doctor Ripley, a gentleman of eminent respectability, and Messrs. Wakeman and Jennings, respectable citizens of this town, now living, who belonged to the brigade of the late General Silliman, the information of which gentlemen on any subject can be relied on, and will be no otherwise than correct, however prejudice or other cause might occasion a reluctance in disclosing the information in their power to give; yet duty impelled their narrative, and the neglecting an opportunity to give evidence of noble acts and unrewarded worth they consider *ingratitude*. In preference to communicating to you by way of letter concerning transactions of so long standing as the year 1776, I desired the enclosed certificates, which the gentlemen freely gave, in order to prevent any misconstruction by passing

through a second hand, by which you will have more correct information than possibly in my power to give.

Very respectfully yours, &c.

**SAMUEL ROWLAND.**

*Certificate of the Rev. Hezekiah Ripley.*

On being inquired of by Samuel Rowland, Esq., of Fairfield town and county, in the State of Connecticut, relative to my knowledge and recollection respecting the merits of Colonel Aaron Burr as an officer and soldier in the late revolutionary war between the United States and Great Britain, can certify as follows:—

Hezekiah Ripley, of said Fairfield, doth certify, that on or about the fifteenth day of September, 1776, I was the officiating chaplain of the brigade then commanded by Gen. Gold S. Silliman. From mismanagement of the commanding officer, that brigade was unfortunately left in the city of New-York, and at the time before mentioned. While the brigade was in front, and myself considerably in the rear, I was met by the late General Putnam, deceased, who then informed me of the landing of the enemy above us, and that I must make my escape on the west side of the island. Whereupon I on foot crossed the lots to the west side of the island, unmolested excepting by the fire from the ships of the British, which at that time lay in the North river. How the brigade escaped, I was not an eyewitness; but well recollect, from the information I then had from General Chandler (now deceased), then acting as a colonel in said brigade, that Mr. Burr's exertions, bravery, and good conduct, was the principal means of saving the whole of that brigade from falling into the hands of the

enemy, and whose conduct was then by all considered judicious and meritorious.

But, however, I well recollect, before I had the information alluded to from General Chandler, I had seen Mr. Burr, and inquired of him how the brigade had made their escape, who then told me the particulars, which were afterwards confirmed by all the officers; who were all of opinion that, had it not been for him, they would not have effected their retreat and escape.

As to my own opinion of the management of the troops on leaving New-York, I then, and still suppose, as did General Chandler, that Colonel Burr's merits there as a young officer ought, and did, claim much attention, and whose official duties as an aid-de-camp on that memorable day justly claimed the thanks of the army and his country.

**HEZEKIAH RIPLEY.**

*Certificate from Isaac Jennings and Andrew Wakeman.* Being requested by Samuel Rowland, Esq., to give information relative to the evacuation of New-York, in the year 1776, by the American army, we, the subscribers, then acting, one in the capacity of a lieutenant, and the other as a private, in the brigade commanded by the late General Silliman, now deceased, do certify, That on the fifteenth day of September (being on the Lord's day), the British landed on the east side of the island, about four miles above the city. The American troops retreated the same day to Harlem heights. By some misapprehension of the orders, or from other causes unknown to us, our brigade was left, and was taken by General Knox to Bunker's Hill, [1] a small fort (so called) about a mile from town. The fort was scarcely able to hold us all. We had but just got into the fort, when Aaron Burr, then aid-de-

camp to General Putnam, rode up and inquired who commanded there. General Knox presented himself, and Burr (then called Major Burr) asked the general what he did there? And why he did not retreat with the army? The general replied, that it was impossible to retreat, as the enemy were across the island, and that he meant to defend that fort. Major Burr ridiculed the idea of defending the place, being, as he said, without provisions, or water, or bomb-proof; and that, with one mortar, or one howitzer, the enemy would take the place in four hours, or in some very short time, and again urged General Knox to retreat to Harlem heights; but General Knox said it would be madness to attempt it. A smart debate ensued, the general adhering to his opinion. Burr addressed himself to the men, and told them that, if they remained there, they would before night be all prisoners, and crammed into a dungeon, or hung like dogs. He engaged to lead them off, and observed that it would be better that one half should be killed in fighting, than all be sacrificed in that cowardly manner. The men agreed to follow him, and he led them out; he and his two attendants riding on the right flank. About four miles from town we were fired upon by a party of the enemy. Burr galloped directly to the spot the firing came from, hallooing to the men to follow him. It proved to be only a guard of about a company of the enemy, who immediately fled. Burr and his horsemen pursued and killed several of them. While he was thus employed, the head of a column had taken a wrong road. Burr came up and hurried us to the left, into a wood, and rode along the column from front to rear, encouraging the men, and led us out to the main army with very small loss.

The coolness, deliberation, and valour displayed by Major Burr in effecting a safe retreat, without material loss, and his meritorious services to the army on that day, rendered him an object of peculiar respect from the troops, and the particular notice of the officers.

**ISAAC JENNINGS.**

ANDREW WAKEMAN.

LETTER FROM NATHANIEL JUDSON TO COMMODORE R.  
V. MORRIS.

Albany, 10th February, 1814.

Sir,

I have received your letter, with the preceding statement, respecting our retreat from New-York Island, in September, 1776, and, in compliance with your request, I have to reply, that the relation made by Mr. Wakeman and Mr. Jennings corresponds with my recollection. I was near Colonel Burr when he lead the dispute with General Knox, who said it was madness to think of retreating, as we should meet the whole British army. Colonel Burr did not address himself to the men, but to the officers, who had most of them gathered around to hear what passed, as we considered ourselves as lost. But Colonel Burr seemed so confident that he could make good a retreat, and made it clear that we were all lost if we stayed there, that we all agreed to trust to his conduct and courage, though it did appear to us a most desperate undertaking; and he did not disappoint us, for he effected a retreat with the whole brigade; and I do not think we lost more than thirty men. We had several brushes with small parties of the enemy. Colonel Burr was foremost and most active where there was danger, and his conduct, without considering his extreme youth, was afterwards a constant subject of praise, and admiration, and gratitude. This affair was much talked of in the army after the surrender of Fort Washington, in which a garrison of about 2500 men was left under circumstances very similar to ours; this fort having no bomb-proof. That garrison surrendered, as is well known, the very same day our army retreated; and of those 2500 men, not 500 survived the



imprisonment they received from the British. I have, since then, heard it repeated hundreds of times by the officers and men of Silliman's brigade, that our fate would have been the same had it not been for Colonel Burr. I was a sergeant-major in Chandler's regiment of Silliman's brigade at the time of the retreat.

I am your very obedient servant,

**NATHANIEL JUDSON**

Footnotes:

1. Adjacent to what is now Grand-street.

## CHAPTER VIII.

As early as the 10th of August, Burr, in a letter to his uncle Edwards, [1] expressed apprehensions that the retreat of the American army from Long Island might be cut off and then that the British "would have their own fun." From that period until the retreat was effected, on the night of the 27th, he continued to entertain the same opinion as to the necessity of retreating. So, also, in relation to the city of New-York. He thought no attempt should be made to hold it. Subsequent events proved his good sense and foresight, as well as his military genius. The city was abandoned on the 15th of September. Ten days after he writes to his aunt Edwards, in reply to a desponding letter he had received from her, his views of the recent movements of the American army.

TO MRS. EDWARDS.

Kingsbridge, 26th September, 1776.

MY DEAR AUNT,

I fear, madam, you give yourself needless anxiety about the situation of public affairs. It has been always held a maxim that our island and seaport towns were at the discretion of the tyrant of Great Britain. Reasons for the

retreat from Long Island are well known. The evacuation of New-York was a *necessary consequence*. The manner of conducting these made present advantages but trifling to the enemy. The loss to us is of still less importance; and, indeed, some happy consequences resulting from the manoeuvres appear to me worthy of notice.

We have hitherto opposed them with less than half their number, and exposed to all their advantages of shipping. Our force is now more united, theirs more divided. Our present situation renders their navy of less service to them, and less formidable to us;—a circumstance of vast importance, and to which I attribute all that has heretofore appeared in their favour. Add to these, besides confirming our internal union, the effect that every appearance of success on the part of the enemy has upon our leading men. It arouses them from the lethargy which began to prevail; convinces them that their measures are unequal to their grand designs; that the present is the important moment, and that every nerve must now be exerted.

This is not altogether fanciful. It has been actually the case. More effectual measures than were ever before thought of are now taking for levying a new army. A committee of Congress are on the spot with us to know all our wants, and report them properly, that they may be speedily provided for. I do not intend by this, my dear aunt, to deceive you into an opinion that every thing is already entirely secure; that we are now actually relieved from every degree of danger; but to remove your apprehensions concerning the important events which depend on our military exertions. I hope, madam, you will continue, with your usual philosophy and resolution, prepared for the uncertain events of war, not anticipating improbable calamities.

Various have been the reports concerning the barbarities committed by the Hessians, most of them incredible and false. They are fonder of plunder

than blood, and are more the engines than the authors of cruelty. But their behaviour has been in some instances savage, and might excuse a fear, if reckoned among usual calamities; but these should be viewed on a larger scale than that of common complaisance. It should be remembered we are engaged in a civil war, and effecting the most important revolution that ever took place. How little of the horrors of either have we known! Fire or the sword have scarce left a trace among us. We may be truly called a favoured people.

I have been not so engaged as common for a short time past, and have liberty of remaining, for three or four days, about two miles from camp, from whence I now write you, a little more at leisure; but I am now within drumcall.

Your nephew,

**A. BURR.**

After the abandonment of Manhattan Island by the American army, and some fighting in Westchester, General Washington crossed the North river with a part of the troops, and retreated through New-Jersey. The movements of Lord Cornwallis left no doubt that the object of the British general was Philadelphia. He advanced rapidly from Brunswick upon Princeton, hoping, by forced marches, to get in the rear of the Americans. On the 8th of December, 1776, Washington crossed the Delaware, secured the boats, and broke down the bridges. Great apprehension and alarm for the safety of Philadelphia now existed. Judge Marshall, in his Life of Washington, says,

"In consequence of this state of things, the general advised that lines of defence should be drawn from the Schuylkill, about the heights of Springatsbury, eastward to the Delaware, and General Putnam was ordered

to superintend them." Major Burr was now actively engaged as the aid-de-camp of General Putnam, whose esteem and unbounded confidence he continued to enjoy. He writes Colonel Ogden,

Princeton, 7th March, 1777.

Dear Matt.,

I this evening received your letter of yesterday's date, by Stockton. I knew not how to direct to you, nor where to send for the horse, or should have done it sooner. I do not perfectly recollect the one you mention, but should be glad of any on your recommendation. Both boots and a saddle I want much, and shall be obliged to you to procure them for me;—good leather would suit me as well as boots ready made. I have not had a pair worth sixpence since those I had at Elizabethtown.

As to "expectations of promotion," I have not the least, either in the line or the staff. You need not express any surprise at it, as I have never made any application, and, as you know me, you know I never shall. I should have been fond of a berth in a regiment, as we proposed when I last saw you. But, as I am at present happy in the esteem and entire confidence of my good old general, I shall be piqued at no neglect, unless particularly pointed, or where silence would be want of spirit. 'Tis true, indeed, my former equals, and even inferiors in rank, have left me. Assurances from those in power I have had unasked, and in abundance; but of these I shall never remind them. We are not to judge of our own merit, and I am content to contribute my mite in any station.

I shall probably be at Morris within ten days, on public business. Write me whether I may expect you there. With sincere love to Mrs.

Ogden,

Yours,

A. Burr.

In the spring of 1777, a new army was to be raised. For political reasons it was deemed expedient to select, where it could be done with propriety, for the colonels of regiments, gentlemen supposed to have an influence. Among those who were thus selected was Colonel Malcolm, formerly a merchant in the city of New-York. He was highly respectable, and universally esteemed, but was not a military man. In June, 1777, Burr was appointed lieutenant-colonel of his regiment; but he did not receive official notice of the fact until the 26th of July.

On the 14th of July, 1777, General Putnam's headquarters being then at Peekskill, he issued the following order:—

*By the Honourable Major-general Putnam, To Major Aaron Burr, Aid-de-camp.*

**SIR,**

Pursuant to orders received from his excellency General Washington, you are forthwith to repair to Norwalk, Fairfield, and the places adjacent on the Sound, transmit me without delay the intelligence you shall from time to time receive of the movements of the enemy, or any of their fleets. Request of the committees, or select-men of the different towns, that they will be very punctual in reporting to the commanding officer at this post whatever may in any respect relate to the movements of the army, as both their safety

and the welfare of the country may be promoted by their diligence in this particular.

On your return, which will be through Litchfield, you will leave orders for all detachments of any regiments of General Nixon's brigade to take the most direct route to Albany, provided they be farther than thirty miles from this place, as much will be saved, and fatigue avoided by the observance of this.

Having settled a line of intelligence from the different towns on the coast, and left the necessary directions for the detachments of Brigadier-general Nixon's brigade, you will return with all convenient speed to this place.

Given under my hand, at headquarters, Peekskill, 14th day of July, 1777.

**ISRAEL PUTNAM.**

This was the last order that Major Burr ever received as the aid-de-camp of his "good old general." On his return to camp he received, in the usual form, a letter from General Washington, announcing to him his appointment as lieutenant-colonel in the Continental Army, to which he replied,

Peekskill, 21st July, 1777.

**SIR,**

I was this morning favoured with your excellency's letter of the 29th ult., and my appointment to Colonel Malcolm's regiment. Am truly sensible of the honour done me, and shall be studious that my deportment in that station be such as will ensure your future esteem. I am nevertheless, Sir,

constrained to observe, that the late date of my appointment subjects me to the command of many who were younger in the service, and junior officers the last campaign.

With submission, and if there is no impropriety in requesting what so nearly concerns me, I would beg to know whether it was any misconduct in me, or any extraordinary merit or services in them, which entitled the gentlemen lately put over me to that preference? Or, if a uniform diligence and attention to duty has marked my conduct since the formation of the army, whether I may not expect to be restored to that rank of which I have been deprived, rather, I flatter myself, by accident than design? I would wish equally to avoid the character of turbulent or passive, and am unhappy to have troubled your excellency with a matter which concerns only myself. But, as a decent regard to rank is both proper and necessary, I hope it will be excused in one who regards his honour next to the welfare of his country.

I am not yet acquainted with the state of the regiment or the prospect of filling it; but shall immediately repair to rendezvous and receive Colonel Malcolm's directions.

I have the honour to be, with great respect,

Your excellency's obedient servant,

**A. BURR.**

Colonel Malcolm's regiment was at this time stationed at Ramapo, or the Clove, in Orange county, New-York, whither Lieutenant-colonel Burr proceeded. On presenting himself, the colonel was greatly surprised. The youthful appearance of Burr led him to apprehend that he would be wanting in judgment and discretion; but a very short acquaintance removed these



impressions. Malcolm retired with his family about twenty miles distant, leaving Burr in command, kindly remarking—"You shall have all the honour of disciplining and fighting the regiment, while I will be its father;" and he kept his word, for it is believed that he never commanded it in battle during the whole war, although it was frequently engaged. This duty devolved upon Colonel Burr.

In September, 1777, the British came out of the city of New-York, on the west side of the Hudson river, about 2000 strong, for the purpose of plundering and devastating the adjacent country, and capturing the public stores. Colonel Burr was with his regiment, distant about thirty miles, when he heard of the enemy, and yet he was in their camp, and captured or destroyed their picket-guards before the next morning. For two days and nights he never slept. His regular force did not exceed three hundred men; but, by surprising the British sentinels, he struck consternation into their ranks, and they fled with precipitation, leaving behind them their plunder and a part of their stores. The following letters afford ample details:—

Statement of Judge George Gardner, dated Newburgh, 20th December, 1813.

In September, 1777, the regiment called Malcolm's regiment lay at Suffren's, in the Clove, under the command of Lieutenant-colonel Burr. Intelligence having been received that the enemy were in Hackensack in great force, and advancing into the country, Colonel Burr immediately marched with the effective men, except a guard to take care of the camp. I understood that while we were on the march, an officer arrived express from Major-general Putnam, who commanded at Peekskill, recommending or ordering Colonel Burr to retire with the public stores to the mountains: to which Colonel Burr replied, that he could not run away from an enemy

whom he had not seen, mid that he would be answerable for the public stores and for his men.

We arrived at Paramus, a distance of sixteen miles, before sunset. There were considerable bodies of militia, in great alarm and disorder, and doing much mischief to the neighbouring farms. They could give no intelligence of the enemy but from rumour. Supposed them to be within a few miles, and advancing.

Colonel Burr set some of the militia to repair the fences they had destroyed, and arranged them as well as time would permit; and having taken measures to secure the troops from surprise, and also for the protection of the cornfields, he marched immediately, with about thirty of the most active of the regiment, and a few of the militia, to ascertain the position and numbers of the enemy. About ten o'clock at night, being three miles from Hackensack, we got certain intelligence that we were within a mile of the picket-guards of the enemy. Colonel Burr then led the men into a wood, and ordered them to sleep till he should awake them, of which we had great need, having marched more than thirty miles since noon. Colonel Burr then went alone to discover the position of the enemy. He returned about half an hour before day and waked us, and told us that he was going to attack the picket of the enemy. That we had only to follow him, and then forbid any man to speak or to fire, on pain of death. He led us between the sentinels in such a way that we were within a few yards of the picket-guard before they suspected our approach. He then gave the word, and we rushed upon them before they had time to take their arms, and the greater part were killed. A few prisoners and some accoutrements were brought off without the loss of one man. Colonel Burr immediately sent off an express to Paramus, to order all the troops to move, and to rally the country. Our little success had so encouraged the inhabitants, that they turned out with great alacrity, and put themselves under the command of Colonel Burr. But the

enemy, probably alarmed by these threatening appearances, retreated the next day, leaving behind them the greater part of the cattle and plunder which they had taken. Colonel Burr was prevented from pursuing, by peremptory orders, which were received the day following the action, to join, without delay, the main army, then in Pennsylvania.

I served in this regiment all the time it was under the command of Colonel Burr, being about two years; after which he was called to take a separate command in Westchester. During the whole time he never permitted corporal punishment to be inflicted in a single instance; yet no regiment in the army was under better discipline, and I doubt whether it was equalled by any one.

**GEORGE GARDNER.**

**FROM LIEUTENANT ROBERT HUNTER TO GABRIEL  
FURMAN,**

**ESQ., MEMBER OF ASSEMBLY.**

New-York, 22d January, 1814.

**SIR,**

I have understood that an application will be made to the legislature by or on behalf of Colonel Burr, for remuneration for his military services during our revolutionary war. Having had the happiness to serve under him for more than two years, and having retained an unbounded respect for his talents and character, you will pardon me for asking your active support of

any thing which may be moved in his favour; for certainly, if any officer of the army deserved recompense, it is Colonel Burr.

He sacrificed his health, and underwent more fatigue and privations than any other officer of whom I had any knowledge. If I thought it could be useful to him or amusing to you, I would enter into details; but the facts are of general notoriety, and his superiority as a military man, as far as my knowledge extends, universally allowed.

I will however detain you while I relate a single incident, because it was the first of which I was a witness. I was attached as a cadet to Colonel Malcolm's regiment, then stationed in the Clove, when Burr joined it as lieutenant-colonel, being in the summer of 1777. Malcolm, seeing that his presence was unnecessary while Burr was there, was with his family about twenty miles distant. Early in September, we heard that the enemy were out in great force. Burr gave orders for the security of the camp and of the public stores, and within one hour after news was received, marched with the choice of the regiment to find the enemy. At Paramus the militia were assembled in considerable force, but in great disorder and terror. No one could tell the force or position of the enemy. Burr assumed the command, to which they submitted cheerfully, as he alone (though but a boy in appearance) seemed to know what he was about. He arranged and encouraged them as well as time would permit, and, taking a few of the most hardy of the men, continued his march towards the enemy. Two or three miles this side Hackensack, we learned that we were near the enemy's advanced guard. Burr chose a convenient place for the men to repose, and went himself to examine the position of the enemy. A little before daylight he returned, waked us, and ordered us to follow him. He led us silently and undiscovered within a few paces of the British guard, which we took or killed. From the prisoners we learned that the enemy were about two thousand strong. Without loss of time he sent expresses with orders to the

militia, and to call out the country; and I have no doubt but he would, within forty-eight hours, have had an army capable of checking the progress of the enemy, and of preventing or impeding their retreat; but they retreated the day following, and with every mark of precipitation. During these two days and nights the colonel did not lie down or take a minute's repose. Thus you perceive, my dear sir, that Burr, being more than thirty miles distant when he heard of the enemy, was in their camp the same night. You will agree with me that things are not done so nowadays.

Similar instances of activity and enterprise occurred in each of the four campaigns he served, and very frequently, during the winter, he commanded on the lines of Westchester. I repeat, that it will afford me pleasure to relate so much of these things as came to my own knowledge, if it would be of any use.

Malcolm was never a month with the regiment after Burr joined it; so that it was Burr who formed it, and it was a model for the whole army in discipline and order. He never, in a single instance, permitted any corporal punishment.

His attention and care of the men were such as I never saw, nor any thing approaching to it, in any other officer, though I served under many. It would be a disgrace to the country if such a man should be denied a liberal compensation, when it is too well known that he stands in need of it.

I shall consider myself as personally obliged by your exertions in his favour, and hope your colleagues will add theirs to yours. Please to show this letter to your colleagues, and to offer them my respects.

I am, very respectfully,

Your obedient servant,

**ROBERT HUNTER.**

The original order to join the main army in Pennsylvania, to which Judge Gardner refers in the preceding statement, is found among the papers of Colonel Burr, and is as follows:—

Headquarters, Peekskill, 27th September, 1777.

**SIR,**

I have just received a letter from General Washington, dated *thirty-four miles up Schuylkill*, wherein he informs me that General Howe's army had found means to cross Schuylkill several miles below his army; upon which he has ordered a further reenforcement from this post, of which corps you must join. You will therefore, upon the receipt of this, prepare to join General Parsons's brigade, whom I have ordered up from the White Plains. I shall endeavour to send some militia to guard the stores remaining in the Clove. Your baggage must go with you.

I am, sir, your very humble servant,

**ISRAEL PUTNAM, M. G.**

Immediately after Colonel Burr had surprised and captured the British guard, he received various complimentary notes from officers of the army requesting details. A short extract from one is given.

Peekskill, 20th September, 1777.

DEAR SIR,

I congratulate you upon the good fortune you met with in taking off the enemy's picket. We have had various accounts about the manner in which you executed the plan. The particulars I should be glad to hear from yourself.

Yours, &c.

T. YATES.

To Lieutenant-colonel A. BURR.

Colonel Burr, with his accustomed promptitude, as soon as he received the orders of Major-general Putnam, put his regiment in motion. On the second day of his march he received from General Varnum the following, directed to Lieutenant-colonel Burr, on his march to Morristown.

Cakeat, October 1st, 1777.

SIR,

I this moment received your favour of this date. The enemy have landed at Fowler's Hook in great force. I am apprehensive they mean attacking Fort Montgomery by the way of the Clove. I have sent my baggage and some forces there. The enemy must be attended to. You will therefore halt in the nearest place that is convenient upon the receipt of this. Keep a good look-out towards Newark, Elizabethtown, &c., or those places from whence they can march into Pumpton. Should you be in danger of being interrupted there, throw your party across the river in Pumpton, and defend the bridge, if practicable. If not, make the best retreat you can towards Morristown, &c.

But by no means proceed unless necessity urges, derived from the present object. In every thing else pursue your best discretion.

I am, sir, your humble servant,

**I. VARNUM.**

The following note from General Conway tends to prove, that although Burr was only a lieutenant-colonel in 1777, yet that he was actually received and treated as the commandant of his regiment, from which he was never absent. Colonel Malcolm, in general, was employed on other duty.

**FROM GENERAL CONWAY.**

29th October, 1777.

**SIR,**

I have received a letter from Captain Kearsley respecting the settlement of the rank of the captains and subalterns. I could not give him an immediate answer, because I was then attending a court-martial. I wish this matter was settled as soon as possible to the satisfaction of the officers of your regiment. The general officers being employed in several courts-martial, which, along with the camp-duty, will take up all their time, I think you had best apply to the adjutant-general. Know from him the manner in which the ranks of the Virginia and Pennsylvania officers have been settled, and arrange accordingly, at least pro tempore, the rank of your gentlemen.

I am, sir, your most obedient and humble servant,



## **T. CONWAY.**

The regiment joined the army in November, 1777, at Whitemarsh, in Pennsylvania, twenty miles from Philadelphia. Colonel Burr, in command of it, was stationed about half a mile in advance of the main body. After a few weeks, the army went into winter-quarters at Valley Forge. During the winter, Colonel Burr proposed to General Washington an expedition against Staten Island. He stated to the commander-in-chief that he was personally and well acquainted with many of the inhabitants in the vicinity of the island. That he believed they would join him as volunteers; and that he only asked two hundred men of his own regiment as a nucleus. General Washington declined granting the request. But subsequently, an unsuccessful attempt was made under the command of Lord Stirling.

Within eight or ten miles of Valley Forge, there was a narrow and important pass, known as the Gulf. A strong body of militia were stationed to defend it. They were in the habit of exciting in the camp false alarms; and the main body, in consequence, was frequently put in motion. When not put in motion, they were greatly disturbed, especially at night. These alarms generally resulted from the want of a rigid discipline. General McDOUGALL was at Valley Forge, and exceedingly annoyed. Of Burr, as a disciplinarian and a soldier, he entertained a high opinion; and recommended to Washington that he withdraw from this detachment Burr's seniors, as officers, and give him the command of the post, which was accordingly done. Colonel Burr immediately commenced a rigid system of police, visiting every night, and at all hours of the night, the sentinels; changing their position, &c. During the day he kept the troops under a constant drill. The rigour of this service was not adapted to the habits of militia, who had been accustomed to pass, in camp, a life of idleness, and to act as suited their individual whims and caprices. A portion of the most

worthless became restless, and were determined to rid themselves of such a commander.

Colonel Burr was notified of the contemplated mutiny, in which he would probably fall a victim. He ordered the detachment to be formed that night (it being a cold, bright moonlight), and secretly directed that all their cartridges should be drawn, so that there should not be a loaded musket on the ground. He provided himself with a good and well-sharpened sabre. He knew all the principal mutineers. He marched along the line, eying the men closely. When he came opposite to one of the most daring of the ringleaders, the soldier advanced a step, and levelled his musket at Colonel Burr, calling out—"Now is your time, my boys." Burr, being well prepared and in readiness, anticipating an assault, with a celerity for which he was remarkable, smote the arm of the mutineer above the elbow, and nearly severed it from his body, ordering him, at the same time, to take and keep his place in the line. In a few minutes the men were dismissed, and the arm of the mutineer was next day amputated. No more was heard of the mutiny; nor were there afterwards, during Colonel Burr's command, any false alarms. This soldier belonged to Wayne's brigade; and some of the officers talked of having Colonel Burr arrested, and tried by a court-martial, for the act; but the threat was never carried into execution.

That Colonel Burr joined the army at White Marsh, and was there in command of his regiment, the following application and order will show:—

Near White Marsh, Nov., 1777.

**SIR,**

The papers and clothing of the companies which have lately joined Malcolm's regiment are at Bethlem. The papers are now wanted; and several of the officers cannot appear decent until they receive other clothes:

for these reasons I would ask your indulgence for leave of absence, for two subalterns, six days. Their presence is not particularly necessary with their companies.

Respectfully your ob't serv't,

**A. BURR.**

Hon. General CONWAY.

This application General Conway returns, with the following endorsement:—

Colonel Burr is master to send such officers as he thinks requisite, in order to procure the papers wanted, and the clothes for the use of the regiment.

**T. CONWAY.**

While the army was at Valley Forge, in the winter of 1777-78, the difficulties between General Washington and General Gates, and their respective friends, became, in a great measure, matter of publicity. At this period there were two parties among the officers. Washington had his warm friends and supporters. Lee and Gates had theirs.

Colonel Burr was of the latter. The merits of the question will not be discussed; and the subject will only be referred to so far as Burr is concerned.

In the spring of 1776, at the request of the commander-in-chief, Burr joined his military family for a short space of time, but soon became dissatisfied and retired. On the 29th of August, 1776, the American army

retreated from Long Island. This retreat Burr had pressed upon Putnam, Mifflin, and others. In his letter to T. Edwards, [2] dated the 10th of August, nearly *three weeks* before it took place, he says: "They (the British) are to come through the Sound, and thus invest us by the North and East rivers. They are then to land on both sides of the island, join their forces, and draw a line across, *which will hem us in, and totally cut off all communication, after which they will have their own fun.*"

During the night of the retreat, Burr was actively engaged aiding McDOUGALL in the embarkation of the troops at Brooklyn; and, from a personal knowledge of the localities of it and the adjacent places, he imagined that he had rendered some service. It has been shown that, by his intrepidity and perseverance in the retreat from New-York, he rescued from impending danger the brigade of General Silliman. In neither of these cases was his conduct noticed by the commander-in-chief, either in general orders or otherwise. Young, ardent, ambitious, and of a fiery temperament, he thought that justice was not done to his efforts, and construed these, with other minor occurrences about the same time, into acts of hostility towards him. In September, 1776, therefore, his prejudices against General Washington became fixed and unchangeable; and to the latest hour of his life he recurred to the retreat from Long Island, and from the city of New-York, with acrimonious feelings towards the commander-in-chief. Whatever may be said to the contrary, as early as this period those prejudices were formed and confirmed. That General Washington placed no confidence in Burr, and that, for some reason, he was exceedingly hostile towards him, is equally certain. Whether his hostility commenced at this period is matter of more uncertainty. Events already noticed demonstrate that the general considered him an intrepid, efficient, and vigilant officer.

Thus, in 1777, Burr was the friend of Lee and Gates in opposition to General Washington. In the beginning of January, 1778, it was reported to

Burr that Lord Stirling had made some remarks respecting the manner in which the colonel had contributed to arrange the rank of his (Burr's) subaltern officers. Lord Stirling at this time commanded the division. It will be recollected that, a few weeks previous, Colonel Burr had proposed to the commander-in-chief an enterprise against Staten Island, which was rejected; but, immediately after, it was unsuccessfully attempted by Lord Stirling. The difficulty, therefore, in fact, between these gentlemen, grew out of the latter circumstance. On the 7th of January, 1778, Burr addressed Lord Stirling, requesting an explanation, which was promptly given in the following note, and thus the matter terminated.

Camp, January 8th, 1778.

**SIR,**

The receipt of your letter of yesterday's date not a little surprised me, for I can assure you that I have never made use of a word in censure of yourself, or of the court you mention. I some days ago ordered a return to be brought in of the names and rank of the officers of the division, independent of what the two courts were doing, and desired Major Monroe [3] to direct the brigade-majors to make them out as soon as possible: from this, I suppose, some mistake has arose, which I will call upon Major Stagg to explain.

I am,

Your most obedient humble servant,

**STIRLING.**

Lieutenant-colonel BURR.

Footnotes:

1. See Chapter VII.
2. See Chapter VII.
3. James Monroe, late president of the United States, then aid to Lord Stirling.

## CHAPTER IX.

Colonel Burr was a rigid disciplinarian, and in the performance of his duty made no difference between those officers who were his friends and those who were not; yet he never failed to adopt the most delicate and gentlemanly course, where, in his opinion, rigour became necessary. There are many documents tending to establish this fact, such as the following:—

Camp, April 10th, 1778.

My Lord,

In my weekly returns, your lordship may have observed that Captain Tom has been returned—*absent without leave*. As he had been long from the regiment, and no reasons had been assigned to me for his extraordinary absence, I thought myself in duty bound to make such report. Upon his return to camp, he has accounted for his conduct in a manner more satisfactory than I feared he could.

Unwilling to deal too severely with a valuable officer, and conscious of the impropriety of passing any seeming neglect in entire silence, I refer him to your lordship as the proper judge of his conduct and excuses.

My lord, you are acquainted with the character of Captain Tom. You have often heard me mention him with respect. Should his absence appear, in any

degree, to have arisen from inattention, I hope your lordship will treat it with all the delicacy which the conduct of a man of feeling and of spirit can desire.

I have the honour to be,

Your lordship's most obedient servant,

**A. BURR.**

FROM COLONEL MALCOLM.

Yorktown, June 16th, 1778.

**MY DEAR SIR,**

I have just now met with Captain Kearsley, which enables me to let you know that I am here, sent by General Gates to Congress on a variety of business.

I have consented to do duty as adjutant-general to the northern army, on conditions of holding my regiment, and that it should come to the northward. The first agreed to; the last according to events.

None of the sixteen additional regiments stand on the new establishment. Of the strongest, if ours comes within that description, it will be one. As *General Washington writes General Gates that he cannot conveniently spare you at this time*, I recommend your sending three or four officers to the State of New-York on the recruiting service. You know who will answer best, and who can be best spared; and to recruit for the regiment at large, I think I can provide you with some men.



As I have not time either to pass through, come, or to write any other of the officers, do tell them how I am circumstanced, and offer them my best respects. I am happy to hear that Major Pawling is better. I shall write from Peekskill very soon, and beg to hear from you.

I ever am, very sincerely, affectionately yours,

**W. MALCOLM.**

By the preceding letter it appears that "General Washington had written to General Gates that he could not conveniently spare Colonel Burr." The reason is obvious. It was at the very moment when Sir Henry Clinton was about to evacuate Philadelphia, and to retreat through New-Jersey. The commander-in-chief was unwilling at such a crisis to part with an efficient and gallant officer. On the 18th of June, Sir Henry Clinton, with his forces, left the city, proceeded to Gloucester Point, three miles down the river, and crossed the Delaware into New-Jersey. That day he marched as far as Haddonfield. The Americans crossed the Delaware at Corriel's Ferry, and halted, after a distressing march from heat and rain, within five miles of Princeton. During the preceding winter General Lee had been exchanged, and joined the army at Valley Forge.

The enemy's force was now estimated at between 9000 and 10,000, rank and file. The Americans at 10,600, exclusive of Maxwell's brigade, about 1200, and about 1200 militia. On the 24th of June, 1778, the commander-in-chief propounded to the general officers the question, "Will it be advisable to hazard a general action?" The answer was, "Not advisable; but a detachment of 1500 to be immediately sent to act, as occasion may serve, on the enemy's left flank and rear, in conjunction with the other continental troops and militia already hanging about them, and the main body to

preserve a relative position, to act as circumstances may require." Signed by Lee, Stirling, Greene, Fayette, Steuben, Poor, Paterson, Woodford, Scott, Portail, Knox.

Four days after, viz., the 28th of June, the battle of Monmouth was fought. It was on this occasion that General Washington ordered the arrest of General Lee: 1stly, For disobedience of orders in not attacking the enemy on the 28th of June, agreeably to repeated instructions; 2dly, For misbehaviour before the enemy on the same day, by making an unnecessary, disorderly, and shameful retreat; 3dly, For disrespect to the commander-in-chief, in two letters, dated the 20th of June. On the 12th of August the courtmartial, of which Lord Stirling was president, found Lee guilty, and sentenced him to be suspended from any command in the armies of the United States for the term of twelve months. The history of the battle of Monmouth, with all the consequences that followed, has long since been given to the world by the friends and the opponents of the respective parties. It is only necessary to state here, that Colonel Burr, on that occasion, was ranked among the supporters of Lee, and had himself real or imaginary cause of complaint against the commander-in-chief.

In this action Colonel Burr commanded a brigade in the division of Lord Stirling, composed of his own regiment and some Pennsylvanians, under the immediate command of Lieutenant-colonel Dummer. Gordon, in his History of the American Revolution, says, "The check the British received gave time to make a disposition of the left wing and second line of the main army in the wood, and on the eminence to which he had been directed and was retreating. On this were placed some batteries of cannon by Lord Stirling, who commanded the left wing, which played upon the British with great effect, and, *seconded by parties of infantry detached to oppose them, effectually put a stop to their advance.* The British, finding themselves

warmly opposed in front, attempted to turn the American left flank, but were repulsed."

Shortly after the action had become general, Burr discovered a detachment of the enemy coming from the borders of a wood on the southward. He instantly put his brigade in motion for the purpose of checking them. It was necessary to cross a morass, over which a bridge was thrown. He ordered Lieutenant-colonel Dummer to advance with the Pennsylvania detachment, and that he would bring up the rear with his own regiment. After a part of the brigade was over the bridge, Colonel Barber, aid to General Washington, rode up, and said that the orders of the commander-in-chief were that he should halt. Colonel Burr remonstrated. He said his men, in their present position, were exposed to the fire of the enemy, and that his whole brigade must now cross the bridge before they could halt with any safety. Colonel Barber repeated that the orders of General Washington were peremptory that he should halt, which was accordingly done, and the brigade, in their divided state, suffered severely. Lieutenant-colonel Dummer was killed; Colonel Burr's horse was shot under him; and those who had crossed the bridge were compelled to retreat.

The movements and the firing of the armies continued until dark. The Americans remained on the battle-ground, with an intention of renewing the attack in the morning. Burr's uniform practice was, when near an enemy, to be up at night, visiting his own pickets, and taking the necessary precautions for avoiding a surprise. The night preceding the action Colonel Burr was thus engaged, as it was known that the British would move at dawn of day, if not before, and General Washington had given orders to Lee, who was in the advance, to commence the attack as soon as they did move. The weather was intensely hot. Notwithstanding the fatigue which Colonel Burr had undergone during the night of the 27th and the succeeding day, yet he remained up the night of the 28th also. Sir Henry Clinton's

troops were employed in removing their wounded, and then marched away in such silence, that, though General Poor lay near them, their retreat was effected without his knowledge.

Exhausted with fatigue, and worn out for the want of repose, on the 29th, Colonel Burr lay down under the shade of some trees and fell asleep. When he awoke, he was exposed, and had been for some time, to the rays of the sun. He found himself unable to walk without great difficulty; and so severely was he afflicted, that he did not recover from its effects for some years afterwards. A stranger to complaints or murmurs when enduring pain, the real state of his health was unknown to even his brother officers. In this situation he was immediately ordered by General Washington, through Lord Stirling, to repair to Elizabethtown, on highly important and confidential business. The great object of the commander-in-chief was to ascertain, as far as practicable, the future movements of the enemy, Sir Henry Clinton having secured his retreat to the city of New-York. General Washington proceeded to New-Brunswick, at which place Lord Stirling was attending as president of the court-martial for the trial of General Lee. The following notes will explain the character of Burr's mission, and the confidence reposed in him by the commander-in-chief.

#### **FROM LORD STIRLING.**

Brunswick, July 4th, 1778.

**DEAR SIR,**

I have this moment received yours of yesterday's date. On showing it to General Washington, he approves of the progress of your inquiries, and desires they may be continued. But he particularly desires me to *send off this express to you*, to request that you will endeavour to get all the

intelligence you possibly can from the city of New-York: What are the preparations of shipping for embarkation of foot or horse?—what expeditions on hand?—whether up the North river, Connecticut, or West Indies? For this purpose you may send one, two, or three trusty persons over to the city, to get the reports, the newspapers, and the truth, if they can. We are just going to exhibit a grand champêtre and feu de joie, so must only say that

I am sincerely yours,

STIRLING.

FROM LORD STIRLING.

Brunswick, July 6th, 1778,

DEAR SIR,

I have your letter of yesterday's date. The court-martial, of which I am president, is adjourned to Morristown, which will oblige me to go there tomorrow. I must therefore desire you will direct your letters, with such intelligence as you may procure, to his excellency General Washington, who will be on the line of march with the army. In haste,

Your most obedient servant,

STIRLING.

FROM LORD STIRLING.

Brunswick, July 6, 1778.

General Washington desires me to state that he wishes you would employ three, four, or more persons, to go to Bergen heights, Weehawk, Hoebuck, or any other heights thereabout, convenient to observe the motions of the enemy's shipping, and to give him the earliest intelligence thereof; whether up the river particularly. In short, every thing possible that can be obtained.

Yours, &c.,

**STIRLING.**

**FROM TENCH TILGHMAN.**

Newark, July 8th, 1778.

**DEAR SIR,**

His excellency desires me to inquire whether you have received any information of the enemy's movements, situation, or design? He will leave this place about 4 o'clock this afternoon, before which he will expect to hear from you.

I am, dear sir, your most obedient,

**TENCH TILGHMAN.**

Having completed the business on which he had been despatched by the commander-in-chief, Colonel Burr proceeded to join his regiment, although his health was very bad. In a few days he received the following order:—

Camp, near Croton Bridge, 19th July, 1778.

Colonel Malcolm's regiment is ordered to march at two o'clock tomorrow morning, to the fort at West Point, on Hudson river, with the regiment commanded by Lieutenant-colonel Parker, which is to join on the road near Croton bridge. The commander of the two regiments will make all convenient despatch, marching ten miles a day, as water and ground will admit.

The Baron DE KALB.

Early in July, 1778, in consequence of Sir Henry Clinton having arrived in New-York with his army, much excitement and some apprehension existed in the upper part of the state respecting the tories. The legislature had previously adopted rigid measures on the subject, and it became necessary that an intelligent and confidential military officer should be designated to take charge of them. General Washington selected Colonel Burr for this purpose, The trust was one of a delicate character.

FROM ROBERT BENSON.

Camp, White Plains, 2d August, 1778.

SIR,

By an act of the legislature of the State of New-York, the commissioners for detecting and defeating conspiracies, &c., were directed to tender an oath of allegiance, in the said act prescribed, to certain persons, inhabitants of this state, who have affected to observe, during the present war, a dangerous and equivocal neutrality; and on their refusal to take the same,

that the said commissioners should cause them to be conveyed within the enemy's lines. In consequence whereof, sundry persons, to whom the said oath hath been tendered, and who have refused to take the same, were by the commissioners directed to rendezvous at Fishkill, on Monday next, in order to embark on board a sloop to be provided at that place for the purpose.

In order that this business might be conducted with as little danger as possible to the operations of the present campaign, his excellency Governor Clinton requested his excellency the commander-in-chief to appoint an officer of the army for the purpose; and you being assigned to this business, his excellency Governor Clinton hath directed me, in his name, to request you to repair to Fishkill on Monday next, &c.

If by any accident you should not find the commissioners at Fishkill, his excellency will be much obliged to you if you would ride up to Poughkeepsie, where the board are sitting.

I am, with great respect, yours, &c.,

ROBERT BENSON, Secretary.

P. S. Enclosed is the flag; and his excellency the governor desires you will fill the blank with the name of the sloop, and the names of the persons who may be put on board by the commissioners.

*At a meeting of the Board of Commissioners for detecting and defeating Conspiracies, held at Poughkeepsie, August 3d, 1778.*

Present—Mr. Platt, Mr. Harpur, Mr. Cantine, and Mr. Wynkoop.

The board having received a letter from his excellency Governor Clinton, dated at camp, White Plains, the second instant, informing that his



excellency General Washington had appointed Lieutenant-colonel Burr to conduct such persons as had refused to take the oath of allegiance to this state, prescribed by an act of the legislature thereof, within the enemy's lines; therefore,

*Resolved*, That Colonel Burr be served with a copy of the proceedings of this board against William Smith and Cadwallader Colden, Esquires, and Mr. Roeliff J. Eltinge; and that he is hereby authorized to remove each and every one of them within the enemy's lines, in such way and manner as his excellency General Washington may have already directed, or hereafter shall direct.

Extracts from the minutes, by order,

TEUNIS TAPPAN, Secretary to the Board.

FROM THE COMMISSIONERS TO COLONEL BURR. Poughkeepsie,  
August 3d, 1778.

**SIR,**

The commissioners for conspiracies being informed by his excellency the governor of your appointment to receive at Fishkill such persons as have refused to take the oath prescribed by a law of this state, and who, by virtue of the said law, are to be sent into the enemy's lines, by us appointed to carry the same into execution; in consequence of this, we hereby send you William Smith, Cadwallader Colden, Esquires, and Mr. Roeliff J. Eltinge, who have refused to take the said oath, and thereby have subjected themselves to a removal within the said lines, which removal you will be pleased to take charge of.

The bearer, Cornelius E. Wynkoop, Esquire, is one of the board, to whom we refer you for such particulars as may be necessary to adjust, the more effectually to enable us to convey, in future, such gentlemen as the above over into the enemy's lines.

We are, sir, with respect,

Your most obedient servants,

ZEPHA. PLATT, )  
ROBERT HARPUR, ) Commissioners.  
PETER CANTINE, Jun.,)

FROM THEODORE SEDGWICK.

Kinderhook, August 7th, 1778.

**MY DEAR SIR,**

I write you in haste by Mr. Van Schaack, [1] who will convey it to you should you be at West Point. This gentleman has, by long acquaintance, manifested such qualities as have much attached me to his interest; but, most unfortunately for his friends, has differed in political opinions from the body of the community in general, and from me in particular, in consequence of which difference (by means of the test act of this state) he is about to be removed to the city of New-York; and has been so obliging as to offer me his assistance in procuring for, and sending to me, a few family necessaries. Should it be in your power, I am very certain it would be an unnecessary request to desire you to lend me any assistance: nor need I desire you to render Mr. Van Schaack's short stay among you as agreeable as his and your circumstances will permit.

I most sincerely congratulate you on the happy prospect of a speedy termination to the war. I believe I shall visit the camp soon, in which case you will have the pleasure to see Mr. Edwards in company. I have, since I saw you, become the father of a second daughter. Pamela has had a most tedious and dangerous illness, but is, thank God, now, for her, very well. You may be sure she will be glad to be affectionately remembered by you.

Yours most sincerely,

**THEODORE SEDGWICK.**

It has heretofore been stated that Colonel Burr was of the Lee and Gates party in the army. A short note from Lee to Burr will show the poignancy of the general's feelings under the sentence of the court-martial, and the mortification and disappointment he experienced when Congress refused to reverse that sentence.

**FROM GENERAL LEE.**

October, 1778.

**DEAR SIR,**

As you are so kind as to interest yourself so warmly in my favour, I cannot resist the temptation of writing you a few lines. Till these two days, I was convinced the Congress would unanimously have rescinded the absurd, shameful sentence of the court-martial; but, within these two days, I am taught to think that equity is to be put out of the question, and the decision of the affair to be put entirely on the strength of party; and, for my own part,

I do not see how it is possible, if the least decency or regard for national dignity has place, that it can be called a party business.

I wish I could send you the trial, and will the moment I can obtain one. I think myself, and I dare say you will think on the perusal, that the affair redounds more to my honour, and the disgrace of my persecutors, than, in the warmth of indignation, either I or my aid-de-camps have represented it. As I have no idea that a proper reparation will be made to my injured reputation, it is my intent, whether the sentence is reversed or not reversed, to resign my commission, retire to Virginia, and learn to hoe tobacco, which I find is the best school to form a consummate *general*. This is a discovery I have lately made. Adieu. Dear sir, believe me to be your most

Sincerely obliged servant,

C. LEE.

After the battle of Monmouth, in June, 1778, Colonel Burr was constantly employed. His health, from the fatigues of that and the subsequent day, was greatly impaired. Early in October, he found himself, in a measure, unfit for active service. He left West Point, where his regiment was stationed, and repaired to Elizabethtown, in the hope that a few weeks of repose might prove beneficial; but in these hopes he was sorely disappointed. He then determined to ask a furlough, and retire from the army for a few months, provided the furlough was granted without his receiving pay. On this point he was very fastidious. By these feelings he was uniformly governed through a long life. He never sought nor accepted an office for the emolument it afforded. He wrote the commander-in-chief on the subject, as follows:—

## TO GENERAL WASHINGTON.

Elizabethtown, 24th October, 1778.

Sir,

The excessive heat and occasional fatigues of the preceding campaign, have so impaired my health and constitution as to render me incapable of immediate service. I have, for three months past, taken every advisable step for my recovery, but have the mortification to find, upon my return to duty, a return of sickness, and that every relapse is more dangerous than the former. I have consulted several physicians; they all assure me that a few months retirement and attention to my health are the only probable means to restore it. A conviction of this truth, and of my present inability to discharge the duties of my office, induce me to beg your excellency's permission to retire from pay and duty till my health will permit, and the nature of service shall more particularly require my attention, provided such permission can be given without subjecting me to any disadvantage in point of my present rank and command, or any I might acquire during the interval of my absence.

I shall still feel and hold myself liable to be called into service at your excellency's pleasure, precisely as if in full pay, and barely on furlough; reserving to myself only the privilege of judging of the sufficiency of my health during the present appearance of inactivity. My anxiety to be out of pay arises in no measure from intention or wish to avoid any requisite service. But too great a regard to malicious surmises, and a delicacy perhaps censurable, might otherwise hurry me unnecessarily into service, to the prejudice of my health, and without any advantage to the public, as I have had the misfortune already to experience.

I am encouraged in this proposal by the opinion Lord Stirling has been pleased to express of the justice of my request;—the sense your excellency must entertain of the weak state of the corps in which I have the honour to command, and the present sufficiency of its respective officers. I purpose keeping my quarters at this place until I have the honour of your excellency's answer, which I wait with impatience.

I am, with respect,

Your humble servant,

**A. BURR.**

His Excellency GEORGE WASHINGTON.

FROM GENERAL WASHINGTON.

Headquarters, Fredericksburgh, 26th October, 1778.

**DEAR SIR,**

I have your favour of the 24th. You, in my opinion, carry your ideas of delicacy too far when you propose to drop your pay while the recovery of your health necessarily requires your absence from the service. It is not customary, and it would be unjust. You therefore have leave to retire until your health is so far re-established as to enable you to do your duty. Be pleased to give the colonel notice of this, that he may know where to call upon you should any unforeseen exigency require it.

I am your obedient servant,

**G. WASHINGTON.**

On the receipt of the above letter, Colonel Burr repaired to West Point and joined his regiment, notwithstanding the shattered state of his constitution. He was unwilling to absent himself from the service, and at the same time receive pay. Colonel Burr was now in his twenty-third year, and yet so youthful was his appearance, that strangers, on a first introduction, viewed him as a mere boy. As evidence of the fact, he has often related with great good-humour this anecdote. While he was commanding at West Point, a countryman had some business to transact with him. He requested admittance to Colonel Burr. The orderly sergeant conducted him into headquarters.

"Sir," said the countryman, "I wish to see Colonel Burr, as I have something to say to him."

"You may proceed. I am Colonel Burr."

"I suppose," rejoined the honest farmer, "you are Colonel Burr's son."

The sentinel at the door heard and repeated the conversation, and Burr was often afterwards designated as Colonel Burr's son. He remained at West Point until December, when he was removed to Haverstraw by the orders of General McDOUGALL, and had the command of a brigade, consisting of Malcolm's regiment, and a portion of Spencer's and Patten's regiments. He was subsequently ordered to take command on the lines in Westchester county, a most important and not less perilous post. In December, he received from Mrs. J. Montgomery, the widow of General Montgomery, a letter, as follows :—

**FROM MRS. MONTGOMERY.**

Rhinebeck, December 25th, 1775.

**SIR,**

I take the liberty to enclose a list of things Mr. Smith was so kind as to send me from New-York by the return flag. The captain of the flag, of whom I made some inquiries, professed to know nothing of them, and referred me to Colonel Burr, who might know something of the matter.

I am almost ashamed to take up your attention about so small an affair; but the difficulty that attends obtaining the least article of dress, must, I think, plead my apology. Besides, having this opportunity, I would wish to assure Colonel Burr of the very great respect I have for those gentlemen whom General Montgomery professed to esteem; among which, sir, I am told you was not the least. To be by him distinguished argues a superior merit, and will ensure you a most sincere welcome at Rhinebeck should it lie in your way.

I am, sir, with esteem, yours, &c.

**J. MONTGOMERY**

**COLONEL BURR.**

On taking command of the lines in Westchester, Colonel Burr received from brother officers congratulatory letters, so distinguished was the station considered. Colonel Udney Hay, under date of the 29th of January, 1779, says, "As you have now got the post of honour, accept of my sincere wishes that you may reap the laurels I believe you deserve."

As soon as Burr arrived at the camp, he commenced a system of reform and discipline. Previous to his arrival, there was exhibited a most disgraceful scene of plunder, and sometimes of murder, along the whole



frontier. This he promptly checked; and, in all his efforts to accomplish this end, he was sustained by General McDOUGALL.

TO GENERAL McDOUGALL.

Camp, White Plains, 12th January, 1779.

Dear Sir,

The enclosed return will show you the deficiency of officers and men at this post. Above the complement for the parties, I wish to have a guard for myself, and a commissary's guard. To detail men for these purposes will interfere with the rotation of duty.

I arrived here on Friday evening. The weather on Saturday was too severe and stormy to permit me to make myself acquainted with the post and disposition of the troops. I improved yesterday for those purposes, and found it necessary to alter the position. I have moved the left three miles forward, and the two centre divisions so as to allign with that and Tarrytown. The posts now possessed by these detachments are,

*First.* Tarrytown.

*Second.* Isaac Reed's and John Hammond's, near Sawmill river.

*Third.* Starr's and Moses Miller's, one and a half miles in front of Young's.

*Fourth.* Merritt's and neighbouring houses, near Farmer Oakley's.

By this arrangement the extent of my command is contracted three miles, and the distance from my left to the Sound is three miles less than before.

The men more compact, and the posts equidistant from the enemy. While I was upon the business above mentioned, Colonel Littlefield and Mr. Thomas visited Colonel Enos and Lieutenant-colonel Holdridge, to enforce the necessity of an immediate junction, to complete the security of the country upon the present plan; but these gentlemen say they have no orders to cross Biram river. They have their quarters in Horseneck, and some troops are north of that place. Thus, notwithstanding my endeavours, the country will be unprotected, and I am insecure.

I enclose you the arrest of a Captain Brown. I am sorry for the necessity of any thing which may have the appearance of severity; but the avowal of behaviour so very unbecoming constrained me to it. The required parties of militia will, I believe, join me this week. I shall write you about iron-bound casks in a few days. There is not a hide, the property of the country, in all this quarter, except fourteen in the hands of the commissary of hides. I shall, as soon as possible, make myself acquainted with the officers of the militia. I have sent to Bedford, but have no answer, about rum, &c.

I send the names of a few of Malcolm's officers, whom I would wish were ordered to join me immediately. Some of them, I believe, are absent. Lieutenant-colonel Littlefield had it in intention to go with most of the men this evening on an expedition to West Farms and Morrisania. Abstracted from your verbal instructions, the plan appeared to me premature. The men here are not half officered; the country by no means sufficiently reconnoitred; the force very inadequate, even for covering parties. As there was a prospect that each of the inconveniences would shortly be removed, I advised to defer it. To convince them that my disapprobation arose from no jealousy of honour, I told Colonel Littlefield that if the enterprise should hereafter be thought more advisable, I would leave to him the execution: if I should think proper to send him on that command, I would act with the covering party. One hundred and fifty continentals and fifty militia was the

force proposed for this evening; but as there are a number of volunteers on the spot, I consented to and encouraged an excursion to Frog's Neck, under Colonel Littlefield. I expect little from it, but have not so much to fear.

I hope Mr. Stagg succeeded in his application to Mr. Erskine. A draught of the country would be of great service to me. In your instructions about plunder, you direct that all the fat horses, &c. in the hands of disaffected persons, "lying certain courses," are to be taken, on the supposition that they are designed for, or will fall into the hands of, the enemy. As this mode of determining may be the source of much altercation, I could wish, if you thought proper, the seizable property might be designated by a certain number of miles below our lines, or below the line intended to be formed from Tarrytown, through White Plains, to Sawpits or Rye.

The two parties from Paterson's brigade will most of them want shoes in ten days. It is my opinion that a great part of those who came last with new shoes, will not, at the expiration of the time, be able to return for the want of shoes. Those they now have are of the slightest French make; many already worn out. If these men must be again relieved by others better shod, and they again in a few days, there will be such an endless marching and countermarching as will harass the troops, and wear out more shoes than all the duty performed here. Would not these evils be in some measure remedied by sending me a parcel of shoes? I will keep an exact account of the regiment they are delivered to.

Your most obedient servant,

**A. BURR.**

TO GENERAL McDOUGALL.

White Plains, January 13th, 1779.

SIR,

All the horsemen were so infatuated with the itch for scouting, that I had not one to despatch with the letter herewith sent. Colonel Littlefield, with the party, returned this morning. They brought up one prisoner. I shall send him up with another grand rascal to-morrow. There are evidences enough against Merritt to hang a dozen such, but many of them dare not appear at present.

Notwithstanding the cautions I gave, and notwithstanding Colonel Littlefield's good intentions, I blush to tell you that the party returned loaded with plunder. Sir, till now, I never wished for arbitrary power. I could gibbet half a dozen *good whigs*, with all the venom of an inveterate tory. The party had not been returned an hour, before I had six or seven persons from New-Rochelle and Frog's Neck, with piteous applications for stolen goods and horses. Some of these persons are of the most friendly families. I am mortified that not an officer on the ground has shown any activity to detect the plunderers or their spoil. I have got three horses, and a number of other articles, and have confined two soldiers who had them in possession. But these are petty rascals. I feel more pity than indignation towards them. They were honest men till debauched by this expedition. I believe some officers are concerned. If I can be assured of that (and I shall spare no labour), you may depend on seeing them with a file of men. The militia volunteers excelled in this business. If I detect them I shall treat them with the same rigour, unless you advise to the contrary. I wish you would give me directions. I have at least a fortnight's work before me to undo the doings of last night.

This day I enter on my command. Truly an ominous commencement. Is this the promised protection? I read in the face of every child I pass; for the

whole *honour* of the expedition redounds to me. But enough of this; more perhaps than you will thank me for. Webbers was of the party, and can give you a history. I now perceive from whence arose the ardour for scouting. I suppose the sergeants' parties of militia, when they join me, will be subject to courts of the line.

Your most obedient servant,

**A. BURR.**

FROM MAJOR PLATT, AID TO GENERAL McDOUGALL.

Peekskill, January 14th, 1779.

**SIR,**

The general has received yours, and directs me to inform you that such assistance will be granted as is necessary for the protection of the country and your honour.

He desires that no expedition be set on foot till you hear further from him. He has no objections to Colonel Littlefield's remaining with you till the arrival of more officers.

Handcuffs will be sent you as soon as they can be made. If you have a number of prisoners at any time to send up, let them be fastened right and left hands, and the guard cut the strings of their breeches, and there will be no danger of their making their escape, as they will be obliged to hold them up continually with one hand.

Last evening Josiah Fowler made his escape from the provost; possibly he may fall into the hands of your scouts or patrols. If he does, please to

take the best care of him.

The general will write you fully by the captain who will soon re-enforce you. One hundred pair of shoes will be sent you. The map of the country is herewith transmitted, for the purpose of taking a sketch of it. You will please to do it as soon as possible, and send it up by a careful hand. The general does not wish you ever to carry it from your quarters.

Your most obedient servant,

RICHARD PLATT, Aid-de-camp.

FROM GENERAL McDOUGALL.

Headquarters, Peekskill, January 15th, 1779.

**MY DEAR SIR,**

Your favours of the 11th and 12th, with their enclosures, came duly to hand.

I am much mortified that Captain Brown should have merited your putting him in an arrest. But you have done your duty, for which accept my thanks.

If an officer commanding an outpost will not be very vigilant, he exposes his party to be butchered, as the unfortunate Colonel Balor lately experienced.

I am very sorry the militia have conducted so disorderly; but I wish you to deal tenderly with them, as they are brave, and are very sore, by the

plundering of the tories. But support the honour of our arms and your own, by giving redress to the innocent and defenceless.

As the principal objects of your command are to protect the good people of these states, and prevent supplies going to the enemy, you will not send out any parties, or make any excursions, but what are necessary for intelligence, and the preservation of your parties, till further orders. Your own ideas on this subject fully meet my approbation. In the meantime, let all the officers and men of your command, who are unacquainted with the ground, traverse it alternately, from flank to flank, and as many miles in front as you may judge necessary. The position of the whole I leave to your own discretion, as circumstances shall arise. A good captain, and twenty picked men, of Nixon's, with two drums, accompany this, to re-enforce your left, and the orders are despatched to Major Pawling for the officers you wrote for. One hundred pair of shoes\_ will be sent to you by this snow.

Send up all Burgoyne's men, with a good corporal and small party of the nine-months men, with the first deserters or prisoners. The sergeants' parties of the militia who are to join you, will, by their engagements, be under the continental articles of war. If any of the militia who may go out on scouts or parties with yours will not submit to the articles of war and your orders, don't suffer them to go with them, nor to appropriate any plunder; but order it to be given to the continental troops, and those who shall submit to those articles.

If any of the militia maraud, send them up to me, with a guard. They must not be suffered to violate civil and military law. The legislature is the proper authority to enable them to make reprisals. For whatever disorders they commit in front of your lines, will be placed by the enemy to your account.

In all doubtful questions which may arise on my orders as to the limits or legality of plunder in your front, *I authorize you to be the sole judge*. In the exercise of this trust, it is my wish you should lean to the honour of our arms.

A surgeon is directed to attend your party; when he arrives, please to advise me of it, that I may be relieved from all anxiety about you and your corps. If you are not supplied with rum before a quantity of it arrives here, we shall not forget you. If your horsemen are mounted and appointed, as well as your horse-guides, they will receive the same pay. If the oxen at Mr. Hunter's are not in working order, put them in the care of your forage-master till they are.

If you can get the articles taken from the inhabitants in the late expedition restored, let the militia off for that offence. When you get things in train, I flatter myself you will not have any fixture trouble with them. But the officers of the regular troops must be rigorously dealt with, according to our martial law.

As you and the commissary will be in the rear of the whole, the nine-months men, worse shod than the other troops, may serve till I have more leisure to complete your corps.

Don't omit sending to me all the newspapers you can procure. I am so borne down with correspondence, that I can only add that

I am your affectionate humble servant,

ALEXANDER McDOUGALL.

P. S. I fear the pickets from your parties are too far advanced from them. The distance ought not to exceed half a mile at night; and the quarters of the



pickets should be changed every night after dark. Frequent patrols from each give the best security.

I submit it to your consideration whether it would not be of service to have a quantity of old rags collected at each party and picket, for the patrols to muffle their feet with in frosty weather when there is no snow on the ground. It will prevent their being heard by the enemy, and yours will hear those of the enemy if there are any near them.

A. M'D.

Footnotes:

1. There were two families of Van Schaicks in the State of New-York. They spelled their names differently. The family of Colonel *Van Schaick* were revolutionary whigs. The *Van Schaacks* were adherents of the crown.

## CHAPTER X.

### TO GENERAL MALCOLM.

White Plains, 21st January, 1779.

DEAR SIR,

Mr. Benjamin Sands, and three other persons from Long Island, banished for malepractices, wait on you with this. Benjamin Sands, jun. appears to be a man of good understanding. He can give you a detail of their sufferings.

Captain Black and three subalterns of Malcolm's regiment joined me yesterday.

William Burtis goes under guard to you to-morrow. Also a Garret Duyckman, whom I took upon information of Burtis. I knew of Burtis having drove cattle before the receipt of your letter. Of his being a spy I know nothing. Burtis wishes to procure favour by giving information. I enclose his confession to me, that you may compare it with his story to you. He has not told me all he knows, I am convinced. I can secure Elijah Purdy any time if you direct. There is no danger in delaying till I can hear from you. I wish to clear the country of these rascals. It would be of infinite service to hang a few up in this neighbourhood.

The two parties from Nixon's brigade, which came under sergeant's last week, are so distressed for clothes, that I am obliged to send them to their regiments. They came provided but for one week. Lieutenant Wottles marches them up. I wish him to return with the re-enforcement. I have sent the corporal and sixty-nine men to Bedford. I have now about 170 privates. A single company, and twelve from Hammond's regiment, join me to-day. That is his complement.

A commissary of hides at this place can furnish me with shoes as I want them, if you will give an order for that purpose. He delivers none without a general order. I can purchase rum here at twenty dollars per gallon. There is no commissary of purchases.

There are a number of women here of bad character, who are continually running to New-York and back again. If they were men, I should flog them without mercy.

It was the indolence of the commissary, and not the real scarcity of wheat, which alarmed me. I shall not trouble you again on the score of flour. I send you two papers by the sergeant.

Yours respectfully,

**A. BURR.**

FROM GENERAL McDOUGALL.

Peekskill, January 22, 1779.

Sir,

There are reasons, which I shall explain to you at a proper time, why —— should not be sought after. Make a great noise about him; abuse him as the vilest of horse thieves, and a spy for the enemy; but send no parties after him. If you are told where he is, turn off the matter by some pretext or other. Don't carry this out on party, or out of your quarters to any unsafe place.

Yours affectionately,

ALEXANDER MCDOUGALL.

FROM WILLIAM PATERSON.

January 27th.

I am at the Hermitage, my dear Burr, and cannot forbear writing you a few lines, although I expected, before this time, to have been favoured with a letter from you. Mrs. Prevost informs me that there is the most flattering prospect of your soon being reinstated in your health. The intelligence gives me real pleasure, and the more so, because, until Mrs. Prevost told me, I had no idea of your disorder being so rooted and dangerous. May health soon revisit you, my good friend; and when it does, may it continue with you for years. I am pleased with the hope of seeing you in Jersey early in the spring. I shall be this way again in March, when perhaps I shall meet you at this place. I write this standing in the midst of company. I am called off to court, and therefore, for this time, adieu.

WILLIAM PATERSON.

FROM MAJOR PLATT, AID TO GENERAL MCDOUGALL.

Peekskill, January 26th, 1779.

SIR,

Captain Wiley, of Learned's brigade, will hand you this. He brings with him forty men, I believe as good as any in the army. 'Tis the general's intention that Nixon's, Paterson's, and the late Learned's brigades, shall each furnish a party of sixty. You will please, after selecting the best men for your parties, to order all the rest (save your own and commissary's guard) to join their corps, as they complain the duty is hard above. Either Captain Williams or Spur must leave you, as Captain Wiley will command the party from Learned's. If there are three subs for each party exclusive of those from your own regiment, you can detain the whole of the subs of other brigades or not, as you like.

Kearsley has not yet joined. The general will review all your letters in a day or two, and give them full answers.

I am your most obedient servant,

RICHARD PLATT, Aid-de-camp.

TO GENERAL McDOUGALL.

White Plains, January 29th, 1779.

DEAR SIR,

I had this day the favour of yours by Lieutenant Rost. The same gentleman brought me a re-enforcement of thirty-nine privates, and a

proportion of officers. This enables me to send to camp a few of the worst provided of the nine-months men. The returning party takes up the prisoners mentioned in my last, and a deserter. Two more of Malcolm's officers have joined me.

I enclose you a copy of a letter from Colonel Holdridge. The enterprise appears to me something romantic; but I have acquainted Colonel Holdridge of the steps I shall take should it prove serious, and have appointed a place near this to meet him, if he thinks it necessary. The number, disposition, and apparent intentions of the enemy will point out our duty. I am this evening told, by good authority, that Emerick is re-enforced, either by volunteer or enlisted refugees, to the amount of 4 or 500, and that there are strong symptoms of an excursion. I shall pay due attention to these reports and authorities.

These two days past I have taken a particular view of the country and roads from White Plains to Mamaroneck, Rye, and Sawpits. I find it much easier protected, and more secure, than the western part of this county. From the Bronx to Mamaroneck river, through White Plains, is three miles. There are very few fords or bridges on either of those rivers. Might it not be of service to draw a line, if but for a few days, from Bronx to Rye, or Mamaroneck? The Purchase would be certainly a ridiculous post.

The map is herewith sent. Lieutenant Chatburn, who has business at West Point, will deliver this.

Yours respectfully,

**A. BURR.**

FROM GENERAL McDOUGALL.

Headquarters, Peekskill, 6th February, 1779.

**MY DEAR SIR,**

I have devoted part of this night to review your letters, and to give them some kind of answers. I can only mention ideas. I leave you to dilate them.

The bearer is one of the sentries who was partly the occasion of the late misfortune. I have reproved them severely, which I hope will have the desired effect. For the future, order the sentry who does not fire the alarm one hundred lashes, and the like number to any who shall part with his arms without its being wrested from him by the enemy; and a reward of twenty dollars to any non-commissioned officer or soldier who shall bring in such arms. Publish this in orders.

I am fully sensible of your embarrassments and difficulties, for want of vigilant officers and discipline. Be it your honour to surmount them. Accept of my thanks for your attention to the service. Order one pound and a half of flour or bread, and the like quantity of meat, to each man, till the first of April. The duty is hard, and exercise increases the appetite. Will it not advance the service to send you down some biscuit? Give Commissary Leake no rest without vegetables. His guard will be relieved by a militia one. How many sergeants' parties have you? Your guard and that of the commissary will be taken from the brigades, as 120 from Paterson's is to 60 from the others. In returns, designate the strength from each brigade. The regiments whose men have no bayonets, some means will be devised to furnish them. Heavy packs should not be at the stated quarters. Fix a day beforehand when you will hear the complaints of the disaffected. If any come on other days, give them thirty-nine lashes first; wait the effects of this discipline.

The oath of allegiance is no criterion of characters, nor the want of a certificate thereof an evidence of a person's being disaffected. Uniform character is the best rule to judge. Send up under guard all women who stroll to New-York without leave. But cause them to be well searched by matrons for papers *immediately* when they are taken; hair, caps, stays, and its lining, should be well examined. Do the like to those going down. Send up the evidences against Bettice. I approve your manner of treating Captain Williams. I did not yet intend the hard money taken by him should be distributed. But, if it is done, let it remain so. In future, no hard money should be distributed. You will see the use I intend it for in a few days. I am sure it will divert you. I hope soon to make up another party of sixty. If Lieutenant Freeman is not returned to you, I shall send for him. Are the wagons you mentioned some time ago returned? What is become of the rifles? I want them much for the servants who go out with me on horseback. All returning parties should march together till they arrive at the cantonment of the first corps, then with their respective officers. This will prevent disorders.

After rain or snow, I wish you to inspect the arms, and order them, in your presence, to discharge them at a mark. The few cartridges spent in this way will be well disposed of. Colonel Putnam is marched to the mouth of Croton. Greaton's, in two or three days, moves near Pine's bridge on that river. I think the present scarcity of bread will prevent a movement of the enemy with regular troops. Major-general Putnam is right in having the militia of Fairfield ready, if it has not the effect on them, like that of the boy and the wolf in the fable. If Ensign Leeland is still on the lines, send him up as an evidence against Captain Brown.

A sea-captain, who, with three others, made their escape from New-York the night of the 4th instant, says fourteen sail of the Cork fleet had arrived last Sunday.



I am your affectionate

ALEXANDER McDOUGALL.

FROM GENERAL McDOUGALL.

Headquarters, Peekskill, 7th February, 1779.

MY DEAR SIR,

I directed Major Platt, some days since, to inform you, no provision of any kind should be suffered to go below you till further orders. Please to announce this to the justices. You have herewith a flag; fill up the blank. On its return, desire the officer to call at Colonel Phillips's for any papers or catalogues of books which may be left there for me. The letter to Mr. Delancey to be left with the enemy's officer on his advanced post. Cast your mind on the best means of sweeping Westchester and West Farms of the tories when it is good sledding, supposing two regiments to cover you. But this under the rose.

Gonsalez Manuel, the bearer of this, brings with him John Broughton, a prisoner of war, who is exchanged. You will please to order him kept at a convenient distance in the rear till the flag goes in, when he is to be sent and delivered to the commanding officer of the advanced post. A receipt must be taken for him and transmitted to me.

Affectionately,

ALEXANDER MCDUGALL.

FROM MAJOR PLATT.

Peekskill, February 23d, 1779.

Dear Burr,

In yours of yesterday you requested particular care of the enclosed, but there was none. Malcolm left this yesterday for Haverstraw. He intends, with Major Pawling, to pay you a visit by water, and perhaps it will be to-day. I think there is some probability of his relieving you. At any rate, you will be relieved by the time you wish.

As the general writes fully by this conveyance, I shall not be so particular as I otherwise would. Cammell will be down shortly to pay off accounts. One dollar per day is allowed for a saddle-horse. Your certificates to the Van Warts will entitle them to their pay, be it what it may.

The general has ordered Williams and Wattles to return the hard money to him. It will be put in your hands. Love to Roger, when he comes. Compliments to Malcolm's lads and Benson.

With singular affection,

R. PLATT.

FROM GENERAL McDOUGALL

Headquarters, 23d February, 1779.

MY DEAR SIR,

Your several favours have been handed to me. I have not time now to answer them fully. It will, however, be done by Major Hull, who is ordered down to assist you. All your wishes will be gratified. One hundred and twenty picked men, with bayonets, will reach you to-morrow. Send your commissary up for rum. Let him call on me.

I am yours,

ALEXANDER McDOUGALL.

FROM GENERAL McDOUGALL.

Headquarters, 15th February, 1779.

SIR,

Your favour of the 12th came to hand with the prisoners. I have long known Ackerly was up, and his business, but did not think his present situation of sufficient importance to have him taken by K. Mr. Platt will inform you how I intend to supply you with bayonets. He reached you, I suppose, yesterday evening. I intend to send down the remains of Colonel Poor's regiment for a few days, to cover a forage making by Mr. Hayes near Mamaroneck; and shall send by them public arms, with bayonets, to be exchanged for yours which want them. No good officer or man now below with you must be relieved till further orders. Give the officers of Poor's all the advice and assistance you can. The money taken from Ketor will be divided among the officers and men in such manner as you think proper. I shall send them down six for one when I can raise cash.

Greaton's is at Pine bridge. Nixon moves in two days to support Putnam. The stated express is on this side Croton, at his own house. His name is

John Cross, a refugee from New-York. Give me the earliest advice of any appearance of a movement of the enemy on the river. Mrs. Pollock was detained with the late bad weather two nights. She left this at eight this morning.

I am, sir, yours, &c.,

ALEXANDER McDOUGALL.

FROM MAJOR PLATT, AID TO GENERAL McDOUGALL.

Headquarters, 25th February, 1779.

**SIR,**

The general wishes you to detain the best officers and men, for five complete parties of sixty: and, as soon as Major Hull can be made acquainted with your posts, and the nature of your command, he desires you will ride up to headquarters if there is no probability of a movement from below, and he will concert with you such measures as shall be thought expedient.

The combustible balls are not yet come to hand. Five or six boxes of ammunition will be sent down to Tarrytown by water the first opportunity. 'Tis necessary that Dr Eustis, if not at the Plains, should be sent for.

I am your obedient servant,

RICHARD PLATT, Aid-de-camp.

P.S.—Please to inform the general whether Colonel Poor's men have accomplished the business they were sent upon or not.

FROM GENERAL McDOUGALL.

Headquarters, Peekskill, 26th February, 1779.

**SIR,**

I received your letter of this day. Colonel Putnam is ordered to march and join you, and to act as circumstances shall cast up. Five boxes of ammunition are ordered to be carried to you immediately from King's ferry, by water. Leave a small party to receive it, and a cart to carry it where you shall order it. As the strength of the enemy is not mentioned, I can give no other orders.

Yours, &c.,

ALEXANDER McDOUGALL.

FROM GENERAL McDOUGALL.

Headquarters, 27th February, 1779.

**MY DEAR SIR,**

Your favour of yesterday reached me at 8 P.M. It was immediately answered. Colonel Putnam was ordered to march and join you; he has taken Nixon's regiment with him. Groaton's was put in motion at the same time, to join the brigade, if the enemy did not continue to advance in Connecticut. At half past ten of the same evening, five boxes of ammunition was sent to you from King's ferry, by water, with orders to keep close in shore, for fear of accidents. I hope it has reached you. Your letter of this day, at 7 A. M., came to hand an hour ago. From the reputed strength of the enemy, I am pleased with your position. I think it promises success and laurels. I hope

Bearmore will smart for his temerity. You are all too remote from me to render orders expedient. Circumstances must direct your movements. If the enemy *move*, or appear in *force* on the river, or a movement on it in force should *apparently* be intended, send up all Paterson's detachments by *forced* marches. I commit you and your corps to the Lord of Hosts. Greateon has four boxes of spare ammunition. He will be on the North Castle road to the Plains.

Yours affectionately,

ALEXANDER McDOUGALL.

FROM GENERAL McDOUGALL.

Headquarters, Peekskill, 6th March, 1779.

SIR,

This will be delivered to you by Mr. John Pine, who acted last campaign as a horse-guide. He is a true friend to the country. Whenever he shall get properly mounted, and reports himself to you for service, give him a certificate of the day, and employ him.

Enclosed you have a list of horse-thieves and others who act very prejudicial to our cause. I wish to have them taken and sent up here. Perhaps it will be most eligible to make the attempt on all at the same time. But I do not wish to retard the forage on your left, as those posts are in great want of that article.

I am, sir, your humble servant,

ALEXANDER McDOUGALL.

FROM GENERAL PUTNAM.

Camp, Horse Neck, 9th March, 1779.

SIR,

I have received a letter from Colonel Emerick (British), informing me that one Butler, who has been a prisoner in New-York, being unable to travel on foot, obtained of Colonel Emerick a dragoon and two horses to conduct him some part of his way in the country. That Butler made the dragoon drunk, then brought him off, together with the horses. The whole of which he, in his letter, makes a demand to be returned.

Colonel Emerick has been misinformed as to Butler's acting so faithless. The truth of the matter is, that Butler wanted the dragoon to return with the horses, but that he (the dragoon) refused to do, and swore he would never return. I would advise you by all means to send the dragoon to Colonel Emerick in irons, together with the horses, as a refusal would be contrary to all public faith.

I am, with the greatest respect,

ISRAEL PUTNAM.

FROM GENERAL McDOUGALL.

Headquarters, Peekskill, 11th March, 1779.

SIR,

Yours of the 9th has reached me. If the militia of Colonel Drake's are good men, arm them of General Paterson's, and I will replace them to him.

Take the receipts of every man who shall be armed by the public, and send them to me. The old general is not a civilian. Send Colonel Emerick the enclosed copy of the horseman's deposition. Stop no provisions, when small quantities answer for the purpose of ——-. The plunderers will be punished on the lines, but tried here. The names of the witnesses are wanting. What you wrote for, to answer certain purposes, shall be collected as soon as possible.

Give me the true history of the facts relative to the mare sold by Wattles. He quibbles. Did he know the printed orders?—was she sold conformable? The paymasters will be ordered down, and soap shall be sent.

In haste, yours, &c.,

ALEXANDER MCDOUGALL.

The preceding correspondence is evidence of the military character of Colonel Burr, and his standing with General McDOUGALL. Although his rank was only that of a lieutenant-colonel, yet he was constantly in the actual command of a regiment, and frequently of a brigade. His seniors were withdrawn from the post (which was generally a post of danger) where he was stationed; or detachments were taken from different regiments so as to make up for him a separate and independent command. No man had a better opportunity than Samuel Young, Esq., of knowing Colonel Burr's habits and conduct while stationed in Westchester. Mr. Young was at one time a member of the state legislature, and for many years surrogate of the county. The following letter contains some interesting details.



## SAMUEL YOUNG TO COMMODORE VALENTINE MORRIS.

Mount Pleasant (Westchester), 25th January, 1814.

DEAR SIR,

Your letter of the 30th ultimo, asking for some account of the campaign in which I served, under the command of Colonel Burr, during the revolutionary war, was received some days ago, and has been constantly in my mind. I will reply to it with pleasure, but the compass of a letter will not admit of much detail.

I resided in the lines from the commencement of the revolution until the winter of the year 1780, when my father's house was burnt, by order of the British general. The county of Westchester, very soon after the commencement of hostilities, became, on account of its exposed situation, a scene of deepest distress. From the Croton to Kingsbridge, every species of rapine and lawless violence prevailed. No man went to his bed but under the apprehension of having his house plundered or burnt, or himself or family massacred, before morning. Some, under the character of whigs, plundered the tories; while others, of the latter description, plundered the whigs. Parties of marauders, assuming either character or none, as suited their convenience, indiscriminately assailed both whigs and tories. So little vigilance was used on our part, that emissaries and spies of the enemy passed and repassed without interruption.

These calamities continued undiminished until the arrival of Colonel Burr, in the autumn of the year 1778. He took command of the same troops which his predecessor, Colonel Littlefield, commanded. At the moment of Colonel Burr's arrival, Colonel Littlefield [1] had returned from a plundering expedition (for to plunder those called tories was then deemed lawful), and had brought up horses, cattle, bedding, clothing, and other

articles of easy transportation, which he had proposed to distribute among the party the next day. Colonel Burr's first act of authority was to seize and secure all this plunder; and he immediately took measures for restoring it to the owners. This gave us much trouble, but it was abundantly repaid by the confidence it inspired.

He then made known his determination to suppress plundering. The same day he visited all the guards; changed their position; dismissed some of the officers, whom he found totally incompetent; gave new instructions. On the same day, also, he commenced a register of the names and characters of all who resided near and below his guards. Distinguished by secret marks the whig, the timid whig, the tory, the horse-thief, and those concerned in, or suspected of, giving information to the enemy. He also began a map of the country, in the vicinity of the fort; of the roads, by-roads, paths, creeks, morasses, &c., which might become hiding-places for the disaffected or for marauding parties. This map was made by Colonel Burr himself, from such materials as he could collect on the spot, but principally from his own observation.

He raised and established a corps of horsemen from among the respectable farmers and young men of the country, of tried patriotism, fidelity, and courage. These also served as aids and confidential persons for the transmission of orders. To this corps I attached myself as a volunteer, but did not receive pay. He employed discreet and faithful persons, living near the enemy's lines, to watch their motions, and give him immediate intelligence. He employed mounted videttes for the same purpose, directing two of them to proceed together, so that one might be despatched, if necessary, with information to the colonel, while the other might watch the enemy's movement. He established signals throughout the lines, so that, whether by night or by day, instant notice could be had of an attack or movement of the enemy. He enforced various regulations for concealing his

positions and force from the enemy. The laxity of discipline which had before prevailed enabled the enemy frequently to employ their emissaries to come within the lines, and to learn the precise state of our forces, supplies, &c. Colonel Burr soon put an end to these dangerous intrusions, by prohibiting all persons residing below the lines, except a few whom he selected, such as Parson Bartow, Jacob Smith, and others, whose integrity was unimpeachable, from approaching the outposts, without special permission for the purpose. If any one had a complaint or request to make of the colonel, he procured one or more of the persons he had selected to come to his quarters on his behalf. This measure prevented frivolous and vexatious applications, and the still more dangerous approach of enemies in disguise. All these measures were entirely new; and, within eight or ten days, the whole system appeared to be in complete operation, and the face of things was totally changed.

A few days after the colonel's arrival, the house of one Gedney was plundered in the night, and the family abused and terrified. Gedney sent his son to make a representation of it to the colonel. The young man, not regarding the orders which had been issued, came to the colonel's quarters, undiscovered by the sentinels, having taken a secret path through the fields for the purpose. For this violation of orders the young man was punished. The colonel immediately took measures for the detection of the plunderers; and though they were all disguised, and wholly unknown to Gedney, yet Colonel Burr, by means which were never yet disclosed, discovered the plunderers, and had them all secured within twenty-four hours. Gedney's family, on reference to his register, appeared to be Tories; but Burr had promised that every quiet man should be protected.

He caused the robbers to be conveyed to Gedney's house, under the charge of Captain Benson, there to restore the booty they had taken, to make reparation in money for such articles as were lost or damaged, and for

the alarm and abuse, the amount of which the colonel assessed, to be flogged ten lashes, and to ask pardon of the old man; all which was faithfully and immediately executed.

These measures gave universal satisfaction, and the terror they inspired effectually prevented a repetition of similar depredations. From this day plundering ceased. No further instance occurred during the time of Colonel Burr's command, for it was universally believed that Colonel Burr could tell a robber by looking in his face, or that he had supernatural means of discovering crime. Indeed, I was myself inclined to these opinions. This belief was confirmed by another circumstance which had previously occurred. On the day of his arrival, after our return from visiting the posts, conversing with several of his attendants, and, among others, Lieutenant Drake, whom Burr had brought with him from his own regiment, he said, "Drake, that post on the North river will be attacked before morning; neither officers nor men know any thing of their duty; you must go and take charge of it; keep your eyes open, or you will have your throat cut." Drake went. The post was attacked that night by a company of horse. They were repulsed with loss. Drake returned in the morning with trophies of war, and told his story. We stared, and asked one another—How could Burr know that? He had not then established any means of intelligence.

The measures immediately adopted by him were such that it was impossible for the enemy to have passed their own lines without his having immediate knowledge; and it was these very measures which saved Major Hull, on whom the command devolved for a short time, when the state of Colonel Burr's health compelled him to retire.

These measures, together with the deportment of Colonel Burr, gained him the love and veneration of all devoted to the common cause, and conciliated even its bitterest foes. His habits were a subject of admiration.

His diet was simple and spare in the extreme. Seldom sleeping more than an hour at a time, and without taking off his clothes, or even his boots.

Between midnight and two o'clock in the morning, accompanied by two or three of his corps of horsemen, he visited the quarters of all his captains, and their picket-guards, changing his route from time to time to prevent notice of his approach. You may judge of the severity of this duty, when I assure you that the distance which he thus rode every night must have been from *sixteen* to *twenty-four* miles; and that, with the exception of two nights only, in which he was otherwise engaged, he never omitted these excursions, even in the severest and most stormy weather; and, except the short time necessarily consumed in hearing and answering complaints and petitions from persons both above and below the lines, Colonel Burr was constantly with the troops.

He attended to the minutest article of their comfort; to their lodgings; to their diet: for those off duty he invented sports, all tending to some useful end. During two or three weeks after the colonel's arrival, we had many sharp conflicts with the robbers and horse-thieves, who were hunted down with unceasing industry. In many instances we encountered great superiority of numbers, but always with success. Many of them were killed, and many were taken.

The strictest discipline prevailed, and the army felt the fullest confidence in their commander and in themselves, and by these means became really formidable to the enemy. During the same winter, Governor Tryon planned an expedition to Horse Neck, for the purpose of destroying the salt-works erected there, and marched with about 2000 men. Colonel Burr received early information of their movements, and sent word to General Putnam to hold the enemy at bay for a few hours, and he (Colonel Burr) would be in their rear and be answerable for them. By a messenger from him, Colonel

Burr was informed by that general that he had been obliged to retreat, and that the enemy were advancing into Connecticut. This information, which unfortunately was not correct, altered Colonel Burr's route towards Mamaroneck, which enabled Tryon to get the start of him. Colonel Burr then endeavoured to interrupt him in Eastchester, according to his first plan, and actually got within cannon-shot of him; but Tryon ran too fast, and in his haste left most or all of his cattle and plunder behind him, and many stragglers, who were picked up.

I will mention another enterprise, which proved more successful, though equally hazardous. Soon after Tryon's retreat, Colonel Delancey, who commanded the British refugees, in order to secure themselves against surprise, erected a block-house on a rising ground below Delancey's bridge. This Colonel Burr resolved to destroy. I was in that expedition, and recollect the circumstances.

He procured a number of hand-grenades, also rolls of port-fire, and canteens filled with inflammable materials, with contrivances to attach them to the side of the block-house. He set out with his troops early in the evening, and arrived within a mile of the block-house by two o'clock in the morning. The colonel gave Captain Black the command of about forty volunteers, who were first to approach. Twenty of them were to carry the port-fires, &c., &c. Those who had hand-grenades had short ladders to enable them to reach the port-holes, the exact height of which Colonel Burr had ascertained. Colonel Burr gave Captain Black his instructions, in the hearing of his company, assuring him of his protection if they were attacked by superior numbers; for it was expected that the enemy, who had several thousand men at and near Kingsbridge, would endeavour to cut us off, as we were several miles below them. Burr directed those who carried the combustibles to march in front as silently as possible. That, on being hailed, they should light the hand-grenades, &c., with a slow match provided for

the purpose, and throw them into the port-holes. I was one of the party that advanced. The sentinel hailed and fired. We rushed on. The first hand-grenade that was thrown in drove the enemy from the upper story, and before they could take any measure to defend it, the block-house was on fire in several places. Some few escaped, and the rest surrendered without our having lost a single man. Though many shot were fired at us, we did not fire a gun.

During the period of Colonel Burr's command, but two attempts were made by the enemy to surprise our guards, in both of which they were defeated.

After Colonel Burr left this command, Colonel Thompson, a man of approved bravery, assumed it, and the enemy, in open day, advanced to his headquarters, took Colonel Thompson, and took or killed all his men, with the exception of about thirty.

My father's house, with all his outhouses, were burnt. After these disasters our troops never made an effort to protect that part of the country. The American lines were afterwards changed, and extended from Bedford to Croton bridge, and from there, following the course of that river, to the Hudson. All the intermediate country was abandoned and unprotected, being about twenty miles in the rear of the ground which Colonel Burr had maintained.

The year after the defeat of Colonel Thompson, Colonel Green, a brave, and in many respects a valuable officer, took the command, making his headquarters at Danford's, about a mile above the Croton. This position was well chosen. But Colonel Green omitted to inform himself of the movements of the enemy, and consequently was surprised. Himself, Major Flagg, and other officers were killed, and a great part of the men were either

killed or taken prisoners: yet these officers had the full benefit of Colonel Burr's system.

Having perused what I have written, it does not appear to me that I have conveyed any adequate idea of Burr's military character. It may be aided a little by reviewing the effects he produced. The troops of which he took command were, at the time he took the command, undisciplined, negligent, and discontented. Desertions were frequent. In a few days these very men were transformed into brave and honest defenders; orderly, contented, and cheerful; confident in their own courage, and loving to adoration their commander, whom every man considered as his personal friend. It was thought a severe punishment, as well as disgrace, to be sent up to the camp, where they had nothing to do but to lounge and eat their rations.

During the whole of this command there was not a single desertion. Not a single death by sickness. Not one made prisoner by the enemy; for Burr had taught us that a soldier with arms in his hand ought never, under any circumstances, to surrender; no matter if he was opposed to thousands, it was his duty to fight.

After the first ten days there was not a single instance of robbery. The whole country, under his command, enjoyed security. The inhabitants, to express their gratitude, frequently brought presents of such articles as the country afforded; but Colonel Burr would accept no present. He fixed reasonable prices, and paid in cash for every thing that was received, and sometimes, I know, that these payments were made with his own money. Whether these advances were repaid, I know not.

Colonel Simcoe, one of the most daring and active partisans in the British army, was, with Colonels Emerick and Delancey, opposed to Burr on the lines, yet they were completely held in check.



But perhaps the highest eulogy on Colonel Burr is, that no man could be found capable of executing his plans, though the example was before them.

When Burr left the lines a sadness overspread the country, and the most gloomy forebodings were too soon fulfilled, as you have seen above.

The period of Colonel Burr's command was so full of activity and of incident, that every day afforded some new lesson of instruction. But you will expect only a general outline, and this faint one is the best in my power to give.

With esteem, yours,

**SAMUEL YOUNG.**

Footnotes:

1. See Chapter IX

## CHAPTER XI.

The military career of Colonel Burr was now drawing to a close. The state of his health became alarming. His constitution was shattered. His medical and other friends were of the opinion that he was incapable of enduring the fatigues of another campaign. In the judgment and talents of Dr. Eustis he reposed great confidence. That gentleman pressed upon him, in a manner the most affectionate, the necessity for his retiring. The sacrifice required of Burr was inconceivably great. All his views and feelings were military. He seemed as though he was born a soldier. He was ambitious of fame in his profession. He had acquired a character for vigilance and intrepidity unrivalled in the army. He was more than respected by his brother officers, and idolized by the troops. As a man and a citizen, he was exceedingly disliked by General Washington. Causes, unnecessary to examine at this late period of time, had created between these gentlemen feelings of hostility that were unconquerable, and were never softened or mollified. Yet even General Washington, while he considered Burr destitute of morals and of principle, respected him as a soldier, and gave repeated evidence of entire confidence in his gallantry, his persevering industry, his judgment, and his discretion. At length, however, protracted disease compelled him to abandon all those hopes of glory, nobly won in the battle-field, which had inflamed his ardent and youthful mind; and on the 10th of March, 1779, he tendered to the commander-in-chief his resignation.

TO GENERAL WASHINGTON.

Phillipsburgh, 10th March, 1779.

Sir,

The reasons I did myself the honour to mention to your excellency in a letter of September last still exist, and determine me to resign my rank and command in the army.

The polite indulgence you favoured me with at that time restored temporarily my health. At the instance of General McDOUGALL, I accepted the command of these posts; but I find my health unequal to the undertaking, and have acquainted him of my intentions to retire. He has ordered an officer to relieve me before the 15th of March, on which day I purpose to leave this command and the army.

Very respectfully,

**A. BURR.**

FROM GENERAL WASHINGTON.

Middlebrook, 3d April, 1779.

Sir,

I have to acknowledge your favour of the 10th ultimo. Perfectly satisfied that no consideration save a desire to reestablish your health could induce you to leave the service, I cannot therefore withhold my consent. But, in giving permission to your retiring from the army, I am not only to regret the loss of a good officer, but the cause which makes his resignation necessary.

When it is convenient to transmit the settlement of your public accounts, it will receive my final acceptance.

I am, &c.,

**GEORGE WASHINGTON.**

A few days previous to Colonel Burr's resignation of his commission, he received from the widow of General Montgomery the following letter:—

**FROM MRS. J. MONTGOMERY.**

Rhinebeck, 7th March, 1779.

**SIR,**

I should before this have answered your obliging letter, had not the marriage of my eldest sister entirely taken up my time. I now return you, sir, many thanks for your kind offers of service. The sincerity with which they were made would have allowed me to accept them, without fears of giving you trouble, had I not determined to run no more risks, as I have been very unfortunate in my ventures that way.

You have awakened all my sensibility by the praises you bestow on my unfortunate general. He was, indeed, an angel sent us for a moment. Alas! for me, that this world was not more worthy of him—then had I still been the happiest of women, *and his friends in stations more equal to their own merits*. Reflections like these imbitter continually each day as it passes. But I trust in the same merciful Hand which has held me from sinking in my extreme calamity, that he will still support and make me worthy of a blessed

meeting hereafter. Can you excuse, sir, the overflowing of a heart that knows not where to stop when on a subject so interesting?

Mr. Tutard tells me you mean to quit the service. Whenever that happens, you will doubtless have leisure to pay us a visit, which I wish you to believe will give real pleasure to,

Sir, your obliged

**J. MONTGOMERY.**

FROM WILLIAM PATERSON.

The Ponds, 18th March, 1779.

**MY DEAR BURR,**

I came to this place yesterday in the afternoon, and regret extremely that I did not arrive earlier in the day, as I should have received your letter. My stay here will be uncertain. At home I must be by the beginning of April. I should be happy in seeing you before my return, but how to effect it is the question. If I could possibly disengage myself from business, I would take a ride to Paramus. My best respects await on Mrs. Prevost; and every thing you think proper to the mistress of your affections. I am married, Burr, and happy. May you be equally so. I cannot form a higher or a better wish. You know I should rejoice to meet you. Tell Mrs. Prevost that I shall take it unkindly if she does not call upon me whenever she thinks I can be of any service to her. To oblige her will give me pleasure for her own sake, and double pleasure for yours. This is a strange, unconnected scroll; you have it as it comes.

I congratulate you on your return to civil life, for which (I cannot forbear the thought) we must thank a certain lady not far from Paramus. May I have occasion soon to thank her on another account; and may I congratulate you both in the course of the next moon for being in my line: I mean the married. Adieu.

I am most sincerely yours,

**WILLIAM PATERSON.**

FROM GENERAL McDOUGALL.

Headquarters, Peekskill, 20th March, 1779.

**SIR,**

My late intelligence from New-York and headquarters clearly mark the enemy's intention to make a movement very soon. Whether it is intended against the grand army, these posts, or New-London, time only can determine. It is, however, our duty to be prepared. As a few days will open up his views, *I imagine you do not think of quitting the ground when business is to be done.* Should the enemy move up the river in force, his thieves will be very busy below. Colonel Hammond's regiment, on such an event, is to remain there; and one hundred rank and file of continental troops *only* are to keep them in countenance. The rest, under charge of officers, to be sent up to join their corps.

You know the state of forage at this post. I wish you would make an exertion to your left in front, to secure all you can for us; as much as will consist with the safety of your party, and covering to the rebels at Tarrytown. Send for Haynes and his assistant, and keep them on the ground

till they secure all that is practicable to be got from your left. The weather has been so stormy and uncertain, the —— are not yet sent for. To-morrow morning it will be done. Please to attend to the enclosed order respecting provisions. Late Learned's is moved to West Point.

Major Hull's, of the 19th, is this moment received, and will be attended to. I wish Captain Kearsley, Lieutenants Hunter and Lawrence, to be sent to their regiments when Colonel Burr has finished what he intends. They are much wanted. Note the contents of the enclosed resolve.

Yours, very respectfully,

ALEXANDER McDOUGALL.

It has been seen that Colonel Burr, while he commanded at White Plains, on the frontier, not only kept the adjacent country in a state of security, but that he kept the enemy in complete check. He was succeeded in his command by Colonel Littlefield, who was soon captured, and the post abandoned. Major Hull, in a letter to Colonel Burr, dated the 29th of May, 1779, says, "*The ground you so long defended is now left to the depredations of the enemy, and our friends in distressing circumstances.*"

In the beginning of June, Sir Henry Clinton captured the forts at Stony Point and Verplanck's Point, and threatened West Point. His force in this direction was upwards of six thousand rank and file. The communication between General Washington, who was in New-Jersey, and General McDOUGALL, who was at Newburgh, was greatly embarrassed. Bandits were placed by the British in or near the passes through the chains of mountains leading to Sussex, for the purpose of capturing the expresses charged with despatches. At this critical moment Colonel Burr was on a

visit to McDOUGALL, who informed him that he had made various unsuccessful attempts to communicate with Washington, and that his expresses had either been captured or had deserted. After apologizing to Burr, who was no longer in active service, the general stated the importance of the commander-in-chief's knowing the position and movements of the enemy, as well as the state of the American army. He then very courteously requested Burr to be the bearer of a verbal communication to Washington on the subject. To this, notwithstanding his ill health and the danger of the enterprise, he assented. The mission was undertaken and succeeded. He was also charged at the same time with *verbal* orders from General St. Clair, of a confidential character, to officers commanding at different posts.

*To whom it may concern:—*

Colonel Burr, being on urgent public business, is to be put across the ferry to New-Windsor without delay. Given this second day of June, 1779.

ALEXANDER McDOUGALL, Major-general.

*To whom it may concern:—*

Colonel Burr, being on very pressing public business, every magistrate will assist him in changing horses, and all friends of the country will also assist him.

June 2d, 1779. ALEXANDER McDOUGALL, Major-general.

*To whom it may concern:—*



Colonel Burr, being on urgent public business, must be put across the ferry to Fishkill landing without a moment's delay. Given at Pompton, 3d June, 1779.

ARTHUR ST. CLAIR, Major-general.

*To whom it may concern:—*

The quartermaster and commissary, at Newburgh or New-Windsor, will receive and observe, as my orders, the verbal directions given by Colonel Burr. Given at Pompton, 3d June, 1779.

ARTHUR ST. CLAIR, Major-general.

On this enterprise a most amusing incident occurred. Colonel Burr arrived at the iron-works of the elder Townsend, in Orange county, with a tired and worn-out horse. No other could be obtained; but, after some detention, a half-broken mule, named *Independence*, was procured, and the colonel mounted. But *Independence* refused to obey orders, and a battle ensued. The mule ran off with his rider, and ascended a high bank, on the side of which stood a coal-house, filled with coal through an aperture in the top. At length, *Independence*, in the hope of clearing himself of his encumbrance, entered the coal-house at full speed, the colonel firmly keeping his seat, and both came down an inclined plane of coal, not less than thirty feet in height. On reaching the ground without injury, Burr hired a man to lead the animal a mile or two, and then again mounted him and pursued his journey. This scene was exhibited on a hot day in the month of June, amid a cloud of coal-dust. The anecdote Burr occasionally repeated to his friends, and some of the younger branches of the Townsend family.

About the first of July, 1779, Colonel Burr, then in feeble health, visited his friends in Connecticut. He was at New-Haven when, on the 5th of July, the British landed, with 2600 men, in two divisions; one under Governor Tryon, at East Haven, and the other under Garth, at West Haven. At East Haven, where Tryon commanded, great excesses were committed, and the town set on fire. Colonel Burr was at this moment confined to his bed; but, on hearing that the enemy were advancing, rose and proceeded to a part of the town where a number of persons had collected. He volunteered to take command of the militia, and made an unsuccessful attempt to rally them. At this moment he was informed that the students had organized themselves, and were drawn up in the college-yard. He immediately galloped to the ground, and addressed them; appealing, in a few words, to their patriotism and love of country; imploring them to set the example, and march out in the defence of those rights which would, at a future day, become their inheritance. All he asked was, that they would receive and follow him as their leader.

The military character of Colonel Burr was known to the students. They confided in his intrepidity, experience, and judgment. In their ranks there was no faltering. They promptly obeyed the summons, and volunteered. Some skirmishing soon ensued, and portions of the militia united with them. The British, ignorant of the force that might be presented, retired; but shortly returned, with several pieces of artillery, when a cannonading commenced, and the boys retreated in good order. An American historian says,—"The British entered the town after being much galled and harassed." The slight check which they thus received afforded an opportunity for the removal of some valuables, and many of the women and children.

Trifling and unimportant as this skirmishing appears to have been, Colonel Burr never referred to the incident but with exultation and pride.

Perhaps no event in his military life has he more frequently mentioned. The confidence evinced by these young men he considered complimentary to himself as a soldier; and usually alluded to the circumstance as evidence of the effect which the character of an officer would ever have upon undisciplined men, when called to command them upon trying occasions.

The following letter, written by Colonel Platt, will close all that is intended to be said of Colonel Burr as a soldier. More space has been occupied with an account of his military character than would have been thus occupied, if it was not known that he felt proud of his own career as an officer. For history Mr. Burr entertained a great contempt. He confided but little in its details. These prejudices were probably strengthened by the consideration that justice, in his opinion, had not been done to himself.

## COLONEL RICHARD PLATT TO COMMODORE VALENTINE MORRIS.

New-York, January 27th, 1814.

**DEAR SIR,**

In reply to yours of the 20th of November last, requesting to be informed what was the reputation and services of Colonel Burr during the revolutionary war? I give you the following detail of facts, which you may rely on. No man was better acquainted with him, and his military operations, than your humble servant, who served in that war from the 28th of June, 1775, till the evacuation of our capital on the memorable 25th of November, 1783; having passed through the grades of lieutenant, captain, major, major of brigade, aid-de-camp, deputy adjutant-general, and deputy quartermaster-general; the last of which by selection and recommendation

of Generals Greene, McDOUGALL, and Knox, in the most trying crisis of the revolution, viz., the year 1780, when the continental money ceased to pass, and there was no other fiscal resources during that campaign but what resulted from the creative genius of Timothy Pickering, at that crisis appointed successor to General Greene, the second officer of the American army, who resigned the department because there was no money in the national coffers to carry it through the campaign, declaring that he could not, and would not attempt it, without adequate resources, such as he abounded in during the term of nearly three years antecedently as quartermaster-general.

In addition to the foregoing, by way of elucidation, it is to be understood by you, that so early as from the latter part of the year 1776, I was always attached to a commanding general; and, in consequence, my knowledge of the officers and their merits was more general than that of almost any other in service. My operations were upon the extended scale, from the remotest parts of Canada, wherever the American standard had waved, to the splendid theatre of Yorktown, when and where I was adjutant-general to the chosen troops of the northern army.

At the commencement of the revolution, Colonel Burr, then about eighteen years of age, at the first sound of the trump of war (as if bred in the camp of the great Frederick, whose maxim was "to hold his army always in readiness to break a lance with, or throw a dart against, any assailant"), quit his professional studies, and rushed to the camp of General Washington, at Cambridge, as a volunteer from which he went with Colonel Arnold on his daring enterprise against Quebec, through the wilds of Canada (which vied with Hannibal's march over the Alps), during which toilsome and hazardous march he attracted the attention and admiration of his commander so much, that he (Arnold) sent him alone to meet and hurry down General Montgomery's army from Montreal to his assistance; and recommended

him to that general, who appointed him an aid-de-camp, in which capacity he acted during the winter, till the fatal assault on Quebec, in which that gallant general, his aid McPherson, and Captain Cheeseman, commanding the forlorn hope, fell. He afterwards continued as aid to Arnold, the survivor in command.

Here I must begin to draw some of the outlines of his genius and valour, which, like those of the British immortal, Wolf, who, at the age of twenty-four, and only major of the 20th regiment, serving on the continent, gave such specimens of genius and talents as to evince his being destined for command.

At the perilous moment of Montgomery's death, when dismay and consternation universally prevailed, and the column halted, he animated the troops, and made many efforts to lead them on; and stimulated them to enter the lower town; and might have succeeded, but for the positive orders of Colonel Donald Campbell, the commanding officer, for the troops to retreat. Had his plan been carried into effect, it might have saved Arnold's division from capture, which had, after our retreat, to contend with all the British force instead of a part. On this occasion I commanded the first company in the first New-York regiment, at the head of Montgomery's column, so that I speak from ocular demonstration.

The next campaign, 1776, Colonel Burr was appointed aid-de-camp to Major-general Putnam, second in command under General Washington at New-York; and from my knowledge of that general's qualities and the colonel's, I am very certain that the latter directed all the movements and operations of the former.

In January, 1777, the continental establishment for the war commenced. Then Colonel Burr was appointed by General Washington a lieutenant-colonel in Malcolm's regiment, in which he continued to serve until April,

1779, when the ill state of his health obliged him to retire from active service, to the regret of General McDOUGALL, commanding the department, and that of the commander-in-chief, who offered to give him a furlough for any length of time, and to get permission from the British general in New-York for him to go to Bermuda for his health. This item will show his value in the estimation of Generals Washington and McDOUGALL.

During the campaign of 1777, Malcolm's regiment was with the main army, and commanded by Lieutenant-colonel Burr. For discipline, order, and system, it was not surpassed by any in the service; and could his (the lieutenant-colonel's) and Wolfe's orderly-books be produced, they would be very similar in point of military policy and instructions, and fit models for all regiments.

This regiment was also but led at the Valley Forge in 1777 and winter of 1778, under General Washington, and composed part of his army at the battle of Monmouth on the 28th of June, 1778, and continued with it till the close of the campaign of that year, at which time it was placed in garrison at West Point by General Gates; but, upon General McDOUGALL's assuming the command of the posts in the highlands in December, Malcolm's, Spencer's, and Patten's regiments were together ordered to Haverstraw. The three colonels were permitted to go home for the winter on furlough, and Lieutenant-colonel Burr had the command of the whole brigade, at a very important advanced post.

At this period General McDOUGALL ordered a detachment of about three hundred troops, under the command of Lieutenant-colonel Littlefield, of the Massachusetts line, to guard the lines in Westchester county, then extending from Tarrytown to White Plains, and from thence to Mamaroneck

or Sawpits, which last extension was guarded by Connecticut troops from Major-general Putnam's division.

In this situation of affairs a very singular occurrence presented, viz., that neither Lieutenant-colonel Littlefield, nor any other of his grade, in the two entire brigades of Massachusetts troops composing the garrison of West Point, from which the lines were to be relieved, was competent, in the general's estimation, to give security to the army above and the lines of those below; and, in consequence, he was compelled to call Colonel Burr from his station at Haverstraw to the more important command of the lines in Westchester, in which measure, unprecedented as it was, the officers acquiesced without a murmur, from a conviction of its expediency. At this time I was doing the duty of adjutant-general to General McDougall.

It was on this new and interesting theatre of war that the confidence and affections of the officers and soldiers (who now became permanent on the lines, instead of being relieved every two or three weeks as before), as well as of the inhabitants, all before unknown to Colonel Burr, were inspired with confidence by a system of consummate skill, astonishing vigilance, and extreme activity, which, in like manner, made such an impression on the enemy, that after an unsuccessful attack on one of his advanced posts, he never made any other attack on our lines during the winter.

His humanity, and constant regard to the security of the property and persons of the inhabitants from injury and insult, were not less conspicuous than his military skill, &c. No man was insulted or disturbed. The health of the troops was perfect. Not a desertion during the whole period of his command, nor a man made prisoner, although the colonel was constantly making prisoners.

A country, which for three years before had been a scene of robbery, cruelty, and murder, became at once the abode of security and peace.

Though his powers were despotic, they were exercised only for the peace, the security, and the protection of the surrounding country and its inhabitants.

In the winter of 1779, the latter part of it, Major Hull, an excellent officer, then in the Massachusetts line, was sent down as second to Colonel Burr, who, after having become familiarized to his system, succeeded him for a short time in command, about the last of April, at which time Colonel Burr's health would not permit him to continue in command; but the major was soon compelled to fall back many miles, so as to be within supporting distance of the army at the highlands.

The severity of the service, and the ardent and increasing activity with which he had devoted himself to his country's cause, for more than four years, having materially impaired his health, he was compelled to leave the post and retire from active service. It was two years before he regained his health.

Major Hull has ever since borne uniformly the most honourable testimony of the exalted talents of his commander, by declaring his gratitude for being placed under an officer whose system of duty was different from that of all other commanders under whom he had served.

Having thus exhibited the colonel's line of march, and his operations in service, I must now present him in contrast with his equals in rank, and his superiors in command.

In September, 1777, the enemy came out on both sides of the Hudson simultaneously, in considerable force, say from 2 to 3000 men. On the east side (at Peekskill) was a major-general of our army, with an effective force of about 2000 men. The enemy advanced, and our general retired without



engaging them. Our barracks and storehouses, and the whole village of Peekskill, were sacked and burnt, and the country pillaged.

On the west side, at the mouth of the Clove, near Suffren's, was Colonel Burr, commanding Malcolm's regiment, about three hundred and fifty men. On the first alarm he marched to find the enemy, and on the same night attacked and took their picket-guard, rallied the country, and made such show of war, that the enemy retreated the next morning, leaving behind him the cattle, horses, and sheep he had plundered.

The year following, Lieutenant-colonel Thompson was sent to command on the same lines in Westchester by General Heath, and he was surprised at nine or ten o'clock in the day, and made prisoner, with a great part of his detachment.

Again, in the succeeding winter, Colonel Greene, of the Rhode Island line, with his own and another Rhode Island regiment, who was a very distinguished officer, and had with these two regiments, in the year 1777, defeated the Hessian grenadiers under Count Donop, at Red Banks, on the Delaware, who was mortally wounded and taken prisoner, commanded on the lines in Westchester; there receded to Pine's bridge, and in this position Colonel Greene's troops were also surprised after breakfast and dispersed, the colonel himself and Major Flagg killed, and many soldiers made prisoners, besides killed and wounded.

On the west side of the Hudson, in the year 1780, General Wayne, the hero of Stony Point, with a large command and field artillery, made an attack on a block-house nearly opposite to Dobbs's ferry, defended by cowboys, and was repulsed with loss; whereas Colonel Burr burnt and destroyed one of a similar kind, in the winter of 1779, near Delancey's mills, with a very few men, and without any loss on his part, besides capturing the garrison.

Here, my good friend commodore, I must drop the curtain till I see you in Albany, which will be on the first week in February, where I can and will convince you that he is the only man in America (that is, the United States) who is fit to be a lieutenant-general; and let you and I, and all the American people, look out for Mr. Madison's lieutenant-general in contrast.

I am your friend,

**RICHARD PLATT.**

## CHAPTER XII.

On retiring from the army, Colonel Burr visited his friends in New-Jersey and Connecticut. He had previously determined, as soon as his health would permit, to commence the study of law. During the four years he was in public service, his patrimony was greatly impaired. Towards his brethren in arms he had acted with liberality. Naturally of an improvident character, he adopted no means to preserve the property which he inherited. The cardinal vices of gaming and drinking he avoided. But he was licentious in the extreme, and regardless of consequences in the gratification of his desires. His extravagance was unrestrained when, in his opinion, necessary to the enjoyment of his pleasures. From the arms of his nurse until he had numbered fourscore years, he was perpetually the dupe of the artful and the selfish.

Colonel Burr was about five feet six inches in height. He was well formed, and erect in his attitude. In all his movements there was a military air. Although of small stature, yet there was about him a loftiness of mien that could not pass unnoticed by a stranger. His deportment was polished and courtly. His features were regular, and generally considered handsome. His eye was jet black, with a brilliancy never surpassed. The appropriate civilities of the drawing-room were performed with a grace almost peculiar to himself. His whole manner was inconceivably fascinating. As a gentleman, this was his great theatre. He acted upon the principle that the

female was the weaker sex, and that they were all susceptible of flattery. His great art consisted in adopting it to the grade of intellect he addressed. In this respect he was singularly fortunate as well as adroit. In matters of gallantry he was excessively vain. This vanity sometimes rendered him ridiculous in the eyes of his best friends, and often enabled the most worthless and unprincipled to take advantage of his credulity.

Such traits of character would appear to be incompatible with an elevated and towering mind; yet they usually influenced, and frequently controlled, one of the greatest and most extraordinary men of the age. A volume of anecdotes might be related as evidence of Colonel Burr's quickness of perception and tact at reply, when an ill-judged or thoughtless expression was addressed by him to a lady. One is sufficient for illustration.

After his return from Europe, in 1812, he met a maiden lady in Broadway somewhat advanced in life. He had not seen her for many years. As she passed him, she exclaimed to a gentleman on whose arm she was resting, "Colonel Burr!" Hearing his name mentioned, he suddenly stopped and looked her in the face. "Colonel," said she, "you do not recollect me."

"I do not, madam," was the reply.

"It is Miss K., sir."

"What!" said he, "Miss K. yet!"

The lady, somewhat piqued, reiterated, "Yes, sir, Miss K. yet!"

Feeling the delicacy of his situation, and the unfortunate error he had committed, he gently took her hand, and emphatically remarked, "Well, madam, then I venture to assert *that it is not the fault of my sex.*"

On Burr's being appointed, in 1777, a lieutenant-colonel in the army, he joined his regiment, then stationed at Ramapoa, in New-Jersey. At Paramus, not far distant, resided Mrs. Prevost, the wife of Colonel Prevost, of the British army. She was an accomplished and intelligent lady. Her husband was with his regiment in the West Indies, where he died early in the revolutionary war. She had a sister residing with her. It was her son, the Hon. John B. Prevost, who in 1802 was recorder of the city of New-York, and subsequently district judge of the United States Court for the district of Louisiana. The house of Mrs. Prevost was the resort of the most accomplished officers in the American army when they were in the vicinity of it. She was highly respected by her neighbours, and visited by the most genteel people of the surrounding country. Her situation was one of great delicacy and constant apprehension.

The wife of a British officer, and connected with the adherents of the crown, naturally became an object of political suspicion, notwithstanding great circumspection on her part. Under such circumstances, a strong sympathy was excited in her behalf. Yet there were those among the Whigs who were inclined to enforce the laws of the state against her, whereby she would be compelled to withdraw within the lines of the enemy. In this family Colonel Burr became intimate in 1777, and in 1782 married the widow Prevost.

**JAMES MONROE TO MRS. PREVOST. [1]**

Philadelphia, November 8th, 1778.

A young lady who either is, or pretends to be, in love, is, you know, my dear Mrs. Prevost, the most unreasonable creature in existence. If she looks a smile or a frown, which does not immediately give or deprive you of happiness (at least to appearance), your company soon becomes very insipid. Each feature has its beauty, and each attitude the graces, or you

have no judgment. But if you are so stupidly insensible of her charms as to deprive your tongue and eyes of every expression of admiration, and not only to be silent respecting her, but devote them to an absent object, she cannot receive a higher insult; nor would she, if not restrained by politeness, refrain from open resentment.

Upon this principle I think I stand excused for not writing from B. Ridge. I proposed it, however; and, after meeting with opposition in ——, to obtain her point, she promised to visit the little "Hermitage," [2] and make my excuse herself. I took occasion to turn the conversation to a different object, and plead for permission to go to France. I gave up in one instance, and she certainly ought in the other. But writing a letter and going to France are very different, you will perhaps say. She objected to it, and all the arguments which a fond, delicate, unmarried lady could use, she did not fail to produce against it. I plead the advantage I should derive from it. The personal improvement, the connexions I should make. I told her she was not the only one on whom fortune did not smile in every instance. I produced examples from her own acquaintance, and represented their situation in terms which sensibly affected both herself and Lady C——. I painted a lady full of affection, of tenderness, and sensibility, separated from her husband, for a series of time, by the cruelty of the war—her uncertainty respecting his health; the pain and anxiety which must naturally arise from it. I represented, in the most pathetic terms, the disquietudes which, from the nature of her connexion, might possibly intrude on her domestic retreat. I then raised to her view fortitude under distress; cheerfulness, life, and gayety, in the midst of affliction.

I hope you will forgive me, my dear little friend, if I produced you to give life to the image. The instance, she owned, was applicable. She felt for you from her heart, and she has a heart capable of feeling. She wished not a misfortune similar to yours; but, if I was resolved to make it so, she would

strive to imitate your example. I have now permission to go where I please, but you must not forget her. She and Lady C—— promise to come to the Hermitage to spend a week or two. Encourage her, and represent the advantage I shall gain from travel. But why should I desire you to do what I know your own heart will dictate? for a heart so capable of friendship feels its own pain alleviated by alleviating that of another.

But do not suppose that my attention is only taken up with my own affairs. I am too much attached ever to forget the Hermitage. Mrs. Duvall, I hope, is recovering; and Kitty's indisposition is that of my nearest relation. Mrs. de Visme has delicate nerves. Tell me her children are well, and I know she has a flow of spirits, for her health depends entirely on theirs.

I was unfortunate in not being able to meet with the governor. He was neither at Elizabethtown, B. Ridge, Princeton, nor Trenton. I have consulted with several members of Congress on the occasion. They own the injustice, but cannot interfere. The laws of each state must govern itself. They cannot conceive the possibility of its taking place. General Lee says it must not take place; and if he was an absolute monarch, he would issue an order to prevent it.

I am introduced to the gentleman I wished by General Lee in a very particular manner. I cannot determine with certainty what I shall do till my arrival in Virginia.

Make my compliments to Mrs. and Miss De Visme, and believe me, with the sincerest friendship,

Yours,

**JAMES MONROE**

Mr. Peter De Visme, the brother of Mrs. Prevost, was captured at sea, and made prisoner of war. As she was personally acquainted with General Washington, she solicited his influence to promote his exchange, to which the general replied:—

Headquarters, Middlebrook, 19th May, 1779.

**MADAM,**

It is much to be regretted that the pleasure of obeying the first emotions in favour of misfortune is not always in our power. I should be happy could I consider myself at liberty to comply with your request in the case of your brother, Mr. Peter De Visme. But, as I have heretofore taken no direction in the disposal of marine prisoners, I cannot, with propriety, interfere on the present occasion, however great the satisfaction I should feel in obliging where you are interested. Your good sense will perceive this, and find a sufficient excuse in the delicacy of my situation.

I have the honour to be, madam,

Your obedient servant,

**GEORGE WASHINGTON.**

**FROM WILLIAM PATTERSON.**

Morristown, 29th September, 1779.

**DEAR BURR,**

About four weeks ago I received a letter from you of the 8th of August, and, a week after, another of the 23d. They came by the way of



Moorestown, from which to Rariton, where I reside. The conveyance is easy and safe. I cannot point out any mode of sending your letters better than that which you have adopted.

I was pleased extremely to hear from you, and, indeed, was quite disappointed in not hearing from you sooner. I was for a time in expectation that you would return into Jersey, as the scene of military operations was directed to your part of the world, and would unavoidably drive you from your study and repose. Military operations are so fluctuating and uncertain as to render it exceedingly difficult to fix upon a retreat which may not be broken in upon in the course of a campaign. New-Haven bid fair to be the seat of calmness and serenity, of course well suited for a studious and contemplative mind, and therefore made choice of as the place of your abode. New-Haven, however, partook of the common calamity; and, in the evolution of human events, from a place of safety and repose, was turned into a place of confusion and war.

You are not contented, my dear Burr, and why are you not? You sigh for New-Jersey, and why do you not return? It is true we are continually broken in upon by the sons of tumult and war. Our situation is such that the one army or the other is almost constantly with us, and yet we rub along with tolerable order, spirit, and content. Oh! that the days of peace would once more return, that we might follow what business, partake of what amusements, and think and live as we please. As to myself, I am, my dear Burr, one of the happiest of men. The office I hold calls me too frequently, and detains me too long, from home, otherwise I should enjoy happiness as full and high as this world can afford. It is, as you express it, "serene, rural, and sentimental;" and such, one day, you will *feel*.

"You see no company—you partake of no amusements—you are always grave." Such, too, has been the life that I have lived for months and years. I

cannot say that it is an unpleasing one. I avoided company; indeed, I do so still, unless it be the company of chosen friends. I have been ever fond of my fireside and study—ever fond of calling up some absent friend, and of living over, in idea, past times of sentimental pleasure. Fancy steps in to my aid, colours the picture, and makes it delightful indeed. You are in the very frame of mind I wish you to be; may it continue.

I cannot tell you what has become of Mrs. Prevost's affairs. About two months ago I received a very polite letter from her. She was apprehensive that the commissioners would proceed. It seems they threatened to go on. I wrote them on the subject, but I have not heard the event. I am at this place, on my way to a superior court in Bergen. If possible, I shall wait on the good gentlewoman. At Bergen I shall inquire into the state of the matter. It will, indeed, turn up of course. You shall soon hear from me again. Adieu. May health and happiness await you

**WILLIAM PATERSON.**

The precarious and unsettled state of Colonel Burr's health, in the autumn of 1779 and the beginning of 1780, was such that he was unable to adopt and adhere to any regular system of study. Among his most intimate personal friends was Colonel Robert Troup. He, too, had determined to retire from public service, and was anxious to study in the same office with Burr. His letters cast much light on their pursuits at the time they were written.

**FROM COLONEL TROUP.**

Philadelphia, 16th January, 1780.

My dear Friend,

Watkins was kind enough to deliver me yours of the 8th of December, written, I presume, at Paramus. I almost envy you the happiness you have enjoyed. From the first moment of my acquaintance with Mrs. Prevost and her sister, I conceived an admiration for them both, which is much increased by the opinion you entertain of them. How, then, am I flattered by their polite manner of mentioning my name. To whom am I indebted but to you, my friend, for this unmerited favour? Surely these ladies saw nothing in me at Governor Livingston's which was worthy of remembrance, unless a terrible noise, which some people call laughter, could be worth remembering. With the best intention, therefore, to serve me, you have done me an injury, Aaron. I shall be afraid to see our favourites in the spring, because I shall fall infinitely short of their ideas of cleverness. Pray, do you recollect the opinion which Judge Candour solemnly pronounced upon us both, in a court of reason held at the Indian King? Why, then, will you expose my weakness by ascribing to me imaginary excellences? If you persist in such cruel conduct, sir, I will make you feel the weight of my resentment, by publishing to the world the purity of my esteem for your public and private character.

I am happy to find our plan of studying together appears more and more rational to you. It really does to me, and I hope we shall follow it. Since you left Philadelphia, some circumstances have turned up which render my office so disagreeable to me that I am determined to resign. *Vous pouvez compter sur moi.* Besides the disgust I have taken, I am led to it by ambition, which has a small share of influence over me as well as you.

But I am desirous of a change in our plan, which I request you to think of seriously. I am inclined to believe it would be best for us to study the law

with Mr. Stockton, at Princeton. This, I know, will surprise you; but your surprise will be lessened when you hear my reasons.

The practice of Connecticut differs so materially from the practice of New-York and New-Jersey, that we should lose time by being with Mr. Osmer. For, after being eighteen months or two years with him, it would be necessary to continue nearly the same time in another office, to get a competent knowledge of the practice. This is a matter of consequence, especially as it is my object to qualify myself for practice as soon as possible.

I have the highest opinion of Mr. Osmer, and, did I intend to follow the law in Connecticut, there is no man I would sooner study with. I believe he would ground us well in the knowledge of the dead-letter of the law; but I wish to have the practice and the theory accompanying each other. Mr. Stockton has been polite enough to make me an offer, and has promised to spare no pains to instruct me. He would be glad to instruct you likewise; for I have heard him express himself of you in the most friendly manner. I propose to lodge at some substantial farmer's house, about a mile from the main road, and have made a solemn league and covenant with my own mind to seclude myself from the pleasures of the world. This I know I can do. And have you not as much philosophy as I have?

It is true, Mr. Stockton has unmarried daughters, and there is a number of genteel families in and near Princeton. But why should we connect ourselves with any of them, so as to interrupt our studies? They will be entitled to a civil bow from us whenever we meet them; and, if they expect more, they will be disappointed. Indeed, I shall take care to inform them of my intentions, and if they afterwards complain of my want of politeness in not visiting them, it will give me little uneasiness.

I entreat you, my dearest and best friend, to reflect on this matter, and favour me with your answer without a moment's loss of time. My happiness, and my improvement in the law, depend entirely upon pursuing my studies with you. The change I now propose is conformable to the sentiments and wishes of all my friends, particularly of Chancellor Livingston, who is certainly a judge.

I forgot to mention that Mr. Stockton is universally allowed to be one of the best speakers we ever had in this part of the continent, and it will therefore be in his power to teach us the eloquence of the bar, which may be considered as a capital advantage.

I have communicated my sentiments on this subject more fully to our mutual friend, Colonel Wadsworth, who will deliver you this letter, than I have to you in writing. He will explain them to you, and, I am sure, will give you his own with the utmost candour and sincerity. I have left several messages at the house Dr. —— lodges when he is in town; but cannot get an answer, and see little prospect of getting your money unless you write him a dunning letter. I shall leave one for him to-morrow, and will endeavour to have the affair settled this week.

I write this at my lodgings, where I have not a single newspaper. Colonel Wadsworth will leave town in the course of an hour; and, if I can find time, I will go to the office and collect all I can find. There have been none, however, since you left town, which are worth reading. Wadsworth will tell you all the news I have, which is, that old Roger Sherman is metamorphosed, by some strange magical power, into *a very honest man*.

God bless you, and may Dom. Tetard soon have the pleasure of drinking a glass of wine with us both, in his house at Kingsbridge. I mean, after the British gentry have left it. I should have written to you before, but I have been waiting these three weeks past for Colonel Wadsworth to leave

Philadelphia. He will inform you of the cursed slavish life I lead at the treasury office. I am obliged to attend it even on Saturday nights, which places me below the level of a negro in point of liberty. Pray present my best respects to Tetard, and assure him of my wishes to serve him at all times, and on all occasions.

Yours,

**ROBERT TROUP.**

FROM COLONEL TROUP.

Philadelphia, February 14th, 1780.

My Dear Burr,

I have resigned my office, and am now preparing to leave Philadelphia to go to Princeton, agreeable to the plan in my letter by Colonel Wadsworth. This week I expect to finish a little private business I have on hand, and, by the latter end of the next, to be settled in a regular course of study with Mr. Stockton. What think you of this alteration in the plan we settled? Can you leave Mr. Osmer without injury? I assure you, the only motive I have to prefer Stockton is a desire to qualify myself for practice as soon as possible. All my friends are against my studying in Connecticut, for the reason mentioned in my last; and they all recommend Stockton to me. I am therefore determined to study with him.

I am very much afraid that Princeton will be disagreeable to you on many accounts, and particularly on account of the number of acquaintances you have in and near it. This is a misfortune, to be sure; but do as I shall, *neglect them all*; it is matter of perfect indifference to me whether I affront them or

not. My object is to study with the closest attention. I must do it. I have no other resource.

Permit me to declare, like a sincere friend, that my happiness is so intimately connected with yours, that I shall be chagrined to an extreme if you find it inconvenient to join me. We could be useful to each other. Besides facilitating each other's progress in the law, we could improve ourselves in writing and speaking. In one word—I am confident I should acquire as much knowledge in three years with you as in six years without you. I never was more serious. Come, therefore, immediately, and bring Mr. Tetard with you to perfect us in the French language, which I have paid little attention to since I wrote you, and indeed since you left me.

Pray why have you neglected to answer my letter by Colonel Wadsworth? I suspect something extraordinary is the matter with you. Or are you so angry as not to think I merit an answer? Whatever your reason was, let me request you to favour me with an answer to this by the first opportunity. If it is sent under cover to Mr. Stockton, it will perhaps reach me sooner.

It is reported, and pretty general believed, that Sir Henry Clinton, with the fleet that came from New-York about six weeks ago, has touched at Georgia; taken Prevost's troops with him, and gone either to St. Augustine or the Havannah. This is very important news, if true; but it seems to wait confirmation.

Your unalterable friend,

**ROBERT TROUP.**

**TO WILLIAM PATERSON.**

Middletown, February 16th, 1780.

Your friendly letter of September has at length found its way to me. I am once more a recluse. It accords with my feelings. I should doubtless be happier if I enjoyed perfect health and the society of a friend *like you*; but why do I say like you? No likeness could compensate for the absence of the original.

I am something at a loss how to regulate my motions for the coming summer. The prospect of peace is still distant. It is an object of importance with me to be not only secure from alarms, but remote from the noise of war. My present situation promises at least those advantages. Perhaps yours does equally. Events only can determine.

My health, which was till of late very promising, seems to decline a little. This circumstance will oblige me to alter my course of life. I shall be in your state in May or June, perhaps sooner. If you have a prospect of tranquillity, I shall have no thought of returning. Colonel Troup, a worthy, sensible young fellow, and a particular friend of mine, wishes to know where I shall prosecute my studies, and is determined, he says, to be my companion. A gentleman who has been long eminent at your bar, and whom we both know perfectly well, had made Troup some polite offers of his service as an instructor. He was pleased with the scheme, and as he knew the gentleman was professedly my friend, urged me to put myself also under his tuition. I mentioned to him in a late letter the objections which had been decisive with me, and I fancy he will view them in the same light. He is the companion I would wish in my studies. He is a better antidote for the spleen than a ton of drugs. I am often a little inclined to *hypo*.

My best respects attend Mrs. Paterson. Speak of her in your letters. I would not feel indifferent to one so near to you, even if no personal acquaintance had confirmed my esteem. You would have heard from me



sooner, but no post has rode this fortnight. I have been pursuing the track you marked out for me, though not with the ardour I could wish. My health will bear no imposition. I am obliged to eat, drink, sleep, and study, as it directs. No such restraint interrupts your bliss. May you feel no bonds but those of love and friendship—no rules but those that lead to happiness. Adieu.

Yours sincerely,

**A. BURR.**

**FROM COLONEL TROUP.**

Philadelphia, 29th February, 1780.

**MY DEAR BURR,**

Your favours of the 1st and 5th inst. came to hand last night, and are both before me. I am very much indebted to you for your candour in stating the objections which are against Princeton, as well as Mr. Stockton. I had anticipated them all. They are far from being groundless. But my situation was peculiar when I determined to live with Mr. Stockton. In my last a principle of delicacy induced me to be more reserved than is consistent with the sincerity of our affection for each other. Forgive my criminal reserve. I will be plain with you now.

By a strange kind of contracted system, which pervades all the civil establishments of Congress, I was reduced to the necessity of resigning my office at least six weeks sooner than I expected. Though I laboured both day and night, with as much drudgery as a negro on a plantation in the West Indies, the board of treasury did not think themselves authorized to report a

warrant in my favour for money to answer the common demands of living. They confined me to my salary of *ten thousand dollars* [3] per annum. Finding that I had not the most distant prospect of getting a decent support while I continued in office, and that I was obliged to pay four or five thousand dollars out of my own private purse for *necessaries*, *I cursed and quit them* the beginning of this month.

Being thus out of office, I thought it would be prudent to settle myself at the law without a moment's delay, both on account of the heavy expense of living in this city, and the loss of time, which is of the greatest consequence to me. I did not forget Mr. Paterson when I gave the preference to Mr. Stockton. The private character of the former is infinitely superior to that of the latter, and so is his public. But he is immersed in such an ocean of business, that I imagined it would be out of his power to bestow all the time and pains on our improvement we would wish. Besides, I was afraid of being more confined to the drudgery of copying in his office than I ought. This is inseparable from an office in which there is a good deal done, however well disposed a lawyer may be to promote the interest of his clerk. You observe that his present office expires next summer. I grant it. Yet he may be chosen attorney-general again; and this I believe will be the case, for there is not a man of sufficient abilities in the state, except him and Morris, to whom the people would give the office. Morris, I fancy, will not accept it if offered to him, as he has lately resigned his seat on the bench; and I will venture to predict that Paterson will be continued, though against his inclination.

Upon the whole, then, I feel extreme regret in telling you that I must go and sit down at Princeton the latter end of this week at farthest. The die is cast. My honour forbids me to act contrary to the engagement I have entered into with Mr. Stockton. Had I received your kind letter before my *absolute determination*, I should certainly have followed your advice. Our

plan, therefore, will be frustrated. Painful the reflection! You would hurt me exceedingly if you came to live at Princeton, and subjected yourself to the inconveniences you mention, merely to please me.

I am glad to hear your health is mending, and should be still more happy if it was unnecessary to make use of the mineral springs in the Clove. I have always suspected that the law would disagree with your delicate constitution. It requires the most intense study. Your ambition to excel will stimulate you to the closest application, and I dread the effects it may produce. You should therefore be cautious. Health is a source of more substantial pleasure than the most cultivated understanding.

A few days ago Dr. Edwards left a bundle of bills, amounting, as he says, to one thousand pounds, at Dr. Rush's for me, to be sent to you. I have not yet counted it, but I suppose it is right. To-day or to-morrow I shall leave a receipt for it at Dr. Rush's. I believe I shall presume so far upon your friendship as to borrow a part of it for my own use for about a fortnight. I am much disappointed in receiving a small sum to pay my debts in town. I sold two thousand dollars in certificates to Mr. Duer just before he left town, and he gave me an order upon a lady for the money. I find she will not be able to pay it for some time hence, and I am so pressed for cash that I have written to Duer, at Baskenridge, for the certificates or money immediately. I expect an answer every moment; and, till I receive it, shall consider part of yours as my own. The remainder I shall transmit you by the first safe conveyance. I think it would be wrong to trust the post with it.

I thank you sincerely for your offer of a horse. The present state of my finances is such that I cannot afford to keep one. If I could it might detach me from my studies. Beware of temptation, saith the Scripture, and so saith my interest.

I suppose you have read the king's speech. He makes no mention of his rebellious subjects in America, or of any allies, and is resolved to prosecute the war. The debates in the House of Lords, as well as Commons, on the motion for an address of thanks, were very warm. Lord North, in one of his speeches, makes no scruple of declaring that they have no allies to assist them. That they can get none. That the combined fleets have a *decided superiority*; and that it would have been highly dangerous for the English fleet to have fought them last fall. The bills on Spain and Holland sell very fast. They will all be disposed of in a very short time. There are large arrivals in Virginia and Maryland; and there are several vessels below, waiting for the river to be cleared of ice, which will be in three or four days. Poor *continental* is still going down hill. *Fifty-eight* was refused yesterday; and I have no doubt it will be *seventy* for *one* before ten days hence. Adieu. As long as you are Aaron Burr, I will be

ROBERT TROUP.

FROM MAJOR R. ALDEN.

I intended to have wrote you a letter in answer to your last, but neither head or heart will enable me at present. Although I am answerable for my conduct, yet I cannot govern the animal fluids. I am so much of a *lunatic thermometer*, that both *moon* and *atmosphere* very much influence my *aerial* constitution. My brain is subject to such changes, and so much affected by *external* objects, that I may be properly compared to a *windmill*. You may make the similitudes as you please. I have not a single sentiment in my head, or feeling in my heart, that would pay for expressing. At any rate, my mill will not grind. What is all this says my friend Aaron? The pleasure I enjoyed yesterday in feasting in good company, and in a variety of other agreeables, at the nuptial anniversary of our dear and happy

friends, Mr. and Mrs. Thaddeus Burr, has deprived me of that common share of sensibility which is generally distributed through the days of the year, and rather destroyed the equilibrium. I set out for camp the last of this week; may I expect letters from my friend? Be assured of my warmest friendship, and make me happy by the like assurance, as it will afford the sincerest pleasure to,

Yours, with affection,

**R. ALDEN.**

FROM WILLIAM PATERSON.

Rariton, April 14th, 1780.

**MY DEAR BURR,**

I take the earliest opportunity of acknowledging the receipt of your *dateless* letter, and returning you my best thanks for it. Mr. and Mrs. Reeve [4] have been so kind as to tarry a night with me. We endeavoured to prevail upon them to pass a few days with us, and should have been happy if we could have succeeded. This letter goes with them. That circumstance cannot fail, of making it still more welcome to your honest and. benevolent heart.

I wrote you the latter end of January from the Hermitage, and intrusted the letter to Mrs. Prevost. It was a mere scrawl. This is of the same cast. However, I promise, the very first leisure hour, to devote it entirely to you in the letter way. Although I do not write frequently to you, yet, believe me, I think frequently of you. Oh, Burr! may you enjoy health, and be completely happy; as much so as I am—more I cannot wish you. Nor will

you be able to attain high felicity until you experience such a union as I do. Mrs. Paterson is in tolerable health, and gives you her best respects. I wish her safely through the month of May, and then I shall be still more happy.

When you come to Jersey I shall certainly see you. If I do not, it will be treason against our friendship.

Peace is distant. There is no prospect of it in the present year. Nor do I think that Britain will come to terms while she fancies herself superior on the ocean. The war, however, goes southward, and there is some hope that we shall be more in quiet this year than we have been since the commencement of hostilities. On the opening of the campaign we shall be able to judge better. Adieu.

**WILLIAM PATERSON.**

**FROM COLONEL TROUP.**

Princeton, April 27th, 1780.

**MY DEAR BURR,**

I wrote to you yesterday, and happened to put the letter into the postoffice a little after the post had gone. In that letter I requested you to come here as soon as possible, for it was highly probable that I should leave Princeton entirely, and determine to follow our original plan. The event has confirmed my conjecture. I came here from General Morris's yesterday, and exerted all the influence I was master of to get new lodgings, but could not, without lodging in the town, which would be disagreeable to me on many accounts. I have now given over all thoughts of staying here; and, having an excellent pretext for changing my ground, I shall write to Mr. Stockton, who is still in

Philadelphia, and acquaint him with my intentions of going away. Nothing is therefore wanting but yourself, with a horse and chair, to make me completely happy. I wish to God I could push off eastward immediately, but I cannot. I have no horse, neither is it practicable to borrow or hire one. I must, then, wait for you; and I request you, in the most pressing terms, to lose not a moment's time in coming for me at General Morris's, about six miles from this, near Colonel Van Dyke's mill, on the road to Somerset, where I shall wait impatiently for you.

I am extremely uneasy lest this letter should reach you after you have left home, and begun your journey northward. In that case I shall be very unfortunate; and, to prevent too great a delay, I write to Mr. Reeves at Litchfield, and enclose him a letter for you, and desire him to forward it to you, wherever you are, with all expedition. I shall likewise enclose another for you to Mrs. Prevost, who will be kind enough to give it to you the moment you arrive there.

If we once get together, I hope we shall not be soon parted. It would afford me the greatest satisfaction to live with you during life. God grant our meeting may be soon. You have my best and fervent wishes for the recovery of your health, and every other happiness. Adieu.

**ROBERT TROUP.**

**TO COLONEL TROUP.**

Fairfield, 15th May, 1780.

**MY DEAR BOB,**

I wrote you from this place the 12th inst. This follows close upon it, that I may rest assured of your having heard from me.

I go to-morrow to Middletown, from whence I shall hasten my departure as much as possible. No trifling concerns should command me a moment; but business of importance, and some embarrassments too serious to be laughed out of the way, will, I fear, detain me this month. But the month is already gone before you can receive this. I hope your philosophy will not have forsaken you. Far from you be gloom and despondency. Attune your organs to the genuine ha! ha! 'Tis to me the music of the spheres; the sovereign specific that shall disgrace the physician's art, and baffle the virulence of malady. Hold yourself aloof from all engagements, even of the *heart*. We will deliberate unbiased, that we may decide with wisdom. I form no decision on the subject of our studies till I see you.

I write from the house of our friend Thaddeus, in a world of company, who are constantly interrupting me with impertinent questions. Your summons came unexpected, and found me unprepared. Nevertheless, my assiduity shall convince you that you may command

**A. BURR.**

FROM COLONEL TROUP.

At General Morris's, near Princeton, 16th May, 1780.

**MY DEAR BURR,**

I wrote you, about three weeks ago, a very pressing letter, and requested you to come for me here as soon as possible. My anxiety to see you is extreme, and, lest my letter should have miscarried, I cannot help troubling



you with another. Every thing, my dear Burr, has succeeded to my wishes. I have left Mr. Stockton upon the most friendly terms imaginable, and I am still at General Morris's to avoid expense, but am so situated that I cannot study. I assure you, my future prosperity and happiness in life depends, in a greater measure than you may imagine, on my living and studying with you; and the sooner we get seated in some retired place, where we may live cheaply and study without interruption, the better. I know myself—I think I know you perfectly. I am more deceived than ever I was if we do not live happily together, and improve beyond our most sanguine expectations. Delay not, therefore, a single moment, my dear Burr, but come for me yourself. A horse or a chair without you will be unwelcome. I want to consult you about several matters of importance to me before I leave this state. I say leave this state, for our original plan of studying with Mr. Osmer appears the most rational to me on many accounts.

I am so much attached to you, my dear Burr, and feel myself so much interested in every thing which concerns you, that I believe, and hope sincerely, it will be many years before we separate if we can once sit down together. As long as my slender fortune will permit me to live without business, we will, if you find it agreeable, enjoy the pleasures of retirement. And when we enter on the theatre of the world, why not act our parts together? Heaven grant that we may. I repeat it again, my dearest friend, lose not a moment's time in coming for me. It is painful to trespass so long upon General Morris's bounty, though he be my friend, and I have not any means of stirring an inch from him unless I walk. For fear you should not be at Middletown, I shall enclose a copy of this letter to Mr. Reeves, and request him to forward it to you immediately if you should not be with him.

With what pleasure did I receive yours of the 24th ult., at Princeton, the other day, when I went to pay Mr. Stockton a visit after his return from Philadelphia. I cordially congratulate you on the improvement of your

health by rash experiments. May it be as well established as my own, which is perfectly capable of the closest application. But I was not a little mortified to find you say nothing about your intention to ride to Jersey. Let me entreat you once more to set off as soon as possible. Every moment is precious, and ought to be employed to advantage. I shall wait for you with the greatest impatience; and, in the meantime, I am, what I always wish to be,

Your affectionate and sincere friend,

**ROBERT TROUP.**

**FROM COLONEL TROUP.**

Society-Hall, General Morris's, 23d May, 1780.

**MY DEAR AARON,**

My patience is almost exhausted. I have been waiting for you this month past. Here I am, a pensioner upon the bounty of my good friend General Morris, and am likely to continue so, unless you are kind enough to come and carry me away. This is the fifth or sixth letter I have written you on the subject. What can be the reason of the great delay in forwarding letters by the post? Your last was above a fortnight old before it got to Princeton; and, upon inquiry, Daddy Plumb informs me the riders are ordered to ride *forty miles* a day during the season. Must I attribute it to the fatality which has already separated us, and, I fear, is determined to put an eternal bar to our junction? Such an event would blast all my hopes of future happiness. My dear Aaron, I want words to express my pleasure in anticipating the satisfaction of retiring from the cares of the world with you, and living in all the simple elegance of ancient philosophers. We should make a rapid

improvement in every branch of useful literature; and when we came to act our parts on the theatre of the world, we might excite admiration, and, what would be infinitely more pleasing to us, we should be better men and better citizens.

After Mr. Stockton returned from Philadelphia, I communicated to him my situation and my intentions. He approved of my determination to go away, and gave me some advice, which you shall know when you see me. Thus I have left Mr. Stockton without causing the least uneasiness, and I am now ready to enter upon our old plan, which appears the most consistent with our present views. As I said in all my letters to you on the subject, I am here from a principle of economy; but it is disagreeable to stay so long as a visitor, and I am therefore obliged to request you to alter your intention about coming here, and set off the moment you receive this. I have no horse, and depend entirely upon you. Besides the time we lose by postponing our settlement, I have a matter of great importance to us both to communicate to you, that has no connexion with our studying, and which makes it necessary for me to see you immediately.

Poor Mr. Stockton is incurable. He cannot survive the summer.

Yours,

**ROBERT TROUP.**

**FROM COLONEL TROUP.**

Baskenridge, June 27th, 1786.

**MY DEAR AARON,**

After a very disagreeable ride indeed, I came here the day before yesterday in the afternoon; and yesterday morning, just as I was going to mount my horse, I was seized with a violent fever, which lasted till sunset. This morning I feel much better, though I am exceedingly weak. In a few minutes I shall take an emetic; after which I suppose the bark will be necessary. The fever seems to be of the intermittent kind, and, I think, is occasioned principally by riding in the hot sun. I am so agreeably situated here, that I shall stay till I recover, which I hope will be in three or four days. The family are very polite and attentive to me, and Dr. Cutting, who quarters in the neighbourhood, is both my physician and apothecary.

The Miss Livingstons have inquired in a very friendly manner about you, and expect you will wait upon them when you pass this way. Since I have been here, I have had an opportunity of removing entirely the suspicion they had of your courting Miss De Visme. [5] They believe nothing of it now, and attribute your visits at Paramus to motives of friendship for Mrs. Prevost and the family.

Wherever I am, and can with propriety, you may be assured I shall represent this matter in its true light.

I have obtained a few particulars of ——, which I was before unacquainted with, and which I cannot forbear communicating. He is the son of the vice-president of Pennsylvania, who I always understood in Philadelphia was a respectable merchant, and I believe is worth a moderate fortune, though I am not certain. His family was not ranked in the genteeler class before the war; but at present may be called fashionable, or *à la mode*. The girls here think him handsome, genteel, and sensible, and say positively he is no longer engaged to Miss Shippen. He has frequently spoken to them in raptures, latterly of Miss De Visme, and once declared he was half in

love with her. I have taken care to touch this string with the greatest delicacy.

How is your health? Better or worse? Pray neglect no opportunity of writing to me. Present my most respectful compliments to Mrs. Prevost and the family, and also the ladies on the hill.

Miss Susan Governor Livingston desires her compliments to you and the two families. So do Susan and Eliza Baskenridge.

Yours affectionately,

**ROBERT TROUP.**

FROM PETER COLT. [6]

Weathersfield, 7th July, 1780.

**MY DEAR SIR,**

Will you allow me that appellation, who have so long neglected to inform you of the situation of your affairs left in my hands? But figure to yourself the thousand embarrassments that have attended me in conducting my public concerns *towards a close*, and you will be led to put a more favourable construction on my conduct than I should otherwise expect.

My last informed you of the loss of the *Hawk*, being chased on shore the back side of Long Island. It was a few days after she went out on her last cruise, and before she had any success. Of course, about £20,000, the amount of her last outfits, were thrown away. I fear this will make her die in debt. Though all her goods are either sold or divided, yet her accounts are

not settled. I wish I could see a tolerable prospect of their being speedily closed. But the agents are embarrassed. As soon as I can get her accounts, will inform you of the state of this unlucky adventure. There is on hand some clothing, some duck, and rigging, out of which I hope to raise hard money. What shall I do with the other articles, a small parcel of glassware and rum, and the money arising from the sales of the vessel's sea-coat, &c.? I am advised to sell every thing for continental money, at the present going prices, and exchange it for hard. What is the exchange with you? With us it is from sixty to seventy for one. Let me know what I am to do with your money when I get it into my hands. I have not settled any of your accounts but Stanley's.

Your friends are generally well, and wish to hear from you. Miss H—— has been quite unwell since you left us, as she tells me she hears you are. You will not be vain when I add, she has more than once lamented *your ill state of health*, and expressed some fears that it was not growing better. The Sallys beg me to make their best wishes for your health and happiness acceptable to you. Shall I add, their love also?

Friend Wadsworth has engaged in the supplies for the French navy and troops. I think it will keep him employed, and much to his advantage.

Yours sincerely,

**PETER COLT.**

FROM PETER COLT.

Weathersfield, July 16th, 1780.

**DEAR SIR,**

I have to acknowledge the receipt of your polite and friendly letter of the 1st inst. My little family would have been too much elated with your attention to them had you not dashed the pleasure with the account of your ill state of health. Pray be more attentive to the recovery of it, even should it interfere with your study of the law. Let your diet and exercise be simple and regular; directed by experience. The former not too low. It is a good old maxim—be religious, but not superstitious. So respecting health, be exactly attentive, but not whimsical. Excuse the term, for invalids are but too apt to be governed by whim rather than reason and experience.

Enclosed you have an account current with the agents of the Hawk. Indeed, take it altogether, it is but a poor adventure. I shall endeavour the settlement of your account with Friend ——, and remit you. In the meantime, it will not be amiss to send me an account of money advanced to him.

As to news, must refer you to the newspapers, where you will get a large supply. I wish *our printers* did not deal so much in the marvellous. It is in vain for them to attempt copying Rivington. [7] They had better stick to the truth.

Yours, &c.,

**PETER COLT.**

**FROM COLONEL TROUP.**

Rariton, July 18th, 1780.

**MY DEAR BURR,**

Mr. Paterson went to Brunswick court this morning. The few lines by Dr. Brown are the first I have had from you since I left Paramus; where the other letters you refer to stay, I know not.

I am charmed with my present situation in every respect. It could not be more agreeable to my wishes. I shall have reason to thank you, as long as I live, for my change. The man I lodge with is an able farmer—has a large house—is fond of me, and is possessed of every thing a reasonable person could expect or wish for. I study attentively, and have no interruption whatever. There is an agreeable neighbourhood in this part of the country, and, when I choose, I can unbend myself in very genteel company.

I am reading Wood at present. I have almost done with his 4th chapter, and am looking over his chapter on courts. I confine my whole attention to the practice, for reasons I will tell you when we meet. I am translating Burlamaqui's Politic Law. Reading Robertson's Charles V., Dalrymple on Feudal Property, and Swift's Works. The morning I devote to the law. I am up sometimes before, generally at sunrise. From two to half after three in the afternoon, and from nine to eleven in the evening, I apply to other matters. I am in a fair way, if public affairs will suffer me, to be retired.

Paterson is the very man we want. He is sensible, friendly, and, as far as I am capable of judging, profound in the law. He is to examine me on Saturday or Monday on what I have read, and I am preparing accordingly. I have heard him examine Noel yesterday on the practice, and I find his examinations are critical. In a couple of months I expect to be as far advanced in the practice as Noel. I cannot bear that he should be before me. It must not, it shall not be.

My health is perfectly restored, and I am now as well as ever I was. I am happy to hear you grow better. May you soon be well enough to join me.



The weather is so intensely hot, and I am so closely engaged in study, that I cannot determine when I shall pay you a visit.

Yours, &c.,

**ROBERT TROUP.**

**FROM COLONEL TROUP.**

On the Rariton, 21st August, 1780.

**MY DEAR BURR,**

The account I have given of my situation is far from a fiction. You will find it a pleasing reality when you come here, which I suppose you will postpone till you see me, as I have no doubt at present that the second division of the French fleet has arrived, with a re-enforcement of 4000 troops. This event will render it necessary for me to be ready to move at a moment's warning; and, presuming there will be no delay in commencing our operations, I think, in the course of a fortnight, or three weeks at most, I shall be at Paramus.

Will your health permit you to join the army? I fear not. Fatigue and bad weather may ruin it. I confess I am much disappointed in my opinion of the mineral waters. From your letters, I conclude the stock of health you have gained since I left you is scarcely perceptible. Something else must be tried. Life is precious, and demands every exertion and sacrifice to preserve it. Mr. Paterson and I have often spoken together on this subject, and we both agree that a ride to the southward next winter, and a trip to the West Indies in the spring, would be of infinite service to you. This might be done with ease in five or six months.

Mrs. Paterson is perfectly recovered, and her little girl grows finely, and promises to be handsome. Mrs. Paterson often asks about you, and seems anxious to have you among us. When you come, remember to bring with you the book you took with you on our way to Paramus. I believe it is an essay on health. Mrs. Paterson wants it, the idea you gave me of her is just. She is easy, polite, sensible, and friendly. Paterson is rather deficient in the graces, but he possesses every virtue that enters into the composition of an amiable character.

I can hardly go out anywhere without being asked a number of questions about you. You seem to be universally known and esteemed. Mr. Morris's family are exceedingly particular in their inquiries concerning your health. It would be easier for you to conceive, than for me to tell you, how much they like you. They insist upon our paying them a visit as soon as you are settled here, which I have promised, on your part as well as my own.

Let me entreat you to avoid engaging any of your French books in Connecticut, especially Chambaud's Exercises, to any person whatever. I, and perhaps you, will stand in need of them all.

I am greatly indebted to the good family for their favourable sentiments, which, as I said once before, must proceed more from affection to you than what they find meritorious in me. I am certain, however, that their esteem for me cannot exceed mine for them, and this you will be kind enough to hint to them when you present my respectful compliments. Assure Dom. Tetard of my friendship for him, and fixed determination to use all endeavours to metamorphose him into a Crassus after the war is ended. Adieu

**ROBERT TROUP.**

Footnotes:

1. Late President of the United States.
2. The residence of Mrs. Prevost.
3. Continental paper dollars—equal in value to *sixty for one silver dollar*.
4. Judge Tappan Reeve, whose lady was the sister of Colonel Burr.
5. The sister of Mrs. Prevost
6. Deputy quartermaster-general; subsequently commissary for the French army, and treasurer of the state of Connecticut.
7. Printer to the king in the city of New-York.

## CHAPTER XIII.

FROM WILLIAM PATERSON.

Morristown, 27th August, 1780.

MY DEAR BURR,

I was not at Rariton when the doctor, who was the bearer of your letter, passed that way. It would have given me pleasure to have shown him every mark of attention and esteem in my power.

I dare say you count it an age since I have written you; and, indeed, I must confess that the time has been long. Your good-nature, however, will induce you to forgive me, although I cannot expect it from your justice. I hope the water you drink will prove medicinal, and soon restore you to health; although I am more disposed to think that it will take time, and be effected gradually. Persons indisposed (I speak from experience) are generally impatient to become well, and that very impatience has a natural tendency to prevent it. Do not be restless, my dear Burr; nor think that, because you do not get well in a month, or in a season, you will not get well at all. The heat of this summer has been intense, nor is it as yet much abated. Perhaps that too may have had some effect upon you. The hale and hearty could scarcely bear up under it. May health soon visit you, my good friend.

Mrs. Paterson is well. Our little pledge, a girl, Burr, [1] has been much indisposed, but is at present on the mending hand. I am from home as usual. My official duty obliges me to be so. I grow quite uneasy under it, and I find ease and retirement necessary for the sake of my constitution, which has been somewhat broken in upon by unceasing attention to business. The business has been too much for me. I have always been fond of solitude, and, as it were, of *stealing* along through life. I am now sufficiently fond of domestic life. I have every reason to be so. Indeed, I know no happiness but at home. Such one day will be your situation.

My compliments to the family at the Hermitage. I shall write you before I leave this place.

Yours, &c.

**WILLIAM PATERSON.**

**FROM WILLIAM PATERSON.**

Morristown, 31st August, 1780.

**MY DEAR BURR,**

It is now near the midnight hour, and yet, late as it is, I could not acquit myself to my conscience if I had not again written you before I left this place, which will be early tomorrow. My life is quite in the militant style—one continued scene of warfare. From this place I go down to the Supreme Court at Trenton, which will be on Tuesday next, and the Tuesday after that I shall return once more to Morristown, and when I shall leave it will be uncertain. I rejoice when the hour of rest comes up, and sicken at the approach of day. Business fairly bears me down. The truth is, that I am tired

of writing, tired of reading, tired of bustling in a crowd, and, by fits, heartily tired of myself.

I hope you go on gaining strength, and that you will in a little while get the better of your disorder. The mind and the body affect each other extremely. To a person in your state, hilarity, cheerfulness, a serene flow of spirits, are better than all the drugs in a doctor's shop. Gentle exercise is of infinite service. I hope you are not wanting in any of these. If you are, I cannot easily pardon you, because they are all within your power.

Make my compliments acceptable to the family at the Hermitage. I have a high regard for them, and sincerely wish their happiness. I really pity and admire Mrs. Prevost. Her situation demands a tear; her conduct and demeanour the warmest applause. Tell Mrs. Prevost that she must remember me among her friends; and that I shall be happy to render her all the service in my power.

Since I have been at this place I have had a letter from Mrs. Paterson, who is well. Our little girl, who was indisposed when I left home, is not worse. I flatter myself I shall find her better when I return. Alas, that I cannot be more at home. A husband and a parent have a thousand tendernesses that you know nothing of. Adieu, my dear Burr; live and be happy.

**WILLIAM PATERSON.**

**FROM COLONEL TROUP.**

Morristown, October 23d, 1780.

**MY DEAREST FRIEND,**

I want words to express the pleasure I feel at the receipt of yours of the 22d, by the boy who came for your horse. It relieved me from a burden which had sunk my spirits lower than I recollect them to have been by any calamity I have met with during the war. My imagination had crowded my mind with a thousand melancholy reflections from the moment I got your letter by Dr. Cutting, who, like a modern well-bred gentleman, left it at my lodgings only three days ago. Some evil genius certainly interrupts our correspondence. I write letters without number, and yet you seldom hear from me, and when you do, the letter is as old as if it had come from the other side of the Atlantic. It is exactly the case with yours.

Mr. Paterson has been more unfortunate than I. He has often complained of your neglect, as he thought it; but I informed him of the fate my letters shared, and he was easy. However, he desired me last night to give you a hint, that he had lately written you several long letters without receiving an answer to either. He is now at Princeton, attending court. I shall forward your letter that accompanied mine to him by a safe conveyance. Paterson really loves you with the tenderest affection, and can scarcely speak of your state of health without shedding a friendly tear. As God is my judge, I could not forbear shedding several when I read yours by Dr. Cutting, which is the first I have had from you in near five weeks. I was afraid all farther attempts to recover your health, so as to qualify you to execute our plan, would be fruitless. In short, I thought you on the brink of eternity, ready to take your final farewell of this wrangling world. The critical situation of your sister increased my distress, and extinguished every hope. How much more happy should I be if your sister's health took the same fortunate turn. Your ride to Litchfield must be doubly agreeable, as it will tend to establish your health and better hers.

I must now communicate to you a disagreeable piece of news respecting myself. It shows how rare it is to find a man of real disinterested

benevolence. Sears and Broome, I understand by Mr. Noel, who returned from Philadelphia a few days ago, have protested the bill I drew upon them last summer. Colonel Palfrey bought it, and has it returned to him, for what reasons I cannot say positively, but I suspect they are determined not to assist me, although they were lavish of their offers when they supposed I never would be reduced to the necessity of accepting them. Such conduct is characteristic of excessive meanness of spirit, and I confess I am deceived in my opinion of them most egregiously. True it is, that instances of this kind of behaviour often occur in our intercourse with mankind; but, from the fortunes these men have made since the war, and the frequent reports of their generosity, I was led to imagine there was something more than mere idle compliment and ostentatious parade in their offers. I was deceived, and I hope it will be the last time. This affair has wounded my pride so sensibly, that I shall be extremely cautious in future. I must and will endeavour to adopt some mode of drawing supplies from my certificates, which will be three years old next spring, and therefore ought to be taken up by Congress. By the table of depreciation published by Congress to regulate the payment of the principal of their certificates, I am entitled to three hundred and fifty pounds, at the very lowest calculation, and this sum in specie.

When you come here you must exert all your abilities in finance, to make me no longer dependant upon the bounty of friends; or rather, I should say, your bounty, for you are the only person I have borrowed money of. Till that time, my dear friend, can you keep me above water, and do justice to yourself? Will you be able to extricate me from the difficulties attending this bill? In plain terms, can you spare me the amount of it? My reputation suffers by having the bill protested, and I must, in a short time, send the money to Colonel Palfrey, for I am persuaded I have no farther ground to expect the least assistance from Sears and Broome. Fail not, by any means, to write me on this subject before you leave Paramus, and be careful how you send the letter.



There is nothing but your health and my poverty that retards my progress in study. They are fruitful sources of disquietude. When I lay me down to sleep, they often prevent me from closing my eyes. When I look into a book, they present a variety of melancholy images to my imagination, and unfit me for improvement. In all other respects I am situated to my wishes: Paterson treats me as a bosom friend. He has gone so far as to press me in the warmest terms to command his purse. How I shall be able to requite your friendship is a matter beyond my penetration. I declare, before the Searcher of all hearts, that I consider your happiness and welfare as inseparable from my own, and that no vicissitudes of fortune, however prosperous or calamitous they may be, will ever tear you from my heart. Circumstanced as I now am, words are the only proofs I can give you of my gratitude and affection. Time will prove whether they are the cant of hypocrisy or the language of esteem.

I lent your horse to Mrs. Paterson about a week ago, to carry her to Elizabethtown to see her brother, who was to meet her there from New-York; and disappointments in not seeing him, from day to day, have detained her much longer than was expected, and it is probable that she will not return until Thursday next; I have therefore sent the boy down to Elizabethtown, or, more properly, shall send him in the morning, with Mr. Noel's horse, which will answer full as well in the wagon. This change will produce no inconvenience at all, and is better than to detain the boy till Mrs. Paterson returns. She was exceedingly well when she left home, and so was her little girl, which is handsome, good-tempered, fat, and hearty. I am very particular in presenting *her* your respects, and *she* is as particular in inquiring about you.

Bring all the French books you can from Connecticut, particularly Chambaud's Exercises, and all the other elementary books you have. I should be fond of having the perusal of Rousseau's Social Compact, if you

can borrow it of Mrs. Prevost for me. I am quite rusty in the French, for I have neglected it totally for two or three months. The business of the office has engrossed so much of my attention, that I have not lately read any other book but Blackstone. I am still in the third volume. I digest thoroughly as I advance. I have unravelled all the difficulties of the practice, and can do common business with tolerable dexterity.

The horse will be delivered to you without a saddle. Gales, a young fellow who was studying with Mr. Paterson, requested me to lend it to him to ride as far as Newark last August, and he ran off to New-York, and I never could get the saddle again. This piece of villany I could not foresee, and it surprised almost as much as Arnold's. The grass has been very short, and I fancy the horse will be leaner than you expect. He is a most excellent saddle-horse.

I am extremely sorry to hear Mrs. Prevost and her sister are unwell. Remember me to them in the most friendly manner. Give my compliments also to Dr. Latimer, and all friends in the army near you. Don't forget Mrs. De Visme, the children, Dom. Tetard, and the family on the hill, although I hear they are strongly prejudiced against me. Mrs. Judith Watkins, as you well know, has spoken maliciously. She is far from being your friend. Every thing that passed one day at dinner in confidence respecting our reception at her house, has been told to her and her husband, with no small exaggerations, by some person of the company. Governor Bill Livingston related some particulars that astonished me, and added, that he and Mr. and Mrs. Watkins thought it cruel in you to put such an unfair construction upon Watkins's behaviour to us. All this talk is beneath our notice. What I said to Bill was sufficient to erase any unfavourable impression from a candid mind. If it has not produced that effect, any further attempt to refute the calumny will only serve to confirm it.

Mrs. P. Livingston is here, and desires her respects to you. She was glad to hear of the prospect you have of growing hearty. She is an amiable woman, and loves you. Your friend,

**ROBERT TROUP.**

The preceding correspondence contains in itself a tolerable history of Colonel Burr's situation and employment from the summer of 1779 until the autumn of 1780. After retiring from the army, he suffered most severely from ill health—that ill health was, in a great degree, produced by the fatigues and exposure on the 27th and 28th of June, 1779, at the battle of Monmouth. His constitution was feeble, and had been shattered by his unparalleled vigilance in the winter of 1778-79, while commanding the advanced post in Westchester. But the battle of Monmouth seemed to have given it the finishing stroke.

The letters of Judge Paterson and Colonel Troup afford the best evidence of his ill health, and of their affectionate devotion to him as friends. They are given at some length, because they present rare and extraordinary examples of fidelity in friendship. Both these gentlemen preceded Colonel Burr to the tomb. Both continued to respect, to esteem, and to love him, to their last hour. Their character requires no panegyric. Colonel Troup lived until the year 1832. In manhood, for more than half a century, he venerated Colonel Burr for his genius, his talents, his chivalry, his intrepidity of character, his disinterestedness, his generosity. He deplored his weaknesses, and abhorred his vices. But when he viewed the whole man, from youth to more than threescore and ten years, he loved and respected him. Both these distinguished citizens, as politicians, were opposed to Colonel Burr from the year 1788 until the close of their lives.

In the autumn of 1780, Colonel Burr commenced the study of law with Judge Paterson, who resided at that time on the Rariton, about twenty miles from Brunswick, in New-Jersey. Here he remained till the spring of 1781. The judge was a man governed by fixed and settled rules. In the application of these rules Colonel Burr found that his study of the law would require much more time to prepare him for an examination than he was willing to devote. He concluded that there must be a shorter mode to get at the mechanical or practical part; and, having determined to make the experiment, he left the office of Judge Paterson.

From New-Jersey, in the spring of 1781, he removed to Haverstraw, then in Orange county, State of New-York. Residing at this place was Thomas Smith, Esq., formerly of the city of New-York, and brother to William Smith, the king's attorney-general. Thomas Smith had a good law library, which had been removed from the city into the Highlands for safety. With Smith, Colonel Burr made an arrangement to study on a plan of his own. By the contract, for a specified sum to be paid, Smith was to devote certain portions of his time to Burr. At these interviews, he was to answer such questions as Burr propounded. The answers were taken down in writing, and formed the basis of additional interrogatories; while, at the same time, they aided in directing his attention to those legal points or authorities which were necessary for him to examine or read. During the time he remained at Haverstraw, he studied from sixteen to twenty hours a day.

In the summer of 1780, Major Andre, of the British army, was in correspondence with Mrs. Arnold (the wife of General Arnold), under a pretext of supplying her, from the city of New-York, with millinery and other trifling articles of dress. On the 23d of September, 1780, Major Andre was captured, and the treason of the general discovered. When this news reached West Point, Mrs. Arnold became, apparently, almost frantic. Her situation excited the sympathy of some of the most distinguished officers in

the American army. Mrs. Arnold, having obtained from General Washington a passport, and permission to join her husband in the city of New-York, left West Point, and on her way stopped at the house of Mrs. Prevost, in Paramus, where she stayed one night. On her arrival at Paramus the frantic scenes of West Point were renewed, and continued so long as strangers were present. Mrs. Prevost was known as the wife of a British officer, and connected with the royalists. In her, therefore, Mrs. Arnold could confide.

As soon as they were left alone Mrs. Arnold became tranquillized, and assured Mrs. Prevost that she was heartily sick of the theatrics she was exhibiting. She stated that she had corresponded with the British commander—that she was disgusted with the American cause and those who had the management of public affairs—and that, through great persuasion and unceasing perseverance, she had ultimately brought the general into an arrangement to surrender West Point to the British. Mrs. Arnold was a gay, accomplished, artful, and extravagant woman. There is no doubt, therefore, that, for the purpose of acquiring the means of gratifying an inordinate vanity, she contributed greatly to the utter ruin of her husband, and thus doomed to everlasting infamy and disgrace all the fame he had acquired as a gallant soldier at the sacrifice of his blood. Mrs. Prevost subsequently became the wife of Colonel Burr, and repeated to him these confessions of Mrs. Arnold.

The preceding statement is confirmed by the following anecdote. Mrs. Arnold was the daughter of Chief-justice Shippen, of Pennsylvania. She was personally acquainted with Major Andre, and, it is believed, corresponded with him previous to her marriage. In the year 1779-80, Colonel Robert Morris resided at Springatsbury, in the vicinity of Philadelphia, adjoining Bush Hill. Some time previous to Arnold's taking command of West Point, he was an applicant for the post. On a particular occasion Mrs. Arnold was dining at the house of Colonel Morris. After

dinner, a friend of the family came in, and congratulated Mrs. Arnold on a report that her husband was appointed to a different, but more honourable command. The information affected her so much as to produce hysteric fits. Efforts were made to convince her that the general had been selected for a preferable station. These explanations, however, to the astonishment of all present, produced no effect. But, after the treason of Arnold was discovered, the family of Colonel Morris entertained no doubt that Mrs. Arnold was privy to, if not the negotiator for, a surrender of West Point to the British, even before the general had charge of the post.

In the autumn of 1781 Colonel Burr left Haverstraw and went to Albany, with a determination to make an effort to be admitted to the bar. He continued his studies with the most untiring industry. He had his own apartments and his own library, sleeping, when he did sleep, in a blanket on the floor.

Colonel Burr's liberality in pecuniary matters had tended to impair his private fortune. No man possessed a more benevolent heart. The following letter presents one case out of many which might be enumerated, evincing his generosity, and the delicate manner in which he could confer a favour. Major Alden had become embarrassed in his circumstances, and was greatly at a loss for a profession, at the approaching close of the war, by which he might acquire a decent support. These reflections rendered him gloomy and desponding. At length he unbosomed himself to Colonel Burr, who thus replies to his letter:—

**TO MAJOR R. ALDEN.**

Rariton, February 15th, 1781.

**DEAR SIR,**

If it will solace your woes to know there is a heart that feels them as its own, that heart is mine. The thwarts of delicacy, which you would exclude from the catalogues of distress, are certainly the keenest humanity can feel. I know their force. I have felt them in all their pungency.

A want of uniformity in the mode and object of my pursuit has been long my misfortune, and has, I fear, been yours. There is a persevering firmness that will conquer embarrassment, and, aided with the secret smile of an approving conscience, cannot fail to put us above the power of adversity. Thus "we shall shun misfortunes, or shall learn to bear them."

I have ever found the moment of indecision to be the moment of completest anguish. When our resolutions are taken with determined firmness, they engross the mind and close the void of misery. Yes, my friend, save the pang of sympathy, I am happy. These are my halcyon days. Let us taste them together. We shall mutually heighten their relish. Let us rescue some moments of rational enjoyment from the wreck of impetuous time. Friendship shall smooth the rugged path of science, and virtue cheer the way.

If law is your object, this situation is favourable to the pursuit. You shall have access to the library and office, without the customary expense. Your *ostensible reason* for coming here shall be to pursue your studies with me, under my friend Mr. Paterson. The two boys [2] I wish you to instruct are of the sweetest tempers and the softest hearts. A frown is the severest punishment they ever need. Four hours a day will, I think, be fully sufficient for their instruction. There are hours enough left for study—as many as any one can improve to advantage; and these four will be fully made up to you by the assistance you will derive from such of us as have already made some small progress.

If it is possible, we live together. At any rate, you shall live near me; we shall at least meet every day, or oftener, if we please. Nothing will interrupt us. We will regulate our own amusements and pursuits. Here are no expensive diversions of any kind. Your salary shall be a genteel maintenance in such a situation. You shall have sixty pounds, New-York currency, which is more than I expend here. You will find it impossible to spend a farthing except board and clothing. If, from this short sketch, you think the situation adapted to your views, of which I feel a pleasing assurance, acquaint me immediately, that I may prepare for your reception.

I purpose bringing the boys here the beginning of April. Be here by that time, if possible. Get Mr. Thaddeus Burr to enclose your letter to Loudon the printer, who will be careful to forward it to me. How could I write to you How divine your residence? Never again harbour, for a moment, a surmise that derogates from my sincerity.

My health is nearly established. I have not enough to despise the blessing, but enough to relish every enjoyment of life. Adieu, my friend; may that cheerfulness of which you have been robbed return, and be as permanent as your merit or my affection.

**A. BURR.**

**FROM THOMAS SMITH.**

Haverstraw, 1st March, 1781.

**DEAR SIR,**

The preparations at New-York look this way, and that inclines me to seek an asylum in New-Jersey, any part of which I believe will be safe, if



Hudson's river is the object of the enemy. If I could get Mrs. De Visme's place, it would be most agreeable to Mrs. Smith. A few weeks will determine me, and then I shall be in a situation to give you and Colonel Troup every assistance in my power. As it is your object to fit yourselves as soon as possible for admission to the bar, without submitting to the drudgery of an attorney's office, in which the advancement of the student is but too often a secondary consideration, I should cheerfully devote a sufficient part of my time to lead you through the practice of the law in all its parts; and make no doubt, with close application on your part, I should be able in a short time to introduce you to the bar, well qualified to discharge the duties of the profession, with honour to yourselves, and safety to your clients.

My library is now in a situation to be removed. Two boxes are missing, and I fear have fallen a sacrifice to the liberty of the times. I only wait till the roads will permit me to remove the remainder down, as I think my books by no means safe where they now are, if the forts should be attacked.

Your obedient servant,

**THOMAS SMITH.**

At this period Colonel Burr was closely engaged in his studies. His constitution was somewhat renovated. His correspondence now became limited, and was principally confined to Mrs. Prevost. Here again the peculiarity already referred to was in full operation. The greater part of this correspondence is in cipher. But portions of it that are not thus written are highly interesting, and give evidence that Mrs. Prevost possessed a cultivated mind. Her health was very feeble, and continued so, after she became the wife of Colonel Burr, until her decease. Some extracts from her letters will be given.

## FROM MRS. PREVOST.

Litchfeld, February 12th, 1781

I am happy that there is a post established for the winter. I shall expect to hear from you every week. My ill health will not permit me to return your punctuality. You must be contented with hearing once a fortnight.

Your opinion of Voltaire pleases me, as it proves your judgment above being biased by the prejudices of others. The English, from national jealousy and enmity to the French, detract him. Divines, with more justice, as he exposes himself to their censure. It is even their duty to condemn his tenets; but, without being his disciple, we may do justice to his merit, and admire him as a judicious, ingenious author.

I will not say the same of your system of education. Rousseau has completed his work. The indulgence you applaud in Chesterfield is the only part of his writings I think reprehensible. Such lessons from so able a pen are dangerous to a young mind, and ought never to be read till the judgment and heart are established in virtue. If Rousseau's ghost can reach this quarter of the globe, he will certainly haunt you for this scheme—'tis striking at the root of his design, and destroying the main purport of his admirable production. *Les foiblesses de l'humanité*, is an easy apology; or rather, a license to practise intemperance; and is particularly agreeable and flattering to such practitioners, as it brings the most virtuous on a level with the vicious. But I am fully of opinion that it is a much greater chimera than the world are willing to acknowledge. Virtue, like religion, degenerates to nothing, because it is convenient to neglect her precepts. You have, undoubtedly, a mind superior to the contagion.

When all the world turn envoys, Chesterfield will be their proper guide. Morality and virtue are not necessary qualifications—those only are to be

attended to that tend to the public weal. But when parents have no ambitious views, or rather, when they are of the more exalted kind, when they wish to form a happy, respectable member of society—a firm, pleasing support to their declining life, Emilius shall be the model. A man so formed must be approved by his Creator, and more useful to mankind than ten thousand modern beaux.

If the person whose kind partiality you mention is Paterson, I confess myself exceedingly flattered, as I entertain the highest opinion of the perspicuity of his judgment. Say all the civil things you please for his solicitous attention to my health. But if it should be Troup, which I think more probable, assure him of my most permanent gratitude.

Affectionately,

**THEODOSIA PREVOST.**

**FROM MRS. THEODOSIA PREVOST.**

Litchfield, 6th March, 1781.

——Where can —— be? Poor suffering soul; worthy a better fate. Heaven preserve him for his own sake; for his distressed mother's. I pity her from my heart, and lament my inability to alleviate her sorrows. I invoke a better aid. May her "afflicted spirit find the only solace of its woes"—Religion, Heaven's greatest boon to man; the only distinction he ought to boast. In this, he is lord of the creation; without it, the most pitiable of all created things.

How strangely we pass through life! All acknowledge themselves mortal and immortal; and yet prefer the trifles of to-day to the treasures of eternity.

Piety teaches resignation. Resignation without piety loses its beauty, and sinks into insensibility. Your beautiful quotation is worth more than all I can write in a twelvemonth. Continue writing on the subject. It is both pleasing and improving. The better I am acquainted with it, the more charms I find. Worlds should not purchase the little I possess. I promise myself many happy hours dedicated at the shrine of religion,

Yours, affectionately,

**THEODOSIA PREVOST.**

**FROM MRS. THEODOSIA PREVOST.**

Litchfield, May, 1781.

Our being the subject of much inquiry, conjecture, and calumny, is no more than we ought to expect. My attention to you was ever pointed enough to attract the observation of those who visited the house. Your esteem more than compensated for the worst they could say. When I am sensible I can make you and myself happy, I will readily join you to suppress their malice. But, till I am confident of *this*, I cannot think of our union. Till then I shall take shelter under the roof of my dear mother, where, by joining stock, we shall have sufficient to stem the torrent of adversity.

You speak of my spirits as if they were at my command, or depressed only from perverseness of temper. In these you mistake. Believe me, you cannot wish their return more ardently than I do. I would this moment consent to become a public mendicant, could I be restored to the same tranquillity of mind I enjoyed this time twelvemonth. The influence my letters may have on your studies is imaginary. The idea is so trite that I ask in hopes it was worn from your mind. My last year's trials are vouchers. I

was always writing with a view to please you, and as often failed in the attempt. If a desire for my own happiness cannot restore me to myself, pecuniary motives never can. I wish you to study for your own sake; to ensure yourself respect and independence; to ensure us the comforts of life, when Providence deigns to fit our hearts for the enjoyment. I shall never look forward with confidence till your pride extends to that. I had vainly flattered my self that pride was inseparable to true love. In yours I find my error; but cannot renounce my idea of its being a necessary support *to*, and the only security *for*, permanent affection.

You see by the enclosed how ready my friends are to receive you, and promote your interest. I wish you may be fortunate in executing aunt Clark's business. My health and spirits are neither better nor worse than when you left me. I thank you for your attention to Bird's prescription.

Adieu,

**THEODOSIA PREVOST.**

**FROM MRS. THEODOSIA PREVOST.**

Sharon, September 11th, 1781.

My friend and neighbour, Mr. Livingston, will have the pleasure of presenting you this. You will find him quite the gentleman, and worthy your attention. Enclosed is a letter to my sister, which must be delivered by yourself. You know my reasons too well to infer from my caution that I entertain the least doubt of Mr. Livingston's punctuality.

Monsieur Tetard is gone to the manor, summoned by Mrs. Montgomery, on pretence of his being the only surviving witness to the general's will. The

business that was to have detained him but a few days has kept him these six weeks. I cannot account for his delay, unless his extravagant encomiums on the progress of a friend of yours has proved a stimulation to those of superior talents. He exaggerates exceedingly in extolling his pupils. Those whose expectations are raised from his description must prepare themselves for disappointment.

Mr. and Mrs. Reeve were well a few days ago. She rides every morning to visit the boy, and returns before breakfast. I fear they will disappoint me in the promised visit.

We were obliged to Dr. Cutting for the most pleasing account of your health and spirits. Also, of your great progress in law. Judge Hobart expects Colonels Burr and Troup will make his suite to the October court, where he hopes to usher them, with all the eclat due to their merit. He counts the weeks, which he has now reduced to five. While the warmth of friendship animates his countenance, his heart swells with pride at the honour of patronising two such characters. He must not be disappointed; this must be the route, or he will believe himself slighted. I am obliged to his zeal, as it will procure us the pleasure of seeing you. The sight of an old acquaintance is quite a phenomenon. I am not surprised that genuine hospitality is fled to cottages. You will find it *à la rustique* chez votre amie.

**THEODOSIA PREVOST.**

**FROM MAJOR R. ALDEN.**

Fairfield, 26th February, 1781.

**DEAR BURR,**

Your letter of the 15th inst. pleases me. You have a heart that feels: a heart susceptible of tender friendship. Life has not a single charm to compare with such sensations. You know too well how to excite such emotions. Happy for us. These expel the keenest pangs. There is no such thing as real happiness. At best, it is but a delusion. We make our own pleasures as we do our troubles. Friendship will heighten the one and moderate the other.

I have been tortured with the anxiety of suspense. It has given me the most poignant distress. It disordered my mind; at times, almost drove me to despair. Some of my friends saw the effect, but could not conjecture the cause. You alone could penetrate the feelings of my heart; you alone are in possession of that evidence which will convict me of my weakness; my want of fortitude. I dare intrust you. I feel the influence of your friendship. To a heart like yours, this will prove the sincerity and affection of mine. I bid adieu to camp, having completed my business, with my thanks to our worthy commander-in-chief for his attention to my character. The discharge he gave me equalled my wishes and exceeded my expectations. I have enjoyed the most rational satisfaction for three days past. I have commenced student. Dr. Johnson has given me my plan of studies, and free access to his library. My ambition is not great, nor my views unbounded. I shall proportion the means to the object. If I persevere with attention, I have something more than wishes to build upon. Nothing within the compass of my abilities, that is justifiable, will be left untried, to gratify my reasonable desires.

I know that your request proceeded entirely from your friendship for me, and that you felt happy that it was in your power to oblige me. I feel the force of your kindness, but must deny myself the pleasure of spending some months with my friend. My time is short; age presses upon me. Four years

have been devoted to my country, for which I have received no compensation.

It gives me pleasure to hear that your health is such that you can be thankful for the blessing, and are in a situation to enjoy yourself in the pursuit of your studies. My heart is sincerely interested in your happiness. Let me know your feelings, that I may know how to refine mine. Your friendship and letters add a continual charm to my life, and will always please the heart and secure the affection of, yours,

With sincerity,

R. ALDEN.

TO MRS. PREVOST.

Albany, 5th June, 1781.

I was absent when yours of the 10th ultimo came, and therefore did not receive it till the first inst. You may be assured will one day repent his insolence. Uniformity of conduct and great appearance of moderation are all that can be put in practice immediately. The maxim of a man whom neither of us esteem very highly is excellent on this occasion—"*Suaviter in modo, fortiter in re.*" See, my dear Theodosia, what you bring upon yourself by having once piddled at Latin. The maxim, however, would bear sheets of comment and days of reflection. I second the just pride of —, in being averse to crouch to a villain. Your letter to E. would have every influence that mine possibly could.

These crosses are of that class which, though they may perplex for a moment (a moment is too much), yet cannot affect our real happiness. That



mind is truly great which can bear with equanimity the trifling and unavoidable vexations of life, and be affected only by those events which determine our substantial bliss. Every period, and every situation, has a portion of these trifling crosses; and those who expect to avoid them all, or conquer them all, must be wretched without respite. Witness ——-. I am half vexed at the manner in which you speak of what you term "the sorrows of ——-." They are just of this trifling kind. Say and think no more of them. Their impression was momentary, and is long past.

G.'s uniformity of conduct for some time has established his character, and crushed the malice of his enemies. He has, however, mingled some address in his deportment—has made visits, and some acts of civility, to his avowed enemies, by which means he has gained some and silenced others. His whole conduct, his language, and even his thoughts, seem to have in view the happiness of. I believe this idea is impressed on him every hour of his life.

Yours,

A. BURR.

TO CHIEF-JUSTICE MORRIS.

Albany, 21st October, 1781.

SIR,

I do myself the honour to enclose you several letters, which were intended, I believe, to introduce me to your acquaintance, perhaps to your friendship. I am particularly unfortunate to see neither Mr. Hobart nor yourself on the present occasion; the more so, as I find a rule of unexpected

rigour, which, if strictly adhered to, must effectually exclude me from this bar. Mr. Judge Yates gives me reason to hope this rule may be enlarged. If it should be deemed unadvisable to make one of such latitude as may include me within a general description, perhaps my particular situation may be thought to claim particular indulgence. Before the revolution, and long before the existence of the present rule, I had served some time with an attorney of another state. At that period I could have availed my self of this service; and, surely, no rule could be intended to have such retrospect as to injure *one whose only misfortune is having sacrificed his time, his constitution, and his fortune, to his country.*

It would give me sensible regret were my admission to establish a precedent which might give umbrage to the bar; but, should your opinion accord with my wishes, with respect to the indulgence due to my particular case, the expression of it, to any gentleman of the profession, would doubtless remove the possibility of discontent. Perhaps I assume a freedom which personal acquaintance only could warrant. I beg, sir, you will ascribe it to the reliance I am taught to place on your goodness, and the confidence with which your character inspires even those who have no other title to your notice.

Whatever may be the success of my present designs, I shall do myself the honour of waiting on you, and assuring you, in person, of the respect and esteem with which I am your obedient servant,

**A. BURR.**

Colonel Burr frequently impressed upon those with whom he was in the habit of a regular correspondence, the advantage of committing to paper daily, in the form of a journal, such thoughts or ideas as occurred and were

deemed desirable to repeat. He adopted this form in his communications with Mrs. Prevost. The following is a specimen:—

Albany, Thursday, December 3d, 1781.

I am at length arrived at my destined haven, and, what is very unusual for me, have been successful in several trivial circumstances, such as getting over the ferry (which is difficult at this season), finding temporary quarters for my chevaux without difficulty or delay. I cannot help regarding these as harbingers of good luck. I am, however, not fortunate in finding Judge Yates. He is from home. G. civil, but unwell. The room promised me is not fitted; must therefore seek other lodgings. Bon soir. Visit me in my slumbers.

Friday night, December 4th.

Till sunset I was in doubt whether I should not be obliged to leave Albany for want of quarters. Have at length found tolerable. No price yet fixed. Probably not less than trois piasters the week. A day completely lost, and I, of course, in ill humour with every thing but thee.

Saturday, December 5th.

A sick headache this whole day. I earned it by eating last night a hearty supper of Dutch sausages, and going to bed immediately after. I am surprised it did not operate in the way of my disorder, which was formerly the certain consequence of every error in diet; but no symptom of that, though I was very restless.

I took the true Indian cure for the headache. Made a light breakfast of tea, stretched myself on a blanket before the fire, fasted till evening, and then tea again. I thought, through the whole day, that if you could sit by me, and

stroke my head with your little hand, it would be well; and that, when we are formally united, far from deeming a return of this disorder un malheur, I should esteem it a fortunate apology for a day of luxurious indulgence, which I should not otherwise allow myself or you.

Most unexpectedly, Lewis called upon me this evening, civilly offered me his house, and asked me to dine. I was wrong, I think, to accept his invitation, but this did not strike me till I had engaged. Must dine there to-morrow.

Sunday, 6th December.

This is the third day in town, and no business done. These two days past I have been studying the second volume of Rousseau. G. is returned. He never appeared more unlike himself. I was somehow uncommonly stupid, and, would you believe it, even awkward. Said very little, and that little with hesitation. You know there are days when every thing goes against one. Paid little attention to anybody (that little, somehow, ill timed), and received still less from them.

How could we forget Latimer? He has sung Theodosia's praise among the southern army in terms with which her best friends must be pleased. He has also established the character of A. Burr. Quackenbush is determined to be civil. Says his visits will be frequent.

Yates is returned. More of him to-morrow. An old, weather-beaten lady, Miss Depeyster, has given the whole history of Burr, and much of Theo., but nothing unfavourable. In a place where Burr thought himself a stranger, there is scarce any age or sex that does not, either from information or acquaintance, know something of him.

I am surprised I forgot to advise you to get a Franklin fireplace. They have not the inconvenience of stoves, are warm, save wood, and never smoke. The cost will not be, probably, more than ten or fifteen dollars, which will be twice saved this winter in wood and *comfort*, and they may be moved anywhere. If you have fears about *brat*, [Foonote: Mrs. Prevost's youngest child.] I have none. He will never burn himself but once; and, by way of preventive, I would advise you to do that for him. It will be put up in a few hours by anybody. I am in doubt whether it will be best to have it in the common room or one of the back rooms. The latter will have many advantages. You may then have a place sacred to love, reflection, and books. This, however, as you find best; but that you have one I am determined, unless you can give some better reason against it than I at present know of. Indeed, I would wish you had two. You will get them with no trouble from the Salisbury furnace. It is of the first importance that you suffer as little as possible the present winter. It may, in a great measure, determine your health ever after. I confess I have still some transient distrusts that you set too little value on your own life and comfort. Remember, it is not yours alone; but your letters shall convince me. I waive the subject.

I am not certain I shall be regularly punctual in writing you in this manner every day when I get at business; but I shall, if possible, devote one quarter of an hour a day to you. In return, I demand one half of an hour every day from you; more I forbid, unless on special occasions. This half hour is to be mine, to be invariably at the same time, and, for that purpose, fixed at an hour least liable to interruption, and as you shall find most convenient. Mine cannot be so regular, as I only indulge myself in it when I am fatigued with business. The children will have each their sheet, and, at the given hour, write, if but a single word Burr, at this half hour is to be a kind of watchword.

Monday, 7th December.

I keep always a memorandum for you, on which, when I think of any thing at any time of day that I wish to write, I make a short note in a manner which no other person would understand. When I sit down to write I have nothing to do but look at my memorandum. I would recommend the same to you, unless you rather choose to write at the moment when you think of any thing.

I have continually felt some apprehensions about the success of Troup with the court. The Springs are but twenty-eight miles from Albany; I will meet you there.

Phil. Van Rensselaer, whom I have never before seen, has been to introduce himself, and tender his services of every kind. He is of the most respectable and richest inhabitants.

Tuesday, 8th December.

No place yet; but, that time need not be lost, I have been looking over Rousseau's 4th volume. I imagine —— gathered thence his sentiments on the subject of jealousy. If so, he has grossly mistaken the ideas of Rousseau. Do you discover a symptom of it? Far otherwise. You see only confidence and love. That jealousy for which you are an advocate, he condemns as appertaining to brutes and sensualists. Discard, I beseech you, ideas so degrading to true love. I am mortified with the reflection that they were ever yours.

I think —— must have taken pains to have overlooked the following paragraph, when, in enumerating the duties of a woman towards a lover or husband, he makes it principally to consist "in respecting themselves, in order to acquire respect. How delightful are these privileges! How

respectable are they! how cordially do men prize them, when a woman knows how to render them estimable." I fear —— will be convinced of this but too late. I am glad to find, however, that the idea so often urged (in vain) by me, is not a mere vagary of my own brain, but is supported by so good authority.

Wednesday, 9th December.

I have this day made a feint at law. But, were my life at stake, it could not command my attention.

Thursday, 10th December.

We have about twelve or fourteen inches of snow. When you read my letters I wish you would make minutes at the time of such facts as require an answer; for, if you trust your memory till the time of writing, you will omit half you would otherwise say.

Friday, 11th December.

I really wish much to know the conduct of ——-. It is, however, more curiosity than anxiety. It would be childish to build any part of one's happiness on a basis so unstable.

The Van Rensselaer before mentioned, and henceforth to be designated by *Ll.*, proves to be a phenomenon of goodness and (can you believe it) even tenderness. Tenderness, I hear you cry, in a Hollandois! But hold your injustice; the character and fine heart of Van Rensselaer will, I think, in future, remove your prejudice, especially when you add to this his marked attention and civility.

Saturday, 12th December.

Van Rensselaer finds fault with my quarters, which, indeed, are far removed from elegance, and, in some respects, from convenience. He insists that I suffer him to provide me better.

I have not hitherto had an hour of Yates. His reasons, however, have been good. On Monday we are to mangle law.

Sunday, 13th December.

Van Rensselaer has succeeded perfectly to my wish. I am with two maidens, aunts of his, obliging and (incredible!!) good-natured. The very paragon of neatness. Not an article of furniture, even to a teakettle, that would soil a muslin handkerchief. I have two upper rooms. I was interrupted at the line above, and cannot now, for my life, recollect what I was intending to write. I leave it, however, to plague you as it has done me.

Monday, 14th December.

I really fear Yates is playing the fool with me. Still evasive, though plausibly so. I have just had an interview. To-morrow I must and will come to a positive *eclaircissement*.

I am determined, in future, when doubt arises in my mind whether I shall write a thing or not, invariably to write it. You recollect ——'s advising that Carlos [3] should learn the violin.

G. was unkind enough to remind him that he was formerly opposed to that opinion. There was a degree of insult in this reproach of which I did not think G. capable. I truly believe he did not reflect on the tendency of it. I do not remember that he is apt to take such unfair advantage of his friends. Happy they who can make improvement of each other's errors. The



necessary, but dear-bought knowledge of experience, is earned at double cost by those who reap alone.

Since I left you, I have not taken pen in hand without intending to write you. I am happy in having done it, for I now feel perfectly relieved.

Tuesday, 15th December.

Yesterday was partly a day of business. The evening wholly and advantageously so. This day has been rather a feint. Yates engaged. I beg ten thousand pardons of Miss Depeyster; she is our warm friend and advocate. One Bogart, at Tappan, is the scoundrel.

Wednesday, 16th December.

I perceive this letter-writing will not answer; though I write very little, it is still half my business; for, whenever I find myself either at a loss what to do, or any how discomposed or dull, I fly to these sheets, and even if I do not write, I ponder upon it, and in this way sacrifice many hours without reflecting that time passes away. Yates still backward, but the day tolerably spent.

I have also been busy in fixing a Franklin fireplace for myself. I shall have it completed to-morrow. I am resolved you shall have one or two of them. You have no idea of their convenience, and you can at any time remove them.

I expect to despatch Carlos to-morrow. I think I have already mentioned that I wrote you from Kinderhook, and also this week by Colonel Lewis, enclosed to our friend at Sharon.

An engagement of business to-day and this evening with Yates, prevents me preparing for Carlos as I expected.

**A. BURR.**

Footnotes:

1. The lady of the Hon. Stephen Van Rensselaer

2. The sons of Mrs. Prevost, Frederick and John B. The latter was Judge Prevost, of Louisiana. Mrs. Prevost was unable to expend such a sum on these young gentlemen. it was a means adopted by Colonel Burr delicately to assist, from his own purse, a desponding son of science. Similar instances of his liberality, in the course of his life, were numerous.

3. A negro boy belonging to Colonel Burr.

## CHAPTER XIV.

In the autumn of 1781, as may be seen by the preceding correspondence, Colonel Burr was in Albany, preparing himself for admission to the bar. Judge Yates rendered him essential service on the occasion. His friendship and kindness were appreciated, and gratefully recollected. At that time Chief-justice Richard Morris, Robert Yates, and John Sloss Hobart composed the bench of the Supreme Court of the State of New-York. All these gentlemen were friendly to Burr, and treated him with the utmost courtesy; but for Judge Yates he entertained, during the continuance of his life, the most profound respect and veneration.

By the rules of the court it was required that candidates for admission should have pursued a course of legal studies not less than three years previous to presenting themselves for examination. Colonel Burr applied to the court to dispense with this rule in his case. The application was opposed with great zeal by all the members of the bar; and, as no counsellor would make the necessary motion on the subject, Burr was not only compelled to do it himself, but to argue the question with the ablest of the profession.

After hearing the argument, the court determined that, as he had been employed in the service of his country, when he might, under other circumstances, have been a law-student, they would dispense with the rigour of the rule so far as it applied to the period of study; but that no indulgence would be granted in reference to the necessary qualifications. In

pursuance of this decision he underwent a severe and critical examination by some of the most eminent members of the bar, who were anxious for his rejection. The examination, however, resulted in a triumphant admission that the candidate was duly qualified to practise; and he was accordingly licensed as an attorney, on the 19th day of January, 1782. And at "a supreme court of judicature, held for the State of New-York, at the City Hall of the city of Albany, on the 17th day of April, 1782, Aaron Burr having, on examination, been found of competent ability and learning to practise as counsellor," it was ordered that he be accordingly admitted.

Soon after Colonel Burr commenced the practice of law in the city of Albany, he invited his friend and brother soldier, Major W. Popham, to join him, and pursue a course of legal studies. This invitation was given with his accustomed kindness. About the period of Burr's marriage, Major Popham replies.

FROM MAJOR W. POPHAM [1]

Fishkill, August 16th, 1782

Yesterday I was accidentally favoured with your friendly letter of the 3d of May, from Litchfield, which was peculiarly agreeable, as it contained the first official accounts I have had of you since my leaving Albany, and dispelled a train of gloomy reflections which your supposed long silence had suggested.

The approbation you have given of my conduct, in an affair in which you have so generously interested yourself, is very flattering. A detail of the circumstances which rendered it necessary to postpone the prosecution of my intended plan, would be too prolix for the subject of a letter. They

would not present one pleasing reflection; and I love you too well to give you pain. Suspend, therefore, your curiosity and your opinion, until the duties of the field permit me to see you, when you shall be satisfied.

I hope the alterations you have made in your plan of life may equal your most sanguine wishes. I am pleased that you have taken a house in Albany, and sincerely congratulate you on an event that promises you so much happiness. May you long enjoy all the blessings which can flow from that happy state, for which Heaven has so remarkably designed you.

But why am I requested to "*say nothing about obligations*," while you continue to load me with new ones? Or, why should I be denied the common privilege of every liberal mind, that of acknowledging the obligation which I have not the power of cancelling? Yes, my friend, your generous offer claims my warmest thanks; but the very principle which excites my gratitude forbids me to accept it. Dr. L informs me you have written twice to me. One of the letters is lost. Will you speedily supply the deficiency? If you can spare an hour from business, retirement, or love, let me entreat you to devote it to your friend. I cannot tell you how much I long to hear from you. Adieu.

Yours sincerely,

**W. POPHAM.**

To Mrs. Prevost.

Albany, December 23d, 1781.

My dear Theodosia is now happy by the arrival of Carlos. This was not wishing you a happy Christmas, but actually making it so. Let all our

compliments be henceforth practical. The language of the world sounds fulsome to tastes refined by the sweets of affection.

I see mingle in the transports of the evening the frantic little Bartow. [2] Too eager to embrace the bliss he has in prospect; frustrating his own purposes by inconsiderate haste; misplacing every thing, and undoing what he meant to do. It will only confuse you. Nothing better can be done than to tie him, in order to expedite his own business. That you might not be cheerful alone, I have obeyed the orders of your heart (for you cannot, even at this distance, conceal them) by a determination to take a social, friendly supper with Van Rensselaer.

You wrote me too much by Dom. I hope it was not from a fear that I should be dissatisfied with less. It is, I confess, rather singular to find fault with the quantity, when matter and manner are so delightful. You must, however, deal less in sentiments and more in ideas. Indeed, in the letter in answer to my last, you will need to be particularly attentive to this injunction. I think constantly of the approaching change in our affairs, and what it demands. Do not let us, like children, be so taken with the prospect as to lose sight of the means.

Remember to write me facts and ideas, and don't torment me with compliments, or yourself with sentiments to which I am already no stranger. Write but little, and very little at once. I do not know for what reason, Theodosia, but I cannot feel my usual anxiety about your health, though I know you to be ill, and dangerously so. One reason is, that I have more belief in your attention to yourself.

Your idea about the water was most delightful. It kept me awake a whole night, and led to a train of thoughts and sensations which cannot be described. Indeed, the whole of your letter was marked with a degree of confidence and reliance which augurs every thing that is good. The French

letter was truly elegant, as also that enclosed in compliance with my request.

If Reeves has received the money upon the order I gave him, he may send me by Carlos about twenty-five guineas, if he can spare so much of it. I am in no present want.

Pardon me for not answering your last. My mind is so engrossed by new views and expectations, that I cannot disengage it. I have not, these five days past, slept more than *two hours* a night, and yet feel refreshed and well. Your presentiments of my illness on a certain evening were wide from truth: believe me, you have no talent that way. Leave it to others.

I think, if you keep Carlos two nights, it will serve; but keep him longer rather than fatigue yourself. Adieu.

**A. BURR.**

On the 2d of July, 1782, Colonel Burr was married to Mrs. Theodosia Prevost. In April preceding he had entered into the practice of the law in the city of Albany. His attention to business was unremitted. In consequence, he soon found himself crowded with clients from every quarter of the state. During his residence in Albany, his mind was exclusively engrossed with his profession and his family. In the education of Mrs. Burr's children by her first husband he took a deep interest. Neither labour nor expense was regarded. It was his wish that they should be accomplished, as well as educated men.

The preliminary treaty of peace having been signed, Colonel Burr resolved to remove his family to the city of New-York so soon as the British should evacuate it. Here he anticipated (and in this he was not disappointed) an extensive practice. On the 20th of November, 1781, the legislature of the

State of New-York passed an act disqualifying from practice, in the courts of the state, all "attorneys, solicitors, and counsellors at law," who could not produce satisfactory certificates, showing their attachment and devotion to the whig cause during the then pending war with Great Britain. This act was in full force at the peace of 1783, and remained so, without any attempt to modify it, until March, 1785, when a bill was introduced into the legislature to repeal certain sections of it, so far as they operated upon individuals therein named. The bill was lost. But, on the 4th of April, 1786, the restriction thus imposed on the tory lawyers was removed by an act of the legislature.

The law of 1781, previous to its repeal, had operated most favourably for the Whig lawyers. Those of talents and standing, such as Colonel Burr and others, had obtained a run of business which enabled them to compete with the most profound of their tory rivals.

It was supposed that the British troops would evacuate the city of New-York in the spring or early in the summer of 1783; but they remained until the 25th of November of that year. Colonel Burr applied to his friend, Thomas Bartow, to procure him a house for the accommodation of his family, which he accordingly did.

FROM MR. BARTOW.

New-York, April 16th, 1783

DEAR SIR,

I received your agreeable favour a few days ago, and am happy to congratulate you on the establishment of a peace: hope I shall soon have the



pleasure of seeing you in town. I have procured you a good house in Maiden-lane, at the rate of two hundred pounds a year. The rent to commence when the troops leave the city. Doctor Brown can inform you more particulars about it, as he went with me to view it. Before I engaged this house, I consulted Mrs. Clark She proposed her house in Broadway, but could not get the tenant out, so that she gave her consent to this.

Very respectfully yours,

**THOMAS BARTOW.**

**FROM MRS. BURR.**

Albany, 25th March, 1783.

Some think absence tends to increase affection; the greater part that it wears it away. I believe neither, but that it only tends to prove how far the heart is capable of loving; or rather, whether it is real or imaginary. When the latter, every object that amuses, blots out the idea of the absent, we find that they are not so necessary to our happiness as we had fancied. But when that love is real, what can amuse, what engage the mind, to banish, for a single instant, the object of its delight? It hates every necessity that wrests it an instant from the contemplation of its beauties; its virtues are ever presenting themselves to increase our regret, and suggest innumerable fears for its safety. Such have been the occupations of this day. I tremble at every noise: new apprehensions are ever alarming me. Every tender sensation is awake to thee.

26th March.

My extreme anxiety operated severely upon my health. I have not had so ill a turn in some months. The remedies of S. prove but little more efficacious than those of G. I do without either. Various are the conjectures respecting your errand. All think me of the party. My spirits need, my heart grows impatient for your return. Every countenance speaks for you, while Theodosia grieves.

27th March.

My health is rather better. I have just this moment heard of General Schuyler's going; have only time to tell you I rejoice at the enclosed. It will save your hurry and anxiety Popham has written and engaged for your attendance.

**THEODOSIA BURR**

When the British were about to evacuate the city of New-York, and it was ascertained that Colonel Burr had made the necessary arrangements to settle there, his whig friends became anxious that he should receive an appointment. Among those who urged this measure was Judge Hobart, who had ever entertained an exalted opinion of his talents and business habits. As soon as Colonel Burr was informed of the friendly views entertained by the judge, he wrote him, expressing his unwillingness to be considered a competitor with any gentleman for an appointment. To this he received an answer.

**FROM JUDGE HOBART.**

June 17th, 1783.

SIR,

Your favour has been received. However pure your views may be, I fear you must be contented with the character of a private gentleman so long as you determine to avoid a competition; for I am told there are long lists of applicants for all the offices in the city and county of New-York.

With great respect, yours,

JOHN SLOSS HOBART.

FROM MRS. BURR.

Albany, August 14th, 1783.

How unfortunate, my dearest Aaron, is our present separation. I never shall have resolution to consent to another. We must not be guided by others. We are certainly formed of different materials; and our undertakings must coincide with them.

A few hours after I wrote you by Colonel Lewis, our sweet infant [3] was taken ill, very ill. My mind and spirits have been on the rack from that moment to this. When she sleeps, I watch anxiously; when she wakes, anxious fears accompany every motion. I talked of my love towards her, but I knew it not till put to this unhappy test. I know not whether to give her medicine or withhold it: doubt and terror are the only sensations of which I am sensible. She has slept better last night, and appears more lively this morning, than since her illness. This has induced me to postpone an express to you, which I have had in readiness since yesterday. If this meets you, I need not dwell upon my wish. I will only put an injunction on your riding so fast, or in the heat, or dew. Remember your presence is to support, to

console your Theo., perhaps to rejoice with her at the restoration of our much-loved child. Let us encourage this hope; encourage it, at least, till you see me, which I flatter myself will be before this can reach you. Some kind spirit will whisper to my Aaron how much his tender attention is wanted to support his Theo.: how much his love is necessary to give her that fortitude, that resolution, which nature has denied her but through his medium. Adieu.

**THEODOSIA**

**FROM MRS. BURR.**

New-York, March 22d, 1784.

My Aaron had scarce quitted the door when I regretted my passiveness. Why did I consent to his departure? Can interest repay the sacrifice? can aught on earth compensate for his presence? Why did I hesitate to decide? Ten thousand fears await me. What thought suggested my assent? The anxiety he might suffer were he to meet with obstacles to raising the sum required; should his views be frustrated for want of the precaution this journey might secure; his mortification; mine, at not having the power to relieve him, were arguments that silenced my longing wish to hold him near me; near me for ever. My Aaron, dark is the hour that separates my soul from itself.

Thus pensive, surrounded with gloom, thy Theo. sat, bewailing thy departure. Every breath of wind whistled terror; every noise at the door was mingled with hope of thy return, and fear of thy perseverance, when Brown arrived with the word—*embarked*—the wind high, the water rough. Heaven protect my Aaron; preserve him, restore him to his adoring mistress. A

tedious hour elapsed, when our son was the joyful messenger of thy safe landing at Paulus Hook.

Stiff with cold, how must his papa have fared? Yet, grateful for his safety, I blessed my God. I envied the ground which bore my pilgrim. I pursued each footstep. Love engrossed his mind; his last adieu to Bartow was the most persuasive token—"Wait till I reach the opposite shore, that you may bear the glad tidings to your trembling mother." O, Aaron, how I thank thee! Love in all its delirium hovers about me; like opium, it lulls me to soft repose! Sweet serenity speaks, 'tis my Aaron's spirit presides. Surrounding objects check my visionary charm. I fly to my room and give the day to thee.

**THEODOSIA.**

**TO MRS. BURR.**

Albany, October 29th, 1784.

Mr. Watts this instant acquaints me that he is just setting off for New-York. I run from court to waft you a memorandum of affection. I have been remarkably well; was fortunate in my journey. The trial of Livingston and Hoffman is now arguing. It began on Thursday of last week, and will not conclude till to-night. No other business has been or will be done this term. All this cursed long absence for nothing.

I cannot leave this till Sunday or Monday. Then to Westchester Court. The return to joy and Theo. cannot be till Thursday or Friday, and that depending on my business in Westchester. Miss Yates is on her passage to New-York to spend eight or ten days.

I read your memorandum ten times a day, and observed it as religiously as ever monk did his devotion. Yesterday I burnt it. To me it seemed like sacrilege.

I fear I did not caution you enough against sleeping in the new house. For Heaven's sake (or rather for my sake), don't think of it till I come and judge. I left you an immensity of trouble, which I fear has not promoted your health. Kiss our dear little flock for me. Adieu.

**A. BURR.**

Late in the autumn of 1783 Colonel Burr removed from Albany into the city of New-York. In the spring of 1784 he was elected a member of the state legislature. At that early period political parties had not assumed either form or shape. The simple and intelligible terms of whip and tory were universally used. Colonel Burr's mind was occupied with his professional business. The legislature met in the city of New-York. He attended two sessions as a member. The first commenced on the 12th of October, 1784. He was in the house only a small portion of the time, and never interfered in what might be considered the ordinary business of the day. On great questions he took an active and decided part. His character for sagacity, discrimination, and firmness, was well established; and he would, therefore, have possessed great influence, if such had been his object; but his ambition, at this time, was not political; or, if it was, he had determined to smother it "until a more convenient season."

The second session while he was a member commenced on the 27th of January, 1785. During this he was more attentive than at the preceding session, but governed by the same system of policy, acting only when great and important questions were under consideration. On the 14th of February a joint committee of the two houses was appointed to revise the laws of the

state. Colonel Burr was chairman of the committee on the part of the house. He introduced, on leave granted him, several important bills. One in relation to the public lands, another relative to the titles to real estate, &c. On the 25th of February a bill was pending for the gradual abolition of slavery within the State of New-York. It provided that all born after its passage should be born free. Burr moved to amend, and proposed to insert a provision, that slavery should be entirely abolished after a day specified. His amendment being lost, he voted for the bill as reported. He was a member of the legislature, and supported the law in 1799, by which, ultimately, slavery within the state was abolished.

The question upon which he took the most prominent part related to an application of some tradesmen and mechanics in the city of New-York for an act of incorporation. The advocates of this bill had united their interest with certain land speculators, and by these means it was supposed both bills might be carried through the legislature. Both, however, failed. Colonel Burr was the only member from the city of New-York that opposed what was termed the Mechanics' Bill. His opposition produced so much feeling and excitement, that a man of less firmness would have been driven from his course. Riots were threatened, and by many it was supposed his house would be assaulted. His friends volunteered their services to protect him, but he declined receiving their aid, averring that he had no fears of any violation of the laws by men who had made such sacrifices as the whigs had made for the right of self-government, and that he could and would protect himself, if, contrary to his expectations, it should become necessary. That he was prepared to resist any attack was universally known, but none was attempted, and perhaps for that reason.

The Mechanics' Bill passed the legislature late in February, and was sent to the Council of Revision. At that time the chancellor and the judges of the Supreme Court formed a Council of Revision, and had a qualified negative

on all bills. If they considered a bill unconstitutional, they returned it to the house in which it originated, with their objections; after which, if it received the vote of two thirds of both houses, it became a law. This bill was returned on the 9th of March by the council, with their objections, and, two thirds not voting in favour, it was lost. These objections, in substance, were precisely what had been urged against it by Colonel Burr on the floor of the assembly. The petitioners were forty-three in number. The bill gave them unlimited powers in some particulars. It did not incorporate their successors, only so far as they pleased to admit them. They might hold landed estate in perpetuity to an unlimited amount, provided their *income* did exceed fifteen hundred pounds beyond their *outgoings*. Their by-laws were to be approved by the city corporation; thus, by rendering the one dependant on the other, either the mechanics would influence the magistrates, and the powers of the corporation of the city and county of New-York be made, at some future day, instruments of monopoly and oppression; or, which was more probable, the corporation of the city and county of New-York obtain a controlling power over the mechanics, and thus add to the extensive influence which that corporation already enjoyed, thereby rendering it dangerous to the political freedom of the people. Such were some of the objections entertained and urged by Colonel Burr against this bill. The great body of the community were prepared to sustain him; and, before the succeeding session of the legislature, the intelligent among the mechanics were so well satisfied with the correctness of his views, that a similar application was never afterward made,

From the year 1785 until the year 1788, Colonel Burr was unknown as a politician. His practice was extensive and lucrative. His domestic relations seemed to occupy all his leisure time. His family was large, and to direct the education of his children was to him the most delightful employment. His zeal for their improvement is evinced in some of the preceding letters. His own health was precarious, while that of Mrs. Burr caused him constant



alarm and apprehension. He had but one child, a daughter; but the children of his wife by her first husband (Colonel Prevost) he reared as his own, and with all the tenderness of an affectionate father. The subjoined letters present Mrs. Burr in a most estimable point of view, while they cast some light upon Colonel Burr's character as a parent and a husband. They cannot be read, it is believed, by even the giddy and the thoughtless without feeling an interest in the destiny of their writers.

In the office of Colonel Burr, as students, were his two stepsons, Frederick and John Bartow. When absent from home on professional or other business, one of them frequently accompanied him as an amanuensis. On these occasions all his instructions in relation to lawsuits in which he was employed as counsel, or papers connected therewith, were communicated to the attorney or clerk in the office through Mrs. Burr. She appeared to be held responsible for the punctual and prompt performance of any duty required of them. To him she was indeed a helpmate; for she not only had charge of his domestic concerns, but was counselled with, and intimately associated in, all his business transactions.

## **TO MRS. BURR.**

Princeton, April, 1785.

I had just embarked in the stage at Paulus Hook when I learned that it went no further than Newark; so that, after being three hours close packed with rabble, I trudged an hour more to find a conveyance to Elizabethtown, where I arrived at eight o'clock, chilled, fatigued, and with a surly headache. A comfortable bed and tea made amends.

We arrived here at six o'clock this evening. I am fortunate in company, and find the travelling much less fatiguing than I imagined. Remind

Frederick of the business with Platt. Write me by the nest post, and by every stage. If I should even have left Philadelphia, I shall meet the letters. Speak of Harriet, and sur tout des trois Theo's. Adieu.

**A. BURR.**

TO MRS. BURR.

Philadelphia, April, Saturday, 1785.

I did not write you on Friday, as promised in my letter from Princeton, for which I will apologize when we meet. I arrived here in good plight on Friday evening. Augustine came down about noon on Saturday. We have made some satisfactory progress in our business. Seeing the great men of other countries puts me in more conceit of those of my own.

I shall be released on Tuesday evening, which will permit me to see thee on Thursday morning. Mr. Colt will inform you about every thing. Unfortunately, a gentleman with whom part of our business is has left town. If he should return to-morrow morning, I shall be the happiest of swains on Wednesday morning. I am very minute in these calculations, because I make them very often. Does Theodosia employ herself ever in the same way?

I have been to twenty places to find something to please you, but can see nothing that answers my wishes; you will therefore, I fear, only receive

Your affectionate

**A. BURR.**

FROM MRS. BURR.

New-York, April, Saturday, 1785.

I persuade myself this is the last day you spend in Philadelphia. That to-morrow's stage will bring you to Elizabethtown; that Tuesday morning you will breakfast with those who pass the tedious hours regretting your absence, and counting time till you return. Even little Theo. gives up her place on mamma's lap to tell dear papa—"come home." Tell Augustine he does not know how much he owes me. 'Tis a sacrifice I would not make to any human being but himself, nor even to him again. It is the last time of my life I submit to your absence, except from necessity to the calls of your profession. All is well at home. Ireson gone on his intended journey. Morris very little here. The boys very attentive and industrious; much more so for being alone. Not a loud word spoken by the servants. All, in silent expectation, await the return of their much-loved lord; but *all faintly* when compared to thy

THEO.

TO MRS. BURR.

Since writing to you last evening, every thing has conspired to harass and delay me. I was really in hopes of surprising you on Wednesday morning; but am now most unfortunately and cruelly detained here till to-morrow evening; shall therefore, with the usual luck of stages, embrace you on Thursday morning.

I have been walking, in the course of this day, hunting offices, records, &c., &c., above eight hours, and am not fatigued. I must really be very

robust. Thine,

A. BURR.

TO MRS. BURR.

Albany, April, 1785.

I arrived here on Tuesday evening very late, though little fatigued. Wednesday afternoon I went with Sill to Bethlehem (Nichols), drank tea, supped, and breakfasted. I am pleased with our friend's choice, of which more next Tuesday evening. I am vexed you were not of my party here—that we did not charter a sloop. I have planned a *circuit* with you to Long Island, with a number of pleasant &c.s, which are also reserved to a happier moment.

I shall succeed in all Mrs. Clarke's business except that of the lands, in which I hope little.

I feel impatient, and almost angry, that I have received no letter from you, though I really do not know of any opportunity by which you could have written; but it seems an endless while to wait till Saturday night before I can hear from you. How convenient would a little of the phlegm of *this region* be upon such occasions as these! I fear very much for our dear petite. I tell every one who asks me that both she and you are well, because I abhor the cold, uninterested inquiries, which I know would be made if I should answer otherwise. Do you want the pity of such? Those you thought your very good friends here have forgotten you.

Mademoiselle Y. is very civil. Are the Wadsworths with you? Have you not been tormented with some embarrassments which I wickedly left you to

struggle with? I hope you don't believe the epithet. But why these questions, to which I can receive no answer but in person? I nevertheless fondly persuade myself that I shall receive answers to them all, and many more about yourself, which I have in mind, notwithstanding you will not have seen this. There is such a sympathy in our ideas and feelings, that you can't but know what will most interest me.

Give Johnstone the enclosed memorandum; or, if he has gone home, to Bartow; the business is of importance, and admits of no delay.

Affectionately adieu,

**A. BURR.**

TO MRS. BURR.

Chester, Friday, May, 1785.

I arrived here about eleven o'clock this forenoon, with little fatigue, my horse being an excellent one. Appearances are hostile; they talk of twenty or twenty-five days at least. I believe I shall not hold out so long. The commissioners are met, but not all the parties, so that the business is not yet begun. The gentlemen from Albany are not yet arrived or heard of. We shall probably do nothing till they come. I have comfortable clean quarters.

Tell one of the boys to send me some supreme court seals; about six. I forgot them. Write me what calls are made at the office for me. Distribute my love. Let each of the children write me what they do. You may certainly find some opportunity. Adieu.

**A. BURR.**

TO MRS. BURR.

Chester, May, 1785.

I strayed this morning for an hour or two in the woods, where I lay on a rock to enjoy the wild retreat. The cheerfulness of all around me led me to ask why all animated nature enjoyed its being but man? Why man alone is discontented, anxious—sacrificing the present to idle expectations;—expectations which, if answered, are in like manner sacrificed. Never enjoying, always hoping? Answer, *tu mihi magna Apollo*. I would moralize, but time—and my companions are coming in. Let me hear of your health. Avoid all fatigue. Judge Yates proposes to come down with me. *Quoi faire?*

My good landlady is out of tea, and begs me to send for a pound. Put it up very well. I am in better health than spirits. Adieu.

A. BURR.

FROM MRS. BURR.

New-York, May, 1785.

I am vexed that I did not inquire your route more particularly. I cannot trace you in imagination, nor find your spirit when at rest; nor dare I count the hours to your return. They are still too numerous, and add to my impatience. I expect my reward in the health you acquire. If it should prove otherwise, how I shall hate my acquiescence to your departure. I anticipate good or evil as my spirits rise or fall; but I know no medium; my mind cannot reach that stage of indifference. I fancy all my actions directed by you; this tends to spur my industry, and give calm to my leisure.

The family as you left it. Bartow never quits the office, and is perfectly obliging. Your dear little daughter seeks you twenty times a day; calls you to your meals, and will not suffer your chair to be filled by any of the family.

Judge Hobart called here yesterday; says you are absent for a month. I do not admit that among possibilities, and therefore am not alarmed. I feel obliged to Mr. Wickham for his delay, though I dare not give scope to my pen; my heart dictates too freely. O, my Aaron! how many tender, grateful things rush to my mind in this moment; how much fortitude do I summon to suppress them! You will do justice to their silence; to the inexpressible affection of your *plus tendre amie*.

Bartow has been to the surveyor-general; he cannot inform him the boundaries of those lots for J. W. There is no map of them but one in Albany.

**THEODOSIA.**

**TO MRS. BURR.**

Chester, May, 1785.

I joined the commissioners and parties in the woods, near this place, on Wednesday noon; found the weather severe, and roads bad. Have, since my arrival, been following the commissioners in their surveys. Nothing transpires from which we can conjecture their intentions.

This morning came your kind, your affectionate, your truly welcome letter of Monday evening. Where did it loiter so long? Nothing in my absence is so flattering to me as your health and cheerfulness. I then

contemplate nothing so eagerly as my return; amuse myself with ideas of my own happiness, and dwell on the sweet domestic joys which I fancy prepared for me.

Nothing is so unfriendly to every species of enjoyment as melancholy. Gloom, however dressed, however caused, is incompatible with friendship. They cannot have place in the mind at the same time. It is the secret, the malignant foe of sentiment and love. Adieu.

A. BURR.

FROM MRS. BURR.

New-York, May, 1785.

Your dear letter was handed me this day, at a moment which, if possible, increased its value. I have a little fever hanging about me, which tends to depress my spirits for the time. Your moralizing changed my dulness to a pleasing melancholy. I am mortified at the interruption it met, and impatient to renew the theme; to renew it in a more pleasing manner than even your letters afford. When my health is ill, I find your absence insupportable; every evil haunts me. It is the last that must take place till term; *that* I must submit to. I am pleased with your account of your health and spirits; they are both as I wish.

When you write again, speak of your return. The uncertainty makes it more irksome. The company you speak of will be as welcome as any at this juncture; but my health and mind seem to require the calm recreation of friendly sympathy; the heart that has long been united to mine by the tenderest esteem and confidence, who has made every little anxiety its own, to whom I can speak without reserve every imaginary wo, and whose kind



consolation shall appease those miseries nature has imposed. But whatever present inconveniences may arise, I submit to them with perfect resignation, rather than, even in idea, to expect the one mentioned by you when last at home. My mind is impressed with a perfect dread of all of that kind. We never can have one to give us so little trouble as E. W., and yet we found it great. We must avoid all such invitations, for the sacrifice on my part is too great.

Friday morning.

I have passed a most tedious night. I went to bed much indisposed. M. absent; mamma also. Ten thousand anxieties surrounded me till three, when I fell asleep; waked at six, much refreshed, and in better health than I could possibly have expected. I flatter myself your task will end sooner than you expected. Mr. Marvin calls for my letter this morning, which will be delivered with a pound of green tea I have purchased for your landlady at two dollars. He has called. I am hurried. Ten thousand loves

*Toujours la vôtre.*

THEODOSIA.

TO MRS. BURR.

Jane's in the Mountains, May, 1785.

I wrote my dear Theodosia a long letter of business and nonsense last evening from Chester. I am now about twelve miles nearer to you, and shall sleep to-night within thirty-five miles (only six hours' ride), and shall to-morrow return surlily to Chester.

Our cavalcade is most fortunately composed. Some who abhor fatigue, others who admire good fare, by which by which combination we ride slow and live well. We have halted here half an hour to lounge and take a luncheon. Of the last, I partook reasonably. The time which others devote to the former, I devote (of right) to you, and thus lounge with peculiar glee.

By return of Mr. Smith (who is obliging enough to deliver this), I expect much longer letters from our lazy flock. By the next opportunity I determine not to write you, but some others who deserve more attention than I fear they will think I mean to give them.

The girls must give me a history of their time, from rising to night. The boys any thing which interests them, and which, of course, will interest me. Are there any, or very pressing calls at the office? The word is given to mount. I shall have time to seal this and overtake them. Kiss for me those who love me.

**A. BURR.**

**FROM MRS. BURR.**

New-York, April, 1785.

Mrs. Wickham just called to tell me of an opportunity to Chester. How joyfully I embrace it. I had a most insupportable impatience to communicate to you my gratitude and thanks for your last visit. It was a cordial to my health and spirits; a balm to my soul. My mind is flushed with pleasing hopes. Ten thousand tender thoughts rush to my pen; but the bearer may prove faithless. I will suppress them to a happier moment, and anticipate the dear indulgence.

The family as you left it. Thy Theodosia's health and spirits increase daily. Bartow's industry and utility are striking to the family and strangers. Johnstone returned yesterday. Your letter was as eagerly read as though I had not seen you. Write when you have leisure; if it does not reach me immediately, it will serve to divert some tedious moment in a future absence; even when you are at home, engrossed by business, I frequently find a singular pleasure in perusing those testimonies of affection.

I find I am continually speaking of myself. I can only account for it from my Aaron having persuaded me 'tis his favourite subject, and the extreme desire I have to please him induces me to pursue it. I take no walks but up one stairs and down the other. The situation of my house will not admit of my seeing many visitors. I hope some arrangement will be accomplished by the next week.

A packet from Sill. He writes like a happy man—not the happy man of a day, or I am much deceived in him. She is certainly to be ranked among the fortunate. I wish she may be sensible of her lot.

I have fixed the time of seeing you. Till Saturday I will hope the best. I cannot extend my calculations beyond it; four days of your absence is an age to come. My compliments to your chum, and who else you please. *Pense avec tendresse de la vôtre.*

**THEODOSIA.**

**TO MRS. BURR.**

Chester, May 12, 1785.

Nothing could be more welcome than your affectionate letters by Mr. Wickham. They met me on Tuesday evening, on our return from a tour through the mountains. I was for some hours transported home, to partake of that domestic tranquillity which you so feelingly paint. Continue to write if opportunity presents. They will cheer me in these rustic regions. If not, they will not be lost.

This being a rainy day, we have kept within doors. Tomorrow, if fair, we resume the business of climbing mountains, which will probably be our employment till about the middle of next week. After which a week more (at most) will finish the controversy.

Pay Moore nothing till I return, unless you see cause. Let him rough-cast, if he is confident of succeeding; but tell him I will not pay him till I am convinced it will bear weather, and last.

If the sheriff of Bergen (Dey) calls for his money, I enclose a note with a blank for the name. You must speak to either Malcom or Lente for their assistance, unless you can think of something more convenient, putting the matter in such light as your address shall think proper. If for any reasons you should prefer to make use of Popham's name, do it. The person whose name is put in the note must endorse it, and the note be dated. Let one of the boys go over to Mrs. Baldwin for the certificate of the balance of the account, which, if obtained, a deduction must be made accordingly. Perhaps, by paying three or four hundred pounds, Mr. Morris will consent to wait my return. Perhaps, at your instance, he will wait that time without any payment. All which is humbly submitted. I enclose two notes, that you may take your choice.

Mr. Watrous's business respecting the land is not very material. If it should have failed, you may inform him that I have long since filed a caveat which will cover his claim.

I bear the fatigues of our business to admiration. Have great appetite, and sleep sound about ten hours a night. I am already as black as a Shawanese. You will scarce know me if I continue this business a few days longer. Thank our dear children for their kind letters. But they are so afraid of tiring either me or themselves (I suspect the latter), that they tell me few, very few, of those interesting trifles which I want to know.

Let T. give them any new steps he pleases, but not one before the others. If any one is behind or less apt, more pains must be taken to keep them on a par. This I give in charge to you.

I fear you flatter me with respect to your health. You seem a little studied on that score, which is not very natural to you when speaking truth. But, if it is not true, it is surely your own fault. Go to bed early, and do not fatigue your self with running about house. And upon no account any long walks, of which you are so fond, and for which you are so unfit. Simple diet will suit you best. Restrain all gout for intemperance till some future time not very distant.

I do not *nor can* promise myself all you promise me with respect to the children. I have been too much mortified on that subject to remove it at once.

This is the last expedition of the kind I shall ever undertake; and ever since I have been here I have been planning ways to extricate myself from it, but am defeated, and shall be absolutely detained prisoner till the business is concluded. Johnstone can give you an account of my quarters and mode of life. You haunt me daily more and more. I really fear I shall do little justice to the business which brought me here.

The children must pardon my not writing. I have a number of memorandums of business to make out for Johnstone. Thank them again for

their letters, and beg them not to be so churlish.

Let one of the boys haunt Moore. But you surely can do it without letting him vex you, even supposing he does nothing. I had much rather that should be the case than that you should be one minute out of humour with him.

The girls must go on with Tetard in his own way till I come, when I will set all right.

It is already late. I must be up at sunrise. Bon soir, ma chère amie.

**A. BURR.**

TO MRS. BURR

Chester, 19th May, 2 o'clock P. M., 1785.

We have this day begun the examination of witnesses, which, together with the arguments, will keep us the greater part, and probably the whole, of next week. I find myself gaining strength exceedingly since my return from New-York, though perfectly out of humour with the business, the distance, and the delay.

My trip to New-York has quite ruined me for business. I cannot confine my mind to it. I am literally homesick, and think of nothing else. A witness attending in court informs me of his going to New-York as soon as his testimony is finished. I desert a moment to tell you that I am wholly yours.

6 o'clock P. M., 19th May.

Since I wrote you at two o'clock our court is adjourned till nine tomorrow. We go on briskly and in great good nature. If you were half as punctual or as fortunate (which shall I call it?), I should absolutely fancy myself talking with you. It would be some indemnification for the distance and vexation. Make up in thinking of me, and taking care of yourself, what you omit in writing. Thine at all moments.

9 o'clock at night, 19th May.

A thousand thanks for your dear affectionate letter of Tuesday evening. I was just sitting pensively and half complaining of your remissness, when your letter is received and dispels every gloomy thought. I write this from the impulse of my feelings, and in obedience to your injunctions, having no opportunity in view.

The letters of our dear children are a feast. Every part of them is pleasing and interesting. Le Jenne is not expected to be in New-York for some weeks at least. I avoid the subject. I shudder at the idea of suffering any thing to mar the happiness I promise myself.

There is no possibility of my return till the middle of next week. In one of my letters I put it to the last of next week, but we have this day made unexpected progress. If we are equally fortunate and equally good-natured, we may finish Wednesday night; but this is conjecture, and perhaps my impatience makes me too sanguine.

I broke off at the bottom of the other page to pay some attention to those who deserve much from me (our dear children). To hear that they are employed, that no time is absolutely wasted, is the most flattering of any thing that can be told me of them. It ensures their affection, or is the best evidence of it. It ensures, in its consequences, every thing I am ambitious of

in them. Endeavour to preserve regularity of hours; it conduces exceedingly to industry.

I have just heard of a Mr. Brown who goes down by water. As I may not have another opportunity, I hazard it by him. He promises to leave it at old Mr. Rutherford's. Our business goes on very moderately this morning. Witnesses all tardy. We have adjourned for want of something to do. Melancholy and vexatious. It has given me a headache. We shall be holden, I fear, all next week. Adieu.

**A. BURR.**

TO MRS. BURR.

Chester, 8 o'clock, 20th May, 1785.

Worse and worse. During the whole day we have not been five hours at business. Our witnesses are so aged, and many so remote, that they will not be in till Monday, so that, at this rate, we shall eke out the whole of next week. I have at no time been so completely out of patience; just now particularly, being a little churlish with my headache, which, though not very severe, unfits me for any thing but writing to you.

I wrote you and the whole flock last evening, and added a line to you this morning, and sent off the packet by a Mr. Brown, who goes by water, and promised to deliver it him-self. He has business at old Mr. Rutherford's. If he is punctual, don't forget him in thinking of the letters. Do say something that will make me a little more content with this vexatious delay and imprisonment. I am prompted to write a hundred things which I dare not, for fear I shall not find a safe conveyance: that was particularly the case last evening and this morning. It is perhaps fortunate, or I should spend too



much time with you in this way. I believe I do as it is. Adieu, a little while. I am just going to prepare some hot punch.

Ten o'clock.

I have been till this minute making and sipping punch, and with great success. It has thrown me into a perspiration, which obliges me to go to bed. I am very illy reconciled to leave you and bid you good-night, but so says my hard lot.

Saturday morning, 8 o'clock.

I lay awake till after three o'clock this morning; then got up and took a large dose of medicine. It was composed posed of laudanum, nitre, and other savoury drugs, which procured me sleep till now: have no headache; must eat breakfast, and away to court as fast as possible.

Saturday Evening.

Every thing almost stands still. I begin to despair of getting away. I am sure the whole of next week will not finish our business at the present rate. To make it more tedious and disagreeable, some of us are less good-humoured than at first. Not a line from you since that I have mentioned. I can find no opportunity for this. I am too vexed to utter one sentiment.

Sunday, 22d May.

No opportunity for this scrawl yet. I begin to be tired of seeing it, and wish it gone for this reason; and also, because I try to persuade myself you would be glad to receive it.

To-day we have fine scope to reflect how much better we might have employed it, had we been active in our business last week. I find the whole

might have been finished by yesterday (if the witnesses on both sides had been ready) as well as a month hence.

My room is a kind of rendezvous for our side: have seldom, therefore, time either to think or write, unless at night or early in the morning. Judge Yates concludes to give us a few days of his company, and to accept of a room with us. The coming of Le Jeune uncertain; not probably till fall. You will receive a pail of butter, perhaps, with this. I have been contracting for the year.

Have you done running up and down stairs? How do you live, sleep, and amuse yourself? I wish, if you have leisure (or, if you have not, make it), you would read the Abbé Mably's little book on the Constitution of the United States. St. John has it in French, which is much better than a translation. This, you see, will save me the trouble of reading it; and I shall receive it with much more emphasis *par la bouche d'amour*. Adieu. I seal this instantly, lest I be tempted to write more. Again adieu.

**A. BURR.**

FROM MRS. BURR.

New-York, May 22d, 1785.

Your letter by Mr. Bayard was brought me on Saturday, and the first I had received since the one by Mr. Marvin till to-day. Mr. Brown very punctually and civilly came with your welcome packet of Thursday, nine o'clock. It was just before dinner; the children were dispersed at different employments. I furnished the mantelpiece with the contents of the packet. When dinner was served up they were called. You know the usual eagerness on this occasion. They were all seated but Bartow, when he espied the

letters; the surprise, the joy, the exclamations exceed description. The greatest stoic would have forgot himself. A silent tear betrayed me no *philosopher*. A most joyous repast succeeded. We talked of our happiness, of our first of blessings, our best of papas. I enjoyed, my Aaron, the only happiness that could accrue from your absence. It was a momentary compensation; the only one I ever experienced. Your letters always afford me a singular satisfaction;—a sensation entirely my own; this was peculiarly so. It wrought strangely on my mind and spirits. My Aaron, it was replete with tenderness! with the most lively affection. I read and re-read, till afraid I should get it by rote, and mingle it with common ideas; profane the sacred pledge. No; it shall not be. I will economize the boon. I will limit the recreation to those moments of retirement devoted to thee. Of a sudden I found myself unusually fatigued. I reflected on the cause, and soon found I had mounted the stairs much oftener than I could possibly have done on any other occasion.

I am vexed with my last letter to you; 'tis impossible for me to disguise a single feeling or thought when I am writing or conversing with the friend of my heart. I hope you have attended only to the last paragraph, and avoided all unnecessary anxiety for her who wishes to be a constant source of pleasure to thee. I have been in good health since Saturday morning. Since yesterday, unusually gay and happy; anticipating a thousand pleasures, studying every little arrangement that can contribute to thy comfort. This wet weather is a bar to any essential progress. The walls are still too damp to admit of either paint or paper. I have a bed ready for the judge; *ne vous genez pas lâ-dessus*. I am afraid some foolish reflections in my last will embarrass you. Your affection and tenderness has put them to flight. "Let nothing mar the promised bliss." Thy Theo. waits with inexpressible impatience to welcome the return of her truly beloved. Every domestic joy shall decorate his mansion. When Aaron smiles, shall Theo. frown? Forbid it every guardian power.

Le Jeune perplexes me no longer. I am provoked with myself for having repeated it to you. Your dear little Theo. grows the most engaging child you ever saw. She frequently talks of, and calls on, her dear papa. It is impossible to see her with indifference. All moves as you wish it. All count the passing hours till thy return. Remember, I am in good health and spirits; that I expect the same account of yours. To think of me affectionately is my first command; to write me so, the second. Hasten to share the happiness of thy much loved and much loving

**THEODOSIA.**

**FROM MRS. BURR.**

New-York, August 28th, 1785.

The enclosed was to have gone yesterday, but the intended bearer disappointed me. Young —— and his companions have just left us; at tasting your Madeira he pronounced you a d——d clever fellow. Your merit increased with the number of glasses; they went away in good-humour with themselves and the hostess. O my love, how earnestly I pray that our children may never be driven from your paternal direction. Had you been at home to-day, you would have felt as fervent in this prayer as your Theo. Our children were impressed with utter contempt for their guest. This gave me real satisfaction.

I really believe, my dear, few parents can boast of children whose minds are so prone to virtue. I see the reward of our assiduity with inexpressible delight, with a gratitude few experience. My Aaron, they have grateful hearts; some circumstances prove it, which I shall relate to you with singular pleasure at your return. I pity A. C. from my heart. She will feel the

folly of an over zeal to accumulate. Bartow's assiduity and faithfullness is beyond description. My health is not worse. I have been disappointed in a horse; shall have Pharaoh to-morrow. Frederick is particularly attentive to my health; indeed, none of them are deficient in tenderness. All truly anxious for papa's return; we fix Tuesday, beyond a doubt, but hope impossibilities.

I had a thousand things to write, but the idea of seeing you banishes every other thought. I fear much the violent exertions you are obliged to make will injure your health. Remember how dear, how important it is to the repose, to the life of

**THEODOSIA.**

**FROM MRS. BURR.**

New-York, August 29th, 1785.

As soon as Tuesday evening came, I sent repeated messages to Cape's, who persevered in the answer of there being no letter. I slept ill; found my health much worse in the morning; rode out; in spite of exercise, continued ill till your dear letter was handed me. I immediately called for refreshment, and imagined I had recovered my health; my sensations still tell me so. Ten thousand thanks for the best prescription that ever physician invented. I ride daily; breakfasted with Clem. Clarke this morning, who has scarce a trait of himself. He neither knows nor cares for anybody but his son, who is three years and a half old, fair hair, but not handsome; much humoured; is introduced as a pet of the first value. Aunt more in temper than was expected. He dines here to-morrow with the two Blakes. I felt no other compulse to notice them than your wish.

Our little daughter's health has improved beyond my expectations. Your dear Theodosia cannot hear you spoken of without an apparent melancholy; insomuch that her nurse is obliged to exert her invention to divert her, and myself avoid to mention you in her presence. She was one whole day indifferent to every thing but your name. Her attachment is not of a common nature; though this was my opinion, I avoided the remark, when Mr. Grant observed it to me as a singular instance.

You see I have followed your example in speaking first of myself. I esteemed it a real trait of your affection, a sympathy in the feelings, the anxiety of your Theo., who had every fear for your health; more than you would allow her to express.

The garden wall is begun. I fear the front pavement will not answer your intention. I write you again tomorrow. Much love awaits thee. Thine, unchangeably,

**THEODOSIA BURR.**

**FROM MRS. BURR.**

New-York, 25th September, 1785.

Your dear letter of Saturday morning has just reached me. I was relieved, delighted, till the recollection of the storm you have since weathered took place. How have you borne it? Ten thousand fears alarm me. I pursued thee yesterday, through wind and rain, till eve, when, fatigued, exhausted, shivering, thou didst reach thy haven, surrounded with inattention, thy Theo. from thee. Thus agitated, I laid my head upon a restless pillow, turning from side to side, when thy kindred spirit found its mate. I beheld my much-loved Aaron, his tender eyes fixed kindly on me; they spake a

body wearied, wishing repose, but not sick. This soothed my troubled spirit: I slept tolerably, but dare not trust too confidently. I hasten to my friend to realize the delightful vision; naught but thy voice can tranquillize my mind. Thou art the constant subject of love, hope, and fear. The girls bewail the sufferings of their dear papa; the boys wish themselves in his place; Frederick frets at the badness of the horse; wishes money could put him in thy stead. The unaffected warmth of his heart delights me. If aught can alleviate thy absence, 'tis these testimonies of gratitude and affection from the young and guileless to the best of parents. They feel the hand that blesses them, and love because they are blessed. Thy orders shall be attended to. Mamma joins in the warmest assurances of sincere affection. Theodosia and Sally in perfect health. Beyond expression,

Yours,

**THEODOSIA BURR.**

**FROM MRS. BURR.**

New-York, 27th September, 1785.

I have counted the hours till evening; since that, the minutes, and am still on the watch; the stage not arrived: it is a cruel delay. Your health, your tender frame, how are they supported! Anxiety obliterates every other idea; every noise stops my pen; my heart flutters with hope and fear; the pavement from this to Cape's [4] is kept warm by the family; every eye and ear engrossed by expectation; my mind is in too much trepidation to write. I resume my pen after another messenger, in vain. I will try to tell you that those you love are well; that the boys are very diligent; Ireson gone to Westchester. My new medicine will, I flatter myself, prove a lucky one.

Sally amazingly increased. Fream at work at the roof. He thinks it too flat to be secured. The back walls of the house struck through with the late rain. M.Y. still at Miss W. You must not expect to find dancing on Thursday night. I should think it a degree of presumption to make the necessary preparations without knowing the state of your health. Should this account prove favourable, I still think it best to delay it, as the stage is very irregular in its return. That of Saturday did not arrive till Sunday morning; it brought an unfavourable account of the roads. Thus you probably would not partake, nor would I wish spectators to check my vigilance, or divide that attention which is ever insufficient when thou art the object. O, my Aaron, how impatient I am to welcome thy return; to anticipate thy will, and receive thy loved commands. The clock strikes eleven. No stage. My letter must go. I have been three hours writing, or attempting to write, this imperfect scrawl. The children desire me to speak their affection. Mamma will not be forgot; she especially shares my anxiousness. Adieu.

**THEODOSIA BURR**

**TO MRS. BURR.**

Albany, October 30th, 1785. I have received your two affectionate letters. The enclosed was intended to have been sent by the stage which I met on my way up; but, by untoward accidents (needless to detail), yet lies by me. My disorder has left me almost since I left the city.

The person with whom I had business had gone from this place before my arrival, so that I should have been, ere this, on my return, but that I have suffered myself to be engaged in two land causes (Van Hoesen and Van Rensselaer), which begin to-morrow, and will probably last the whole week. I am retained for Van Hoesen, together with J. Bay and P. W. Yates. Such



able coadjutors will relieve me of the principal burden. You may judge with what reluctance I engaged in a business which will detain me so long from all that is dear and lovely. I dare not think on the period I have yet to be absent. I feel it in some sort a judgment for the letters written by the girls to N.W.

Your account of your health is very suspicious; you are not particular enough; you say nothing of the means you use to restore yourself; whether you take exercise, or how you employ your time.

I shall probably leave this on Sunday next; my horse will not take me home in three days. I fear I shall not see you till Wednesday morning of next week; perhaps not even then, for I am engaged to attend the court at Bedford on Tuesday of next week. You shall hear again by the stage.

Will not these continued rains deprive us of the pleasure of the promised visit of the W.'s? How is it possible you can write me such short letters, having so much leisure, and surrounded with all that can interest me? Adieu.

**A. BURR.**

TO MRS. BURR.

Albany, 2d November, 1785.

I have lived these three days upon the letters I expected this evening, and behold the stage without a line! I have been through the rain, and dark, and mud, hunting up every passenger to catechise them for letters, and can scarce yet believe that I am so totally forgotten.

Our trial, of which I wrote you on Sunday, goes on moderately. It will certainly last till twelve o'clock on Saturday night; longer it cannot, that being the last hour of court. Of course, I leave this on Sunday; shall be detained at Westchester till about Thursday noon, and be home on Friday. This is my present prospect; a gloomy one, I confess; rendered more so by your unpardonable silence. I have a thousand questions to ask, but why ask of the dumb?

I am quite recovered. The trial in which I am engaged is a fatiguing one, and in some respects vexatious. But it puts me in better humour to reflect that you have just received my letter of Sunday, and are saying or thinking some good-natured things of me. Determining to write any thing that can amuse and interest me; every thing that can atone for the late silence, or compensate for the hard fate that divides us.

Since being here I have resolved that you in future accompany me on such excursions, and I am provoked to have yielded to your idle fears on this occasion. I have told here frequently, within a day or two, that I was never so long from home before, till, upon counting days, I find I have been frequently longer. I am so constantly anticipating the duration of this absence, that when I speak of it I realize the whole of it.

Let me find that you have done justice to yourself and me. I shall forgive none the smallest omission on this head. Do not write by the Monday stage, or rather, do not send the letter you write, as it is possible I shall leave the stage-road in my way to Bedford.

Affectionately adieu,

**A. BURR.**

Footnotes:

1. Major Popham, fifty-four years after the date of this letter, attended as a pall-bearer the funeral of Colonel Burr, the friend of his youth.
2. Mrs. Prevost's son.
3. The unfortunate Mrs. Alston, of whom much will be said hereafter.
4. Stagehouse.

## CHAPTER XV.

### FROM MRS. BURR

New-York, August, 1786.

Your letter was faithfully handed us by the boy from Hall's. Bartow has enclosed the papers. Those you mentioned to me on the night of your departure I cannot forward, as I have forgot the names of the parties, and they cannot guess them in the office from my description, I hope the disappointment will not be irreparable.

If you finish your causes before court is over, cannot you look at us, even should you return to the manor? The two girls followed you to the stagehouse, saw you seated and drive off. Frederick's tooth prevented his attendance. My heart is full of affection, my head too barren to express it. I am impatient for evening; for the receipt of your dear letter; for those delightful sensations which your expressions of tenderness alone can excite. Dejected, distracted with out them; elated, giddy even to folly with them; my mind, never at medium, claims every thing from your partiality.

I have just determined to take a room at aunt Clarke's till Sally recovers her appetite; by the advice of the physician, we have changed her food from vegetable to animal. A change of air may be equally beneficial. You shall have a faithful account, I leave town at six this evening. All good angels

attend thee. The children speak their love. Theodosia has written to you, and is anxious lest I should omit sending it. Toujours la vôtre,

**THEODOSIA.**

**TO MRS. BURR.**

Albany, August, 1786.

Your letter of Thursday evening was stuffed into one of the office papers, so that I did not find it for half an hour after I received the packet, during all which time I had the pleasure of abusing you stoutly. But I had only prepared myself for the most delightful surprise. I apologized with great submission.

Why are you so cautiously silent as to our little Sally? You do not say that she is better or worse; from which I conclude she is worse. I am not wholly pleased with your plan of meat diet. It is recommended upon the idea that she has no disorder but a general debility. All the disorders of this season are apt to be attended with fevers, in which case animal diet is unfriendly. I beg you to watch the effects of this whim with great attention. So essential a change will certainly have visible effects. Remember, I do not absolutely condemn, because I do not know the principles, but am fearful.

Every minute of my time is engrossed to repair the loss of my little book. Thank the boys for their attention to the business I left them in charge. I wish either of them had given me a history of what is doing in the office, and you of what is doing in the family. The girls I know to be incorrigibly lazy, and therefore expect nothing from them. The time was—but I have no leisure to reflect.

Thine,

A. BURR.

TO MRS. BURR.

Albany, August, eleven o'clock at night, 1786.

I have this day your letter by my express. I am sorry that you and others perplex yourselves with that office nonsense. Am too fatigued and too busy to say more of it. We began our Catskill causes this morning, and have this minute adjourned to meet at seven in the morning. We shall be engaged at the same disagreeable rate till Saturday evening. I think our title stands favourably; but the jury are such that the verdict will be in some measure hazardous. I have judgment for Maunsel against Brown, after a laboured argument. Inform him, with my regards.

Since writing thus far, I have your affectionate letter by the stage, which revives me. I shall not go to the manor. But, if I succeed in our causes, shall be obliged to go to Catskill to settle with the tenants, make sales, &c. Of this you cannot know till Tuesday evening.

I am wrong to say that I shall not go to the manor. I am obliged to attend a Court of Chancery there. The chancellor had gone hence before my arrival. I cannot be home till Thursday evening. I hope your next will be of the tenour of the last. Your want of cheerfulness is the least acceptable of any token of affection you can give me. Good angels guard and preserve you.

A. BURR.

FROM MRS. BURR.

New-York, November, 1787.

What language can express the joy, the gratitude of Theodosia? Stage after stage without a line. Thy usual punctuality gave room for every fear; various conjectures filled every breast. One of our sons was to have departed tomorrow in quest of the best of friends and fathers. This morning we waited the stage with impatience. Shrouder went frequently before it arrived; at length returned—*no letter*. We were struck dumb with disappointment. Bartow set out to inquire who were the passengers; in a very few minutes returned exulting,—a packet worth the treasures of the universe. Joy brightened every face; all expressed their past anxieties; their present happiness. To enjoy was the first result. Each made choice of what they could best relish. Porter, sweet wine, chocolate, and sweetmeats made the most delightful repast that could be shared without thee. The servants were made to feel *their lord was well*, are at this instant toasting his health and bounty; while the boys are obeying thy dear commands, thy Theodosia flies to speak her heartfelt joys:—her Aaron safe, mistress of the heart she adores; can she ask more? has Heaven more to grant? "*Plus que jamais à vous*," dost thou recollect it? Do I read right? I can't mistake; I read it everywhere; 'tis stamped on the blank paper; I sully the impression with reluctance; I know not what I write. You talk of long absence. I stoop not to dull calculations; thou hast judged it best; thy breast breathes purest flame. What greater blessing can await me? Every latent spark is kindled in my soul. My imagination is crowded with ideas; they leave me no time for utterance; *plus que jamais*; but for Sally, I should set out to-morrow to meet you. I must dress and visit to-morrow. I have heard nothing of the W.s. Our two dear pledges have an instinctive knowledge of their mother's bliss. They have been awake all the evening I have the youngest in my arms. Our sweet prattler exclaims at every noise, There's dear papa, and runs to meet

him. I pursue the medicine I began when you left us, and believe it efficacious. Exercise costs me a crown a day; our own horse disabled by the nail which penetrated the joint. I have grown less, and better pleased with myself; feel confident of your approbation. W. hastens the first assembly. F. feigns herself lame, that she may not accompany M., who submits to every little meanness, and bears all hints with insensibility. Has called here once. Clement sailed on Monday.

Your remark on the shortness of my letters is flattering. This is the last you shall complain of. My spirits and nerves coincide in asking repose. Your daughter commands it. Our dear children join in the strongest assurances of honest love. Mamma will not be forgotten. Sweet sleep attend thee. Thy Theo.'s spirit shall preside. I wish you may find this scrawl as short at reading as I have at writing. I am surprised to find myself obliged to enclose it. Adieu.

**THEODOSIA BURR.**

**FROM MRS. BURR.**

New-York, Wednesday, November, 1787.

My health is better. As I fondly believe this the most interesting intelligence I can give thee, I make it my preamble. What would I not give to have but those four small words from thee? Though I had but little hope, I found myself involuntarily counting the passing hours. My messenger met the stage at the door. I need not relate his success. I fancy many ills from the situation of your health when you left home, and pray ardently they may prove merely fanciful. I have still three tedious days to the next stage, when a line of affection shall repay all my anxieties. Ireson returned to-day. The



poor boys have really been models of industry. They write all day and evening, and sometimes all night, nor allow themselves time to powder.

I feel as though my guardian angel had forsaken me. I fear every thing but ghosts. Tell me, Aaron, why do I grow every day more tenacious of thy regard? Is it possible my affection can increase? Is it because each revolving day proves thee more deserving? Surely, thy Theo. needed no proof of thy goodness. Heaven preserve the patron of my flock; preserve the husband of my heart; teach me to cherish his love, and to deserve the boon.

**THEODOSIA BURR.**

**TO MRS. BURR.**

Poughkeepsie, 28th June, 1788.

This afternoon the stage will pass through this place. Your letters will not come to me till the morning, so that I can only thank you for them, and the kind things they contain, by anticipation. I have already read them in the same way, and therefore do thank you for them, *de plein coeur*. I have a convenient room for my business in one house, board at a different house, and bad lodgings at a third house. This is, indeed, not so convenient an arrangement as might be wished; but I could not procure these different accommodations at less than three houses in this metropolis and seat of government.

As the boys will wish to know something of the progress of business here, tell them that the cause of Freer and Van Vleeck has been this day put off by the defendants, on payment of costs, on an affidavit of the want of papers. In Noxon's cause I have a verdict for thirty-four pounds. The evidence clearly entitled Mr. Livingston to three or four hundred pounds,

and so was the charge of the judge; but landlords are not popular or favoured in this county. I am now going to court to defend an action of trespass, in which I have been employed here; and shall try Mr. Lansing's cause to-morrow, which will close my business here. With how much regret I shall go further from home. Kiss our dear children.

**A. BURR.**

TO MRS. BURR.

Poughkeepsie, 29th June, 1788.

I have sat an hour at the door watching the arrival of the stage. At length it comes, and your dear packet is handed to me just in season to be acknowledged by Mr. Johnstone. He will tell you of the further progress of my business and my intended movements. I go this evening to Rhinebeck. How wishfully I look homeward. I like your industry, and will certainly reward it as you shall direct.

My time is much engrossed. My health perfectly good. You say nothing of yours; but your industry is a good omen. You can write to me by Monday's stage, directed to be forwarded to me from Rhinebeck. I shall be then at Kingston. Much love to the smiling little girl. I received her letter, but not the pretty things. I continually plan my return with childish impatience, and fancy a thousand incidents which render it more interesting. Reserve your health and spirits, and I shall not be deceived.

Affectionately,

**A. BURR.**

## TO MRS. BURR.

Albany, August 7th, 1788.

Oh Theo.! there is the most delightful grove—so darkened with *weeping willows*, that at noonday a *susceptible* fancy like yours would mistake it for a bewitching moonlight evening. These sympathizing willows, too, exclude even the prying eye of curiosity. Here no rude noise interrupts the softest whisper. Here no harsher sound is heard than the wild cooings of the gentle dove, the gay thrasher's animated warbles, and the soft murmurs of the passing brook. Really, Theo., it is *charming*.

I should have told you that I am speaking of Fort Johnson, where I have spent a day. From this *amiable* bower you ascend a gentle declivity, by a winding path, to a cluster of lofty oaks and locusts. Here nature assumes a more august appearance. The gentle brook, which murmured soft below, here bursts a cataract. Here you behold the stately Mohawk roll his majestic wave along the lofty Apalachians. Here the mind assumes a nobler tone, and is occupied by sublimer objects. What *there* was tenderness, *here* swells to rapture. It is truly *charming*.

The windings of this enchanting brook form a lovely island, variegated by the most sportive hand of nature. This shall be yours. We will plant it with jessamines and woodbine, and call it Cyprus. It seems formed for the residence of the loves and the graces, and is therefore yours by the best of titles. It is indeed most *charming*.

But I could fill sheets in description of the beauties of this romantic place. We will reserve it for the subject of many an amusing hour. And besides being little in the habit of the sublime or poetical, I grow already out of breath, and begin to falter, as you perceive. I cannot, however, omit the most interesting and important circumstance; one which I had rather

communicate to you in this way than face to face. I know that you was opposed to this journey to Fort Johnson. It is therefore with the greater regret that I communicate the event; and you are not unacquainted with my inducements to it.

In many things I am indeed unhappy in possessing a singularity of taste; particularly unhappy when that taste differs in any thing from yours. But we cannot control necessity, though we often persuade ourselves that certain things are our choice, when in truth we have been unavoidably impelled to them. In the instance I am going to relate, I shall not examine whether I have been governed by mere fancy, or by motives of expediency, or by caprice; you will probably say the latter.

My dear Theo., arm yourself with all your fortitude. I know you have much of it, and I hope that upon this occasion you will not fail to exercise it. I abhor preface and preamble, and don't know why I have now used it so freely. But I am well aware that what I am going to relate needs much apology *from* me, and will need much *to* you. If I am the unwilling, the unfortunate instrument of depriving you of any part of your promised gayety or pleasure, I hope you are too generous to aggravate the misfortune by upbraiding me with it. Be assured (I hope the assurance is needless), that whatever diminishes your happiness equally impairs mine. In short, then, for I grow tedious both to you and myself; and to procrastinate the relation of disagreeable events only gives them poignancy; in short, then, my dear Theo., the beauty of this same Fort Johnson, the fertility of the soil, the commodiousness and elegance of the buildings, the great value of the mills, and the very inconsiderable price which was asked for the whole, have *not* induced me to purchase it, and probably never will: in the confidence, however, of meeting your forgiveness,

Affectionately yours,

A. BURR.

TO MRS. BURR.

Albany, 26th October, 1788.

I wrote you a few hours ago, and put the letter into the postoffice. Little did I then imagine how much pleasure was near at hand for me. Judge Hobart has this minute arrived, and handed me your letter of Monday. I cannot thank you sufficiently for all the affection it contains. Be assured it has every welcome which congenial affection can give.

The headache with which I left New-York grew so extreme, that finding it impossible to proceed in the stage, the view of a vessel off Tarrytown, under full sail before the wind, tempted me to go on board. We reached West Point that night, and lay there at anchor near three days. After a variety of changes from sloop to wagon, from wagon to canoe, and from canoe to sloop again, I reached this place last evening. I was able, however, to land at Rhinebeck on Thursday evening, and there wrote you a letter which I suppose reached you on Saturday last.

My business in court will detain me till Saturday of this week, when I propose to take passage in sloop. I have just drunk tea with Mrs. Fairlie, and her daughter, five days old. Thank Bartow for the papers by Judge Hobart. When I wrote him this evening I had not received them.

Yours,

A. BURR.

TO MRS. BURR.

Albany, November, 1788.

I received your affectionate letter just as I was going into court, and under the auspices of it have tried with success two causes. The bearer of this was my client in one of them, and is happy beyond measure at his success. Business has increased upon my hands since I came here. My return seems daily more distant, but not to be regretted from any views but those of the heart.

I hope you persevere in the regular mode of life which I pointed out to you. I shall be seriously angry if you do not. I think you had best take less wine and more exercise. A walk twice round the garden before breakfast, and a ride in the afternoon, will do for the present, and this will be necessary to fit you for the journey to Long Island.

A Captain Randolph will call with Mr. Mersereau: *c'est un soldat et honnête homme, donnez eux à boire*. They will answer all your questions.

Yours truly,

A. BURR.

TO MRS. BURR.

Albany, 23d November, 1788.

I thank you for your obliging letter of the 19th. It is not, indeed, so long as I had hoped, but your reason for being concise is too ingenious not to be admitted. I have, however, a persuasion that you are at this moment

employed in the same manner that I am; and in the hope that your good intentions will not be checked by either want of health or want of spirits, I venture to expect a much longer letter by the coming post.

Your account of the progress of the measles is alarming. I am pleased to find that you yet keep your ground. It persuades me that, notwithstanding what you have written, you do not think the hazard very great. That disorder hath found its way to this city, but with no unfavourable symptoms. It is not spoken of as a thing to be either feared or avoided.

I have no prospect of being able to leave this place before this day week, probably not so soon. You must, by return of post, assure me that I shall find you in good health and spirits. This will enable me to despatch business and hasten my return. Kiss those who love me.

**A. BURR**

**TO MRS. BURR.**

Albany, 26th November, 1788.

The unusual delay of the post deprives me of the pleasure of hearing from you this evening. This I regret the more, as your last makes me particularly anxious for that which I expected by this post.

I am wearied out with the most tedious cause I was ever engaged in. Tomorrow will be the eighth day since we began it, and it may probably last the whole of this week. Write me whether any thing calls particularly for my return so as to prevent my concluding my business here. I am at a loss what to write until I have your answer to my letters, for which I am very impatient.

Yours affectionately,

A. BURR.

From the commencement of the year 1785 until the year 1788, Colonel Burr took but little part in the political discussions of the day. In the year 1787 the opinion had become universal that the states could not be kept together under the existing articles of confederation. On the second Monday in May, 1787, a convention met in Philadelphia for the avowed purpose of "*revising the Articles of Confederation*," &c. On the 28th of September following, that convention, having agreed upon a "*new constitution*," ordered that the same be transmitted to the several legislatures for the purpose of being submitted to a convention of delegates, chosen in each state, for its adoption or rejection.

In January, 1788, the legislature of New-York met, and warm discussions ensued on the subject of the new constitution. These discussions arose on the question of calling a state convention. Parties had now become organized. The friends of the new constitution styled themselves *federalists*. Its opponents were designated *anti-federalists*. The latter denied the right of the general convention to form a "new constitution," and contended that they were limited in their powers to "revising and amending the Articles of Confederation." The former asserted that the general convention had not transcended its powers.

Colonel Burr, on this point, appears to have assumed a neutral stand; but, in other respects, connected himself with what was termed the anti-federal party. He wished amendments to the constitution, and had received, in common with many others, an impression that the powers of the federal government, unless more distinctly defined, would be so exercised as to divest the states of every attribute of sovereignty, and that on their ruins



ultimately there would be erected a splendid *national* instead of a *federal* government.

In April, 1788, Colonel Burr was nominated by the anti-federalists of the city of New-York as a candidate for the assembly. The feelings of that day may be judged of by the manner in which the ticket was headed. It was published in the newspapers and in handbills as follows:—

"The sons of liberty, who are again called upon to contend with the *sheltered aliens*, who have, by the courtesy of our country, been permitted to remain among us, will give their support to the following ticket:—

"*William Deming, Melancton Smith, Marinus Willet, and Aaron Burr.*"

The federalists prevailed by an overwhelming majority. The strength of the contending parties was in the ratio of about seven federalists (or tories) for one anti-federalist (or whig). Such were the political cognomens of the day. The federalists styled their opponents *anti-federalists*. The anti-federalists designated their opponents *tories*.

In April, 1789, there was an election for governor of the State of New-York. The anti-federal party nominated George Clinton. A meeting of citizens, principally federalists, was held in the city of New-York, and Judge Robert Yates was nominated in opposition to Mr. Clinton. Mr. Yates was a firm and decided anti-federalist. He was known to be the personal and political friend of Colonel Burr. At this meeting a committee of correspondence was appointed. Colonel Hamilton and Colonel Burr were both members of this committee.

In their address recommending Judge Yates they state, that Chief-justice Morris or Lieutenant-governor Van Courtlandt were the favourite candidates of the federal party; but, for the sake of harmonizing conflicting

interests, a gentleman (Mr. Yates), known as an anti-federalist, had been selected, and they respectfully recommend to Mr. Morris and Mr. Van Courtlandt to withdraw their names, and to unite in the support of Mr. Yates. This address was signed by Alexander Hamilton as chairman. Mr. Clinton, however, was re-elected.

This support of Judge Yates did not diminish Governor Clinton's confidence in the political integrity, or lessen his respect for the talents, of Colonel Burr. A few months after the election the governor tendered to him the office of attorney-general of the state. At first he hesitated about accepting the appointment; but, on the 25th of September, 1789, addressed his excellency as follows:—

**TO GOVERNOR GEORGE CLINTON.**

**SIR,**

In case the office you were pleased to propose should be offered to me, I have, upon reflection, determined to accept it; at least until it shall be known upon what establishment it will be placed. My hesitation arose not from any dislike to the office, but from the circumstances which I took the liberty to suggest in our conversation on this subject.

I have the honour to be

Your excellency's obedient servant,

**A. BURR.**

On the receipt of the above note, Governor Clinton nominated Colonel Burr to the council of appointment as attorney-general of the state, and the nomination was confirmed. This office was rather professional than

political. It was, however, at the time, highly important, and imposed the most arduous duties upon the incumbent. Under the new constitution of the United States, after the organization of the government, many intricate questions arose. To discriminate between the claims upon the respective states and those upon the federal government, often required close investigation and no inconsiderable degree of legal astuteness. The claims of individuals who had been in the service of the state during the war of the revolution, or who had otherwise become creditors, were now presented for adjustment. There were no principles settled by which their justice or legality could be tested. All was chaos; and the legislature was about to be overwhelmed with petitions from every quarter for debts due, or for injuries alleged to have been sustained by individuals who had been compelled to receive depreciated money, or whose private property had been taken for public use. In this dilemma the legislature passed an act authorizing the appointment of commissioners to report on the subject. The commissioners were Gerard Bancker, treasurer, Peter T. Curtenius, state auditor, and Aaron Burr, attorney-general.

During the period that Colonel Burr was attorney-general, the seat of government was in the city of New-York. His official duties, therefore, seldom required his absence from home, when his private business, as a professional man, would not have rendered that absence necessary. His correspondence, although more limited, lost none of its interest, and miscellaneous selections from it are therefore continued.

**TO MRS. BURR.**

Albany, 21st October, 1789.

**MY DEAREST THEODOSIA,**

I have this moment received your letter of Sunday evening, containing the account of your alarming accident and most fortunate rescue and escape. I thank Heaven for your preservation, and thank you a thousand times for your particular and interesting account of it.

I left my sloop at Kinderhook on Monday morning, and came here that day in a wagon. I wrote you on the passage, and attempted to leave the letter at Poughkeepsie, but the wind not permitting us to stop, I went on board a Rhinebeck sloop, and there found Mrs. Peter R. Livingston, who offered to take charge of my letter.

I am relieved from much anxiety by your management of certain arrangements; I am glad M. W. is content. Mrs. Witbeck met with an accident a little similar to yours; but she lost only her cap and hair.

I am delighted to find that you anticipate as a pleasure that by this post you may write as much as you please. If you set no other bound to your pen than my gratification, you will write me the history every day, not of your actions only (the least of which will be interesting), but of your thoughts. I shall watch with eagerness and impatience the coming of every stage. Let me not be disappointed; you have raised and given confidence to these hopes. We lodge at a neat, quiet widow's, near the Recorder Gansevoort's. Sill invited us very friendly.

Affectionately,

**A. BURR.**

TO MRS. BURR.

Albany, 24th October, 1783.

With what pleasure have I feasted for three days past upon the letters I was to receive this evening. I was engaged in court when the stage passed. Upon the sound of it I left court and ran to the postoffice; judge of my mortification to find not a line from your hand. Surely, in the course of three days, you might have found half an hour to have devoted to me. You well knew how much I relied on it; you knew the pleasure it would have given me, and the disappointment and chagrin I should feel from the neglect. I cannot, will not believe that these considerations have no weight with you. But a truce to complaints. I will hope that you have written, and that some accident has detained the letter.

Your misfortunes so engrossed me, that I forgot to inquire about Augustine's horses; and to give a caution, which I believe is needless, about the blank checks. Do not part with one till you see it filled up with sum and date. T. P. is apt to make mistakes, and once lost a check which was by accident detected before it was presented for payment. This is my fourth letter. Perhaps I write too much, and you wish to give me an example of moderation.

Yours affectionately,

**A. BURR.**

**TO MRS. BURR.**

Albany, 28th October, 1789.

The history of your sufferings, this moment received, is truly unexpected and affecting. My sympathy was wholly with your unfortunate left hand. The distressing circumstances respecting your face must certainly be owing to something more than the mere misfortune of your burn. I cannot help

feeling a resentment which must not be in this way expressed. I am sure your sufferings might have been prevented. I had promised myself that they were at an end many days ago.

Forgive my splenetic letter by the last post. I cannot tell you how much I regret it. When I was complaining and accusing you of neglect, you were suffering the most excruciating pain; but I could not have imagined this unfortunate reverse. Impute my impatience to my anxiety to hear from you. I am pleased at the gayety of your letter. Do not think a moment of the consequences which you apprehend from the wound. Let me only hear that you are relieved from pain, and I am happy. This is my fifth letter. Frederick is the laziest dog in the world for not having written me of your situation.

Yours, truly and affectionately,

**A. BURR.**

**TO MRS. BURR.**

Claverack, 27th June, 1791.

I have just arrived here, and find Mr. B. Livingston about to return to New-York. He informs me that he left home on Saturday, and sent you word that he was to meet me here. It was kind in him. I cannot say as much of the improvement you made of his goodness.

It is surprising that you tell me nothing of Theo. I would by no means have her writing and arithmetic neglected. It is the part of her education which is of the most present importance. If Shepherd will not attend her in the house, another must be had; but I had rather pay him double than

employ another. Is Chevalier still punctual? Let me know whether you are yet suited with horses, and how?

In your letters, speak of Brooks and Ireson's attendance. I wish you would often step into the office, and see as many as you can of the people who come on business. Does young Mr. Broome attend? Other and more interesting questions have been made and repeated in my former letters; I will therefore, at present, fatigue with no more interrogatories. Adieu.

A. BURR.

FROM MRS. BURR.

New-York, 30th June, 1791.

My letter missed the post yesterday not from my neglect. It waited for Brooks's packet, which was not ready till the mail was gone. Mr. B. Livingston just handed me the one you intrusted to him. I was the more pleased with it, as he accompanied it with the most favourable account of your health I have received since your absence, and promises to forward this in the afternoon.

The Edwardses dine with me; they had taken lodgings previous to their arrival, in consequence of a report made them by the little Bodowins (who were at Mrs. Moore's last winter), that my house was too small and inconvenient to admit of a spare bed. I esteem it a lucky escape. It would have been impossible for me to have borne the fatigue. Charlotte is worn out with sleepless nights, laborious days, and an anxious mind. Hannah constantly drunk. Except William, who is a mere waiter, I have no servant.

My guests are come to dinner. I have solicited them, and shall again, to stay here; but, if they positively decline it, I will go to Frederick. I will steal a moment after dinner to add another page.

July 2d.

The person Mr. Livingston expected to forward my letter by did not go, nor could I hear of an opportunity, till, this moment, Mr. Williams offered to take charge of this. I had arranged every thing to set out for Frederick this morning, when a mortification was found to have taken place on Charlotte's child, and she could not be moved. As I had carted every thing on board, which I assure you was no small piece of business, I sent Natie with the three younger children, and kept Louise and Theo to go with me, whenever this disagreeable event is past.

Theo never can or will make the progress we would wish her while she has so many avocations. I kept her home a week in hopes Shepherd would consent to attend her at home, but he absolutely declined it, as his partners thought it derogatory to their dignity. I was therefore obliged to submit, and permit her to go as usual. She begins to cipher. Mr. Chevalier attends regularly, and I take care she never omits learning her French lesson. I believe she makes most progress in this. Mr. St. Aivre never comes; he can get no fiddler, and I am told his furniture, &c. have been seized by the sheriff. I don't think the dancing lessons do much good while the weather is so warm; they fatigue too soon. I have a dozen and four tickets on hand, which I think will double in value at my return. As to the music, upon the footing it now is she can never make progress, though she sacrifices two thirds of her time to it. 'Tis a serious check to her other acquirements. She must either have a forte-piano at home, or renounce learning it. For these reasons I am impatient to go in the country. Her education is not on an advantageous footing at present. Besides, the playfellows she has at home



makes it the most favourable moment for her to be at liberty a few weeks, to range and gain in health a good foundation for more application at our return, when I hope to have her alone; nay, I will have her alone. I cannot live so great a slave, and she shall not suffer. My time shall not be an unwilling sacrifice to others; it shall be hers. She shall have it, but I will not use severity; and without it, at present, I can obtain nothing; 'tis a bad habit, which she never deserves when I have her to myself. The, moment we are alone she tries to amuse me with her improvement, which the little jade knows will always command my attention; but these moments are short and seldom. I have so many trifling interruptions, that my head feels as if I had been a twelvemonth at sea. I scarcely know what I speak, and much less what I write.

What a provoking thing that I, who never go out, who never dress beyond a decent style at home, should not have a leisure moment to read a newspaper. It is a recreation I have not had since you left home, nor could I get an opportunity by water to send them to you. Albany will be a more favourable situation for every conveyance. But I don't understand why your lordship can't pay your obeisance at home in this four week vacation. I think I am entitled to a reason.

Brooks attends regularly. Ireson from six to twelve, and from two to six, as punctual as possible. I should have made the office more my business had I known it would have been agreeable to you. I shall be attentive for the future. Bartow is here every morning. Most people either choose to wait for him, or call at some appointed hour when he can be here. Mr. Broome is here every day.

God knows the quality of this epistle; but the quantity I am certain you won't complain of. 'Tis like throwing the dice—a mere game at hazard; like all gamblers, I am always in hopes the last will prove a lucky cast. Pray, in

what consists the pleasure of a familiar correspondence? In writing without form or reflection your ideas and feelings of the moment, trusting to the partiality of your friend every imperfect thought, and to his candour every ill-turned phrase. Such are the letters I love, and such I request of those I love. It must be a very depraved mind from whom such letters are not acceptable.

Neither the packet you left at Kingston, nor the money and greatcoat by Colonel Gausbeck, have yet reached me. I wish you could have passed that leisure four weeks with me at Frederick's. How pleasant such a party would have been. How much quiet we should have enjoyed.

July 3d.

I was interrupted yesterday by the death of Charlotte's child. Though a long-expected event, still the scene is painful. The mother's tears were almost too much for me. I hope nothing new will occur to impede my journey. I set off to-morrow morning.

I am not so sick as when I wrote you last, nor so well as when you left me. I confess I have neglected the use of those medicines I found relief from. The situation of my family has obliged me to neglect myself, nor can I possibly use them at Frederick's. We shall be too crowded. I will nevertheless take them with me. I live chiefly on ale. I buy very good for one dollar per dozen. I have had twenty-one dozen of your pipe of wine bottled. I think it very good.

I thank you for your remembrance per post of 30th June. It was acceptable, though short. How is it possible you had nothing more to write? I know the head may be exhausted, but I was in hopes the heart never could. I am surprised at your not getting my letters. I fear several have either gone

to Albany or are lost. I shall, from this day, keep the dates. I wrote you last Sunday—so did Ireson.

You can have no idea how comfortable the house seems since the small tribe have left it. A few weeks' quiet would restore my head. It really wants rest. You can't know how weak it is. I cannot guide a single thought. Those very trifling cares were ever more toilsome to me than important matters; they destroy the mind. But I am beginning another sheet; I am sure you must be tired of this unconnected medley. I will bid you adieu.

Theo. has begun to write several letters, but never finished one. The only time she has to write is also the hour of general leisure, and, when once she is interrupted, there is no making her return to work. I have nothing more to write, except that I am yours affectionately,

**THEO. BURR.**

**TO MRS. BURR.**

Albany, 17th July, 1791.

I returned yesterday from Johnstown, worn down with heat, fatigue, and bad fare. It is some small consolation that these tedious journeys are not wholly unproductive.

At Johnstown I was very unexpectedly and agreeably surprised by your letter of the 21st June, which was addressed to me at Kingston. It had been intrusted to an Irishman, whom I at length met pretty much by accident. It informs me of the villany of Frederick's servants, and of his wanting a rib. The latter I have equally at heart with you, and never lose sight of it; but,

really, the big mother will not do; the father is not much better—reputable and rich, but coarse and disgusting.

On my return to this place I found your letter of Wednesday morning. I fear the bad road near Pelham will discourage you from riding. As you are likely to make considerable use of it, would it not be worth while to have a few days' work done on it? About an hour after the receipt of the last-mentioned letter, I was made happy by the receipt of that of the 10th instant, which came by sloop. You seem fatigued and worried, your head wild and scarcely able to write, but do not name the cause. Whatever it may have been, I am persuaded that nothing will so speedily and effectually remove such sensations as gentle exercise (or even if it is not gentle) in the open air. The extreme heat of the weather, and the uncommon continuance of it, have, I fear, interrupted your good intentions on this head, especially as you are no friend to riding early. I wish you would alter this part (if it is any part) of your system. Walking early is bad on account of the dew; but riding can, I think, in such weather, be only practised with advantage early in the morning. The freshness of the air, and the sprightliness of all animated nature, are circumstances of no trifling consequence. I have no letter from you by the last post, which put me almost out of humour, notwithstanding the receipt of the three above mentioned within forty-eight hours, of which, however, the latest is a week old.

I hope Theo. will learn to ride on horseback. Two or three hours a day at French and arithmetic will not injure her. Be careful of green apples, &c.

I have been persuaded to undertake a laborious piece of business, which will employ me diligently for about ten days. The eloquence which wrought upon me was principally money. I am now at wages. What sacrifices of time and pleasure do I make to this paltry object—contemptible indeed in itself, but truly important and attractive as the means of gratifying those I

love. No other consideration could induce me to spend another day of my life in objects in themselves uninteresting, and which afford neither instruction nor amusement. They become daily more disgusting to me; in some degree, perhaps, owing to my state of health, which is much as when I left New-York. The least fatigue brings a slight return of fever.

Your exercise, your medicine, and your reading are three subjects upon which you have hitherto dwelt only in prospect. They must be all, in some degree, within your power. I have a partiality for the little study as your bedroom. Say a word of each of these matters in your next.

Continue and multiply your letters to me. They are all my solace in this irksome and laborious confinement. The six last are constantly within my reach. I read them once a day at least. Write me of all I have requested, and a hundred things which I have not. You best know how to please and interest.

Your affectionate

**A. BURR.**

**FROM MRS. BURR.**

Pelham, 23d July, 1791.

I have just now received your welcome letter of the 17th inst. The pleasure imparted by so flattering a testimony of your good-will, was tempered with a large portion of alloy in the confession of your ill health. I was apprehensive travelling in the heat and bad accommodations would check your recovery. Do return home as soon as possible; or, rather, come to Pelham; try quiet, and the good air, and the attention and friendship of

those who love you. You may command Bartow's attendance here whenever it suits you, and you have a faithful envoy in Frederick, who will go post with your commands as often as you wish. It is, indeed, of serious consequence to you, to establish your health *before you commence politician*: when once you get engaged, your industry will exceed your strength; your pride cause you to forget yourself. But remember, you are not your own; there are those who have stronger claims than ambition ought to have, or the public can have.

Why did you undertake that very laborious task you mention? 'Tis certain I have a great pleasure in spending money, but not when it is accompanied with the unpleasant reflection of sacrificing your health to the pursuit.

Theo. is much better; she writes and ciphers from five in the morning to eight, and also the same hours in the evening. This prevents our riding at those hours, except Saturday and Sunday, otherwise I should cheerfully follow your directions, as I rise at five or six every day. Theo. makes amazing progress at figures. Though Louisa has worked at them all winter, and appeared quite an adept at first, yet Theo. is now before her, and assists her to make her sums. You will really be surprised at her improvement. I think her time so well spent that I shall not wish to return to town sooner than I am obliged. She does not ride on horseback, though Frederick has a very pretty riding horse he keeps for her; but were she to attempt it now, there would be so much jealousy, and so many would wish to take their turn, that it would really be impracticable. But we have the best substitute imaginable. As you gave me leave to dispose of the old wheels as I pleased, I gave them as my part towards a wagon; we have a good plain Dutch wagon, that I prefer to a carriage when at Pelham, as the exercise is much better. We ride in numbers and are well jolted, and without dread. 'Tis the most powerful exercise I know. No Spring seats; but, like so many pigs, we bundle together on straw. Four miles are equal to twenty. It is really an

acquisition. I hope you will see our little girl rosy cheeked and plump as a partridge. I rejoice with you at the poor major's return. I grow lazy, and love leisure; and, above all, the privilege of disposing of my own time with quiet and retirement when it suits me. I have also made choice of the little study for my own apartment; but with so large a family, and so few conveniences, there can be no place of retirement. The vacation hours of school, and Sunday, there is a constant hurlyburly, and every kind of noise, though it is really much better than I feared. I take all things as philosophically as I know how; provided I have no real evil to struggle with, I pass on with the tumult. I am now writing in the midst of it. The variety of sounds almost dim my sight; but I write on, and trust to good luck more than reflection, I find so much to say that I need not hesitate for matter, though I might for propriety of speaking. My spirits are better: as to industry, it is of a very flighty kind, and so variegated that it will not bear description. It required some attention to get matters *en train*: it was like moving. My disorder I have not, nor am not able to attend to; 'tis attended with so many disagreeable circumstances that it is not practicable at present; but my general health is greatly improved, and my head much relieved. The hint you give respecting a rib for Frederick is more elating than I can express. You say nothing of B. That part of my petition was not less interesting. I humbly pray your honour may take into consideration the equity and propriety of my prayer, and grant me not only a hearing, but deign to give due consideration to the prayer of your humble petitioner, being confident she will find grace and mercy from your tribunal, with a full grant of all your endeavours to reinstate her in that desired tranquillity whose source is in your breast, to that happiness which is suspended on your will.

The heat and drought exceed all recollection. The town is extremely unhealthy. It is fortunate we are here. There is always air—never heat enough to incommode one. I am certain the child would have suffered in town; she was much reduced; her voice and breast were weak. Adieu. I

think you must be tired before this. Attend to yourself. If you love us, you will. You will for your

**THEODOSIA BURR.**

FROM MRS. BURR.

Pelham, 27th July, 1791.

I have lost some of your letters, and I make no doubt some of mine have met the same fate; for this reason I am discouraged trusting any more to the stage. I am obliged to wait with all the patience I can command till the boat returns from town. I have no prospect at present of forwarding this. I write to repeat my thanks for yours of the 17th. It is the last I have received. I read it frequently, and always with new pleasure. I was disappointed at not having a line from you by the Saturday's mail. It is not fair to stand on punctilio, when you know the disadvantages attending my situation here. You ought to be doubly attentive *pour me soulager*. It is not so practicable to send some miles from home twice a week as you imagine.

Poor Dr. Wright had his house two days ago burnt to the ground, and all the furniture, with every article of clothing both of themselves and the children. She is very disconsolate, and much to be pitied. We certainly see the old proverb very often verified. "That misfortunes never come singly," that poor little woman is a proof. They talk of a general war in Europe; in that case *le moulin* will be an object. We wait your return to determine all things. The Emperess of Russia is as successful as I wish her. What a glorious figure will she make on the historical page! Can you form an idea of a more happy mortal than she will be when seated on the throne of Constantinople? How her ambition will be gratified; the opposition and



threats of Great Britain, &c. will increase her triumph. I wish I had wit and importance enough to write her a congratulatory letter. The ladies should deify her, and consecrate a temple to her praise. It is a diverting thought, that the mighty Emperor of the Turks should be subdued by a woman. How enviable that she alone should be the avenger of her sex's wrongs for so many ages past. She seems to have awakened Justice, who appears to be a sleepy dame in the cause of injured innocence.

Am I dreaming, or do you leave home again before you go to Philadelphia? Tell all your intentions; I love to plan and arrange. Our blind state here is one of our most vexatious evils; that state of uncertainty damps every view, and converts our most pleasing hopes into the most disappointing reflections.

Hy! ho! for the major. [1] I am tired to death of living in a nursery. It is very well to be amused with children at an idle hour; but their interruption at all times is insupportable to a person of common reflection. My nerves will not admit of it. You judge right as to the roads on the Neck.

Theodosia is quite recovered, and makes great progress at ciphering. I cannot say so much in favour of her writing. I really think she lost the last month she went to Shepherd. She has not improved since last spring. She is sensible of it, is the reason she is not very desirous to give you a specimen. We now keep her chiefly at figures, which she finds very difficult, particularly to proportion them, and place them straight under each other.

I will conclude my scrawl in the hope that Frederick will be able to forward it for me. Adieu. Remember to answer all my questions, and to take all my prayers in serious consideration. Be attentive to your health, and you will add to the happiness of your

**THEODOSIA.**

TO MRS. BURR.

Albany, 31st July, 1791.

At length expectation is gratified, and my hopes—even my wishes, fulfilled. Your letters of the 16th and 23d came both by the last post. Their ease, their elegance, and, above all, the affection they contain, are truly engaging and amiable. Be assured that petitions so clothed and attended are *irresistible*.

I anticipate with increasing impatience the hour of leaving this place, and am making every possible exertion to advance it. The delay of two days at Red Hook is indispensable, but will cost me much regret.

I finished on Monday last, tolerably to my own satisfaction, and I believe entirely to that of my employers, the business so often mentioned to you. I received in reward for my labour many thanks, twenty half joes, and promises of more of both of these articles.

The last post is the only one I have missed since I left Esopus. I was in court upon a trial which gave me not a moment's intermission till ten o'clock that evening. Though I do not pay you in quality and manner (for yours are, without flattery, inimitable), I believe I am nothing in arrear in number or quantity. The present is indeed a poor return for your two last; but though you miss of the recompense in this sheet, you will find it in the heart of your

A. BURR.

TO MRS. BURR.

Philadelphia, 27th October, 1791.

I have this day received your letter dated Sunday morning. It came, not by Mr. Sedgwick, but by the post, and was not put into the postoffice until Tuesday. It was therefore wicked of you not to add a line of that date. I am surprised to find that you had not received my letter from Brunswick. The illness I then wrote you of increased the next day, so that I did not arrive in town until Sunday. I am still at Miss Roberts's, and unsettled, but hope to be to-morrow in tolerable winter-quarters. I have had some trouble on that head, as well because I am difficult to please, as because good accommodations are difficult to find.

I receive many attentions and civilities. Many invitations to dine, &c. All of which I have declined, and have not eaten a meal except at my own quarters. You see, therefore, how little amusement you are to expect. I called at Mrs. L.'s (the elder), but have not seen either her, or as yet called to see her daughter. I have no news of Brooks, and am distressed by his delay, having scarcely decent clothes. I prudently brought a coat, but nothing to wear with it, and the expectation of Brooks has prevented me from getting any thing here. Send me a waistcoat, white and brown, such as you designed. You know I am never pleased except with your taste.

I wrote you the day after my arrival here, but it being past the post hour, kept it till Tuesday; made a small addition, and gave it to Mat. to carry to the office. He put it into his coat-pocket (I suppose with his pocket-handkerchief, which you know he has occasion to flourish along the street). On the day following, with a face of woe, he told me he had lost the letter, but had concealed it from me in hopes to have found it. I hope it may fall into good-natured hands, and so got eventually into the postoffice. It was short and stupid; unusually so, which perhaps vexed me the more for the loss. Be assured you have nothing to regret.

This letter can have nothing to recommend it but good-will and length, though the latter, without some other merit, ought to condemn it; and it would, I am sure, with any but you, who will give the best construction to any thing from your

**A. BURR.**

**TO MRS. BURR.**

Philadelphia, 30th October, 1791.

I am at length settled in winter-quarters. The house stands about twenty yards back from the street, and is inhabited by two widows. The mother about seventy, and the daughter about fifty. The latter, however, has her home in the country, and comes to town occasionally. The old lady is deaf, and upon my first coming to take possession of my lodgings, she with great civility requested that I would never attempt to speak to her, for fear of injuring my lungs without being able to make her hear. I shall faithfully obey this injunction. The house is remarkably quiet, orderly, and is well furnished. They have never before taken a person to board, and will take no other.

The honour which I have always done to your taste, and which indeed it merits, ought to have assured you that your advice requires no apology. I shall adopt your ideas about the wheels. If at the same time you had caused the commission to be executed, you would have added civility to good intentions.

Theodosia must not attempt music in the way she was taught last spring. For the present, let it be wholly omitted. Neither would I have her renew her dancing till the family are arranged. She can proceed in her French, and

get some teacher to attend her in the house for writing and arithmetic. She has made no progress in the latter, and is even ignorant of the rudiments. She was hurried through different rules without having been able to do a single sum with accuracy. I would wish her to be also taught geography if a proper master can be found; but suspend this till the arrival of the major.

It is remarkable I that you should find yourself so soon discouraged from writing, because you had written one letter before you had received one. I had written you two before the receipt of your first. But I shall in future expect two or three for one, as the labour of business will prevent my writing frequently.

Remember the note to be put in the bank on Wednesday. If Bartow should not arrive, send Strong for Willet. Adieu.

Yours,

A. Burr.

TO MRS. BURR.

Philadelphia, 14th November, 1791.

I recollect nothing of the letter I wrote to you, and which is referred to in yours of the 9th. You have no forgiveness to ask or to receive of me. If it was necessary, you had it even at the moment I read your letter. You mistake the nature of my emotions. They had nothing of asperity; but it is useless to explain them. I did it partially in a letter I wrote soon after that which I sent you in answer to yours. It was not such a letter as I ought to have written, or you would have wished to receive; I therefore retained it. In what way, or to what degree, I am affected by your letter of the 9th, will not

be told until we meet. Be assured, however, that I look forward to that time with impatience and anticipate it with pleasure. It rests wholly with you, and your conduct on this occasion will be a better index to your heart than any thing you can write.

I enclose you a newspaper of this evening, containing a report by Mr. Jefferson about vacant lands. When you have perused it, send it to Melancton Smith. Take care, however, to get it back and preserve it, as it is one of Freneau's. I send you also three of Freneau's papers, which, with that sent this morning, are all he has published. I wish them to be preserved. If you find them amusing, you may command them regularly. Adieu.

**A. BURR.**

TO MRS. BURR.

Philadelphia, 14th November, 1791.

I am to-day in much better heart than at any time since I left New-York. John Watts took me yesterday a long walk, and, though fatigued, I was not exhausted. He takes every occasion to show me friendship and attention. I see no reason for your delaying to make a visit here. The roads are good and the season fine. If you do not choose to come directly to my lodgings, which are commodious and retired, I will meet you either at Dr. Edwards's, two miles from the Red Lion, or at the Red Lion, which is twelve miles from this city. Your first stage will be to Brunswick, your second Trenton, and your third here.

I expressed myself ill if I led you to believe that I wished any evidence or criterion of Theodosia's understanding. I desire only to promote its growth by its application and exercise. Her present employments have no such

tendency, unless arithmetic engages a part of her attention. Than this, nothing can be more useful, or better advance the object I have in view. Other studies, promising similar advantages, must, perhaps, for the reasons you mention, be for the present postponed.

I hope this weather will relieve you from the most depressing of all diseases, the influenza. Exercise will not cure, but will prevent the return of it. I prescribe, however, what I do not practice. You have often wished for opportunities to read; you now have, and, I hope, improve them. I should be glad to know how your attention is directed. Of the success I have no doubt.

To the subject of politics, which composes a part of your letter, I can at present make no reply. The *mode* of communication would not permit, did no other reasons oppose it.

I have no voice, but could undoubtedly have some influence in the appointment you speak of. For the man, you know I have always entertained much esteem; but it is here said that he drinks. The effect of the belief, even of the suspicion of this, could not be controverted by any exertion or influence of his friends. I had not, before the receipt of your letter, heard of his wishes on the subject you mention. The slander, if slander it be, I had heard often and with pain.

Sincerely yours,

**A. BURR.**

TO MISS THEODOSIA BURR. [2]

Philadelphia, 1st December, 1791.

Enclosed in Bartow's last letter came one which, from the handwriting, I supposed to be from that great fat fellow, Colonel Troup. Judge of my pleasure and surprise when I opened and found it was from my dear little girl. You improve much in your writing. Let your next be in small hand.

Why do you neither acknowledge nor answer my last letter? That is not kind—it is scarcely civil. I beg you will not take a fortnight to answer this, as you did the other, and did not answer it at last; for I love to hear from you, and still more to receive your letters. Read my last letter again, and answer it particularly.

Your affectionate

**A. BURR.**

**TO MRS. BURR.**

Philadelphia, 4th December, 1791.

I fear I have for the present deprived you of the pleasure of reading Gibbon. If you cannot procure the loan of a London edition, I will send you that which I have here. In truth, I bought it for you, which is almost confessing a robbery. Edward Livingston and Richard Harrison have each a good set, and either would cheerfully oblige you.

To render any reading really amusing or in any degree instructive, you should never pass a word you do not understand, or the name of a person or place of which you have not some knowledge. You will say that attention to such matters is too great an interruption. If so, do but note them down on paper, and devote an hour particularly to them when you have finished a chapter or come to a proper pause. After an experiment of this mode, you



will never abandon it. Lempriere's Dictionary is that of which I spoke to you. Purchase also Macbeau's; this last is appropriated to ancient theocracy, fiction, and geography; both of them will be useful in reading Gibbon, and still more so in reading ancient authors, or of any period of ancient history.

If you have never read Plutarch's Lives (or even if you have), you will read them with much pleasure. They are in the City Library, and probably in many private ones. Beloe's Herodotus will amuse you. Bartow has it. You had better read the text without the notes; they are diffuse, and tend to distract the attention. Now and then they contain some useful explanation. After you have read the author, you will, I think, with more pleasure read the notes and remarks in course by themselves.

You expressed a curiosity to peruse Paley's Philosophy of Natural History. Judge Hobart has it. If you read it, be sure to make yourself mistress of all the terms. But, if you continue your Gibbon, it will find you in employment for some days. When you are weary of soaring with him, and wish to descend into common life, read the Comedies of Plautus. There is a tolerable translation in the City Library. Such books give the most lively and amusing, perhaps much the most just picture, of the manners and degree of refinement of the age in which they were written. I have agreed with Popham for his share in the City Library.

The reading of one book will invite you to another. I cannot, I fear, at this distance, advise you successfully; much less can I hope to assist you in your reading. You bid me be silent as to my expectations; for the present I obey. Your complaint of your memory, even if founded in fact, contains nothing discouraging or alarming. I would not wish you to possess that kind of memory which retains with accuracy and certainty all names and dates. I never knew it to accompany much invention or fancy. It is almost the exclusive blessing of dullness. The mind which perceives clearly adopts and

appropriates an idea, and is thus enlarged and invigorated. It is of little moment whether the book, the time, or the occasion be recollected.

I am inclined to dilate on these topics, and upon the effects, of reading and study on the mind; but this would require an essay, and I have not time to write a letter. I am also much prompted to convince you, by undeniable proof, that the ground of your complaint does not exist except in your own apprehensions, but this I reserve for an interview. When I am informed of your progress, and of the direction of your taste, I may have something further to recommend.

There is no probability of an adjournment of Congress during the holydays, or for any longer time than one day. The possibility of my being able to leave the business of Congress, and make a visit to New-York, diminishes daily. I wish much to see you, and, if you are equally sincere, we can accomplish it by meeting at Trenton. I can be there on Friday night, but with much greater convenience on Saturday noon or forenoon, and stay till Monday morning at least. Congress adjourns every week from three o'clock on Friday until eleven o'clock on Monday following. If, therefore, you write me that you will be at Trenton at the times above mentioned, you may rely on seeing me there: I mean at Mrs. Hooper's. This, though very practicable at present, will not long be so, by reason of the roads, which at present are good. If you make this trip, your footman must be on horseback; the burden will be otherwise too great, and I must have timely notice by letter. Mr. and Mrs. Paterson have invited you to make their house your home at Brunswick.

Mat. laughs at your compliments, as you know he does at every thing. I expect Theodosia's messages to be written by herself. I inquire about your health, but you do not answer me.

Yours affectionately,

A. BURR.

TO MRS. BURR.

Philadelphia, December 13th, 1791.

I regret the disappointment of the Trenton visit, but still more the occasion of it. Are you afflicted with any of your old, or with what new complaint?

Tell Bartow that I have this evening received his letter by Vining, who arrived in town last Monday. Beg him never again to write by a private hand about business when there is a post. After the lapse of five or six days without an answer, he should have sent a duplicate. You have herewith the note for 4500 dollars.

I was charmed with your reflections on the books of two of our eminent characters. You have, in a few words, given a lively portrait of the men and their works. I could not repress the vanity of showing it to a friend of *one* of the authors.

The melancholy news of the disasters of our western army has engrossed my thoughts for some days past. No public event since the war has given me equal anxiety. Official accounts were received from General Sinclair on Sunday. The reports which preceded, and which have doubtless reached you before this time, had not exaggerated the loss or the disgrace. No authentic estimate of the number of the killed has yet been received; I fear it will not be less than eight or nine hundred. The retreat was marked with precipitation and terror. The men disencumbered themselves even of their arms and accoutrements. It is some small consolation to have learned that

the troops which fled to Fort Jefferson have received a supply of provisions, and are secure from any attack of the savages.

I approve, and hope at some time to execute, your plan of literary repose. Tell Bartow to send a deed for me to execute to Carpenter, pursuant to our contract. Pray attend to this; you will see that it may be a little interesting to me.

Yours truly,

**A. BURR.**

TO MRS. BURR.

Philadelphia, 15th December, 1791

The post which arrived this afternoon (Thursday) brought the mail which left New-York on Tuesday, and with it your sprightly and engaging letter of the 12th. I thank you for your attention to my friend, and still more for the pleasure you express at his visit. Your "nonsense" about Voltaire contains more good sense than all the strictures I have seen upon his works put together.

Next to your own ideas, those you gave me from Mr. J. were most acceptable. I wish you would continue to give me any fugitive ideas or remarks which may occur to you in the course of your reading; and what you call your rattling way is that of all others which pleases me the most.

In short, let the way be your own, and it cannot fail to be acceptable, to please, and to amuse.

I enclose this evening's paper. It contains *Strictures on Publicola*, which you, perhaps, may find worth reading.

From an attentive perusal of the French Constitution, and a careful examination of their proceedings, I am a warm admirer of the essential parts of the plan of government which they have instituted, and of the talents and disinterestedness of the members of the National Assembly. Adieu.

A. BURR.

TO MRS. BURR.

Philadelphia, 18th December, 1791.

Mr. Learned arrived yesterday with your letter of the 15th. He appeared pleased with your attentions, which you know gratified me.

I cannot recollect what hint I gave to Major P. which could have intimated an expectation of seeing you in New-York during the *current year*; unless, indeed, some of those wishes which I too often cherish should have escaped me. We shall have no intermission of business during the holy-days. If I should find it at any time practicable to absent myself for a few days, it will most probably be about the middle of next month. You have indeed, in your last letter, placed yourself before me in the most amiable light; and, without soliciting, have much more strongly enticed me to a visit. But for the present I must resist. Will it not be possible for you to meet me at Trenton, that we may travel together to New-York? If you assent to this, I will name a day. Yet do not expose your health. On this subject you leave me still to apprehension and conjecture.

Your account of Madame Genlis surprises me, and is a new evidence of the necessity of reading books before we put them into the hands of children. Reputation is indeed a precarious test. I can think at present of nothing better than what you have chosen.

I am much in want of my maps of the different parts of North America. It will, I believe, be best to send them all, carefully put up in a box which must be made for the purpose. You may omit the map of New-Jersey. The packing will require much care, as many are in sheets. Ask Major P. for the survey he gave me of the St. Lawrence, of different parts of Canada, and of other provinces, and send them also forward. They may be sent by the Amboy stage, taking a receipt, which transmit to me.

You would excuse the slovenliness, and admire the length of this scrawl, if you could look into my study, and see the file of unanswered, and even \_un\_perused letters; bundles of papers on public and on private business; all soliciting that preference of attention which Theodosia knows how to command from her

**AARON.**

**TO MRS. BURR.**

Philadelphia, 27th December, 1791.

What can have exhausted or disturbed you so much? You might surely have given some hint of the cause. It is an additional reason for wishing you here. If I had, before I left New-York, sufficiently reflected on the subject, I would never have consented to this absurd and irrational mode of life. If you will come with Mr. Monroe, I will see you to New-York again; and if you have a particular aversion to the city of Philadelphia, you shall stay a

day or two at Dr. Edwards's, ten miles from town, where I can spend the greater part of every day.

You will perhaps admire that I cannot leave Congress as well as others. This, if a problem, can only be solved at a personal interview.

You perceive that I have received your letter of the 18th. It was truly acceptable, and needed no apology. I do not always expect letters of wit or science; and I beg you will write wholly without restraint, both as to quantity and manner. If you write little, I shall be glad to receive it; and if you write more, I shall be still more glad; but when you find it a troublesome or laborious occupation, which I have the vanity to hope will never happen, omit it. I take, and shall continue to use, this freedom on my part; but I am for ever obliged to put some restraint on myself, for I often sacrifice the calls of business to the pleasure of writing to you.

27th December, at night.

This evening I am suffering under a severe paroxysm of the headache. Your letters, received to-night, have tended to beguile the time, and were at least a temporary relief. I am now sitting with my feet in warm water, my head wrapped in vinegar, and drinking chamomile tea, and all hitherto to little purpose. I have no doubt, however, but I shall be well to-morrow. As I shall not probably sleep till morning, and shall not rise in season to acknowledge your kind letters, I have attempted this line. I am charmed with your account of Theodosia. Kiss her a hundred times for me.

The reports of my style of life are, I should have thought, too improbable to be related, and much too absurd to gain belief, or even attention.

I have been these three weeks procuring two trifles to send you; but am at length out of all patience with the stupidity and procrastination of those employed; especially as the principal article is a piece of furniture, a personal convenience, which, when done, will not cost five dollars. The other is something between a map and a picture. Though they will not arrive at the season I wished, they will at any season be tokens of the affection of

A. BURR.

TO MRS. BURR.

Philadelphia, 2d January, 1792.

My Dear Theodosia,

Mr. Trumbull is good enough to engage to deliver this. You have long known and admired the brilliancy of his genius and wit; I wish you also to know the amiable qualities of his heart.

A. BURR.

TO MRS. BURR.

Philadelphia, 19th February, 1792.

Yesterday I received your truly affectionate letters; one dated Thursday evening, the other without date.

You may expect a host of such falsehoods as that about the Indian war. I have not been offered any command. When the part I take in the bill on that



subject shall be fully known, I am sure it will give entire satisfaction to my friends.

It will not do for me at present to leave this place. I shall therefore expect you here; and if you cannot spare the time to come here, I will meet you either at Princeton or Trenton (preferring the latter) any evening you shall name. Saturdays and Sundays, you know, are our holydays. I can with ease be at Trenton at breakfast on Saturday morning, or even on Friday evening, if thought more eligible. But I expect this letter will pass you on your way here. My rooms at No. 130 South Second-street are ready to receive you and Mrs. A., if she chooses to be of the party. But the tenour of your last induces me to think that you intend a very short visit, or rather, that you will come express. Arrange it as you please, provided I see you somewhere and soon.

I have a letter from Witbeck of a later date than that by Strong, and of much more satisfactory tenour. I believe he will not disappoint the expectations of my friends. He requests that some persons in New-York may write to him and others in and about Albany, giving an account of the expectations in Ulster, Dutchess, and the Southern District, and naming persons who may be corresponded with.

My lodgings are on the right hand as you come. Drive directly up a white gate between two lamps, and take possession. If I should be out, the servant will know where, and will find me in a few minutes. Do not travel with any election partisan (unless an opponent).

Yours,

**A. BURR.**

TO MISS THEODOSIA BURR.

Albany, 5th August, 1792.

**MY DEAR THEO.,**

I have received your letter, which is very short, and says not one word of your mamma's health. You talk of going to Westchester, but do not say when or how.

Mr. and Mrs. Witbeck and their daughter talk very much about you, and would be very glad to see you.

See what a letter I have got from little Burr, [3] and all his own work too. Before I left home I wrote him a letter requesting him to tell me what I should bring him; and in answer, he begs me to bring mamma and you. A pretty present, indeed, that would be!

Your father,

**A. BURR.**

FROM DR. BENJAMIN RUSH.

Philadelphia, 24th September, 1792.

**DEAR SIR,**

This letter will be handed to you by Mr. Beckley. He possesses a fund of information about men and things. The republican ferment continues to work in our state; and the time, I think, is approaching very fast when we shall universally reprobate the maxim of sacrificing public justice and

national gratitude to the interested ideas of stock-jobbers and brokers, whether in or out of the legislature of the United States.

Your friends everywhere look to you to take an active part in removing the monarchical rubbish of our government. It is time to speak out, or we are undone. The association in Boston augurs well. Do feed it by a letter to Mr. Samuel Adams. My letter will serve to introduce you to him, if enclosed in one from yourself. Mrs. Rush joins me in best compliments to Mrs. Burr, with

Yours sincerely,

**BENJAMIN RUSH.**

## TO MISS THEODOSIA BURR.

Westchester, 8th October, 1792.

—I rose up suddenly from the sofa, and rubbing my head—"What book shall I buy for her?" said I to myself. "She reads so much and so rapidly that it is not easy to find proper and amusing French books for her; and yet I am so flattered with her progress in that language, that I am resolved that she shall, at all events, be gratified. Indeed, I owe it to her." So, after walking once or twice briskly across the floor, I took my hat and sallied out, determined not to return till I had purchased something. It was not my first attempt. I went into one bookseller's shop after another. I found plenty of fairy tales and such nonsense, fit for the generality of children of nine or ten years old. "These," said I, "will never do. Her understanding begins to be above such things;" but I could see nothing that I would offer with pleasure to *an intelligent, well-informed girl of nine years old*. I began to be discouraged. The hour of dining was come. "But I will search a little longer." I persevered. At last I found it. I found the very thing I sought. It is contained in two volumes octavo, handsomely bound, and with prints and registers. It is a work of fancy, but replete with instruction and amusement. I must present it with my own hand.

Your affectionate

**A. BURR**

Footnotes:

1. Major Prevost, who was a widower, and whose children were left in the care of Mrs. Burr while he made a voyage to England.

2. In the ninth year of her age.

3. Nephew of Colonel Burr

## CHAPTER XVI.

The correspondence in the last chapter between Mr. and Mrs. Burr has been selected and published that the world may judge him as husband and parent, so far as his letters afford a criterion. As literary productions they cannot fail to interest and amuse.

On the 8th day of March, 1790, the legislature passed an act appointing Gerard Bancker, treasurer, Peter Curtenius, auditor, and Aaron Burr, attorney-general, a board of commissioners to report on the subject of the various claims against the state for services rendered, or injuries sustained, during the war of the revolution. The task was one of great delicacy, and surrounded with difficulties. On Colonel Burr devolved the duty of making that report. It was performed in a masterly manner. When presented to the house, notwithstanding its magnitude, involving claims of every description to an immense amount, it met with no opposition from any quarter. On the 5th of April, 1792, the report was ordered to be entered at length on the journals of the assembly, and formed the basis of all future settlements with public creditors on account of the war. In it the various claimants are classified; legal and equitable principles are established, and applied to each particular class. The report occupies eighteen folio pages of the journals of the assembly. An extract from it is made, as justly meriting a place in this work.

The said report is in the words and figures following:—"The treasurer, the auditor, and the attorney-general, pursuant to the act entitled *An act to receive and state accounts against this state*, did forthwith, after the passing of the said act, give such notice of their appointment and duties, and of the times and places for the execution thereof, and of the period by the said act limited for receiving and auditing claims, as is directed by the said act. And do herewith transmit to the legislature their report upon the accounts and claims against the state, which have been thereupon exhibited.

"The anxiety of the commissioners to render the execution of this trust useful and acceptable has occasioned a delay of some weeks; if their success in this attempt has been in any degree proportioned to their attention to the subject, it will furnish their excuse; indeed, when the legislature shall have seen the number, the variety, and intricacy of the matters which have been submitted to the consideration of the commissioners, it is hoped that a further apology will be thought unnecessary.

"The commissioners have endeavoured to reduce these various demands into classes, in such manner as to present to the legislature, in one view, all which have appeared to depend on similar principles. Notwithstanding their utmost attention to this object, they have found it necessary to report on a considerable number of single cases. As the authority under which they have acted required of them a state of facts, together with their opinion thereupon, whenever there was a want of uniformity either in the facts submitted or in the principles to be applied in the determination, they have thought that strict justice could not be done to the merit of the claim without a separate discussion, though this has tended to lengthen the report beyond what could have been wished, and to a degree which perhaps may in some instances be thought prolix, yet the commissioners supposed it of moment that their investigation should be not only satisfactory to themselves, but

that it should be apparent to the citizens upon whose claims they have pronounced, that each hath received a distinct attention, and that demands substantially different from each other have not been inconsiderately blended. If the perusal of the proceedings now submitted shall give an impression of this kind, it will, in the opinion of the commissioners, tend to produce a more cheerful acquiescence in the determination of the legislature, when that determination shall reject the demand, and prevent a revival of claims which shall now be extinguished. The commissioners have thought that these were desirable objects, and have therefore been cautious of generalizing, so as to destroy real distinctions, or suppress a fact even of the lightest importance.

"In order to preserve uniformity in their opinions, the commissioners have adopted certain principles, from which the hardship of any particular case hath not induced them to depart. The most general and important of these are,

*"First.* Where any species of claims is barred by an act of the legislature, they have considered the act as a bar to their investigation, farther than to ascertain it to be unquestionably within the meaning of the law. This principle will be found to extend to all claims for pay and rations alleged to be due for militia service; to most of the demands against forfeited estates; to all claims for property sequestered, when the sequestration was warranted by the resolutions of the convention and the authority of the commissioners; to all claims of payment of state agents' notes, and to some other particular cases, which will appear in the report. In support of this principle the commissioners have considered, that to sanction by their opinion the admission of claims against the spirit and letter of the statute would be an impeachment of the wisdom of those laws; would be arrogating an authority not exercised by, or permitted to, any court of law or equity, and would open a door to the importunate and perhaps least



deserving class of citizens, while others, having similar demands, had withdrawn them from a spirit of submission to the laws, by which these demands were precluded. The commissioners have been confirmed in the propriety of their ideas by a reflection that, if it shall for any reasons seem expedient to the legislature to repeal or suspend the limitation of these or any of those statutes, the avenues to redress will at once be open through the ordinary officers of the state, without farther legislative interposition; and that the opportunities of recompense would then be notorious and equal; but that the redress, if any should be obtained through the medium of the commissioners, would be partial in its operation, and to the exclusion of those who with equal merits had acquiesced in the known laws.

*"Second.* In the cases of claims for services done and supplies furnished during the war, when the demand, though originating under the authority of this state, is properly against the United States, the opinion of the commissioners is against the allowance of any recompense, because those claims should more properly be preferred to Congress; and for that this state can have no credit with the United States for payment or assumptions after the 1st day of October, 1788.

*"And that,* therefore, the claimants having neglected to exhibit their demands within the period during which this state could without loss have assumed them, cannot complain if they are now referred to the proper tribunal. Payments by the state were in such cases, at all times, of favour, and not of right.

*"Third.* All claims for the subsistence and services of the levies and militia, or other troops, composing a part of the continental army, or destined to join the army, and moving to such places of destination, or under the command or orders of a continental officer, and all claims for supplies and services beforehand for such troops, are considered as proper

against the United States only, and are classed accordingly; the commissioners have been led to a more strict attention to this distinction by the reasons just before mentioned, and are warranted by the practice of the continental commissioners for settling accounts, in declaring that such accounts and demands were proper against the United States.

"Principles of more limited operation, and other remarks, will appear in those parts of the report to which they apply.

"Explanatory of particular parts, and of the general form of the report, it may be proper to observe,

"That where the claim or account appears, upon the face of it, to be evidently against the United States only, or for other reasons palpably inadmissible, the commissioners have thought it would have been superfluous to state the proof, and have therefore, in those cases only, given such abstracts of the claim or account as suffice to render the exception apparent.

"In giving their opinion, the commissioners have not detailed all the reasons which led to it, but have given a summary of such as appeared to them most conclusive; and, as well in this as in stating the facts, have aimed at as much brevity as appeared to them to consist with perspicuity. If they shall be found in any instances obscure, a reference to the claim and proofs will probably elucidate them. When the claim is provided for by existing laws, the opinion of the commissioners refers the claimant to the mode pointed out by such law.

"Demands of different natures by the same person are placed under the head which comprises the greater demand. The claim and vouchers being in such cases usually contained in the same paper or annexed together, it was

necessary so to place them in the report that there might be no confusion in the references.

"To produce facility in the review of these proceedings, the documents referred to are all herewith delivered, and are in bundles, marked agreeably to the heads under which they are classed.

*"Claims for Militia Pay.*

[In the report a number of cases are here inserted.]

"By an act passed the 27th of April, 1784, entitled *An act for the settlement of the pay of the levies and militia for their services in the late war, and for other purposes therein mentioned*, the mode in which the rolls and abstracts for pay and subsistence are to be made out and settled is particularly pointed out, and competent powers and directions for the liquidation of those accounts are thereby given to the treasurer and auditor."

"By the 14th section of an act passed the 21st of April, 1787, entitled *An act for the relief of persons who paid money into the treasury, &c.*, the aforesaid act of the 27th of April, 1784, is repealed. The commissioners consider this repeal as an exclusion of all further claims for pay and subsistence of the militia and levies. They are constrained to adopt this opinion, not only from the obvious intention of the act, but because, by the absolute repeal of the act of the 27th of April, 1784, there remains no prescribed mode of authenticating these demands; that any rules which the discretion of the commissioners should lead them to adopt would have been unknown to the claimants, who could therefore have had no opportunity of adapting their demands to such rules; and because, if the legislature shall be disposed to direct compensations for such services, it will, in the opinion of the commissioners, be most properly effected by a revival of the said act of the 27th of April, 1784, with such further provisions and checks as may be

thought necessary; or by some other general statute, to be passed for those purposes, and which may give equal opportunities to the claimants, and place the liquidation and settlement of such demands in the hands of the ordinary officers of the state.

*"Claims for services, supplies, and losses, which, if admissible, can be made against the United States only.*

[In the report details follow, and the commissioners remark]—

"The foregoing claims and accounts the commissioners conceive to be proper against the United States only. This is, in their opinion, sufficiently evident in most of the cases from a bare statement of the demands. Some few appear to require a more special report. The resolutions of Congress of the 7th of May, 1787, and 24th of June, 1788, relative to the settlement of accounts between the United States and individual states, will show the extent of the powers of the Continental Commissioners, and will serve to explain the opinions in such of the preceding cases as may appear to require farther illustration."

*"Claims for payment of State Agents' Certificates.*

"By the 25th section of the act passed the 5th of May, 1786, entitled *An act for the payment of certain sums of money, and for other purposes therein mentioned*, all persons holding or possessing certificates of Udney Hay or any of his assistants, or of Jacob Cuyler, Morgan Lewis, or Andrew Bostwick, were required to present them, in the manner therein prescribed, to the treasurer, before the 1st of September, 1786; and those who failed therein are thereby declared *to be barred and for ever precluded* from any compensation, of which the treasurer was directed to give public notice by advertisement, which was accordingly done.

"By another act, passed the 31st of March, 1787, the time for presenting the certificates of Udney Hay and his assistants was extended until the first of May then next, which time has not been further extended by any law of this state: so that all certificates of those denominations which were not presented within the times and in the manner specified in those laws, are expressly barred and for ever precluded from compensation.

"The commissioners have therefore, for the reasons contained in the observations prefixed to this report, conceived that a reference to the aforesaid acts was the most proper discharge of their duty with respect to all claims of compensation for such certificates.

*"Claims for grain impressed for the use of the army by virtue of warrants issued by his excellency the governor, pursuant to an act passed 23d June, 1780.*

"The law authorizing these impresses declares the articles impressed to be for the *use and service of the army*, and that the owner shall be entitled to receive from the public officer authorized to pay the same the current price for the articles impressed, but does not say by whom that public officer is to be appointed. The commissioners have, however, no doubt but these were proper claims against the United States, and would have been allowed by the Continental Commissioner if exhibited in proper season; therefore, and for the reasons contained in the second preliminary observation, the commissioners are of the opinion that these claimants cannot of right demand payment of this state.

"The claims of Van Rensselaer and Dumond, the commissioners are of opinion are reasonable; that, having been employed under the governor, the claimants could have no demand against the United States, and that the charges are proper against this state.

*"Claims for services in assisting H.I. Van Rensselaer and Egbert Dumond in making the said impresses.*

"The commissioners consider the reasons just before stated in favour of the claims of Van Rensselaer and Dumond to apply to the eleven preceding, and that they are therefore proper charges against this state.

*"Claims for payment of debts due from persons whose property hath been forfeited or sequestered.*

"The several foregoing demands against forfeited estates arose after the 9th day of July, 1776, and are expressly precluded by the 42d section of an act passed the 12th of May, 1784, entitled *An act for the speedy sale of the confiscated and forfeited estates within this state, and for other purposes therein mentioned.*

"The next twenty-five claims are for satisfaction of debts out of the proceeds of property sequestered. The estates of the several debtors have become forfeited, but in some instances no property hath come to the hands of the commissioners of forfeitures; and in others, the property which has come to their hands hath been insufficient for the discharge of debts which have been certified.

"The succeeding twenty-six claims are to have debts satisfied out of the proceeds of property sequestered, though there had been no conviction of adherence or other forfeiture of the estate of the debtors.

"The commissioners are of opinion that a law should be passed authorizing the treasurer to pay demands against forfeited estates, in all cases where there still remains in his hands a surplus from the proceeds of such estates, notwithstanding the limitation contained in the act of 12th May, 1784. But the commissioners would recommend that some mode

different from that prescribed in the said act be directed for the ascertaining the amount of those demands. The several claimants and such others as have neglected to avail themselves of the benefit of the said act, may, in the opinion of the commissioners, be with propriety holden to strict legal proof of their respective demands, in due course of law, in some court of record, where the interest of the state may be defended by some officer to be for that purpose appointed.

"The commissioners are further of opinion, that where there has been a sequestration of any part of the property of a person *whose estate hath become forfeited*, the avails of the property so sequestered, as far as the same *can be distinguished*, should be subject to the payment of his debts, in like manner as may be provided with respect to other demands against forfeited estates; but it would not, in the opinion of the commissioners, be at this time advisable to assume the payment of the debts of persons whose property hath been sequestered, and where there hath been no other forfeiture or confiscation.

*"Claims relative to sequestration, and property taken by orders of the Convention.*

"These persons were voluntarily within the British lines, and their property was therefore liable to sequestration under the acts of the Convention. They produce a certificate of their attachment to the American cause, signed by some respectable characters. But being within the resolutions of the Convention, the commissioners cannot advise a recompense.

"GERARD BANCKER, *Treasurer.*

"PETER T. CURTENIUS, *State Auditor.*

"AARON BURR, *Attorney-general.*"

On the 19th of January, 1791, Colonel Burr was appointed a senator of the United States, in the place of General Schuyler, whose term of service would expire on the 4th of March following. Until about this period he was but little known as a partisan politician. After the organization of the federal government under the new constitution, he appears to have felt a great interest in its operations. In the French revolution also, his feelings were embarked; and he was among the number of those who condemned the cold and repulsive neutrality which characterized the administration of that day. That he was now about to launch into the troubled ocean of politics was evident to Mrs. Burr, and therefore, in a letter to him under date of the 23d of July, 1791, she says, "It is of serious consequence to you to establish your health *before you commence politician*," &c.

In the autumn of 1791 Congress convened at Philadelphia, and Colonel Burr took his seat in the Senate of the United States. It has often been remarked of him, and truly, that no man was ever more cautious or more guarded in his correspondence. A disposition, from the earliest period of his life, to write in cipher, has already been noticed. To this may be added an unwillingness, on all important questions, to commit himself in writing. As soon as he entered the political arena, this characteristic was visible even in his letters to Mrs. Burr. On the 14th of November, 1791, he writes her—"To the subject of politics I can at present make no reply. The *mode of communication would not permit*, did no other reason oppose." And again, December 21st, he says—"You will perhaps admire that I cannot leave Congress as well as others. This, if a problem, *can only be solved at a personal interview*."

At the commencement of the revolutionary war, the State of New-York held an extensive tract of wild and unimproved lands. Sundry laws were passed in the years 1779, 1780, 1784, 1785, and 1786, providing for their sale and settlement. A board was created, entitled "the Commissioners of



the Land Office." It was composed of the governor, the secretary of state, the attorney-general, the treasurer, and the auditor. The powers conferred by the several acts above referred to having been found inadequate to the proposed object, the legislature, on the 22d of March, 1791, gave unlimited powers to the commissioners, authorizing them to "dispose of any of the waste and unappropriated lands in the state, in such parcels, and on such terms, and in such manner as they shall judge most conducive to the interests of the state." In pursuance of this authority, the commissioners sold during the year 1791, by estimate, five millions five hundred and forty-two thousand one hundred and seventy acres of waste land, for the sum of one million and thirty thousand four hundred and thirty-three dollars; leaving in the possession of the state, yet to be disposed of, about two millions of acres. Among the sales was one to Alexander Macomb, for three millions six hundred and thirty-five thousand two hundred acres. The magnitude of this sale, and the price at which it was sold, created a great excitement throughout the state, and at the session of the legislature which commenced on the 4th of January, 1792, the subject was brought before the assembly.

The price at which Mr. Macomb made his purchase was eight pence per acre, payable in five annual instalments, without interest, with permission to discount for prompt payment at six per cent. per annum, which made the price about equal to seven cents per acre cash. Colonel Burr, as attorney-general, was a member of the board. On the 9th of April, 1792, the report of the commissioners being the order of the day, the subject was taken up in the house. Mr. Talbot, from Montgomery county, moved sundry resolutions. They were intended as the foundation for an impeachment of a part of the commissioners of the land office. They assumed to contain a statement of facts, evidencing on the part of the commissioners great indiscretion and want of judgment, if not corruption, in the sale of the public lands, and they charged the commissioners with a willful violation of the law. These resolutions, however, excepted Colonel Burr from any participation in the

maleconduct complained of, inasmuch as the minutes of the board proved that he was not present at the meetings (being absent on official duty as attorney-general) when these contracts, so ruinous, as they alleged, to the interests of the state, were made: nor did it appear that he (Colonel Burr) was ever consulted in relation to them. These resolutions elicited a heated debate; in the progress of which all the commissioners, except the attorney-general, were assailed with great bitterness; and charges of corruption by innuendo were unceremoniously made. At a late hour the house adjourned without decision until the next day.

On the 10th of April, 1792, Mr. Melancton Smith moved the following resolution, with a preamble as a substitute:—

"Resolved, That this house do highly approve of the conduct of the commissioners of the land office in the judicious sales by them, as aforesaid, which have been productive of the before mentioned beneficial effects."

This resolution was adopted by a vote of ays 35—noes 20.

Of Melancton Smith it is proper to remark here that he was a plain, unsophisticated man. A purer patriot never lived. Of the powers of his mind some opinion may be formed by the following anecdote. Dr. Ledyard, who was afterwards health officer of the port of New-York, was a warm federalist. He was at Poughkeepsie while the federal constitution was under discussion in the state convention. Smith was an anti-federal member of that body. Some time after the adoption of the constitution, Ledyard stated to a friend of his, that to Colonel Alexander Hamilton had been assigned, in a special manner, the duty of defending that portion of the constitution which related to the judiciary of the United States. That an outdoor conversation between Colonel Hamilton and Mr. Smith took place in relation to the judiciary, in the course of which Smith urged some of his

objections to the proposed system. In the evening a federal caucus was held; at that caucus Mr. Hamilton referred to the conversation, and requested that some gentleman might be designated to aid in the discussion of this question. Robert R. Livingston, chancellor of the state, was accordingly named. Mr. Livingston was at that time a distinguished leader in the ranks of the federal party. Whoever will take the trouble to read the debates in the Convention, in which will be found the reply of Smith to Livingston, will perceive in that reply the efforts of a mighty mind. It was a high but merited compliment to the talents of Melancton Smith, that such a man as Colonel Hamilton should have wished aid in opposing him.

During the winter of 1791-92, being Colonel Burr's first session in the Senate of the United States, he spent much of his leisure time in the state department. For several sessions after the organization of the federal government, all the business of the Senate was transacted with closed doors. At that period the correspondence of existing ministers was kept secret, even from the senators. With every thing connected with the foreign affairs of the country, Colonel Burr was exceedingly anxious to make himself intimately acquainted. He considered it necessary to the faithful and useful performance of his duty as a senator. He obtained permission from Mr. Jefferson, then secretary of state, to have access to the records of the department before the hour for opening the office arrived. He employed one of the messengers to make a fire at five o'clock in the morning, and occasionally an intelligent and confidential clerk to assist him in searching for papers. Here he was engaged until near ten o'clock every day. It was his constant practice to have his breakfast sent to him. He continued this employment the greater part of the session, making notes on, or extracts from, the records of the department, until he was interrupted by a peremptory order from the president (Washington) prohibiting his farther examination.

Wishing some information that he had not obtained in relation to a surrender of the western posts by the British, he addressed a note to the secretary of state, asking permission to make that particular examination; to which he received the following answer:—

"Thomas Jefferson presents his respectful compliments to Colonel Burr, and is sorry to inform him it has been concluded to be improper to communicate the correspondence of existing ministers. He hopes this will, with Colonel Burr, be his sufficient apology."

In April, 1792, there was an election for governor of the State of New-York. By some it was supposed that Governor Clinton would decline being again considered a candidate. It was known that John Jay would be the candidate of the federal party. At that period Colonel Burr had warm personal friends in both parties, who were urging his pretensions. Among the most ardent was Judge Yates. In the latter part of February, 1792, he authorized his friends to state that he declined a nomination. He was placed, however, in an unpleasant dilemma. The connexions, and many of the personal friends of Governor Clinton, were jealous of Colonel Burr's talents and growing influence. Between the governor and himself there was very little intercourse. On the other hand, the kindest feelings towards him were evinced by Chief-justice Jay, who was a most amiable man. It was his wish, therefore, as far as practicable, consistent with his principles, to remain neuter. He had never been an electioneering character, and with the people he wished to leave the pending question, without the exercise of any influence he might be supposed to possess.

By the then existing laws of New-York, the ballots that were taken in the several counties were, immediately after the election, transmitted to the office of the secretary of state, and there kept until the second Tuesday in May, when the board of canvassers were, by law, to convene and canvass

them. The election for governor was warmly contested; the federal party supporting Judge Jay, the anti-federal party George Clinton. When the canvassers met, difficulties arose as to the legality of the returns from certain counties, particularly of Otsego, Tioga, and Clinton. The canvassers differing in opinion on the question whether the ballots should be counted or destroyed, they agreed to ask the advice of Rufus King and Colonel Burr. These gentlemen conferred, and, like the canvassers, differed: whereupon Mr. Burr proposed that they should decline giving advice. To this Mr. King objected, and expressed a determination to give his own opinion separate. This rendered it necessary for Colonel Burr to adopt a like procedure. He thus became a partisan, and a most efficient partisan, in that controversy.

*Seven* of the canvassers determined to reject and destroy the ballots alleged to have been illegally returned. To this decision *four* objected. The ballots were accordingly destroyed, and George Clinton declared to be duly elected governor. The excitement produced was without a parallel in the state. The friends of Judge Jay contended that he had been chosen by the people, but was cheated out of his election by the corruption of the canvassers. Great asperity and virulence were exhibited by both political parties on the occasion.

From the moment that Colonel Burr was driven to interfere in the controversy, he took upon himself, almost exclusively, the management of the whole case on the side of the anti-federal party. His accustomed acumen, vigilance, and zeal, were promptly put in requisition. Full scope was allowed for the display of those great legal talents for which he was so pre-eminently distinguished. It has been known to only a very few individuals that on Colonel Burr rested nearly the whole labour; and that nothing was done, even by the canvassers, but under his advice and direction. It has therefore been deemed proper to insert here some of the

official details of the case. They are worthy record, as an interesting part of the political history of the State of New-York.

*"Statement of the case by the Canvassers, for the advice of Rufus King and Aaron Burr.*

"OTSEGO.—By the 26th section of the constitution of the State of New-York, it is ordained that sheriffs and coroners be annually appointed, and that no person shall be capable of holding either of the said offices for more than four years successively, nor the sheriff of holding any other office at the same time. By the ninth section of the act for regulating elections, it is enacted that one of the inspectors shall deliver the ballots and poll-lists, scaled up, to the sheriff of the county; and, by the tenth section of the said act, it is further enacted, that each and every sheriff of the respective counties in this state shall, upon receiving the said enclosures, directed to be delivered to him as aforesaid, without opening or inspecting the same, or any or either of them, put the said enclosures, and every one of them, into one box, which shall be well closed and sealed up by him, under his hand and seal, with the name of his county written on the box, and be delivered by him into the office of the secretary of this state, where the same shall be safely kept by the secretary, or his deputy. By the eleventh section of the said act, all questions arising on the canvass and estimate of the votes, or on any of the proceedings therein, shall be determined by a majority of the members of the joint committee attending; and their judgment shall be final, and the oath of the canvassers requires them faithfully, honestly, and impartially to canvass and estimate the votes contained in the boxes delivered into the office of the secretary of this state by the sheriffs of the several counties.

"On the 17th of February, 1791, Richard R. Smith was appointed sheriff of the county of Otsego, and his commission gives him the custody of that

county until the 18th of February, 1792. On the 13th of January, 1792, he writes a letter to the Council of Appointment, informing them that, as the year for which he was appointed had nearly elapsed, he should decline a reappointment.

"On the 30th of March, 1792, the Council of Appointment appointed Benjamin Gilbert to the office of sheriff of the said county, with a commission, in the usual form, to keep the county until the 17th of February next. His commission was delivered to Stephen Van Rensselaer, Esq., on the 13th of April last, to be forwarded by him to the said Benjamin Gilbert. By the affidavit of the said Benjamin Gilbert, herewith delivered, it appears that he qualified into the office of sheriff on the 11th day of May, 1792. On the first Tuesday in April, 1792, Richard R. Smith was elected supervisor of the town of Otsego, in said county, and on the first Tuesday in May took his seat at the board of supervisors, and assisted in the appointment of loan officers for the county of Otsego. By the affidavit of Richard R. Smith, herewith delivered, it appears that the ballots taken in the county of Otsego were delivered to him as sheriff, and by him enclosed in a sufficient box, on or about the 3d of May, which box he then delivered into the hands of Leonard Goes, a person specially deputed by him for the purpose of delivering the said box into the hands of the secretary of this state, which was accordingly done, as appears by information from the secretary.

"A small bundle of papers, enclosed and sealed, was delivered to the secretary with the box, on which is written, 'The votes of the town of Cherry Valley, in the county of Otsego. Richard R. Smith, Sheriff.' Several affidavits, herewith delivered, state certain facts respecting this separate bundle, said to be the votes of Cherry Valley.

"On this case arise the following questions:—

"1. Was Richard R. Smith the sheriff of the county of Otsego when he received and forwarded the ballots by his special deputy?

"2. If he was not sheriff, can the votes sent by him be legally canvassed?

"3. Can the joint committee canvass the votes when sent to them in two parcels, the one contained in a box, and the other contained in a paper, or separate bundle? Or,

"4. Ought they to canvass those sealed in the box, and reject the others?

"TIOGA.—It appears that the sheriff of Tioga delivered the box containing the ballots to B. Hovey, his special deputy, who set out, was taken sick on his journey, and delivered the box to H. Thompson, his clerk, who delivered it into the secretary's office.

"*Question.* Ought the votes of Tioga to be canvassed?

"CLINTON.—It appears that the sheriff of Clinton delivered the box containing the ballots to Theodorus Platt, Esq., who had no deputation, but who delivered them into the secretary's office, as appears by his affidavit.

"*Question.* Ought the votes of Clinton to be canvassed?"

*Mr. King's opinion to the Canvassers.*

"OTSEGO.—It may be inferred, from the constitution and laws of the state, that the office of sheriff is held during the pleasure of the Council of Appointment, subject to the limitation contained in the 26th section of the constitution. The sheriff may therefore hold his office for four years, unless within that period a successor shall have been appointed, and shall have entered upon the execution of the office. The term of four years from the appointment of R. R. Smith not having expired, and B. Gilbert not having



entered upon the execution of the office before the receipt and delivery of the votes by R. R. Smith to his deputy, I am of opinion that R. R. Smith was then lawful sheriff of Otsego.

"This opinion is strengthened by what is understood to be practice, namely, that the office of sheriff is frequently held for more than a year under one appointment.

"R. R. Smith's giving notice to the Council of Appointment of his disinclination to be reappointed, or his acting as supervisor, cannot, in my opinion, be deemed a resignation or surrender of his office.

"Should doubts, however, be entertained whether R. R. Smith was *lawfully* sheriff when he received and delivered the votes to his deputy, the case contains facts which in another view of the subject are important. It appears that R. R. Smith was appointed sheriff of Otsego on the 17th of February, 1791, and afterwards entered upon the execution of his office: that no other person was in the execution of or claimed the office after the date of his appointment, and before the time when he received and delivered the votes of the county to his deputy; that during that interval R. R. Smith was sheriff, or the county was without a sheriff; that R. R. Smith, during the election, and when he received and delivered the votes to his deputy, continued in the actual exercise of the shrievalty, and that under colour of a regular appointment. From this statement it may be inferred, that if R. R. Smith, when he received and delivered the votes to his deputy, was not *de jure*, he was *de facto*, sheriff of Otsego.

"Though all the acts of an officer *de facto* may not be valid, and such of them as are merely voluntary and exclusively beneficial to himself are void; yet such acts as tend to the public utility, and such as he would be compellable to perform, such as are essential to preserve the rights of third

persons, and without which they might be lost or destroyed, when done by an officer *de facto*, are valid.

"I am therefore of opinion, that admitting R. R. Smith, when he received and delivered the votes to his deputy, was not *de jure* sheriff, yet that he was *de facto* sheriff; and that his receiving and delivering the votes being acts done under colour of authority, tending to the public utility, and necessary to the carrying into effect the rights of suffrage of the citizens of that county, they are and ought to be deemed valid; and consequently the votes of that county may lawfully be canvassed.

"2d Question. The preceding answer to the first question renders an answer to the second unnecessary.

"3d and 4th Questions. The sheriff is required to put into one box every enclosure delivered to him by an inspector appointed for that purpose by the inspectors of any town or district; and for omitting to put any such enclosure into the box, he is liable to prosecution; but in case of such omission, the votes put into the box, and seasonably delivered into the secretary's office, may, notwithstanding such omission, be lawfully canvassed; and equally so whether the omitted enclosure be kept back or sent forward with the box to the secretary's office. I am therefore of opinion that the votes contained in the box may lawfully be canvassed; that those contained in a separate packet, from considerations explained in the depositions, and distinct from the objection of not being included within the box, cannot be lawfully canvassed.

"CLINTON.—The deputy having no interest in the office of sheriff, but being merely the sheriff's servant, it does not seem to be necessary that the evidence of his being employed or made a deputy should be a deed or an instrument in writing, though the latter would be proper; yet a deputy may

be made by *parole*: I am therefore inclined to the opinion that the votes of Clinton may be canvassed.

"TIOGA.—The sheriff is one who executes an office in person or by deputy, so far at least as the office is ministerial; when a deputy is required of the sheriff *conomine*, he may execute it in person or by deputy; but if the deputy appoints a deputy, it may be doubtful whether ordinarily the acts of the last deputy are the acts of the sheriff. The present instance is an extreme case; had the duty been capable of being performed within the county, the sheriff or another deputy could have performed. Here the deputy, being in the execution of his duty, and without the county, is prevented by the act of God from completing it; the sheriff could not appoint, and the deputy undertakes to appoint a deputy to finish his duty, who accordingly does so. The election law is intended to render effectual the constitutional right of suffrage; it should therefore be construed liberally, and the means should be in subordination to the end.

"In this case it may be reasonably doubted whether the canvassers are obliged to reject the votes of Tioga.

"RUFUS KING."

*Mr. Burr's opinion to the Canvassers.*

"OTSEGO.—The duration of the office of sheriff in England having been limited by statute to one year, great inconveniences were experienced, as well by suiters as by the public. To remove which it was thought necessary to pass an act of parliament. The statute of 12 Ed. IV., ch. 1, recites at large these inconveniences, and authorizes the sheriff to execute and return writs in the term of St. Michael, before the delivery of a writ of discharge, notwithstanding the expiration of the year. The authority given by this

statute being to execute only certain specified duties, the remedy was not complete, and another statute [1] was soon after passed, permitting sheriffs to do every act pertaining to the office, during the term of St. Michael and St. Hilary, after the expiration of the year, if not sooner discharged. The practice in England appears to have been conformable to these statutes, [2] though the king did pretend to dispense with them by force of the royal prerogative; and this claim and exercise of a power in the crown to dispense with and control the operation of statutes, has been long and universally condemned as odious and unconstitutional; yet the form of the commission is said still to be during pleasure.

"These considerations tend to show the principles of several opinions and adjudications, which are found in English law-books, relative to the holding over of the office of sheriff.

"None of the statutes of England or Great Britain continued to be laws of this state after the first of May, 1778. So that at present there remains no pretence for adopting any other than the obvious meaning of the constitution, which limits the duration of the office to one year, beyond which the authority to hold cannot be derived from the constitution, the appointment, or the commission. If inconveniences arise, remedies can be provided by *law only*, as has in similar cases been done in England, deciding on legal principles; therefore, the appointment and commission, and with them the authority of Mr. Smith, must be deemed to have expired on the 18th of February.

"Yet there are instances of offices being exercised by persons holding under an authority apparently good, but which, on strict legal examination, proves defective; whose acts, nevertheless, are, with *some limitations*, considered as valid. This authority is called *colourable*, and the officer in such cases is said to be an officer *de facto*; which intends an intermediate

state between an exercise strictly lawful and one without such colour of right. Mr. Smith does not appear to me to have holden the office of sheriff on the 3d of May under such colour or pretence of right. The term of his office had expired, and he had formally expressed his determination not to accept a reappointment; after the expiration of the year he accepted, and even two days before the receipt of the ballots, openly exercised an office incompatible with that of sheriff; and it is to be inferred, from the tenour of the affidavits, that he then knew of the appointment of Mr. Gilbert. The assumption of this authority by Mr. Smith does not even appear to have been produced by any urgent public necessity or imminent public inconvenience. Mr. Gilbert was qualified in season to have discharged the duty, and, for aught that is shown, his attendance, if really desired, might have been procured still earlier.

"Upon all the circumstances of this case, I am of opinion,

"1. That Mr. Smith was not sheriff of Otsego when he received and forwarded the ballots.

"2d. That the ballots delivered by the deputy of Mr. Smith cannot be legally canvassed.

"The direction of the law is positive, that the sheriff shall put all the enclosures into one box. How far his inattention or misconduct in this particular shall be deemed to vitiate the ballots of a county, appears to be left to the judgment of the canvassers. Were the ballots of this county subject to no other exception than that stated in the third and fourth questions, I should incline to think it one of those cases in which the discretion of the canvassers might be safely exercised, and that the ballots contained in the boxes might be legally canvassed; those in the separate package do not appear to be subject to such discretionary power; the law does not *permit* them to be estimated. But the extent to which this power

might be exercised in cases similar in kind, but varying in degree, cannot be precisely defined. Instances may doubtless be supposed, in which sound discretion would require that the whole should be rejected.

"Clinton.—To the question relative to the ballots of this county, it may suffice to say, that verbal and written deputation by a sheriff are, in law, considered as of equal validity, particularly when it is to perform a single ministerial act.

"Tioga.—it is said that a deputy may make a deputy to discharge certain duties merely ministerial; but, considering the importance of the trust in regard of the care of the ballots, and the extreme circumspection which is indicated in the law relative to elections, I think that the ballots of this county cannot, by any fiction or construction, be said to have been delivered *by the sheriff*; and am of opinion that they ought not to be canvassed.

**"AARON BURR."**

The opinion of Rufus King in this case was concurred in by Stephen Lush, T. V. W. Graham, and Abraham Van Vechten, of Albany; Richard Harrison, John Lawrence, John Cozine, Cornelius J. Bogart, Robert Troup, James M. Hughes, and Thomas Cooper, of New-York.

The opinion of Colonel Burr was sustained by Pierpont Edwards of Connecticut, Jonathan D. Sergeant, of Philadelphia, Edmund Randolph, of Virginia, United States attorney-general, Zephaniah Swift, Moses Cleaveland, Asher Miller, David Daggett, Nathaniel Smith, and Dudley Baldwin. These opinions were procured by Colonel Burr, as appears from the private correspondence on the subject.

**FROM JONATHAN D. SERGEANT.**

Philadelphia, 4th May, 1792.

**DEAR SIR,**

You will perceive by the date of the enclosed that it has been ready some time, but I have waited in hopes that I should have the pleasure of sending forward Mr. Randolph's opinion in company with mine. As he is not yet quite ready, and I am going out of town, I send forward my own singly. He is very solicitous to collect all possible information on the subject before he gives his opinion, and would willingly excuse himself from the task, were it not, as he says, that it would look like a want of that independence and firmness which dispose a man to meet any question, however important or strongly contended.

His opinion hitherto has been conformable to yours, and I expect will continue so. When it is ready I will forward it without the delay of sending it round to Dr. Edwards's in the country. The doctor had spoken to me some time before your letter came to me, so that I was nearly prepared when I received yours.

Your obedient servant,

**JONATHAN D. SERGEANT.**

On the 6th of November, 1792, the legislature met. On the 13th, petitions, memorials, &c. were presented to the House of Assembly, demanding an inquiry into the conduct of the board appointed to canvass the votes given for governor, &c. at the preceding election, held in the month of April. On the 21st the house, in committee of the whole, took up

the subject. Witnesses were examined at the bar; various resolutions and modifications were offered and rejected. The debate was continued at intervals from the 21st of November, 1792, until the 18th of July, 1793. The minority of the canvassers entered a protest against the proceedings of the majority, which it is due to them to insert here.

*"The Protest of Messrs. Jones, Roosevelt, and Gansevoort.*

"We, the subscribers, members of the joint committee appointed to canvass and estimate the votes taken at the last election in this state for governor, lieutenant-governor, and senators, do dissent from, and protest against, the determination of the major part of said committee respecting the votes taken at the said election in the county of Otsego.

"I. Because these votes having been given by the freeholders of Otsego, and the packages containing the same having been received and transmitted in season to the secretary's office by the person acting as sheriff of the county, the committee have no right to reject them under the pretence of judging of the legality, validity, operation, or extent of the sheriff's authority or commission; these commissions being foreign to the duty of their appointment, and capable of a decision only in the ordinary courts of law.

"II. Because, if the committee were by law authorized to examine and determine the legality and extent of the sheriff's authority and commission, we are of opinion that Richard R. Smith, at the time he received and transmitted the ballots, was the lawful sheriff of Otsego. By the constitution, the sheriff, whatever may be the form of his commission, must hold his office during the pleasure of the Council of Appointment; and, by the law of the land, he must continue therein until another is appointed and takes upon himself the office. Richard R. Smith, having been appointed on the 27th of February, 1791, and Benjamin Gilbert having been appointed on



the 30th of March, 1792, but not having qualified or taken upon himself the office until Richard R. Smith had received and forwarded the same, must be deemed the lawful sheriff of the county. The uniform practice which has prevailed since the establishment of the constitution, precludes all doubt respecting its true construction on this point. For although the commissions of the sheriffs are for one year, they have nevertheless continued to exercise the office until others were appointed and entered upon the execution thereof, which has often been long after the expiration of the year, and sometimes after the same person has remained in office more than four years successively. And such sheriffs, sometimes after the expiration of their year, at others after having held the office for four successive years, have received and transmitted ballots for governor, lieutenant-governor, and senators, which ballots have on former elections been received and canvassed; and even upon the present canvass, the committee have canvassed the ballots taken in the counties of Kings, Orange, and Washington, notwithstanding the year had expired for which the sheriffs of these counties were commissioned, and no new commissions had been issued. Hence the sheriffs of those counties, in receiving and transmitting the ballots, must have acted under their former commissions, since a mere appointment without a commission, and a compliance with the requisites prescribed by law, could not, in our opinion, give any authority as sheriff to the person so appointed.

"III. Because, if Richard R. Smith, at the time he received and forwarded the ballots, was not sheriff, the county was without a sheriff, a position too mischievous to be established by a doubtful construction of law.

"IV. Because, if Richard R. Smith was not of right sheriff of the county at the time he received and forwarded the ballots, he was then sheriff in fact of that county; and all the acts of such an officer which tend to the public

utility, or to preserve and render effectual the rights of third persons, are valid in law.

"V. Because, in all doubtful cases, the committee ought, in our opinion, to decide in favour of the votes given by the citizens, lest by too nice and critical an exposition of the law the rights of suffrage be rendered nugatory.

"We also dissent from, and protest against, the determination of the major part of the said committee respecting the votes taken at the said election in the county of Clinton;

"Because it appears that the sheriff of the said county deputed a person by parole to deliver the box containing the ballots of the said county into the secretary's office. Such deputation we deem to be sufficient; and as there is satisfactory evidence that the box was delivered in the same state in which it was received from the sheriff, the votes, in our opinion, ought to be canvassed.

"We also dissent from, and protest against, the determination of the major part of the said committee, by which they declare that George Clinton was, by the greatest number of votes taken at the last election for governor, lieutenant-governor, and senators, chosen governor of this state; and that Pierre Van Courtlandt was, by the greatest number of votes at the said election, chosen lieutenant-governor; and that John Livingston was, by the greatest number of votes at the said election, in the eastern district of this state, chosen a senator in the said eastern district.

"Because it cannot be ascertained whether George Clinton was chosen governor, or Pierre Van Courtlandt lieutenant-governor of this state, by the greatest number of votes at the last election, without examining the ballots contained in the boxes delivered into the secretary's office by the sheriffs of the counties of Otsego and Clinton—there being a sufficient number of

freeholders in these counties, with the votes given in the other parts of the state for John Jay as governor and Stephen Van Rensselaer as lieutenant-governor, to give them a majority of votes for those offices. Nor can it be ascertained whether John Livingston was chosen a senator in the eastern district by the greatest number of votes in that district, without examining the votes taken in the county of Clinton—there being a sufficient number of freeholders in that county, with the votes given in other parts of the district for Thomas Jenkins as a senator, to give him a greater number of votes for a senator than the number given for the said John Livingston.

"SAMUEL JONES,

"ISAAC ROOSEVELT,

"LEONARD GANSEVOORT."

Joshua Sands, another member of the board of canvassers, entered separately a protest, but substantially the same as the preceding.

The majority of the canvassers presented a document to the legislature, in which they assigned their reasons for the course they had pursued. That document was drawn by Colonel Burr. The original draught, with his emendations, has been preserved among his papers. On the motion of a member, it was read in the house the 28th day of December, 1792, and is entered at large on their journals as follows:—

*"The reasons assigned by the majority of the Canvassers in vindication of their conduct.*

"The joint committee appointed to canvass and estimate the votes for governor, lieutenant-governor, and senators at the last election, having been constrained, by a sense of their duty in the discharge of the trust reposed in them, to reject the ballots returned from the counties of Clinton, Otsego,

and Tioga; and perceiving that attempts are made to misrepresent as well the principles of their determination as the facts on which they are founded, feel it incumbent on them to state the grounds of their decision.

"CLINTON AND TIOGA.—A box, said to contain the ballots of the county of Clinton, was deposited in the secretary's office by a Theodore Platt, without any deputation or other authority, accompanied only by his own affidavit, that he had received the said box from the sheriff of Clinton.

Another box, said to contain the ballots of the county of Tioga, was delivered by the sheriff of the county of Tioga to his deputy, Benjamin Hovey, who, being detained by illness on the road, delivered the said box to one James H. Thompson, by whom it was deposited in the secretary's office.

"The joint committee, pursuant to the law, are sworn to canvass the votes 'contained in the boxes delivered into the office of the secretary of the state by the sheriffs of the several counties.' Hence arose a question, whether this was not a *personal trust*, which could not be legally performed by deputy? Upon this point we entertained different opinions; but agreed that, if the discretion of the committee was to be in any degree controlled by the directions of the law, there appeared no room to doubt of the illegality of canvassing boxes which were not delivered by a sheriff or the deputy of a sheriff. The ballots contained in these boxes were therefore rejected; not, however, without sensible regret, as no suspicion was entertained of the fairness of those elections.

"OTSEGO.—It appears that Richard R. Smith, on the 17th of February, 1791, was appointed sheriff of the county of Otsego, to hold that office until the 18th of February, 1792; that a commission was issued agreeably to that appointment; that on the 13th of January, 1792, he wrote to the governor and council that he should decline a reappointment; that on the 30th of

March, 1792, Benjamin Gilbert was appointed sheriff of the said county; that the commission to the said Benjamin Gilbert was, on the 13th of April, 1792, delivered to Stephen Van Rensselaer, one of the Council of Appointment, to be by him forwarded; that the said commission was in the hands of William Cooper, Esq., first judge of the said county, on or before the 3d of May; that the said Richard R. Smith, on the first Tuesday in April, was elected supervisor of the town of Otsego, accepted that office, and on the 1st day of May took his seat at the board of supervisors, assisted in the appointment of loan officers, and *then* declared that he was no longer sheriff of the county, but that Benjamin Gilbert was appointed in his place. It also appeared that Benjamin Gilbert had no notice of his said appointment, or of the receiving of the ballots by the said Richard R. Smith, until the 9th day of May, and that he was sworn to the execution of the office on the 11th; that, on the 3d of May, the said Richard R. Smith put up the ballots of the said county in the store of the said William Cooper, Esq., in whose hands the commission of Benjamin Gilbert then was; that the box said to contain the votes of the said county was delivered into the secretary's office by Leonard Goes previous to the last Tuesday in May, under a deputation from the said Richard R. Smith; together with the said box, and at the same time, the said Leonard Goes delivered a separate packet or enclosure, which, by an endorsement thereon, purported to contain 'the ballots received from the town of Cherry Valley, in the county of Otsego.'

"The manner of the delivery of the said box and enclosure, and the authority of the said Leonard Goes, were reported to the committee by the secretary of the state.

"These votes were not canvassed for the following reasons:—

"1. The committee found themselves bound, by their oath and by the directions of the law before mentioned, to canvass only the votes contained

in the boxes which may have been delivered into the secretary's office by the *sheriffs* of the several counties. It appeared to them absurd to suppose this duty should be so expressly enjoined, and that they should nevertheless be prohibited from inquiring whether the boxes were or were not delivered by such officers; or that they should be restrained from ascertaining a fact, without the knowledge of which it was impossible that they could discharge the duty with certainty to the public or with confidence to themselves. They could not persuade themselves that they were, under *that* law and *that* oath, compelled to canvass and estimate votes, however fraudulently obtained, which should be delivered into the secretary's office *by any person styling* himself sheriff, though it should at the same time be evident to them that he was *not the sheriff*. If such was to be their conduct, a provision intended as a security against impositions would be an engine to promote them. They conceived, therefore, that the objection to an inquiry so important, and in a case where the question was raised and the inquiry imposed upon them by the suggestions of the secretary, must have arisen from gross misrepresentation or willful error.

"Upon investigating the right of the said Richard R. Smith to exercise that office, the facts appeared as herein-before stated.

"2. The constitution requires that sheriffs shall be *annually appointed*; which, to our apprehension, implies that no person shall exercise the office by virtue of any other than an *annual* appointment. And should it even be admitted that the council may, at *their pleasure*, remove a sheriff within the year, yet we do not see on what ground it can be denied that the duration of the office is limited to one year, unless a new appointment should take place. It would otherwise be true that the council could indirectly, or by a criminal omission, accomplish what is not within their direct or legal authority. It will be readily admitted that an appointment and commission for three years would be void; and surely the pretence of one thus claiming

should be preferred to a usurpation without even such appearance of right, and against the known right of another. To assert, therefore, that 'by the constitution the sheriff, whatever may be the form of his commission, must hold his office during the pleasure of the Council of Appointment; and that, by the law of the land, he must continue therein until another is appointed and has taken upon himself the office,' is an assertion accompanied with no proof or reason, and is repugnant to the letter and spirit of the constitution, which is eminently *the law of the land*. The practice which has prevailed since the revolution, as far as hath come to our knowledge, does not warrant the position; neither could mere practice, if such had prevailed, justify the adoption of a principle contrary to the obvious meaning of the constitution. Upon the present occasion we have not canvassed the votes of any county which were not returned by a sheriff holding his office under an appointment unexpired. The sheriffs of Kings, Orange, and Washington had all been reappointed within the present year, which satisfied the words of the constitution, and was the *known* and avowed reason which influenced the committee to estimate the ballots of those counties. The doctrine concerning the constitutional pleasure of the council in the appointment of the office of sheriffs *had not then been invented*.

"3. But even admitting the visionary idea that the office of sheriff (*whose duration is limited by the constitution*) can nevertheless be holden *during the pleasure* of the Council of Appointment, yet that appears to have been determined by the letter of the appointment and commission, by the appointment of Benjamin Gilbert, by the declaration of Richard R. Smith, and by his acceptance and exercise of another office, which is, by the constitution, declared to be incompatible with the office of sheriff.

"It was evident, therefore, that Richard R. Smith had no authority by appointment, by commission, by the constitution, or by any law, to hold or exercise the office of sheriff on the third of May.

"4. As Richard R. Smith was not legally or constitutionally sheriff on the third of May, neither, under the circumstances of the case, can he be said to have been sheriff in fact, so as to render his acts valid in contemplation of law: the assumption of power by Mr. Smith appears to have been warranted by no pretence or colour of right. The time limited for the duration of his office had expired by the express tenure of his commission and appointment, and he had formally declared his determination not to accept a reappointment. He had, two days previous to his receiving the ballots, openly exercised an office incompatible with that of sheriff; then declared that he had resigned the office of sheriff, and that Benjamin Gilbert was appointed in his place; and by an affidavit which was produced to the committee, it appeared that, upon the day upon which he had put up the ballots in the house of the said William Cooper, he, the said Richard R. Smith, declared that he had resigned the office of sheriff. The business might with equal care and certainty have been executed by Benjamin Gilbert. The single act of receiving ballots could of itself continue *no man* a sheriff—least of all *a man disavowing that office, and then in the exercise of another*. It was foreign to the duty of the committee to provide against evils which may possibly arise from casual vacancies in the office of sheriff by death and otherwise. Vacancies will sometimes unavoidably happen, without further legislative provision.

"There is not, therefore, in our opinion, any application to the subject, or force in the objection, 'that if Richard R. Smith was not sheriff, the county was without a sheriff;' neither is the position true in fact, for it appears that the county was not then without a sheriff. At the time the ballots were received, it was well known that Benjamin Gilbert was appointed sheriff, and that his commission was in the hands of William Cooper, in whose store Richard R. Smith put up the ballots. It is also to be fairly inferred that, had proper measures been taken to give notice to Mr. Gilbert, he would forthwith have qualified and undertaken the execution of the office. It



cannot, therefore, consistent with truth or candour, be asserted that there was the remotest probability that 'mischiefs' could in any parallel case ensue from the principles adopted by the committee.

"It did not seem possible, therefore, by any principle of law, by any latitude of construction, to canvass and estimate the ballots contained in the box thus circumstanced.

"But, had the question been doubtful, it was attended by other circumstances, which would have determined the committee against canvassing those ballots.

"5. Because the notice of the appointment of Benjamin Gilbert was received by Richard R. Smith on or before the first of May, and his commission was received by William Cooper on or before the third of May. Mr. Gilbert might therefore have been notified, qualified, and executed the duty. He did actually qualify on the eleventh, which gave ample time to have forwarded the ballots before the last Tuesday in May. These facts, with other suggestions of unfair practices, rendered the conduct of the Otsego election justly liable to suspicion; and the committee were constrained to conclude that the usurpation of authority by Richard R. Smith was wanton and unnecessary, and proceeded from no motive connected with the preservation of the rights of the people or the freedom and *purity of elections*.

"6. Because, having in several instances, by *unanimous vote*, rejected ballots of whole towns, free from any suspicion of unfairness, by reason of a defect in *form only* of the return, the committee conceived themselves the more strongly bound to reject ballots where the defect was substantial, and the conduct at least questionable; especially as the law regards the custody of enclosures containing the ballots as a trust of high importance, and contemplates but three persons in whose hands they are to be confided until

they come to the possession of the canvassers, to wit, the inspector, the sheriff, and the secretary; all officers of great responsibility and confidence.

"7. Because the return, upon the face of it, appeared to be illegal. The law requires the sheriff, 'upon receiving the said enclosure, directed to be delivered to him as aforesaid, without opening or inspecting the same, or any or either of them, to put the said enclosures, and *every one of them, into one box*, which shall be well closed, &c., and be delivered by him, without opening the same, or the enclosures therein contained, into the office of the secretary of this state before the last Tuesday in May in every year.'

"By recurring to the preceding state of facts it will be evident that this direction of the law had been disregarded. If irregularities of this kind should be permitted and countenanced, it would be in the power of the sheriff, by excluding a part of the votes, to confer a majority on any candidate, in counties where there were divisions of interests. Affidavits were indeed produced tending to show that there had been, in that town, disputes respecting the election of town officers; that two enclosures, purporting to contain the votes of the town, were delivered to Mr. Smith, and that he had put into the box that enclosure which contained the votes taken by the persons whom *he judged* to be the legal inspectors: a matter proper to have been submitted to the opinion of the committee.

"The committee have considered this subject with deliberate attention, and in every light in which it could be placed; and whether they regarded the channels of conveyance, the mode of the return, or the general principles which ought to govern their decisions touching the freedom of elections and security against frauds, they found undeniable reasons which compelled them to reject the votes.

"**DAVID GELSTON,**

"THOMAS TILLOTSON,

"DANIEL GRAHAM,

"MELANCTON SMITH,

"DAVID M'CARTY,

"P.V. COURTLANDT, jun.,

"JONATHAN N. HAVENS."

On the 18th of January, 1793, the House of Assembly passed the following resolutions on the subject. "Thereupon, *Resolved*, That the mode of prosecuting any joint committee of the Senate and Assembly, appointed for the purpose of canvassing and estimating the votes taken in this state for governor, lieutenant-governor, and senators, and the penalties to be inflicted on such committee, or any of them, for any improper conduct in the execution of the trust reposed in them by law, are clearly pointed out in the twentieth and twenty-first sections of the act for regulating elections, passed the 13th day of February, one thousand seven hundred and eighty-seven; and that, therefore, any person or persons who may suppose that any such joint committee, or any of them have conducted themselves improperly in the execution of the trust reposed in them, may prosecute the same to effect in the ordinary course of law.

"*Resolved*, That notwithstanding this provision in the act for regulating elections, this house hath gone into an inquiry with respect to the conduct of the late committee appointed to canvass and estimate the votes for governor, lieutenant-governor, and senators, taken at the last general election held in this state, *to the intent* that satisfaction may be given those citizens of the state who have been dissatisfied with the decision of the

major part of the said committee, with respect to the votes taken in the counties of Otsego, Tioga, and Clinton.

*"Resolved,* That after a full and fair examination into the conduct of the major part of the said canvassing committee, it does not appear to this house that the said major part of the committee, to wit: David Gelston, Thomas Tillotson, Daniel Graham, Melancton Smith, David M'Carty, Pierre Van Courtlandt, junior, and Jonathan N. Havens, have been guilty of any mal or corrupt conduct in the execution of the trust reposed in them by law.

*"And whereas,* by the eleventh section of the act for regulating elections, it is enacted that all questions which shall arise upon any canvass and estimate, or upon any of the proceedings therein, shall be determined according to the opinion of the major part of the said canvassing committee, and that their judgment and determination shall in all cases be binding and conclusive; therefore,

*"Resolved,* As the sense of this house, that the legislature cannot annul or make void any of the determinations of the said committee."

The question was taken on the preceding resolutions together, by yeas and nays, and passed in the affirmative. Ays 35. Nays 22.

Among the individuals for whom Colonel Burr entertained a high degree of respect, was Jacob De Lamater, Esq., of Marbletown. Between these gentlemen, for several years, a friendly, and, in some instances, a confidential correspondence existed. Mr. De Lamater was a federalist, but personally attached to Colonel Burr. In 1792 he was among those who wished him to become a candidate for the office of governor. After the death of De Lamater, the letters addressed to him by Colonel Burr were returned. They were written under the sacred seal of friendship; but they contain not a sentence, not a word, that is not alike honourable to his head

and his heart. One is selected and here published as explanatory of his *feelings* and his *conduct* in the contested election (which so much agitated the State of New-York) between George Clinton and John Jay. It requires no comment.

## TO MR. DE LAMATER

New-York, 15th June, 1792.

MY DEAR SIR,

You will, before this can reach you, have heard of the event of the late election. Some questions having arisen among the canvassers respecting the returns from Clinton, Otsego, and Tioga, they requested the advice of Mr. King and myself. We conferred, and, unfortunately, differed; particularly as to the questions upon the Otsego return. I therefore proposed that we should decline giving any opinion, being for my own part much averse to interfere in the business. Mr. King, however, determined to give his separate opinion, from what motives you may judge. This laid me under the necessity of giving mine also, which I did. If I can procure copies of both opinions, and of the protest of the minority, and the reasons assigned by the majority of the canvassers, I will send them herewith. They will enable you to form a competent judgment of the law question, and of the fairness of the Otsego return.

I do not see how any unbiased man can doubt, but still I do not pretend to control the opinion of others, much less to take offence at any man for differing from me. The reasons contained in my opinion, and assigned by the majority of the canvassers, have never been answered except by abuse. I can, in a personal interview, inform you of some circumstances relative to the opinions which have been procured in favour of the Otsego votes.

I have heard with much pride and pleasure of the warm and disinterested manner in which I was espoused by some respectable characters in your county. I shall never fail to recollect it with sensibility and gratitude. It would therefore give me real pain to believe that any part of my conduct had tended to thwart their wishes. If it has had any such effect, it should at least be remembered that I did not seek to gratify any wish or interest of my own. I took no part in the election. I never gave to any person the most distant intimation that I supposed you engaged to support Mr. Clinton, or to take any other part than that which your inclinations and judgment should direct. I felt no disposition to influence your conduct on that occasion. Had I been so inclined, I have no doubt but I could, in various parts of the state, have essentially injured Mr. Jay's interest; but I made no attempt of the kind. Yet I shall never yield up the right of expressing my opinions. I have never exacted that tribute from another.

Upon the late occasion, indeed, I earnestly wished and sought to be relieved from the necessity of giving any opinion, particularly from a knowledge that it would be disagreeable to you and a few others whom I respect and wish always to gratify. But the conduct of Mr. King left me no alternative. I was obliged to give an opinion, and I have not yet learned to give any other than which my judgment directs.

It would, indeed, be the extreme of weakness in me to expect friendship from Mr. Clinton. I have too many reasons to believe that he regards me with jealousy and malevolence. Still, this alone ought not to have induced me to refuse my advice to the canvassers. Some pretend, indeed, but none can believe, that I am prejudiced in his favour. I have not even seen or spoken to him since January last. I wish to merit the flattering things you say of my talents; but your expressions of esteem and regard are still more flattering, and these, I am sure, I shall never fail to merit, if the warmest friendship and unalterable attachment can give me a claim.

Will you be abroad any, and what part of the summer? I ask, because I propose to make you a visit on my way to, or return from, Albany, and wish to be certain of finding you at home. No political changes can ever diminish the pleasure with which I subscribe myself

Your affectionate friend,

**A. BURR.**

The following letter is evidence of Colonel Burr's propensity to correspond in cipher with his most intimate friends, even on unimportant topics. Hundreds of the same character might be given.

**TO JACOB DE LAMATER.**

New-York, October 30th, 1792

**DEAR SIR,**

Your letter by Mr. Addison was particularly kind, after my long *supposed* silence. We may make use of *both keys or ciphers*, and if some of the persons or things are designated by different characters, no inconvenience will arise; if there should, we will correct it.

V is to be the candidate, as my former letter will have told you: He has the wishes of 9 for his success, for reasons which will be obvious to you. Do you think that 8 would be induced from any motive to vote for him?

Yours affectionately,

**A. BURR.**

Footnotes:

1. 17 Ed., ch. 7, more general.
2. 2 Hawks., 5, 51, Irish oct. edit., 2 mod. 261 statute 1 Wm. and Mary, sess. 2, ch. 2. See also sec. 12 of the same statute.



## CHAPTER XVII.

On the 2d of October, 1792, Governor Clinton nominated Colonel Burr to the Council of Appointment as Judge of the Supreme Court of the state, which nomination was immediately confirmed. Thus, within the short space of about three years, he was appointed by the democratic party to the several important stations of Attorney-General, Senator of the United States, and Judge of the Supreme Court. The last appointment was made without consulting Mr. Burr. As soon as he was notified of the fact, he informed the governor of his non-acceptance; yet so anxious was his excellency, and so strong were his hopes that Colonel Burr might be induced to withdraw his resignation, that he refused to lay it before the council until the legislature, on the 7th of December, adopted the following resolution—

"Whereas it appears to the legislature, by the records of the Council of Appointment, that Aaron Burr, Esq., one of the senators for this state in the Senate of the United States, was, on the 2d day of October last, appointed one of the puisne justices of the Supreme Court of Judicature of this state: Thereupon,

*"Resolved* (if the honourable the Senate concur herein), That his excellency the governor be and hereby is requested to inform the legislature whether the said Aaron Burr hath accepted or refused the said office."

On the 24th of October, 1791, Congress convened, and Colonel Burr took his seat in the Senate of the United States. In those days it was the practice of the president, accompanied by the heads of departments, to proceed to Congress Hall for the purpose of meeting the two branches of the national legislature, and opening the session with a speech, to which a response was made by each body separately. On the 25th the president made his annual communication; whereupon the Senate "*Ordered*, That Messrs. Burr, Cabot, and Johnston be a committee to prepare and report the draught of an address to the President of the United States, in answer to his speech, delivered this day to both houses of Congress in the Senate Chamber."

The next day Colonel Burr, as chairman of the committee, draughted and reported an answer, which was adopted by the Senate without alteration or amendment: an occurrence, it is believed, that happened in only two other instances during the period that speeches were delivered by the executive. After the election of Mr. Jefferson the system of sending messages was substituted.

The journals of the Senate afford ample evidence that Colonel Burr was an industrious and efficient member of that body. During the first session of his term of service he was placed on numerous committees, some of them important, and generally as chairman. His business habits soon became evident, and were called into operation. His character for firmness was well established before he took his seat in the Senate; but on the 9th of January, 1794, it was displayed with effect. In consequence of a difference between the two houses, a bill to increase the standing army was lost.

Mr. King, of New-York, by consent, introduced a new bill; it was entitled "An act for the more effectual protection of the southwestern frontier settlers." Unsuccessful efforts were made by Colonel Burr and others to amend it, by striking out some of its most odious features; but there was a

decided majority, as it was known to be an administration measure, determined on carrying it through. The bill was ordered to be engrossed for a third reading, and the question on its passage was to be taken on the last day of the session. By the rules of the Senate, the question could not be put if any member objected. Colonel Burr objected, and the bill was thus defeated.

Notwithstanding his public engagements, Colonel Burr's mind was constantly employed with the education of his daughter. Mrs. Burr's health was gradually declining, insomuch that she was unable, at times, to attend to her domestic concerns. This to him was a source of unceasing care and apprehension. His letters to his daughter are numerous. They are frequently playful, always interesting, displaying the solicitude of an affectionate father anxious for the improvement of his child.

## **TO MRS. BURR.**

Philadelphia, 18th January, 1793.

By the enclosed to Mr. Gurney, [1] I have requested him to write me a letter respecting the health of the family, and Theo.'s improvement. Request him to enclose, on a separate sheet, some columns of figures, pounds, shillings, and pence. I shall show the letter and enclosure as a specimen of his talents to some persons to whom I wish to recommend him. Beg him to use no uncommon word or expression. He will pardon this piece of advice when he recollects that I know so much better than he does what will suit the persons to whom it is to be shown. If he should offer his letter for your perusal before he sends it, remark freely; it will be a kindness of which no one is so capable.

Should this come to hand after he has given his lesson on Saturday, send him his letter, and request him to call on you, if you should be able to bear five minutes conversation with him.

I wrote you yesterday, and have nothing to add respecting myself; and only a repetition of my prayers for you, with my most affectionate and anxious wishes.

**A. BURR.**

TO MRS. BURR.

Philadelphia, 8th February, 1793.

You may recollect that I left a memorandum of what Theo. was to learn. I hope it has been strictly attended to. Desire Gurney not to attempt to teach her any thing about the "concord." I will show him how I choose that should be done when I return, which, I thank God, is but three weeks distant.

It is eight days since I left home, and I have not a word from any one of the family, nor even about any one of them. I have been out but once, half an hour at Mrs. P.'s, a concert; but I call often at Mrs. L.'s. I am more and more struck with the native good sense of one of that family, and more and more disgusted with the manner in which it is obscured and perverted: cursed effects of fashionable education! of which both sexes are the advocates, and yours eminently the victims. If I could foresee that Theo. would become a *mere* fashionable woman, with all the attendant frivolity and vacuity of mind, adorned with whatever grace and allurements, I would earnestly pray God to take her forthwith hence. But I yet hope, by her, to

convince the world what neither sex appear to believe—that women have souls!

Most affectionately yours,

A. BURR.

TO MRS. BURR.

Philadelphia, 15th February, 1793.

I received with joy and astonishment, on entering the Senate this minute, your two elegant and affectionate letters. The mail closes in a few minutes, and will scarce allow me to acknowledge your goodness. The roads and ferries have been for some days almost impassable, so that till now no post has arrived since Monday.

It was a knowledge of your mind which first inspired me with a respect for that of your sex, and with some regret, I confess, that the ideas which you have often heard me express in favour of female intellectual powers are founded on what I have imagined, more than what I have seen, except in you. I have endeavoured to trace the causes of this *rare* display of genius in women, and find them in the errors of education, of prejudice, and of habit. I admit that men are equally, nay more, much more to blame than women. Boys and girls are generally educated much in the same way till they are eight or nine years of age, and it is admitted that girls make at least equal progress with the boys; generally, indeed, they make better. Why, then, has it never been thought worth the attempt to discover, by fair experiment, the particular age at which the male superiority becomes so evident? But this is not in answer to your letter; neither is it possible now to answer it. Some

parts of it I shall never answer. Your allusions to departed angels I think in bad taste.

I do not like Theo.'s indolence, or the apologies which are made for it. Have my directions been pursued with regard to her Latin and geography?

Your plan and embellishment of my mode of life are fanciful, are flattering, and inviting. We will endeavour to realize some of it. Pray continue to write, if you can do it with impunity. I bless Sir J., who, with the assistance of Heaven, has thus far restored you.

In the course of this scrawl I have been several times called to vote, which must apologize to you for its incoherence. Adieu.

**A. BURR.**

TO MRS. BURR.

Philadelphia, 16th February, 1793.

A line of recollection will, I am sure, be more acceptable than silence. I consider myself as largely in your debt, and shall of necessity remain so.

You have heard me speak of a Miss Woolstonecraft, who has written something on the French revolution; she has also written a book entitled "*Vindication of the rights of Woman*." I had heard it spoken of with a coldness little calculated to excite attention; but as I read with avidity and prepossession every thing written by a lady, I made haste to procure it, and spent the last night, almost the whole of it, in reading it. Be assured that your sex has in *her* an able advocate. It is, in my opinion, a work of genius. She has successfully adopted the style of Rousseau's *Emilius*; and her

comment on that work, especially what relates to female education, contains more good sense than all the other criticisms upon him which I have seen put together. I promise myself much pleasure in reading it to you.

Is it owing to ignorance or prejudice that I have not yet met a single person who had discovered or would allow the merit of this work?

Three mails are in arrear; that of Tuesday is the last which has arrived. I am impatient to know how writing agrees with you. Pray let me hear, from day to day, the progress of your cure. Most affectionately yours,

**A. BURR.**

**TO MRS. BURR.**

Philadelphia, 18th February, 1793.

Just what I apprehended, I find, has taken place. Three sheets were too much for a first attempt. It will, I fear, discourage you, if not disable you from more moderate experiments. Yet I will hope to receive by this day's mail at least one line, announcing your progressive recovery, under your own hand.

Be assured that, after what you have written, I shall not send for Gurney. Deliver him the enclosed. I hope it may animate his attention; and tell him, if you think proper, that I shall be much dissatisfied if Theo.'s progress in Latin be not very considerable at my return. Geography has, I hope, been abandoned, for he has no talent at teaching it.

The close of a session being always crowded with business, keeps me much engaged. You must expect short letters—mere notes. Adieu.

A. BURR.

TO HIS DAUGHTER THEODOSIA.

Philadelphia, 20th February, 1793.

At length, my dear Theo., I have received your letter of the 20th of January—written, you see, a month ago. But I observe that it was not put into the postoffice until the day before yesterday. I suppose Frederick or Bartow had carelessly put it in some place where it had lain forgotten. It would indeed have been a pity that such a letter should have been lost. There is something in the style and arrangement of the words which would have done honour to a girl of sixteen.

All three of the Miss A.'s will visit New-York next summer, and pass some weeks there. I hope to be at home in ten or twelve days from this time. Let me receive one or two more letters from you, even if you are obliged to neglect a lesson to find time to write them.

Alexis [2] often bids me to send you some polite and respectful message on his part, which I have heretofore omitted. He is a faithful, good boy. Upon our return home he hopes you will teach him to read.

I am, my dear Theo.,

Your affectionate papa,

A. BURR.

TO HIS DAUGHTER THEODOSIA.



Philadelphia, 24th February, 1793

MY DEAR THEO.,

In looking over a list made yesterday (and now before me), of letters of consequence to be answered immediately, I find the name of T.B. Burr. At the time I made the memorandum I did not advert to the compliment I paid you by putting your name in a list with some of the most eminent persons in the United States. So true is it that your letters are really of consequence to *me*. I now allude to that of the 19th instant, covering a fable and riddle. If the whole performance was your own, which I am inclined to hope and believe, it indicates an improvement in style, in knowledge of the French, and in your handwriting. I have therefore not only read it several times, but shown it to several persons with pride and pleasure.

I confess myself unable to solve your riddle, unless the *teeth* or the *alphabet* (generally supposed to be twenty-four in each) will give the solution. But I have not yet had an opportunity to consult Miss P. A. Tomorrow I shall call on her for the purpose, and will not fail to inform you of her conjectures on the subject.

Your affectionate papa,

A. BURR,

TO HIS DAUGHTER THEODOSIA.

Philadelphia, 16th December, 1793.

I have a thousand questions to ask, my dear Theo., but nothing to communicate; and thus I fear it will be throughout the winter, for my time is

consumed in the dull uniformity of study and attendance in Senate; but every hour of *your* day is interesting to *me*. I would give, what would I not give to see or know even your most trifling actions and amusements? This, however, is more than I can ask or expect. But I do expect with impatience your journal. Ten minutes every evening I demand; if you should choose to make it twenty, I shall be the better pleased. You are to note the occurrences of the day as concisely as you can; and, at your pleasure, to add any short reflections or remarks that may arise. On the other leaf I give you a sample of the manner of your journal for one day.

18th December,

I began this letter at the date which you see, being Monday last—was interrupted, and the mail closed. Yesterday I was confined with a severe headache, owing, I believe, to a change from an active to a sedentary life without a corresponding change in diet.

A week and more has elapsed since I left home, and not a line from you; not even the Sunday letter. Observe, that the journal is to be sent to me enclosed in a letter every Monday morning.

*Plan of the Journal.*

16th December, 1793.

Learned 230 lines, which finished Horace. Heigh-ho for Terence and the Greek grammar to-morrow.

Practised two hours less thirty-five minutes, which I begged off.

Hewlett (dancing-master) did not come.

Began Gibbon last evening. I find he requires as much study and attention as Horace; so I shall not rank the reading of *him* among amusements.

Skated an hour; fell twenty times, and find the advantage of a hard head and

Ma better—dined with us at table, and is still sitting up and free from pain.

Your affectionate papa,

**A. BURR.**

TO MRS. BURR.

Philadelphia, 24th December, 1793.

Since being at this place I have had several conversations with Dr. Rush respecting your distressing illness, and I have reason to believe that he has given the subject some reflection. He has this evening called on me, and given me as his advice that you should take hemlock. He says that, in the way in which it is usually prepared, you should commence with a dose of one tenth of a grain, and increase as you may find you can bear it; that it has the narcotic powers of opium, superadded to other qualities. When the dose is too great, it may be discovered by a vertigo or giddiness; and that he has known it to work wonderful cures. I was the more pleased with this advice, as I had not told him that you had been in the use of this medicine; the concurrence of his opinion gives me great faith in it. God grant that it may restore your health, and to your affectionate

A. BURR.

TO HIS DAUGHTER THEODOSIA.

Philadelphia, 25th December, 1793.

The letter, my dear Theo., which (I have no doubt) you wrote me last Sunday, has not yet come to hand. Am I to blame Strong? or the postmaster? or whom?

When you have finished a letter, read it carefully over, and correct all the errors you can discover. In your last there were some which could not, upon an attentive perusal, have escaped your notice, as you shall see when we meet.

I have asked you a great many questions, to which I have as yet no answers. When you *sit* down to write to me, or when you *set* about it, be it sitting or standing, peruse all my letters, and leave nothing unanswered. Adieu.

A. BURR.

TO HIS DAUGHTER THEODOSIA.

Philadelphia, 31st December, 1793.

I received your letter and journal yesterday in the Senate Chamber, just before the closing of the mail, so that I had only time to acknowledge it by a hasty line. You see I never let your letters remain a day unanswered, in which I wish you would imitate me. Your last had no date; from the last

date in the journal, and your writing about Christmas holydays as yet at some distance, I suppose you wrote about Sunday the 22d. Nine days ago! I beg you again to read over all my letters, and to let me see by your answers that you attend to them. I suspect your last journal was not written from day to day; but all on one, or at most two days, from memory. How is this? Ten or fifteen minutes every evening would not be an unreasonable sacrifice from *you* to *me*. If you took the Christmas holydays, I assent: if you did not, we cannot recall the time. This is all the answer which that part of your letter now admits of.

It is said that some few yet die of the yellow fever which lately raged here; but the disorder does not appear to be, *at present*, in any degree contagious; what *may* be the case upon the return of warm weather, is a subject of anxious conjecture and apprehension. It is probable that the session of Congress will continue into the summer.

Give a place to your mamma's health in your journal. Omit the formal conclusion of your letters, and write your name in a larger hand. I am just going to Senate, where I hope to meet a letter from you, with a continuation of your journal down to the 29th inclusive, which, if it gives a good account of you and mamma, will gladden the heart of

**A BURR.**

TO HIS DAUGHTER THEODOSIA.

Philadelphia, 31st December, 1793.

This day's mail has brought me nothing from you. I have but two letters in three, almost four weeks, and the journal is ten days in arrear. What—can neither affection nor civility induce you to devote to me the small portion of

time which I have required? Are authority and compulsion then the only engines by which you can be moved? For shame, Theo.! Do not give me reason to think so ill of you.

I wrote you this morning, and have nothing to add but the repetition of my warmest affection.

**A. BURR.**

TO HIS DAUGHTER THEODOSIA.

Philadelphia, 4th January, 1794.

At the moment of closing the mail yesterday, I received your letter enclosing the pills. I cannot refer to it by date, as it has none. Tell me truly, did you write it without assistance? Is the language and spelling your own? If so, it does you much honour. The subject of it obliged me to show it to Dr. Rush, which I did with great pride. He inquired your age half a dozen times, and paid some handsome compliments to the handwriting, the style, and the correctness of your letter.

The account of your mamma's health distresses me extremely. If she does not get better soon, I will quit Congress altogether and go home. Doctor Rush says that the pills contain two grains each of pure and fresh extract of hemlock; that the dose is not too large if the stomach and head can bear it; that he has known twenty grains given at a dose with good effect. To determine, however, whether this medicine has any agency in causing the sick stomach, he thinks it would be well to take an occasion of omitting it for a day or two, if Doctor Bard should approve of such an experiment, and entertains any doubts about the effects of the pills on the stomach. Some

further conversation which I have had with Doctor Rush will be contained in a letter which I shall write by this post to Doctor Bard.

My last letter to you was almost an angry one, at which you cannot be much surprised when you recollect the length of time of your silence, and that you are my only correspondent respecting the concerns of the family. I expect, on Monday or Tuesday next, to receive the continuation of your journal for *the fortnight past*.

Mr. Leshlie will tell you that I have given directions for your commencing Greek. One half hour faithfully applied by yourself at study, and another at recitation with Mr. Leshlie, will suffice to advance you rapidly.

Your affectionate,

A. BURR.

TO HIS DAUGHTER THEODOSIA.

Philadelphia, 7th January, 1794.

When your letters are written with tolerable spirit and correctness, I read them two or three times before I perceive any fault in them, being wholly engaged with the pleasure they afford me; but, for your sake, it is necessary that I should also peruse them with an eye of criticism. The following are the only misspelled words. You write *acurate* for *accurate*; *laudnam* for *laudanum*; *intirely* for *entirely*; this last word, indeed, is spelled both ways, but *entirely* is the most usual and the most proper.

Continue to use all these words in your next letter, that I may see that you know the true spelling. And tell me what is laudanum? Where and how made? And what are its effects?

"It was what she had long wished for, and was at a loss how to procure *it*."

Don't you see that this sentence would have been perfect and much more elegant without the last *it*? Mr. Leshlie will explain to you why. By-the-by, I took the liberty to erase the redundant *it* before I showed the letter.

I am extremely impatient for your farther account of mamma's health. The necessity of laudanum twice a day is a very disagreeable and alarming circumstance. Your letter was written a week ago, since which I have no account. I am just going to the Senate Chamber, where I hope to meet a journal and letter. Affectionately,

A. BURR.

TO HIS DAUGHTER THEODOSIA.

Philadelphia, 8th January, 1794

Your two letters of Friday and Saturday came together by yesterday's mail, which did not arrive till near sunset. Your letter of Friday was not put into the postoffice until Saturday afternoon. You might have as well kept it in your own hands till Monday eleven o'clock. Since the receipt of these letters I have been three times to Doctor Rush to consult him about a drink for your mamma; but not having had the good fortune to find him, have written to him on the subject. I shall undoubtedly procure an answer in the course of this day, and will forward it by to-morrow's post.



I beg, Miss Prissy, that you will be pleased to name a single "*unsuccessful effort*" which you have made to please me. As to the letters and journals which you *did* write, surely you have reason abundant to believe that they gave me pleasure; and how the deuse I am to be pleased with those you *did not* write, and how an omission to write can be called an "*effort*," remains for your ingenuity to disclose.

You improve much in journalizing. Your last is far more sprightly than any of the preceding. Fifty-six lines sola was, I admit, *an effort* worthy of yourself, and which I hope will be often repeated. But pray, when you have got up to two hundred lines a lesson, why do you go back again to one hundred and twenty, and one hundred and twenty-five? You should strive never to diminish; but I suppose that *vis inertiae*, which is often so troublesome to you, does some times preponderate. So it is now and then even with your

A. BURR.

Learn the difference between *then* and *than*. You will soonest perceive it by translating them into Latin.

Let me see how handsomely you can subscribe your name to your next letter, about this size,

A. BURR.

TO HIS DAUGHTER THEODOSIA.

Philadelphia, 10th of January, 1794.

I fear that you will imagine that I have been inattentive to your last request about Dr. Rush; but the truth is, I can get nothing satisfactory out of him. He enumerates over to me all the articles which have been repeatedly tried, and some of which did never agree with your mamma. He is, however, particularly desirous that she should again try milk—a spoonful only at a time: another attempt, he thinks, should be made with porter, in some shape or other. Sweet oil, molasses, and milk, in equal proportions, he has known to agree with stomachs which had rejected every thing else. Yet he says, and with show of reason, that these things depend so much on the taste, the habits of life, the peculiarity of constitution, that she and her attending physician can be the best, if not the only advisers. It gives me very great pleasure to learn that she is now better. I shall write you again on Sunday, having always much to say to you

Adieu.

**A. BURR.**

TO THEODOSIA.

Philadelphia, 13th January, 1794.

Your letter of the 9th, my dear Theo., was a most agreeable surprise to me. I had not dared even to hope for one until to-morrow. In one instance, at least, an attempt to please me has not been "unsuccessful." You see I do not forget that piece of impudence.

Doctor Rush says that he cannot conceive animal food to be particularly necessary; nourishment is the great object. He approves much of the milk punch and chocolate. The stomach must on no account be offended. The intermission of the pills for a few days (not however for a whole week) he

thinks not amiss to aid in determining its effects. The quantity may yet be increased without danger, but the present dose is in his opinion sufficient; but after some days continual use, a small increase might be useful.

I was yesterday thronged with company from eight in the morning till eleven at night. The Greek signature, though a little mistaken, was not lost upon me. I have a letter from Mr. Leshlie, which pays you many compliments. He has also ventured to promise that you will every day get a lesson in Terence by yourself. You know how grateful this will be to

A. BURR.

TO THEODOSIA.

Philadelphia, 14th January, 1794.

I really think, my dear Theo., that you will be very soon beyond all verbal criticism, and that my whole attention will be presently directed to the improvement of your style. Your letter of the 9th is remarkably correct in point of spelling. That word *rec\_ie\_ved* still escapes your attention. Try again. The words *wold* and *shold* are mere carelessness; *necess\_e\_ry* instead of *necess\_a\_ry*, belongs, I suspect to the same class.

"Dr. B. called here, but did not speak of his having *rec\_ie\_ved* a letter from you, but desired," &c.

When I copied the foregoing, I intended to have shown you how to improve it; but, upon second thought, determine to leave it to yourself. Do me the favour to *endorse* it on, or *subjoin* it to, your next letter, corrected and varied according to the best of your skill.

"Ma begs you will omit the thoughts of leaving Congress," &c.; "omit" is improperly used here. You mean "*abandon, relinquish, renounce, or abjure* the thoughts," &c. Your mamma, Mr. Leshlie, or your dictionary (Johnson's folio), will teach you the force of this observation. The last of these words would have been too strong for the occasion. You have used with *propriety* the words "encomium" and "adopted." I hope you may have frequent occasion for the former, with the like application.

"Cannot be committed to paper," is well expressed.

A. BURR.

TO THEODOSIA.

Philadelphia, 16th January, 1794.

I hope the mercury, if tried, will be used with the most vigilant caution and the most attentive observation of its first effects. I am extremely anxious and apprehensive about the event of such an experiment.

I fear, my dear little girl, that my letter of the 13th imposed too much upon you; if so, dispense with what you may find too troublesome. You perceive by this license the entire confidence which I place in your discretion.

Your journal still advances towards perfection. But the letter which accompanied it is, I remark with regret, rather a falling off. I have received none more carelessly written, or with more numerous omissions of words. I am sensible that many apologies are at hand; but you, perhaps, would not be sensible that any were necessary, if I should omit to remind you.

On Sunday se'nnight (I think the 26th) I shall, unless baffled or delayed by ice or weather, be with you at Richmond Hill. I will not bid you adieu till the Friday preceding. In the interim, we shall often in this way converse.

I continue the practice of scoring words for our mutual improvement. The use, as applicable to you, was indicated in a former letter.

I am sure you will be charmed with the Greek language above all others. Adieu.

**A. BURR.**

TO THEODOSIA.

Philadelphia, 23d January, 1794.

Io, triumphe! There is not a word misspelled either in your journal or letter, which cannot be said of a single page you ever before wrote. The fable is quite classical, and, if not very much corrected by Mr. Leshlie, is truly a surprising performance, and written most beautifully. But what has become of poor Alpha Beta? Discouraged? That is impossible. Laid aside for the present? That, indeed, is possible, but by no means probable. Shall I guess again? Yes; you mean to surprise me with some astonishing progress. And yet, to confess the truth, your lessons in Terence, Exercises, and "music" (without a *k*, observe) seem to leave little time for any other study. I must remain in suspense for four days longer.

Doctor Rush thinks that bark would not be amiss, but may be beneficial if the stomach does not rebuke it, which must be constantly the first object of attention. He recommends either the cold infusion or substance as least likely to offend the stomach.

Be able, upon my arrival, to tell me the difference between an *infusion* and *decoction*; and the history, the virtues, and the *botanical* or medical name of the bark. Chambers will tell you more perhaps than you will wish to read of it. Your little mercurial disquisition is ingenious, and prettily told.

I have a most dreary prospect of weather and roads for my journey. I set off on Saturday morning, and much fear that it will take two or three days to get to Now-York.

A. BURR.

TO THEODOSIA.

Philadelphia, 13th February, 1794.

I received your letter and enclosures yesterday in Senate. I stopped reading the letter, and took up the story in the place you directed; was really affected by the interesting little tale, faithfully believing it to have been taken from the Mag. D'Enf., and was astonished and delighted when I recurred to the letter and found the little deception you had played upon me. It is concisely and handsomely told, and is indeed a performance above your years.

Mr. Leshlie is not, I am afraid, a competent judge of what you are capable of learning; you must convince him that you can, when you set in earnest about it, accomplish wonders.

Do you mean that the forty lines which you construed in Virgil were in a part you had not before learned?

I despair of getting genuine Tent wine in this city. There never was a bottle of real unadulterated Tent imported here for sale. Mr. Jefferson, who had some for his own use, has left town. Good Burgundy and Muscat, mixed in equal parts, make a better Tent than can be bought. But by Bartow's return you shall have what I can get—sooner if I find a conveyance.

Bartow is the most perfect gossip I ever knew; though, I must say, it is the kind of life I have advised him to while he stays here. Adieu.

**A. BURR.**

TO THEODOSIA.

Philadelphia, 7th March, 1794.

Your letter of the 4th was three days on the road. I am certain that I have answered punctually all which have come to hand. True, I have not written to you as frequently as during the first few weeks of my residence here. For the last month I have been very much occupied by public business. You will need no other proof of it when I tell you that near twenty unanswered letters are now on my desk, not one of yours among them, however, except that received last evening. I have not even been to the theatre except about an hour, and then it was more an errand of business than amusement.

Poor Tom, [3] I hope you take good care of him. If he is confined by his leg, &c., he must pay the greater attention to his reading and writing.

I shall run off to see you about Sunday or Monday; but the roads are so extremely bad that I expect to be three days getting through. I will bring

with me the cherry sweetmeats, and something for *Augusta Louisa Matilda Theodosia Van Horne*. I believe I have not recollected all her names.

Affectionately,

A. BURR.

TO THEODOSIA.

Philadelphia, 31st March, 1794.

I am distressed at your loss of time. I do not, indeed, wholly blame you for it, but this does not diminish my regret. When you want punctuality in your letters, I am sure you want it in every thing; for you will constantly observe that you have the most leisure when you do the most business. Negligence of one's duty produces a self-dissatisfaction which unfits the mind for every thing, and *ennui* and peevishness are the never-failing consequences. You will readily discover the truth of these remarks by reflecting on your own conduct, and the different feelings which have flowed from a persevering attention to study, or a restless neglect of it.

I shall in a few days (this week) send you a most beautiful assortment of flower-seeds and flowering shrubs. If I do not receive a letter from you to-morrow, I shall be out of all patience. Every day's journal will, I hope, say something of mamma.

A. BURR.

TO THEODOSIA.



Philadelphia, 7th June, 1794.

I have received my dear Theo.'s two little, very little, French letters. The last left you tormented with headache and toothache, too much for one poor little girl to suffer at one time, I am sure: you had doubtless taken some sudden cold. You must fight them as well as you can till I come, and then I will engage to keep them at bay.

I remark that you do not acknowledge the receipt of a long letter which I wrote you on the road the night after I left New-York. I hope it has not missed you; but it is needless now to ask about it, for I shall certainly see you before I could receive your answer to this.

Whatever you shall translate of Terence, I beg you to have copied in a book in a very fair handwriting.

**A. BURR.**

TO THEODOSIA.

Albany, 4th August, 1794.

**MY DEAR THEO.,**

We arrived here yesterday, after a hot, tedious passage of *seven days*. We were delayed as well by accidents as by calms and contrary winds, The first evening, being under full sail, we ran ashore at Tappan, and lay there aground, in a very uncomfortable situation, twenty-four hours. With great labour and fatigue we got off on the following night, and had scarce got under sail before we missed our longboat. We lost the whole tide in hunting for it, and so lay till the morning of Wednesday. Having then made sail

again, with a pretty strong head wind, at the very first tack the Dutch horse fell overboard. The poor devil was at the time tied about the neck with a rope, so that he seemed to have only the alternatives of hanging or drowning (for the river is here about four miles wide, and the water was very rough); fortunately for him, the rope broke, and he went souse into the water. His weight sunk him so deep that we were at least fifty yards from him before he came up. He snorted off the water, and turning round once or twice, as if to see where he was, then recollecting the way to New-York, he immediately swam off down the river with all force. We fitted out our longboat in pursuit of him, and at length drove him on shore on the Westchester side, where I hired a man to take him to Frederick's. All this delayed us nearly a whole tide more. The residue of the voyage was without accident, except such as you may picture to yourself in a small cabin, with seven men, seven women, and two crying children—two of the women being the most splenetic, ill-humoured animals you can imagine.

On my arrival here I was delighted to receive your letter of the 30th, with the journal of that and the preceding days. Your history of those three days is very full and satisfactory, and has induced me, by way of return, to enlarge on the particulars of my journey. I am quite gratified that you have secured Mrs. Penn's (observe how it is spelled) good opinion, and content with your reasons for not saying the civil things you intended. In case you should dine in company with her, I will apprise you of one circumstance, by a trifling attention to which you may elevate yourself in her esteem. She is a great advocate for a very plain, rather abstemious diet in children, as you may see by her conduct with Miss Elizabeth. Be careful, therefore, to eat of but one dish; that a plain roast or boiled: little or no gravy or butter, and very sparingly of dessert or fruit: not more than half a glass of wine; and if more of any thing to eat or drink is offered, decline it. If they ask a reason—Papa thinks it not good for me, is the best that can be given.

It was with great pain and reluctance that I made this journey without you. But your manners are not yet quite sufficiently formed to enable you to do justice to your own character, [4] and the expectations which are formed of you, or to my wishes. Improve, therefore, to the utmost the present opportunity; inquire of every point of behaviour about which you are embarrassed; imitate as much as you can the manners of Madame De S., and observe also every thing which Mrs. Penn says and does.

You should direct your own breakfast. Send Cesar every morning for a pint of milk for you; and, to save trouble to Madame De S., let her know that you eat at breakfast only bread and butter.

I wish you would read over your letters after you have written them; for so many words are omitted, that in some places I cannot make out the sense, *if any they contain*. Make your figures or ciphers in your letters, but write out the numbers at length, except dates. Adieu, affectionately adieu,

**A. BURR.**

**TO THEODOSIA.**

Albany, 14th August, 17 94.

**MY DEAR THEO.,**

Last evening's mail brought me your letter and journal from the 1st to the 11th of August, according to your dates, which, however, are wrong.

The account of your time is very satisfactory. You really get along much better than I expected, which is infinitely to the credit of your good sense, that being your only guide. From the attentions you receive from Mrs. Penn

and her family, I judge you have been so fortunate as to gain her esteem, and that her prejudices are turned into prepossessions, which I assure you gratified me not a little.

Your invitation to the Z.'s was, I confess, a very embarrassing dilemma, and one from which it was not easy to extricate yourself. For the future, take it as your rule to visit only the families which you have known me to visit; and if Madame De S. should propose to you to visit any other, you may tell her what are my instructions on the subject. To the young ladies, you may pretend business or engagements: avoid, however, giving any offence to your companions. It is the manner of a refusal, much more than the refusal, which gives offence. This direction about your visits applies only to the citizens or English families. You may, indeed it is my wish, that you should visit with Madame De S. all her French acquaintance.

I go this afternoon to attend a court at Ballston, and shall, on Monday, attend one at Troy, which will probably last about three days; after which I shall take passage for New-York, proposing, however, to pass a day at Kingston, and another at Poughkeepsie, with citizen Hauterieve, so that I may be expected home some time in the week after next; but you will hear often from me before that time. You must not send me any letter after those which will come by the mail leaving New-York on Monday next; yet you must continue your letters and journal as usual, for my amusement on my return.

In future, write no more on the little paper, but let the letters and journal be together on paper of this size, or common letter-paper. Set apart every day half an hour or an hour to write to me, and I must again entreat you to write at least legibly: after great pains, I am wholly unable to decipher some of the hieroglyphics contained in your last.

Four pages in Lucian was a great lesson; and why, my dear Theo., can't this be done a little oftener? You must, by this time, I think, have gone through Lucian. I wish you to begin and go through it again; for it would be shameful to pretend to have read a book of which you could not construe a page. At the second reading you will, I suppose, be able to double your lessons; so that you may go through it in three weeks. You say nothing of writing or learning Greek verbs;—is this practice discontinued? and why?

I wish you to go oftener to the house. You may, if you like, go any morning, to take an early breakfast there, giving notice the day before to Mr. Leshlie, that he may attend at the hour of your return, when I know you can readily make up the lost time.

Do you continue to preserve Madame De S.'s good opinion of your talents for the harp? And do you find that you converse with more facility in the French? These are interesting questions, and your answer to this will, I hope, answer fully, all the questions it contains. Vale, vale.

**A. BURR**

TO THEODOSIA,

Albany, 16th August, 1704.

Another post has arrived, and brought me no letter from you. It is the last omission which I shall readily pardon, and this only in consideration of your not having then received my last. I returned this day from Ballston, and my principal business to this city was to receive and answer your letters. Judge, therefore, of my disappointment.

Mr. and Mrs. Witbeck made many inquiries about you, and appeared much mortified that you did not accompany me.

I hope you will, before this can reach you, have answered J. Yates's letter. Once more I place my expectations on the arrival of the next post.

Let me know whether Mrs. Penn has left town, how often you have been with her, and what passed. I need not repeat my anxiety to know how you and Madame de S. agree, and what progress you make in music, dancing, and speaking French. She promised to give you now and then a lesson on the forte-piano; is she as good as her word?

Having failed in your promise to write by every post, you cannot expect me to return within the month—one promise being founded on the other.

Your affectionate papa,

**A. BURR.**

**TO THEODOSIA.**

Albany, 18th August, 1794.

Yesterday I received your letter and journal to the 13th inclusive. On the 13th you say you got nine pages in Lucian. It was, to be sure, a most surprising lesson. I suspect it must have been the second time going over; and even then it would have been great, and at the same rate you will be through a second time before my month is up. I should be delighted to find it so. I have not told you directly that I should stay longer than a month, but I was angry enough with you to stay three months when you neglected to write to me for two successive posts.

I am very sorry to see so many blank days with Mr. Leshlie. If he is not at your room within a quarter of an hour of his time, Cesar should be forthwith sent off express for him. Let Cesar, therefore, call on you every morning at the hour Mr. Leshlie ought to come.

I left New-York on the 28th of July. My month, therefore, will expire on the 28th of August, so that you cannot complain until that day is past. The court at Troy will probably detain me the whole of this week, which is three days longer than I expected.

I long to hear what you contributed towards Madame de S.'s *jour de fête*. No letter yet for John Yates. Why do you delay it so long? You have had several leisure days; for this delay there should be some apology in your letter.

Affectionately your papa,

**A. BURR.**

TO THEODOSIA.

Troy, 21st August, 1794.

**MY DEAR THEO.,**

I sent Alexis in the rain to Albany for your letter of the 18th and journal, which he has just brought me. Your letters are my only consolation during this afflicting absence—for it is to me a real affliction. I have forborne to express to you my impatience, lest it should increase yours.

The business I have undertaken here will, contrary to all expectation, detain me till Saturday night. I hope to be on my return on Monday, when you must begin to pray for northerly winds; or, if you have learned, to say mass, that the French Roman Catholics rely on to procure them all earthly and spiritual blessings. By-the-by, if you have not been to the Roman chapel, I insist that you go next Sunday, if you are not engaged in some other party.

I am very happy to receive a letter for John Yates. I shall send it to him to-day; it is very handsome, and will please him much. I will indeed return with all possible speed. Continue your journal. Adieu.

**A. BURR.**

TO THEODOSIA.

Philadelphia, 21st December, 1794.

I obeyed faithfully the command in your letter which bade me read the journal first, and I read it with great eagerness, hoping to find what I did find in the last sentence. That 16th was really a surprising day. Three hundred and ninety-five lines, all your exercises, and all your music. Go on, my dear girl, and you will become all that I wish.

I keep carefully your letters and journals, and when we meet you shall read them again, which I am sure you will do with pleasure. It is always delightful to see and correct our own errors.

Monsieur Maupertuis is highly mortified that you should suppose him so ignorant as to have lost himself on the road. It seems he only went a little off the highway *from curiosity to see the country*.



I hope you like Terence. Can't you lug a scrap from him now and then, apropos, into your letters? It will please

Your affectionate papa,

A. BURR.

## TO THEODOSIA IN PHILADELPHIA.

New-York, 5th January, 1795.

You see me safe arrived in New-York. I have passed but one hour at Richmond Hill. It seems solitary and undesirable without you. They are all well, and much, very much disappointed that you did not come with me.

Pray write to Mrs. A., if but one line; she expects and deserves it. I was there last evening for the first time. Your picture is really like you; still it does not quite please me. It has a *pensive, sentimental* air; that of a love-sick maid! Stewart has probably meant to anticipate what you may be at sixteen; but even in that I think he has missed it.

Bartow has grown immensely fat. Mrs. A. has recovered and walks about. There has been a serious attempt to institute masquerade. It has not succeeded, nor is it yet abandoned.

We (you and I) have both neglected one duty of civility. Some weeks ago Mrs. Jackson was polite enough to call on you, with Miss Jackson and Miss Brown, who left you cards. You have never returned the visit. I beg you to do it without delay. Doctor Edwards will probably make time to go with you for a few minutes. It is at Doctor Jackson's in Third-street, between High and Arch.

Our house in Partition-street is very neatly finished, and pleases me much; so much that I propose to inhabit it upon our return from Philadelphia, at least until the hot weather.

You are now in the arms of Somnus, or ought to be; for though I date my letter the 5th, it is in truth about half past eleven at night of the 4th. So wants half an hour of the 5th. Dream on. *Salutem*.

**A. BURR.**

TO THEODOSIA.

Bristol, 14th September, 1795.

Saturday night I lodged at Elizabethtown, and, after two wettings, dined on Sunday with General Freelinghuysen. Madame (late Miss Yard) asked much after you, as did Maria, the general's daughter. The family is a picture of cheerfulness and happiness. At Princeton (to-day) I met Le Mercier, who is well, except a broken scull, a face disfigured, and some bruises about the ribs—considerable deductions, you will say, from the "corpore sano." They are the effects of a very huge beating bestowed on him (gratis) by two gentlemen of the town. He had some difference with one of them, who had challenged him, which Le Mercier refused, not being a Christian-like and clerical way of settling differences. So the challenger, with a friend (for L. M. could have thrashed him singly), took an opportunity to catch poor Le Mercier alone, and discussed the subject with him in the manner above stated.

Your friends Miss Stockton and Miss Smith said some civil things about you, and send abundance of love, which I promised them I would forget to deliver.

My journey thus far has been wonderfully fortunate, having only oversight once and broken down once, which, considering that I am seventy miles on my route, is, for me, a very small list of grievances; but I shall count it full measure if I am prevented from entering Philadelphia to-morrow, which is a little to be apprehended.

You must pay off Meance and Hewlet for their attendance on you and Natalie. [5] They must be paid regularly at the end of each month. I forgot it. Get their accounts, and give them an order on Strong for the amount. When either of you want money, Roger Strong will furnish it. Pray settle also your account with Madame Senat, and write me that these things are done.

Tell Mr. Martel that I request that all the time he can spare you be devoted to Latin; that I have provided you with a teacher of French, that no part of his attention might be taken off. I will send from Philadelphia the certificate he requested, which escaped my memory while at New-York.

I fear it will puzzle you all to decipher this. You may show to Mr. Martel the clause which relates to him. Saludem, chère Theodosia.

**A. BURR.**

TO THEODOSIA.

Philadelphia, 17th September, 1795.

By this post I received a letter from Colonel Ward, requesting leave to remove his family into my house, Richmond Hill. He lives, you may recollect, in the part of the town which is said to be sickly. I could not therefore refuse. He will call on you to go out with him. You had better,

immediately on receipt of this, go out yourself, and apprise Anthony and Peggy.

Your letter to Kersaint is much to the purpose. It came by this day's mail, though put in the postoffice on Tuesday, but after the closing of the mail. With it I have also received your letter, written, I suppose, on Tuesday evening, because it speaks of the circus; but, as usual, without date. I beg that, when you sit down to write a letter, you will begin by putting a date at the top; this will then presently become a habit, and will never be omitted.

I am sorry, very sorry that you are obliged to submit to some reproof. Indeed, I fear that your want of attention and politeness, and your awkward postures, require it. As you appear desirous to get rid of these bad habits, I hope you will soon afford no room for ill-nature itself to find fault with you—I mean in these particulars; for as to what regards your heart and your motives of action, I know them to be good, amiable, and pure. But to return to the subject of manners, &c. I have often seen Madame at table, and other situations, pay you the utmost attention; offer you twenty civilities, while you appeared scarcely sensible that she was speaking to you; or, at the most, replied with a cold *remercie*, without even a look of satisfaction or complacency. A moment's reflection will convince you that this conduct will be naturally construed into arrogance; as if you thought that all attention was *due* to you, and as if you felt above showing the least to anybody. I know that you abhor such sentiments, and that you are incapable of being actuated by them. Yet you expose yourself to the censure without intending or knowing it. I believe you will in future avoid it. Observe how Natalie replies to the smallest civility which is offered to her.

Your habit of stooping and bringing your shoulders forward on to your breast not only disfigures you, but is alarming on account of the injury to your health. The continuance in this vile habit will certainly produce a

consumption: then farewell papa; farewell pleasure; farewell life! This is no exaggeration; no fiction to excite your apprehensions. But, setting aside this distressing consideration, I am astonished that you have no more pride in your appearance. You will certainly stint your growth and disfigure your person.

Receive with calmness every reproof, whether made kindly or unkindly; whether just or unjust. Consider within yourself whether there has been no cause for it. If it has been groundless and unjust, nevertheless bear it with composure, and even with complacency. Remember that one in the situation of Madame has a thousand things to fret the temper; and you know that one out of humour, for any cause whatever, is apt to vent it on every person that happens to be in the way. We must learn to bear these things; and, let me tell you, that you will always feel much better, much happier, for having borne with serenity the spleen of any one, than if you had returned spleen for spleen.

You will, I am sure, my dear Theodosia, pardon two such grave pages from one who loves you, and whose happiness depends very much on yours. Read it over twice. Make me no promises on the subject. On my return, I shall see in half an hour whether what I have written has been well or ill received. If well, it will have produced an effect. I have sent Alexis with your letter to Kersaint while I write this. After closing of the mail I shall present myself. To-morrow morning I take stage for Baltimore; thence to Washington, &c. You shall certainly hear often from me. You have not yet acknowledged the receipt of my letter from Bristol. R. Strong has received his, written at the same time. Having many letters to answer by this mail, I cannot add any thing sprightly to this dull letter. One dull thing you will hear me repeat without disgust, that I am your affectionate friend,

**A. BURR**

## TO THEODOSIA.

City of Washington, 23d September, 1795.

I write from the house of our friends, Law and Duncanson, where I make my home. Miss Duncanson, who is mistress of the house, is a very sprightly, sensible, ladylike woman. My remarks on this city are reserved till we meet.

Your letter of the 17th, and one without date (I suppose the 18th), came in this evening. They contain more wit and sprightliness than you ever wrote in the same compass, and have amused me exceedingly. But why do you diminish their value by carelessness? There is an omission of one or more words in almost every sentence. At least I entreat you to read over your letters before you seal them: some clauses are absolutely unintelligible, though in several I can guess what word you intended.

Why are you still in town? I am very much dissatisfied with it; for Mr. Strong writes me that the fever is in Partition-street. I beg you to go off with a good parcel of books to Frederick's.

I told Madame Senat that I should want the two front rooms in Partition-street, and the very small room which adjoins the smallest of the front rooms; and surely she will have room enough without it. Try to arrange this so; that is, by asking her if she cannot spare that room (the large front). Mr. Strong writes me that she is taking possession of it. In that case my papers will be moved, which will be very disagreeable to me.

I fix the 24th of October for my return; if any very extraordinary thing should detain me, you shall be advised of it seasonably. Direct to me at the city of Washington until the 10th of October. Tell R. Strong the same. I forgot to write it to him.

When, you go on any party from Pelham, to Brown's Mrs. Cox's, &c., your studies may be intermitted. At least as much of them as may be necessary. I am tired, and half sick; a great cold, for which I shall lie by here tomorrow.

Thine,

A. BURR.

TO THEODOSIA.

City of Washington,

26th September, 1795.

Since Tuesday last I have been here much against my will; arrested by high command; performing quarantine by authority not to be questioned or controverted. In plain English, I am sick. On Wednesday I found one side of my face as large as your uncle F.'s; red swollen eyes; ears buzzing and almost stopped; throat so closed as to refuse a passage to words out or food in; and a stupid mazy-headedness, well adapted to the brilliancy of my figure. Being the guest of my friends Law and Duncanson, I receive from them the most distressing attentions, but especially from Miss Duncanson, a well-bred, sprightly, and agreeable woman. My person had not, however, till this morning, received its last embellishment. Alexis came in at his usual hour, and presenting himself at my bedside, after staring at me for half a minute, exclaimed, with an air of great astonishment—*Diable!* and not a word more. *Qu'a-t-il*, Alexis? To which he made not a word of reply, but fell to drawing up the curtains; and having also very deliberately opened the window-shutters, he returned again to his examination. After gazing for some time (which I found it useless to interrupt), he *diabled* two or three

times at intervals of some seconds, and then pronounced that I had *ou la petite vérole ou la rougeole*; and to convince me, brought a glass. In truth he did not *diable* without reason, for my whole face, neck, hands, and arms are most bountifully covered with something like the measles or rash. All these pleasant appearances seem to be the effects of a great cold, taken I know not when or how—

*"Nil illi larva aut tragicis upus esse cothurnis."*

My throat is something better, notwithstanding I went abroad yesterday.

Sunday, 27th September.

I am so much better to-day, that, if the weather was good, I should prosecute my journey if I could find the means of getting on; but the rain, which is continual and very heavy, keeps well and sick within doors.

It is now ten days since I have heard from you; a very long time, considering the situation in which you was left at the date of your last: in a city infected with a mortal and contagious fever. I hope, nay, I persuade myself that you obeyed my wishes by escaping from it to Pelham. The next mail will tell me, and, I trust, relieve me from an anxiety which pursues me day and night.

Monday, 28th September.

Your letter of the 21st, written, I suppose, at Dr. Brown's, is just come in, and relieves me from a weight of anxiety about your health. I am sorry, however (very sorry), that you are not at Frederick's, and am not absolutely either pleased or satisfied with the change.

Of attention and tenderness you will receive not only enough, but a great deal too much; and an indulgence to every inattention, awkward habit, and



expression, which may lead you to imagine them to be so many ornaments: as to your language, I shall expect to find it perfectly infantine. As to studies or lessons, I do not know which of them you allude to, as you do not say what books you have taken up. If Mr. Leshlie is your *only* master, as I suppose, your lesson must be larger than ever heretofore. Your translation of the comedy into French, if not finished, must go on; and if finished, something similar must be taken up. Some English or French history must employ a little of every day. I hope you will ride on horseback daily if the weather should permit—Sam [6] always with you. Visit your neighbours B. B. as often as you please, taking very great care not to surfeit the family with your charming company, which may happen much sooner than you would be inclined to believe.

You ought to be out of the Odyssey before this will reach you, counting only two hundred lines a day since we parted. You may begin the Iliad, if you please. Since you are at uncle B.'s, I will not now pretend to inquire into the motives, much less to censure. I have no doubt but you meant to do the best, and I now hope you will endeavour to make the best *of* it, and bad enough that will be, with respect to all improvement, if I am not disappointed.

Pray allot an hour for your journal, and never let it be a day in arrear. I shall consider this as occupying usefully the hour which used to be Hewlet's or Meance's. At any rate, let me not, on my return, have occasion to apply to you the motto,

"Strenua me exercet inertia,"

nor that other of

"Operose nihil agit."

But so improve your time that you may with pleasure review and commit it to journal.

———"Hoc est, Vivere bis, vitâ priori frui."

And let it, at no very distant period, be said of you,

"Tot, tibi, sunt, ergo dotes, quot sidera coelo."

If you should never deserve this, it shall not be the fault of

**A. BURR.**

## TO THEODOSIA IN PHILADELPHIA.

New-York, 8th February, 1796.

What will you think of the taste of New-York when I shall tell you that Miss Broadhurst is not very generally admired here? Such is the fact. I have contributed my feeble efforts to correct this opinion. Mat's [7] child will not be christened until you shall be pleased to indicate the time, place, manner, and name.

I have promised Tom that he shall take me to Philadelphia if there be sleighing. The poor fellow is almost crazy about it. He is importuning all the gods for snow, but as yet they don't appear to listen to him.

Your being in the ballette charms me. If you are to practise on Wednesday evening, do not stay away for the expectation of receiving me. If you should be at the ballette, I will go forthwith to see you. Adieu, chère fille.

A. Burr.

TO THEODOSIA.

Philadelphia, 16th January, 1797.

When I write to you oftener than your turn, you must not let it be known, or there will be jealousy. Your two letters of the 11th and 13th have so much wit, sprightliness, and good sense, that I cannot delay to tell you how much they pleased me. Go on, and you will write better than Cynthia herself. To aid your advances towards perfection, I shall often point out such errors as shall appear to me more particularly to claim your attention.

At present you fail most in punctuation. A very little thought will teach where the sense is complete and a full period is proper. The lesser pauses may be found by reading over two or three times what you may have written. You will naturally make small pauses where the sense shall require it. In spelling you are very well. Always write your name with great care. Adieu.

A. Burr.

TO THEODOSIA.

Philadelphia, 23d January, 1797.

You must not "puzzle all day," my dear little girl, at one hard lesson. After puzzling faithfully one hour, apply to your arithmetic, and do enough to convince the doctor that you have not been idle. Neither must you be

discouraged by one unlucky day. The doctor is a very reasonable man, and makes all due allowance for the levities as well as for the stupidity of children. I think you will not often challenge his indulgence on either score.

And do you regret that you are not also a woman? That you are not numbered in that galaxy of beauty which adorns an assembly-room? Coquetting for admiration and attracting flattery? No. I answer with confidence. You feel that you are maturing for solid friendship. The friends you gain you will never lose; and no one, I think, will dare to insult your understanding by such compliments as are most graciously received by too many of your sex.

How unpardonably you neglect C. and N. B. Where are the promised letters? I see with delight that you improve in diction, and in the combination and arrangement of your little ideas. With a view to farther improvement, your letters to me are a most useful exercise. I feel persuaded that all my hopes and wishes concerning you will be accomplished.

Never use a word which does not fully express your thoughts, or which, for any other reason, does not please you. Hunt your dictionary till you find one. Arrange a whole sentence in your mind before you write a word of it; and, whatever may be your "hurry" (never be in a *hurry*), read over your letter slowly and carefully before you seal it. Interline and erase lightly with your pen what may appear to you to require amendment or correction. I dispense with your copying unless the letter should be much defaced, in which case keep it till the next mail. Copy and improve it.

Your play on "Light" is pretty and witty, and the turn on the *dear little* letter does not dishonour the metempsychosis of Madame Dacier.

I shall probably see you very soon; we will then rearrange your hours, and endeavour to remove the present and forestall all future troubles. I

should be mortified—I should be almost offended—if I should find that you passed over any word in my letters without becoming perfectly acquainted with its meaning, use, and *etymology*.

Since I commenced this letter, yours of the 21st has come in. It speaks of another which has not come, and of Martel's paper, neither of which have come. This arises from "hurry." The note to Mr. Livingston is middling. Affectionately—no, you hate that word; perhaps every thing is implied in plain.

A. BURR.

TO THEODOSIA.

Albany, 4th January, 1799.

On Tuesday I arrived here, and yesterday received your two letters of the 29th and 30th of December. Your despondency distresses me extremely. It is indeed unfortunate, my dear Theodosia, that we are constrained to be separated. I had never so much need of your society and friendship, nor you, perhaps, of mine. It is a misfortune which I sincerely regret every hour of the day. It is one, however, which you must aid me to support, by testifying that you can support your share of it with firmness and activity. An effort made with decision will convince you that you are able to accomplish all I wish and all you desire. Determination and perseverance in every laudable undertaking is the great point of difference between the silly and the wise. It is essentially a part of your character, and requires but an effort to bring it into action. The happiness of my life depends on your exertions; for what else, for whom else do I live? Not that the acquisition of the languages alone can decide your happiness or mine; but if you should

abandon the attempt, or despair of success, or relax your endeavours, it would indicate a feebleness of character which would dishearten me exceedingly. It is for my sake that you now labour. I shall acknowledge your advancement with gratitude and with the most lively pleasure. Let me entreat you not to be discouraged. I know you to be capable of much greater efforts than this will require. If your young teacher, after a week's trial, should not suit you, dismiss him on any pretence without wounding his pride, and take the old Scotchman. Resolve to succeed, and you cannot fail.

I parted with you amid so much hurry and confusion, and so many vexations, that, when I had time to reflect, I seemed to have said none of the things which I had wished and intended. I reproached myself perpetually that I had not urged you to attend me. Your letters almost confirmed me in the design of returning to fetch you; and yet more sober reason seems to tell me that these things were rather the effusions of sentiment than of a deliberate estimate of your real interests. In six weeks, however, we shall meet.

I intended to have recommended to you the ancient and modern history of Millot. Natalie has some of the volumes—some are in the library at Mrs. D.'s, of which I hope you keep the key. Millot is concise, perspicuous, and well selected. Rollin is full of tedious details and superstitious nonsense.

There is nothing more certain than that you may form what countenance you please. An open, serene, intelligent countenance, a little brightened by cheerfulness, not wrought into smiles or simpers, will presently become familiar and grow into habit. A year will with certainty accomplish it. Your physiognomy has naturally much of benevolence, and it will cost you some labour (which you may well spare) to eradicate it. Avoid, for ever avoid, a smile or sneer of contempt; never even mimic them. A frown of sullenness or discontent is but one degree less hateful. You seem to require these things

of me, or I should have thought them unnecessary. I see, with pleasure I see, that you have engaged in this matter. We shall both be gratified by the result, which cannot fail to accord with our wishes.

R. has a deal of godly coquetry. It makes a strange medley. I was most hospitably received, and full opportunity given with pretty apparent design. R. has promised to be in Albany in a month. Things are in *statu quo*.

I am unsettled, and at present at Witbeck's. One would think that the town was going into mourning for your absence. I am perpetually stopped in the streets by little and big girls. Where is Miss Burr? Won't she come up this winter? Oh, why didn't you bring her? &c.

J. B. P. arrived yesterday, he has not given me a letter, or any other thing from you. He suspects, however, that he has at least a letter; a fact which he will endeavour to ascertain in the course of this week. I wrote you two letters on my way up, addressed to 135 Greenwich-street. Is that right? Adieu, chère amie,

**A. BURR.**

TO THEODOSIA.

Albany, 11th February, 1799.

On Saturday, the 9th, I received Your two letters, from the 1st to the 6th inclusive; the last of which is the only one that has come in due season, or in what is termed the course of post. You now see that a letter can come from New-York in three days; a truth which has been frequently verified by the receipt of my letters, but never before by the despatch of your own.

How very perverse and provoking you are about your correspondence with Mr. Martin. I told you expressly that he was not angry, but, on the contrary, that he sent it laughingly and as a good joke. Pray, from whom did you learn that he was angry? You charge me with not noticing two of your letters, and that I have not given you any directions about heedlessness. With submission, miss, you are mistaken. It is true that I have not repeated the word, but I have intimated several things intended to this point. You expected, I presume, that I should treat the subject scientifically, as Duport does his art, and begin by explanation of terms, and then proceed to divide and subdivide the matter, as a priest does a sermon. Such a dose would, I am sure, have sickened you. I have therefore thought it best to give you very little at a time, and watch, as physicians do with potent medicines, the effect produced. When we meet, which I verily believe will be in five or six days after the receipt of this, you shall have as much as I shall find your stomach will bear.

What the deuse can have got into Madame S. and N., I am utterly at a loss to conjecture, and beg you not to give the remotest hint, but meet them as usual.

My overtures to B. Livingston and Mr. and Mrs. R. were mere volunteers, not produced by any thing you said or wrote; but I thought it might tend to produce a certain effect in your favour. So you have no apologies to make or pardons to ask on this subject. As this, however, is much the best composed part of your letter, I am particularly obliged to you for it, even if you did it to display your eloquence. It is, indeed, very happily expressed.

You seem to have emerged from your lethargy, which, I must confess, was obvious to an alarming degree in several preceding letters. I



congratulate you upon it, and hope you will never suffer it again to invade your faculties.

We will talk of houses, &c. about the 19th inst. Henry Walton has gone to New-York by the last stage. He is one of those whose good opinion and esteem I wish you to acquire. He has delicacy, taste, and refinement—very, very rare qualities in this country at this day. He will be often at your house; receive him with courtesy.

I go to bed between 12 and 1, and rise between 7 and 8. For some reasons to me unknown, I cannot drink a single glass of wine without serious injury; still less can I bear ardent spirits; of course, I am pretty much in the bread and water line; this is the more provoking, as I dine out almost every day, and the dinners are really excellent and well-dressed, not exceeded in New-York. I have dined at home but four days since my arrival in this city. Think of that Miss B., and be hush about hospitality, &c.

Your name to one letter is beautifully written; to the other, *la la*. The handwriting of the letters various; very good, very bad, and middling; emblematic, shall I say, of the fair authoress? Please to resolve me whether author is not of both genders, for I hate the appendix of *ess*?

What novel of Miss Burney or D'Arblay is that in which the heroine begins by an interesting account of little details on her début in London, and particularly of a ball where she met Lord Somebody and did twenty ridiculous things? I want such a description of a ball from you. Be pleased to read those first letters of the novel referred to, and take them for a model.

You don't say half enough about the long letter which I wrote you on Sunday of the last week. Adieu, chère amie.

**A. BURR.**

## TO THEODOSIA.

Albany, 26th January, 1800.

We arrived yesterday without accident. To-day I expected Alexis and John; but the stage has arrived without them, and without a line explanatory of the cause of their delay.

On alighting from the stage yesterday, I found at the door of my intended lodgings a number of persons who were impatiently expecting my arrival. I perceive that I shall be day and night engrossed by business. If I should write to you less or less often than usual, you will know the cause.

The ideas, of which you are the object, that daily pass through my mind, would, if committed to writing, fill an octavo volume; invent, then, and teach me some mode of writing with the facility and rapidity that we think, and you shall receive by every mail some hundred pages. But to select from a thousand thoughts that which is best and most seasonable; of the variety of attitudes of which every object is susceptible, to determine on that which is most suitable for the thing and the occasion; of all possible modes of expression and language, to discern the most appropriate, *hic labor, hoc opus est*. Yet have we both known persons of a moderate grade of intellect who could write whenever you would put a pen in their hands, and for any length of time you might please, without one moment of reflection or embarrassment. Pray explain to me this phenomenon. All this I confess is not very applicable to you or to my present occupation, for I generally write you what first offers, without considering whether it be the best; and if many obtrude themselves at once, I write you, as at present, of—*nothing*. Indeed, my dear Theodosia, I have many, many moments of solicitude about you. Remember that occupation will infallibly expel the fiend ennui, and that solitude is the bug-bear of fools. God bless and aid thee.

A. BURR

TO THEODOSIA.

Albany, 30th January, 1800.

At length John and Alexis have arrived; but what gratified me more, and what I looked for with much more impatience was, a letter. I selected yours from the number which they brought me. I was not disappointed. It merits all the eagerness with which I had expected it.

You reflect, and that is a security for your conduct. Our most humiliating errors proceed usually from inattention, and from that mental dissipation which we call heedlessness. You estimate your situation with great truth. Many are surprised that I could repose in you so great a trust as that of yourself; but I knew that you were equal to it, and I am not deceived.

You do right to stay much at home. It will scarcely be worth while to go to V. P.'s. C. is excluded from all rule. I am quite oppressed with the kindness and friendship of *b. b.* towards you. How fortunate you are in such a friend. If their invitations should be so frequent as to interrupt your lessons, you will do well to refuse even them. There is a measure to be observed in the acceptance of the good offices even of our best friends; and at your age, to prefer duty to pleasure when they are in collision, is a degree of firmness rarely exhibited, and, therefore, the more calculated to inspire respect. I perceive that I am not very explicit; but you will reflect and discern my meaning. Montesquieu said he wrote to make people think, and not to make them read—and why may not A. Br. Perhaps, however, there may be no collisions; and then your good sense will teach you not to wear out good-will.

You indicate a very pleasant mode in which you suppose I may make you happy; but you do not estimate things rightly. What you imagine to be symptoms of love are the mere effusions of politeness, added to respect and esteem.

I forget the plan we projected, but there can be no better one than that of your last letter, to which, therefore, you may adhere, unless indeed you can invent a better.

You may tell C. that as she and I *are on ceremony*, I shall expect the first letter. She knows well that the bare sight of her handwriting would drive Le Guen and the parchments to the antipodes. I do thank you for your constancy about the French ball. Do not be alarmed lest I expect too much. I know your force, and now feel assured that I shall have reason to be more than satisfied both with your discretion and your attainments. I shall not again find time to write you two pages; so do not expect it. Nevertheless, you will engross much, very much of the thoughts and affections of

#### **A. BURR**

Previous to the year 1800, slavery existed in the State of New-York. Colonel Burr, at different periods, was the owner of slaves. All those that remained in his family for any length of time were taught to read and write. During his absence from home it was his practice to correspond with one or more of them. As a master, he was beloved. A few letters are here given as specimens of this correspondence. They are copied *literally*.

TO COLONEL BURR.

New-York, 3d December.

**HONOURED MASTER,**

I received your letter December 1st, and we are all happy to hear that you are well. Harry has taken the chair to the coachmaker's, and has gave him directions according to your orders. I have asked James to write to you to know how the venison was to be done; but I will now have it cured as you have ordered. The sashes of the windows were nailed down the day that you went away, and the ladder that you mention belongs to Mr. Halsey, and he has taken it away. All the papers that have any writing on is put into the drawers, and I will take care of the ink that it does not freeze. Colonel Platt was here, and has taken the four red cases that was in the wine-room; and he asked me for a square box, and as you had not told me of it, I said that I had never seen it. There is nothing in the stable; but don't know what is in Sam's room, as he has locked the door. We are happy to hear that Sam, and George, and the horses are in good order, and all the family gives their love to them.

**PEGGY GARTIN.**

**TO COLONEL BURR.**

New-York, 17th December.

**HONOURED MASTER,**

I received your letter, and am happy to hear that you are in a good state of health. Harry went to Mr. Alston's farm the day after I received the letter, and the man had gone away the 11th day of December. Stephen was not at home when he went there, and by what he could understand there was a great difference between Daniel and Stephen; and Harry says that for the time that he has been there he had not neglected his work. But, master, I

wish to beg a favour of you; please to grant it. I have found there is a day-school, kept by an elderly man and his wife, near to our house, and if master is willing that I should go to it for two months, I think it would be of great service to me, and at the same time I will not neglect my work in the house, if you please, sir.

**PEGGY.**

**TO COLONEL BURR.**

New-York, 29th December.

**HONOURED MASTER,**

I received your letter, which has given me no satisfaction concerning your health; and as there has been a report in the paper that you was wounded, it has made us very uneasy, supposing it to be true; but I hope that it is not so, as I hear that people gives no credit to it. I go to the school, since master is willing, and I like the teacher very much. He pays great attention to my learning, and I have teached Nancy her letters ever since you have been gone, which I think will be of as much service to her as if she went to school. We are all well at present, and I hope that you are the same.

**PEGGY.**

**TO COLONEL BURR.** New-York, 12th January.

**HONOURED MASTER,**

I have received your letter of the 4th inst., and it gives us great happiness to hear that you are in good health, as all the family are except myself. I was taken sick on the 30th of last month, so that I have not been able to go to school; and as I am better than I have been, to write these few lines; I am too weak to write Mrs. Alston, but Elenora's child is well. The woman came here the 7th of this month for the money, and Harry went to Mrs. Van Ness the 9th, and she said that Mr. Van Ness did not tell her any thing of it, and she could not give it.

**PEGGY.**

Footnotes:

1. Theodosia's preceptor.

2. A coloured boy.

3. A coloured man, the slave of Colonel Burr.

4. Theodosia had now entered her *twelfth* year.

5. Natalie De Lage was the daughter of a French lady, who was once a member of the family of the Princess L'Ambaul. Natalie was adopted and educated by Colonel Burr as his child. She married the son of General Sumter, of South Carolina.

6. A slave of Colonel Burr's.

7. A servant of Colonel Burr.

## CHAPTER XVIII.

The preceding correspondence not only introduces the reader into the social circle of Colonel Burr, but into the bosom of his family. It develops his character, so far as the most sacred and confidential communications can develop it—as a friend—a husband—a parent—and a master. We are approaching a period, however, in his history when the scene is to be changed. In the spring of 1794 Mrs. Burr died; and in 1801 his daughter was married, and removed to South Carolina. Thus terminated, in a great measure, all those domestic relations and enjoyments which had afforded him so much pleasure, and connected with which he had indulged the best feelings of his heart.

Colonel Burr was a member of the Senate of the United States from the 4th of March, 1791, until the 4th of March, 1797. During this period he continued to practise the law. He was in that class of his profession to which belonged a Hamilton, a Harrison, and a Livingston. The partiality of some of his friends may have placed him at the head of the bar. His opponents ranked him second *only* to their particular favourite. As a speaker, Colonel Burr was calm and persuasive. He was most remarkable for the power which he possessed of condensation. His appeals, whether to a court or a jury, were sententious and lucid. His speeches, generally, were argumentative, short, and pithy. No flights of fancy, no metaphors, no parade of impassioned sentences, are to be found in them. When employed



on the same side of a cause with General Hamilton, it was his uniform practice to permit that gentleman to select his own place in the cause.

It has often been remarked that Colonel Burr's character could not be better drawn than it is in a short sketch of his father, by Governor Livingston. "Though a person" (says the governor) "of a slender and delicate make, to encounter fatigue he has a heart of steel; and, for the despatch of business, the most amazing talents, joined to a constancy of mind that ensures success in spite of every obstacle. As long as an enterprise appears not absolutely impossible, he knows no discouragement; but, in proportion to its difficulty, augments his diligence; and, by an insuperable fortitude, frequently accomplishes what his friends and acquaintance conceive utterly impracticable."

In the year 1793 Albert Gallatin was appointed a senator of the United States by the State of Pennsylvania. On claiming his seat in January, 1794, a petition was presented against his admission into that body, on the ground that he had not been a citizen the requisite number of years. The subject was referred to a committee of seven. Their report elicited a warm debate, which continued for several days. Colonel Burr took an active part, and greatly distinguished himself in support of Mr. Gallatin's claim. His colleague, Mr. King, had taken the lead against the right of Mr. Gallatin to a seat. John Taylor, of Caroline, Virginia, addressed a note to Colonel Burr, in which he says—"We shall leave you to reply to King: *first*, because you desired it; *second*, all depends upon it; no one else *can* do it, and the audience will expect it."

On the 28th of February, 1794, the Senate "*Resolved*, That the election of Albert Gallatin to be a senator of the United States was void, he not having been a citizen of the United States the term of years required as a qualification to be a senator of the United States."—Ays 14, nays 12.

On the 20th of February, 1794, the Senate adopted a resolution, declaring that their galleries, at the commencement of the next session, should be opened while the Senate were "engaged in their legislative capacity." For this, or a similar resolution, Colonel Burr had voted at every previous session since he had been a member.

His personal respect for John Jay has been heretofore mentioned; but on no occasion did he permit such feelings to interfere with his political acts, when called upon to perform a public duty. On the 16th of April, 1794, the president nominated John Jay, then chief-justice of the United States, as envoy extraordinary to Great Britain. On the 19th, when the nomination was called up for consideration, Mr. Burr offered the following resolutions —

*"Resolved, That any communications to be made to the court of Great Britain may be made through our minister now at that court with equal facility and effect, and at much less expense, than by an envoy extraordinary; and that such an appointment is at present inexpedient and unnecessary:*

*"That to permit judges of the Supreme Court to hold, at the same time, any other office or employment emanating from, and holden at the pleasure of, the executive, is contrary to the spirit of the constitution; and, as tending to expose them to the influence of the executive, is mischievous and impolitic." Ays 10, nays 17.*

The nomination was then confirmed by a vote of 18 to 8, Mr. Burr voting in the negative. This vote, it was understood at the time, gave pain to Mr. Jay. In a letter to his lady, dated the 20th of April, the judge says — "Yesterday the Senate approved of the nomination by a great majority. *Mr. Burr was among the few who opposed it.*"

About this period the democratic party were highly incensed against the president for continuing Gouverneur Morris as a minister to the French Republic. The Executive Provisory Council had requested his recall. He was considered a monarchist, and hostile to the revolution. Many of the opposition senators had spoken with great freedom of the policy of General Washington in this particular. These remarks having been communicated to the president, he expressed, informally, a willingness to recall Mr. Morris, and to nominate a member of the opposition, if they would designate a suitable person. In consequence of this suggestion, the democratic members of the Senate, and some of the most distinguished members of the House, had a conference, and resolved on recommending Colonel Burr. Mr. Madison, Mr. Monroe, and another member of Congress whose name is not recollected, were delegated to wait on the president and communicate the wishes of the party.

General Washington paused for a few moments, and then remarked, that he had made it a rule of life never to recommend or nominate any person for a high and responsible situation in whose integrity he had not confidence; that, wanting confidence in Colonel Burr, he could not nominate him; but that it would give him great pleasure to meet their wishes if they would designate an individual in whom he could confide. The committee returned and reported the result of their conference. The senators adhered unanimously to their first nomination, and the same delegates waited upon the president and reiterated the adherence of their friends to Colonel Burr. Whereupon General Washington, with some warmth, remarked that his decision was irrevocable; but immediately added, "I will nominate you, Mr. Madison, or you, Mr. Monroe." The former replied that he had long since made up his mind never to leave his country, and respectfully declined the offer. They retired, and reported the result of their second interview. The democratic gentlemen were not less inflexible, and instructed their delegates to say to the president that they would make no

other recommendation. On the third visit they were received by Mr. Randolph, secretary of state, to whom they made the communication, but who considered it indecorous, knowing the president's feelings, to repeat the message.

This incident demonstrates, on the one hand, the strong and unchangeable prejudices of General Washington against Colonel Burr; and on the other, the firm and unbounded confidence reposed in him by the democracy of those days. The anecdote is not related on the authority exclusively of Colonel Burr. It is confirmed by the written statement of a gentleman of high standing, to whom Mr. Monroe repeated all the details. No other selection was made by the opposition senators; but, on the 27th of May, 1794, James Monroe was nominated as Minister Plenipotentiary to the French Republic.

On the 8th of June, 1795, the president submitted to the Senate of the United States the treaty negotiated with Great Britain by John Jay. This question called into operation all the powers of Mr. Burr's mind. He was opposed to it in the form it had been negotiated. His views and opinions may be distinctly understood by comparing the amendments which he proposed with the original treaty. On the 22d June the Senate resumed the consideration of it, whereupon he offered the following resolutions:—

"That the further consideration of the treaty concluded at London the 19th of November, 1794, be postponed, and that it be recommended to the President of the United States to proceed without delay to further friendly negotiation with his Britannic Majesty, in order to effect alterations in the said treaty in the following particulars:—

"That the 9th, 10th, and 24th articles, and so much of the 25th as relates to the shelter or refuge to be given to the armed vessels of states or sovereigns at war with either party, be expunged.

"2d Art. That no privilege or right be allowed to the settlers or traders mentioned in the 2d article, other than those which are secured to them by the treaty of 1783 and existing laws.

"3d. Art. That the 3d article be expunged, or be so modified that the citizens of the United States may have the use of *all* rivers, ports, and places within the territories of his Britannic Majesty in North America, in the same manner as his subjects may have of those of the United States.

"6th Art. That the value of the negroes and other property carried away contrary to the 7th article of the treaty of 1783, *and the loss and damage sustained by the United States by the detention of the posts*, be paid for by the British government—the amount to be ascertained by the commissioners who may be appointed to liquidate the claims of the British creditors.

"12th Art. That what relates to the West India trade, and the provisos and conditions thereof in the 12th article, be expunged, or be rendered much more favourable to the United States, and without any restraint on the exportation, in vessels of the United States, of any articles not the growth, produce, or manufacture of the said islands of his Britannic Majesty.

"15th Art. That no clause be admitted which may restrain the United States from reciprocating benefits by discriminating between foreign nations in their commercial arrangements, or prevent them from increasing the tonnage or other duties on British vessels on terms of reciprocity, or in a stipulated ratio.

"21st Art. That the subjects or citizens of either party be not restrained from accepting commissions in the army or navy of any foreign power."

In 1797, while Colonel Burr was yet a member of the United States Senate, his mind was occupied with the project of a bank, and he conferred with several of his personal friends on the subject. Among others, he wrote the honourable Thomas Morris, who was at the time a member of the state Senate.

TO THOMAS MORRIS.

New-York, 1st February, 1797.

SIR,

I have been informed that the present sheriff of Dutchess either has resigned or will decline a reappointment, and that Platt Smith is among the candidates. I have very little personal acquaintance with Mr. Smith—am not, indeed, certain that I should recognise him if I should meet him; but I have long known him by reputation, and can assure you that he is a man of irreproachable character, of independent property, and much above ordinary in point of intelligence. His connexions are very influential (perhaps the most so) in that county. He is, in short, a man, in my opinion, every way qualified to fill the office. Has always been of your party, and supported Jay's election. He is withal a generous, manly, independent fellow, of that cast which you like; one who will feel sensibly any favours or civilities which may be done him. If you should not be otherwise pledged, you will oblige several of your personal friends by supporting his pretensions.

I have drawn out a plan for a bank, but find that it will require so many explanations that I forbear to send it. I perceive that you are about selling our stock in the funds of the United States. We have already talked over this matter. The more I reflect, the stronger appear the objections. It will

doubtless be urged in favour of an immediate sale, that our funds are in danger of seizure by the United States. This is a mere bugbear. Such a thing will never again be even proposed, and, if proposed, will never receive three votes in the Senate. I hope, therefore, our legislature will not suffer themselves to be precipitated into this sale from any such unfounded apprehensions.

Mr. Belasies, a gentleman, a man of education and fortune, by birth an Englishman, has come out with his family to reside in this country. If he should apply for leave to hold lands in this state, I hope he may be gratified; from the little I have seen, and the much I have heard of him, I am persuaded that he will be a valuable acquisition to any state and to any society. He is no politician.

I return to-morrow to Philadelphia, where I shall remain for this month. May I expect to see you here in the spring? Present me most respectfully to Williamson, and be assured of my esteem and attachment.

**A. BURR.**

In April, 1798, Colonel Burr was elected a member of Assembly for the city and county of New-York by the democratic party. This year was marked with more political virulence than any other year since the independence of the country. It was during the year 1798 that the alien and sedition laws were passed. In the autumn of 1798, Matthew Lyon, then a representative in Congress from Vermont, was indicted for harbouring an intention "to stir up sedition, and to bring the president and government of the United States into contempt," &c. He was convicted, and the sentence was—"Matthew Lyon, it is the pleasure of this court that you be imprisoned four months, pay costs, and a fine of one thousand dollars, and stand committed until the judgment be complied with." This year the celebrated

mission to France, consisting of Messrs. Marshall, Pinckney, and Gerry, excited the attention not only of the American people, but of the civilized world. In short, this year the foundation was laid for the overthrow of federal power in the United States.

In no section of the country was there more political excitement than in New-York. Parties were nearly balanced. There were only two banks in the city; the Bank of New-York, and the branch of the United States Bank. They were charged with being influenced in their discounts by political considerations. At all events, they were under the management and control of federalists; and to counteract their alleged influence, Colonel Burr was anxious for the establishment of a democratic institution. With this view he proposed to obtain a charter for supplying the city with water; and as it was certain that if confined to that particular object the stock would not be subscribed, he caused the application to be made for two millions of dollars, and inserted a clause in that charter, that the "surplus capital might be employed in any way not inconsistent with the laws and constitution of the United States or of the State of New-York." It is under this clause that the Manhattan Company use and exercise all the privileges of a bank. The directors were named in the charter, and a majority of them were of the democratic party.

It has been said that the charter was obtained by trick and management; and that, if suspicion had been entertained by any of the federal members, Colonel Burr could not have got the bill through the legislature. It is due to him, so far as it can be justly done, to rescue his memory from the imputation of having *misrepresented* or *misstated* to any member the object he had in view. The facts in reference to the passage of the charter of the Manhattan Company through the Senate will now be given. The statement is upon authority that cannot be contradicted.



When the bill had passed the Assembly and was sent to the Senate, Colonel Burr, during the hours of business, went into the Senate Chamber, and requested a federal senator (now living) from the western district to move a reference of that bill to a select committee, to report complete, which would supersede the necessity of its going to a committee of the whole. The senator replied, that though he had no objection to make the experiment, yet that he was persuaded the motion would not prevail, because the Senate, not having a press of business before them, uniformly refused thus committing bills to select committees instead of a committee of the whole. Colonel Burr then suggested, that perhaps if the mover would intimate, while on the floor, that the honourable Samuel Jones was contemplated as chairman of that committee, the confidence which the Senate was known to repose in him, and in his uniform attention to every thing relating to the city of New-York, would perhaps induce the Senate on this occasion to depart from its accustomed mode of proceeding. Accordingly the motion was made, and passed without opposition.

The committee named by the honourable Stephen Van Rensselaer, then lieutenant-governor, were Samuel Jones, Ambrose Spencer, and Thomas Morris. It was suggested to one of these gentlemen that the part of the bill authorizing the employment of the surplus capital had better be stricken out of it; in consequence of which that gentleman applied to Colonel Burr for an explanation on this point. Mr. Burr promptly and frankly informed the honourable member, that it not only did authorize, but that it was intended the directors should use the surplus capital in any way they thought expedient and proper. That they might have a bank, an East India Company, or any thing else that they deemed profitable. That the mere supplying the city with water would not, of itself, remunerate the stockholders. Colonel Burr added, that the senator was at liberty to communicate this explanation to other members, and that he had no secrecy on the subject. The bill was subsequently reported by Mr. Jones and passed.

This view of the proceedings of the legislature is sustained by what occurred in the Council of Revision, from the minutes of which an extract has been made.

*"At a meeting of the Council of Revision, held at the City Hall of the City of Albany, on Monday, the 1st of April, 1799.*

"PRESENT—His Excellency the Governor, the Honourable the Chancellor, the Chief Justice, and Judge Benson.

"Mr. Reynolds and Mr. Robbins, from the honourable the Assembly, delivered to the council the bill entitled *An act for the relief of John Lansing*, the bill entitled *An act for supplying the city of New-York with pure and wholesome water*, and the bill entitled *An act to amend the statute of limitation*, and the bill entitled *An act making provision to keep in repair the bridge over Schoharie Creek, at Fort Hunter, in the county of Montgomery*.

"The council proceeded to take the said bills into consideration, and thereupon

*"Resolved*, That the bill entitled *An act for supplying the city of New-York with pure and wholesome water* be committed to the honourable the Chief Justice; that the bill entitled *An act to amend the statute of limitation* be committed to the honourable the Chancellor."

*"At a meeting of the Council of Revision, held at the City Hall of the City of Albany, on Tuesday, the 2d of April, 1799.*

"PRESENT—His Excellency the Governor, the Honourable the Chancellor, the Chief Justice, and Judge Benson.

"The honourable the Chief Justice, to whom was committed the bill entitled *An act for supplying the city of New-York with pure and wholesome water*, reported the following objections, to wit:

"*Because* the bill creates a corporation, with a capital of two millions of dollars, vested with the unusual power to divert its surplus capital to the purchase of public or other stock, *or any other moneyed transactions or operations not inconsistent with the constitution and laws of this state or of the United States*, and which surplus may be applied to the purposes of trade, or any other purpose which the very comprehensive terms in which the clause is conceived may warrant; this, in the opinion of the council as a novel experiment, the result whereof as to its influence on the community must be merely speculative and uncertain, peculiarly requires the application of the policy which has heretofore uniformly obtained, that the powers of corporations relative to their money operations should be of limited instead of perpetual duration."

"The council proceeded to take the preceding objections into consideration, which were overruled; it was thereupon

"*Resolved*, That it does not appear improper to the council that the said bill, entitled *An act for supplying the city of New-York with pure and wholesome water*, should become a law of this state.

"*Ordered*, That the honourable the Chancellor deliver a copy of the preceding resolution, signed by his excellency the Governor, to the honourable the Assembly."

"*State of New-York, Secretary's Office.*

"I certify the preceding to be true extracts from the minutes of the Council of Revision of this state.

(Signed)

"ARCHD. CAMPBELL,

*"Deputy Secretary.*

*"Albany, April 29th, 1836."*

Of the correctness of the above statement, and the fairness of Mr. Burr's conduct in relation to the Manhattan Company, there cannot be the shadow of a doubt; but it is probable that a large portion of the members never attempted to examine into the extent of the powers granted to the Manhattan Company; while another portion considered the project of Colonel Burr, in reference to an East India Company or a bank, as chimerical and visionary. It is, however, evident that no trick or misrepresentation was practised to procure the passage of the bill; unless, indeed, his silence on the floor of the house as to his ulterior views may be so construed. His object was a bank; and when appealed to on this particular point, he admitted the fact. At all other times he remained silent on the subject. When the bill had passed he was lauded by the democratic party for his address, and they rejoiced in his success. Its political effect was considered highly important, as it tended to break down a system of pecuniary favouritism, which was made to operate in support of the party in power.

During the summer of 1799 vague rumours were privately circulated respecting certain transactions of Colonel Burr with the Holland Land Company. It was whispered that a bond, which the company held against him for twenty thousand dollars, had been given up for secret services rendered them. In other circles it was hinted that the compensation was for procuring the passage of a bill through the legislature authorizing aliens to

hold lands, &c. Connected with these rumours, John B. Church, Esq. had spoken with so much freedom as to produce a challenge from Colonel Burr. On the 2d of September, 1799, the parties met at Hoboken, and having exchanged a shot without effect, Mr. Church made the *amende honorable*, and the affair was so satisfactorily adjusted as to restore the social intercourse of these gentlemen. Mr. Church was attended by Abijah Hammond, Esq., and Colonel Burr by Judge Edanus Burke, of South Carolina.

On the ground a most ludicrous incident occurred. Previous to leaving the city of New-York, Colonel Burr presented to Judge Burke his pistol-case. He explained to the Judge that the balls were cast intentionally too small; that chamois leather was cut to the proper size to put round them, but that the leather must be greased (for which purpose grease was placed in the case), or that there would be a difficulty in getting the ball home. After the parties had taken their stand, Colonel Burr noticed the judge hammering the ramrod with a stone, and immediately suspected the cause. When the pistol was handed him by his friend, he drew the ramrod, and ascertained that the ball was not home, and so informed the judge; to which Mr. Burke replied, "I forgot to grease the leather; but you see he is ready, don't keep him waiting; *just take a crack as it is, and I'll grease the next!*" Colonel Burr bowed courteously, but made no reply, and discharged his pistol in the state it had been given to him. The anecdote for some time after was the subject of merriment among those who had heard it.

No explanation was ever given, it is believed, of the transactions between Colonel Burr and the Holland Land Company. It was his practice to let his actions speak for themselves, and to let the world construe them as they pleased. This was a great error, and was the source in after life of much trouble and suffering to him, yet he would not depart from it. A few weeks subsequent to this duel, however, he received from a friend a kind letter,

asking confidentially an explanation of these transactions, to which he replied,

**COLONEL BURR TO ———.**

New-York, 6th October, 1799.

**DEAR SIR,**

I cannot refuse to the manner of your request, nor to the friendly motives which have produced it, to satisfy your inquiries with regard to Witbeck's bond and the Holland Company.

In December, 1795 or 1796, I forget which, I entered into a covenant with the Holland Company for the purchase of one hundred thousand acres of land, at twelve shillings per acre, payable by instalments. The covenant contained a penalty of twenty thousand dollars; as security on my part for this penalty, in case it should become due, I mortgaged to Cazenove, or the Holland Company, twenty thousand acres of land in Presque Isle, being one hundred shares of two hundred acres each in the Population Company, and I assigned to him Thomas L. Witbeck's bond, payable to me, for twenty thousand dollars, as further collateral security.

In the fall of 1797 Cazenove joined with me in a power of attorney to James Wadsworth, then in Europe, for the sale of one hundred thousand acres, and, until the summer or fall of the year following, we had reason to believe that they were or would be sold, which of course would have terminated all questions about the penalty. Some time in the year 1797 or 1798, it was noised in Albany that Thomas L. Witbeck had given a bond for twenty thousand dollars, and his credit at the bank and elsewhere became affected by it. He wrote me often on the subject. In reply, I begged him to

explain that the bond was not for the payment of money, and that, even if it should become forfeited, the twenty thousand acres of Presque Isle lands were alone a sufficient security. Witbeck, however, continued to be uneasy for his credit, and teased me to take up his bond by giving other security. I thought this rather unkind, and did not trouble myself about it. Indeed, I was in hopes that the sale of the land in Europe would have closed the transaction. Not long after this, I think in November last, Cazenove informed me that he had been applied to by Witbeck to change that security, and added that he was willing to change it for one of equal solidity, provided it would not impair his rights.

Witbeck's importunities continued, and he became so very urgent and repeated that I was finally (November last), long after the passing of the alien bill, induced to offer A. I. Frederick Prevost's bond in the place of Witbeck's. Cazenove took time to consider and inquire; and finding, in fact, that Prevost's bond was a much better one than Witbeck's, agreed to take it. Prevost accordingly executed *to me* a bond for twenty thousand dollars, of which Harrison drew a special assignment to the Holland Company. We made a memorandum that this exchange should not vary the rights of the parties (viz., the Holland Company and Aaron Burr), and Thomas L. Witbeck's bond was given up. In this transaction I never suspected that Cazenove imagined that *he* was doing a favour either to me or Thomas L. Witbeck, and I am confident that he never entertained so absurd a belief. It was with great reluctance that I gave Prevost's bond. I had claims on Witbeck which justified me in exposing him to some hazard. Prevost had a family, a clear, independent estate, and did not owe a cent in the world; but he had better nerves than Witbeck, and would not tease me.

About this time we learned that all prospect of selling the land in Europe had failed, and as I never had an expectation of paying except from the land itself, it became necessary to close the transaction. It should be observed,

that soon after my contract with Cazenove he received orders, as he informed me, to sell no more under sixteen shillings (two dollars), and afterward I understood that he had raised the price to twenty shillings. In December last we had several conferences for the purpose of settling this business. I offered to give back the land and cancel the covenants. He talked of the penalty. I replied that he would only recover the damages sustained, which, by his own account, were nothing; for, as the price of the land was raised to twenty shillings, the Holland Company would, by their own estimation, gain one hundred thousand dollars by taking back the land. He appeared to feel the unreasonableness of his demand, and finally evaded my proposal by questioning his own authority. This I considered as a pretence; some irritation ensued, and we parted without concluding any thing.

Thus the matter remained until May last (1799), when our negotiations were renewed. After various overtures and propositions on either side, it was at length agreed that I should convey to the Holland Company, absolutely, the twenty thousand acres Presque Isle lands. That this should be received in discharge of the advances that Cazenove had made thereon, and in full satisfaction of all damages claimed on the covenants; and that thereupon the covenants should be cancelled, the bond of I. A. Frederick Prevost be given up, and the Holland Company take back their lands. This was accordingly done a few days before Cazenove sailed for Europe, which was, I think, in June last.

I should have noted, that about the year 1792 or 1793, I became jointly concerned with the Holland Company and sundry individuals in the purchase from the State of Pennsylvania of the whole Presque Isle angle, and of other lands adjoining to the amount of a million of acres. The association was called the Population Company, and was under the management of directors, who had a right to assess on the proprietors or associates any sums they might think proper to promote the settlements



required by the patents. My interest was one hundred shares, or twenty thousand acres, for which I had paid, at the time I mortgaged to Cazenove, upwards of seven thousand five hundred dollars. The thing was considered as extremely valuable, and I have no doubt but my interest would, if I could have retained it five years, have been worth to me more than one hundred thousand dollars. Lands within the angle were last year sold at twenty dollars per acre.

Though it be obvious that no damages were due or could have been recovered by the Holland Company on the penalty contained in the covenants, yet I had several motives to urge me to some sacrifice in order to get rid of the business. *First*. I could not repay the advances made by Cazenove, which amounted to several thousand dollars. *Second*. I could not bear to give any uneasiness to Frederick Prevost, which might have been the consequence of a legal proceeding. *Third*. I was a little apprehensive of being sued on the covenants for payment of the purchase money. Cazenove, on his part, had but a single motive, to wit—he found that these lands were all I had to give, and that a suit would have produced only expense.

The foregoing facts are substantially known to Le Roy, Bayard, and McEvers, and to Harrison and Ogden. The two last were consulted on the closing of the business in May and June last (1799). The former of them, Harrison, several times on the exchange of the bonds. I have not spoken to either of those gentlemen on the subject since the transactions took place; but any person is at liberty to do it who may choose to take the trouble.

I have given you a summary of my whole concern with Cazenove and the Holland Company, not knowing what part of it might tend to elucidate your inquiries.

By those who know me, it will never be credited that any man on earth would have the hardiness even to propose to me dishonourable

compensations; but this apart, the absurdity of the calumny you allude to is obvious from the following data, resulting from the deeds and known facts:

That at the time the Alien Bill was under consideration, and long after, the bond, the covenant, and the penalty were objects of no concern, as we had reason to believe that the lands were or would be sold in Europe, so as to leave me a profit:

That Witbeck's bond was *never given up*, but exchanged for one more safe and valuable:

That I had not, nor by possibility could have, any interest in this exchange, as it was relieving one friend to involve another still more dear to me:

That, so far from any understanding between Cazenove and me, we had controversies about the very bond and penalty for more than a year after the passing of the Alien Bill: That no part of the penalty was ever due from me to the Holland Company; and that of course, they could never have demanded the bond, which was expressly a security for the penalty, and not for the payments:

That nevertheless I did finally give Cazenove a valuable and exorbitant compensation to induce him to cancel the covenants and discharge the penalty.

This, sir, is the first time in my life that I have condescended (pardon the expression) to refute a calumny. I leave to my actions to speak for themselves, and to my character to confound the fictions of slander. And on this very subject I have not up to this hour given one word of explanation to any human being. All the explanation that can be given amounts to no more than this—*That the thing is an absolute and abominable lie*. I feel that the

present detail is useless and trifling; but you have asked with good-nature, and I could not, with the appearance of good-nature, refuse. I pardon you the labour I have had in writing, and for that which you will have in reading no apology can be due from

Your friend and obedient servant,

**A. BURR.**

In January, 1801, Colonel Burr's daughter Theodosia was married to Joseph Alston, Esq., of South Carolina. Mr. Alston was in his twenty-second, Miss Burr in her eighteenth year. He was a gentleman of talents and fortune, and a few years after his marriage was chosen governor. Some opinion of his style of writing may be formed by his defence of early marriages; while that portion of his letter which relates to his native state cannot be uninteresting to South Carolinians.

### **THEODOSIA BURR TO JOSEPH ALSTON.**

New-York, January 13th, 1801.

I have already written to you by the post to tell you that I shall be happy to see you *whenever you choose*; that I suppose is equivalent to *very soon*; and that you may no longer feel doubts or suspicions on my account, I repeat the invitation by a packet as less dilatory than the mail; but for all these doubts and suspicions I will take ample revenge when we meet.

I yesterday received your letter of the 26th of December, and am expecting your defence of early marriages to-day. My father laughs at my impatience to hear from you, and says I am in love; but I do not believe that

to be a fair deduction, for the post is really very irregular and slow—enough so to provoke anybody.

We leave this for Albany on the 26th inst., and shall remain there till the 10th February. My movements will after that depend upon my father and *you*. I had intended not to marry this twelvemonth, and in that case thought it wrong to divert you from your present engagements in Carolina; but to your solicitations I yield my judgment. Adieu. I wish you many returns of the century.

14th January.

I have not yet received your promised letter; but I hope it may be long in proportion to the time I have been expecting it. The packet has been delayed by head-winds, but now that they are fair she will have a quick passage; at least such I wish it. Adieu, encore.

**THEODOSIA.**

## JOSEPH ALSTON TO THEODOSIA BURR.

Charleston, S. C. December 28th, 1800.

Aristotle says "that a man should not marry before he is six-and-thirty:" pray, Mr. Alston, what arguments have you to oppose to such authority? Hear me, Miss Burr.

It has always been my practice, whether from a natural independence of mind, from pride, or what other cause I will not pretend to say, never to adopt the opinion of any one, however respectable his authority, unless thoroughly convinced by his arguments; the "ipse dixit," as logicians term it, even of Cicero, who stands higher in my estimation than any other author, would not have the least weight with me; you must therefore, till you offer better reasons in support of his opinion than the Grecian sage himself has done, excuse my differing from him.

Objections to early marriages can rationally only arise from want of discretion or want of fortune in the parties; now, as you very well observe, the age of discretion is wholly uncertain, some men reaching it at twenty, others at thirty, some again not till fifty, and many not at all; of course, to fix such or such a period as the proper one for marrying, is ridiculous. Even the want of fortune is to be considered differently, according to the country where the marriage is to take place; for though in some places a fortune is absolutely necessary to a man before he marries, there are others, as in the eastern states for example, where he marries expressly for the purpose of making a fortune.

But, allowing both these objections their full force, may there not be a single case that they do not reach? Suppose (*for instance, merely*) a young man nearly two-and-twenty, already of the *greatest* discretion, with an ample fortune, were to be passionately in love with a young lady almost eighteen, equally discreet with himself, and who had a "sincere friendship" for him, do you think it would be necessary to make him wait till thirty? particularly where the friends on both sides were pleased with the match.

Were I to consider the question personally, since you allow that "individual character" ought to be consulted, no objection clearly could be made to my marrying early.

From my father's plan of education for me, I may properly be called a hot-bed plant. Introduced from my infancy into the society of men, while yet a boy I was accustomed to think and act like a man. On every occasion, however important, I was left to decide for myself; I do not recollect a single instance where I was controlled even by advice; for it was my father's invariable maxim, that the best way of strengthening the judgment was to suffer it to be constantly exercised. Before seventeen I finished my college education; before twenty I was admitted to the bar. Since that time I have been constantly travelling through different parts of the United States; to what purpose I leave you to determine.

From this short account of myself you may judge whether my manners and sentiments are not, by this time, in some degree formed.

But let us treat the subject abstractedly; and, as we have shown that under particular circumstances no disadvantages result from early marriages, let us see if any positive advantages attend them.

Happiness in the marriage state, you will agree with me, can only be obtained from the most complete congeniality of mind and disposition, and

the most exact similarity of habits and pursuits; now, though their natures may generally resemble, no two persons can be entirely of the same mind and disposition, the same habits and pursuits, unless after the most intimate and early association; I say early, for it is in youth only the mind and disposition receive the complexion we would give them; it is then only that our habits are moulded or our pursuits directed as we please; as we advance in life they become fixed and unchangeable, and instead of our governing them, govern us. Is it not *therefore* better, upon every principle of happiness, that persons should marry young, when, directed by mutual friendship, each might assimilate to the other, than wait till a period when their passions, their prejudices, their habits, &c. become so rooted that there neither exists an inclination nor power to correct them? Dr. Franklin, a very strong advocate for my system, and, I think, at least as good authority as Aristotle, very aptly compares those who marry early to two young trees joined together by the hand of the gardener; "Trunk knit with trunk, and branch with branch intertwined, Advancing still, more closely they are join'd; At length, full grown, no difference we see, But, 'stead of two, behold a single tree!" [1]

Those, on the other hand, who do not marry till late, say "thirty," for example, he likens to two ancient oaks;

"Use all your force, they yield not to your hand,  
But firmly in their usual stations stand;  
While each, regardless of the other's views,  
Stubborn and fix'd, it's natural bent pursues!" [2]

But this is not all; it is in youth that we are best fitted to enjoy that exquisite happiness which the marriage state is capable of affording, and the remembrance of which forms so pleasing a link in that chain of friendship that binds to each other two persons who have lived together any number of

years. Our ideas are then more refined; every generous and disinterested sentiment beats higher; and our sensibility is far more alive to every emotion our associate may feel. Depend upon it, the man who does not love till "thirty" will never, never love; long before that period, he will become too much enamoured of his own dear self to think of transferring his affections to any other object. He may marry, but interest alone will direct him in the choice of his wife; far from regarding her as the sweetest friend and companion of his life, he will consider her but as an unavoidable encumbrance upon the estate she brings him. And can you really hope, my Theodosia, with all your ingenuity, to convince me that such a being will enjoy equal happiness in marriage with me? with me, about to enter into it with such rapture; who anticipate so perfect a *heaven* from our uniting in every study, improving our minds together, and informing each other by our mutual assistance and observations? No—I give you full credit for your talents, but there are some causes so bad that even you cannot support them.

Enough, however, of this topic till we meet; I have already given you a volume of nonsense upon it.

Now for the fable, I cannot call it description, your "dear friends" have given you of this state. "The country," they say, because of the marshy grounds, "is rendered continually unhealthy with fever and agues." One would really conclude from this that we were a good representation of a meeting of *Shaking Quakers*. Alas! beautiful and romantic hills of Carolina, which the delighted traveller so often stops to admire; fair and fertile plains interspersed with groves of the orange, the lemon, and the myrtle, which fling such healthful fragrance to the air, where are ye fled? Has some earthquake, some sudden and dreadful concussion of nature, engulfed you? No! You still remain for the delight and ornament of our country; you have lost existence only in the imagination of some beau or belle of New-York; who, ignorant of the geography and appearance of the most celebrated



states, believes every other place except the Park and the Battery a desert or a marsh. But let us proceed:—"As to Charleston, an annual epidemic, joined to the yells of whipped negroes, which assail your ears from every house, and the extreme heat, make it a perfect purgatory!" What! is Charleston, the most delightfully situated city in America, which, entirely open to the ocean, twice in every twenty-four hours is cooled by the refreshing seabreeze, the Montpelier of the south, which annually affords an asylum to the planter and the West-Indian from every disease, accused of heat and unhealthiness?—Island of Calypso, where reigned perpetual spring! may we not, after this, expect thy flower-enamelled fields to be metamorphosed into dreary wastes of snow, and the sweet concerts of the feathered choir, which elysionized thy woods, converted into the howling of the tiger, or the horrid bark of the wolf? But this is not all, unfortunate citizens of Charleston; your disposition has been even still more outraged than your climate. Your mildness, humanity, and benevolence, are no more; cruelty, barbarity, a sanguinary love of torture, are now your distinguishing characteristics; the scream, the yell of the miserable, unresisting African, bleeding under the scourge of relentless power, affords music to your ears! Ah! from what unfriendly cause does this arise? Has the God of heaven, in anger, here changed the order of nature? In every other region, without exception, in a similar degree of latitude, the same sun which ripens the tamarind and the anana, ameliorates the temper, and disposes it to gentleness and kindness. In India and other countries not very different in climate from the southern parts of the United States, the inhabitants are distinguished for a softness and inoffensiveness of manners, degenerating almost to effeminacy; it is here then, only, that we are exempt from the general influence of climate: here only that, in spite of it, we are cruel and ferocious! Poor Carolina!

"The state of society, too, is equally inviting. The men and women associate very little; the former employ themselves either in the business of

life, or in hunting horse-racing, and gaming; while the latter meet in large parties, composed entirely of themselves, to sip tea and look prim!" Would a stranger who had been among us, who had witnessed the polished state of our society, the elegance of our parties, the ease and sociability of manners which prevail there, the constant and agreeable intercourse between the sexes, the accomplishments of our ladies, that proud and elevated spirit among the men which would feel "a stain like a wound," believe the account you have written meant as a picture of South Carolina? Would he believe, still further, that it was drawn by an American? No. He would suppose it the production of some jaundiced foreigner, who had never visited us, and who set down every thing out of his own country as rude and Gothic. Now I recollect Morse gives a description something like this of *North* Carolina; and I suspect your "friends" stole their account, with a little exaggeration, from him, but mistook the state. I have now replied to the fable of your "dear friends" in a *veritable* style; but, setting aside rhapsody, if you have time to read it, I will give you a proper and impartial account of our country in a few words. Possibly it may serve to amuse you, if still confined by your ankle.

For about sixty or seventy miles from the seacoast, the land is, perhaps, more uninterruptedly level than any equal tract of territory in the United States; from that distance it gradually becomes more hilly, till, as you advance into the interior, you become entangled in that chain of mountains which, rising in the back parts of Pennsylvania, runs through that state, touches a corner of Maryland, and, extending through North Carolina, South Carolina, and Georgia, forms a line between the Atlantic and transatlantic states. In upper Carolina it is as healthy as anywhere on the continent. The people are robust, active, and have a colour as fine as those of Rhode Island. In the low country, it is true, we are visited by "the fevers and agues" you mention, but it is only at a particular season, and near the banks of the rivers. In this we are by no means singular; those who reside

on the borders of the lakes, the Connecticut, the Delaware, and the Potomac, are equally exposed. On the seacoast we again find health; Charleston, till within a few years past, was remarkably healthy. Since '93 it has been afflicted, at different times, during the summer, with an epidemic, which has certainly proved extremely fatal; but ought it to be called an "annual visitant" here any more than at Boston, New-York, Philadelphia, Baltimore, &c., all of which places have been equally, and some of them more, afflicted by it?

With regard to our manners; if there is any state which has a claim to superior refinement, it is certainly South Carolina. Generally speaking, we are divided into but two classes, very rich and very poor; which, if no advantage in a political view, is undoubtedly favourable to a polished state of society. Our gentlemen having large fortunes, and being very little disposed by the climate to the drudgery of business or professions, have full leisure for the attainment of polite literature, and what are usually called accomplishments; you therefore meet with few of them who are not tolerably well informed, agreeable companions, and completely well bred. The possession of slaves renders them proud, impatient of restraint, and gives them a haughtiness of manner which, to those unaccustomed to them, is disagreeable; but we find among them a high sense of honour, a delicacy of sentiment, and a liberality of mind, which we look for in vain in the more commercial citizens of the northern states. The genius of the Carolinian, like the inhabitants of all southern countries, is quick, lively, and acute; in steadiness and perseverance he is naturally inferior to the native of the north; but this defect of climate is often overcome by his ambition or necessity; and, whenever this happens, he seldom fails to distinguish himself. In his temper he is gay and fond of company, open, generous, and unsuspicious; easily irritated, and quick to resent even the appearance of insult; but his passion, like the fire of the flint, is lighted up and extinguished in the same moment. I do not mention his hospitality and

kindness to strangers, for they are so common they are no longer esteemed virtues; like common honesty, they are noticed only when not possessed. Nor is it for the elegance of their manners only that the South Carolinians are distinguished; sound morality is equally conspicuous among them. Gaming, so far from being a fashionable vice, is confined entirely to the lower class of people; among gentlemen it is deemed disgraceful. Many of them, it is true, are fond of the turf; but they pursue the sports of it merely as an amusement and recreation, not a business. As to hunting, the country gentlemen occasionally engage in it, but surely there is nothing criminal in this! From my education and other pursuits I have seldom participated in it myself; but I consider it, above all exercises, the most manly and healthful.

But come, let us dismiss the gentlemen and their amusements, and take up the female part of the community.

The ladies of Carolina, I confess, are not generally as handsome as those of the northern states; they want that bloom which, in the opinion of some, is so indispensable an ingredient in beauty; but their paleness gives them an appearance of delicacy and languor which is highly interesting. Their education is perhaps more attended to than anywhere else in the United States; many of them are well informed, all of them accomplished. For it would be far more unpardonable in a girl to enter a room or go through a congo ungracefully, than to be ignorant of the most common event in history or the first principles of arithmetic. They are perfectly easy and agreeable in their manners, and remarkably fond of company; no Charleston belle ever felt "ennui" in her life. In the richness of their dress and the splendour of their equipages they are unrivalled. From their early introduction into company, and their constant and unreserved intercourse with the other sex, they generally marry young; and if their husbands want only companions for the theatre or the concert-room, or some one to talk over the scandal of the day with when at home, they make tolerable wives.

As we have now brought them to the "ne plus ultra" of human happiness, marriage, we will leave them there, and so finish our description.

The reason of your not hearing from me so long after your return to New-York was this: not knowing till you wrote me from Ballston how my letters would be received, I was really afraid to venture writing.

You ask how Miss P. walks? If it is your object, as you say, from knowing bow you stand with her in point of forces, to preserve better what you have won, receive a general lesson. "Continue in every respect exactly as you are, and you please me most."

You wish me to acquire French. I already understand something of it, and, with a little practice, would soon speak it. I promise you, therefore, if you become my instructress, in less than two months after our marriage to converse with you entirely in that language. I fix the period *after* our marriage, for I cannot think of being corrected in the mistakes I may make by any other person than my wife. Suppose, till then, you return to your Latin, and prepare to use that tongue with me, since you are averse to one understood by all the canaille. Adieu. I have literally given you a folio volume.

Yours, my dear Theodosia,

JOS. ALSTON.

P. S. The arrangement you speak of proposing in your letter for an interview has determined me. I shall there fore sail certainly in a few days. Winds be propitious!

Miss BURR.

In April, 1799, the federal party were triumphant in the State of New-York. The city was entitled to thirteen members of Assembly. They were federalists, and were elected by an average majority of 944; the whole number of votes being about 6000. Colonel Burr during this year was not in public life, but he was not an idle spectator of passing events. The year following a President of the United States was to be elected. It was now certain, that unless the vote of the State of New-York could be obtained for Mr. Jefferson, he could not be elected. It was equally certain, that unless the city could be carried by the democratic party, the state would remain in the bands of the federalists.

During the winter of 1799 and the spring of 1800, Colonel Burr commenced a system of party organization for the approaching contest. The presidential electors were at that time chosen by the legislature, meeting in joint ballot. His first object was to secure such a committee of nomination for the city and county of New-York as, in the selection of candidates for the assembly, would be influenced by his recommendation. His opinion, often expressed to his confidential friends during the winter of 1800, was, that without a most powerful ticket there was no prospect of success; with such a ticket and proper exertions it could be elected. He entertained no doubt (and the result proved that he was correct), that on the city and county of New-York were suspended the destinies of the country, whether for good or whether for ill. These views and these opinions were presented and enforced by him for days, and weeks, and months previous to the election upon all the young and ardent politicians of the city with whom he had any intercourse. The effect of which was, that when the crisis arrived, every member of the party seemed to feel the great responsibility which rested upon him.

The next object with Colonel Burr was to inculcate harmony in the party and concert in action. It was known that a most unconquerable jealousy

existed between the Clinton and Livingston families and the adherents of those factions. The Clintons and their supporters were anti-federalists. The Livingstons were not less distinguished as federalists, until some time after the organization of the general government under the new constitution. Colonel Burr enforced, in mild and persuasive terms, the necessity of sacrificing all prejudices and partialities; of surrendering all personal and ambitious considerations; of standing shoulder to shoulder, and uniting in one great effort to rescue the country from misrule. By the most unceasing perseverance he succeeded in both these objects.

Every section of the democratic party felt the necessity of Colonel Burr's being a member of the legislature that was to choose the electors; but a difficulty arose. It was understood that General Hamilton would personally attend the several polls during the three days of election; that he would counsel and advise with his political friends, and that he would address the people. Here again all seemed to feel that Colonel Burr was the man, and perhaps the only man, to meet General Hamilton on such an occasion. But if his name was on the Assembly ticket as a candidate, his personal exertions during the election would be lost to the party. To place him in that situation appeared to many like abandoning the field without a struggle to the federalists. In this dilemma, the county of Orange patriotically came forward and nominated him as a candidate on their Assembly ticket, thus leaving him free to act in the city of New-York; and by the people of Orange Colonel Burr was elected a member of the legislature.

All the details connected with the formation of the Assembly ticket in April, 1800, for the city and county of New-York, will be given hereafter. The result is known. It succeeded. The legislature was democratic. Presidential electors of the democratic party were appointed. Colonel Burr's services were appreciated by the democracy in every section of the country, and he was nominated on the ticket with Mr. Jefferson for the offices of

President and Vice President of the United States. By the constitution, as it was originally adopted, the person who had the greatest number of votes, provided they were a majority of the whole number given, was president; and the person having the next highest number, with the like proviso, was vice-president. When the ballots were examined, it appeared that Mr. Jefferson and Colonel Burr were the two highest candidates, and that their votes were equal. By the provisions of the constitution, it devolved upon the House of Representatives of the United States, voting by states, to designate which of these gentlemen should be president, and which vice-president.

On proceeding to the ballot a contest ensued, which lasted for several days, producing the most implacable and bitter animosities; a contest which terminated in the election of Mr. Jefferson and the ruin of Colonel Burr. Until within a few years that scene has been completely enveloped in mystery. A part of the incidents connected with it, however, in a fugitive form, are before the world. But the period has arrived when the question should be met with manly firmness; when the voice of history should announce to posterity the truth, the whole truth, and nothing but the truth, so far as it can be ascertained. The generation which were the actors in those scenes have passed away. The parties immediately interested are sleeping the sleep of death. Few, very few indeed now living, understand the nature of that contest. The curtain shall be drawn aside. The documents which develop its character, and which are scattered in fragments, will be brought together, and recorded (it is hoped) in a permanent and tangible form.

It will be seen that the immediate friends and advisers of Mr. Jefferson, until within a few hours of the balloting, had no confidence in certain leading and distinguished members of Congress, whose names shall be given, but who, on his coming into power, promptly received the most substantial evidence of his kind feelings by appointments to office. The



clearest evidence will be presented that Mr. Jefferson entered into terms and conditions with the federal party or some of their leaders; that the honourable James A. Bayard, of Delaware, acted on the part of the federalists, and the honourable Samuel Smith, of Maryland, at present mayor of Baltimore, on the part of Mr. Jefferson; and that terms and conditions were agreed upon between them before Mr. Jefferson could be elected; while, on the other hand, it will be demonstrated that the charges which have been made against Colonel Burr of having intrigued and negotiated with the federal party to obtain the office of president were as unjust as they were groundless. But "*I come to bury Cesar, not to praise him.*"

Footnotes:

1. Manuscript poem of my own.
2. From the same.

[Frontispiece: Theodosia]

**MEMOIRS OF AARON BURR.**

**WITH MISCELLANEOUS SELECTIONS**

**FROM HIS CORRESPONDENCE.**

**BY MATTHEW L. DAVIS.**

"I come to bury Caesar, not to praise him."

**IN TWO VOLUMES**

**VOL. II.**

\* \* \* \* \*

Entered, according to Act of Congress, in the year 1836, by

**MATTHEW L. DAVIS,**

in the Clerk's Office of the Southern District of New-York.

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## **MEMOIRS OF AARON BURR.**

## CHAPTER I.

Colonel Burr's study of the law [1] has been already briefly noticed. He brought to that study a classic education as complete as could, at that time, be acquired in our country; and to this was added a knowledge of the world, perhaps nowhere better taught than in the camp, as well as a firmness and hardihood of character which military life usually confers, and which is indispensable to the success of the forensic lawyer. He was connected in the family circle with \_two[2] eminent jurists, who were at hand to stimulate his young ambition, and to pour, in an almost perpetual stream, legal knowledge into his mind, by conversation and by epistolary correspondence. The time he spent in his studies preparatory to his admission would be considered short at the present day; but (to use the language of another) "it is to be recollected that at that time there were no voluminous treatises upon the mere routine of practice to be committed to memory, without adding a single legal principle or useful idea to the mind, and which only teach the law student, as has been said of the art of the rhetorician, 'how to name his tools.' Burr, fortunately for his future professional eminence, was not destined to graze upon this barren moor. He spent his clerkship in reading and abstracting, with pen in hand, Coke and the elementary writers, instead of Sellon and Tidd; and learnt law as a science, and not as a mechanical art."

On the other hand, it has been said "that Colonel Burr was not a deep-read lawyer; that he showed himself abundantly conversant with the general knowledge of the profession, and that he was skilful in suggesting doubts and questions; but that he exhibited no indications of a fondness for the science, nor of researches into its abstruse doctrines; that he seemed, indeed, to hold it and its administration in slight estimation. The best definition of law, he said, was '*whatever is boldly asserted and plausibly maintained.*' This sarcasm was intended full as much for the courts as for the law administered by them."

If Colonel Burr may have been surpassed in legal erudition, he possessed other qualifications for successful practice at the bar which were seldom equalled. He prepared his trials with an industry and forethought that were most surprising. He spared no labour or expense in attaining every piece of evidence that would be useful in his attacks, or guard him against his antagonist. He was absolutely indefatigable in the conduct of his suits. "He pursued (says a legal friend) the opposite party with notices, and motions, and applications, and appeals, and rearguments, never despairing himself, nor allowing to his adversary confidence, nor comfort, nor repose. Always vigilant and always urgent, until a proposition for compromise or a negotiation between the parties ensued. 'Now move slow (he would say); never negotiate in a hurry.' I remember a remark he made on this subject, which appeared to be original and wise. There is a saying, 'Never put off till tomorrow what you can do to-day.' 'This is a maxim,' said he, 'for sluggards. A better reading of the maxim is—*Never do to-day what you can as well do to-morrow*; because something may occur to make you regret your premature action.'"

I was struck, says the same friend, in his legal practice, with that tendency to mystery which was so remarkable in his conduct in other respects. He delighted in surprising his opponents, and in laying, as it were,

ambuscades for them. A suit, in which I was not counsel, but which has since passed professionally under my observation, will illustrate this point in his practice. It was an ejectment suit, brought by him to recover a valuable tenement in the lower part of the city, and in which it was supposed, by the able lawyers retained on the part of the defendant, that the only question would, be on the construction of the will. On the trial they were surprised to find the whole force of the plainfiff's case brought against the authenticity of an ancient deed, forming a link in their title, and of which, as it had never, been questioned nor suspected, they had prepared merely formal proof; and a verdict of the jury, obtained by a sort, of *coup-de-main*, pronounced the deed a forgery. Two tribunals have subsequently established the deed as authentic; but the plaintiff lived and died in the possession of the land in consequence of the verdict, while the law doubts, which form the only real questions in the case, are still proceeding, at the customary snail's pace, through our courts to their final solution.

To be employed as an assistant by Mr. Burr was not to receive a sinecure. He commanded and obtained the constant and unremitted exertions of his counsel. It was one of the most remarkable exhibitions of the force of his character, this bending every one who approached him to his use, and compelling their unremitted, though often unwilling, labours in his behalf. His counsel would receive notes from him at midnight, with questions which were sent for immediate replies.

He showed nice discrimination in his selection of his professional assistants. When learning was required, he selected the most erudite. If political influence could be suspected of having effect, he chose his lawyers to meet or *improve* the supposed prejudice or predilection. Eloquence was bought when it was wanted; and the cheaper substitute of brow-beating, and vehemence used when they were equivalent or superior. In nothing did he show greater skill than in his measurement and application of his agents;



and it was amusing to hear his cool discussion of the obstacles of prejudice, or ignorance, or interest, or political feeling to be encountered in various tribunals, and of the appropriate remedies and antidotes to be employed, and by what persons they should be applied.

Equal discrimination and acuteness was displayed in his political movements. An anecdote which occurred in the contested election of 1800 will exemplify this remark. Funds were required for printing, for committee-rooms, &c. The finance committee took down the names of leading democrats, and attached to each the sum they proposed to solicit from him. Before attempting the collection, the list, at Colonel Burr's request, was presented for his inspection. An individual, an active partisan of wealth, but proverbially parsimonious, was assessed one hundred dollars. Burr directed that his name should be struck from the list; for, said he, you will not get the money, and from the moment the demand is made upon him, his exertions will cease, and you will not see him at the polls during the election. The request was complied with. On proceeding with the examination, the name of another wealthy individual was presented; he was liberal, but indolent; he also was assessed one hundred dollars. Burr requested that this sum should be *doubled*, and that he should be informed that no labour would be expected from him except an occasional attendance at the committee-rooms to assist in folding tickets. He will pay you the two hundred dollars, and thank you for letting him off so easy. The result proved the correctness of these opinions. On that occasion Colonel Burr remarked, *that the knowledge and use of men consisted in placing each in his appropriate position.*

His imperturbable coolness and presence of mind were displayed in his civil as well as in his military life. Against most of the vicissitudes of a trial he guarded by his forethought and minuteness of preparation. I was present myself, says the legal friend already referred to, when he received with

great composure a communication which would have startled most men. Mr. P. had long been an inmate of his house; he had been connected with him in many respects and for many years. Colonel Burr and two other lawyers were discussing a proposed motion in a chancery suit in which P. was the plaintiff, the colonel himself having, an interest in the result. P. was then out of town. A letter was brought in and handed to the colonel, which, telling us to proceed with our debate, he carefully read, and then placed it, in his customary manner, on the table, with the address downwards. Our discussion proceeded earnestly for ten minutes at least, when the colonel, who had listened with great attention, asked, in his gentlest tone, "What effect would the death of P. have on the suit?" We started, and asked eagerly why he put the question. "P. is dead," he replied, "as this letter informs me; *will the suit abate?*" The colonel was himself ill at the time, and unable to leave his sofa; and even if there was some affectation in his demeanour, there was certainly remarkable collectedness.

Colonel Burr commenced the practice of his profession at the close of the revolution, under the most favourable auspices; and may be said at one bound to have taken rank among the first lawyers of the day, and to have sustained it until he became vice president, at which time, it is believed, he had no superior at the bar, either in this state or in the Union, nor even an equal, except General Hamilton.

The eclat which Burr, yet a beardless boy, had acquired by his adventurous march under Arnold to Canada, through our northeastern wilds, then a trackless desert; his gallant bearing at Quebec and Monalouth; his efficient services in the retreat of our army from Long Island and New-York; and his difficult and delicate command on the lines of Westchester, followed him to private life, gathered around him hosts of admirers and friends among our early patriots, particularly the youthful portion of them, and no doubt essentially aided him in making his successful professional

*debut*. The name of the chivalrous aid-de-camp who supported in his youthful arms the dying hero of Quebec was familiar in the mouths of men, and from one end of the continent to the other he was eulogized for his military prowess. Such were the cheering auspices under which he sheathed his sword when his physical energies would permit him no longer to wield it.

"He was indefatigable," says another legal friend, "in business, as he had been in his previous studies, and no lawyer ever appeared before our tribunals with his cause better prepared for trial, his facts and legal points being marshalled for combat with all the regularity and precision of a consummate military tactician. No professional adversary, it is believed, has ever boasted of having broken or thrown into confusion the solid columns into which he had formed them, or having found void spaces in their lengthened line, or to have beaten him by a *ruse de guerre* or a surprise.

"He never heeded expense in completing his preparations for trial; and, while laborious himself to an uncommon degree, he did not stint the labours of others, so far as he could command or procure them. Every pleading or necessary paper connected with his causes was in the first place to be multiplied into numerous copies, and then abstracted or condensed into the smallest possible limits, but no material point or idea was by any means to be omitted. His propensity to concision or condensation was a peculiar trait in his mind. He would reduce an elaborate argument, extending over many sheets of paper, to a single page. Had he written the history of our revolution, which he once commenced, he would probably have compressed the whole of it in a single volume."

In his professional practice, he never solicited from an opponent any favour or indulgence any more than he would have done from an armed foe; but, at the same time, rarely withheld any courtesy that was asked of him,

not inconsistent with the interest of his clients. He was a strict practitioner, almost a legal *martinet*, and so fond of legal technicalities, that he never omitted an opportunity of trying his own skill and that of opposite counsel in special pleas, demurrers, and exceptions in chancery, notwithstanding the risk of paying costs sometimes, though rarely incurred, and of protracting a cause.

The labour of drawing his pleadings and briefs, however, at least after his return from Europe in 1812, always devolved upon others; and, with marginal notes of all the authorities which had been consulted, from the year books downward, which were sometimes in law French and law Latin, to the last reports in England and some half a dozen of our states, in which may be properly called law English, were submitted to his critical acumen; his thousand doubts, suggestions, hints, and queries, which would start from his mind like a flash, and for a moment seem to throw into inextricable confusion what had been laboriously, and perhaps profoundly studied, at last would most generally be adopted without material alterations or additions.

Colonel Burr's mind cannot be said to have been a comprehensive one. It was acute, analytical, perspicacious, discriminating, unimaginative, quick to conceive things in detail, but not calculated to entertain masses of ideas. He would never have gained celebrity as an author; but as a critic, upon whatever subject, his qualifications have rarely been surpassed, though in literary matters and the fine arts they were only exhibited in conversation. His colloquial powers were impressive and fascinating, though he generally seemed a listener rather than a talker; but never failed to say a proper thing in the proper place."

As a public speaker, his ideas were not diffuse enough; or rather, he appeared to lack fluency to make a long, and what is called an elaborate

argument upon any matter, however grave or momentous. In a cause in which he was employed as associate counsel with General Hamilton, an incident occurred, in relation to Chief Justice Yates, not unworthy recording. It speaks a language that cannot be misunderstood, and is demonstrative of the influence which he had over the feelings as well as the minds of his hearers. It was the celebrated case of *Le Guen vs. Gouverneur and Kemble*, one of the most important, in regard to the legal questions and amount of property involved, which at that day had been brought before our tribunals, and in which case he completely triumphed. Only a short period previous to his decease Colonel Burr remarked, that on this occasion he had acquired more money and more reputation as a lawyer than on any other during his long practice at the bar. A letter was addressed to Thurlow Weed, Esq., requesting him to apply to the Hon. John Van Ness Yates, son of the late chief justice, and ascertain whether the incident, as reported, was founded on fact. To that letter Mr. Weed received the following answer.

## JOHN VAN NESS YATES TO THURLOW WEED.

Albany, July 8th, 1837.

DEAR SIR,

After some difficulty in finding my father's notes of the argument in the case of *Le Guen vs. Gouverneur and Kemble*, I have ascertained that the account you showed me, given in the letter of M. L. Davis, Esq., is in the main correct. My father's notes of General Hamilton's argument are *very copious*. Those of Colonel Burr's are *limited*, in this way—"Burr for plaintiff, I. The great principles of commercial law which apply to this case are"—then follows a hiatus of some lines. After which, as follows:—

"II. The plaintiff"—another *hiatus*.

"III. !!!!!" and this concludes all I can find.

Hamilton's eloquence was (if I may be allowed the expression) *argumentative*, and induced no great elevation or depression of mind, consequently could be easily followed by a note taker. Burr's was more *persuasive* and *imaginative*. He first enslaved the *heart*, and then led captive the, *head*. Hamilton addressed himself to the *head* only. I do not, therefore, wonder that Burr engrossed all the faculties of the hearer. Indeed, I have heard him often at the bar myself, and always with the same effect. I do not recollect, in conversation, any particular allusion of my father's to Burr's argument in the case of Le Guen vs. Gouverneur and Kemble; but I have frequently heard him say, that of all lawyers at the bar, Burr was the most difficult to follow in the way of taking notes. Yet Burr was very *concise* in his language. He had no pleonasms or expletives. Every word was in its proper place, and seemed to be the only one suited to the place. He made few or no repetitions. If what he said had been immediately committed to the press, it would want no correction.

Yours respectfully,

J. V. N. YATES.

Colonel Burr's style of speaking at the bar was unique, or peculiarly his own; always brief; never loud, vehement, or impassioned, but conciliating, persuasive, and impressive; and when his subject called for gravity or seriousness, his manner was stern and peremptory. He was too dignified ever to be a trifler; and his sarcasm, sometimes indulged in, rarely created a laugh, but powerfully told upon those who had provoked it. His enunciation was slow, distinct, and emphatic; perhaps too emphatic; and this was

pronounced, by his early and devoted friend, Judge Paterson, [3] a fault in his mode of speaking while a youth, and seems never to have been fully corrected, as he did that of rapid utterance, attaining the true medium for public speaking in this respect. He spoke with great apparent ease, but could not be called fluent, although he never appeared at a loss for words, which were always so chaste and appropriate that they seemed to, have been as carefully selected before they fell from his lips as if they had been written down in a prepared speech and committed to memory. His manner was dignified and courteous; his self-possession never for an instant forsook him. He never appeared hurried or confused, or betrayed the slightest embarrassment for want of ideas to support his argument, or language in which to clothe it; and possessed a memory so well disciplined as never to forget any thing in the excitement of the legal forum which in the retirement of his study he had intended to use. He has frequently been heard to say that he possessed no oratorical talents; that he never spoke with pleasure, or even self-satisfaction, and seemed unconscious of the effect which he produced upon the minds of his audience.

Colonel Burr accorded the palm of eloquence to General Hamilton, whom he frequently characterized as a man of strong and fertile imagination, of rhetorical and even poetical genius, and a powerful declaimer. Burr's ruling passion was an ardent love for military glory. Next to the career of arms, diplomacy, no doubt, would have been his choice, for which not only his courtly and fascinating manners, but every characteristic of his mind peculiarly adapted him. It is idle now to speculate upon what he might have been had Washington yielded to the importunities of Madison, Monroe, and others, and appointed him minister to the French republic. Our country, before which he then stood in the original brightness of his character, would have been honoured in the choice, both at home and abroad, and his own destiny, at least, would have been widely different.

Notwithstanding oratory was not his forte, and he never spoke in public with satisfaction to himself, still many anecdotes are told of him which would show that the effect of his speeches were sometimes of unequalled power. It is said, that at the close of his farewell address to the Senate of the United States on his retirement from the vice-presidency, there was scarcely a dry eye to be seen among his grave auditors, many of whom were his bitter political adversaries. His manner of speaking was any thing but declamatory, and more resembled an elevated tone of conversation, by which a man, without any seeming intention, pours his ideas in measured and beautiful language into the minds of some small select circle, dislodging all which they may have previously entertained upon a particular subject, and fixing his own there, by the power of a seeming magical fascination, which he could render, when he chose, almost irresistible. To judge him by his success as a public speaker, few men could be called more eloquent.

As a monument of his legal knowledge and talents, his trial at Richmond may be referred to. The two volumes of Reports which contain it exhibit on almost every page the impress of his great mind, in its singular acuteness and perspicacity, and great powers of analysis and argument. On that trial were engaged some of the ablest lawyers of our country, and he manifestly took the lead of them all. But the abilities which he displayed, hour by hour, and day by day, through that long protracted contest, in which the verdict sought for by those who then wielded the political destinies of our country was an ignominious death, were no less remarkable than his unshaken firmness and high moral elevation of deportment, struggling as he was for honour and for life.

*Fiat Justitia ruat coelum*, was the motto of Chief Justice Marshall on the trial of Colonel Burr. He was acquitted, but his acquittal was not owing to the clemency or partiality of his judges. His acuteness as a lawyer, and the



adroitness with which he managed his defence, contributed greatly, no doubt, in saving him from becoming a victim, though his innocence of the charge of treason which had been brought against him could hardly have effected that acquittal. Here, then, his talents have done some good to his country, even if it be of a negative character. They saved it from a stain of blood, which would have been as indelible as is that of Admiral Byng upon the escutcheon of England.

After Colonel Burr's return from Europe in 1812, he was engaged in several important causes, in which he was preeminently successful. His legal opinion in the great steam-boat cause aided in breaking up that monopoly. He was originally employed in the important land trial of Mrs. Bradstreet, and in the Eden causes, involving a large amount of property in the city of New-York, and turning upon some of the nicest points of the most difficult branch of the law of real property: he triumphed over almost the entire force of the New-York bar, backed by powerful corporations and individuals of great wealth, which they profusely lavished in a long-protracted contest. He commenced the Eden suits in opposition to an opinion which had been given by General Hamilton, Richard Harrison, and other members of the profession of high standing, and on the faith of which opinions the parties in possession of the lands had purchased and held them at the time the suits were commenced.

Had Colonel Burr assiduously pursued the study of law through life, like Marshall, Kent, and others, it is not easy to conjecture to what elevated point he might have risen; but such was not his destiny; the bent of his genius, which had received its inclination at the stirring period of the world when he entered into active life, was military. But to show his persevering industry in his practice as a lawyer, and his power of enduring fatigue, even when almost an octogenarian, the following letter, written by him, is inserted.

Albany, March, 1834.

Germond's, Wednesday Evening.

Arrived this evening between 6 and 7 o'clock, having been *forty-five* hours in the stage without intermission, except to eat a hearty meal. Stages in very bad order—roads excellent for wheels to Peekskill, and thence very good sleighing to this city. The night was uncomfortable; the curtains torn and flying all about, so that we had plenty of fresh air.

The term was closed this day. Nelson will hold the Special Court tomorrow morning—have seen both Wendell and O'Connor this evening—all ready—came neither fatigued nor sleepy.

A. B.

Footnotes:

1. For the remarks which I am now about to present to the reader I am principally indebted to two highly intelligent members of the bar. *Either* of whom is fully competent to a development of Colonel Burr's legal character; and *neither* of whom would be disqualified by any prejudices in his *favour*. These gentlemen, it is believed, entertained different views as to the Practical value of that species of reading which is necessary to form what is by some termed "a truly learned lawyer."

2. Colonel Burr's brother-in-law, Judge *Tappan Reeve*, and his uncle, *Pierpont Edwards*.

3. see Vol. I., Ch. III.

## CHAPTER II.

Before entering upon the details connected with the election of 1800, a brief history of the rise and progress of political parties in the State of New-York is deemed necessary. By the Constitution adopted during the revolutionary war, the state was divided into four districts, viz., The Southern, the Middle, the Eastern, and the Western. In the Southern District was included the counties of Richmond (*Staten Island*), Kings, Queens, and Suffolk (*Long Island*), New-York (*Manhattan Island*), and Westchester. These six counties, from the autumn of 1776 until the summer of 1783, were in a great measure in the possession of the British forces, and those portions of them which were nominally within the American lines were generally inhabited by tories and refugees. Lord North, or the most unrelenting of his followers, were not as much opposed to American independence as were the tories of the united provinces. The city of New-York became the rendezvous of the most intelligent and influential of this class. From this point they communicated with the British premier, through their correspondents in London. Many of them that were in exile from their late homes in Pennsylvania, New Jersey, and Connecticut, left their families behind them, under the protection of the whigs. By this arrangement facilities were afforded for ascertaining the position, resources, and movements of the rebel armies. These facilities were not neglected, and the information thus obtained was promptly communicated to the British commander-in-chief in New-York, and to the ministry in England. The

whigs felt that ingratitude was returned for their hospitality, and, in consequence, they became daily more incensed against the tories.

It is believed that the war would have terminated in 1780 or 1781, if the British minister and his military commanders in America had not been constantly led into errors by the opinions and advice of the refugees, but especially those residing in the city of New-York. Entertaining such views, the suffering whigs, in their most trying hours, consoled themselves with the hope and belief that, when the struggle should terminate and the country become independent, their oppressors and persecutors would no longer be permitted to remain among them. These were the predominant feelings of the men who were perilling their lives and enduring every species of privation and hardship for the freedom of their native land.

During the year 1778, Joseph Galloway, formerly of Philadelphia, sailed for England. His correspondence was extensive, and he became the depository of all the grievances of the American loyalists. He was the medium of communication between them, Lord North, and Lord George Germain. He possessed, in a high degree, the confidence of those who were the conscience keepers of the king. Among the correspondents of Mr. Galloway may be enumerated William Franklin, former governor of New-Jersey, Daniel Cox, and David Ogden, members of his majesty's council in New-Jersey, the Rev. Dr. Inglis, subsequently bishop of Nova Scotia, and Isaac Ogden, counsellor at law of New-York, John Potts, a judge of the Common Pleas in Philadelphia, John Foxcroft, postmaster general of North America, &c., &c. None of Mr. Galloway's correspondents exhibited a more vindictive spirit than the Rev. Bishop Inglis. These letters were private and confidential, excepting so far as, the ministry were concerned, for whose use most of them were intended. None of them, it is believed, have ever heretofore found their way into print. They are now matters of history. They are well calculated to develop the secret designs of the tories, and, at the

same time, they afford the strongest view that could be given of the patriotism, the sufferings, and the untiring perseverance of the sons of liberty in those days. Some extracts will now be made from the original manuscripts, for the purpose of showing, in a limited degree, the cause, and thus far justifying the hostile feelings of the whigs towards the refugees.

The *Rev. Bishop Inglis*, under date of the 12th December, 1778, says—"Not less than sixty thousand of the rebels have perished by sickness and the sword since the war began, and these chiefly farmers and labourers. I consider it certain that a famine is inevitable if the war continues two years longer; nay, one year war more will bring inexpressible distress on the country with regard to provisions, and this will affect the rebellion not less than the depreciation of their pasteboard dollars. The rebellion, be assured, is on the decline. Its vigour and resources are nearly spent, and nothing but a little perseverance and exertion on the part of Britain is necessary to suppress it totally. Butler and Brandt's forces, Indians and loyalists, I am told, amount to five or six thousand men. They have distressed and terrified the rebels more since last spring than the whole royal army.

*Isaac Ogden*, under date 22d November, 1778, says—"Thus has ended a campaign (if it deserve the appellation) without anything capital being done or even attempted. How will the historian gain credit who shall relate, that *at least* twenty-four thousand of the best troops in the world were shut up within their own lines by fifteen thousand, *at most*, of poor wretches, who were illy paid, badly fed, and worse clothed, and scarce, at best, deserved the name of soldiers?"

*Daniel Cox*, under date of 17th December, 1778, says—"Ned Biddle has declined his seat in Congress. The truth is, he means to do more essential service in the assembly, which has ordered the general sense of the people to be taken respecting the present constitution of Pennsylvania. Joe Reed is elected, and accepted the honour of being president and commander-in-chief of the state."

*John Potts*, under date 1st March, 1779, says—"An opinion prevails here that government (the British) will adopt the mode of devastation. If that should really take place, adieu to all the hopes of the friends of government ever again living in America. Be assured that, should government be restored by such means, her friends would find it impossible to travel this country without a guard to prevent assassination. This is not only my opinion, but the real sentiments of every friend to government. I have conversed with none, except some of the violent tories, indeed, of New England, *who seem to partake of the savage temper of our countrymen.*" G — N——[1] has said, in a confidential letter to a friend of his, "that government wish to get rid of this country, and is only at a loss how to do it without leaving it in a situation to injure her."

*Daniel Cox*, 28th February, 1779, says—"At any rate, I see absolute ruin attend us poor attainted loyalists should the colonies be given up, or this place (New-York) be evacuated. I once fondly imagined neither would happen. I wish that our old friend, the Black Prince, [2] could have the direction here again, and have the glory of conducting the future operations to a happy conclusion. I think he is more calculated for it than somebody [3] else, who, though he may possess zeal and honesty, wants head."

*Isaac Ogden*, 8th March, 1779, says—"Admiral Gambier is ordered from this station, to the universal joy of all ranks and conditions. I believe no

person was ever more generally detested by navy, army, and citizen, than this penurious old reptile."

*Daniel Cox*, 10th April, 1779, says—"In an open letter to me, Mrs. Cox speaks of the increasing depreciation of the continental money, under the allegory of an old acquaintance of mine lying in a deep consumption. Should Great Britain be really treating, and give us up, there must be an end to her glory. But such a misfortune I can never believe her subject to, unless from her own folly and internal factions of the accursed opposition."

*Thomas Eddy*, under date 5th month, 3d, 1779, says—"From accounts received by last packet of the determined resolution of government to pursue the war in America with vigour, I am led to believe that the leaders in the rebellion must give up before fall. Indeed, when I consider the dissatisfaction universally prevalent caused by the badness of their money, I should not be surprised if such an event would take place as soon as General, Clinton opens the campaign."

*Bishop, Inglis*, 14th May, 1779, says—"Remonstrate loudly to those in authority against treating with the Congress—treating with them is establishing them, and teaching the Americans to look up to them for deliverance and protection. We have been guilty of a fatal error in this from the beginning; we now see and feel the consequences. This should teach us wisdom and better policy. Though we should conquer the rebels, yet, if an accommodation is settled with the Congress, I shall consider the colonies as eventually lost, and that in a little time, to Great Britain."

*John Potts*, 15th May, 1779, says—"In my last I mentioned some sanguine hopes which I could not help entertaining, from the prospect of an election to be held in the beginning of April, for a new convention, as they call it, in Pennsylvania. Those hopes are now totally destroyed by the efforts of Joe Reed [4] and the violent party. Their artful cry of tory against the party in favour of the convention raised a flame too great to be withstood, and procured more than twelve thousand signers to petitions against that measure, in consequence of which the assembly rescinded the resolution for holding the election."

"The person to whom I alluded in my last letter is the woman whom I mentioned to you last fall as so truly enterprising. She has brought three messages through the winter. From her I have this much further to assure you, that great preparations are making at Pittsburgh for the reception of troops.

"The friends of government all agree that they will be content to risk for ever every future hope and prospect of being restored to their estates, provided Great Britain will but secure her own authority fully before any terms are listened to; and, when that is acknowledged and established, then grant terms as liberal as she pleases, consistent with good government and future security."

*Bishop Inglis*, 3d September, 1779, says—"General Tryon made two or three descents on the coast of Connecticut, and burnt the towns of Fairfield and Norwalk. He was accompanied by a large body of refugees, who were extremely useful, and behaved with a resolution and intrepidity which did them great honour. Had the descents on Connecticut *been longer continued and carried on more extensively, the most salutary consequences might be apprehended.*



"The delusive notion of treating with Congress, I find, still prevails in some degree among you. Yet nothing could be more destructive to the interest of government. Treating with them would be confirming their usurpation. The loyalists, universally dread this above all things. However they may differ in opinion on other points, they are unanimous and united in this; and where so many are perfectly agreed in a matter which is level to all understandings, it must be the evident dictate of truth and reason."

*Isaac Ogden*, 20th September, 1779, says—"You may well ask what we are doing here. Our army is now (including the garrison from Rhode Island) at least twenty-four thousand men, a number sufficient to march through the whole continent; but what do numbers avail when they are cooped up in this dastardly manner? A want of knowledge of the country, a want of enterprise, or a want of something else, God only knows what, has prevented any and every attempt to interfere with the enemy. It is not a want of sufficient force, neither is it because it was impracticable. These are facts that the warmest of the rebels acknowledge. Their force is really despicable when compared to the army here. How is General Vaughan? I sincerely wish to see him at the head of the army here, as he is the only general that has been here that would listen to the advice of the American loyalists."

*Bishop Inglis*, 6th of November, 1779, says—"We have now within our lines upward of twenty-six thousand effective men, as I have been informed. Such a force, if led out and exerted with judgment and spirit, could not be resisted by the rebels—it must bear down all opposition. It is reported that Sir Henry Clinton is appointed sole commissioner, with authority to choose five assistants as a counsel, and that he is vested with power to treat with Congress, &c. It may be very proper to have a

commissioner here, vested with extensive powers; but as to any hopes of treating with Congress about an accommodation, be assured they are visionary. Congress have done enough to dissipate all such fond expectations, unless their independence is acknowledged; and I should be heartily sorry if a measure so dishonourable to the nation, as treating with the Congress in any respect, were adopted. Insult and obstinacy is all that can be expected from them.

"With respect to the rebellion, I am clearly of opinion that it daily declines. Washington is the man to whom the army look for redress and support. He is *now* in America what Monk was in England in 1659. I wish I could say in every respect. Were he equally disposed, he might effect as sudden and total a revolution, here as honest George Monk did then in England."

*Isaac Ogden*, 16th December, 1779, says—"There is an anecdote of General Grey that I have lately heard and believe to be true, though the fact cannot now be fully ascertained. Just before the battle of Brandywine, an officer was despatched home by General Howe. General Grey undertook to give him his instructions how to demean himself on his arrival in London, &c. A copy of these instructions was found by a countryman, and delivered to Joe Shippen (Secretary *Joe*,) who now has them in Philadelphia. A gentleman here has seen them. As he related them to me, you have them. 'You will first go to Lord George Germain; he will ask you such and such question; you will answer them *so and so*. You will then be sent to Lord North, who will ask you these questions; you will thus answer them. You will then be sent to the king, who will also ask you, &c.; you are also to give him these answers. You will then be examined by the queen. She is a sensible woman. You must answer with caution, but, of all things, be careful that you say nothing that will condemn the conduct of General Howe.'

Some pains are taken to procure this paper from Mr. Shippen; if it can be obtained, you will have it."

*David Ogden*, 3d December, 1779, says—"What gives me great concern is the fear of a dishonourable peace being made with the rebels. My fears arise from what I am told many of the officers in the army give out that America can never be conquered; and the sooner it is given up, and independence admitted by the crown and parliament, the better for Great Britain; and I am also informed that they have wrote to that purpose to their friends in England. What effect this may have on your side of the Atlantic, backed by the anti-ministerial party with you, enemies to monarchy and the great supporters of the rebellion in America, time must show; but I am persuaded that the present ministers will never give the least countenance to the independence of America. The laying the country waste has been called cruelty by the favourers of the rebellion, and said to be below the character of Britons; but in cases of rebellion, it has always, by the most civilized nations, been held justifiable, and no history affords an instance of calling it cruelty. The great mercy shown the rebels since the commencement of the rebellion is esteemed to be the greatest cruelty, as the lives of many thousands would have been preserved by a vigorous, exertion of the king's troops to distress the rebels wherever they marched, having a strict regard not to injure the loyalists."

*Daniel Cox*, 7th December, 1779, says—"Should you see Joe Reed's late speech to the assembly of Pennsylvania, you would imagine they felt no shock from the Georgia defeat. [5]

If but common means are actively employed and properly conducted, the rebellion must be crushed totally next campaign. I doubt not every effort in the power of Congress, both abroad and at home, will be made to carry themselves through another year; but, if you are successful at home, they must go to the devil. For God's sake, therefore, do not be frightened nor give us up; all must go right if You are but firm."

Reference has already been made to General Arnold's treason during the summer of 1780.[6]

From the private correspondence of Mr. Galloway, it appears, that as early as the autumn of 1778 Arnold was considered by the refugees as "*lenient*," if not friendly to them, and in this light was represented to the British ministry.

*Charles Stewart*, under date of the 17th December, 1778, says—"General Arnold is in Philadelphia. It is said that he will be discharged, being thought a *pert tory*. Certain it is that he associates mostly with those people, and is to be married to Miss Shippen, daughter of Edward Shippen, Esq."

*David Sproat*, 11th January, 1779, says—"You will also hear that General Arnold, commandant in Philadelphia, has behaved with lenity to the tories, and that he is on the eve of marriage to one of Edward Shippen's daughters."

*James Humphreys, Jun.* (printer), 8th of April, 1779, says—"General Arnold has been accused by the council of sundry misdemeanors. He has

insisted upon a trial by a court martial, and was triumphantly acquitted. The Congress, however, have thought proper to remove him from his command in the city of Philadelphia, he being of too lenient a disposition to answer their cruel purposes."

This correspondence also develops the conflicting views which were taken by the tories as to the operations of the British army. So far as it had any influence, it was calculated to embarrass the ministry. Only two very short extracts will be given on this subject. The dividing point between the northern and the southern tories was whether the main army should take possession of Hudson's river, or the isthmus between Newcastle and Chesapeake Bay.

*Bishop Inglis*, May 14th, 1779, says—"I am still of opinion that taking possession of Hudson's river should be the first object. When that is done, which will effectually divide the rebel forces, circumstances should determine whether our operations should be directed eastward or westward."

*John Potts*, December 17th, 1778, says—"If government means to pursue this matter, she must spare men enough to take possession of the isthmus between Newcastle and Chesapeake Bay, and, by clearing that country of rebels, procure sufficient provision and forage for the whole British force in America. That country can also supply the fleet with a great quantity of naval stores. The whole trade of Maryland and Pennsylvania will be destroyed, and a great part of Virginia. The interior of that peninsula is better disposed towards the British government than any other country in

the middle colonies. If possession of Rhode Island and this place (New-York) is retained, and that post taken, America has no access to sea from any intermediate port but Egg Harbour, which will then be scarcely an object. This is your plan, excepting the possession of Philadelphia and Bordentown, and, as the troops would not be dispersed too much, would, for that reason, be more eligible."

During the winter of 1778—79, the tories had it in contemplation to establish a regular corps for the purpose of plundering the whigs. About this period Colonel Burr took command of the lines in Westchester. His opinion of this system of warfare is expressed in a letter to General McDougall from which the following is extracted—"Colonel Littlefield, with the party, returned this morning. Notwithstanding the cautions I gave, and notwithstanding Colonel Littlefield's good intentions, I blush to tell you that the party returned loaded with plunder. Sir, till now I never wished for arbitrary power. I could gibbet half a dozen *good* whigs with all the venom of an inveterate tory." [7]

Let the reader compare the above *whig* sentiment with the following *tory* arrangement:—

*Christopher Sower*, 1st March, 1779, says—"An association is signing here (New-York), according to which the loyalists are to form themselves into companies of fifty men each; choose their own officers; to have the *disposal* of all prisoners by them taken; to make excursions against the rebels, plunder them, sell the spoil, appoint an agent to receive the money, and to divide it among them in equal shares." [8]

In the autumn of 1779 the refugees in New-York formed a board of delegates from the several provinces. In reference to it, *Daniel Cox*, December 7th, 1779, says—"I have lately brought about a general representation of all the refugees from the respective colonies, which now compose a board, called the board of refugees, and of which I have the honour at present to be president. We vote by colonies, and conduct our debates in quite a parliamentary style."

*Christopher Sower*, the 5th of December, 1779, says—"The deputies of the refugees from the different provinces meet once a week. Daniel Cox, Esq., was appointed to the chair, to deprive him of the opportunity of speaking, as he has the gift of saying little with many words."

Only one more extract will be given from the correspondence of Mr. Galloway, and that relates to the doings of this board of refugees. Among their labours, the manner of bringing the war to a speedy termination, and the formation of a constitution for the British provinces, engrossed their attention. No comments will be made on the plan; but it will not be found unworthy a careful perusal. Although presented as the individual suggestion of Mr. Ogden, it is evident, from other portions of the correspondence, that it was not unadvised, and, to the American reader, is now an amusing document.

*David Ogden*, 3d December, 1779, says—"When America submits to the crown of Great Britain, which I take as a matter certain, and will soon happen if proper measures are not neglected—pray, will not a constitution and government, in a manner something similar to the following, be most for the honour, security, peace, and interest of Great Britain, and also for the

happiness and safety of America, and most compatible to the spirit and genius of both?

"That the right of taxation of America by the British parliament be given up. That the several colonies be restored to their former constitutions and forms of government, except in the instances after mentioned. That each colony have a governor and council appointed by the crown, and a house of representatives to be elected by the freeholders, inhabitants of the several counties, not more than forty nor less than thirty for a colony, who shall have power to make all necessary laws for the internal government and benefit of each respective colony that are not repugnant or contradictory to the laws of Great Britain, or the laws of the American parliament, made and enacted to be in force in the colonies for the government, utility, and safety of the whole. That an American parliament be established for all the English colonies on the continent, to consist of a lord lieutenant, barons (to be created for that purpose), not to exceed, at present, more than twelve, nor less than eight from each colony, to be appointed by his majesty out of the freeholders, inhabitants of each colony; a house of commons, not to exceed twelve nor less than eight, from each colony, to be elected by the respective houses of representatives for each colony, which parliament, so constituted, to be three branches of legislature of the northern colonies, and to be styled and called the Lord Lieutenant, the Lords, and Commons of the British Colonies in North America. That they have the power of enacting laws, in all cases whatsoever, for the general good, benefit, and security of the colonies, and for their mutual safety, both defensive and offensive, against the king's enemies, rebels, &c.; proportioning the taxes to be raised in such cases by each colony. The mode for raising the same to be enacted by the general assembly of each colony, which, if refused or neglected, be directed and prescribed by the North American parliament, with power to levy the same. That the laws of the American parliament shall be in force till repealed by his majesty in council; and the laws of the several legislatures



of the respective colonies to be in force till the same be repealed by his majesty, or made void by an act and law of the American parliament. That the American parliament have the superintendence and government of the several colleges in North America, most of which have been the grand nurseries of the late rebellion, instilling into the tender minds of youth principles favourable to republican, and against a monarchical government, and other doctrines incompatible to the British constitution.

"A constitution and government something similar to the above, I am convinced, from the knowledge I have of the temper and spirit of the inhabitants of the colonies, will be most acceptable to them in general (it being what they wish for), and will also be conducive to establish a continued and lasting peace and harmony between Great Britain and the colonies. The Congress, no doubt, as it will deprive them of their power, will oppose the same by every artifice, as well as every other plan of accommodation that will lessen their grandeur and consequence. I am therefore persuaded that the Congress had best be altogether disregarded in any overtures of accommodation to be made or proposed, and all treaties with them absolutely refused, either directly with them, or indirectly through the courts of France and Spain, as men void of faith, or even common justice—deceivers of the people, and enemies to the public weal and happiness of mankind. And to facilitate a submission instead of a treaty, proceed with the army against the rebels with vigour and spirit, and issue a proclamation containing a constitution for North America, and a pardon to all who lay down their arms and take the oath of allegiance to his majesty and his government, *excepting*, as necessary examples of justice,

"*First*. The several members of the Continental Congress who have been elected and served as members thereof since the declaration of Independence.

"*Second.* All governors, presidents of the supreme executive councils or of other councils, or of any of the colonies, acting under the Congress, or any new and usurped form of government.

"*Third.* All those who have been by his majesty appointed of his council in any of the colonies, and since taken an active part in the civil or military department under the Congress or under any establishment of the rebel government.

"*Fourth.* All judges who have, since the rebellion, passed sentence of death against any of his majesty's liege subjects, for any supposed or real crime, committed or pretended to be committed against any law enacted or made by the Congress, or by any of the usurped or pretended legislatures of the colonies, making the fact or facts criminal for which he, she, or they were condemned to suffer death.

"*Fifth.* All commissaries and others who have seized and sold the estates of any of his majesty's liege subjects, under any pretence whatsoever, unless it was done by the consent and orders of the rightful owner, leaving all such to the mercy of his majesty, to be granted to those only whose conduct merits mercy, and hold up the same in the proclamation, if any should issue.

"Will it not be proper as well as just to have the estates of the rebels who are gone out of the king's lines among the rebels forfeited, confiscated, and sold by commissioners to be appointed for that purpose, and the moneys arising on the sales to be applied to the use of the refugees, to compensate for their sufferings by the rebels in ease of the parliamentary donations? Will not the perfidy of France and Spain justify Great Britain in proposing and entering into an alliance with the courts of Russia, Prussia, and other powers, to unite against France and Spain, the common disturbers of public tranquillity; take and divide among them all their islands in the West Indies?"

Footnotes:

1. Lord North.
2. General Vaughan.
3. Sir Henry Clinton.
4. The Hon. Joseph Reed, whom the British attempted to bribe through the agency of Mrs. Ferguson.
5. Referring to the discomfiture at Savannah of the combined forces of France and the United States; the former under the command of Count D'Estaing, the latter commanded by General Lincoln.
6. See Vol. I., Ch. XIII.
7. See Vol. I., Ch. IX.
8. On the back of Mr. Sower's letter Mr. Galloway has made, in his own handwriting, this endorsement—"Mr. Sower is a German refugee at New-York, and a person of the greatest influence among the Germans in Pennsylvania."

## CHAPTER III.

The extracts which have been given from the correspondence of Mr. Galloway present, in a point of view sufficiently clear and distinct, the unquestionable hostility of the tories towards the whigs; the manner in which they wished the British ministry to conduct the contest; the punishment they would have inflicted upon the rebels if they had been successful, and the form in which they would have subsequently governed the country. These views are deemed a sufficient reason for the feelings of the whigs; a justification of those legislative disqualifications of the tories which were adopted by the State of New-York during the war of the revolution, and cause for the patriotic determination that the refugees should not be protected or permitted to remain in the land which they had so zealously struggled to enslave.

At a very early period after the declaration of Independence, parties were formed among the whigs. In the State of New-York, at the first election, in 1777, for governor under the new Constitution, General Schuyler was presented in opposition to George Clinton, but was defeated. With that defeat it is believed commenced political heart-burnings and collisions which, although at times smothered, were never extinguished. Schuyler was a man of great boldness and sagacity. He was personally unpopular, yet he possessed a commanding influence over the mind of those with whom lie

commingled or was in any manner connected; an ascendancy which, in a measure, was to be ascribed to the force of intellect.

On the 12th of September, 1780, General Schuyler was a candidate for Congress. At that time the members were chosen by the legislature. Each house, viva voce, named a candidate. The two branches then met together and compared their nominations. If they both designated the same individual, he was declared to be chosen. If not, they proceeded as one body to a ballot, and the person having a majority of all the votes given was duly elected. The house almost unanimously nominated General Schuyler, the vote being for Schuyler, thirty-one, for Ezra L'Hommidieu seven. The senate nominated L'Hommidieu. In joint ballot, notwithstanding the vote Schuyler had received in the house, L'Hommidieu was chosen. For some reason not then explained, there was a sudden and extraordinary change of opinion in the legislature in relation to General Schuyler.

About this period, certain individuals were for the appointment of a "Supreme dictator, with all the powers conferred by the Roman people." A convention was to be held at Hartford, consisting of delegates from the five New-England states and the state of New-York, for the purpose, among other objects, of devising more efficient measures for the supply of the army. Judge Hobart, Egbert Benson, and General Schuyler were the delegates. "It was for a contemplated by the legislature to give them instructions to propose that a dictator should be appointed, for which a majority in the more popular branch were believed to be favourable. This 'mad project,' as Colonel Alexander Hamilton designated it, was communicated to him by General Schuyler in a letter of the 16th of September, 1780." [1]

The scheme was opposed with great ardour and perseverance by Governor George Clinton, Ezra L'Hommidieu, and others; but, through the

influence of the former, in a great measure, the "mad project" was defeated. Here again the party lines were drawn between Governor Clinton and General Schuyler. It is highly probable that the plan for appointing a "supreme dictator" was a principal cause for the change of opinion respecting General Schuyler in the legislature on the 12th of September, and contributed to defeat his election to Congress.

From this period until the adoption of the Federal Constitution, the Clinton and the Schuyler parties continued to exist. In the ranks of the latter there was great concert in action. On an examination of the legislative journals from 1777 to 1788, it will be seen, that with General Schuyler were the Jays, the Livingstons, the Van Rensselaers, and the Bensons, and that they almost uniformly voted together.

And now of the tories. In the year 1779 some of them, who had removed from Albany within the British lines, petitioned the legislature for leave to return, which petition was rejected. At the same session an act was passed requiring all counsellors and attorneys, before they could be permitted to practice in any court, to produce evidence of their attachment to the liberty and independence of the United States. On the 20th of November, 1781, a special act was passed on the same subject, confirmatory of what had been done in 1779.

The first session of the legislature after the revolutionary war was held in the city of New-York. It was convened by proclamation of the governor on the 6th of January, 1784, and continued its sitting until the 12th of May following. In the first month of the session, numerous petitions were presented by the tories, praying to be relieved from their banishment, and to be permitted a residence within the state. The legislature perceived that, if they did not act promptly, their tables would be covered with these

memorials. Therefore, in the language of Governor Clinton at the opening of the session, the assembly said—

"While we recollect the general progress of a war which has been marked with cruelty and rapine; while we survey the ruins of this once flourishing city and its vicinity; while we sympathize in the calamities which have reduced so many of our virtuous fellow-citizens to want and distress, and are anxiously solicitous for means to repair the wastes and misfortunes which we lament," we cannot hearken to these petitions. They were referred to a select committee, which committee in a few days reported against granting their prayer, and the house instantly, without a division, agreed to the report. This was on the 9th of February, 1784.

On the 11th of February, 1784, the assembly passed a resolution directing that the names of those persons that had been attainted should be communicated to the governors of the several states; requesting to be supplied, in like manner, with "a list of the persons proscribed or banished by their respective states, in order that thereby the *principles of federal union* may be adhered to and preserved." In the senate this resolution was permitted to sleep.

Chancellor Robert R. Livingston, in a letter to John Jay dated the 25th of January, 1784, thus speaks of parties at this period. "Our parties are, first, the tories, who still hope for power, under the idea that the remembrance of the past should be lost, though they daily keep it up by their avowed attachment to Great Britain; secondly, the violent whigs, who are for expelling all tories from the state, in hopes, by that means, to preserve the power in their own hands. The third are those who wish to suppress all violence, to soften the rigour of the laws against the loyalists, and not to banish them from that social intercourse which may, by degrees, obliterate the remembrance of past misdeeds."

On the 8th of March, 1784, Peter Yates and three hundred others petitioned the legislature to prevent those persons who had joined or remained with the enemy during the late war from returning, and to prohibit such as have remained from being eligible to any office of profit or trust. On the 31st of the same month strong resolutions were introduced into the house, and adopted by both branches, against the tories, declaring, among other things, "That as, on the one hand, the rules of justice do not require, so, on the other, the public tranquility will not permit, that such adherents who have been attainted should be restored to the rights of citizenship."

In May, 1784, the legislature passed an act entitled "An act to, preserve the freedom and independence of this state, and for other purposes." The object of this law was to prohibit the tories from holding any office. The Council of Revision returned the bill, with objections to its passage, one of which was, "that so large a portion of the citizens remained in parts of the *Southern District* which were possessed by the British armies, that in most places it would be difficult, and in many *absolutely impossible*, to find men to fill the necessary offices, even for *conducting* elections, until a new set of inhabitants could be procured."

This bill of disfranchisement, notwithstanding the objections of the Council of Revision, was passed by more than two thirds of both branches, and thus became a law. Such were the feelings of the "violent whigs;" such the policy of the first legislature after the termination of the war. But, unfortunately, among those who had fought the battles of the revolution, there were some who doubted the capacity of the people for self-government, while there were others who sought power and influence at the hazard of principle. The Schuyler party were in the minority. The Clinton party, designated by Chancellor Livingston as the "violent whigs," were uncompromising on the question of banishing the tories, who were numerous, especially in the Southern District. It seemed probable, therefore,



if restored to citizenship, that they would amalgamate with the *third* party, or that class of whigs "who wished to suppress all violence, and to soften the rigour of the laws against the royalists."

In March, 1783, the legislature passed an act entitled "An act for granting more effectual relief in cases of trespass." The object of this act was to enable the whigs at the termination of the war to recover from the tories rent for any landed estate they might have occupied; and in cases of suit for such rent, the act declares "that no defendant or defendants shall be admitted to plead in justification any military order or command whatsoever for such occupancy."

Under this statute an action was commenced by Mrs. Rutgers against Mr. Waddington, in the Mayor's Court of the City of New-York, for the recovery of rent for the occupancy of a brewhouse and malthouse, the property of the said Mrs. Rutgers. The cause was argued on the 29th of June, 1784, James Duane as Mayor, and Richard Varick as Recorder, presiding. On the 27th of August the court gave judgment "that the plea of the defendant was good for so much of the time as he held under the British commander-in-chief; because, in the opinion of the court, a liberal construction of the law of nations would make it so." As this decision involved a great principle, and would materially affect the whigs whose property had been occupied by the tories during the war, it produced great excitement.

A meeting of the whigs was convened on the 13th of September, 1784. A committee was appointed, and an address to the people of the state prepared and published by them. That committee consisted of Melancton Smith, Peter Ricker, Jonathan Lawrence, Anthony Rutgers, Peter T. Curtenius, Thomas Tucker, Daniel Shaw, Adam Gilchrist, Junr., and John Wiley. Of this committee Melancton Smith was the life and soul. He was the author of

the address—a clear, able, and unanswerable exposition of the case. It states the determination of Mrs. Rutgers to carry it up to the Supreme Court, and, if defeated there, to the Senate, which, with the judges of the Supreme Court, constituted the Court for the Correction of Errors. Having reference to the contemplated proceedings, the address closes as follows:—

"Preparatory to such an event, we exhort you to be cautious, in your future choice of senators, that none be elected but those on whom, from long and certain experience, you can rely as men attached to the liberty of America, and firm friends to our laws and constitution; men who will spurn at any proposition that has a tendency to curtail the privileges of the people, and who, at the same time that they protect us against *judicial tyranny*, have wisdom to see the propriety of supporting that necessary independence in courts of justice, both of the legislature and people.

"Having confined ourselves to constitutional measures, and now solemnly declaring our disapprobation of all others, we feel a freedom in sounding the alarm to our fellow-citizens. If that independence, which we have obtained at a risk which makes the acquisition little less than miraculous, was worth contending for against a powerful and enraged monarch, and at the expense of the best blood in America, surely its preservation is worth contending for against those *among ourselves who might impiously hope to build their greatness upon the ruins of that fabric which was so dearly established*.

"That the principle of decision in the case of Rutgers vs. Waddington is dangerous to the freedom of our government, and that a perseverance in that principle would leave our legislature nothing but a name, and render their sessions nothing more than an expensive form of government, the preceding remarks must evidence.

"Permit us, on this occasion, earnestly to entreat you to join us in watchfulness against every attempt that may be used, either violently and suddenly, or *gently and imperceptibly, to effect a revolution in the spirit and genius* of our government; and *should there be among us characters to whom the simplicity of it is offensive*, let our attention and perseverance be such as to *preclude the hopes of a change*."

Here again the party lines of 1777 are distinctly marked. Melancton Smith, Jonathan Lawrence, &c., were of the Clinton party, while Mr. Duane and Mr. Varick were attached to the Schuyler interest.

In October, 1784, the case of Rutgers vs. Waddington was brought before the legislature, and on the 27th of that month the assembly

*Resolved*, That this adjudication is subversive of all law and good order; because, if a court instituted for the *benefit and government of a corporation* may take upon themselves to dispense with a law of the state, all other courts may do the like: therefore,

*Resolved*, That it be recommended to the honourable the Council of Appointment, at their next session, to appoint such persons to be mayor and recorder of the city of New-York as will govern themselves by the known laws of the land.

Subsequently Waddington compromised the claim against him; but the law in similar cases became operative, and remained so until its repeal by the legislature. In the following session, March, 1785, an unsuccessful attempt was made to repeal the act of 1781, disqualifying tory counsellors and attorneys; some modification, however, of other laws of a similar character was effected. In April, 1786, the repealing act passed; and the restriction on the tory lawyers being removed, they were permitted to practise in the several courts of the state. During the same month, "an act

for the payment of certain sums of money" was amended by adding a clause, "restoring to the rights of citizenship, on taking the oath of abjuration and allegiance," all such persons as had been disfranchised by the third clause of the act entitled "An act to preserve the freedom and independence of this state," passed the 12th of May, 1784. During this session the Schuyler party had the ascendance, and on all questions having a political aspect the names of Alexander Hamilton, Richard Varick, C. Livingston, Nicholas Bayard, David Brooks, James Livingston, &c., will be found on the same side.

On the 10th of March, 1787, Mr. Hamilton asked leave, which was granted, to bring in a bill to repeal the act entitled "An act for granting relief in case of certain trespasses." This was the act under which the suit had been commenced against Waddington, and which case produced so much excitement in the summer and autumn of 1784. Mr. Hamilton's bill passed; but, lest there should be some forgotten statute that might restrict or limit the political privileges of the tories, it was deemed expedient, on the 13th of April, to introduce and pass an act under the imposing title of "An act to repeal all laws of this state inconsistent with the treaty of peace." As its provisions met every possible case, the tories were now placed on a footing with the whigs. All they wanted was leaders. The rank and file they already possessed.

The Schuyler party sought allies. The tories were numerous, especially in the Southern District. The Clinton party, designated by Chancellor Livingston, in his letter to John Jay, as the "*violent whigs*," were uncompromising on the question of banishing the tories from the state. It seemed probable, therefore, that, sooner or later, if restored to citizenship, they would amalgamate with that class of whigs who wished to suppress "all violence, and to soften the rigour of the laws against the royalists."

The effect of these legislative measures on the tories was anticipated by both friends and foes. Chancellor Livingston, in January, 1784, had said that there were three parties in the state:—

*First.* The tories.

*Second.* The violent whigs.

*Third.* Those who wished " to soften the rigour of the laws against the royalists."

The Council of Revision, composed of Robert R. Livingston, Justice Morris, and Judge Hobart, had solemnly placed on record their opinion, that, in some portions of the Southern District "it would be difficult, and in many *absolutely impossible*, to find whigs to fill the necessary offices even for *conducting* elections." Under such circumstances it was evident that the *first* and *third* parties must amalgamate, and such was the result.

In January, 1788, the legislature met, and directed the call of a State Convention, to whom was to be submitted the Federal Constitution, as adopted by the General Convention held in Philadelphia in May, 1787. During this session the same party lines continued to be visible, although the respective parties had now assumed, or were designated by new names. The Schuyler was called the Federal party, and the Clinton the anti-Federal party; they were composed, however, of the same individuals, with very few exceptions. The great, and almost the only strength which the federal party possessed in the state was in the Southern District. Here the acquisition of the tories rendered their power and influence irresistible. From this district, composed of the counties of Westchester, New-York, Richmond, King's, Queen's, and Suffolk, the federalists had in the Assembly, during the session of 1788-89, *twenty* votes, and on no *party*

question did they command, during the whole session, more than *twenty-three* votes.

In December, 1788, a bill for carrying into operation the federal constitution being under consideration, a proposition was made to choose United States senators; but the federalists having a majority in the Senate, and the anti-federalists a majority in the House of Assembly, no compromise between the parties could be effected, and consequently no senators were chosen.

The following persons may be considered as constituting the strength of the Schuyler, now federal party, in the assembly of 1788-89:—

Brockholst Livingston, of the city of New-York. William W. Gilbert, " " Alexander Macomb, " " Richard Harrison, " " Nicholas Hoffman, " " John Watts, Jun., " " Nicholas Low, " " Gulian Verplanck, " " Comfort Sands, " " Philip Van Cortlandt, Westchester county. Philip Livingston, " " Nathaniel Rockwell, " " Walter Seaman, " " Jonathan Horton, " " John Younglove, Albany county. Henry K. Van Rensselaer, " " Stephen Carman, Queen's county. Whitehead Cornwell, " " Peter Vandervoort, King's county. Aquilla Giles, " " Abraham Bancker, Richmond county. John C. Dongan, " " Samuel A. Barker, Dutchess county.

It will be observed, that all the above Schuyler or federal members, with the exception of *two* from Albany and *one* from Dutchess county, were elected as representatives from the Southern District.

Having stated the origin and progress of the great political parties in the State of New-York, as they appear from the public records, it may be proper to add that Colonel Burr belonged to what was termed by Mr. Livingston "the violent whig party." By that party, while the tories were disfranchised,

Mr. Burr was elected in 1784 to represent the city and county of New-York in the legislature. By that party, in 1789, he was appointed attorney-general of the state. By that party, in 1791, he was appointed a senator of the United States. By that party, in 1792, he was appointed a judge of the Supreme Court. By that party, subsequently, he was elected a member of the Assembly and a member of the Convention to revise the Constitution of the State, of which convention he was president; and by that party, in 1800, he was elected vice-president of the United States.

It is not intended to discuss the policy, the humanity, or the justice of the several measures proposed or adopted in relation to the tories by "*the violent whigs*," or by those whigs who wished "*to soften the rigour of the laws against the loyalists*." The historical facts have been given, and the sources from whence they were derived specified. The feelings and opinions of "*the violent whigs*," are expressed by the legislature of the state on the 9th of February, 1784, and by Governor George Clinton at the opening of that session in the city of New-York. They say—"While we recollect the general progress of a war which has been marked with cruelty and rapine; while we survey the ruins of this once flourishing city and its vicinity; while we sympathize in the calamities which have reduced so many of our virtuous fellow-citizens to want and distress, and are anxiously solicitous for means to repair the wastes and misfortunes which we lament, we cannot hearken to these petitions."

On the other hand, the sentiments and views of those whigs who wished "*to soften the rigour of the laws against the loyalists*" are to be found in the following extracts of letters.

**JOHN JAY TO GOVERNOR WILLIAM LIVINGSTON. [2]**

"Passay, 9th April, 1783.

"The tories will doubtless cause some difficulty; but that they have always done; and as this will probably be the *last time*, we must make the best of it. A universal, indiscriminate condemnation and expulsion of those people would not redound to our honour, because so harsh a measure would partake more of vengeance than of justice. For my part, I wish that all, except *the faithless and cruel*, may be forgiven. That exception would indeed *extend to very few*; but even if it applied to the case of one only, that one ought, in my opinion, to be saved."

## JOHN JAY TO ROBERT R. LIVINGSTON.

"Passay, 12th September, 1783.

"Europe hears much, and wishes to hear more of divisions, seditions, violences, and confusions among us. The tories are generally and greatly pitied; *more, indeed, than they deserve*. The indiscriminate expulsion and ruin of that whole class and description of men would not do honour to our magnanimity or humanity, especially in the opinion of those nations who consider, with more astonishment than pleasure, the terms of peace which America has obtained."

### Footnotes:

1. See Life of Hamilton, Vol. I., p. 316
2. Jay's Works, Vol. I., p. 128.



## CHAPTER IV.

It has been seen that the Livingstons were of the Schuyler party during the revolutionary war, and that they continued so until the year 1787, when, in common with their political friends, they were the warm and ardent champions of the Federal Constitution. After its adoption, and the organization of the government under it, they soon became dissatisfied. The cause of that dissatisfaction has been differently explained. On the one hand it was said that they were alarmed at the doctrines of those who had been called to administer the government, and at the assumption of powers not delegated by the people. That they apprehended the government was verging towards a *consolidated national*, instead of a *federal* government of states.

On the other hand it was alleged that the family were disappointed and disgusted at the neglect which they experienced from General Washington. That, as Robert R. Livingston had been, in the state convention which adopted the Constitution, one of its most splendid and efficient supporters, he and his connexions anticipated his appointment to some exalted station; but that, while he was passed by unnoticed, his colleagues in that body, John Jay and Alexander Hamilton, had both received distinguished appointments—the one as Chief Justice of the United States, and the other as Secretary of the Treasury. Whatever may have been the cause of this change, it is certain that they soon abandoned the federal, and united their

political destiny with the anti-federal party. Although these gentlemen, as politicians, were acting in concert with Mr. Burr, yet there was no cordiality of feeling between them. In their social intercourse, however, the most perfect comity was observed; and as they were in a minority, struggling to break down a party haughty, proscriptive, and intolerant beyond any thing that the American people had beheld, they zealously united their efforts in effecting the revolution of 1800.

Soon after the adoption of the new constitution, the anti-federal party were recognised by a name more descriptive of their principles and their views. They assumed the title of democrats. They considered themselves anti-consolidationists, but not anti-federalists. They knew that a section of the dominant party were the friends of a splendid national government. That they were the advocates of a system, by means of which all power would have concentrated in the general, and the state governments been reduced to the level of mere corporations. Against this system the democrats reasoned and contended with unabated zeal. They were the early, unflinching, and faithful champions of state rights\_.

From the year 1790 until 1800, the democratic and federal parties were alternately triumphant, both in the city and in the state of New-York. In the former, the result of an election was frequently decided by the operations of some local or exciting topic. No decisive contest took place between the parties previous to 1800, founded on any great or controlling principle of government. But, during the years 1798 and 1799, the whole country was agitated from one extreme to the other. Revolutionary France was convulsed, and, in the midst of her convulsions and sufferings, was daily committing the most cruel and wanton excesses towards her own citizens, while she was offering taunts and insults to foreign nations. The federal party seemed to sigh for a war with France. Pretending that they apprehended a French invasion, a large standing army was raised. At the

head of this army, second in command to General Washington, was placed General Alexander Hamilton. To support the army and other useless extravagant expenditures, a land tax and an *eight per cent.* loan was found necessary. To silence the murmurs of an oppressed people, a sedition law was enacted. Such were some of the fruits of the elder Mr. Adams's administration.

In the autumn of 1799 and the winter of 1799-1800, the interesting and vital question was presented to the American nation:—Will you sustain this administration and these measures, and thus rivet chains upon yourselves and your posterity? Or will you calmly, but firmly and in union, resort to the constitutional remedy (the ballot-boxes) for relief from wrongs and oppressions which, if permitted to endure, must terminate in the horrors of intestine war? Here was a question of principle; and, it is believed, a question which was to decide the character of the government. Each party felt that it was a mighty struggle, decisive of its future political influence, if not of its existence.

The elections in the state of New-York were held in the month of April. In the year 1799 the federalists had a majority in the city of more than nine hundred. During the summer, it was universally conceded that on the state of New-York the presidential election would depend, and that the result in the city would decide the fate of the state. That this opinion was as universal as it was true, cannot be more distinctly exhibited than by the following extract of a letter from Mr. Jefferson to Mr. Madison, dated 4th March, 1800.

"In New-York all depends on the success of the city election, which is of twelve members, and of course makes a difference of twenty-four, which is sufficient to make the two houses, joined together, republican in their vote.  
\* \* \* \* \* Upon the whole, I consider it as rather more doubtful than the

last election (1796), in which I was not deceived in more than a vote or two.  
\* \* \* \* \* In any event, we may say, that if the city election of New-York is in favour of the republican ticket, the issue will be republican; if the federal ticket for the city of New-York prevails, the probabilities will be in favour of a federal issue, because it would then require a republican vote both from New-Jersey and Pennsylvania to preponderate against New-York, on which we could not count with any confidence."

Reference has been made to the conflicting factions of which the democratic party was now composed. The Clinton section, the Livingston section, and the Burr section. The first and last were apparently the same, but not so in reality. Colonel Burr's commanding talents had acquired for him an influence in the ranks of the democratic party in other states, which created some jealousy in the Clinton family, the younger and collateral branches of which were extremely hostile to him. The ambition of Burr, sustained by a daring spirit and unconquerable perseverance, awakened the apprehensions of Governor George Clinton lest he should be supplanted. The governor was a man of great sagacity and shrewdness. But these two sections, or, perhaps, more properly, the heads of them, united in their opposition to the Livingstons.

During the winter of 1800, the efforts of Colonel Burr to bring about a concert in action of these discordant materials were unceasing. With his own personal friends he had no difficulty, for it was ever one of his characteristics to secure inviolable the attachment of his friends. They were of the most ardent and devoted kind. Confiding in his patriotism and judgment, and feeling that he was incapable of deceiving them, they seemed willing, at all times and under all circumstances, to hazard their lives and fortunes in his support. They were generally young men of gallant bearing and disinterested views. No sordid calculations were made by them. No mercenary considerations influenced their conduct. They beheld in Colonel

Burr a patriot hero of the revolution, who had commingled with their fathers in the battle-field, and who had perilled every thing in his country's cause. Such were his friends, and such their zeal in his behalf. It was here that Colonel Burr was all-powerful, for he possessed, in a pre-eminent degree, the art of fascinating the youthful. But with all this tact and talent, he was credulous and easily deceived. He therefore often became the dupe of the most worthless and unprincipled.

Mr. Burr held frequent private meetings with his most intimate and confidential friends. At all these meetings it is believed the success of the democratic party was the only question under consideration. No local or personal interests were permitted to be discussed. The triumph of the party, as a whole, was the great object. By his adherents, it was deemed indispensable that he should be a member of the legislature to be chosen in April, which body was to appoint the presidential electors. While, on the other hand, it was considered not less necessary that he should be free to act at the polls in the city of New-York during the election. How was this to be effected? After much conference and deliberation it was resolved that he should be elected from Orange county, if the arrangement could be made, and the execution of the plan was intrusted principally to Peter Townsend, Esquire, of Chester, who, with the aid of other influential friends, accomplished it.

The next question was, Of whom shall the assembly ticket for the city be composed? On the suggestion of Colonel Burr, the names of certain distinguished individuals, venerable in years, and respected for their services, for months before the election were put in circulation as candidates; and, among others, Governor George Clinton and General Horatio Gates. At length the nominating committees were chosen; but so general had been the conversations as to suitable candidates, that very little diversity of opinion prevailed in the formation of the ticket.

The following persons were nominated: George Clinton, Horatio Gates, Samuel Osgood, Henry Rutgers, Elias Nexsen, Thomas Storm, George Warner, Philip I. Arcularius, James Hunt, Ezekiel Robins, Brockholst Livingston, and John Swartwout.

In this ticket the three sections of the democratic, but at this election designated the *republican party*, are fully represented. Governor Clinton at the head of one section, Brockholst Livingston representing another, and General Gates, well known to be the personal and political friend of Colonel Burr. This ticket being nominated by the committee, the difficulty was to procure their consent to stand as candidates. A majority of them had no expectation of success. They considered the contest as a forlorn hope, and shrank from being set up as targets to be shot at. Governor Clinton, General Gates, Brockholst Livingston, and others, had repeatedly declared their fixed determination not to permit their names to be used.

A sub-committee was appointed to wait upon the candidates, and obtain permission to present their names for approval to a general meeting of citizens to be convened for that purpose. The sub-committee consisted of Aaron Burr, David Gelston, John Swartwout, John Mills, and Matthew L. Davis. After various communications and much persuasion, *nine* of the candidates consented, some of them conditionally. But Governor Clinton, General Gates, and Brockholst Livingston were for a time immoveable. At length Colonel Burr induced Judge Livingston to agree that he would serve, if Governor Clinton and General Gates consented to serve. The sub-committee next waited upon General Gates, and Colonel Burr appealed to him in the most mild and persuasive language. After much importunity he yielded, provided Governor Clinton was also a candidate.

No terms can give a correct idea of the scenes between Governor Clinton and the sub-committee, for they had an interview with him on three

different days. The last was at the house of Colonel Burr, where Mr. Clinton met the committee by appointment. He never did consent to stand, but pledged himself to Colonel Burr and the committee that he would publish nothing in the newspapers, reserving to himself the right (which he subsequently exercised) of stating in conversation that his name was used without his authority or permission. Thus it is evident, that but for the matchless perseverance of Colonel Burr, the ticket, as it stood, never could have been formed, and, when formed, would have been broken up, and the republican party discomfited and beaten.

An imperfect sketch of the scene at the house of Colonel Burr was published in the year 1802, in a pamphlet under the signature of *Aristides*. The following is extracted from it. The note of reference here given is also extracted. Its correctness was never publicly denied by either of the gentlemen named. There exists no longer any reason for concealment on the subject; and it is therefore now admitted that this *note* was written from memorandums made at the time by the author of this volume.

## **EXTRACT,**

"Governor Clinton, however, remained unmoved by the most earnest solicitations; and, with matchless firmness, resisted the arguments of Mr. Burr, who forcibly asserted that it was a right inherent in the community to command the services of an individual when the nature of public exigences seemed to require it. He was inflexible to the last, and then was nominated and elected without a distinct expression of his approbation. Justice, however, induces me to acknowledge, that the reasons he assigned for the reluctance with which he acted were plausible and potent.

"He explicitly declared that he had long entertained an unfavourable opinion of Mr. Jefferson's talents as a statesman and his firmness as a

republican. That he conceived him an accommodating trimmer, who would change with times, and bend to circumstances for the purposes of personal promotion. Impressed with these sentiments, he could not, with propriety, he said, acquiesce in the elevation of a man destitute of the qualifications essential to the good administration of the government; and added other expressions too vulgar to be here repeated. 'But,' said he, with energy, 'if you, Mr. Burr, was the candidate for the presidential chair, I would act with pleasure and with vigour.'"

It is so notorious that these were Governor Clinton's sentiments, that it is scarcely necessary to produce authority to prove it. To remove, however, every doubt in the reader's mind, I will refer him to Mr. David Gelston, Mr. John Mills, Mr. John Swartwout, or Mr. Matthew L. Davis, in whose presence these sentiments, and many others more disrespectful, if possible, were uttered. It was at the house of Mr. Burr, who, anticipating the evil consequences that at that critical moment would result from such conduct in Governor Clinton, insisted, before he left the house, that he should promise his friends to desist from using such language previous to or during the election. This was very reluctantly complied with on the part of Mr. Clinton.

"Notwithstanding this, they were continually reiterated by his son, who publicly and loudly animadverted upon the character of Mr. Jefferson with the most vulgar severity. Similar sentiments were certainly entertained by all Governor Clinton's connexions, as their conduct during the election clearly evinced. Mr. Dewitt Clinton, through the whole contest, never appeared at the poll, but observed the most shameful indifference and inactivity."

The nomination of a ticket having been made and approved at a public meeting over which Anthony Lispenard presided, its effect upon both



parties was tremendous. The character and standing of the candidates seemed a presage of victory. It elated, and gave life and vigour to the republicans, while it paralyzed and depressed the federalists.

Never before or since has a ticket been presented to the citizens of New-York composed of men combining such talents, patriotism, experience, and public services, as the republican assembly ticket for the year 1800.

Those who possess a knowledge of the character of Colonel Burr know what were his qualifications for execution. The plan of the campaign having been opened, it only remained to be executed. In the performance of this duty, all Mr. Burr's industry, perseverance, and energy were called into operation. Nor were the federal party idle or inactive. They possessed wealth and patronage. Led on to the contest by their talented chieftain, General Hamilton, whose influence in their ranks was unbounded, they made a desperate but ineffectual resistance to the assaults upon their political citadel. If defeated here, their power was gone, and the administration of the government lost. Both General Hamilton and Colonel Burr exerted themselves personally at the polls during the three days of election. They repeatedly addressed the people, and did all that men could do. They frequently met at the same polls, and argued, in the presence of large assemblages, the debatable questions. Their deportment towards each other and towards their opponents was such as comported with the dignity of two of the most accomplished and courtly gentlemen of the age in which they lived.

The polls of the election opened on the morning of the 29th of April, and finally closed at sunset on the 1st of May. Immediately after, the inspectors commenced counting and canvassing the ballots. Sufficient progress was made during the night to render it, in a great measure, certain that the republican ticket had succeeded; and on the 2d of May this result was

announced, the average majority being about 490. All doubt as to the presidential vote of the state of New-York was now removed, unless the federal party, in their expiring agonies, could devise some plan by which the will of the people, thus clearly expressed, should be defeated. Such apprehensions were entertained, and, it was soon discovered, not entertained without good reason.

In both branches of the legislature elected in 1799 the federalists had a majority. The time of service of the members would expire on the 1st of July, 1800. After the nomination of the republican assembly ticket, but previous to the election in April, 1800, it was suspected that certain federalists had in contemplation a project to render the city election null and void if the republicans succeeded. When the polls were closed, therefore, discreet and intelligent men were placed at them to guard, if it should be found necessary, the inspectors from committing, inadvertently, any errors, either in canvassing or making their returns. Every movement, subsequently, of leading federal gentlemen was narrowly and cautiously watched. The result of the election was announced on the 2d of May. On the 3d of May, in the evening, a select and confidential federal caucus was held. On the 4th a letter was written to William Duane, editor of the Aurora, stating that such a caucus had been held the preceding night, and that it was determined by the caucus to solicit Governor Jay to convene the existing legislature forthwith, for the purpose of changing the mode of choosing electors for president, and placing it in the hands of the people by districts. The effect of such a measure would have been to neutralize the State of New-York, and, as the result finally proved, would have secured to the federal party their president and vice-president. This letter was published in the Aurora of the 6th of May, and called forth the denunciations of those federal papers whose conductors were not in the secret. The author of the letter was assailed as a *Jacobin* calumniator, and the whole story was pronounced a vile fabrication. One of the New-York city papers reprinted

the letter, and thus closes its commentary on it:—"Where is the American who *will not detest the author of this infamous lie*? If there is a man to be found who will sanction this publication, he is worse than the worst of Jacobins!"

What effect, if any, was produced by this immediate exposure of the caucus proceedings, it is not necessary now to inquire. It is sufficient to say that the development was, in all its parts, literally correct, and the subject is here introduced for the twofold purpose of showing, *first*, the vigilance, promptitude, and arrangement of the republican party of that day; and, *second*, the means to which certain desperate federalists were willing to resort for the purpose of retaining power. That the representations contained in the publication of the Aurora were strictly true, is now matter of recorded history.

In the life of John Jay, vol. i., p. 412, the letter addressed to the governor on this subject is published. It bears date *one day* after the publication in the Aurora, but before the paper reached the city of New-York. The author of the work, after some preliminary remarks, Says—"These details will explain the proposal made in the following letter, which was received by the governor *from one of the most distinguished federalists in the United States.*" [1]

TO JOHN JAY.

New-York May 7, 1800.

DEAR SIR,

You have been informed of the loss of our election in this city. It is also known that we have been unfortunate throughout Long Island and in Westchester. According to the returns hitherto, it is too probable that we lose our senator for this district.

The moral certainty, therefore, is, that there will be an anti-federal majority in the ensuing legislature; and the very high probability is, that this will bring Jefferson into the chief magistracy, unless it be prevented by the measure which I shall now submit to your consideration; namely, the immediate calling together of the existing legislature.

I am aware that there are weighty objections to the measure; but the reasons for it appear to me to outweigh the objections; and, in times like these in which we live, it will not do to be over scrupulous. It is easy to sacrifice the substantial interests of society by a strict adherence to ordinary rules.

In observing this I shall not be supposed to mean that any thing ought to be done which integrity will forbid; but merely that the scruples of delicacy and propriety, as relative to a common course of things, ought to yield to the extraordinary nature of the crisis. They ought not to hinder the taking of a legal and constitutional step to prevent an atheist in religion and a fanatic in politics from getting possession of the helm of state.

You, sir, know in a great degree the anti-federal party; but I fear you do not know them as well as I do. 'Tis a composition, indeed, of very incongruous materials, but all tending to mischief—some of them to the overthrow of the government, by stripping it of its due energies; others of them to a revolution after the manner of Bonaparte. I speak from indubitable facts, not from conjectures and inferences. In proportion as the true character of the party is understood, is the force of the considerations

which urge to every effort to disappoint it; and it seems to me that there is a very solemn obligation to employ the means in our power.

The calling of the legislature will have for object the choosing of electors by the people in districts; this (as Pennsylvania will do nothing) will ensure a majority of votes in the United States for a federal candidate. The measure will not fail to be approved by all the federal party, while it will, no doubt, be condemned by the opposite. As to its intrinsic nature, it is justified by unequivocal reasons of *public safety*.

The reasonable part of the world will, I believe, approve it. They will see it as a proceeding out of the common course, but warranted by the particular nature of the crisis and the great cause of social order.

If done, the motive ought to be frankly avowed. In your communication to the legislature, they ought to be told that temporary circumstances had rendered it probable that, without their interposition, the executive authority of the general government would be transferred to hands hostile to the system heretofore pursued with so much success, and dangerous to the peace, happiness, and order of the country. That under this impression, from facts convincing to your own mind, you had thought it your duty to give the existing legislature an opportunity of deliberating whether it would not be proper to interpose, and endeavour to prevent so great an evil, by referring the choice of electors to the people distributed into districts.

In weighing this suggestion, you will doubtless bear in mind that popular governments must certainly be overturned; and, while they endure, prove engines of mischief, if one party will call to its aid all the resources which vice can give, and if the other (however pressing the emergency) confines itself within all the ordinary forms of delicacy and decorum.

The legislature can be brought together in three weeks, so that there will be full time for the object; but none ought to be lost.

Think well, my dear sir, of this proposition; appreciate the extreme danger of the crisis; and I am unusually mistaken in my view of the matter if you do not see it right and expedient to adopt the measure.

Respectfully and affectionately yours.

Mr. Jay's biographer adds—"On this letter is the following endorsement in the governor's hand, *Proposing a measure for party purposes which I think it would not become me to adopt.*"

Footnotes:

1. As there were but *few* of "the most distinguished federalists in the United States" residing at that time in the city of New-York, the intelligent reader will form his own conclusions as to the source from whence it emanated.

## CHAPTER V.

During the summer of 1800 General Hamilton prepared for the press his celebrated pamphlet, entitled—"A letter from Alexander Hamilton, concerning the public conduct and character of John Adams, Esq., president of the United States." It was the design of the author of this pamphlet that it should be privately printed, and circulated in South Carolina only a few days before the election, for the purpose of preventing Mr. Adams from getting the vote of South Carolina, but securing it to Mr. Pinckney, who was the federal candidate for the vice-presidency. The consequence would have been to place Mr. Pinckney's electoral vote higher than Mr. Adams's, and thus, if the federal party succeeded, Mr. Pinckney would have been elected president and Mr. Adams vice-president. Colonel Burr ascertained the contents of this pamphlet, and that it was in the press. Its immediate publication, he knew, must distract the federal party, and thus promote the republican cause in those states where the elections had not yet taken place. Arrangements were accordingly made for a copy, as soon as the printing of it was completed; and when obtained, John Swartwout, Robert Swartwout, and Matthew L. Davis, by appointment, met Colonel Burr at his own house. The pamphlet was read, and extracts made for the press. Mr. Davis was charged with forwarding these extracts to William Duane, editor of the *Aurora*, and to Charles Holt, editor of the *Bee*, printed in New-London, which was accordingly done, and the extracts immediately published. [1]

The effect of this sudden and unexpected explosion was such as might have been anticipated. It rent the federal party in twain. The publication, from time to time, of extracts, and the excitement which was produced throughout the country by them, at length compelled Mr. Hamilton to authorize the publication of the entire pamphlet; and accordingly, in October, as the electors were to be chosen in November, it was advertised for sale in the Daily Gazette. The editor of the paper explained that it was not the intention of General Hamilton to give publicity to this letter at the time it was made public; but that extracts from it by some unknown means had found their way to the public, and therefore the whole was now given.

Further evidence of the vigilance and efficiency of Colonel Burr in promoting the revolution of 1800 is deemed unnecessary. It is most solemnly believed that the overthrow of the federal party at that time would not have been accomplished but through his zeal, sagacity, and industry. His friends, therefore, have ascribed to him, and not without some foundation, the election of Mr. Jefferson to the presidency.

Governor Jay having refused to comply with the wishes of "one of the most distinguished federalists in the United States," as proposing a measure for party purposes which he (Governor Jay) thought it would not become him to adopt, the legislature did not convene until the fourth day of November, 1800, and on the sixth they proceeded to the choice of electors for president and vice-president. The republican ticket prevailed. It was composed of the following, persons:—

Isaac Ledyard, of Queen's County.

Anthony Lispenard, of New-York.

P. Van Courtlandt, of Westchester



James Burt, of Orange.

Gilbert Livingston, of Dutchess.

Thomas Jenkins, of Columbia.

[continued list of Republican electors]

Peter Van Ness, of Columbia.

Robert Ellis, of Saratoga.

John Woodworth, of Rensselaer.

J. Van Rensselaer, of Albany.

Jacob Eacker, of Montgomery, and

William Floyd, of Suffolk.

The vote stood:—

Republican. Federal.

In the Senate 18 24 In the Assembly 64 39

Thus, on joint ballot, the republican majority was nineteen; and consequently, as the city of New-York elected *twelve* members, if the federalists had succeeded in the city, they would have had, in joint ballott, a majority of from six to ten.

As a part of the history of this election, the following letter and extracts from letters are here inserted.

## THOMAS JEFFERSON TO AARON BURR.

Washington, December 15, 1800.

"DEAR SIR,

Although we have not official information of the votes for president and vice-president, and cannot have until the first week in February, yet the state of the votes is given on such evidence as satisfies both parties that the two republican candidates stand highest. From South Carolina we have not even heard of the actual vote, but we have learned who were appointed electors, and with sufficient certainty how they would vote. It is said they would withdraw from yourself one vote. It has also been said that a General Smith, of Tennessee, had declared that he would give his second vote to Mr. Gallatin, not from any indisposition towards you, but extreme reverence to the character of Mr. Gallatin. It is also surmised that the vote of Georgia will not be entire. Yet nobody pretends to know these things of a certainty, and we know enough to be certain that what it is surmised will be withheld, will still leave you four or five votes at least above Mr. Adams. However, it was badly managed not to have arranged with certainty what seems to have been left to hazard. It was the more material, because I understand several high-flying federalists have expressed their hope that the two republican tickets may be equal, and their determination in that case to prevent a choice by the House of Representatives (which they are strong enough to do), and let the government devolve on a president of the Senate. Decency required that I should be so entirely passive during the late contest, that I never once asked whether arrangements had been made to prevent so many from dropping votes intentionally as might frustrate half the republican wish; nor did I doubt, till lately, that such had been made.

"While I must congratulate you, my dear sir, on the issue of this contest, because it is more honourable, and, doubtless, more grateful to you than any station within the competence of the chief magistrate, yet, for myself, and for the substantial service of the public, *I feel most sensibly the loss we sustain of your aid in our new administration. It leaves a chasm in my arrangements which cannot be adequately filled up. I had endeavoured to compose an administration whose talents, integrity, names, and dispositions should at once inspire unbounded confidence in the public mind, and ensure a perfect harmony in the conduct of the public business. I lose you from the list*, and am not sure of all the others. Should the gentlemen who possess the public confidence decline taking a part in their affairs, and force us to take persons unknown to the people, the evil genius of this country may realize his avowal that 'he will beat down the administration.' The return of Mr. Van Benthuyzen, one of your electors, furnishes me a confidential opportunity of writing this much to you, which I should not have ventured through the postoffice at this prying season. We shall, of course, see you before the fourth of March. Accept my respectful and affectionate salutations."

The letter is, in a great measure, incomprehensible. It indicates nothing but Mr. Jefferson's extreme terror and apprehension lest he should be disappointed in his anticipated elevation to the presidency. It displays the *tact* of the ostrich, and the *sincerity* of a refined Jesuit. What does Mr. Jefferson mean by the declaration that he had formed a cabinet, of which Mr. Burr was to be a member? What when he says—"*I lose you from the list?*" Can any man believe that Mr. Jefferson expected to be elected president, but that Colonel Burr would be defeated; and that, acting upon such a state of facts, he had already selected the members of his administration, and that Mr. Burr was one of them? The supposition is absurd; but, without such a supposition, what becomes of the truth of Mr. Jefferson's declaration when he says—"I feel most sensibly the loss we sustain of your aid in our new administration. *It leaves a chasm in my*

*arrangements* which cannot be adequately filled up?" If this letter is carefully read and analyzed, its object may be comprehended. It was written a few weeks before the balloting was to take place in Congress. Mr. Jefferson expresses doubt as to the vote Mr. Burr will receive, but considers it certain that he will have "four or five votes at least above Mr. Adams." Four days after this letter he writes in a very different tone to a friend.

## MR. JEFFERSON TO MR. MADISON.

"Washington, December 19, 1800.

"DEAR SIR,

"Mrs. Brown's departure for Virginia enables me to write confidentially what I would not have ventured by the post at this prying season. The election in South Carolina has, in some measure, decided the great contest. Though, as yet, we do not know the actual votes of Tennessee, Kentucky, and Vermont, yet we believe the votes to be, on the whole, Jefferson, 73; Burr, 73; Adams, 65; Pinckney, 64. Rhode Island withdrew one from Pinckney. There is a possibility that Tennessee may withdraw *one* from Burr, and Burr writes that there may be one vote in Vermont for Jefferson. But I hold the latter *impossible*, and the former *not probable*; and that there will be an absolute parity between the two republican candidates. This has produced great dismay and gloom on the republican gentlemen here, and exultation in the federalists, who openly declare they will prevent an election, and will name a president of the Senate *pro tem.* by what, they say, would only be a *stretch* of the constitution. The prospect of preventing this is as follows. Georgia, North Carolina, Tennessee, Kentucky, Vermont, Pennsylvania, and New-York can be counted on for their vote in the House

of Representatives, and *it is thought, by some, that BAER of Maryland and LINN of New-Jersey will come over.*"

The preceding extract shows that Mr. Jefferson entertained no doubt "that there would be an absolute parity between the two republican candidates," notwithstanding his doubting remarks on that subject to Colonel Burr. Hopes were also entertained "that Mr. Baer of Maryland and *Linn of New-Jersey would come over.*" Reference will hereafter be made to these two states. The result of the electoral vote was as Mr. Jefferson anticipated. *Seventy-three* republican and *sixty-five* federal.

Although the ballots for president and vice-president had not been examined officially, yet it was well known that there was a tie between Mr. Jefferson and Colonel Burr.

On the 5th of February, 1801, Mr. Bayard, in the House of Representatives, offered a resolution declaring that, in case of a tie, the house would continue to ballot until a choice of president was made. It was referred to a select committee, and, on the 10th, it, with other rules to govern the house during the balloting, was adopted. The Senate passed a resolution that the ballots should be opened with closed doors. William H. Wells, of Delaware, of the Senate, and John Nicholas, of Virginia, and John Rutledge, of South Carolina, of the House of Representatives, were appointed tellers.

On the 11th of February the ballots were opened. During the performance of this ceremony a most extraordinary incident occurred. As it is known to but few now living, and never been publicly spoken of, it has been deemed proper to record it here, as a part of the history of that exciting contest.

The Aurora of the 16th of February, 1801, remarks, that "the tellers declared that there was some informality in the votes of Georgia; but,

believing them to be true votes, reported them as such." No explanation of the nature of this informality was given; nor is it known that any has ever been given since. Had it been announced at the time, there can be no doubt it would have proved fatal to the election of Mr. Jefferson. Whether the interest of our country would or would not have been thereby promoted, is not a question for discussion here.

By the Constitution of the United States at that time it was provided, Art. 2, sect. 1, "The electors shall meet in their respective states, and vote by ballot for two persons, of whom one at least shall not be an inhabitant of the same state with themselves. And they shall make a list of all the persons voted for, and of the number of votes for each, *which list they shall sign, and certify*, and transmit, sealed, to the seat of the government of the United States, directed to the President of the Senate. The President of the Senate shall, in the presence of the Senate and House of Representatives, open *all the certificates*, and the votes shall then be counted. The person having the greatest number of votes shall be the president, if such number be *a majority of the whole number of electors appointed*; and if there be more than one who have such majority, and have an equal number of votes, then the House of Representatives shall immediately choose, by ballot, one of them for president; and if no person have a majority, then from the *five highest* on the list the said house shall, in like manner, choose the president. But, in choosing the president, the votes shall be taken by states, and a majority of all the states shall be necessary to a choice."

From the above extract it will be seen that the Constitution is imperative as to the *form* and *manner* in which the electoral returns are to be made. The ceremony of opening was performed in the presence of the two houses. The package of a state having been opened by the vice-president, it was handed by him to the tellers. Mr. Jefferson was the presiding officer. On opening the package endorsed Georgia votes, it was discovered to be totally

irregular. The statement now about to be given is derived from an honourable gentleman, a member of Congress from the state of New-York during the administration of Mr. Jefferson, and yet living in this state. He says that Mr. Wells (a teller on the part of the Senate) informed him that the envelope was blank; that the return of the votes was not authenticated by *the signatures of the electors, or any of them, either on the outside or the inside of the envelope, or in any other manner*; that it merely stated in the inside that the votes of Georgia were, for Thomas Jefferson *\_four*, and for Aaron Burr *four*, without the signature of any person whatsoever. Mr. Wells added, that he was very undecided as to the proper course to be pursued by the tellers. It was, however, suggested by one of them that the paper should be handed to the presiding officer, without any statement from the tellers except that the return was informal; that he consented to this arrangement under the firm conviction that Mr. Jefferson would announce the nature of the informality from the chair; but, to his utmost surprise, he (Mr. Jefferson) rapidly declared that the votes of Georgia were *four* for Thomas Jefferson and *four* for Aaron Burr, without noticing their informality, and in a hurried manner put them aside, and then broke the seals and handed to the tellers the package from the next state. Mr. Wells observed, that as soon as Mr. Jefferson looked at the paper purporting to contain a statement of the electoral vote of the state of Georgia, his countenance changed, but that the decision and promptitude with which he acted on that occasion convinced him of that which he (a federalist) and his party had always doubted, that is to say, Mr. Jefferson's decision of character, at least when his own interest was at hazard. Mr. Wells further stated, that if the votes of Georgia had not been thus counted, as it would have brought all the candidates into the house, Mr. Pinckney among the number, Mr. Jefferson could not have been elected president.

The same honourable member of Congress further stated, that some few years after receiving the above information from Mr. Wells, he became

intimately acquainted with John Nicholas, who was one of the tellers referred to, and who had removed from Virginia into the western part of the State of New-York. Mr. Nicholas gave to the honourable member the same statement in substance, not knowing that it had been previously derived from Mr. Wells. Mr. Nicholas was a warm personal and political friend of Mr. Jefferson, and declared that he never felt so astounded in his life as when he discovered the irregularity. He claimed some credit for the adroit manner in which he had managed Mr. Rutledge, so far as to obtain his consent to hand the paper to Mr. Jefferson without public explanation from the tellers, and which was effected by a conciliatory appeal to the magnanimity of the member from South Carolina.

The whole number of electoral votes given at the election in 1800 was *one hundred and thirty-eight*: necessary to a choice, *seventy*. Mr. Jefferson and Mr. Burr had each, according to the return made, seventy-three. Georgia gave *four* votes. If that number had been deducted from Jefferson and Burr, as illegally returned, of which there is no doubt, they would have had only *sixty-nine* votes each; consequently they would not have had, in the language of the Constitution, "a majority of the whole number of electors appointed," and the candidates out of which a choice of president must be made would have been Mr. Jefferson, Mr. Burr, Mr. Adams, and Mr. Pinckney. The federal members would then have said to the republicans, We will unite with you in the choice of either of the gentlemen presented to the house except Mr. Jefferson; and if the government is to be brought to a termination by our failure to elect a president, the responsibility will be on you. And is it to be believed, that in such a case the *doubtful* members who were sighing for office, if any such there were, would have rejected the suggestion in toto?

The balloting continued from the 11th until the 17th of February inclusive. *Nine* states were necessary to a choice. On the first ballot Mr.



Jefferson had *eight*, Mr. Burr *six*, and *two* states were divided. At every ballot the same result was announced, until the *thirty-sixth* ballot, which was given on the 17th of February, when Mr. Jefferson was declared duly elected, *ten* states having voted for him.

On the first ballot Mr. Jefferson received New-York, New-Jersey, Pennsylvania, Virginia, North Carolina, Kentucky, Georgia, and Tennessee—*eight*.

Mr. Burr received New-Hampshire, Massachusetts, Rhode Island, Connecticut, Delaware, and South Carolina —*six*.

Divided, Vermont and Maryland—*two*.

On the final ballot Mr. Jefferson received New-York, New-Jersey, Pennsylvania, Virginia, North Carolina, Kentucky, Georgia, Tennessee, Maryland (*four* votes and *four* blanks), Vermont (*one* vote and *one* blank)—*ten*.

Mr. Burr received New-Hampshire, Massachusetts, Rhode Island, and Connecticut—*four*.

Delaware *blank*, South Carolina *no vote*.

During the balloting *one hundred and six* members of the House of Representatives were present. Of this number *fifty-one*, on the first ballot, voted for Mr. Jefferson; and on no subsequent vote was that number increased. The election was effected by the states of Maryland and Vermont giving their vote, instead of remaining *equally divided*, and thus having no vote; and that change was produced in Maryland by Mr. Craick, Mr. Dennis, Mr. Baer, and Mr. Chew Thomas voting *blank*, and Mr. Lewis R.

Morris, of Vermont, in like manner voting blank, leaving Mr. Matthew Lyon the sole representative of the state.

Previous to the balloting, Mr. Burr addressed to General S. Smith, of Baltimore, a member of the House of Representatives, the following letter. It will be seen by the date, that as soon as Colonel Burr supposed that there was a probability of a tie, he constituted General Smith his proxy to declare his sentiments.

## EXTRACT.

"New-York, 16th December, 1800.

"It is highly improbable that I shall have an equal number of votes with Mr. Jefferson; but, if such should be the result, every man who knows me ought to know that I would utterly disclaim all competition. Be assured that *the federal party can entertain no wish for such an exchange*. As to my friends, they would dishonour my views and insult my feelings by a suspicion that I would submit to be instrumental in counteracting the wishes and the expectations of the United States. And I now constitute you *my proxy to declare these sentiments* if the occasion should require." [2]

Baltimore, February 28, 1801.

Sir—Many of the citizens of Baltimore, who have just now heard of your arrival among them, beg leave to congratulate you and themselves upon the success of the late election of President and Vice-president of the United States. They, in a particular manner, appreciate that patriotism which disclaimed competition for the presidential chair with that other eminent

character who has finally been called to it—as setting a just value upon the will of the people.

By order of the meeting.

THOMAS McELDERRY.

To Aaron Burr, Vice-president elect of the United States of America.

Footnotes:

1. Mr. Tucker, in his life of Jefferson, ascribes the defeat of the federal party in South Carolina to General Hamilton's pamphlet. Its premature publication, no doubt, contributed largely to produce this result.

2. The effect of this letter upon public opinion may be judged of by the following, among other testimonials which might be inserted.

## CHAPTER VI.

This contest in Congress produced, almost immediately, strong feelings of dissatisfaction between some of the friends of Mr. Jefferson and Colonel Burr. Jealousies and distrust had previously existed. Mr. Jefferson was anxious that Mr. Madison should be his successor in office. The Clinton and Livingston families were prepared to unite in a crusade against Colonel Burr; the chieftains of each section hoping to fill the station from which he was to be expelled. General Hamilton was in favour of the election of Mr. Jefferson, as opposed to Colonel Burr. The result afforded him a triumph, and he was prepared, when opportunity should present, to prostrate his late successful opponent. Such was the state of parties, and such the feelings of leading and distinguished partisans, when Colonel Burr entered upon the vice-presidency, on the fourth of March, 1801. He was hemmed in on every side by political adversaries, ready for the onset so soon as it should be deemed expedient to make it. Every movement, every expression at the convivial board or in the social circle, and every action, was carefully watched and noted for future use, if, by the exercise of ingenuity and misrepresentation, such expression or action could be so tortured as to operate injuriously to him. These several sections, each acting within its own sphere, impelled by conflicting motives, were untiring in their efforts to accomplish the great object—the ruin of the vice-president. They combined wealth, talents, and government patronage.

The following short extracts from letters, written as early as 1794 and 1795, will show what were the wishes of Mr. Jefferson (so far as any reliance can be placed on professions) in relation to Mr. Madison.

## THOMAS JEFFERSON TO JAMES MADISON.

"Monticello, December 28, 1794.

"DEAR SIR,

"I do not see in the minds of those with whom I converse a greater affliction than the fear of your retirement; [1] but this must not be, *unless to a more splendid and more efficacious post.* [2]

There I should rejoice to see you; I hope I may say, I shall rejoice to see you. I have long had much in my mind to say to you on that subject; but double delicacies have kept me silent. I ought, perhaps, to say, *while I would not give up my own retirement for the empire of the universe*, how I can justify wishing one, whose happiness I have so much at heart as yours, to take the front of the battle which is fighting for my security."

## THOMAS JEFFERSON TO JAMES MADISON.

"Monticello, April 27, 1795.

"DEAR SIR,

"In mine, to which yours of March the twenty-third was an answer, I expressed my hope of the only change of position I ever wished to see you

make, and I expressed it with entire sincerity, because there is not another person in the United States who, being placed at the helm of our affairs, my mind would be so completely at rest for the fortune of our political bark. The wish, too, was pure, and unmixed with any thing respecting myself personally. \* \* \* \* \*

"If these general considerations were sufficient to ground a firm resolution never to permit myself to think of the office (president), or be thought of for it, the special ones which have supervened on my retirement still more insuperably bar the door to it. My health is entirely broken down within the last eight months; *my age requires that I should place my affairs* in a clear state; these are sound, if taken care of, but capable of considerable dangers if longer neglected; and, above all things, the delights I feel in the society of my family, and in the agricultural pursuits in which I am so eagerly engaged. *The little spice of ambition which I had in my younger days has long since evaporated, and I set still less store by a posthumous than present name.*"

It is a remarkable fact, that, previous to the balloting in Congress, all parties and sections of parties concurred in the opinion that the election would finally be determined, as it was, by New-York, New-Jersey, and Maryland. These *three* states would render the election of Colonel Burr certain; *two* of them could elect Mr. Jefferson. The vote, of New-York was to be decided by *Theodorus Bailey*, of Dutchess county, and *Edward Livingston*, of the city of New-York; the vote of New-Jersey by Mr. *Linn*, and the vote of Maryland by Mr. *Dent* or Mr. *Baer*.

In the Commercial Advertiser of the thirteenth of February, 1801, a paper opposed to the election of Colonel Burr, there is published an extract of a letter from a member of Congress, dated Washington, February 10, which

states that, upon the second ballot, it is expected that New-York, New-Jersey, and Maryland will vote for Mr. Burr.

On the sixth of February, 1801, a leading and influential republican member of Congress writes to his correspondent a letter, from which the following is extracted:—

"I have not time to answer your letter as fully as I could wish, as it would have been my desire to communicate to you not only facts, *but some of the reasons which have induced us to adopt the steps we have heretofore taken.* But, at all events, it is important that you should have an immediate knowledge of the present situation of affairs.

"It is reduced to moral certainty, so far as any reliance can be placed on the solemn determinations of men, that either Mr. Jefferson will be chosen, or that there will be no choice made. The republican majorities of eight states (including *Linn* [3] of New-Jersey, and the New-York representation, [4] the republican half of Maryland, including Mr. Dent, [5] and Lyon of Vermont, are *pledged* to persevere in voting for Mr. Jefferson to the end, be the consequence what it will."

Colonel Burr, soon after his election, gave his enemies an opportunity to cavil. It would be impossible to enter into all the details connected with this subject; but the principal charges which were made against the vice-president, and assigned as reasons for opposing his renomination, will be briefly presented. The replies to or explanations of them, by the parties implicated, will also be given.

Late in November, 1801, when Mr. Burr was on his way to Washington to take his seat in Senate as vice-president, he was addressed by certain citizens of Baltimore, on which occasion he remarked, "Time will not allow me to return you a written answer, but I must be permitted to state my

disapprobation of the mode of expressing public sentiment by addresses." This gave offence to some, and, by the artful and designing, was misrepresented. Mr. Burr, during the years 1798 and 1799, had beheld, with mortification and disgust, the adulatory, if not sycophantic addresses presented to President Adams. This reproof, therefore, of his friends, evinced his natural independence of character as well as the purest republican notions.

In the month of January, 1802, a bill to repeal what was termed by the republicans the federal midnight judiciary act, was pending before the Senate. On the 27th of January, a motion was made to refer the bill to a committee for the purpose of amendment. On this motion the votes were, *ayes*, 14; *noes*, 14. The vice-president, Colonel Burr, was in the chair. He said—"I am for the affirmative, because I never can resist the reference of a measure where the Senate is so nicely balanced, and when the object is to effect amendment that may accommodate it to the opinions of a large majority, and particularly when I can believe that gentlemen are sincere in wishing a reference for this purpose. Should it, however, at any time appear that delay only is intended, my conduct will be different."

This decision afforded the enemies of Colonel Burr an opportunity to break ground more openly against him. He was now charged with aiding the federal party in their efforts to embarrass the administration, and with the design of defeating the wishes of the American people. As yet, the charge of intriguing and negotiating with the federalists to obtain the presidency in opposition to Mr. Jefferson had not been made. The allies had not yet sufficiently poisoned the public mind against the vice-president, nor had they subsidized the requisite number of presses for carrying on the work of destruction. While the grand assault was meditating, and these *feints* were carrying on against the vice-president, he was constantly receiving approbatory letters from intelligent and well-informed citizens,



many of whom cowered beneath the storm when, in the height of its fury, it burst upon the victim. From among a number the following are selected:—

FROM A. J. DALLAS.

Philadelphia, 3d February, 1802.[6]

**DEAR SIR,**

On the judiciary question, I wrote my sentiments to Mr. Wilson Nicholas early in the session. I am sorry our friends have taken so peremptory a position, as the very circumstance of having taken it will render it difficult to move them. I cannot concur with them in the policy or expediency of the measure. The business of the court will not allow me to give my reasons in detail, but you shall have my brief.

1. There never was a case in which a party could be more justified in expressing their resentment, on account of the manner of passing the act; the manner of organizing the courts; the nature of the opposition to the repeal, denying its constitutionality, and menacing a civil war.

2. The repeal would be constitutional, from a review of the principles, and terms of the constitution itself; of the peculiar situation of the country ; its growing population ; its extending prospects; its increasing wants, pursuits, and refinements, &c.; of the analogy to the Judiciary Institution of England, where independent of the legislature is not within the policy or provision of the statutes relative to the commissions of the judges; of the analogy to the Judiciary Institutions of the sister states, which have all been subject to legislative interference occasionally. In Pennsylvania particularly, the constitution declares that the judges shall hold their commissions during

good behaviour; yet it expressly authorizes the legislature to abolish the Court of Common Pleas, &c.; and of the precedents in the existing act of Congress, which is an exercise of the power *sub modo*.

3. But notwithstanding the indignation I feel, in common with our friends, at the manner of passing the Circuit Court act; and notwithstanding my perfect conviction that Congress has the power of repealing the act, I think the repeal would be impolitic and inexpedient. If it would be impolitic acting on party principles, it would be inexpedient of course; but I mean, also, that it would be inexpedient on account of the use that Pennsylvania (and I presume the same as to other states) has derived from the institution:

1st. *It is impolitic.*

The republicans are not agreed on the constitutionality of the repeal. The people at large have imbibed strong prejudices on the subject of judicial independence. The repeal would be ascribed to party animosity; and if future amendments should be made, it would be considered as a personal proceeding, merely to remove the present judges: the hazard of loss in public opinion is greater than the hope of gain. There is a mass of the community that will not be fermented by the leaven of party passions. By persons of this description, the motive and effect will be strictly analyzed and purified. The mere resuscitation of the old system will either expose the administration of justice to inconceivable embarrassments, or demonstrate the motive to be abstractedly a party one, by calling for an immediate reform. The clamour of the federalists will at least have a reasonable foundation.

2. *It is inexpedient.*

The mere repeal will reinstate a system which every man of common sense and candour must deprecate. It will entirely destroy institutions

susceptible of being modelled into a form economical as well as useful. It will deprive some states of tribunals which have been found highly advantageous, to the despatch of business. I allude particularly to Pennsylvania. In this state justice, as far as respects our state courts, is in a state of dissolution, from the excess of business and the parsimony of the legislature.

With this view of the subject you will perceive that I think—*First*, There ought not to be a total repeal. *Second*, There ought to be amendments.

If, however, a repeal should take place, I am clearly of opinion that it would be unjustifiable to make any provision for the ex-judges. On this point and on the introduction of amendments I will, if you desire it, amplify by a future post.

The zealous republicans are exciting some intemperance here, in opposition to a memorial from our bar, which, you will perceive, is confined to the operation of the law in this state as a matter of fact, and not to any controversy of a constitutional or political nature.

I shall be anxious to hear from you as often as you can spare a moment, and particularly while the judiciary bill is pending.

Yours, with great regard,

A. J. DALLAS.

FROM NATHANIEL NILES.

February 17, 1802.

DEAR SIR,

Permit me to thank you most sincerely for the vote you gave in favour of Mr. Dayton's motion to refer the judiciary bill to a select committee; not because I am by any means satisfied it is not best that bill should pass, but because I earnestly desire that republicanism should on every occasion display the spirit of conciliation, as far as can be done without the destruction of principle. I am every day more and more satisfied that the cause is more endangered by the want of such displays than by every thing besides. The fate of parties in and about Congress will ultimately be determined by the great body of the well informed in the middle walks of life. It is happy, in some respects, that these are generally so far from the scene of action as to be tolerably free from the blinding influence of those passions which the scene itself is calculated to excite. They wish for every thing that tends to convince the great public that republicanism, instead of being hostile, is friendly to moderation and harmony. Shall we not do well to mark with great care and precision the sunken rocks and shoals on which self-denominated federalism has dashed itself to pieces? Among these I would enumerate their too eager and violent pursuit of their object. Had they been patient and accommodating, the eyes of the public would have been still hoodwinked, until habit, gradually acquired, would have rendered an expensive monarchy the most agreeable government. But, thank Heaven, they, by overacting, exposed their own feelings and designs. Will not the same pertinacity and precipitation endanger the better—the opposite cause? It is a prevalent idea among us middling people, that a good government must be a moderate one; and we are exceedingly apt to judge of the spirit of the government from the spirit of our rulers. Every thing non-conciliating bears in its very front strong symptoms of a tyrannical spirit.

I am, sir, the more gratified by your moderation because (though I am ashamed to avow it) I have heard you was too impetuous. Pardon my mistake; and suffer me to entreat you to encourage a steady pursuit of republican measures in that way which will convince the bystanders that the

actors are uniformly and irresistibly urged to pursue them by cool conviction, resulting from a candid, extensive, and philanthropic survey of the great object. Passion and caprice very illy become so awfully sublime an object as that for which well-informed republicans contend.

With sentiments of respect, your obedient servant,

**NATHANIEL NILES.**

**FROM A. J. DALLAS.**

Philadelphia, 3d April, 1802.

**DEAR SIR,**

The judiciary storm has passed away for the present. I perceive, however, that an effort is making to improve the old system without increasing the number of judges; and we are once more unanimous at the bar of Philadelphia in rejoicing that Paterson, and not Chase, presides in our circuit. I had begun an outline of courts and jurisdictions agreeably to your wish; but I lost the hope of its being adopted when finished, so I abandoned the labour. Perhaps it may be worth while to renew the scheme, with a view to a future session.

There are some rumours of jealousy and dissatisfaction prevailing among the republican leaders, in the executive as well as the legislative departments of the federal as well as of our state government. It will be disgraceful, indeed, if the rumours axe true. Very sincerely yours,

**A. J. DALLAS.**

Such were the sentiments and views of many of the most pure and intelligent of the republican party in relation to a repeal of the judiciary act of 1800. The preceding letters express the opinions entertained by thousands who were opposed to federal men and federal measures, but who wanted time for reflection; and yet, when Colonel Burr voted to recommit the repealing bill for the purpose of ascertaining whether it could not be rendered more satisfactory, the conspirators cried aloud, *Crucify him—crucify him.*

The plot now began to thicken. During the year 1801, a Scotchman by the name of Wood was employed to write "*A History of John Adams's Administration.*" Ward & Barlas, booksellers in New-York, were the proprietors of the copyright, and printed 1250 copies. William Duane, editor of the *Aurora*, furnished the author a portion of his materials, and became the agent to negotiate with a London bookseller for the publication of an edition in England. In the summer or autumn of 1801 Colonel Burr was informed of the progress of the work, and procured a copy before it was ready for publication. On examining it, he came to the conclusion that it was calculated to do the republican party more injury than good. It abounded with misrepresentations, errors, and libels. Mr. Burr, through a friend, agreed to pay a stipulated sum for the suppression of the work, under the most solemn assurance that no copy or copies would be permitted to go into the hands of any third person, but that the whole edition should be delivered to the agent who was to pay the money. Before the time of payment arrived, it was ascertained that a copy or copies had been parted with, and would not be returned. The contract was, therefore, never carried into effect. Pending this negotiation, Mr. Duane, through Wood or Ward & Barlas, was made acquainted with the arrangements which were in progress. Cheetham, the editor of the *American Citizen*, was also informed of what was doing. This was considered a most favourable opportunity for assailing the vice-president, and charging him with the design of

suppressing the History of John Adams's Administration for the purpose of keeping the people in ignorance of the wrong doings of the federal party. Although the assailants had a full view of the whole ground, yet the attack was commenced by innuendoes, indicating ignorance of the true state of facts. The charge operated most injuriously upon the republican character of Colonel Burr. The injury was irreparable, and the attacks continued with unexampled malignity.

This brief statement, it is hoped, will be found sufficiently explicit to be intelligible. And now for the conduct of Mr. Duane on the occasion. His object, and the object of his employers, was accomplished; but whether a short development of the whole case will or will not add to his fame, the reader must determine.

On or about the 27th of February, 1802, the editor of the Aurora, in his paper, states that a curious fact has lately been brought to light in New-York; that Wood had completed his engagement with Ward & Barlas to furnish a history of John Adams's Administration, and that 1250 copies were printed, but suppressed at the desire of some person. Mr. Duane then animadverted with harshness, and expresses a wish to get a clew to the names of the person or persons who suppressed the work.

On the 31st of May, 1802, the Aurora states that the American Citizen and the Evening Post have commenced a warfare, of which Mr. Burr is the object; that the principal matter of charge is the suppression of Wood's History of John Adams's Administration; and then adds—"We are fully possessed of one side of the subject, and have perused the suppressed book attentively."

On the 12th of July, 1802, the Aurora says—"So far as it relates to Mr. Burr, my opinions have been uniform and reiterated to his particular friends,

that if the motives for the suppression of the book were not *satisfactorily explained to the public*, his standing with the republican interest was gone."

During the period between February and July, 1802, the Aurora reprinted the slanders of Cheetham against Mr. Burr in relation to the suppressed book, and continued, from time to time, his own attacks upon the vice-president. While thus *publicly* giving currency to these calumnies, would it be believed (if asserted) that Mr. Duane was *privately* writing Colonel Burr, and approving of his conduct in suppressing the work? One of his letters on this subject is deemed sufficient to a right understanding of the case. It will now be given without comment. \* \* \* \* \*

FROM WILLIAM DUANE.

Thursday, April 15, 1802.

DEAR SIR,

I think it fortunate that the pamphlet of Mr. Wood has not yet been published, and that it would be much more so if it were not ever to see the light. It has disappointed my expectations of finding in it at least some useful reflections and reasonings, however little novelty there might be in the facts. But, even in the narration of facts, I find numerous errors, and not a few misrepresentations of things notorious to every man who has attended with understanding to the course of public affairs. There is in it a *something*, too, of a character very different from what was represented to me; the adoption of the story of Hamilton [7] and Lafayette, if it is not the effect of an indifference to accuracy, or a coldness in pursuit of truth, is something much worse, and at least is suspicious: there is more of the same kind of matter, and less attention to the influence and views of such characters, than the subject required. I consider it, upon the whole, as a hasty, crude, and inconsistent production, calculated rather to produce evil



than the least good—as it would be attributed to the republicans, with all its faults and inconsistencies, and a credit assumed from it as a party confession of merit, in a particular character, which is not founded, at least in the way stated in the pamphlet. Were some parts of it omitted, and false statements rectified, it might not do any harm; and perhaps it might be found advisable to adopt some plan of that kind, making a careful *record of the omissions* to insert any future *misrepresentations*, and a like record of such *additions* or *alterations*. This might be very easily done by printing the pages anew which contain the exceptionable parts, and, if necessary, substituting reflections or anecdotes, founded in fact, in their places. This might be done at a small expense. The thing, thus corrected, published; and, if any effort should be made to misrepresent, credit would be derived even by the defence, and the exposure of the motives for suppressing the misstatements.

This I have thought proper to write you, and I hope will, in its object and motives, find with you an excuse for doing so.

I am, with respect, your obedient servant,

**WILLIAM DUANE.**

Footnotes:

1. Mr. Madison was then a member of Congress.
2. President of the United States.
3. Appointed by Mr. Jefferson supervisor of internal revenue for the state of New-Jersey.

4. Edward Livingston and Theodorus Bailey; the former appointed United States district attorney for the district of New-York; the latter subsequently appointed postmaster of the city of New-York, and removed from the country, a distance of nearly one hundred miles, to take charge of the office. Cheetham, editor of the *American Citizen*, some time after Mr. Livingston's appointment, in referring to him, says—"Should Mr. Burr's *confidential friend ever become dangerous, we will show what he has been and what he is.*"

5. Appointed United States marshal for the Potomac district of Maryland.

6. This letter is dated *seven* days after Mr. Burr's casting vote in the Senate.

7. The story here referred to is thus related by Wood in his history: "In the year 1780, he (Hamilton) was promoted to the rank of colonel, and at the siege of Yorktown commanded the attack on one of the redoubts, the capture of which decided the fate of Lord Cornwallis and his army. The conduct of Mr. Hamilton on this occasion was truly honourable, and, in the history of his life, ought to weigh against several of those scars that have since stained his character. Previous to the attack, the Marquis de Lafayette proposed to General Washington to put to death all the British troops that should be found in the redoubts, as a retaliation for several acts of barbarity committed by the royal army. The steady and nervous mind of Washington, which was ever known to yield to the virtuous prejudice of compassion, gave his assent to the bloody order. But Mr. Hamilton (the tenderness of whose feelings has led him into error), after the redoubts were subdued, took the conquered under his protection, and proved to his enemies that Americans know how to fight, but not to murder." [General Hamilton, in a letter referring to this same story, says—"Positively and unequivocally, I

declare that no such or similar order, or any intimation or hint resembling it, was ever by me received or understood to have been given."

## CHAPTER VII.

Colonel Burr's silence under these reiterated attacks, with such means of defence as his enemies knew that he possessed, encouraged and imboldened them to make other and more daring assaults. He was now charged, in general terms, with intriguing for the presidency, in opposition to Mr. Jefferson; with endeavouring to obtain federal electoral votes, and thus to defeat Mr. Jefferson and promote his own elevation; with having entered into terms and conditions with federal members of Congress in the winter of 1800; and with having committed himself to, that party, in the event of success through their instrumentality. These slanders were countenanced and circulated in whispers by men high in authority, until the political integrity of Colonel Burr was so far ruined as to render any defence, on his part or on the part of his friends, useless and unavailing. The hireling press now boldly entered upon specific charges; naming the parties with whom Colonel Burr or his friends had negotiated, and the agents whom the vice-president had employed to effect his purposes. These details were given in a manner so circumstantial, as, by their audacity, seemingly to command confidence. The slanders were circulated with industry and rapidity, while the contradictions rarely met the public eye, except through the medium of a federal press, which publication, with the already prejudiced republican, was construed as evidence of the truth of the charge. The principal instances of specific cases will now be presented as briefly as practicable.

The presidential electors of the state of New-Jersey were federal. Dr. Samuel S. Smith, president of Princeton College, was an elector. The Hon. Jno. B. Prevost, son of Mrs. Burr by her first husband, was married to the daughter of Dr. Smith. This circumstance rendered plausible a story invented and propagated by the calumniators of Colonel Burr. They boldly charged that "*Dr. Smith, of New-Jersey, was secretly to have voted for Mr. Burr, and thus made him President of the United States.*" To this charge Dr. Smith replied as follows :—

## TO THE EDITOR OF THE EVENING POST.

Princeton, July 29, 1802.

SIR,

In your paper of Monday, July 26, under the article entitled *A View of the Political Conduct of Aaron Burr, Esq.*, by the author of the *Narrative*, I observe some very gross misrepresentations, which I conceive it to be a duty that I owe to Mr. Burr, the New-Jersey electors, and myself, to declare to be absolutely false. Mr. Burr never visited me on the subject of the late election for president and vice-president—Mr. Burr never conversed with me a single second on the subject of that election, either before or since the event. No project or plan of the kind mentioned in that paper was proposed or hinted at among the electors of New-Jersey. I am assured that Mr. Burr held no intrigue with them on that occasion, either collectively or individually. They were men above intrigue; and I do not know that he was disposed to use it. At their meeting, they unanimously declared that a fair and manly vote, according to their sentiments, was the only conduct which was worthy of their own characters or of their cause.

"SAMUEL. S. SMITH."

It was next charged that Colonel Burr had sent, at his own expense, special agents to different states, previous to the choice of electors, with the view of influencing their selection, and to promote his own elevation to the exclusion of Mr. Jefferson. The agents named were Mr. Abraham Bishop, of New-Haven, and Mr. Timothy Green, of New-York. It was asserted that Mr. Bishop was Mr. Burr's agent at Lancaster, Pennsylvania, during the session of the legislature that appointed the presidential electors.

In August, 1802, Mr. Bishop published a full and explicit refutation of the charge. He denied that Mr. Burr sent him to Lancaster, or that he went there for any purposes personally or politically regarding that gentleman. The publication of Mr. Bishop is not readily to be found; but he is still living, and subsequently was appointed by Mr. Jefferson collector of the port of New-Haven.

In relation to Mr. Green, it was alleged that he was sent to Columbia, South Carolina, for similar purposes, and that he "*corresponded with the vice-president on the subject of the then approaching election, under cover to John Swartwout.*" The replies of Mr. Green and Mr. Swartwout were as follows:—

"New-York, October 11, 1802,

"MESSRS. DENNISTON AND CHEETHAM,

"In the *American Citizen* of this day you have made a publication, to which you have affixed your names. In this you have stated, 1st, That Timothy Green, of this city, was despatched as an agent to Columbia, the

seat of government of the state of South Carolina, by the vice-president. 2dly, That he was the eulogist and intercessor for the vice-president. 3dly, That he sent the vice-president despatches regularly, addressed to Mr. John Swartwout, of this city, under cover.

"Now, as you have been most egregiously imposed upon by some disorganizing person, it is your duty and mine that the public be immediately furnished with both what were and what were not my inducements and motives in making a journey in November, 1800, to Columbia, and of my conduct while there. For this purpose you will please to insert in your paper of to-morrow the following corrections to your statement:—

"1st, I aver that I never went on any message of a political nature to Columbia, in South Carolina, or to any other place for the vice-president or any other person; neither was I ever requested or desired by the vice-president or by any other person to go to Columbia, in South Carolina, or any other place, on any political or electioneering mission, of any name or nature whatsoever. On the contrary, my journey to Columbia, in South Carolina, in the year of our Lord 1800, and my engagements until my return in 1801, was wholly unsolicited by any person (except my debtors in South Carolina), and were solely of a commercial nature, and for which I had been preparing eight months before.

"2dly, That I never wrote a letter to the vice-president of a political nature; neither did I write him any information relative to the presidential election in South Carolina, neither did I ever enclose a letter, directed to the vice-president, in a letter or cover directed to Mr. John Swartwout.

"3dly, That my letters to Mr. Swartwout while in South Carolina were unsolicited, and written solely with the motive to relieve the minds of my

friends from the anxiety necessarily attendant on a state of suspense, while an important event is hourly expected to take place.

"4thly, That I never was in the habit of eulogizing public men, neither did I vary from my usual manners while in South Carolina. I had no occasion to intercede for the election of Colonel Burr: all the fear I had while there was lest a compromise should take place, as the political parties were nearly balanced in the state legislature. This I did, as far as in my power, conscientiously endeavour to prevent; knowing that, if union and good faith were not inviolably preserved among the constitutional republicans, our past, present, and future exertions would be unavailing.

**"TIMOTHY GREEN."**

**FOR THE AMERICAN CITIZEN.**

"New-York, October 13, 1802.

**"MESSRS. DENNISTON AND CHEETHAM,**

"In your seventh letter addressed to Aaron Burr, Esq., Vice-president of the United States, published in the American Citizen of the 11th instant, I notice the following paragraph, viz.:—

"Meantime, Sir, you had your eye on South Carolina; you despatched an agent, Mr. Timothy Green, of this city, to Columbia, the seat of government of that state. It was questionable whether South Carolina would give you a single vote. At that period you were scarcely known in the state. Mr. Green was at Columbia at least two months. He, was your eulogist; your intercessor; he sent you despatches regularly; they were addressed to Mr.



John Swartwout, of this city, under cover, and by him communicated to you.

"You will please to inform the public, through the medium of your paper, that the above paragraph, so far as relates to my receiving letters under cover, or communications from Timothy Green for Aaron Burr, is utterly destitute of truth.

"JOHN SWARTWOUT."

In a pamphlet entitled "A View of Aaron Burr's Political Conduct," it was charged that "Mr. Burr, while in the city of New-York, carried on a negotiation with the heads of the federal party at Washington with a view to his election as President of the United States. A person was authorized by them to confer with him on the subject, who accordingly did so. Mr. Burr assented to the propositions of the negotiator, and referred him to his confidential friend to complete the negotiation. Mr. Burr stated that, after the first vote taken in the House of Representatives, New-York and Tennessee would give in to the federalists."

To this Colonel Burr replied, in a letter to *Governor Bloomfield*, of New-Jersey, under date September 21, 1802:—

"You are at liberty to declare from me that all those charges and insinuations which aver or intimate that I advised or countenanced the opposition made to Mr. Jefferson pending the late election and balloting for president; that I proposed or agreed to any terms with the federal party; that I assented to be held up in opposition to him, or attempted to withdraw from him the vote or support of any man, whether in or out of Congress; THAT ALL SUCH ASSERTIONS AND INTIMATIONS ARE FALSE AND GROUNDLESS."

In the pamphlet already referred to, and various newspaper publications, it was alleged that General Hamilton had personal knowledge of Colonel Burr's negotiations with the federalists. On the 13th of October, 1802, the editor of the New-York Evening Post (William Coleman) states that he is authorized to say that General Hamilton, at a dinner at Edward Livingston's, declared that he had no personal knowledge of any negotiation in reference to the presidency between Colonel Burr and any person whatever.

It will be recollected that Colonel Burr, in his letter to Governor Bloomfield, denied the charge of "having proposed or agreed to any terms with the federal party." The person named as being the agent of the federalists, with authority to confer with Colonel Burr, was David A. Ogden, Esq., of the city of New-York, who was intimately connected with General Hamilton in professional business. Dr. Peter Irving was at that time the proprietor and editor of a highly respectable daily journal (Morning Chronicle) published in the city of New-York. The facts in relation to this charge are developed in the following letters.

#### P. IRVING TO DANIEL A. OGDEN.

"New-York, November 24, 1802.

"SIR,

"Though I have not the pleasure of a personal acquaintance with you, I flatter myself that the contents of this letter will preclude the necessity of an apology for addressing you.

"It has been asserted in various publications that Mr. Burr, during the late election for president and vice-president, entered into negotiations and

agreed to terms with the federal party, or with certain individuals of that party, with a view to advance himself to the office of president to the exclusion of Mr. Jefferson. Mr. Burr, in a letter to Governor Bloomfield, dated the 21st of September last, declared that all such allegations were false and groundless; and the charges have been renewed in more recent publications, which point to you by name as the person through whom such negotiations were carried on and terms concluded. It has now become interesting to a great portion of the community to be informed how far these assertions and charges have been authorized by you, or are warranted by your knowledge of facts.

"Having received frequent anonymous communications for the Morning Chronicle relative to these matters, and being unwilling to occupy the paper with vague and unsubstantial conjectures or remarks on a subject of such importance, I am induced to apply directly to yourself as an authentic source of information. I do this with the more confidence, from a persuasion that you can have no wish to suffer false reports to circulate under the authority of your name for mere party purposes; and that, in the actual posture of things, you cannot be averse to declare publicly and explicitly your agency, if any, in the business. I take the liberty, therefore, of requesting your written declaration to the points above stated, together with any circumstances you may be pleased to communicate tending to establish the truth or falsehood of the charges in question.

"I have the honour to be, very respectfully, your obedient servant,

**P. IRVING."**

**DAVID A. OGDEN TO P. IRVING.**

New-York, November 24, 1802.

"SIR,

"Though I did not conceive it to be incumbent upon me, or in itself proper to notice a publication in a newspaper in which my name was used without my permission or knowledge, yet I have no objection to reply to an inquiry which comes in the shape of that contained in your letter, and from a person of your standing in society.

"I declare that my journey to the city of Washington, in the year 1800, was purely on private business, and without any understanding or concert whatever with Colonel Burr, whom I met at the stage-office on his way to Trenton, not having had before the least intimation of such a meeting; and that I was not then or at any time charged by him with any commission or errand of a political nature. In the course of our journey, no political conversation took place but of a general nature and in the presence of the passengers.

"When about to return from the city of Washington, two or three members of Congress, of the federal party, spoke to me about their views as to the election of president, desiring me to converse with Colonel Burr on the subject, and to ascertain whether he would enter into terms. On my return to New-York I called on Colonel Burr, and communicated the above to him. He explicitly declined the explanation, and did neither propose nor agree to any terms. I had no other interview or communication with him on the subject; and so little was I satisfied with this, that in a letter which I soon afterward wrote to a member of Congress, and which was the only one I wrote, I dissuaded from giving support to Colonel Burr, and advised rather to acquiesce in the election of Mr. Jefferson, as the less dangerous man of the two to that cause with which I believed the public interest to be inseparably connected.

"There are no facts within my knowledge tending to establish the truth of the charges specified in your letter.

"With due respect, I am, sir, your obedient servant,

**"DAVID A. OGDEN.**

**"DR. P. IRVING."**

It was then boldly asserted that Edward Livingston was "the confidential friend" to whom Mr. Ogden was referred "to complete the negotiation;" whereupon Mr. Burr made a call upon Mr. Livingston, to which the following reply was given:—

**"SIR,**

"In consequence of certain insinuations lately circulated, I think it proper to declare that you did not, in any verbal or written communication to me, during the late presidential election, express any sentiment inconsistent with those contained in your letter to General Smith, [1] which was published, or evincing any desire that the vote of the state should be transferred from Mr. Jefferson to yourself.

"I am, very respectfully, your most obedient servant,

(Signed) "EDWARD LIVINGSTON.

"The Vice-president of the United States."

In the hope of giving some support to these, calumnies, Mr. William S. Pennington, of New-Jersey, addressed a letter to the editors of the American Citizen, in which he asserted that General John Swartwout had written to Robert Williams, of Poughkeepsie, pending the election, recommending or

countenancing the support of Mr. Burr for president to the exclusion of Mr. Jefferson. To this General Swartwout replied:—

**TO THE PUBLIC.**

"The false colouring given by the relation of one William S. Pennington, in a letter to Denniston & Cheetham, which appeared in the American Citizen of the 22d inst., and their subsequent malicious remarks, oblige me once more to ask pardon for obtruding myself on the public attention.

"I declare, on my honour, that I did not at any time advise the election of Mr. Burr as president of the United States to the exclusion of Mr. Jefferson; nor did I ever write to any person or persons to that effect; and I hereby authorize Mr. Robert Williams to publish any letter or letters he may have received from me on the subject of the late presidential election. I am induced to contradict the base slanders of those exclusive patriots by a regard to truth only, and not from a conviction that it would have been either dishonourable to me, or disadvantageous to the country or the republican party, to have promoted the election of Mr. Burr to the presidential chair.

**"JOHN SWARTWOUT.**

"New-York, January 23."

The principal specifications, intended as explanatory of the general charge against Colonel Burr of intriguing for the presidency, have now been given. The replies of the parties implicated accompany them. A whole generation has passed away since these scenes occurred, and yet the time has not arrived when they can be calmly reviewed with impartiality and free from prejudice. They may serve, however, as beacon-lights for those who

are now figuring or may hereafter figure on the great political theatre of our country. Through life, Colonel Burr committed an error, if he did not display a weakness, in permitting his reputation to be assailed, without contradiction, in cases where it was perfectly defensible. His enemies took advantage of the sullen silence which he was known to preserve in regard to newspaper attacks. Under these attacks he fell from the proud eminence he once enjoyed to a condition more mortifying and more prostrate than any distinguished man has ever experienced in the United States.

Different individuals, to gratify different feelings, have ascribed this unprecedented fall to different causes. But one who is not altogether ignorant of the springs of human actions; whose partialities and prejudices are mellowed by more than threescore years of experience; who has carefully and laboriously, in this case, examined cause and effect, hesitates not in declaring that, from the moment Aaron Burr was elected vice-president, his doom was unalterably decided, if that decision could be accomplished by a combination of wealth, of talent, of government patronage, of favouritism and proscription, inflamed by the worst passions, and nurtured by the hope of gratifying a sordid ambition. The contest in Congress fixed his fate. Subsequent events were only consequences resulting from antecedent acts.

In the progress of this work no desire has been evinced, none is felt to screen Colonel Burr from censure where it is merited. But the man who can read, unmoved, the evidence which has already been presented of the injustice done him in the charge of having intrigued and negotiated with the federal party for the presidency, must possess more of philosophic than of generous or magnanimous feelings. It would seem that the task of recording the presidential contest in Congress, in the spring of 1801, was now brought to a close. But not so. There yet remains another and imposing view to be presented. Whatever may have been the wishes of Colonel Burr, it is certain

that they were so far under his own control as to prevent him from entering into any negotiation, bargain, or intrigue to obtain the presidency. There is not the slightest evidence of any such attempt on his part, while there is strong, if not conclusive proof to the contrary. Can as much be said in favor of his great competitor on that occasion? This is the view that remains to be taken. But, before presenting the testimony in the case, some explanation is necessary as to the manner in which it was first obtained and subsequently made public.

In the year 1804, a suit was instituted by Colonel Burr against James Cheetham, editor of the American Citizen, for a libel, in charging him with intriguing for the presidency. This suit was commenced by Mr. Burr with reluctance, and only to gratify personal friends. It progressed tardily, impediments having been thrown in the way of bringing it to trial by the defendant, and probably the cause not sufficiently pressed by the complainant. In 1805 or 1806, some persons who were really desirous of ascertaining not only the truth or falsity of the charge, but whether there was any foundation for it, determined on having a *wager-suit* placed at issue on the records of the court, and then take out a commission to examine witnesses. Accordingly, the names of *James Gillespie*, plaintiff, and *Abraham Smith*, defendant, were used. The latter at the time being a clerk in the store of Matthew L. Davis, then in the mercantile business, trading under the firm of Strong & Davis.

It was universally believed, that if there were two men in Congress that could unfold the whole negotiation if any had taken place, those two men were James A. Bayard, of Delaware, and Samuel Smith, of Baltimore. The former, a federal gentleman of high standing, the sole representative of a state in the Congress of 1800, and thus possessing, at any moment, the power of deciding the contest in favour of Mr. Jefferson. The latter, a political and personal friend of Mr. Jefferson, and the very individual whom



Colonel Burr had previously selected as his proxy to declare his sentiments, in case there was a tie between Mr. Jefferson and himself. A commission was accordingly taken out, and, on the 3d of April, 1806, Mr. Bayard and Mr. Smith were examined. No use, however, was made of these depositions until December, 1830, being a period of nearly twenty-five years.

On the publication of Mr. Jefferson's writings, the sons of the late James A. Bayard felt that the memory of their father had been wrongfully and unjustly assailed in two paragraphs in the fourth volume of this work. The first of these paragraphs, on the 28th of January, 1830, was read in the United States Senate by the Hon. Mr. Clayton, of Delaware, General Samuel Smith and Edward Livingston both being members of the Senate and present. He read the following:

*"February 12, 1801.* Edward Livingston tells me that Bayard applied to-day or last night to General Samuel Smith, and represented to him the expediency of coming over to the states who vote for Burr; that there was nothing in the way of appointment which he might not command, and particularly mentioned the secretaryship of the navy. Smith asked him if he was authorized to make the offer. He said he was authorized. Smith told this to Livingston and W. C. Nicholas, who confirms it to me," &c.

Mr. Clayton then called upon the senator from Maryland (Mr. Smith) and the senator from Louisiana (Mr. Livingston) to disprove the statement here made by Mr. Jefferson.

Mr. Smith, of Maryland, rose and said "that he had read the paragraph before he came here to-day, and was, therefore, aware of its import. He had not the most distant recollection that Mr. Bayard had ever made such a proposition to him. Mr. Bayard, said he, and myself, though politically opposed, were intimate personal friends, and he was an honourable man. Of all men, Mr. Bayard would have been the last to make such a proposition to

any man; and I am confident that he had too much respect for me to have made it under any circumstances. I never received from any man any such proposition."

Mr. Livingston, of Louisiana, said, "that as to the precise question which had been put to him by the senator from Delaware, he must say, that having taxed his recollection as far as it could go on so remote a transaction, he had no remembrance of it."

The sons of the late Mr. Bayard, not yet being satisfied as to the other paragraph, resolved on an investigation of the subject, and with this view one of them wrote the following letter. [2]

FROM RICHARD H. BAYARD.

Wilmington, March 8, 1830.

SIR,

In the fourth volume of Mr. Jefferson's Writings, lately published by his grandson, page 521, under the head of a note made April 15, 1806, occurs the following paragraph, after the detail of a conversation held with you about a month previously:—

"I did not commit these things to writing at the time, but I do now, because, in a suit between him and Cheetham, he has had a deposition of Mr. Bayard taken which seems to have no relation to the suit, nor to any other object than to calumniate me. Bayard pretends to have addressed to me, during the pending of the presidential election in February, 1801, through General Samuel Smith, certain conditions on which my election might be obtained; and that General Smith, after conversing with me, gave

answers from me. This is absolutely false. No proposition of any kind was ever made to me on that occasion by General Smith, or any answer authorized by me. And this fact General Smith affirms at this moment."

Mr. Jefferson supposes this deposition to have been made in your suit against Cheetham. I have some reason to think he is mistaken as to the precise case in which it was made. However this may be, I am anxious to procure a copy of it, as returned with the commission under which it was taken.

If I may not be considered as trespassing too far on your time and attention, will you permit me to ask whether the deposition referred to by Mr. Jefferson is still in existence? In what case it was taken? And whether a copy of it can be procured?

I have the honour to be, respectfully,

Your obedient servant,

**RICHARD H. BAYARD.**

**TO RICHARD H. BAYARD.**

New-York, March 10, 1830.

**SIR,**

I have this day received your letter of the 8th inst., containing an extract from the fourth volume of the writings of Mr. Jefferson. I have not seen that book, and, on inquiry, do not learn that there is a copy in this city.

The suit referred to is not that of Cheetham, but one instituted, without my agency or knowledge, *on a wager*. The title not now recollected. A commission to take testimony was transmitted to me, then at Washington, and several depositions thereupon taken; copies of all of which may, no doubt, be found among the papers of the late Mr. Bayard.

A gentleman well informed of these matters is now at Albany, where I expect to meet him about the 20th inst., when it may be in my power to give you further satisfaction on the subject of your letter.

I pray in the mean time to be informed whether you are a son of the late Mr. Bayard. Or how, if at all related to him. And what use it is proposed to make of the communications you may receive. Permit me to add, it will at all times afford me great pleasure to gratify the family of Mr. Bayard on this or on any other occasion.

I have the honour to be, very respectfully,

**A. BURR.**

TO MATTHEW L. DAVIS.

New-York, March 15, 1830.

**SIR,**

I enclose you copies of a letter from Mr. Richard H. Bayard, with my answer, and have only to inquire whether I may refer to you to answer this letter of Mr. Bayard; your memory being better than mine, and I not having the depositions in question, or any copies thereof at this moment at my

command. If you should write, please to enclose your letter to me. I think it was you who got up that suit. Pray give me the title and date.

I expect to be in Albany early next week. In your answer to this, let me know where to find you. God speed you.

**A. BURR.**

FROM MATTHEW L. DAVIS.

Albany, March 18, 1830.

**SIR,**

The irregularity of the mails has prevented my receiving your letter of the 15th inst., with its enclosures, until this day.

I have read Mr. Bayard's letter to you under date of the 8th inst. All the circumstances connected with the subject to which it refers are within my recollection; but, absent as I am from my papers, I am unwilling to speak with great confidence in relation to events which have occurred nearly thirty years since.

The deposition of Mr. Bayard, to which I presume Mr. Jefferson alludes in his memorandum of the 15th of April, 1806, was taken, as you remark, in the case of *a wager*. The title of the cause I do not now recollect; but Abraham Smith, a clerk in my store, was one of the parties, and I think the period was during the winter of 1805. It may have been a year later.

In that deposition Mr. Bayard states that a negotiation in regard to the pending election between Mr. Jefferson and Colonel Burr, in February,

1801, was entered into with Mr. Jefferson, through Mr. Nicholas, of Virginia, and General Samuel Smith, of Maryland; and that Mr. Jefferson did agree to certain stipulations or conditions therein specified. It is proper for me to add, that to both Robert G. Harper and General Smith the same interrogatories were propounded that were answered by Mr. Bayard, and that the testimony (if my memory is correct) of Mr. Bayard was, in every material point, sustained by both these gentlemen. These examinations were made under a commission issued out of the Supreme Court of our state.

Several copies of these depositions were made from the originals, and I have reason to believe that one copy of them was in the possession of Mr. Bayard or Mr. Harper, and another in the possession of Stephen R. Bradley, Esq., of Vermont. They were read by different gentlemen; among them, I think, was General John P. Van Ness, of Washington city, and Rundolph Bunner, Esq., late a member of Congress from this state, who, I have no doubt, can and would, if asked, detail their contents. I should suppose that General Smith would not only recollect the occurrences in February, 1801, but the contents also of the deposition to which he has sworn.

During the contest I was the advocate of Mr. Jefferson's election, and corresponded with different members of Congress; among the number were Edward Livingston and Albert Gallatin, Esquires. The letters I then received enumerated not only the *doubtful states*, but the *doubtful men* of both parties which were in Congress. These letters have been carefully preserved.

It is due to the character of the late Mr. Bayard to remark, that, so far as the circumstances have come to my knowledge, there was nothing in the transaction calculated in the slightest degree to impeach his fidelity to his party or his honour. The object of the negotiation was not to aggrandize or

to elevate himself or his friends, but to secure and perpetuate certain cardinal points of federal policy.

I have not seen the works of Mr. Jefferson, but I will obtain and examine them with care and attention. The history of the times to which these memorandums and documents relate are enveloped in thick darkness. Whether the period has yet arrived when an effort should be made to dispel that darkness is problematical. The means, however, do exist of proving, to the satisfaction of the most skeptical, what are the facts in the case; and, consequently, of doing full justice to all the parties concerned; and that duty, however unpleasant, shall, at a proper crisis, be fairly, impartially, and fearlessly performed.

At my advanced age I do not wish to be drawn into newspaper controversies; nor can I be induced, prematurely, to make any publication on the subject alluded to in this letter. At the same time, you are at liberty to communicate the whole or any part of its contents to Mr. Bayard, in the expectation that it will be used discreetly.

Respectfully, your friend,

**M. L. DAVIS.**

**GENERAL SAMUEL SMITH TO RICHARD H. BAYARD AND  
JAMES A. BAYARD.**

Washington, April 3, 1830.

**GENTLEMEN,**

Ill health, and disinclination to go back to circumstances which happened thirty years past, has prevented an earlier answer to your letter. In the extract you have sent me from Mr. Jefferson's writings, it is said—"Bayard" (alluding to his deposition) "pretends to have addressed to me, during the pending of the presidential election in February, 1801, through General Smith, certain conditions on which my election might be obtained, and that General Smith, after conversing with me, gave answer for me. This is absolutely false. No proposition of any kind ever was made to me on that occasion by General Smith, or any answer authorized by me; and the fact General Smith affirms at this moment"—to wit, 15th of April, 1806. Yes, gentlemen, it was (I believe) on that day I put into the hands of Mr. Jefferson a press copy of *my deposition in the case of Cheetham*, [3] in which *I perfectly recollect that I deny having ever received from Mr. Jefferson any proposition of any kind to be made by me to Mr. Bayard or any other person. Not, perhaps, in those words, but in detail to that effect; or having ever communicated any proposition of the kind as from Mr. Jefferson to Mr. Bayard.*

My experience in life has shown that few men take advice unless it comports with their own views. I will, however, recommend that you let well enough alone. Your father was a bitter, most bitter enemy of Mr. Jefferson; his enmity was known to all, and, I presume, to Mr. Jefferson; it was therefore very natural for him to conclude that the suit of Cheetham had been got up for the express purpose of obtaining the oath of your father with the view of injuring him, and that your father had advised such a course. *My recollection of what passed on the occasion is as strong as if it had happened yesterday.* I will give you a detail in as few words as possible.

Two or three days before the election was terminated, a member, who I suppose had been deputed by the federal party, called on me to converse on



the subject. I held little conversation with *him*. Your father then called on me, and said that he was anxious to put an end to the controversy; that, in case of dissolution, Delaware never could expect to obtain her present advantages; that, if satisfied on certain points, he would terminate the contest. He then went on to state those points: they were three or four. I can now remember only *three*, to wit—the funding system, the navy, and the retaining or dismissal of federalists then in office. I answered promptly that I could satisfy him fully on two of the points (which two I do not now recollect), for that I had had frequent conversations with him on them, and I stated what I understood and believed to be his opinions, and what I thought would be his rule of conduct; with which explanation your father expressed his entire satisfaction, and on the third requested that I would inform myself.

I lodged with Mr. Jefferson, and that night had a conversation with him, *without his having the remotest idea of my object*. Mr. Jefferson was a gentleman of *extreme frankness* with his friends; he conversed freely and frankly with them on all subjects, and gave his opinions without reserve. Some of them thought that he did so too freely. Satisfied with his opinion on the third point, I communicated to your father the next day—that, from the conversation that I had had with Mr. Jefferson, I was satisfied in *my own mind* that his conduct on that point would be so and so. But I certainly never did tell your father that I had any authority from Mr. Jefferson to communicate any thing to him or to any other person.

During the session of Congress of 1805-6, your father told me that a little lawyer in Delaware had (he supposed at the instance of Colonel Burr) endeavoured to get from him a deposition touching a conversation with me; that he had refused it; that Burr had, however, trumped up a suit for the sole purpose of coercing his deposition and mine, and said that a commission to take testimony was now in the city, and that he apprized me that I might be

prepared. I asked him what he would state in his deposition. He answered similar to the quotation you have sent. I told him instantly that I had communicated to him my *own opinion*, [4] derived from conversation with Mr. Jefferson, and not one word from him to your father; and that my testimony would, as to that point, be in direct hostility. He then said, the little fellow will have our testimony by some means or other, and I will give mine. I answered that I would also. A few nights afterward Colonel Burr called on me. I told him that I had written my deposition, and would have a fair copy made of it. He said, trust it to me, and I will get Mr. —— to copy it. I did so, and, on his returning it to me, I found words not mine interpolated in the copy. I struck out those words, had it copied again, and, to prevent all plea of false copying, I had a press copy taken of it. When I appeared before the commission, I found a deposition attached to that of your father, and asked how they came by that. They answered that it had been sent to them. I requested them to take it off; that I had the deposition in my hand to which alone I would swear; they did so, and my deposition was attached. The next day (I think) I called, and told Mr. Jefferson what had passed, read to him the press copy, and asked him if he recollected having given to me the opinions I had detailed. He answered that he did not, but it might be so, for that they were opinions he held and expressed to many of his friends, and as probably to me as any other, and then said that he would wish to have a copy. I told him that I had no use for it; he might, and I gave him the press copy.

You have now a tolerable full view of the case, and will see that no possible censure can attach to Mr. Jefferson; that a diversity of opinion will arise from publication as to your father's credibility or mine, and that both may suffer in the Public estimation. I will conclude that, during my long life, I have scarcely ever known an instance of newspaper publication between A. and B. that some obloquy did not attach to both parties.

I am, gentlemen, with respect,

Your obedient servant,

S. SMITH.

FROM RICHARD H. BAYARD.

Wilmington, Delaware, April 22, 1830.

SIR,

I have just received your letter of the 10th ult., in answer to mine of the 8th, the reason of which delay is to be found in the fact of your having directed it to Wilmington, North Carolina. It was accordingly conveyed to that place, and was returned and received by me this morning.

I reply to your inquiries that I am the eldest son of the late James A. Bayard, and that the object which I have in view is the vindication of his character from the aspersion contained in the passage in Mr. Jefferson's writings, a copy of which I sent you.

It is true that among my father's papers I have found rough copies of the deposition made in your suit against Cheetham, as well as of that made in the wager case. Together with the first-named deposition there is also a copy of the interrogatories; but, in the latter case, simply a rough copy of the deposition, without title, or any memorandum of the names of the parties. You will perceive at once the necessity of accompanying the deposition in the wager case with its *title* and a copy of the interrogatories, in order to show, in the first place, Mr. Jefferson's error in the statement of the case, and, secondly, to refute his assertion that the deposition had

"nothing to do with the suit, or with any other object than to calumniate him."

The subsequent part of his statement will be met by the deposition itself, by reference to concomitant circumstances, and such corroborating testimony as time has spared. Being anxious to avoid all room for cavil, by publishing the depositions as returned with the respective commissions, lest, perchance, there should be some slight verbal inaccuracies, I applied to you, believing it was in your power to give the information necessary to enable me to procure certified copies of the record.

You have thus, Sir, an entire exposition of my motives for addressing you my letter of the 8th ult.; and, in conformity with the sentiment you are so good as to express in the conclusion of your letter, I doubt not you will furnish me with such information as you possess on the subject.

I wrote some time since to Mr. Edward N. Rogers, of your city, to procure for me copies of my father's and General Samuel Smith's depositions in *both* cases. He informs me, by his letter of the 17th inst., that the depositions in your suit against Cheetham are not to be found in the office; that the case went off by default, and he supposes they were never filed. At all events, the clerk cannot now find them.

You will probably be able to state what became of them, and whether copies can be procured. I will ask of you, therefore, the favour to communicate to him information on this point, as well as the *name* of the *wager case*, that he may be enabled to comply with my request, with the execution of which he has been so kind as to charge himself.

I have the honour to be, respectfully,

Your obedient servant,

**RICHARD H. BAYARD.**

Footnotes:

1. See Ch. V.

2. It is considered proper to state here that the correspondence which follows is published without the privity or consent of either of the Mr. Bayards. It is found among the papers of Colonel Burr, and is intimately connected with a history of the transaction.

3. The suit was James Gillespie vs. Abraham Smith. See deposition.

4. Will the reader examine the deposition, especially what relates to Mr. McLean and Mr. Latimer?

## CHAPTER VIII.

The necessary information having been given to Mr. Bayard to enable him to procure the depositions of his father and General Smith, they were accordingly obtained from Mr. Bradley, of Vermont. Before presenting them, it may not be improper to give the letters of two members of Congress, one of which enters somewhat into a history of the case, and *both* of which negatives, in the most positive manner, any attempt of Colonel Burr, or any person acting in his behalf, to negotiate, bargain, or intrigue with the federal party for the office of president.

WILLIAM COOPER TO THOMAS MORRIS. [1]

Washington, February 10, 1801.

DEAR SIR,

We have this day locked ourselves up by a rule to proceed to choose a president before we adjourn. \* \* \* \* \* We shall run Burr perseveringly. You shall hear of the result instantly after the fact is ascertained. *A little good management would have secured our object on the first vote*, but now it is too late for any operations to be gone into, except that of adhering to Burr, and leave the consequences to those who have heretofore been his

friends. If we succeed, a faithful support must, on our part, be given to his administration, which, I hope, will be wise and energetic.

Your friend,

**W. COOPER.**

**WILLIAM COOPER TO THOMAS MORRIS.**

February 13, 1801.

**DEAR SIR,**

We have postponed, until to-morrow 11 o'clock, the voting for president. All stand firm. Jefferson eight—Burr six—divided two. *Had Burr done any thing for himself, he would long ere this have been president.* If a majority would answer, he would have it on every vote.

**FROM JAMES A. BAYARD TO ALEXANDER HAMILTON.**

Washington, January 7, 1801.

**DEAR SIR,**

I have been but a few days in this city; but, since my arrival, have had the pleasure to receive the letter which you did me the honour to write on the 27th ult. I am fully sensible of the great importance of the subject to which it relates, and am, therefore, extremely obliged by the information you have been so good as to communicate.

\* \* \* \* \*

It is considered that at least, in the first instance, Georgia, North Carolina, Virginia, Tennessee, Kentucky, Pennsylvania, New-Jersey, and New-York will vote for Mr. Jefferson. It is probable that Maryland and Vermont will be divided. It is therefore counted, that upon the first ballot it would be possible to give to Mr. Burr six votes. It is calculated, however, and strongly insisted by some gentlemen, that a persevering opposition to Mr. Jefferson would bring over *New-York, New-Jersey, and Maryland*. What is the probability relative to New-York?—your means enable you to form the most correct opinion. As to New-Jersey and Maryland, it would depend on Mr. Linn of the former and Mr. Dent of the latter state.

I assure you, sir, there appears to be a strong inclination in a majority of the federal party to support Mr. Burr. The current has already acquired considerable force, and is manifestly increasing. The vote which the representation of a state enables me to give would decide the question in favour of Mr. Jefferson. At present I am by no means decided as to the object of preference. If the federal party should take up Mr. Burr, I ought certainly to be impressed with the most undoubting conviction before I separated myself from them. I cannot, however, deny that there are strong considerations which give a preference to Mr. Jefferson. The subject admits of many and very doubtful views; and, before I resolve on the part I shall take, I will await the approach of the crisis, which may probably bring with it circumstances decisive of the event.

The federal party meet on Friday for the purpose of forming a resolution as to their line of conduct. I have not the least doubt of their agreeing to support Colonel Burr. Their determination will not bind me; for though it might cost me a painful struggle to disappoint the views and wishes of



many gentlemen with whom I have been accustomed to act, yet the magnitude of the subject forbids the sacrifice of a strong conviction.

I cannot answer for the coherence of my letter, as I have undertaken to write to you from the chamber of representatives, with an attention divided by the debate which occupies the house. I have not considered myself at liberty to show your letter to any one, though I think it would be serviceable, if you could trust my discretion in the communication of it.

With great consideration,

Your obedient servant,

**JAMES A. BAYARD.**

**GEORGE BAER TO RICHARD H. BAYARD.**

Frederick, April 19, 1830

**SIR,**

In compliance with your request, I now communicate to you my recollections of the events of the presidential election by the House of Representatives in 1801. There has been no period of our political history more misunderstood and more grossly misrepresented. The course adopted by the federal party was one of principle, and not of faction; and I think the present a suitable occasion for explaining the views and motives at least of those gentlemen who, having it in their power to decide the election at any moment, were induced to protract it for a time, but ultimately to withdraw their opposition to Mr. Jefferson.

I have no hesitation in saying that the facts stated in the deposition of your father, the late James A. Bayard, so far as they came to my knowledge, are substantially correct; and although nearly thirty years have elapsed since that eventful period, my recollection is vivid as to the principal circumstances, which, from the part I was called upon to act, were deeply graven on my memory. As soon as it was generally known that the two democratic candidates, Jefferson and Burr, had the highest and an equal number of votes, and that the election would consequently devolve on the House of Representatives, Mr. Dent, who had hitherto acted with the federal party, declared his intention to vote for Mr. Jefferson, in consequence of which determination the vote of Maryland was divided.

It was soon ascertained that there were six individuals, the vote of any one of whom could at any moment decide the election. These were, your father, the late James A. Bayard, who held the vote of the state of Delaware; General Morris, of Vermont, who held the divided vote of that state; and Mr. Craik, Mr. Thomas, Mr. Dennis, and myself, who held the divided vote of Maryland. Much anxiety was shown by the friends of Mr. Jefferson, and much ingenuity used to discover the line of conduct which would be pursued by them. Deeply impressed with the responsibility which attached to their peculiar situation, and conscious that the American people looked to them for a president, they could not rashly determine either to surrender their constitutional discretion, or disappoint the expectations of their fellow-citizens.

Your father, Mr. Craik, and myself having compared ideas upon the subject, and finding that we entertained the same views and opinions, resolved to act together, and accordingly entered into a solemn and mutual pledge that we would in the first instance yield to the wishes of the great majority of the party with whom we acted, and vote for Mr. Burr, but that no consideration should induce us to protract the contest beyond a

reasonable period for the purpose of ascertaining whether he could be elected. We determined that a president should be chosen, but were willing thus far to defer to the opinions of our political friends, whose preference of Mr. Burr was founded upon a belief that he was less hostile to federal men and federal measures than Mr. Jefferson. General Morris and Mr. Dennis concurred in this arrangement.

The views by which the federal party were governed were these:—They held that the Constitution had vested in the House of Representatives a high discretion in a case like the present, to be exercised for the benefit of the nation; and that, in the execution of this delegated power, an honest and unbiased judgment was the measure of their responsibility. They were less certain of the hostility of Mr. Burr to federal policy than of that of Mr. Jefferson, which was known and decided. Mr. Jefferson had identified himself with, and was at the head of the party in Congress who had opposed every measure deemed necessary by the federalists for putting the country in a posture of defence; such as fortifying the harbours and seaports, establishing manufactories of arms; erecting arsenals, and filling them with arms and ammunition; erecting a navy for the defence of commerce, &c. His speculative opinions were known to be hostile to the independence of the judiciary, to the financial system of the country, and to internal improvements. All these matters the federalists believed to be intimately blended with the prosperity of the nation, and they deprecated, therefore, the elevation of a man to the head of the government whose hostility to them was open and avowed. It was feared, too, from his prejudices against the party which supported them, that he would dismiss all public officers who differed with him in sentiment, without regard to their qualifications and honesty, but on the ground only of political character. The House of Representatives adopted certain resolutions for their government during the election, one of which was that there should be no adjournment till it was decided.

On the 11th February, 1801, being the day appointed by law for counting the votes of the electoral colleges, the House of Representatives proceeded in a body to the Senate chamber, where the vice-president, in view of both houses of Congress, opened the certificates of the electors of the different states; and, as the votes were read, the tellers on the part of each house counted and took lists of them, which, being compared and delivered to him, he announced to both houses the state of the votes; which was, for Thomas Jefferson 73 votes, for Aaron Burr 73 votes, for John Adams 65 votes, for Charles Pinckney 64 votes, for John Jay one vote; and then declared that the greatest number and majority of votes being equal, the choice had devolved on the House of Representatives. The members of the house then withdrew to their own chamber, and proceeded to ballot for a president. On the first ballot it was found that Thomas Jefferson had the votes of eight states, Aaron Burr of six states, and that two were divided. As there were sixteen states, and a majority was necessary to determine the election, Mr. Jefferson wanted the vote of one state. Thus the result which had been anticipated was realized.

The balloting continued throughout that day and the following night, at short intervals, with the same result, the 26th ballot being taken at 8 o'clock on the morning of the 12th of February. The balloting continued with the same result from day to day till the 17th of February, without any adjournment of the house. On the previous day (February 16), a consultation was held by the gentlemen I have mentioned, when, being satisfied that Mr. Burr could not be elected, as no change had taken place in his favour, and there was no evidence of any effort on the part of himself or his personal friends to procure his election, it was resolved to abandon the contest. This determination was made known to the federal members generally, and excited some discontent among the violent of the party, who thought it better to go without a president than to elect Mr. Jefferson. A general meeting, however, of the federal members was called, and the

subject explained, when it was admitted that Mr. Burr could not be elected. A few individuals persisted in their resolution not to vote for Mr. Jefferson, but the great majority wished the election terminated and a president chosen. *Having also received assurances from a source on which we placed reliance that our wishes with regard to certain points of federal policy in which we felt a deep interest would be observed in case Mr. Jefferson was elected,* the opposition of Vermont, Delaware, and Maryland was withdrawn, and on the 36th ballot your father, the late James A. Bayard, put in a blank ballot, myself and my colleagues did the same, and General Morris absented himself. The South Carolina federalists also put in blank ballots. Thus terminated that memorable contest.

Previous to and pending the election, rumours were industriously circulated, and letters written to different parts of the country, charging the federalists with the design to prevent the election of a president, and to usurp the government by an act of legislative power. Great anxiety and apprehensions were created in the minds of all, and of none more than the federalists generally, who were not apprized of the determination of those gentlemen who held the power, and were resolved to terminate the contest when the proper period arrived. But neither these rumours, nor the excitement produced by them, nor the threats made by their opponents to resist by force such a measure, had the least influence on the conduct of those gentlemen. They knew the power which they possessed, and were conscious of the uprightness of their views, and of the safety and constitutional character of the course they had adopted. I was privy to all the arrangements made, and attended all the meetings of the federal party when consulting on the course to be pursued in relation to the election; and I pledge my most solemn asseveration that no such measure was ever for a moment contemplated by that party; that no such proposition was ever made; and that, if it had ever been, it would not only have been discouraged, but instantly put down by those gentlemen who possessed the

power, and were pledged to each other to elect a president before the close of the session.

I am respectfully, Sir,

Your most obedient servant,

**GEORGE BAER.**

INTERROGATORIES to be administered to James A. Bayard, Esq., of the state of Delaware, late a member of Congress for the United States from the said state of Delaware, a witness to be produced, sworn, and examined in a cause now depending in the Supreme Court of Judicature of the state of New-York, between Aaron Burr, plaintiff, and James Cheetham, defendant, on the part of the defendant.

1st. Do you know the parties, plaintiff and defendant, or either and which of them, and how long have you known them respectively?

2d. Were you a member of the House of Representatives, in Congress of the United States, from the state of Delaware, in the sessions holden in the months of January and February, in the year 1801?

3d. Was there not an equal number of votes for Thomas Jefferson and Aaron Burr, as president and vice-president of the said United States, at the election for those officers in the December preceding, and did not the choice of a president consequently devolve on the said House of Representatives?

4th. Did not the said house ballot for the president several times before a choice was made? if so, how many times? Was not the frequency of balloting occasioned by an attempt on the part of several members of

Congress to elect the said plaintiff, Aaron Burr, as president? Do you know who such members were? if so, what were their names?

5th. Do you know that any measures were suggested or pursued by any person or persons to secure the election of Aaron Burr to the presidency? if so, who were such person or persons? Did *he*, the said Aaron Burr, know thereof? Were there any letter or letters written communicating such an intention? if so, were such letter or letters forwarded to him through the postoffice by any person, and who? Has he not informed you, or have you not understood (and if so, how?) that he was apprized that an attempt would be made to secure his election?

6th. Did he or any other person (and if so, who?) ever communicate to you, by writing or otherwise, or to any other person or persons to your knowledge, that any measure had been suggested or would be pursued to secure his election? When were these communications made?

7th. Had not some of the federal members of Congress a meeting at Washington, in the month of December, 1800, or of January or of February, 1801, at which it was determined to support Aaron Burr for the presidency? Or if there were any meeting or meetings to your knowledge, in respect to the ensuing election for a president of the United States in the said House of Representatives, what was advised or concluded upon, to the best of your remembrance or belief? Was not David A. Ogden, of the city of New-York, attorney at law, authorized or requested by you, or some other member or members of Congress, or some other person, and who in particular, to call upon the plaintiff and inquire of him—

1st. What conduct he would pursue in respect to certain cardinal points of federal policy?

2d. What co-operation or aid the plaintiff could or would afford towards securing his own election to the presidency? or if you or some other person did not authorize or request the said David A. Ogden to make such communication to the plaintiff in exact terms, what, in substance, was such authority or request? Do you know, or were you informed by the said David A. Ogden or otherwise, that he or any other person had made the said communication to the plaintiff, or the same in substance? Do you know, or have you been informed (and if so, how?) that the plaintiff declared, as to the first question, it would not be expedient to enter into explanations, or words to that effect? That, as to the second question, New-York and Tennessee would vote for him on a second ballot, and New-Jersey might be induced to do the same, or words to that effect? Did you ever communicate with the plaintiff, or he with you, on the subject? Do you know any person who did communicate with him? and if so, what did he say?

Did you not receive a letter or letters from Alexander Hamilton, of New-York, and late Secretary of the Treasury of the United States, now deceased, in the month of January or February, 1801, or at some other time, and when, respecting the election of a president of the United States? Did he not communicate to you that the said David A. Ogden had been requested to see the plaintiff for the purposes aforesaid? And what in particular were the contents of such letters or letter, or communication? Do you know that any, and if so, what measures were suggested or pursued to secure the election of said plaintiff as president; and did the said plaintiff know, or was he informed thereof, or what did he know, or of what was he informed? Had you any reason or reasons to believe that any of the states would relinquish Thomas Jefferson and vote for Aaron Burr as president in the said election in the said House of Representatives, or that the said Aaron Burr calculated on such relinquishment? If so, which state or states, and what was the reason or reasons of such belief?



8th. Do you know any matter, circumstance, or thing which can be material to the defendant in this cause? If yea, set the same forth fully and particularly.

*Interrogatory on the part of the plaintiff.*—Do you know of any matter or thing that may be beneficial to the plaintiff on the trial of this cause? If so, declare the same fully and at length, in the same manner as if you had been particularly interrogated thereto.

Miller & Van Wyck, Attorneys for Defendant.

Approved, March 6, 1805.

B. Livingston.

The deposition of James A. Bayard, sworn and examined on the twenty —— day of ——, in the year of our Lord 1805, at Wilmington, in the state of Delaware, by virtue of a commission issuing out of the Supreme Court of Judicature of the state of New-York, to John Vaughan, —— or any two of them, directed for the examination of the said James A. Bayard, in a cause there depending between Aaron Burr, plaintiff, and James Cheetham, defendant, on the part and behalf of the defendant.

1st. To the first interrogatory this deponent answers and says, As a member of the House of Representatives, I paid a visit of ceremony to the plaintiff on the fourth of March, in the year 1801, and was introduced to him. I had no acquaintance with him before that period. I had no knowledge of the defendant but what was derived from his general reputation before the last session of Congress, when a personal acquaintance commenced upon my becoming a member of the Senate.

2d. To the second interrogatory, this deponent saith, I was.

3d. To the third interrogatory this deponent saith, There was an equality of electoral votes for Mr. Jefferson and Mr. Burr, and the choice of one of them did, of consequence, devolve on the House of Representatives.

4th. To the fourth interrogatory this deponent saith, The house resolved into states, balloted for a president a number of times, the exact number is not at present in my recollection, before a choice was made. The frequency of balloting was occasioned by the preference given by the federal side of the house to Mr. Burr. With the exception of Mr. Huger, of South Carolina, I recollect no federal member who did not concur in the general course of balloting for Mr. Burr. I cannot name each member. The federal members at that time composed a majority of the house, though not of the states. Their names can be ascertained by the journals of the House of Representatives.

5th. To the fifth interrogatory this deponent saith, I know of no measures but those of argument and persuasion which were used to secure the election of Mr. Burr to the presidency. Several gentlemen of the federal party doubted the practicability of electing Mr. Burr, and the policy of attempting it. Before the election came on there were several meetings of the party to consider the subject. It was frequently debated, and most of the gentlemen who had adopted a decided opinion in favour of his election employed their influence and address to convince those who doubted of the propriety of the measure. I cannot tell whether Mr. Burr was acquainted with what passed at our meetings. But I neither knew nor heard of any letter being written to him on the subject. He never informed me, nor have I reason to believe, further than inference, from the open professions and public course pursued by the federal party, that he was apprized that an attempt would be made to secure his election.

6th. To the sixth interrogatory the deponent saith, Mr. Burr, or any person on his behalf, never did communicate to me in writing or otherwise, or to

any other persons of which I have any knowledge, that any measures had been suggested or would be pursued to secure his election. Preceding the day of the election, in the course of the session, the federal members of Congress had a number of general meetings, the professed and sole purpose of which was to consider the propriety of giving their support to the election of Mr. Burr. The general sentiment of the party was strongly in his favour. Mr. Huger, I think, could not be brought to vote for him. Mr. Craik and Mr. Baer, of Maryland, and myself, were those who acquiesced with the greatest difficulty and hesitation. I did not believe Mr. Burr could be elected, and thought it vain to make the attempt; but I was chiefly influenced by the current of public sentiment, which I thought it neither safe nor politic to counteract. It was, however, determined by the party, without consulting Mr. Burr, to make the experiment whether he could be elected. Mr. Ogden never was authorized or requested by me, nor any member of the house to my knowledge, to call upon Mr. Burr, and to make any propositions to him of any kind or nature. I remember Mr. Ogden's being at Washington while the election was depending. I spent one or two evenings in his company at Stiller's hotel, in small parties, and we recalled an acquaintance of very early life, which had been suspended by a separation of eighteen or twenty years. I spent not a moment with Mr. Ogden in private. It was reported that he was an agent for Mr. Burr, or it was understood that he was in possession of declarations of Mr. Burr that he would serve as president if elected. I never questioned him on the subject. Although I considered Mr. Burr personally better qualified to fill the office of president than Mr. Jefferson, yet, for a reason above suggested, I felt no anxiety for his election, and I presumed if Mr. Ogden came on any errand from Mr. Burr, or was desirous of making any disclosures relative to his election, he would do it without any application from me. But Mr. Ogden or any other person never did make any communication to me from Mr. Burr, nor do I remember having any conversation with him relative to the election. I never had any

communication, directly or indirectly, with Mr. Burr in relation to his election to the presidency. I was one of those who thought from the beginning that the election of Mr. Burr was not practicable. The sentiment was frequently and openly expressed. I remember it was generally said by those who wished a perseverance in the opposition to Mr. Jefferson, that several democratic states were more disposed to vote for Mr. Burr than for Mr. Jefferson; that, out of complaisance to the known intention of the party, they would vote a decent length of time for Mr. Jefferson, and, as soon as they could excuse themselves by the imperious situation of affairs, would give their votes for Mr. Burr, the man they really preferred. The states relied upon for this change were New-York, New-Jersey, Vermont, and Tennessee. I never, however, understood that any assurance to this effect came from Mr. Burr. Early in the election it was reported that Mr. Edward Livingston, the representative of the city of New-York, was the confidential agent for Mr. Burr, and that Mr. Burr had committed himself entirely to the discretion of Mr. Livingston, having agreed to adopt all his acts. I took an occasion to sound Mr. Livingston on the subject, and intimated that, having it in my power to terminate the contest, I should do so, unless he could give me some assurance that we might calculate upon a change in the votes of some of the members of his party. Mr. Livingston stated that he felt no great concern as to the event of the election, but he disclaimed any agency from Mr. Burr, or any connexion with him on the subject, and any knowledge of Mr. Burr's designing to co-operate in support of his election.

7th. The deponent, answering that part of the seventh interrogatory which relates to letters received from the late Alexander Hamilton, says, I did receive, in the course of the winter of 1801, several letters from General Hamilton on the subject of the election, but the name of David A. Ogden is not mentioned in any of them. The general design and effect of these letters was to persuade me to vote for Mr. Jefferson, and not for Mr. Burr. The letters contain very strong reasons; and a very earnest opinion against the

election of Mr. Burr. In answer to the residue of the same interrogatory, the deponent saith, I repeat that I know of no means used to promote the election of Mr. Burr but persuasion. I am wholly ignorant of what the plaintiff was apprized of in relation to the election, as I had no communication with him directly or indirectly; and as to the expectation of a change of votes from Mr. Jefferson to Mr. Burr, I never knew a better ground for it than the opinions and calculations of a number of members.

8th. In answer to the eighth interrogatory the deponent saith, I know of nothing which, in my opinion, can be of service to the defendant in the cause.

To the interrogatory on the part of the plaintiff the deponent answers, Having yielded, with Messrs. Craik and Baer, of Maryland, to the strong desire of the great body of the party with whom we usually acted, and agreed to vote for Mr. Burr, and those gentlemen and myself being governed by the same views and motives, we pledged ourselves to each other to pursue the same line of conduct and act together. We felt that *some concession* was due to the judgment of the great majority of our political friends who differed with us in opinion, but we determined that no consideration should make us lose sight for a moment of the necessity of a president being chosen. We therefore resolved, that as soon as it was fairly ascertained that Mr. Burr could not be elected, to give our votes to Mr. Jefferson. General Morris, of Vermont, shortly after acceded to this arrangement. The result of the ballot of the states had uniformly been eight states for Mr. Jefferson, six for Mr. Burr, and two divided. Mr. Jefferson wanted the vote of one state only; those three gentlemen belonged to the divided states; I held the vote of the state of Delaware; it was therefore in the power of either of us to terminate the election. These gentlemen, knowing the strong interest of my state to have a president, and knowing

the sincerity of my determination to make one, left it to me to fix the time when the opposition should cease, and to make terms, if any could be accomplished, with the friends of Mr. Jefferson. I took pains to disclose this state of things in such a manner that it might be known to the friends of Mr. Burr, and to those gentlemen who were believed to be most disposed to change their votes in his favour. I repeatedly stated to many gentlemen with whom I was acting that it was a vain thing to protract the election, as it had become manifest that Mr. Burr would not assist us, and as we could do nothing without his aid. I expected, under these circumstances, if there were any latent engines at work in Mr. Burr's favour, the plan of operations would be disclosed to me; but, although I had the power, and threatened to terminate the election, I had not even an intimation from any friend of Mr. Burr's that it would be desirable to them to protract it. I never did discover that Mr. Burr used the least influence to promote the object we had in view. And being completely persuaded that Mr. Burr would not co-operate with us, I determined to end the contest by voting for Mr. Jefferson. I publicly announced the intention, which I designed to carry into effect the next day. In the morning of the day there was a general meeting of the party, where it was generally admitted Mr. Burr could not be elected; but some thought it was better to persist in our vote, and to go without a president rather than to elect Mr. Jefferson. The greater number, however, wished the election terminated, and a president made; and in the course of the day the manner was settled, which was afterward adopted, to end the business.

Mr. Burr probably might have put an end sooner to the election by coming forward and declaring that he would not serve if chosen; but I have no reason to believe, and never did think that he interfered, even to the point of personal influence, to obstruct the election of Mr. Jefferson or to promote his own.

Interrogatories to be administered to witnesses to be produced, sworn, and examined in a certain cause now depending and at issue in the Supreme Court of Judicature of the people of the state of New-York, wherein James Gillespie is plaintiff, and Abraham Smith defendant, on the behalf of the defendant.

1st. Do you or do you not know Thomas Jefferson, president of the United States? If yea, declare the same, together with the time when you first became acquainted with him.

2d. Was you a member of the House of Representatives of the United States, at Washington, in the session of 1800 and 1801? If yea, state the time particularly.

3d. Do you or do you not know that in the years 1800 and 1801, Thomas Jefferson and Aaron Burr had each an equal number of votes given by the electors for president and vice-president of the United States, and that consequently the right of electing a president devolved upon the House of Representatives of the United States? State your knowledge herein particularly.

4th. Do you or do you not know, or have you heard so that you believe, of any negotiations, bargains, or agreements, in the year 1800 or 1801, after the said equality became known and before the choice of the president, by or on behalf of any person, and whom, with the parties called federal or republican, or either of them, or with any individual or individuals, and whom, of either of the said parties, relative to the office of president of the United States? If yea, declare the particulars thereof, and the reasons of such your belief.

5th. Do you or do you not know Aaron Burr, late vice-president of the United States? If yea, declare the same, with the time when your

acquaintance commenced.

6th. Do you know, or have you heard so that you believe, of any negotiations, bargains, or agreements in the year 1800 or 1801, by or on behalf of the said Aaron Burr, or by or on behalf of any other person, and whom, with the parties called federal or republican, or either of them, or with any individual, and whom, of the said parties, relative to the office of president of the United States? If yea, declare the same, with all the particulars thereof, and the reasons of such your belief.

7th. Did you receive any letters from the said Aaron Burr after the said equality of votes was known and before the final choice of a president? If yea, what was the tenour of such letter? Did the conduct of the said Aaron Burr correspond with the declarations contained in the said letter? Declare your knowledge and belief, together with the grounds and reasons thereof.

Deposition of the Honourable James A. Bayard, a witness produced, sworn, and examined in a cause depending in the Supreme Court of the state of New-York, between James Gillespie, plaintiff, and Abraham Smith, defendant, on the part of the plaintiff, follows.

To the first interrogatory deponent answers and says, I do not know either the plaintiff or defendant.

To the second interrogatory he answers and says, I was personally acquainted with Thomas Jefferson before he became president of the United States, the precise length of time I do not recollect. The acquaintance did not extend beyond the common salutation upon meeting, and accidental conversation upon such meetings.



To the third interrogatory he answers and says, I was a member of the House of Representatives of the United States, during the fifth, sixth, and seventh Congresses, from the 3d of March, 1797, to the 3d of May, 1803.

To the fourth interrogatory he answers and says, The electoral votes for Thomas Jefferson and Aaron Burr for president of the United States were equal, and that the choice of one of them as president did devolve on the House of Representatives.

To the fifth interrogatory he answers and says, I presume this interrogatory points to an occurrence which took place before the choice of president was made, and after the balloting had continued for several days, of which I have often publicly spoken. My memory enables me to state the transaction in substance correctly, but not to be answerable for the precise words which were used upon the occasion. Messrs. Baer and Craik, members of the House of Representatives from Maryland, and General Morris, a member of the house from Vermont, and myself, having the power to determine the votes of the states from similarity of views and opinions during the pendency of the election, made an agreement to vote together. We foresaw that a crisis was approaching which might probably force us to separate in our votes from the party with whom we usually acted. We were determined to make a president, and the period of Mr. Adams's administration was rapidly approaching.

In determining to recede from the opposition to Mr. Jefferson, it occurred to us that probably, instead of being obliged to surrender at discretion, we might obtain terms of capitulation. The gentlemen whose names I have mentioned authorized me to declare their concurrence with me upon the best terms that could be procured. The vote of either of us was sufficient to decide the choice. With a view to the end mentioned, I applied to Mr. John Nicholas, a member of the house from Virginia, who was a particular friend

of Mr. Jefferson. I stated to Mr. Nicholas that if certain points of the future administration could be understood and arranged with Mr. Jefferson, I was authorized to say that three states would withdraw from an opposition to his election. He asked me what those points were: I answered, First, sir, the support of the public credit; secondly, the maintenance of the naval system; and, lastly, that subordinate public officers employed only in the execution of details established by law shall not be removed from office on the ground of their political character, nor without complaint against their conduct. I explained myself that I considered it not only reasonable, but necessary, that offices of high discretion and confidence should be filled by men of Mr. Jefferson's choice. I exemplified by mentioning, on the one hand, the offices of the secretaries of state, treasury, foreign ministers, &c., and, on the other, the collectors of ports, &c. Mr. Nicholas answered me that he considered the points as very reasonable; that he was satisfied that they corresponded with the views and intentions of Mr. Jefferson, and knew him well. That he was acquainted with most of the gentlemen who would probably be about him and enjoying his confidence in case he became president, and that, if I would be satisfied with his assurance, he could solemnly declare it as his opinion that Mr. Jefferson, in his administration, would not depart from the points I had proposed. I replied to Mr. Nicholas that I had not the least doubt of the sincerity of his declaration, and that his opinion was perfectly correct; but that I wanted an engagement, and that, if the points could in any form be understood as conceded by Mr. Jefferson, the election should be ended; and proposed to him to consult Mr. Jefferson. This he declined, and said he could do no more than give me the assurance of his own opinion as to the sentiments and designs of Mr. Jefferson and his friends. I told him that was not sufficient—that we should not surrender without better terms. Upon this we separated; and I shortly after met with General Smith, to whom I unfolded myself in the same manner that I had done to Mr. Nicholas. In explaining myself to him in relation to the nature of the offices

alluded to, I mentioned the offices of George Latimer, [2] collector of the port of Philadelphia, and Allen M'Lane, collector of Wilmington. General Smith gave me the same assurances as to the observance by Mr. Jefferson of the points which I had stated which Mr. Nicholas had done. I told him I should not be satisfied or agree to yield till I had the assurance of Mr. Jefferson himself; but that, if he would consult Mr. Jefferson, and bring the assurance from him, the election should be ended. The general made no difficulty in consulting Mr. Jefferson, and proposed giving me his answer the next morning. The next day, upon our meeting, General Smith informed me that he had seen Mr. Jefferson, and stated to him the points mentioned, and was authorized by him to say that they corresponded with his views and intentions, and that we might confide in him accordingly. The opposition of Vermont, Maryland, and Delaware was immediately withdrawn, and Mr. Jefferson was made president by the votes of ten states.

To the sixth interrogatory the deponent answers and says, I was introduced to Mr. Burr the day of Mr. Jefferson's inauguration as president. I had no acquaintance with him before, and very little afterward, till the last winter of his vice-presidency, when I became a member of the Senate of the United States.

To the seventh interrogatory the deponent answers and says, I do not know, nor did I ever believe, from any information I received, that Mr. Burr entered into any negotiation or agreement with any member of either party in relation to the presidential election which depended before the House of Representatives.

To the eighth interrogatory the deponent answers and says, Upon the subject of this interrogatory I can express only a loose opinion, founded upon the conjectures at the time of what could be effected by Mr. Burr by mortgaging the patronage of the executive. I can only say, generally, that I

did believe at the time that he had the means of making himself president. But this opinion has no other ground than conjecture, derived from a knowledge of means which existed, and, if applied, their probable operation on individual characters. In answer to the last part of the interrogatory, deponent says, I know of nothing of which Mr. Burr was apprized which related to the election.

(Signed) J. A. Bayard.

*District of Columbia, Washington.*

The deposition of the Honourable James A. Bayard, consisting of six pages, was taken and sworn to before us, this 3d day of April, A. D. 1806.

**STEPHEN R. BRADLEY.**

**GEORGE LOGAN.**

Deposition of the Honourable Samuel Smith, Senator of the United States for the state of Maryland, a witness produced, sworn, and examined in a cause depending in the Supreme Court of the state of New-York, between James Gillespie, plaintiff, and Abraham Smith, defendant, on the part and behalf of the defendant, as follows:

1st. I knew Thomas Jefferson some years previous to 1800; the precise time when our acquaintance commenced I do not recollect.

2d and 3d. I was a member of the House of Representatives of the United States in 1800 and 1801, and know that Thomas Jefferson and Aaron Burr had an equal number of the votes given by the electors of president and vice-president of the United States.

4th. Presuming that this question may have reference to conversations (for I know of no bargains or agreements) which took place at the time of the balloting, I will relate those which I well recollect to have had with three gentlemen, separately, of the federal party. On the Wednesday preceding the termination of the election, Colonel Josiah Parker asked a conversation with me in private. He said that many gentlemen were desirous of putting an end to the election; that they only wanted to know what would be the conduct of Mr. Jefferson in case he should be elected president, particularly as it related to the public debt, to commerce, and the navy. I had heard Mr. Jefferson converse on all those subjects lately, and informed him what, I understood were the opinions of that gentleman. I lived in the house with Mr. Jefferson, and, that I might be certain that what I had said was correct, I sought and had a conversation that evening with him on those points, and, I presume, though I do not precisely recollect, that I communicated to him the conversation which I had with Colonel Parker.

The next day General Dayton (a senator), after some jesting conversation, asked me to converse with him in private. We retired. He said that he, with some other gentlemen, wished to have a termination put to the pending election; but he wished to know what were the opinions or conversations of Mr. Jefferson respecting the navy, commerce, and the public debt. In answer, I said that I had last night had conversation with Mr. Jefferson on all those subjects; that he had told me that any opinion he should give at this time might be attributed to improper motives; that to me he had no hesitation in saying that, as to the public debt, he had been averse to the manner of funding it, but that he did not believe there was any man who respected his own character who would or could think of injuring its credit at this time; that, on commerce, he thought that a correct idea of his opinions on that subject might be derived from his writings, and particularly from his conduct while he was minister at Paris, when he thought he had evinced his attention to the commercial interest of his country; that he had

not changed opinion, and still did consider the prosperity of our commerce as essential to the true interest of the nation; that on the navy he had fully expressed his opinions in his Notes on Virginia; that he adhered still to his ideas then given; that he believed our growing commerce would call for protection; that he had been averse to a too rapid increase of our navy; that he believed a navy must naturally grow out of our commerce, but thought prudence would advise its increase to progress with the increase of the nation, and that in this way he was friendly to the establishment. General Dayton appeared pleased with the conversation, and (I think) said, that if this conversation had taken place earlier, much trouble might have been saved, or words to that effect.

At the funeral of Mr. Jones (of Georgia) I walked with Mr. Bayard (of Delaware). The approaching election became the subject of conversation. I recollect no part of that conversation except his saying that he thought that a half hour's conversation between us might settle the business. That idea was not again repeated. On the day after I had held the conversation with General Dayton, I was asked by Mr. Bayard to go into the committee-room. He then stated that he had it in his power (and was so disposed) to terminate the election, but he wished information as to Mr. Jefferson's opinions on certain subjects, and mentioned, I think, the same three points already alluded to as asked by Colonel Parker and General Dayton, and received from me the same answer in substance (if not in words) that I have given to General Dayton. He added a fourth, to wit: What would be Mr. Jefferson's conduct as to the public officers? He said he did not mean confidential officers, but, by elucidating his question, he added, such as Mr. Latimer, of Philadelphia, and Mr. M'Lane, of Delaware. I answered, that I never had heard Mr. Jefferson say any thing on that subject. He requested that I would inquire, and inform him the next day. I did so. *And the next day (Saturday) told him that Mr. Jefferson had said that he did not think that such officers ought to be dismissed on political grounds only, except in cases where they*

*had made improper use of their offices to force the officers under them to vote contrary to their judgment. That, as to Mr. M'Lane, he had already been spoken to in his behalf by Major Eccleston, and, from the character given him by that gentleman, he considered him a meritorious officer; of course, that he would not be displaced, or ought not to be displaced. I further added, that Mr. Bayard might rest assured (or words to that effect) that Mr. Jefferson would conduct, as to those points, agreeably to the opinions I had stated as his.* Mr. Bayard then said, We will give the vote on Monday; and then separated. Early in the election my colleague, Mr. Baer, told me that we should have a president; that they would not get up without electing one or the other of the gentlemen. Mr. Baer had voted against Mr. Jefferson until the final vote, when I believe he withdrew, or voted blank, but do not perfectly recollect.

5th. I became acquainted with Colonel Burr some time in the revolutionary war.

6th. I know of no agreement or bargain in the years 1800 and 1801 with any person or persons whatsoever respecting the office of president in behalf of Aaron Burr, nor have I any reason to believe that any such existed.

7th. I received a letter from Colonel Burr, dated, I believe, 16th December, 1800, in reply to one which I had just before written him. The letter of Colonel Burr is as follows:—

"It is highly improbable that I shall have an equal number of votes with Mr. Jefferson; but, if such should be the result, every man who knows me ought to know that I would utterly disclaim all competition. Be assured that the federal party can entertain no wish for such an exchange. As to my friends, they would dishonour my views and insult my feelings by a suspicion that I would submit to be instrumental in counteracting the wishes

and expectations of the people of the United States. And I now constitute you my proxy to declare these sentiments if the occasion shall require."

I have not now that letter by me, nor any other letter from him to refer to; the preceding is taken from a printed copy, which corresponds with my recollection, and which I believe to be correct. My correspondence with him continued till the close of the election. In none of his letters to me, or to any other person that I saw, was there any thing that contradicted the sentiments contained in that letter.

(Signed) S. SMITH.

*City of Washington, in the District of Columbia.*

The deposition of the Honourable Samuel Smith, written upon five pages, was duly taken and sworn to before us, two of the commissioners named in the annexed commission, at the capitol in the said city of Washington, on the fifteenth day of April, in the year of our Lord one thousand eight hundred and six, and of the independence of the United States the thirtieth.

(Signed) GEORGE LOGAN.

**DAVID STONE.**

Footnotes:

1. Judge Cooper, of Cooperstown, state of New-York.

2. During the year 1802 unsuccessful efforts were made by the democracy of Philadelphia to have Mr. Latimer removed from the office of collector. The federal party complained of the number of removals which



had already been made. The Aurora of June 29, 1802, referring to this subject, says—"We can tell them (the federalists) that the most lucrative office under the government of the United States in this commonwealth, the emoluments of which amount to triple the salary of the governor of this commonwealth, is now held by \_George Latimer, collector of the customs;" and on the 29th September, he adds, "Let any man of candour say if Latimer ought not long since to have been discharged from his office." Mr. Duane had not then read the depositions of Messrs. Bayard and Smith, and perhaps was ignorant of the *arrangements* by virtue of which this gentleman and Mr. M'Lane, of Delaware, were retained in office.

## CHAPTER IX.

A history of the presidential contest in Congress in the spring of 1801, with an account of some of the circumstances which preceded and followed it, has now been presented. It afforded the enemies of Colonel Burr an opportunity to lay a foundation deep and broad, from which to assail him with the battering-rams of detraction, falsehood, and calumny. From that day until the period when he was driven into exile from the land of his fathers, he was pursued with an intolerance relentless as the grave. The assailants of his reputation and their more wicked employers felt and knew the wrongs they had done. Self-abased with reflecting on the motives which had impelled them to action, their zeal for his ruin became more fiery, and they faltered at no means, however dishonourable, to effect their object. The power of the press is great. But, painful as the remark is, it is nevertheless true—the power of the press to do evil is much greater than to do good. The power of the press is too often irresistible when conducted by unprincipled and corrupt men, pampered by the smiles and the patronage of those filling high places. A stronger illustration of this remark cannot be found in history than the case of Aaron Burr from 1801 to 1804. At the height of his popularity, influence, and glory in the commencement of 1801, before the close of 1804 he was suspected—contemned—derided, and prostrated; and this mighty revolution in public opinion was effected without any wrong act or deed on the part of the vice-president.

The charge against him was that he had been faithless to the political party which had sustained him through life; that he had negotiated, bargained, or intrigued with the federalists to promote his own election to the exclusion of Mr. Jefferson. The public mind became poisoned; suspicions were engendered; his revilers were cherished; the few stout hearts that confided in his political integrity, and nobly clustered around him, were anathematized and proscribed. The mercenary, the selfish, and the timid united in the cry—down with him.

It has been seen, that whenever and wherever the charge was rendered tangible by specification, it was met and repelled. For a refutation of the general charge, Mr. Bayard's and Mr. Smith's testimony is sufficiently explicit. Concurring testimony could be piled upon pile; but, if there remains an individual in the community who will not be convinced by the evidence which has been produced, then that individual would not be convinced "though one were to rise from the dead" and bear testimony to the falsity of the charge.

The details in relation to the presidential contest of 1801 have occupied much time and space. This could not be avoided. It fixed the destiny of Colonel Burr. Besides, it forms a great epoch in the history of our country and its government, and has been but imperfectly understood.

Mr. Jefferson's malignity towards Colonel Burr never ceased but with his last breath. His writings abound with proof of that malignity, smothered, but rankling in his heart. Let the highminded man read the following extracts Mr. Jefferson, in a long and laboured letter to Colonel Burr, written uninvited, not in reply to one received, dated Philadelphia, 17th June, 1797, says—"The newspapers give so minutely what is passing in Congress, that nothing of detail can be wanting for your information. Perhaps, however, some general view of our situation and prospects since you left us *may not*

*be unacceptable. At any rate, it will give me an opportunity of recalling myself to your memory, and of EVIDENCING MY ESTEEM FOR YOU."*

In his *Ana*, under date of the 26th of January, 1804, he says—, "I had never seen Colonel Burr till he came as a member of Senate. [1]

*His conduct very soon inspired me with distrust. I habitually cautioned Mr. Madison against trusting him too much."*

Thus, according to his own showing, while he was endeavouring "to recall himself to the memory" of Colonel Burr "and evidencing his esteem for him," he was "habitually cautioning Mr. Madison against trusting him too much."

Again. January 26, 1804, he says—"Colonel Burr, the vice-president, called on me in the evening, having previously asked an opportunity of conversing with me. He began by recapitulating summarily *that he had come to New-York a stranger some years ago; that he found the country in possession of two rich families (the Livingstons and Clintons); that his pursuits were not political, and he meddled not,*" &c.

Now who that knows the history of Colonel Burr's life will believe one sentence or one word of this statement? In the year 1778, Colonel Burr was in command on the lines in Westchester. In July of that year he was appointed by General Washington to receive from the commissioners for conspiracies the suspected persons. He remained at this post during the winter of 1778-79. Ill health compelled him, in March, 1779, to resign. In the autumn of 1780 he commenced the study of law with Judge Paterson, of New-Jersey, where he remained until the spring of 1781, when he removed to Orange county, in the state of New-York, and continued the study of law. In 1782 he was licensed by the Supreme Court of the state of New-York as counsellor and attorney, and immediately commenced practice in Albany. In

July of that year he was married, then twenty-six years old. In April, 1783, through an agent, he hired a house in the city of New-York, and removed his family into it as soon as the British evacuated the city. In the spring of 1784, six months after his removal into the city, he was elected to represent it in the state legislature. [2]

In the face of these facts, to talk of his "*having come to New York a stranger some years ago, and finding the state in possession of two rich families,*" &c. What absurdity! But, shrinking from these disgusting and revolting exposures, the reader, it is believed, will cheerfully turn to the perusal of those letters which again presents to his view Colonel Burr in the domestic and social scenes of life.

## **TO THEODOSIA.**

Trenton, January 2, 1800.

The question—*When shall we meet?* is already answered; but I must now answer it anew, and for a more distant day; perhaps Wednesday, perhaps Thursday; but you will hear again. Your letters amuse me; your recovery rejoices me; your determination not to torment yourself is neither from philosophy nor spleen—it is mere words, and an attempt to deceive yourself, which may succeed for the moment; *ergo*, no determination; *ergo*, not founded on philosophy; *ergo*, not on resentment; *ergo*, neither. I have no doubt but *chore* is on the way; the journey cannot at this season be performed in thirty days.

My compliments to A. C. M., and am very much obliged to them. It is the most fatiguing thing imaginable for such crude tastes as those of Theodosia and A. B. You had better apologize. You are sick and I am absent. But you have not mentioned the day—neither that of the beauty's ball, for which I

owe you much ill will, and therefore my next shall be to *Natalie*, to whom all good wishes.

**A. BURR.**

THEODOSIA.

Albany, January 29, 1800.

You must be weary of hearing that "I have not yet a line from you, and that John and Alexis are not arrived," but you must submit to hear often of what so often employs my thoughts.

Most of all, I amuse and torment myself by fancying your occupations, your thoughts, your attitudes at different hours in the day and night—generally I find you reading or studying; sometimes musing; now and then counting the time of my probable absence. In comes C. C.—a pleasant interruption, or a note from C. C., and then follows trouble and embarrassments, and sometimes scolding. They are always answered, however.

We have agreed that the cause of Le Guen shall come on next Tuesday. It will last the whole week. The week following I shall hope to leave this place; but I may be deceived, for the court may take a week to consider of the business, and I cannot leave the ground till the thing be determined.

Adieu, chere amiè,

**AARON BURR.**

TO THEODOSIA.

Albany, February 13, 1800.

Your letter by this day's mail, dated the 13th, and postmarked the 12th, is one of those hasty and unsatisfactory scraps which neither improve you nor amuse me. I pray you never to write to me with the mere motive of getting rid of the task. These performances always lead me to fear that all other tasks are performed in the same manner; but adieu to tasks and reproaches. I will endure your haste or your silence without a murmur. One is not always in the humour to write, and one always writes as much as the humour prompts.

I am here sentinel over the interest of Le Guen, and cannot leave the post until the final decision be had, of which, at present, I form no conjecture as to the period; but I entertain no doubt of Le Guen's eventual success.

Among the letters forwarded by you is one recommending to me in very high terms a Mr. Irving, or Irwin, [3] from London; pray inquire who he is, and where to be found, and be able to inform me, on my return, if I *should* happen to return.

Mr. Eacker has offered his services to take a letter. You see that I cannot refrain from improving every occasion of assuring, you how very truly I am your faithful friend and affectionate father,

A. BURR.

TO THEODOSIA,

Albany, February 15, 1800.

This will be handed you by Mr. Brown, [4] secretary to General Hamilton. By the two preceding mails I had nothing from you; by that of this day I am again disappointed. I do indeed receive a very pleasant little letter, but I expected a volume. Would it be an intolerable labour, if, precisely at half past nine o'clock every evening, you should say, "I will now devote an hour to papa?" Or even half an hour. Your last letter, though not illy written, has evident marks of haste.

I agree entirely with your eulogium on our amiable friend; but one point you overlook. Her heart is as cold as marble, And you mistake the effusions of politeness, mingled with respect, for symptoms of tender emotions.

The argument of the cause of Le Guen is concluded. I fear that I must wait for the final decision of the court before I can leave Albany. Tomorrow I go with John to Schenectady. I am more impatient to return than I can express.

**A. BURR.**

THEODOSIA.

Albany, March 5, 1800.

I had taken my passage for this day, and anticipated the pleasure of dining with you on Saturday. But—but—these buts—how they mar all the fine theories of life! But our friend Thomas Morris [5] has entreated in such terms that I would devote this day and night to certain subjects of the utmost moment to him, that I could not, without the appearance of unkindness, refuse. He would, I know, at any time, devote a week or month, on like occasion, to serve me. How, then, could I refuse him one day? I could not.



But, again, more buts. *But* after I had consented to give him a day, I sent to take passage for to-morrow, and lo! the stage is taken by the sheriff to transport criminals to the state prison. I should not be much gratified with this kind of association on the road, and thus I apprehend that my journey will be (must be) postponed until Friday, and my engagement to dine with you until Monday.

**A. BURR.**

TO JOSEPH ALSTON.

New-York, January 15, 1801.

**MY DEAR SIR,**

Your two letters have been received, and gave me great pleasure. We are about to begin our journey to Albany. I propose to remain there till the 10th of February; possibly till the 20th. If you should come northward, you will find a letter for you in the postoffice of this city.

The equality of Jefferson and Burr excites great speculation and much anxiety. I believe that all will be well, and that Jefferson will be our president. Your friend,

**A. BURR.**

THEODOSIA TO JOSEPH ALSTON.

Poughkeepsie, January 24, 1801.

Thus far have we advanced on this *terrible* journey, from which you predicted so many evils, Without meeting even with inconvenience. How strange that Mr. Alston should be wrong. Do not, however, pray for misfortunes to befall us that your character may be retrieved; it were useless, I assure you; although I am very sensible how anxious you must now be to inspire me with all due respect and reverence, I should prefer to feel it in any other way.

We shall go from hence to Albany in a sleigh, and hope to arrive on Sunday evening, that we may be *settled* on Thursday. Adieu. Health and happiness.

**THEODOSIA.**

TO MRS. THEODOSIA B. ALSTON.

Albany, February 17, 1801.

I have heard that you reached Fishkill on Sunday, and thence conclude that you got home on Monday night. When in Philadelphia, send a note to Charles Biddle, inquiring, &c., and to inform him that you are going South. He will call and see you, being one of your great admirers. Desire Doctor Edwards to give Mr. Alston a line to Cesar Rodney, of Wilmington, a very respectable young man. He will introduce you to the venerable Dickenson, who, knowing my great respect for him (which you will also take care to let him know), will be pleased to see Mr. Alston and you on that footing. At Baltimore, either call immediately on Mrs. Smith, or let her know of your arrival. You are to wait in Baltimore until I overtake you, which will be on the 28th at the latest. Adieu.

**A. BURR.**

TO THEODOSIA.

Washington, March 8, 1801.

Your little letter from Alexandria assured me of your safety, and for a moment consoled me for your absence. The only solid consolation is the belief that you will be happy, and the certainty that we shall often meet.

I am to be detained here yet a week. Immediately on my return to New-York I shall prepare for a tour to Georgetown or to Charleston; probably a water passage.

I.B. Prevost has been hurrying off Senat and Natalie; but for his interposition they would have relied wholly on me, and I had already proposed that they should go with the chancellor some time in the summer or autumn, which would have been then or never, as I had pleased; but he (I.B.P.) has advised otherwise, and strongly urged their immediate departure. I think I shall be able to prevent it.

Would Mr. Alston be willing to go as secretary to Chancellor Livingston? I beg his immediate answer.

Adieu, ma chere amie.

A. BURR.

TO THEODOSIA.

Washington, March 11, 1830.

By the time the enclosed shall reach Mr. Alston, it will have travelled about three thousand miles. It will certainly deserve a kind reception. I

leave mine open for your perusal; the other appears to be from *Miss Burr*.

Your Dumfries letter was received yesterday. To pass a day in Dumfries is what you could not at any time very much desire; but to pass one there against your will, and a rainy day too, was indeed enough to try your tempers.

On Sunday, the 15th, I commence my journey to New York; there I shall not arrive till the 25th. Nothing but *matrimony* will prevent my voyage to Charleston and Georgetown; and even so great an event shall only postpone, but not defeat the project I am sorry, however, to add that I have no expectations or decided views on this subject. I mean Hymen.

It gives me very great pleasure to hear that Colonel W. Hampton is become, in some sort, your neighbour, by having purchased a plantation within fifteen or twenty miles (as is said) of Georgetown. Write me if this be so.

I have written to Frederick [6] as you commanded; that I might not err in expressing your ideas, I enclosed to him your letter. You have no warmer friend on earth; no one who would so readily hazard his life to serve you. It always seemed to me that you did not know his value.

Certain parts of your letter I cannot answer. Let us think of the expected meeting, and not of the present separation. God bless thee ever.

**A. BURR.**

TO THEODOSIA.

New-York, Match 29, 1801.

On Wednesday, the 18th, I left the great city. At the Susquehannah the wind was rude; the river, swollen by recent rains, was rapid. The ferrymen pronounced it to be impossible to pass with horses, and unsafe to attempt it. By the logic of money and brandy I persuaded them to attempt it. We embarked; the wind was, indeed, too mighty for us, and we drove on the rocks; but the boat did not bilge or fill, as in all reason it ought to have done. I left Alexis and Harry to work out their way; got my precious carcass transported in a skiff, and went on in a stage to pass a day with "thee and thou." I was received by the father with parental affection—but of "thee." How charming, how enviable is this equanimity, if real. There is one invaluable attainment in the education of this sect; one which you and I never thought of: it is "*tacere*." How particularly desirable this in a wife.

At Philadelphia I saw many—many, who inquired after you with great interest—*sans doute*. Among others I saw B., lovely and interesting; but adieu to that. It cannot, must not, will not be; and the next time I meet B., which will be in a few days, I will frankly say so.

I approached home as I would approach the sepulchre of all my friends. Dreary, solitary, comfortless. It was no longer *home*. Natalie and ma bonne amie have been with me most of the time since my return (about twenty-four hours past). My letters from Washington broke up that cursed plan of J. B. P.; they do not go in the parlementaire; they do not know when they go; and, in short, they rely wholly on me, so that thing is all right.

The elegant and accomplished Mrs. Edward Livingston died about ten days ago. Mrs. Allen is in town; she is in better health than for years past. As to my dear self, I am preparing with all imaginable zeal for a voyage to Charleston. One obstacle interposes; that you can conjecture. That removed, and I shall be off in forty-eight hours. I hope to be at sea by the 20th of April; but, alas! perhaps not. In eight days you shall know more of this.

Your letters have been received as far as Halifax. We conclude that you got home on the 16th. It has been snowing here this whole day most vehemently. You are blessed with "gentler skies." May all other blessings unite.

A. BURR.

TO THEODOSIA.

New-York, April 15, 1801.

Your letters of the 24th and 25th March, received yesterday, give me the first advice of your safe arrival at Clifton. The cordial and affectionate reception which you have met consoles me, as far as any thing can console me, for your absence.

My last will have advised you of the alteration in the plans of Natalie. Of all this she will write you; but I must say a word of my own plans. The ship South Carolina is now in port, and will sail on Monday next. I wish to take passage in her; but a thousand concerns of business and obstacles of various kinds appear to oppose. I shall combat them all with the zeal which my ardent wishes for the voyage inspire; yet I dare hardly hope to succeed. You shall hear again by the mail of Saturday.

Your female friends here complain of your silence; particularly Miss C., and, I am sure, *elle a raison*.

The reasons which you and your husband give against the voyage to France concur with my judgment. You can go a few years hence more respectably, more agreeably. Adieu, chere enfalit.

A. BURR.

TO JOSEPH ALSTON.

New-York, April 27, 1801.

Our election commences to-morrow, and will be open for three days. The republican members of assembly for this city will be carried by a greater majority than last year, unless some fraud be practised at the polls. The corporation have had the indecent hardness to appoint known and warm federalists (and no others) to be inspectors of the election in every ward. Hamilton works day and night with the most intemperate and outrageous zeal, but I think wholly without effect.

If any reliance may be placed on our information from the country, Clinton will be elected by a large majority. The best evidence of dispassionate opinion on this subject is, that bets are two to one in his favour, and that the friends of Van Rensselaer wager with reluctance with such odds.

A. BURR.

TO THEODOSIA.

New-York, April 29, 1801.

This morning will sail the brig Echo, the only vessel in harbour destined for South Carolina. I do not go in her. With unspeakable regret, therefore, the projected visit is abandoned—wholly and absolutely abandoned. The pain of my own disappointment leaves me no room for any sympathy with

yours. There is one insurmountable obstacle, which I leave you to conjecture. If that were removed, it would yet, for other reasons, be barely possible for me to go at this time. But enough of disappointment; let us talk of indemnifications.

On the 5th of June I must be at the city of Washington, After the 12th I shall be at leisure, and will meet you anywhere. Write me of your projects, and address me at that place. How can Mr. Alston, consistently with his views of business, leave the state for five or six months, as you have proposed, for your Northern tour?

Of the voyage to France I have written to you both about a fortnight ago. I heartily applaud your judgment, and the motives which have influenced it. You may by-and-by go in a manner much more satisfactory.

How very oddly your letters travel. That of the 30th March arrived on the 15th, instant; and yesterday, those of the 6th and 13th by the *same* mail. To solve this phenomenon, I am led to believe that they have moved with a velocity proportioned to the spirit which was infused in them by the writer. Thus, the first crawled with a torpor corresponding with its character. It reminded me of the letter of a French lady, which I have shown you as a model of elegance. "*Mon cher mari, je vous ecris parceque je n'ai rien a faire: je finis parceque je n'az rien a dire.*" This was, indeed, the substance of yours; but, being spread over a whole page, the laconic beauty was lost, and the inanity only remained. The second, a grave, decent performance, marched with becoming gravity, and performed the Journey in two-and-twenty days; but the third, replete with sprightliness and beauty, burst from the thralldom of dulness, and made a transit unparalleled in the history of the country.

You will find in this theory some incentive to the exertion of genius; and I entertain no doubt but that, ere long, your letters will be sped with the



rapidity of a ray of light.

We have laughed at your horse negro, and have been very much amused by the other charming little details. Thus letters should be written.

By this vessel I send two dozen pairs of long coloured kid gloves, and half a dozen pretty little short ones, *pour monter a cheval*. They are directed to your husband. I wish you would often give me orders, that I may have the pleasure of doing something for you or your amiable family.

I had like to have forgotten to say a word in reply to your inquiries of matrimony, which would seem to indicate that I have no plan on the subject. Such is the fact. You are or were my projector in this line. If perchance I should have one, it will be executed before you will hear of the design. Yet I ought not to conceal that I have had a most amiable overture from a lady "who is always employed in something useful." She was, you know, a few months past, engaged to another; that other is suspended, if not quite dismissed. If I should meet her, and she should challenge me, I should probably strike at once. She is not of that cast, yet a preference to rank only is not very flattering to vanity; a remark which may remind you of "*Le moi*."

Adieu, chere enfante.

**AARON BURR.**

TO THEODOSIA.

New-York, May 26, 1801.

Another parlementaire is preparing in this port, and *ma bonne amie* and Natalie are again preparing to sail; but you may rest assured that they will not go. Their preparations are evidently mere form, and they are ready to yield to gentle persuasion. Yet you must not delay your voyage hither, to aid, if necessary.

But, for a reason much more weighty, you must hasten—*il faut*. I want your counsel and your exertions in an important negotiation, actually commenced, but not advancing, and which will probably be stationary until your arrival; more probably it may, however, in the mean time, retrograde. Quite a new subject.

Who should present himself a few days ago but A. Burr Reeve. He has come, with the consent of his father, to pass some weeks with me—more astonishment. I have put him in the hands of Natalie. She will find it a hard job, but she has entered on the duty with great zeal and confident hopes of complete success.

By the time this can reach you, you will be ready to embark for New-York. You will find me in Broadway. Richmond Hill will remain vacant till your arrival. Adieu.

**A. BURR.**

TO THEODOSIA.

New-York, August 20, 1801.

Mr. Astor, if he should not meet you to deliver this letter, will send it after you. Yet I dare not trust to such hazards the letters which I have received for

Mr. Alston and you, I persevere, therefore, in the determination to retain them.

I was so very solicitous that you should see Niagara, that I was constantly filled with apprehension lest something might prevent it. Your letter of the 29th of July relieves me. You had actually seen it. Your determination to visit Brandt gives me great pleasure, particularly as I have lately received a very friendly letter from him, in which he recapitulates your hospitality to him in *ancient days*, and makes very kind inquiries respecting you; all this before he could have entertained the remotest idea of seeing you in his own kingdom.

Natalie and M. Senat have been for some weeks past at Trenton ; they are now on their return, and will be here to-morrow. Vanderlyn, of whom I said something in my last, will immediately set about her picture. They (Natalie and Senat) are to go with the chancellor about the last of September.

Wheeler will be here in a few days. Hampton is actually married to a charming young girl—so General M'Pherson tells me. I forget her name. Mr. Ewing is appointed consul to London, and has sailed. Mrs. Allen is still at Elizabethtown. Adieu.

**A. BURR.**

TO THOMAS MORRIS.

New-York, September 18, 1801.

Mr. Vanderlyn, the young painter from Esopus, who went about six years ago to Paris, has recently returned, having improved his time and talents in a manner that does very great honour to himself, his friends, and his

country; proposing to return to France in the spring, he wishes to take with him some American views, and for this purpose he is now on his way through your Country to Niagara. I beg your advice and protection. He is a perfect stranger to the roads, the country, and the customs of the people, and, in short, knows nothing but what immediately concerns painting. From some samples which he has left here, he is pronounced to be the first painter that now is or ever has been in America. Your affectionate friend,

**A. BURR.**

FROM P. BUTLER

Philadelphia, September 19, 1801.

**DEAR SIR,**

I was yesterday afternoon favoured with your friendly letter of the 16th. On the subject of removal from office, it appears to my finite judgment that it should be done sparingly, and only where it was absolutely necessary. It is true, that the appointments during the latter part of Mr. Washington's administration, and the whole of Mr. Adams's, were partial. It will, I think, be prudent not to follow their examples. Every man removed adds twenty enemies to republicanism and the present administration, while it gives us not one new friend; for that man whose patriotism depended on his getting a place for himself or connexion, is neither worth attending to nor keeping right. You must be sensible that a general assault from one end of the line to the other will be made on the present administration. It is, therefore, highly incumbent to be moderate, though firm, to prove to the great body of the landed interest, the true support of good government, that the present administration are the friends of an equal, mild, economic, and just

government. We may expect the political vessel to be assailed by waves, but we must steer an even straightforward course—united as friends in the same fate.

Your observation respecting the political state of South Carolina is more flattering to me than I merit. My offering for senator is out of the question; but I am not, neither shall I be inactive on that occasion. I shall always feel happy in meeting you anywhere.

You will shortly see a statement of the Carolina election in print, by a gentleman who was present. I was not present, though I believe I know the facts. The thing will not be passed over without notice. Circumstantial facts are collecting. I regret that my two letters from Carolina at that time did not get to your hand. Your friend,

**P. BUTLER.**

TO, JOSEPH ALSTON.

Albany, October 15, 1801.

Our Convention [7] met on Tuesday the 13th, and will probably continue in session five or six days longer. I shall forthwith return to New-York, beyond which I have no plan for the month of November, except, negatively, that it will not be in my power to visit South Carolina till spring.

On the road I passed half an hour with Mrs. L., late Mary A. She appeared most sincerely glad to see me. She is still beautiful; something ennuyed with the monotony of a country life; talked of you with the warmest affection. It is really a fraud on society to keep that woman perpetually buried in woods and solitude.

I am extremely solicitous to know how you get on. Pray make easy journeys, and be not too impatient to get forward. Never ride after dark, unless in case of unavoidable necessity, and then on horseback. What a volume of parental advice. God bless you both.

A. BURR.

## TO THEODOSIA

New-York, November 3, 1801.

It is very kind indeed to write me so often. Your last is from Petersburg. "Like gods," forsooth; why, you travel like—; that, however, was a very pretty allusion. I have repeated it a dozen times and more. Your other letters also contain now and then a spark of Promethean fire: a *spark*, mind ye; don't be vain.

And so—has returned *sans femme*; just now arrived. He saw you and spoke to you, which rendered him doubly welcome to A. B.

You made two, perhaps more conquests on your Northern tour—King Brandt and the stage-driver; both of whom have been profuse in their eulogies. Brandt has written me two letters on the subject. It would have been quite in style if he had scalped your husband and made you Queen of the Mohawks.

Bartow, &c., are well. Mrs. Allen better. Mrs. Brockbolst Livingston dead. Mrs. Van Ness has this day a son. Thus, you see, the rotation is preserved, and the balance kept up.

There are no swaar apples this year; some others you shall have, and "a set of cheap chimney ornaments." I have not asked the price, but not exceeding *eight hundred dollars!* Did you take away "The man of Nature?" I proposed to have sent that with some others to L. N., but you have thus marred the project.

Since I began this letter I am summoned to leave town two hours before daylight to-morrow morning, to return next day, when I shall know definitely the result of the sale, which, indeed, is the object of the journey. On my return I passed a day with M. A. Monsieur is cold, formal, monotonous, repulsive. Gods! what a mansion is that bosom for the sensitive heart of poor M. Lovely victim! I wish she would break her pretty little neck. Yet, on second thought, would it not be better that he break his? *He* is often absent days and weeks. *She* has not seen the smoke of a city in five years; but this is dull. I had something more cheerful to say; this, however, came first, and would have place. And here am I, at midnight, talking such stuff to bagatelle, and twenty unanswered letters of *vast importance* before me! Get to bed, you hussy.

**A. BURR.**

November 5.

This letter was nicely sealed up and laid on my table; late last night I returned from the country, and found the letter just where I left it. Very surprising! This was so like my dear self, that I laughed and opened it, to add that Richmond Hill will probably be sold within ten days for *one hundred and forty thousand dollars*, which, though not half the worth, is enough and more.

**A. BURR.**

## TO THEODOSIA.

New-York, November 9, 1801.

This fine day brings me your two letters from Raleigh and Fayetteville, 28th and 30th of October. It is quite consoling to find that you will have taken the precaution to inquire the state of health before you venture your precious carcass into Charleston. A fever would certainly mistake you for strangers, and snap at two such plump, ruddy animals as you were when you left New-York.

You shall have apples, and nuts, and a cook, and *lucerne* seed. As to *femme de chambre*, I cannot speak with certainty. I have put in motion the whole French republic on the occasion. Mrs. Kemble's friend cannot be found. Most probably Madame S. has tortured into Gamble some name which has not a letter of Kemble or Gamble in it.

Natalie sailed the Thursday after you left town, and she is probably *now* in Havre with her mother. A letter received from Madame d'Lage [8] since Natalie sailed, advises us that she is there waiting for her, which is indeed most fortunate, and relieves me from a small portion of the anxiety which I suffer for that charming girl. Yet, alas! there is room for too much. I expect to see her here within a year.

Anna wonders you do not write to her. It never occurred to her that she had not written to you: so she is now occupied, and you may soon expect at least twenty pages from her indefatigable pen. I am going to see Board. There is an ancient story of a man who once gave life and spirit to marble (you may read it in the form of a drama in Rousseau). Why may not this be done again? The sale of Richmond Hill goes on, and will, I believe, be completed within eight days. The price and the terms are agreed; some little under works retard the conclusion.



Adieu, my dear Theodosia.

**A. BURR.**

TO JOSEPH ALSTON

New-York, November 15, 1801.

I send the enclosed newspaper merely on account of the proceedings of the Rhode Island legislature. They are on the second page. That, in New-England, men should be found hardy enough to oppose, in public speeches, the recommendation of a thanksgiving sanctioned by the usage of one hundred and fifty years; that this opposition should prevail, and the recommendation be rejected by a large majority of a House of Assembly, are events the most extraordinary which the present generation hath beheld.

It has been announced in your gazettes that I am to visit Charleston this month. Nothing is more true than that my warmest wishes have urged me to verify this expectation; but it is equally certain that I shall do no such thing. When I expressed the hope of seeing your state previously to the session of Congress, I did not know that I was chosen a member of the Convention by the county of Orange, much less could I foresee that I should be president of that Convention; and no individual suspected that fifteen days would have been consumed in accomplishing the business of six hours. These circumstances ought to redeem my character, in this instance, at least, from the charge of versatility or caprice, Vale.

**A. BURR.**

FROM THOMAS JEFFERSON.

Washington, November 18, 1801.

DEAR SIR,

Your favour of the 10th has been received, as have been those also of September 4th and 23d, in due time. These letters, all relating to office, fall within the general rule which even the very first week of my being engaged in the administration obliged me to establish, to wit, that of not answering letters on office specifically, but leaving the answer to be found in what is done or not done on them. You will readily conceive into what scrapes one would get by saying *no*, either with or without reasons; by using a softer language, which might excite false hopes, or by saying *yes* prematurely; and, to take away all offence from this silent answer, it is necessary to adhere to it in every case rigidly, as well with bosom friends as strangers.

Captain Sterret is arrived here from the Mediterranean. Congress will have a question as to all the Barbary powers of some difficulty. We have had under consideration Mr. Pusey's plans of fortification. They are scientifically done and expounded. He seems to prove that no works at either the Narrows or Governor's Island can stop a vessel; but to stop them at the Hook by a fort of *eight thousand* men, and protecting army of *twenty-nine thousand*, is beyond our present ideas of the scale of defence which we can adopt for all our seaport towns. His estimate of *four millions of dollars*, which experience teaches us to double always, in a case where the law allows, but (I believe) *half a million* ties our hands at once. We refer the case back to Governor Clinton, to select half a dozen persons of judgment, of American ideas, and to present such a plan, within our limits, as these shall agree on. In the mean time, the general subject will be laid before Congress. Accept assurances of my high respect and consideration.

THOMAS JEFFERSON.

TO THEODOSIA.

New-York, November 20, 1801.

It is several days since I wrote to you, and many more since I received a letter from you. That from Fayetteville is still the last.

"Gamble's" protégée could not be found. You will probably gain by the exchange. That whom I shall send you is a good, steady-looking animal, *agée vingt trois*. From appearance, she has been used to count her beads and work hard, and never thought of love or finery. The enclosed recommendation of Madame Dupont, the elder, will tell you more. You are in equal luck with a cook. I have had him on trial a fortnight, and he is the best I ever had in the house; for cakes, pastry, and jimcracks, far superior to Anthony. In short, he is too good for you, and I have a great mind not to send him; you will be for ever giving good dinners. He has something of the manner and phisiognomy of Wood, your teacher. *M'lle la femme de chambre* and *Monsieur le Cuisinier* are both pure French (not creole), and speak well the language. He will take with him a quantity of casseroles and other implements of his etat. They will be shipped off next week.

The sale of Richmond Hill is all off; blown up at the moment of counting the money, partly by whim and partly by accident; something else will be done to produce the effect. I go to Philadelphia in two or three days; but shall return, and not set off for Washington till near Christmas. Mrs. A.'s health is much improved. God bless thee.

A. BURR.

## TO THEODOSIA.

Philadelphia, November 26, 1801.

Your letter of the 7th of November, from *Yaahanee*, is received at this place. Though I am in the house with Mr. and Mrs. Lowndes, and several other Carolinians, yet we are wholly ignorant of your position. No one ever heard of *Yaahanee*. I suspect it to be some Mohawk word, which T. B. A. has been pleased to retain and apply—a very pretty name, I acknowledge. Your reception has, indeed, been charming; it reads more like an extract from some romance than matter of fact happening in the nineteenth century within the United States. I will ride fifty miles out of my way to see that lady.

The great business, as you are pleased to call it, has brought me hither. Not merely to see the statue, nor have I yet seen it; but am in the way. It will be a heavy job, considering that B. is on the spot. To return to the business. It will go on; it must go on; it shall go on. It will be Christmas before I see the city of Washington. My lodgings are near the capitol, and next door to Law, who has removed since we were together at his house. Your cook and maid must be detained at New-York till my return, which will be in about eight days.

Your letter is pretty and lively, and indicates health, content, and cheerfulness, which is much better than if you had told me so, for then I should not have believed a word of it.

You have learned from the newspapers (which you never read) the death of Philip Hamilton. [9]

Shot in a duel with Eacker, the lawyer. Some dispute at a theatre, arising, as is said, out of politics. The story is variously related; will give you a

concise summary of the facts, in fifteen sheets of paper, with comments, and moral and sentimental reflections. To this I take the liberty of referring you.

**A. BURR.**

TO THEODOSIA.

New-York, December 8, 1801.

By the ship Protectress you will receive all your things, together with cook and maid. To sail on the 14th. On the day of sailing I will write to you, enclosing the bills of lading.

Your interesting letter of the 23d is this day received. It brings me to the familiar acquaintance with your amiable circle, and admits me to your fireside more than any thing you have written. Mrs. Allen is here. Anna will, to all appearance, be married before spring to a merchant of the name of Pierpont. Catharine is astonished that she has not yet an answer to her letter. I have told her that she can by no possibility have one before Christmas. In your reading, I wish you would learn to read newspapers; not to become a partisan in politics, God forbid, but they contain the occurrences of the day, and furnish the standing topics of conversation. The reading of newspapers is a knack which you will acquire in six weeks, by reading, during that time, every thing. With the aid of a gazetteer and atlas, you must find every place that is spoken of. Pray, madam, do you know of what consist the "Republic of the Seven Islands?" Do you know the present boundaries of the French republic? Neither, in all probability. Then hunt them.

Now, one word of self. I came here on the 6th, and shall remain in New-York till near the 20th. Then to Washington. The business is in a prosperous way. My great love for the fine arts, especially sculpture, may detain me a week in Philadelphia. Adieu, ma belle.

**A. BURR.**

Footnotes:

1. Mr. Burr had left the Senate previous to the date of this memorandum.
2. This is not all. It has already been demonstrated, and the fact is notorious, that, from the year 1777 until after the adoption of the Federal Constitution, the Livingstons and Clintons were not acting in concert. The Livingstons were of the Schuyler party. Before the revolutionary war there were two great contending families in the state of New York; but they were the Van Rensselaers and the Delancys. The former espoused the whig cause, the latter the cause of the tories.
3. George W. Irwin, subsequently minister to the court of Spain.
4. Major General Jacob Brown, late of the United States army.
5. Former United States Marshal of the Southern District of the state of New-York, and son of that distinguished revolutionary financier, the Honourable Robert Morris.
6. Frederick Prevost, son of Mrs. Burr by her first husband.
7. A Convention to revise the Constitution of the State; of which Convention Colonel Burr was president.

8. The mother of Natalie.

9. Son of General Alexander Hamilton.

## CHAPTER X.

TO JOSEPH ALSTON.

New-York, December 13, 1801.

Herewith is enclosed a duplicate of the bill of lading, specifying the articles shipped for you on board the Protectress—She sailed this afternoon. The president's message, of which a copy was sent you by this ship, will have reached you through other channels long before her arrival.

One idea contained in this message is much applauded by our ladies. They unite in the opinion that the "energies of the men ought to be principally employed in the multiplication of the human race," and in this they promise an ardent and active co-operation. Thus, then, is established the point of universal coincidence in political opinion, and thus is verified the prophetic dictum, "we are all republicans, we are all federalists." I hope the fair of your state will equally testify their applause of this sentiment; and I enjoin it on you to manifest your patriotism and your attachment to the administration by "exerting your energies" in the manner indicated.

"To kill is brutal, to create Divine."

I propose—now observe, this is not to be published—I propose early in the spring to take a ramble with you through your mountains. You had best say nothing of your project of a location in the hills until it shall be



executed; for, if competition should arise before you shall be suited, it would increase the expense of an establishment. I am impatient to hear that you are settled and at work. Very affectionately,

**A. BURR.**

FROM DAVENPORT PHELPS.

New-York, December 15, 1801.

**SIR,**

The enclosed copy of a letter from Captain Brandt to Isaac Chapin, Esq., superintendent of Indian affairs in the state of New-York, comprising (I conceive) the plan by him committed to me, and to which he alludes in his letter to yourself, for introducing moral instruction among the Indians. This plan, agreeably to his request, was recommended by the superintendent, and, so far as it respects the ordination of a missionary, has been accomplished.

It yet remains, Sir, to provide means of support; and when the question respecting the instruction of their youth can be determined, by what means and in what manner this shall be effected.

I will, at present, only use the freedom to suggest whether it might not conduce to the furtherance and facilitating the above design to appropriate for their accommodation a suitable portion of land at or in the vicinity of Sandusky. Were the scattering tribes concentrated, and with them some of their countrymen and others as patterns of industry and morality, such circumstances must be highly favourable to attempts to bring them into the habits of civilization.

I am, with great respect,

DAVENPORT PHELPS.

FROM JOSEPH BRANDT.

Grand River, May 7, 1800.

SIR,

About three weeks since I received a message from Obeel to attend a council at Buffalo, where I expected the pleasure of seeing you. We attended and waited a few days; but the chiefs there not being ready to meet us, and we having business which required our attendance at this place, were under the necessity of coming away. Had I been so fortunate as to have met you there, it was my intention to have conversed with you upon a subject which I have long considered as most important and interesting to the present and future well being of the Indians, on *both sides* of the lakes and at large; namely, their situation in a moral point of view, and concerning measures proper to be taken in order that regular and stated religious instruction might be introduced among them.

You well know, Sir, the general state of the Indians residing on the Grand River, as well as in other parts. A considerable number of some of these nations have long since embraced Christianity, and the conversion of others must depend, under the influence of the Great Spirit, on the faithful labours of a resident minister, who might visit and instruct both here and elsewhere, as ways and doors might, from time to time, be opened for him.

The establishment and enlargement of civilization and Christianity among the natives must be most earnestly desired by all good men; and as

religion and morality respect mankind at large, without any reference to the boundaries of civil governments, I flatter myself that you, sir, will approve what many of the chiefs here, with myself, are so greatly desirous of.

I have in view, as I have before suggested, the welfare of the Indians at large, being fully persuaded that nothing can so greatly contribute to their present and future happiness as their being brought into the habits of virtue and morality, which, I trust, may and will be gradually effected by instruction, if properly attended and enforced by example.

I well know the difficulty of finding a gentleman suitably qualified, and willing to devote his life to the work of a missionary among them; and especially one of talents and manners to render him agreeable in a degree highly to favour his usefulness. And, in order to satisfy myself in this respect, I have faithfully inquired and consulted, and am clearly of opinion that Mr. Davenport Phelps, who is recommended as a gentleman of virtue and respectable accomplishments, is the most suitable character for this office of any one within my knowledge. My long acquaintance with his family, and particular knowledge of him, as well as the Opinion and wishes of the most respectable characters among the white people in this vicinity, who earnestly wish, for themselves as well as for us, that he may be ordained a missionary, make me earnestly hope that you will officially recommend both the design and him to the right reverend bishops in the United States, or to some one of them, and to such other characters as you may think proper.

From the consideration that religion and politics are distinct subjects, we should not only be well satisfied to receive a missionary from a bishop in the United States, but, for various other reasons, would prefer one from thence. We shall be able here to do something considerable towards Mr. Phelps's support; and I doubt not but others, who have ability, will be

disposed to assist in promoting so good a work. I will add no more than that I have great satisfaction in being confident of your friendly and influential exertions in this important affair, and that I am, with great sincerity, yours, &c.,

**JOSEPH BRANDT.**

TO THEODOSIA.

New-York, December 15, 1801,

Yesterday Mr. Phelps, mentioned in the enclosed, delivered to me two pairs of moccasins, directed—"From Captain Joseph Brandt to Mr. and Mrs. Alston." Your ship having sailed, I don't know how or when I shall forward them to you; but we will see. I send the original letter of Captain Brandt merely to show how an Indian can write. It is his own handwriting and composition. Upon this notice of his attention you should write him a letter of acknowledgment for his hospitality, &c., which you may enclose to me at Washington.

Dear little Anna is shortly to be married to a Mr. Pierpont, whom I do not personally know; but he is said to be rich and handsome—a young man of industry and credit as a merchant. I think it will do pretty well. E. has a lover—a man of consideration and property—measures six feet eight inches and a half, shoes off; but so very modest that they never will come to an explanation unless she shall begin. So no more at present from your loving father,

**A. BURR.**

FROM JUDGE WILLIAM P. VAN NESS.

New-York, January 2, 1802.

Since your departure the affair with Wood [1] has assumed a very singular aspect. When I told the printers that the negotiation was at an end unless they acceded to my proposition, it produced much agitation ; and yesterday they called to inform me that they had taken the opinion of good counsel on the subject; that their determination was not to publish, but to hold you liable for the expenses. Wood informs them that he acted merely as your agent; that all his proposals were in strict conformity to your directions.

Davis and Swartwout are of the opinion that we ought to get the work published in its present form, if possible:

1. Because our opponents say it unfolds the views of the federal party; that it exposes their principal men, &c., and therefore we wish to withhold it:

2. Because, if a new edition appears with the *same facts and character*, they will say it has been subsequently introduced:

3. Because, if *it* is brought out now, the attempt to check it will have a favourable tendency.

How far these ideas are correct, and what steps are best to take, you will now be able to determine, and instruct me accordingly. The truth is, that instead of being unwilling and reluctant to suppress, they dare not publish the work without indemnity. I am anxious to know your opinion on the subject, and hope to hear from you on Tuesday next.

W. P. Van Ness.

TO THEODOSIA.

Washington, January 12, 1802.

Just arrived at the city of Washington, this 12th day of January, A. D. 1802. I have only time, before closing of the mail, "to send you these few lines, hoping they may find you in good health, as I am at this present time," &c.

A form of salutation to be found in a public letter of Julius Cesar, and in one of Cicero's familiar epistles.

Your letters which greet me here are of the 2d and 20th of December only; only two. Why, I expected to find a dozen, and some of them down to within three or four days of this date. Having a hundred letters before me unread, I must defer writing to you for the present. Adieu.

A. BURR

TO THEODOSIA.

Washington, January 16, 1802.

Your letter of the 20th December (the venison letter) is still the last, though the Carolinians here have so late as the 3d and 4th of January, of which I am a little jealous. It is quite unlucky that you have been out of Charleston when your things arrived. How cook and maid will dispose of themselves for the interim, I know not. Mighty meek and humble we are grown. You really expect to do the honours of your house *equal* to, &c. I know better. It will be one of the most cheerful and amiable houses in the

United States. I am gratified that you do not start with splendour; to descend with dignity is rare.

Pray make no definitive arrangements against the mountains. My heart is set on running over them with Mr. Alston in the spring. Why may not Papa Alston be weaned as well as Papa Burr? My movements must depend on the adjournment of Congress. Some say we shall adjourn the middle of April, and some the middle of June. As yet, I know nothing of the matter; for, during the few days I have been here, I have been enveloped in ceremonies. I am pleasantly lodged near the capitol. Eustis opposite to me. Law and Irako my nearest neighbours.

Good venison is not to be had at this season, and to send indifferent any thing (except a wife) from New-York would be treason. Yet, on this important subject, venison meaning, I have written to New-York. You need not expect it, for I repeat that the best cannot now be had.

You must walk a great deal. It is the only exercise you can take with safety and advantage, and, being in Charleston, I fear you will neglect it. I do entreat you to get a very stout pair of over shoes, or short boots, to draw on over your shoes. But shoes to come up to the ankle bone, with one button to keep them on, will be best; thick enough, however, to turn water. The weather has not yet required this precaution, but very soon it will, and I pray you to write me that you are so provided: without them you will not, cannot walk, and without exercise you will suffer in the month of May. To be at ease on this subject, you must learn to walk without your husband—alone—or, if you must be in form, with ten negroes at your heels. Your husband will often be occupied at the hours you would desire to walk, and you must not *gener* him: oh, never. Adieu.

**A. BURR.**

TO BARNABAS BIDWELL.

Washington, February 1, 1802.

DEAR SIR,

The newspapers will have shown the position of the bill now before the Senate for the repeal of the act of last session establishing a new judiciary system; and that the bill, when on its third reading, was, by the casting vote of the vice-president, referred to a select committee. This day notice has been given that a motion to discharge that committee will be made to-morrow. It should be noted that the arrival of Mr. Bradley has given a vote to the republican side; hence it may be presumed that the committee will be discharged, and that the bill will pass the Senate to-morrow, and that in the course of three weeks it will become a law. I state this, however, as mere conjecture.

The constitutional right and power of abolishing one judiciary system and establishing another cannot be doubted. The *power* thus to deprive judges of their offices and salaries must also be admitted; but whether it would be *constitutionally moral*, if I may use the expression, and, if so, whether it would be *politic* and expedient, are questions on which I could wish to be further advised. Your opinion on these points would be particularly acceptable.

With entire respect and esteem,

Your obedient servant,

A. BURR.



## TO THEODOSIA.

Washington, January 22, 1802.

Still silent. Yet is 20th December the latest date which I have received from you; hence I infer that you have remained at Georgetown much longer than was intended. Five weeks without hearing from you! Intolerable. Now I think to repose myself in sullen silence for five weeks from this date. I know that the apples and nuts will bring you out again. Thus children are moved; but I also thought that a pretty little letter, even without bonbons, would have done the same. I have a very beautiful elegy on a lady whom you love better than any one in the world; even better, I suspect, than L. N., and I was about to send it, but I won't till I hear from you: a nice, handsome letter; none of your little white ink scrawls. They talk of adjourning. No; I won't tell you that either. I have nothing to say of myself, nor any thing to ask of you which has not been often asked. Tell me that Mari is happy, and I shall know that you are so. Adieu, my dear little negligent baggage. Yes; one question. Do you leave your cards T. B. A. or Joseph A.? What are L. N.'s? And one injunction repeated. Do not suffer a tooth to be drawn, or any operation to be performed on your teeth.

**A. BURR.**

## TO JOSEPH ALSTON,

Washington, February 2 1802.

Your letter of the 10th of January was the first evidence of your existence which I had received for near a month preceding. I hope your wife is allowed the use of pen, ink, and paper. Her letter, three days later, has been

also received. The successful "execution of your energies" is highly grateful to me. It *seems probable* that I shall pronounce, in person, on the merit of the workmanship somewhere about May day.

The repeal of the judicial system of 1801 engrosses the attention of both houses of Congress. The bill is yet before the Senate. You may have observed that some days ago it was referred to a special committee by the casting vote of the vice-president. Bradley having arrived two days ago, and the republicans having thus an additional vote, the committee was this day discharged, and it is highly probable that the bill will pass the Senate tomorrow. On this subject I hesitate, though it is not probable that my vote will be required. Of the constitutionality of repealing the law I have no doubt, but the equity and expediency of depriving the twenty-six judges of office and pay is not quite so obvious. Read the Constitution, and, having informed yourself of the out-door talk, write me how you view the thing.

It has for months past been asserted that Spain has ceded Louisiana and the Floridas to France; and it may, I believe, be assumed as a fact. How do you account for the apathy of the public on this subject? To me the arrangement appears to be pregnant with evil to the United States. I wish you to think of it, and endeavour to excite attention to it through the newspapers. If you publish any thing, send me the papers which may contain it.

Truxton is going out to the Mediterranean with three large and one small frigate. Apprehensions are entertained that our good ally, George III, does secretly instigate and aid the Barbary powers. We do not know that Tunis has declared war, but such an event will not surprise me.

I have not heard a syllable of any changes made or to be made in offices in your state, and, for reasons well known to you, I shall neither make an inquiry nor offer advice. C. Pinckney's nomination was confirmed by one

vote. All the other nominations have been confirmed, mostly without opposition.

Theodosia writes me that the mountain plan is wholly abandoned for Sullivan's Island. I do not, however, as yet abandon it; and, if I can get hence early in April, I think of going direct to Columbia, there to establish myself till you shall both condescend to visit me.

When you shall be both settled in your own house, I crave a history of *one day*, in the manner of Swift's journal to Stella; or, as you do not like imitation, in your own manner. Vale.

**A. BURR.**

TO THEODOSIA. Washington, February 2, 1802.

I have just received a pretty little letter from C. C., all on nice, pretty figured paper, such as you love, and she talks a great deal about you; the substance of it is, that you are an ugly, little, lazy, stupid, good-for-nothing knurle, and that she is very sorry she ever wrote you a line. I can't vouch for the very words, but I think this is a fair abridgment of that part of her letter which concerns T. B. A. I wish you would teach half a dozen of your negroes to write; then you might lay on the sofa, and, if you could submit to the labour of thinking and dictating, the thing would go on.

We make a pleasant society here, so that one may get through the winter without ennui. I live at Mr. Law's, not nominally, but in fact. Mrs. Madison is distant one mile. Anna Payne [2] is a great belle. Miss Nicholson [3] ditto, but more retired; frequently, however, at Mrs. Law's. But pray, miss (madam), as to busts and statues, all the B.'s being out of the question, is there nothing in this line to be found in South Carolina? I suppose it never

came into your head to think or inquire. Pray shake your little noddle, to give the brains, if any there be, a little action; but who can do two things at once? That's true. I forgive thee all thy sins, without any further penance than that which you have imposed on yourself. But write C. and poor little Anna, to congratulate her. Tell her what a fine fellow I learn her husband is. Mrs. Anna Constable Pierpont.

We have a perpetual summer here. I am weary of it, though, in truth, I care nothing about it. With you it must be burning hot.

The cook had only Peggy to aid him; but as Peggy is equal to about forty South Carolina Africans, he is very reasonable if he asks only thirty-five, and ought to be indulged. Your maid will make a miserable housekeeper, and be spoiled as femme de chambre, which last character is, I take it, the more important one. The poem or elegy is not sent, and is not forgotten. I am now going to smoke a segar and pray for you.

**A. BURR**

FROM CHARLES BIDDLE.

Philadelphia, February 3, 1802.

**DEAR SIR,**

I enclose you a letter for Commodore Truxton. Should he be gone to Norfolk, please to forward it.

Every *gentleman* here, and, what I am sure you think of much more consequence, every *lady*, was much pleased with your vote on the judiciary

bill. Those who do not think it unconstitutional to repeal the law are of opinion it would be very injurious to do it. Your friend,

**CHARLES BIDDLE.**

**FROM COLONEL MARINUS WILLETT.**

New-York, February 4, 1802.

**DEAR SIR,**

What a racket this vile judiciary law makes. It must be repealed; but how the judges, who have their appointment during good behaviour, are to be removed without making a breach in the constitution, is beyond my abilities to develop. It will not, however, be the first assault on that instrument; and, if two wrongs could make one right, this account might be squared. But that horrid law must, indeed it must, be repealed.

I have received your two favours, one dated the 28th of January, and the other without date. The effect of the abolition of the internal taxes on Mr. Osgood [4] gives me no concern. He has plenty of other business, and money enough without the income from his office.

God bless you; you have my prayers always; and who dare say they are not as good as a bishop's, or any member of a Presbyterian synod? Sometimes I think I'll turn Presbyterian, that I may have the benefit of their prayers not to outlive my useful days; an event I deprecate above all others, and this is a prayer I never heard in our church—I mean my church, which, you know, is the Episcopal. Most sincerely your friend,

**M. WILLETT.**

FROM JOHN M. TAYLOR. Philadelphia, February 5, 1802.

DEAR SIR,

I had the pleasure of writing you some days ago, since which there are petitions circulating through the city for a repeal of the judiciary system. My own opinion is that there is no necessity for such a measure, as the two houses of Congress have the subject before them, and their decision will be had ere the petitions can be sent forward, and I have no doubt it will be repealed.

I have reasoned with all those who thought you ought to have voted against it being referred to the committee of five, that your intention must have been to afford the opposite party time to discuss the subject fully, so that they might not say of you and your friends (as Gouverneur Morris has said) that they pertinaciously forced it on the then minority. I think it is better to give them time.

Yours, very respectfully,

JOHN M. TAYLOR.

FROM MRS. \*\*\*\*\*.

New-York, February 9, 1807.

At the sight of my writing you will exclaim—" She is unhappy, or she would not write to me." 'Tis not so, my dear friend; I am neither more nor less happy than when you left here. With every passing day I have resolved to inform you of my health, but from day to day it has been deferred, till I suppose my very existence is forgotten. Let me, then, awaken your

recollection, by presenting to you the image of my thoughts, and retrace, however faintly, the impression I once flattered myself to have made on your memory.

Tell me how you do, and how you pass your time. Taking lessons of Wisdom from your Minerva? or flying after the Atalanta's of Virginia, more swift than their celebrated racers? or, more probably, poring over musty records; offering your time, your pleasures, your health, at the shrine of Fame; sacrificing your own good for that of the public; pursuing a chimera which ever has and ever will mock the grasp; for, however the end may be crowned with success, the motives will be questioned, and that justice which has been refused to a Regulus, a Brutus, a Publius, who can hope for?

I once admired for device a *skyrocket*, and for motto—*Let me perish so I be exalted.*" I afterward changed my opinion, and preferred the *glow-worm* twinkling in a hedge. But I now reject them both. They strike for a moment, but neither of them are impressive; and it is thus, in changing, we pursue that something "which prompts, the eternal sigh," which never is, which never can be attained. These reflections arise continually on my reading the newspapers, where your actions are so freely canvassed and so illiberally censured. They often excite my wrath; but when I consider that my anger can no more check their calumnies than the splendour of your reputation be clouded by their impotent attempts, my indignation subsides, and I console myself by saying,

"Vain his attempt who strives to please them all."

Z.

## TO THEODOSIA.

Washington, February 21, 1802.

Your letter of the 31st, accompanied by a note dated 1st February, came by the mail of yesterday. A few lines from Mr. Alston, received some days before, advised me of your journey to Clifton, and of the distressing occasion. My heart sinks within me when I think of that lovely and disconsolate woman. Your conduct was worthy of you and of my daughter. She must be restored to reason and to life, by being convinced that she has some motive for enduring existence. If no other can be shown, at least she can be persuaded that she is necessary to you. But I learn from your letter, though you say nothing of it, that although she feels with anguish, yet she will not sink into despondency. This testifies a mind of that dignity and firmness which you had taught me to expect.

Nothing could have been more fortunate than the revival of the project. It will divert the attention and summon up the spirits. You must not condemn; it would be better to cherish it. Enter into all the details. Transport yourselves to Europe, and there take a nearer view and more accurate estimate of the dangers and advantages. Let those who oppose it offer something in lieu. What! is she to wear out her youth and beauty, dissipate her talents, and exhaust her spirits without an object in life or a place in society? Without enjoyment, without distinction? These hints will make you think I may hereafter say more.

My life has no variety, and, of course, no incident. To my feelings your letters are the most important occurrence. I am blessed with three of them in three months. It did not use to be so. It would be no excessive encroachment on your precious time to give me an hour twice a week the evening preceding the post days. This I shall expect; *and then*, and after one



more communication, to be presently mentioned, I will write definitely as to my spring projects.

It is of sculpture: a hint in your last indicates that you have something in view. Be pleased to give me name and description, in some mystical, sybillistical way, which, in case of robbery of mail, will not disclose too much. One letter may contain the name, and another the comment—"*Car ou l'arreter?*" is rather too mystical. I can make nothing of it, having studied it a full hour to no purpose.

I entreat that you will always enclose your letter in a blank sheet, on which is to be the seal and superscription. Health and blessings.

**A. BURR.**

TO THEODOSIA Washington, February 23, 1802.

On the 4th day of March next I propose to write you of certain matters and things of high import, heretofore touched, but not elucidated to the entire satisfaction of all the parties concerned, if, in the mean time, you shall be of good behaviour.

This, however, was not what I sat down to say, nor can I by any possible means recollect what it was; but, in truth, I had something to communicate or something to ask. I don't know which. That we have a great snow storm and cold weather (now) will be no news to you, for they will undoubtedly both be at Charleston long before this letter.

I project, as you may have understood, a journey southward at some time, yet nameless, during the current year (or century). Now, if my evil stars or good ones should, against my will and my judgment, take me through

Norfolk, I am ruined and done; and there my journey will most infallibly end. That I had better be hanged or drowned, you will readily agree. The antidote or preventative is in your hands, or, if you please, head. The bust, slightly referred to in the letter of the 1st of February, has occupied some of my waking and sleeping moments. Be more particular, and especially the estimated value in dollars and cents; also, in what year or era manufactured, and the character and merit of the work, as it strikes your fancy, but with some minuteness. You know my rage for sculpture has cost me some money and led me into some bad bargains. Thank God, I have got rid of them *all*. If you will have *Pet* or *Peet*, *Peter*, *Peter Yates*, *Peter Alston*, *Petrus Burr* (or by every other name he may be known) taught to write a good hand, and make me a present of him, I will subscribe myself your very much obliged and humble servant,

**A. BURR.**

Footnotes:

1. The author of "A History of John Adams's Administration." This letter relates to the suppression of that book, which, although its publication was suspended for a time, was published according to the advice of General John Swartwout and M. L. Davis
2. Sister of Mrs. Madison.
3. Daughter of Commodore James Nicholson, and sister of Mrs. Gallatin.
4. Samuel Osgood, Commissioner of Internal Revenue

## CHAPTER XII.

TO THEODOSIA.

Washington, February 22, 1802.

Never were orders obeyed with more promptitude and effect. It is not twelve hours since I desired (directed) you to write, and lo! a letter dated the 9th of February. And even "enclosed in a blank sheet of paper." A zealous manifestation of reciprocity is due to such respectful attention, and thus, in obedience to the high commands of T. B. A., I do most sincerely and devoutly execrate all the postboys and the legislatures of the two most noble states the Carolinas.

You women: it is so with you all. If one wishes to exhibit the best side, one must provoke you. Gratify your wishes and expectations, or, still worse, anticipate them, and it produces a lethargy. How have I laboured for three months, working and writing to please a certain lady: nothing comes but inanity and torpor. I provoke her, and behold the effusions of spirit and genius. Be assured that I shall not speedily relapse into the same error. Indeed, I knew all this before; but I thought it was only one's mistress that was to be thus managed—it is sex.

For certain reasons of state, neither the name nor the epitaph can yet be given ; nor can it now be said precisely when. The verses are allowed to be

very beautiful. Those on the anniversary of the wedding were received (this day) in the presence of two poets and a poetess, who said handsome things of them. The ess being a maiden of thirty-five, drew a deep sigh.

Indeed, it is impossible to say, for I never before heard of such a thing as that any public body should "ajourn." They do commonly adjourn; and if, perchance, this should be what you mean, and you shall write me so, I will do my best to give you a categorical answer.

Natalie arrived at Orleans on the twenty-sixth day; meaning that she had twenty-six days' passage. She has written both from Orleans and Nantz. Her letters are full of good sense, of acute observation, of levity, of gravity, and affection. No news of her mother, Adieu,

**A. BURR.**

TO THEODOSIA.

Washington, February 26, 1802.

The arrival of your letter of the 14th justifies me in noticing you by this mail. Your newspapers of the same date, and also of the 15th, contain particulars of the races; but so technically expressed that I comprehend nothing of it. Your story is quite intelligible as far forth as it is legible. I am very glad that Papa Alston has won once. It is, I am told, the first time in his life. Where is Hampton all this while, that you say nothing of him? Already I have told you that on the 4th of March I shall say something of the adjournment, if, in the mean time, you behave well. I shall not go first to New-York. Send back your chairs. General Smith's carriage has just ran away with four ladies, viz.: Mrs. Smith, Miss Speare, Miss Smith, and Mrs. Law. Miss Smith was taken up dead, and brought home dead. After twenty-

five minutes she began to show signs of life. In two hours she began to know those about her, and now (three hours) she is perfectly well; and having been stripped and thoroughly examined, it cannot be discovered that she has received the slightest injury, save being frightened to death, as before mentioned. Miss Speare came off unhurt. Mrs. Smith and Mrs. Law are much bruised. You will, I hope, understand that the horses ran off with the carriage, and not that the carriage, of its own mere motion, ran off with the ladies. Adieu.

A. BURR.

TO THEODOSIA.

Washington, February 27, 1802.

Last evening Eustis happened in my room while I was at Smith's (opposite); he saw the cover of your letter, and the few lines which it contains. He wrote what you will find enclosed, and left it on my table. His cure is radical; that which I recommend is temporary.

A dull, raw, misty, vile day. Mrs. Law confined to her bed, as I expected, but not dangerous. The Smiths doing pretty well.

The judiciary bill debating in the House of Representatives, being the last day of the second week devoted *exclusively* to that subject. It may and it may not be finished next week. When this shall be done with, we may be able to make some sort of calculation as to the duration of the session.

Your last letter is pleasant and cheerful. Careless, incorrect, slovenly, illegible. I dare not show a sentence of it even to Eustis. God mend you.

A. BURR.

TO THEODOSIA.

Washington, March 4, 1802.

You have supposed it to be from malice that I have not written you of the adjournment and of my intentions. The truth is, that I know little more of those matters than you do, and I have chosen rather to postpone it *en badinant* than to write you crude conjectures; yet I can do but little more at present.

I left New-York with a determination not to return till I should have seen you and Charleston, and I arranged my business for an absence of six months. I had hoped that the session of Congress would close by the 15th of March or the 1st of April. On my arrival here every one said so, and I had like to have written it to you; but appearances did not seem to justify the expectation of a short session. The business is hardly commenced, and I see no prospect of an adjournment until some time in May. This is a great embarrassment; and your project of remaining on the coast is another. I could, with pleasure, have passed the summer with you in the mountains; but the heat and dissipation of Sullivan's Island is not so inviting. All this, however, is nothing to the purpose of your inquiry. To come to the point. I still propose to go South the instant I can disengage myself from this place; which may be a very few days before the close of the session. I shall be at least twenty days on the road. I entreat you, however, not to excite any expectation on the subject of my visit; not even to mention my intentions, until we shall see how far it may be in my power to execute them. The judiciary bill being out of the way, I am in hopes we shall engage zealously in the despatch of business. Of this matter I shall write further when I shall

receive answers from you to my late letters. They may hasten or retard my movements a little, but not much. Adieu.

A. BURR.

## TO THEODOSIA.

Washington, March 8, 1802.

From an accurate attention to the dates of your letters, I discover that you write on Sunday only; that if, by accident or mental indisposition, to which people in warm climates are liable, the business should be put off for that day, it lays over to the next Sunday, and so to a third or fourth, according to exigences, active or passive. Your letter, dated the 22d, but, in fact, written on Sunday the 21st, was received by the mail preceding the last, which brought nothing. This letter is a confirmation of my theory of provocations, which I have lately enlarged and more accurately defined, deducing it from philosophical principles, and adapting it to different *climates*. When this volume shall be ready for publication, I propose to add, in an appendix, by way of illustration, a series of our letters.

What you say of Huger shall receive due attention. Which *Maria* did your husband go for, the biped or the quadruped? It is impossible to determine from any thing in your letter. On the subject of busts you are more whimsical than even your father; just now you had something in view; but, on the 22d of February, "worse than any part of the United States." I have no time to give you now an explanation of your ice phenomenon, but will talk with T.I. and W.E. on the subject. Your last was sealed *on the writing*, a vulgarity which I again condemn. Adieu.

A. BURR.

TO THEODOSIA.

Washington, March 8, 1802.

At the moment of closing your letter, this scrap of a newspaper [1] caught my eye, and is sent for your amusement. It is aimed at Aaron Burr, by whom, it is well known, the publication of the book [2] is delayed or suppressed. The book consists of five hundred pages, principally low scurrility and illy-told private anecdotes; with about thirty pages of high eulogium on A. B. There may, for aught I know, have been twenty other publications criminating the person by whom the work has been suppressed. They are so utterly lost on me, that I never should have seen even this, but that it came enclosed to me from a friend in New-York, who is solicitous for *my honour*, &c.

You may judge of the purity and decency of the book when I mention that some dozen of persons, by name, are charged with being bribed by British gold, and there is a surmise that General Pinckney is not reputed very *honest*. Of all the federal men, General Hamilton alone is treated with respect, even to flattery. My "solicitous friend" has given me a curious fact, of which I was ignorant till the receipt of his letter. Barlas, a Scotchman, the publisher of the book, is private tutor to the children of General Hamilton. Adieu.

A. BURR.

TO JOSEPH ALSTON.

Washington, March 8, 1802.



I learn, with a good deal of regret, that the mountain plan is abandoned; at least, that no measures are taken or meditated for its execution. I should cheerfully acquiesce in any reasons founded on motives of economy, convenience, regard to law business, or personal influence; but the solitary one assigned to me by Theodosia is, that you and she "*may be near papa and mamma*". Of this, too, I acknowledge the force; yet it might be considered that the mountain residence was intended for certain months only, and that during the residue (the greater part) of the year, papa and mamma might indulge their fondness. I had seen, or fancied that I saw in this project the assurance of health to yourself and wife, and sound constitutions to your children; profit in the location; amusement and economy in the residence, and an increase of your influence and connexions. How far it might comport with professional engagements, if seriously pursued, was not considered. One personal motive, I confess, might have influenced my judgment; the pleasure I had promised to myself in passing the summer with you, and in projecting little schemes of improvement and occupation. It is, indeed, with some hesitation that I shall visit your coast after the middle of May, and there is now no prospect of an adjournment of Congress before that time. Nevertheless, I shall come, though *at your hazard*, which, you know, would be a great consolation to me if I should be caught by a bilious fever in some rice swamp. The situation of Theodosia, so far from being an objection, ought, in my mind, to be an additional and strong motive. With her Northern constitution she will bring you some puny brat that will never last the summer out; but, in your mountains, one might expect to see it climb a precipice at three weeks old. Truly, I mean to be serious, and beg to know whether you have, in fact, resolved, and whether the resolution has, in good faith, been the result of reflection or of inertness. You will pardon the surmise. I allow something for the climate, much for the influence of example; and then, considering

the uncommon warmth of the winter! it must be fatiguing even to talk of any thing requiring exertion.

The rapidity, however, with which your house has been furnished and established ought to redeem your wife from any share in this reproach. On the 22d of February I find her fully occupied in those concerns, with hopes of accomplishing the object by the time of my arrival. She was then, however, taking an eight days' repose, that she might renew her labours with more vigour at the expiration of that time. But, again, gravely I inquire where I am to find you about the middle or last of May. I presume, in the place where this will find you. Locomotion is labour.

I entreat your prompt attention to the enclosed memorandum, from my good friend Mr. Law. He says that Chisholm has never informed him of the disposition of the indents mentioned in his letter, of which the enclosed is a copy. Pray inquire and advise me. The thing is of small moment; but I should be gratified in the occasion to show an interest in his concern, for I am daily overwhelmed by the multiplied kindnesses of himself and wife.

The gazettes will tell you better, I suspect, than I can what is doing in the House of Representatives. The sloth with which things move is a daily source of vexation to me, as tending to protract the session. I dine with the president about once a fortnight, and now and then meet the ministers in the street. They are all very busy: quite men of business. The Senate and the vice-president are content with each other, and move on with courtesy.

Your Rutledge will be in Charleston in the course of this month. I hope you are on terms of civility with him, for I receive from him the most marked politeness. He will tell you of many strange things. God bless you ever.

**A. BURR.**

FROM CHARLES BIDDLE.

Philadelphia, March 13, 1802.

MY DEAR SIR,

Mr. Eckfeldt brought me five medals, four of which I sent by Mr. Ross; the other shall be disposed of as you direct. The die of Truxton's medal broke after fifty-two had been struck. I suppose Truxton will feel more pain for this accident than he would to hear of the death of his friend T. Coxe.

You mentioned that if Murray wrote in favour of Richard Jones, you had no doubt he would be appointed a midshipman. If the Secretary of the Navy sees the enclosed letter, perhaps he will give him a warrant. It could be forwarded by Commodore Truxton, who I do not expect will sail before the 1st of April. Although I frequently trouble you about different persons, believe me, my clear Sir, I do not wish you to do any thing whatever that will be disagreeable to you.

Mrs. Wilkinson is much obliged to you for your friendship to the general, which she says she will never forget. When James [3] sailed he desired I would inform you that he would write you as soon as he had any thing worth writing about. I believe you have no friend feels a warmer attachment to you than James. Sincerely yours,

CHARLES BIDDLE.

FROM JOHN COATS.

Easton (Maryland), March 13, 1802.

MY DEAR SIR,

I have long had it in serious contemplation to address a letter to you, but have frequently been restrained, from a knowledge that your time has been and still is devoted to public service, and that every moment is precious; and often I have been prevented by my own avocations and engagements on this our bustling stage. I have vanity enough to think I possessed a share of your esteem and friendship, which could only originate from your belief that I had a claim to the virtues, truth, candour, and sincerity. I detest the character of a hypocrite, and flatter myself no part of my past conduct can fix it upon me. Then permit me, with solemn truth, to declare, that when I see your name in the prints, I feel involuntarily an animating glow, and it immediately brings to my recollection incidents sometimes producing pleasing, and at others painful sensations, in which we have been mutually engaged and gone hand in hand. Although, to borrow the language of our president, there may exist shades of political difference between us, I have been your defender; and it was well understood and known that I spoke from an intimate acquaintance with you as a soldier and a gentleman.

Frequent reflection upon the various scenes we have encountered together has led me to lament the great distance that has so long prevented any social intercourse; but if the following description of a new route, when you revisit New-York, meets your approbation, I may again have the happiness of a friendly salute of the hand. I have travelled from Philadelphia to Annapolis, *via* Baltimore, and ever thought it a rugged road. I propose that you should come to Annapolis, where exceeding commodious passage-boats constantly ply, and you will in a few hours be landed at Haddaway's, upon our eastern shore, from whence a line of stages run to Philadelphia.

Upon this route you will see a great number of your friends, added to which there will be novelty and ease. I cannot, indeed, promise you any romantic objects, such as *Caratoncka* or Morenci Falls, or gigantic

mountains, such as we clambered together in 1775; but you will see a country approaching a high state of cultivation, and a number of towns, the most of which bear evident marks of daily improvement. Between these towns are interspersed gentlemen's seats; some of them beautifully situated, and the inhabitants generally affable, courteous, and hospitable. As to your ease, if you do not travel in your own carriage, you will find the horses and carriages equal to any others; the public houses comfortable, the country abounding with the good things of this world, whether flesh, fish, or fowl, and the road good, having occasionally what may with propriety be called gentle ascents and descents. My friends, Mr. Robert Wright, of the Senate, and Joseph H. Nicholson, of the House, who live directly on the road I have described, will confirm what I have written. Let me, then, once again enjoy your company, and that at my own hermitage. I shall be gratified by introducing the old lady, my two girls, and my boy to the companion and friend of my youth. They will endeavour to make their *lillapee* of a superior savour to what our cooks in days of yore could do for us. And although, as Partridge says, "non sum qualis eram," I shall certainly use my best exertions, while with us, to render your time agreeable.

Your sincere and old friend,

JOHN COATS.

TO THEODOSIA.

Washington, March 14, 1802.

Your letter of the 1st, postmarked the 3d, was received last evening. I regret that L. N. did not come to town, believing that you only could console her; that she would make you an intelligent companion; and that

you could restore the tone of her mind, without diminishing the firmness of your own.

Papa's present was the most gallant and charming thing that could have been imagined. By Mr. Rutledge, who goes to-morrow, I send this papa a little token which has been some weeks waiting for an opportunity. Mr. Rutledge will tell you how I do, and what I do, and, *to an hour*, when Congress will adjourn. He sets off to-morrow, and will be in Chilton about four days after this letter; of course, I do not write by him.

It is probable that the box went with the ship which took your first cargo; but, as no one paid the least attention to the landing of the articles, nor to compare the delivery with the invoice, it may have been left on board. I will, however, write to New-York.

The story of P. is a fable. We are on the best terms, and he calls very often to see me. The elegy may now be seen in the newspaper, which, considering how nearly it touched you, I thought the best mode of communication. Avoid sights. You say nothing of the progress of housefurnishing and housekeeping.

Your last was sealed, as too often before, on the writing. If your *Mari* denies you a sheet of paper to enclose a letter, pray lay out *one* of your four hundred dollars for this purpose. Adieu, ma chere enfante.

**A. BURR.**

P. S. Somebody (I believe the Spectator) says that a postscript is always the most important part of a lady's letter. This, then, will be feminine.

I have had three letters from Natalie. All full of interest and amusement. Her remarks are equal to those of Lady Mary W. Montague for their truth

and spirit, and far superior to any of our diplomatic communications. She is to travel from Nantz to Paris (about four hundred and fifty miles) *with her maid and postillion only*: an enterprise which no woman in France under forty hath executed without shipwreck during the last hundred years. Yet Natalie will do it without injury and without suspicion. I have taught her to rely on *herself*, and *I* rely on her pride.

I have said, and truly, that the story of P. is a fable. It may, however, by remote concatenation, and with the aid of great fancy and a little malice, have grown out of a trifling and ridiculous incident which took place at New-York, and which I am sure you have heard. P. was laughed at, and has behaved better ever since. There are at least twenty (my neighbour, Mrs. Law, says fifty) such anecdotes now circulating in this vicinity, *all equally unfounded*. Without any appeal, therefore, you may contradict all such as are inconsistent not only with truth, but with probability. A lady of rank and consequence, who had a great curiosity to see the vice-president, after several plans and great trouble at length was gratified, and she declared that he was the very ugliest man she had ever seen in her life. His bald head, pale hatchet visage, and harsh countenance, certainly verify the lady's conclusion.

Your very ugly and affectionate father,

**A. BURR.**

FROM C. A. RODNEY.

Wilmington, March 15, 1802.

**HONOURED AND DEAR SIR,**

This will be delivered to you by Dr. A. Alexander, of Newcastle, in this state. He has ever been a uniform and firm friend to the principles of our late glorious revolution. He has served many years in the capacity of a senator, and also of a representative in our legislature, and can give you particular information as to the public pulse here. He is a personal friend of mine; one whom I can recommend in the strongest terms.

I had the pleasure of receiving yours of the 10th inst. on yesterday, and was very happy to hear from you. The advice you kindly give me I shall cheerfully take. It has ever been my maxim to be moderate but firm. *Suaviter in modo, fortiter in re*, should be an axiom with all politicians. We continue to progress in the high way of republicanism, and you will find, by our toasts, we have not forgot one of its ablest supporters. [4] With great personal regard,

Your sincere friend.

C. A. RODNEY.

TO THEODOSIA.

Washington, March 19, 1802.

From your letter of the 6th, received last evening, I infer that you are in some sort settled in your own house; that you pleased yourself on that day is very grateful; that, too, I should have inferred from the spirit of your letter. By the "attack on Sullivan's Island" was intended an attack on the plan of residence.

I am just going on an errand to Baltimore, *de retour* on Tuesday; so that by the next mail you will have nothing from me. Where will you be from



the 10th to 15th May? In Charleston, Sullivan's Island, or Clifton? Is L. N. coming to live with you? I am quite charmed with John and Sally. Preparations for Baltimore occupy me so entirely that I cannot even think of you by this mail. Adieu.

A. B.

March 20.

The preceding was written the morning of yesterday. I folded, and directed, and took it to Senate, thinking there to add a word. At ten last night I found it lying in my pocket. The weather (rain) has prevented my Baltimore jaunt which was planned for this day. The hope of an early adjournment recedes. In short, all is uncertainty. It will depend more on the thermometer than on the progress of business. When the heat shall be intolerable here, shall I set my face towards the sun? I think I will. If you had been in the mountains! but that is not so.

Natalie arrived in Paris the 31st December; her mother not there; but numerous friends, who fatigue her with civilities. Her heart is in the United States.

This will remain in the postoffice till the 23d. If, in the mean time, I receive a letter from you, a supplement will accompany this. Adieu.

A. BURR.

FROM C. A. RODNEY.

Wilmington, March 20, 1802.

DEAR SIR,

I have perused with much pleasure the papers enclosed in your highly-acceptable favours. The proposed state will possess the republican tone, and give additional weight to the scale which already so strongly preponderates. The repeal of all internal taxation will be sensibly felt by the people, and will *popularize* our administration. The expense of collecting those taxes, in consequence of the swarm of pensioners attached to them, points them out as the proper object of retrenchment. The brown-sugar gentry in Congress; your tea-sippers and salts-men (not Attic), who, by-the-by, have laid all those duties, cannot *agitate* the public mind on those topics.

I am happy to discover in the proceedings of the republicans so much moderation, firmness, and unanimity. I trust their opponents will not hereafter think they want *nerve*. This conduct forms a striking contrast with federal gasconade; and the effect of those things, in a free country, is not easily calculated by common rule.

The polite and kind invitation you give me I should certainly accept of if in my power. I had thought seriously of it some weeks back; but you must know I have purchased a little tract of land adjoining Dr. Tilton's, which I once showed you, and have cut out abundant work for the season. This, Dr. Tilton says, is to restore my health perfectly. There are many friends at Washington it would give me great pleasure to see, but none more than yourself.

Must sincerely yours,

C. A. RODNEY.

FROM URIAH TRACEY. [5]

Washington, March 29, 1802.

The sermon, for which I am indebted to your goodness, is now returned, with many thanks for the loan.

I have perused it with pleasure, and, I hope, profit. It is an excellent treatise, worthy of the attention of every man, and more emphatically so of men in high and responsible stations in government.

Our time is short, my friend, too short to allow an opportunity of retrieving almost any misspense of it; much more so to allow a redemption for any neglect to perform great public services when once happily in our power. God grant that you may be profited by this, and, in turn, be more profitable to this distracted nation.

**U. TRACY.**

**FROM GENERAL HORATIO GATES.**

New-York, March 30, 1802.

**MY DEAR SIR,**

Yesterday I was favoured with your obliging letter of the 23d inst. by Mr. Peter Townsend; also, with a most beautiful silver medal from the die I have presented you. It is in the highest polish and perfection. In respect to the tin medal and its case, I have only heard of them from you, as I never received either, or a single line from Mr. Dallas. But men so much engaged in business seldom have time to attend to such small affairs.

When you see Dr. Murray, present my affectionate respects to him; he is, indeed, an old and highly esteemed friend. As to news, I never expect any from statesmen high in office. So far as the session of the Congress has

proceeded, *I*, poor little *I*, am satisfied with what they have done. Taxes and law diminished should be approved of by the many. The stricken deer will weep; but the powerful will, I trust, be generous to those who are not malignant. The charming Miss Church was, on Thursday, married to Mr. Cruger. But I have a more serious piece of news for your private ear. Young Secretary Sumter, on the passage to Europe, fell desperately in love with Miss Natalie d'Lage. They landed at Nantz, near her mother's chateau. The old lady is a furious royalist, and will not hear of her daughter's being married to a republican; perhaps you know more than I can tell you what is likely to be the result.

Mr. Townsend goes so immediately to Orange county, that he prevents my intended civilities; but I trust he will hereafter put it in my power to cultivate his acquaintance. For any thing I see, your session will be shortly over.

Judge Brockholst Livingston took his seat in the City Hall yesterday. This phenomenon (what shall I call it?) in office or in policy has caused a grumbling in the legislature, where it seems to be laid aside for future contention; but you will hear more from your correspondents. I am told it is nicknamed the Livingston act. My Mary is well, and has every desire to oblige you.

Affectionately yours,

**HORATIO GATES.**

FROM DAVID GELSTON.

New-York, April 3, 1802.

DEAR SIR,

I am favoured with yours of the 30th ult., with its enclosure. The subject contained in my letter of the 22d to you has, in several instances, become so important, that I wrote yesterday to Mr. Gallatin on the same business.

You are, in general, so apt to decide promptly and correctly, that if you had at once told me my construction of the law referred to was right, I should have wanted no more. We begin to look better in the city—alarms are less frequent, confidence is gaining, and business increasing.

I have just received permission from the secretary of the treasury to make some additional inspectors. Mr. L. shall be gratified, but my authority is limited to the 15th of November next. If you have a particular wish for any other person, please let me know immediately.

Yours, truly,

D. GELSTON.

TO THEODOSIA.

Washington, April 5, 1802.

MA CHERE ENFANTE,

Different accidents and interruptions prevented me from writing by the two last mails; a very unusual omission, and thus happens what, I believe, has never before occurred, that I have two of your letters unanswered, those of the 19th and 22d, both affecting and interesting. The last of them acknowledges the receipt of a letter from me dated March 9th. Now, I did not write any letter under that date, it must be a forgery. On the 8th and 12th I did write to you.

It is, I hope and believe, true that Richmond Hill is competent to all purposes; but nothing is done nor can be speedily done. The thing constantly eludes a conclusion, and matters are, in fact, now as badly circumstanced as one year ago. When I left New-York I arranged my affairs of *all kinds* for six months' absence, which would extend to the middle of June, with the determination to go hence to South Carolina, in which determination I persist; yet you know that *a single letter may take me in a contrary direction*, and mar all my plans of pleasure. This, and this only, produces the instability of my resolutions, and the equivocal tenour of my letters on the subject of the visit.

Nothing certain can be predicated of the adjournment; but I am quite resolved not to remain here beyond the 25th, more probable that I may leave it on the 19th. In either case, it will be vain to address a letter to me at Washington after the receipt of this, as I shall not be here to receive it. My route will be through Richmond and Petersburg to Fayetteville, and thence to Georgetown and Clifton, where I presume I shall find Papa Alston, Ellen, &c. You may address me a line to Richmond, and another to Fayetteville, merely to say how you are, and who more are dead. Recollecting, when you write, that it will be very uncertain whether they will reach me; still, on my arrival at those places, I shall be quite out of humour if I find no letter from you, and *will stay a week* at each place in hopes of receiving one.

I have ordered Vanderlyn to send you, from New-York, both his and Stuart's picture of A. Burr; and have told him to ship himself for the port of Charleston on the 1st of May.

I have also desired that my beautiful little bust of Bonaparte be sent to Mr. William Alston.

You may send a letter to meet me at Clifton, and two or three to each place if you find my movements so retarded as to admit a probability of their being received. Adieu.

**A. BURR**

**TO THEODOSIA.**

Washington, April 12, 1802.

Your letter of the 29th came by the last mail, exactly, as heretofore, on the eighth day after the date of your last preceding. Whether it be invariably Sunday or not, at least it is always octo-diurnal. Pray get an eight-day clock, and then all family matters will move on in strict uniformity. Thank your husband for his letter about Mr. Law's indents.

The instability of all human concerns has been a theme of remark for the last 4000 years. Lately, very lately, I wrote you of my determination to leave this city on the 26th. I then thought so, as you will readily believe; because, why should I deceive my dear little Theodosia? Now this thing is altered, for reasons too numerous and mighty to be here enumerated; and, besides, you know our doctrine is not to give reasons, but to let the facts speak for themselves. On this occasion, however, even your hard heart would yield to the motives which govern me. The plan, I say, is all altered.

Instead of leaving this fair region, as was gravely proposed, on the 26th of this month, the present project is to part from all I here hold dear on the 20th (the *twentieth*) inst., which piece of caprice I hope you will pardon. If no letter intervenes before that day, Papa Alston may expect to see me in some twelve or fifteen days thereafter. I shall hope to find letters at Richmond, Fayetteville, &c. Adieu.

A. BURR.

TO THEODOSIA.

Clifton, May 3, 1802.

At the moment of my arrival on Friday evening I wrote you from Mr. Kinlock's. The day following (May 1) I came here, and, being without horses, sent on Sunday morning to engage the whole stage, which was to go to-morrow, and, as I understand, reaches Charleston in a day. Unfortunately, the stage was full—not even a seat vacant for the vice-president. I am, therefore, doomed to remain here one day longer, and to be two days on the road. My horses not having arrived, Mr. Alston will, on Wednesday morning, set out with me in his curricule. We shall dine and stay the night of Wednesday at Mrs. Mott's, and on the day following, Thursday evening, reach Charleston.

I now send my man George (late Azor Le Guen, now George d'Grasse) to Georgetown. If he can get a place in the stage, he goes on with my baggage; if not, he sends this letter, with all affectionate good wishes. William arrived here this afternoon, and tells us that you are well, and your husband *ill*. This is exactly wrong, unless he means to take the whole trouble off your hands,



as some good husbands have heretofore done; so, at least, Darwin records.  
God bless thee, my dear Theodosia.

**A. BURR.**

**FROM MIDSHIPMAN JAMES BIDDLE.**

U. S. Ship Constellation, at Gibraltar, May 8, 1802.

**DEAR SIR,**

As the frigate Philadelphia will sail in a few days for America, I cannot neglect so good an opportunity of writing, and returning you my sincere thanks for the marked civilities I have received at all times from you, particularly at New-York in the summer of 1800. Be assured, Sir, I feel the liveliest sense of the obligations I am under for the many favours conferred upon me, and shall ever feel extremely happy to have it in my power to render you any service.

Owing to our being perplexed with almost constant easterly winds, we did not make the land until the 24th ult., when we made Cape Canter, on the coast of Africa. On the 28th we got into the Straits of Gibraltar, but the wind heading us off the rock, we were obliged to bear away for Malaga. There we found the Essex and Philadelphia at anchor. On the 3d inst. we left Malaga, and arrived here in company with the Philadelphia and Essex on the 5th, and I expect to remain until Commodore Truxton arrives on the station.

While the ship lay at Malaga I had an opportunity of seeing every thing that could attract the eye of a stranger. The country round the city is extremely fertile, abounding with all the different kinds of fruit-trees.

Indeed, the lower class of the Spaniards subsist almost entirely upon fruit, the produce of the country. The chief articles of exportation are grapes, figs, raisins, oranges, anchovies, wines, &c. Their streets are very narrow, running at random in every direction. Their houses are mostly built of marble, four stories high, different families occupying different stories of the same house. They have two or three forts, built on eminences adjacent to the city for its protection, but they are out of order and decaying.

I anticipate enjoying a very pleasant cruise, as we seem to be favoured with every thing that could render our situation agreeable. Captain Murray is one of the best of men, and treats us with all the kindness and attention we could wish. The climate is mild and healthy. The Tripolitans keep among themselves, and never venture out, so that we shall have nothing to do but to visit the different ports of the Mediterranean. The closest friendship and harmony prevails among the officers of the ship. Every thing, in short, that we could wish, we seem to have, to make our situation comfortable. Pray remember me kindly to Mrs. Alston, and believe me, with esteem and respect, your most obedient servant,

**JAMES BIDDLE.**

**FROM JOHN TAYLOR, OF CAROLINE.**

Virginia, Caroline, May 25, 1802.

**DEAR SIR,**

Your favour, covering the medal struck to commemorate the most brilliant exploit of the American war, from some cause unknown to me, never arrived until this instant. It is particularly acceptable from the

circumstance of my having imbibed a personal affection for General Gates by having served under him for a few months.

It would be quite premature in me to consider whether I would go into Congress unless it was probable that I could. The government have no means of providing for the gentleman you mention; and if they had, to do so for the purpose of making room for another might expose them to censures which they will hardly encounter. As to a voluntary resignation of his station, there are some circumstances in his case which do really justify him in refusing to do it, unless for some better prospect of public benefit.

Not until some days after you left this was it discovered that you had forgotten your travelling map. I lamented the inconveniences to which the oversight would expose you, but had no mode of removing them, despairing, from a recollection of your horses, that either of mine would be fleet enough to overtake you. The map could, therefore, only be taken care of for the purpose of being restored to you. Permit me to hope that you will allow me to do this at my own house as you return; and that you will apprise me of your resolution to do so, both that I may be at home and that I may enjoy the hope of your company before the pleasure is realized. Farewell.

**JOHN TAYLOR.**

Footnotes:

1. A paragraph cut from the Aurora.
2. Wood's History of John Adams's Administration.
3. The present Commodore James Biddle.

4. The vice-president, Colonel Burr. This letter was written more than a year after the presidential contest in Congress.

5. At that time a member of the United States Senate.

## CHAPTER XIII.

### THEODOSIA TO JOSEPH ALSTON.

New-York, June 24, 1802.

We arrived yesterday morning, exactly the eighth day since I left you. Our passage was pleasant, inasmuch as we had no storms, and the most obliging, attentive captain. I never met with more unremitted politeness. He was constantly endeavouring to tempt my appetite by all the delicacies in his own stores. To the child he proved an excellent nurse when I was fatigued and the rest sick. We are now in my father's town-house. Mrs. Allen had gone up the North River before my arrival; thus I have seen neither her nor her sons. John is to return and be married in a few days.

I have just returned from a ride in the country and a visit to Richmond Hill. Never did I behold this island so beautiful. The variety of vivid greens; the finely-cultivated fields and gaudy gardens; the neat, cool air of the cit's boxes, peeping through straight rows of tall poplars, and the elegance of some gentlemen's seats, commanding a view of the majestic Hudson, and the high, dark shores of New-Jersey, altogether form a scene so lively, so touching, and to me now so new, that I was in constant rapture. How much did I wish for you to join with me in admiring it. With how much regret did I recollect some rides we took together last summer. Ah, my husband, why are we separated? I had rather have been ill on Sullivan's Island with you,

than well separated from you. Even my amusements serve to increase my unhappiness; for if any thing affords me pleasure, the thought that, were you here, you also would feel pleasure, and thus redouble mine, at once puts an end to enjoyment. You do not know how constantly my whole mind is employed in thinking of you. Do you, my husband, think as frequently of your Theo., and wish for her? Do you really feel a vacuum in your pleasures? As for your wife, she has bid adieu to pleasure till next October. When, when will that month come? It appears to me a century off. I can scarcely yet realize to myself that we are to be so long separated. Do not imagine, however, that I mean to beg you to join me this summer. No, my husband, I know your reasons, and approve them. Your wife feels a consolation in talking of her sorrows to you; but she would think herself unworthy of you could she not find fortitude enough to bear them! God knows how delighted I shall be when once again in your arms; but how much would my happiness be diminished by recollecting that your advancement and interest suffered. When we meet, let there be nothing to alloy a happiness so pure, so unbounded. Our little boy grows charmingly; he is much admired here. The colour of his eyes is not yet determined. You shall know when it is.

As our papers were mixed, I left my writing-desk open; pray lock the drawers and desk both, and keep the key yourself.

Have you any rice on hand yet? It sells here for five dollars cash. If you have any, had you not better send it? Papa intends writing to you on the subject.

I began a letter to you this morning in time for the mail, but was prevented by innumerable visits, which commenced before I was dressed for breakfast. I am most impatiently waiting for a letter from you. I hope you wrote soon after my departure. I am counting every minute to next

Wednesday, when I hope to receive one, though I have many fears it is too early. With how much anxiety do I expect a letter. Maybe, one of these days, I may tell you of a piece of weakness of mine on that subject; maybe, for I do not know whether it is quite right for a wife to display all her foibles in that way to her husband. We have not determined when or where we shall move in the country. It shall certainly not be long ere we leave the city.

Anna Pierpont is well. She and husband go on merrily. They love each other very much, and that is half the battle. She begged me not to omit giving a thousand loves to you. My love to the Hegers. Tell them I have seen Nancy. She looks better than they ever saw her. She has got a colour, and is so much more beautiful that I scarcely recognised her. Adieu, mon bien aimé.

**THEODOSIA.**

**THEODOSIA TO JOSEPH ALSTON.**

New-York, June 26, 1802.

When, when will the month of October come? It appears to recede instead of approaching; and time, which extinguishes all other sorrows, serves but to increase mine; every moment I feel that I have lost so much of your society which can never be regained. Ah, my husband, what can be pleasure to your Theo., unassisted by the charms of your presence and participation? Nothing. It is an idea which has no place in my mind unconnected with you.

I send you M'Kenzie; there is no London edition in town more elegantly bound. Before my departure you complained grievously of the bad cigars

sold in Charleston. In the hope that this city affords better, I send you a box containing a thousand; the seller took some trouble to choose the best for me, and I have added some Vanilla and Tonka beans to them. May the offering please my great Apollo! If you should do so rash a thing as to visit the city during the summer, pray smoke all the time you remain there; it creates an atmosphere round you, and prevents impure air from reaching you.

I wish, also, that you would never be in town before or after the middle of the day. I have somewhere heard that persons were less apt to catch infectious disorders at that time than any other, and I believe it. Have you never remarked how highly scented the air is before sunrise in a flower-garden, so much so as to render the smell of any flower totally imperceptible if you put it to your nose? That is, I suppose, because, when the sun acts with all his force, the air becomes so rarefied, that the quantity of perfume you inhale at a breath can have no effect; while, on the contrary, during the night, the vapours become so condensed that you perceive them in every blast. May not the same be the case with noxious vapours? It is said that the fever in Charleston does not arise from that, but the filth of the streets are quite enough to make one think otherwise. Perhaps I am wrong both in my reason and opinion. If so, you are able to correct; only do as you think best, and be prudent. It is all I ask. I imagine the subject worth a reflection, and you cannot err. Montesquieu says he writes to make people think; and why may not Theodosia?

We have this evening been to visit Mrs. Caines (late Mrs. Verplanck) at her country place. The marriage was thus published—Married, G.C., Esq., counsellor of law, from the West Indies, *and now having a work in the press*, to Mrs., &c. That work has been the cause of some curiosity and not a little amusement.



I dined the other day with Mrs. Montgomery. The chancellor has sent her out a list of statues, which are to be so exactly imitated in plaster as to leave the difference of materials only. The statues are, the Apollo Belvidere, Venus de Medicis, Laocoon and his children, Antinous, and some others. The patriotic citizens of New-York are now subscribing to the importation of a set here for the good of the public. If they are really perfect imitations, they will be a great acquisition to this city. But, *selon moi*, there is the difficulty. Our son looks charmingly. Adieu.

**THEODOSIA.**

**THEODOSIA TO JOSEPH ALSTON.**

New-York, June 28, 1802.

And do you, indeed, miss your Theo.? Do you really find happiness indissolubly blended with her presence? Ah! my husband, how much more amiable you are as the man than as the philosopher! How much better your wife can love you! The latter character produces a distance between us; it so resembles coldness, that it annihilates all that free communication of the heart, that certainty of the most perfect sympathy and concord of feeling, which affords so much real happiness. Believe me, it is a very mistaken idea, that to discover sensibility at parting with a friend increases their sorrow. No; it consoles them. That apparent indifference, instead of lessening their pain at separation, only adds to it the mortification of finding themselves alone; wounds their feelings by the idea that, where they expected the most sincere reciprocity, they meet with the most calm tranquillity; and, above all, it is apt to make them involuntarily exclaim—If I am thus regretted, how little shall I be thought of! How soon forgotten! Never, then, my beloved, attempt to play the philosopher. If you see a friend

weeping, weep with them. Sympathy is the sovereign cure for all wounds of the heart.

Your letter of the 16th, which I received yesterday, delighted me the more as it was unexpected. I did not *hope* you would have written so soon; still less did I imagine a letter from Charleston would reach this on the eleventh day after date. How anxious I am for to-morrow. Perhaps I may hear from you again.

S. appears more pleased with New-York than any person I ever saw from South Carolina. With the beauty of the country it is impossible not to be delighted, whether that delight is confessed or not; and every woman cannot fail to prefer the style of society, whatever she may say. If she denies it, she is set down in my mind as insincere and weakly prejudiced.

Pray write your journal this summer; you have little else to do. I should be charmed to find it finished on my return. Adieu.

**THEODOSIA.**

**TO JOSEPH ALSTON.**

New-York, July 3, 1802.

Your letter of the 19th of June, covering two for Theodosia, was received this morning. She, with Lady Nisbett and your boy, sailed yesterday for Red Hook (120 miles north) on a visit to Mrs. A., who had solicited this attention in terms and under circumstances which admitted of no refusal. The boy has grown surprisingly. The mother has recovered her appetite and spirits. I shall go up to take care of them in ten or fifteen days.

I desired your father to bring or send a barrel of rough rice (rice unpounded). The young Scotchman of whom I spoke to him has already invented a machine which I think will clean ten times as much as your pounding machine with the same power; that is, ten times as fast. Send the rice that we may try.

As to the publications of Cheetham and Wood, it is not worth while to write any thing by way of comment or explanation. It will, in due time, be known what they are, and what is Dewitt Clinton, their colleague and instigator. These things will do no harm to me personally. What effect they may have on the cause is a problem.

I forgot to pay Placide for two or three times bathing. Give him a guinea for me. Yours, affectionately,

**A. BURR.**

TO NATALIE.

New-York, July 5, 1802.

Your letter of the 22d of February, announcing your intended marriage, is this minute received. Nothing could be more grateful to me than your proposed connexion with Mr. Sumter. I know little of him personally, but his reputation and standing in society fully justify your choice, and I pray you to assure him that I shall most cordially take him to my bosom as a son. With his father I have been long acquainted, and always greatly respected him. We were fellow-soldiers during our revolutionary war, in which he acted a most distinguished part, though we were not then known to each other. We served together some years in Congress, and laboured in the same

party. These circumstances never fail to generate attachments, and I am truly happy in being more closely allied to him.

I perceive, and with pleasure, that I shall pass much of my time in South Carolina, and shall divide it between you and Theodosia; but the mountains are my favourite residence. Which is my favourite daughter I have not yet been able to decide. We must not, however, abandon New-York. I will have you both here, if possible, every year, and at Richmond Hill you shall renew the recollection of the happy hours of your childhood.

I have been long impatient, my dear Natalie, to write you on this subject, but I waited for advice from yourself. I was mortified to learn from common report *only* an event so nearly interesting, and which I had supposed you would have communicated to me the first. Your letter, however, has been long in America, and has travelled nearly two thousand miles in pursuit of me, having come in this morning from Charleston.

I arrived here on the 23d with Theodosia, her boy—a most lovely boy, and her sister, Lady Nisbett, who salutes you as a sister, and longs to embrace you. We had a most charming passage of seven days.

This is a great holyday. We are celebrating, with show and much noise, the 4th of July. This may appear to you a little ridiculous when you look at the date of this letter; but, *madame*, please to look at your almanac, and you will see that yesterday was Sunday. I should not have attempted to write to you amid so much bustle; but the good Mr. Arcambal came in just as I received your letter, and informed me that there was an immediate and safe opportunity to France, and I was impatient to express to you and your husband my participation in your joys, and hearty approbation of your union. God bless you, my dear child.

**A. BURR.**

P.S. I have not received a line from your mamma in some years. I am not at all surprised at her repugnance to your marriage with a democrat, the son of a rebel. She must hate, above all things, democrats and rebels. But tell her, as doubtless you have told her a thousand times, that she is wrong; and that we are not like your French democrats. Encore, adieu.

A. BURR.

## THEODOSIA TO JOSEPH ALSTON.

New-York, September 3, 1802.

What a pity minds could not be made sensible of each other's approach! Why were we not so formed, that when your thoughts, your soul were with your Theo., hers could be enabled, by the finest sensation of sympathy, to meet it. How superior to writing would that be! A letter is a month old before it is received; by that time other thoughts and subjects engage the writer. The sentiments expressed in it seem no longer warm from the heart. I have been all this evening divining your occupation. Sometimes I imagine you writing or reading, and then the hope that you are thinking of me arises. Pray what have you been doing? If you can possibly recollect, let me know. After all, it is more than probable that you have been smoking with Huger, entirely absorbed in your society and segar.

How does your election advance? I am anxious to know something of it; not from patriotism, however. It little concerns me which party succeeds. Where you are, there is my country, and in you are centred all my wishes.

Were you a Brutus, I should be a Roman. But were you a Caesar, I should only wish glory to Rome that glory might be yours. As long as you love me,

I am nothing on earth but your wife and your friend: contented and proud to be that.

Mr. M'Pherson is much better. He sits up—I mean out of bed, a great part of the day. Mr.—— spent about three hours with him yesterday. What a Chesterfieldian that is; he has not had the civility to call on me, although you were so attentive to him. He has grown sentimental. He caught a moscheto the other day, and kept it under a tumbler to meditate on, because it reminded him of Carolina, and consequently of Miss ——-. What man under heaven ever before discovered an analogy between a moscheto and his mistress? I am very happy you have chosen chess for your amusement. It keeps you constantly in mind how poor kings fare without their queens. Our little one has been very amiable to-day. Adieu.

**THEODOSIA.**

**TO JOSEPH ALSTON.**

New-York, July 19, 1802.

On Saturday (17th) Mr. and Mrs. Alston, Lady Nisbett, and Charlotte took passage for Red Hook. The wind has been so favourable that they undoubtedly arrived yesterday before dinner. Charlotte had three or four fits of ague and fever, but had escaped two days before she sailed, and was again in health.

You will herewith receive the second book. The malice and the motives are in this so obvious, that it will tend to discredit the whole. The charges which are of any moment will be shown to be mere fabrications. But there seems at present to be no medium of communication. The printers, called republican in this city (Denniston and Cheetham), are devoted to the

Clintons, one of them (Denniston) being nephew of the governor, and, of course, cousin to Dewitt. Wood, after absconding for some time, returned to this city, was put in jail, where he lay some days and until taken out by *Coleman*. You will shortly receive an explanation of this controversy, but not from me. Very affectionately yours,

**A. BURR.**

TO JOSEPH ALSTON.

New-York, August 2, 1802.

Your letter of the 18th is received. Mr. Williams had before shown me the pamphlet, and had informed me that it had produced all the effect that the writer could have wished, which is the best evidence of the merit of the work. It is evidently a hasty performance, and incorrectly printed, yet it displays ability as a writer, and sentiments honourable to him as a man.

Wood's book has surprised us. We all expected a new series of abuse against A.B. It should be entitled "The Confessions of John Wood, one of the Conspirators lately associated with James Cheetham and Dewitt Clinton against the vice-president." It shows pretty clearly the motives and views of this clan.

The enclosed paper will give you the particulars of the affair of Swartwout and Clinton. You will perceive that the latter indirectly acknowledges that he is an agent in the calumnies against me.

I am about to take possession of Richmond Hill for the reception of Theodosia and her boy, and shall go for them in about ten days. We propose to pass part of September in Orange county.

The letter herewith enclosed came to me under a *blank* cover; through inattention, I broke the seal without looking at the superscription. The first sentence betrayed my error, and I have scolded her a good deal for her blank cover. Affectionately yours,

A. BURR.

TO THEODOSIA.

New-York, August 8, 1802.

With extreme reluctance, *madame*, I am constrained to resign to Dr. Brown the honour of escorting you hither. The circumstances which have led to this measure are briefly noted in a letter which I have this day written you by the mail.

By Tuesday the 9th inst. I shall be settled at Richmond Hill, ready to receive you and your incumbrances. Tell Mr. and Mrs. Alston, &c., that I hope there to have the pleasure of accommodating them more to their satisfaction than was in my power in the little mansion in Broadway.

The moment you shall receive this, send a line for me to the postoffice, saying how you are, when you will move, &c. Leave with the postmaster a written direction to forward to New-York all letters for Mrs. Joseph Alston. I recommend to you to go round by Stockbridge to see Binney. She is there at the house of Mr. Bidwell. You will also there see your old great-uncle Edwards. But this is left to your discretion. If you go through Pittsfield, you should call and see H. Van Schaack, for whom Dr. Brown has a letter of credence. Make your journey perfectly at your ease; *id est*, with dignified leisure. Write me at every post-town, for I shall have a deal of impatience and anxiety about you and your little nonentity.



All your friends here are well except George's dog and one of his South Carolina birds. We are all in the bustle of moving. Heighho! for Richmond Hill. What a pity you were not here, you do so love a bustle; and then you, and the brat, and the maid, and thirty trunks would add so charmingly to the confusion. Adieu.

A. BURR.

TO JOSEPH ALSTON.

New-York, September 8, 1802.

The debility and loss of appetite which your wife has experienced alarmed me; yet I was totally ignorant of the cause. I was first informed of it by Dr. Bard, who came accidentally to this city about a fortnight ago. He, with Hosack and Brown, all of whom I consulted, joined with me in opinion that she ought immediately to wean her child or provide a wet nurse. This she peremptorily refused, and the bare proposition occasioned so many tears and so much distress that I abandoned it. Within the last three days, however, she has such a loss of appetite and prostration of strength, that she is satisfied of the necessity of the measure for the sake of the child, if not for herself; and I have this day sent off a man to the country to find a suitable nurse. The complaint continued from the period of her *confinement* during the whole time that she remained in Charleston.

It is most unfortunate that she left the Springs. While she was there, either by means of the air or the water, or perhaps both, she had got quite rid of the complaint, and there is no doubt but that, had she remained there a fortnight longer, the cure would have been radical. The ride to Hudson, only thirty miles, brought on a relapse; and, with slight variations, the affliction

was increased and her strength diminished. Bard advised the Springs, and was quite angry that she left them.

There is nothing in this disorder which immediately threatens life; nor is it, at present, attended with pain; but if it should become fixed upon her, of which there is danger unless speedily cured, it will unfit her for every duty and every enjoyment in life. The medicines, which under the direction of Bard she used at Lebanon, have hitherto proved ineffectual since her return. I have written fully to Eustis, and expect his answer within two or three days.

The present state of her health and strength will not, I think, admit of an attempt to take her to either of the Springs, or I should not hesitate to go off immediately with her. I have, however, strong and well-grounded hopes that, when she shall have a nurse, and resume the use of proper remedies, a cure will be effected.

I have thought that you ought to be informed of these facts, as well to explain the varied accounts which you may have received of her health, as to anticipate the vague or exaggerated relations which you may receive through other channels.

Most affectionately yours,

**A. BURR.**

THEODOSIA TO JOSEPH ALSTON.

New-York, September 30, 1802.

Another mail has arrived, but to your Theo. it has brought only unhappiness. It is now a week since I received your last letter. You are ill. You have been imprudent, and all my fears are fulfilled. Without any one near you to feel for you, to attend to you, to watch every change and share every pain. Your wife only could do that. It is her whose soul clings to yours, and vibrates but in harmony with it; whose happiness, whose every emotion, more than entirely dependant on yours, are exchanged for them. It is she only who forgets herself in you, and who, in gratifying your wishes or alleviating your pain, serves the interest nearest her heart. I know you have friends with you; but, when you lose your vivacity, and your society is robbed of its usual charms, they will find your chamber dull, and leave it for some more amusing place. They cannot, like your little Theo., hang over you in your sleep, and, with a beating heart, listen to every groan and tremble at every noise. Your son, too, were we with you, would charm away your cares. His smiles could not fail to sooth any pain. They possess a magic which you cannot conceive till you see him. Would we were with you, my beloved. I am miserable about you. Adieu. Heaven bless my husband, and I am happy.

**THEODOSIA.**

**THEODOSIA TO JOSEPH ALSTON.**

New-York, October 30, 1802.

I have just received yours of the 21st. You already know the result of my confinement in bed. It certainly relieved me for some time, which proves how easily that cure would have succeeded at first. I have now abandoned all hope of recovery. I do not say it in a moment of depression, but with all my reason about me. I am endeavouring to resign myself with cheerfulness;

and you also, my husband, must summon up your fortitude to bear with a sick wife the rest of her life. At present, my general health is very good; indeed, my appearance so perfectly announces it, that physicians smile at the idea of my being an invalid. The great misfortune of this complaint is, that one may vegetate forty years in a sort of middle state between life and death, without the enjoyment of one or the rest of the other.

You will now see your boy in a few days, and you will really be very much pleased with him. He is a sweet little rascal. If Heaven grant him but to live, I shall never repent what he has cost me. Adieu.

**THEODOSIA.**

**TO JOSEPH ALSTON.**

New-York, October 15, 1802.

In my letter of yesterday I said nothing of your son. He is well, and growing as you could wish. If I can see without prejudice, there never was a finer boy.

Of yourself I have a good deal to say; more than I can find time to write, and some things which cannot be written. Except the little practical knowledge which you may have gained by mingling with your committeemen, &c., your summer and autumn have, I perceive, been lost—lost, I mean, as to literary acquirements. From your companions, I presume, little is to be gained save the pastime of a social hour. Yet time goes on, and you have much to do.

To the execution of any project, however, health is a *sine qua non*. Whether you can ever enjoy it in Charleston or on Sullivan's Island has

become a problem in my mind. I was quite shocked with your wan appearance when I first met you last spring. How different from that which you took hence the fall preceding. With every advantage attainable in your climate, you have scarcely been free from fever during the season. This cannot fail to debilitate both mind and body. If these hazards are to be annually encountered with similar effects, and worse may be apprehended, it is a price far beyond the value of any benefits which Charleston can offer. The *mountains*, a more *Northern latitude*, or the *grave*, must be your refuge. Pray think of these things. If I should not go to South Carolina this fall, nor you come hither, let us meet in Washington next winter. After the rising of your legislature, you may find time for that journey. But I should prefer to see you here immediately after your election, if there be time for your return before the session of the legislature. Your health must require this change. *Here* you may freeze out all your "miasmata" and surplus bile in ten days, and go to Columbia with nerves well strung and blood well purified.

My solicitude for your frequent appearance in courts is *no way* diminished. The applause which I heard bestowed upon you sunk into my heart. I could distinguish that which you merited from the fulsome eulogy which was uttered through politeness. Your talent for writing is enviable, and, with cultivation, will be unrivalled (nothing without cultivation, remember). No one wishes so ardently as I do, not even you, that these advantages should be improved. But these considerations are unimportant compared with those which regard your health.

If you should leave Charleston, give special orders about your letters, for I may write what I should wish no one but you to see. Affectionately adieu.

**A. BURR.**

TO JOSEPH ALSTON.

New-York, November 5, 1802.

The cold weather of the last ten days has had a happy effect on Theodosia. She is so far restored that I can with confidence assure you she will return in health. The boy, too, grows fat and rosy with the frost. They have taken passage in the brig Enterprise, Captain Tombs, the same with whom we came last June. She will have the control of the cabin, and will be perfectly well accommodated. I regret she will sail so soon (the 12th), as well because I cannot attend her as that I could have wished her health and that of the boy to have been still more confirmed. Yet I cannot any longer resist her impatience. You must not delay your journey to Columbia in expectation of her arrival. It is important that you be on the ground the first day, and it is to be desired that you could be there two or three days before the commencement of the session. If you should be gone, she projects to follow you, of which I advise you, that you may leave your directions. When you shall see her and son, you will not regret this five months' separation. I rejoice that you are to meet Major Pinckney on the floor of your assembly. "*The Citizen*" (Cheetham and Denniston's), in publishing a list of members chosen in Charleston and its vicinity, omitted your name; but took care to add, by way of extract from a pretended letter, that the Alstons were of no consideration or influence in South Carolina. There is no bound to the malice of these people. The conspiracy was formed last winter at Washington. A little reflection will indicate to you the description of men, the motives, and the object of this combination.

Apologize for me to Ch. Marshall that I do not fulfil my engagement to accompany him from Charleston to Washington. I hope you will bring him with you.

Would Charles Lee accept the place of secretary of the Senate? It is worth twenty-three hundred dollars per annum, and not laborious. The secretary, you know, is chosen by the Senate. Otis, the present incumbent, will probably decline. If you should think that Lee would desire it, and the thing should appear to you proper, it should be suggested to your senators. Of the legislative subjects mentioned in one of your letters, I hope to find time to say a word on Sunday (7th inst.). God bless you.

**A. BURR.**

TO THEODOSIA.

New-York, December 4, 1802.

So you arrived on the 24th, after a passage of ten days; you and the Charleston packet on the same day. All this I learned last night; not from you. Vanderlyn and I drank a bottle of Champagne on the occasion.

Though this relieves me from the great anxiety under which I laboured, still there are many details of your passage, your arrival, &c., on which nothing but your letter can satisfy me. For some unknown reason, the mail is now eighteen days on the road.

Vanderlyn has finished your picture in the most beautiful style imaginable. When it was done, he exclaimed with enthusiasm, "There is the best work I have ever done in America."

Your letter must be addressed to Washington. The dear little boy, I hope, made a good sailor. Adieu.

**A. BURR.**

## TO THEODOSIA.

New-York, December 16, 1802.

Your letter of the 26th November came yesterday, that of the 25th the day preceding. You see, therefore, that twenty-one days had elapsed from the time of your arrival to the receipt of your first letter. This is not by way of reproach, for it is an unpleasant truth that, for the last six or eight weeks, the Charleston mail has been twenty days on the way. Had it not been for the intelligence by water of your safe arrival, we should have concluded that you and Kate [1] were now dancing with Amphitrite. How jealous her majesty would have been at the presence of two such rivals.

The day after you left us, though the weather was mild, not even a frost, the leaves of the trees about the house began to fall, and in three days they were as bare as in midwinter, though you may recollect that you left them in perfect verdure. This, I am sure, was sympathy and regret. I shall respect these trees for their sensibility. It was in harmony with my feelings; for, truly, all was dreary.

Yes, I enter into all your little vexations; but while I write, and long before, they probably have passed away, and are succeeded by new ones. Kate will help you to laugh them off. Kiss her for me. Not a word, not a line from your husband since the 30th of October. We ought, nay, we must, every day add something to our experience, and usually at some cost.

I expect to leave this in about a week. Henceforth, therefore, address me at Washington. On my arrival there we will begin to talk of our spring and summer plans. You did well, very well to give up the Columbia project. I really wish you had given the pair of horses in your own name. In all such cases, that which is most grateful to you will be so to me. Butter shall be sent. The card plate must be altered.



*Maybe* I may write you from Philadelphia; not again from this city, unless I should receive from you something very pretty. Vanderlyn projects to visit Charleston, but I am sure he will not. He is run down with applications for portraits, all of which, without discrimination, he refuses. He is greatly occupied in finishing his Niagara views, which, —indeed, will do him honour. They will be four in number, and he thinks of having them engraved in France. You hear the roaring of the cataract when you look at them. Kiss the dear little boy. Adieu, ma belle.

A. BURR.

TO THEODOSIA.

Washington, January 26, 1803.

Your last letter, and the only one received within a month, is dated the 14th inst., and written, I suppose, at your plantation. It gives me the satisfaction of knowing that you and your boy are well, and nothing more. How long you are to remain there, where next to go, and every thing leading to a knowledge of your occupations and intentions, is omitted. One half of the letter is a complaint of my silence, and the other half (nearly) an apology for yours. You know (or am I now to tell you) that you and your concerns are the highest, the dearest interest I have in this world; one in comparison with which all others are insignificant.

Recollect, my dear Theodosia, that in five weeks Congress will adjourn (3d March); that I shall then go in some direction, but in what is yet unsettled; that my movements will depend essentially on yours. Tell me, therefore, where you are to pass the summer, when you are to leave Charleston, and all the details. If these matters should not yet be settled, let

it be forthwith done. If you are not to go northward, it is not probable that I shall see you in some time, for I have thoughts of going on a tour through the western country, which, if executed, will consume the whole summer. I offer you and your family Richmond Hill for the season, and will meet you there in May or June, or when you please. Perhaps would come to make the voyage with you, by land or water. Sullivan's Island will not, I hope, be thought of. How is it that I have not a line from *Mari*, in answer to several letters which I wrote him from New-York?

I entreat you to answer this letter distinctly, and in all its parts; for there will not be time for another letter and reply before I shall be off. My love to Kate. You do not say whether she grows handsome or ugly, nor is it any matter which while on the plantation.

I can't conceive how you all stow yourselves in that little wreck of a mansion. Please to write over, in some way, the erased part of your letter. You must be very destitute of wit and contrivance. No essence in Washington. I still prefer musk, but not to be had. One would think you had suffered some injury from perfumes. Your message and commission to Mrs. Madison will be delivered. My mode of life, establishment, &c., are the same as last year, except that I bought a chariot, having some hope of seeing you and your husband here. As I shall not write again until I hear where you are, I may as well say now all that occurs to me.

On my way through Philadelphia I rode out to Lansdown, to see our beautiful little K. and Mrs. L. They appear to love you with all their hearts. K. especially talked of you with an interest which could not be affected. The ladies find fault with her dress, her person, her manners; in short, with every thing appertaining to her. Mrs. L. has also her full share of the eulogium. K. is *toujours belle*. At Wilmington I did not see friend S. She had gone to church. God bless thee.

**A. BURR**

**TO DR. JOHN COATS.**

Washington, February 23, 1803.

It is from me, my dear sir, that apologies are due; but you have kindly anticipated all I could make. I thank you for this instance of your goodness; for your friendly recollection; above all, for the justice you do to my heart and feelings. Your last letter has been received. It is without date, and came by the mail of yesterday. You see that I am resolved not to furnish a new occasion for apologies by further negligence. Whether, after the adjournment, I shall go North or South, is yet undetermined. If northward, I propose to take the route which you had the goodness to describe, and to pass at least some hours with you. I shall insist on a dish of lillipee, in order to give a more dramatic effect to the review which we will take of past scenes.

Dearborn, now minister of war, was our fellow-traveller through the wilderness. If you will designate more particularly the papers you wish to recover, I will with pleasure make search for them. Accept, I pray you, the assurance of my undiminished regard and esteem.

**A. BURR.**

**FROM THEODOSIA.**

Clifton, March 17, 1802.

Ever since the date of my last letter, for it was not forwarded till some days after, I have been quite ill; till within these two or three days totally unable to write. The whole family, as well as myself, had begun to think pretty seriously of my last journey; but, fortunately, I have had the pleasure of keeping them up a few nights, and drawing forth all their sensibility, without giving them the trouble of burying, mourning, &c.

I was one night so ill as to have lost my senses in a great measure; about daylight, as a last resource, they began plying me with old wine, and blisters to my feet. But, on recovering a little, I kicked off the blisters, and declared I would be dressed; be carried in the open air, and have free use of cold water. I was indulged. I was carried below, where I drank plentifully of cold water, and I had my face, neck, and arms bathed with it, and it assisted most astonishingly in recovering me. The day before yesterday I was put on a bed in a boat and brought here. The change of air and scene have assisted me wonderfully. I am again getting well. Indeed, the rapidity with which I gain strength surprises the whole family. The secret is, that my constitution is good. I exert myself to the utmost, feeling none of that pride, so common to my sex, of being weak and ill. Delicacy and debility are sometimes fascinating when affected by a coquette, adorned with the freshness of health; but a pale, thin face; sunken, instead of languishing eyes; and a form, evidently tottering, not gracefully bending, never, I suspect, made, far less could they retain a conquest, or even please a friend. I therefore encourage spirits, try to appear well, and am rewarded. In a few days I shall be on the high road to health. Mari is well, and the boy charming. Adieu.

THEODOSIA.

TO THEODOSIA.

Philadelphia, June 3, 1903.

I have only to announce my safe arrival yesterday noon. Went forthwith to see the B.'s. They were all out of town. Will be back to-day.

Send me the number of volumes of the American Encyclopedia. I wish to complete the set, and must, therefore, know the deficiencies. I have seen none of your acquaintance save the Biddles. To-morrow (if I should in the mean time receive a letter from you) I shall add something. You are the two most spiritless young persons I ever knew. Pray muster up energy enough to do something more than lounge on sofas. Go on Sunday to Ludlow's. Ask some of your friends often to dine with you. There is a little boy right opposite my window who has something of the way of "mammy's treasure." Don't be jealous; not half so handsome. I have had him over to my room, and have already taught him to *bang*. Adieu.

A. BURR.

FROM THEODOSIA.

New-York, June 4, 1803.

Encore stupid. For Heaven's sake, what do you imagine I can find to say once a day that is worth saying, shut up thus, either tinkling on the harp or holding a tête-à-tête conversation? You must, indeed, have a high opinion of my genius and the fertility of my imagination.

Pray how do you advance? Heavy business, is it not? I beg you will perform your promise, and write me the history of it. I'll bind it in red morocco, and keep it for the advantage and instruction of the boy. Adieu. Do not forget my commission, and return soon.

A. BURR.

TO THEODOSIA.

Philadelphia, June 5, 1803.

I received yesterday your first letter. Pray no more apologies about your stupidity, &c., because on that subject I am perfectly informed. Be pleased to recollect that your letters cannot be answered the day they are received. We are now even. I wrote you on Friday.

I went this morning to see L. and Keene. The former, as usual, polite, friendly, and cheerful. The latter something improved by a very slight acquisition of embonpoint; so very slight, however, as not to be obvious to common optics. They will pass their summer at their present residence, and I have almost promised that you shall make them a visit.

But I should have narrated in the order of events according to their dates or in the order of the importance. Neither hath been observed, which argues ill of my temper of mind for the principal pursuit. Cette —— spoils me. From that intercourse I return faintly to the line of duty. On Friday I saw the inamorata, and it happened as we had feared; for really I did not know whom I had the honour to address; nor could I, with certainty, discover during the interview, for I saw but one. The appearance was pleasing. There was something pensive and interesting. It exceeded my expectations. It was a visit of ceremony, and passed off as such. This day I met the whole four at dinner. My attentions were pointed, and met a cheerful return. There was more sprightliness than before. Le pere leaves town to-morrow for eight days, and I am now meditating whether to take the fatal step to-morrow. I falter and hesitate, which you know is not the way. I tremble at the success I desire. You will not know my determination till Wednesday. In the mean time I crave your prayers.

I entreat you to ride about. Your monotonous life can never restore your health; nay, it is hostile to recovery. The business part of my journey assumes some importance, but the result is uncertain. Adieu.

A. BURR.

## TO THEODOSIA.

Philadelphia, June 6, 1803.

The plot thickens, and I do not find it possible to communicate faithfully the details, without hazarding too much in case of loss of the letter. Something, however, may be said.

I called at the house this morning; before I had asked for any one in particular, the servant bid me in, and in a few minutes Inamorat sole appeared. This looked like secret understanding or sympathy; perhaps, however, it was only as head and representative of the family. She looked well; but, unfortunately, a trifling carelessness in dress had nearly concluded the farce. Recollecting, however, that they were packing up for a temporary removal, to take place this very day, an apology was obvious. Having made to myself the apology, I went further, and found that there was politeness, *at least*, in receiving me, and in so prompt an attendance under such circumstances. After ten minutes le pere came in; conversation became general, and I took leave.

Returning home, and pondering on the subject most profoundly for full five minutes, I boldly took up my pen, and wrote le pere that I wished a few minutes' conversation with him at his own house in the course of the day. Within an hour he was at *my room* to receive the communication. Now paint to yourself a desperate miscreant on the point of committing self-murder,

trembling with anxiety, choking for want of utterance, &c. Having formed the portrait to your own taste, I must tell you that there was no such figure. The salutations, on meeting, passed as usual. An expression or two of sensibility to the courtesy which anticipated so promptly the intended visit, and then some unembarrassed direct questions and monosyllabic answers. "Is —— under any engagement?" *None*. "Would it be agreeable to you that —— should make overtures?" &c. *Certainly*. A very complimentary thing, however, was said by le pere. It was agreed that the suiter should make known his pretensions, he (le pere) declining to intermeddle. *End of the first act*.

I have the honour to acknowledge the receipt of your two letters, both dated June 4. Evidently they cost you great labour.

June 7.

I left this open that I might acknowledge the receipt of one by this morning's mail. I am gratified to have it in my power. The accident to the harp has been very fortunate, inasmuch as it enabled you to make out a long letter on the subject. However it may be broken, nothing is so easy to be repaired. Kiss dear little *bang*.

**A. BURR.**

TO THEODOSIA.

Philadelphia, June 7, 1803.

As you were informed yesterday, my *Celeste* has gone with the family (le pere excepted) to pass a fortnight six miles from town. I go to-morrow morning to recommend myself; and that no time may be wasted, and these



six mile rides may not be too often repeated to no purpose, I shall not go much round about the subject, but come pretty directly to the point; of all which you will be duly informed.

Truly, if my head be as confused as my narrative, it will be of little use to me in the negotiation. I should have begun by relating what happened this morning. There are, however, two ways of telling a story. One by beginning with the oldest event, and so travelling down to the close of the tale, and this is the mode commonly used by philosophers and historians. The other, is by commencing with the most recent fact or earliest incident, which is the mode universally practised by lovers, and, generally, by poets. I could even quote Homer and Virgil as authorities in support of this latter method. Further I may add, that this retro-progressive arrangement seems more congenial with the temper and feelings of the fair sex. Thus, you see, most ladies turn first to the last chapter of a novel or romance. In defence of this practice I could dilate to the utmost extent of many sheets; but, intending soon to publish an essay on the subject, I leave for the present the residue to your reflections, and return to the interview of this morning.

I was admitted without hesitation, and was presently joined by Celeste, though I had not particularized any one as the object of my visit. For some minutes she led the conversation, and did it with grace and sprightliness, and with admirable good sense. I made several attempts to divert it to other subjects—subjects which might have nearer affinity, again, to others; unsuccessfully, however; yet, whether I was foiled through art or accident, I could not discover. Be assured she is much superior to l'ainée.

"I would be wooed, and, not unsought, be won."

So I conjectured she thought, and she was right.

**A. BURR.**

## TO THEODOSIA.

Philadelphia, June 8, 1803.

I told you the negotiation should not be long. It is finished—concluded—for ever abandoned—*liber sum*. Celeste never means to marry; "firmly resolved." I am very sorry to hear it, madam; had promised myself great happiness, but cannot blame your determination. "No, certainly, sir, you cannot; for I recollect to have heard you express surprise that any woman would marry, &c., and you gave such reasons, and with so much eloquence, as made an indelible impression on my mind." Have you any commands to town, madam? I wish you a good-morning. *End of the second and last act.*

The interview was about an hour. Celeste was greatly agitated; behaved, however, with great propriety. The parting was full of courtesy, and there is reason to hope that there will be no hanging or drowning.

I dined to-day chez Rush. The two elder daughters are in Canada. The little Julia, now about ten, is growing up very lovely and *tres gentile*. Afterward called to see your friend, Mrs. Stewart, and her beautiful daughter. She is really beautiful. To-morrow I dine chez la Raz.

The law business goes on slowly; may be finished about Tuesday next, after which I shall hasten to those who love me, when I shall endeavour to rouse them from their lethargy, and give them a little zest for life. Just now I recollect that I have no letter from you this morning, at which I was confoundedly vexed. I stop, therefore, and shall withhold even this for a day, by way of punishment. You will say that you were not well, that you were engaged in company, that the servant neglected to take the letter, or some such trite thing. All nonsense. Bon soir.

Thursday morning.

Your letter of Tuesday, containing the history of the dinner, is received this morning. Truly, I think that Mr. and Mrs. Moore and Clem might, with any tolerable aid, have made the dinner gay. Mr. and Mrs. Moore have both a great deal of wit, and are both well bred. Clem is by no means deficient. It must, therefore, have been the fault of yourself and husband. If the harp is not essentially injured, I would not purchase a new one. Kiss little *bang*.

A. BURR.

FROM THEODOSIA.

New-York, June 9, 1803.

I received yesterday your three letters of the 5th and 6th. They made me laugh, yet I pity you, and have really a fellow feeling for you. Poor little Rippy, so you are mortgaged! But you bear it charmingly; do you think this courage will last, or is it only a spasm? Spasmodic love. It is really quite new. The trifling incident in relation to dress you must pardon. I am a *connoisseur* in these things, and can assure you they are very pardonable.

I am all anxiety and impatience for to-day's mail. But it surprises me that *primo mobile* is forgotten. Pray, have you lived altogether on pepper? We shall ride to Montalto this afternoon, and you shall know our reception. I am too anxious for my letters to add a word more. Poor Starling!

THEODOSIA.

TO THEODOSIA.

Philadelphia, June 10, 1803.

Yesterday I dined chez la Raz; a very pleasant party. The farce of eight days past had been forgotten, or recollected only as a dream.

Just as I sit down to write to you I receive a note from Celeste, advising me that she is in town for a few hours, and will be happy to see me. What in the name of love and matrimony can this mean? The conclusion was definitive, and a mutual promise that neither would ever renew the subject. I am all impatience, and I go to hear. You shall know to-morrow.

**A. BURR.**

**FROM THEODOSIA.**

New-York, June 10, 1803.

My apology for not writing this morning is enclosed. We have been dining with Mrs. Laight to-day, and have been much amused. We are to take them, with Miss Laight and Miss Brown, in curricule and coachee to Montalto to-morrow afternoon. We are absolutely two demonstrations of two laws in mechanics. When we repose it requires a great exertion to move us, and when put in motion we go on.

My interruption last evening prevented me from wishing you joy at the declaration of independence. What are your plans now. Cher petit pere, the boy kisses you; but I do not, because you remain so long in Philadelphia.

**THEODOSIA.**

Footnotes:

1. Her cousin, Catharine Brown, daughter of Dr. Joseph Brown.

## CHAPTER XIV.

### TO THEODOSIA.

Philadelphia, June 11, 1803.

*Continuation of the Story of the Loves of Reubon and Celeste.*

Your recollection must be recalled to the fatal and decisive interview of Wednesday. The result only was stated in a former letter. It would have required too much time to compress into the compass of one or two sheets a conversation of two hours. The details are therefore omitted; but a circumstance which will increase your surprise at the incident related yesterday morning is, that, on Wednesday night, Reubon received by the hands of a servant of Celeste, sent for the sole purpose seven miles, a letter from her, couched in civil terms, but expressing "an unalterable determination never to listen again to his suit, and requesting that the subject might never be renewed." Reubon returned home late last evening, and was told that a boy had been three times in the course of the afternoon and evening to deliver him a message, but refused to say from whom he came. The last time the servant of Reubon traced the boy to the house of Celeste in town. It was not known that Celeste had been that day in town, and no conjecture could be formed as to the owner of the boy or the object of his message. The note received by Reubon this morning explains the mystery. The letter which I wrote you by the mail left Reubon puzzling his

brain to discover the meaning of that note, and just going out to obey the challenge which it conveyed. He went, as you were apprized, and has just now returned and communicated what you shall now hear.

Some years ago, a worthy country judge, having heard a cause very ingeniously debated by lawyers on each side, when he came to charge the jury, did it in the words following: "Gentlemen of the jury, you must get along with this cause as well as you can; for my part, I am swamp'd." Now Reubon is exactly in the case of this judge, and I am at a loss what to advise him. You could unravel this thing in five minutes. Would to God you were here; but to the story.

He found Celeste with a visitor; some female neighbour, who sat a full half hour. Celeste betrayed considerable agitation when Reubon came in, and the most palpable impatience at the long stay of the lady visitor. At length she went, and the parties were alone. As she had desired the interview, it was her place to speak first. After a pause and several efforts, she, with some trepidation, said that she feared the letter which she had written had not been expressed in terms sufficiently polite and respectful; she had wished an opportunity to apologize; and here she stuck. Reubon ought in mercy and in politeness to have taken up the conversation; but he, expecting no such thing, was taken by surprise, and remained dumb, with a kind of half grin. The duette, at this moment, would have made a charming subject for the pencil of Vanderlyn. Celeste was profoundly occupied in tearing up some roses which she held in her hand, and Reubon was equally industrious in twirling his hat, and pinching some new corners and angles in the brim. At length he recovered himself so far as to gain utterance. He denied, plumply, that there was want of politeness or respect in the letter; and, after many awkward detours and half-finished sentences, he said he would return the letter, and would consider it as cancelling the determination which it contained, and proposed to call on her in the country

to-morrow morning to renew his suit. This was *faintly* opposed. He changed the course of conversation, without insisting on a formal permission or refusal, and then went into the subject of celibacy and matrimony, and passed an hour tête-à-tête. It may be worth noting that, towards the close of the conversation, some one knocked, and that she went out and ordered the servant to deny her, from which it may be inferred that she was not disagreeably engaged, and that she did not wish to be interrupted.

Now, ma Minerve, is not this a very ridiculous posture for so grave an affair? And is not Reubon in a way to be coquetted, with his eyes open? I rather think he erred in giving to the apology of Celeste any other meaning than she literally expressed. Thus he might have compelled her to be more explicit. On the other hand, if she did in fact repent, and so suddenly, it would seem too harsh and fastidious to shut the door against all treaty and negotiation. Upon the whole, however, I conclude that if she wished, for any kind reason, to retreat, she should have gone further, and held out something like encouragement; in short, have met him half way. It may, I know, be replied, that her habits of life and singular education forbid every thing like advance; and that a lady may always presume that her lover, if sincere, will seize the slightest ground for hope; and that, in the logic of love, an equivocal refusal is assent. Certainly, this last interview has been illy managed on the part of Reubon, but I have not yet resolved what to advise. This is left open till morning, when perhaps a word may be added.

Saturday morning.

From the state of things it is obvious that there can, at this hour, be no new fact to communicate; but I have no longer any doubts as to the meaning of the late scene, nor as to the line of conduct to be pursued by Reubon. The note of Celeste is one of those trifling incidents which are too small for calculation, which may have arisen from the trifling motive



assigned. Perhaps from a little spirit of coquetry, perhaps a mere piece of sport. He shall, therefore, take no further notice of it; not even to go out this morning to see her, as he had solicited and engaged; and, when he shall next meet her, make some slight apology. Thus the thing is settled.

**A. BURR.**

TO THEODOSIA.

Philadelphia, June 12, 1803.

I am weary, and so must you be, of this story of Reubon and Celeste. It is, however, closed, and you will, after this letter, hear no more of it.

Reubon agreed to comport himself in the manner advised in my last. Immediately after this determination, Celeste sent a servant to inform him that she was in town! He called to see her; returned the offensive letter, and told her that, as he understood that it was the manner and not the substance of the letter which had induced her to recall it, it would be quite unnecessary for her to take the trouble of writing another. They talked of indifferent matters. Reubon, quite at ease, played the man of the world, and, in my opinion, the man of sense. Before they parted, her face was flushed like a full-blown rose. She begged his permission to destroy the letter, which was certainly a very useless request, considering that the letter was wholly in her power. During the interview, Celeste, having no roses to occupy her hands, twisted off two corners of a pocket-handkerchief.

This reference (the law business), of which I informed you something, has become extremely troublesome and disagreeable. I am apprehensive that it will detain me here nearly the whole of this week.

Binny looks remarkably well, and talks much about you. Dennis and wife, from Savannah, are here. *Madame est toujours belle*. I can't express to you my impatience to be with you, your husband, and little one. Truly I think with horror of passing five days more here. Pray form no plans of distant rides until my return.

A. BURR.

FROM THEODOSIA.

New-York, June 14, 1803.

As to Celeste, *voila mon* opinion. She meant, from the beginning, to say that awful word—yes; but not choosing to say it immediately, she told you that *you* had furnished her with arguments against matrimony, which in French means, Please, sir, to persuade me out of them again. But you took it as a plump refusal, and walked off. She called you back. What more could she do? I would have seen you to Japan before I should have done so much. I still, however, like your plan. My opinion is not, perhaps, well founded, and it is best to be on the safe side. If she is determined to be kind, she will find out a way of expressing it, or she is not worth having. I am quite pleased with her, and am waiting the arrival of the mail with the utmost impatience.

"Treasure" is well, notwithstanding all predictions on my folly in his dress. You must be home for my birthday, (the 20th inst.), or I'll never forgive you; or, rather, I shall not spend it pleasantly.

THEODOSIA

TO THEODOSIA.

Philadelphia, June 16, 1803.

No letter by this mail; being the fourth omission and violation of promise since the 1st inst.

The birthday must be kept. It shall be "honoured by my presence." You will therefore make your preparations, and, among other articles for your feast or party, I recommend two fiddlers, not barbecued or roasted, but *en plein vie*.

If this should be received on Friday morning, in season to be answered by that day's mail, I beg to have a line from you, if only a *bon jour*; after which, no more letters can be received. You shall not have any distant parties or jaunts until I can partake. I am even jealous of the Fort Washington tour. Indeed, you can't go there without me, for no one can so well show you the ground.

If Mr. Kane and his wife (late Miss Clarke) should be in town, pray call on them immediately, and make them and the sister of the party. Recollect they have many claims to your civilities. His sister, Mrs. Thomas Morris, was very kind to you at Genesee. Mr. Kane himself overwhelmed us with good offices on a certain occasion at Albany, and the frequent hospitalities of John Innes Clarke can never be forgotten. Be prompt, therefore, and courteous.

A. BURR.

FROM THEODOSIA.

Ballston, July 20, 1803.

Behold us, *cher pere*, at this fountain of health; and now my only wish is to leave it as soon as possible. On arriving here we found that your letter to H. Walton had not been received; but we have been very fortunate in getting a house entirely to ourselves, and one quite as pleasantly situated as that you mentioned. Mr. Walton has been extremely polite to us. We dined there on Monday, and in the evening went to a ball, which surpassed my expectations in brilliancy. I danced twice, but I am unable to tell you whether I looked well or danced well; for you are the only person in the world who says any thing to me about my appearance. Mari generally looks pleased, but rarely makes remarks. On my return, therefore, I wished for you to learn some account of myself; for vanity and diffidence had a combat in which each so well maintained its ground that the affair is still left undecided.

General Smith and family are here. Never was ennui more strongly depicted than in the countenance of madame and sister. They appear absolutely bereft of every thing like exertion. Mr. ——, on the contrary, while he owns that this is not one of the most pleasant places he has ever seen, is still lively and agreeable. Such are the baneful effects of our education. Put out of our usual sphere of acquaintance, or the old routine of amusement and occupation, we rarely have knowledge of the world enough to discover any pleasant qualification that may exist in a stranger, and to put it to any use if it obtrude itself on our notice; and still less are we taught to create amusements for ourselves.

The boy is pretty well, but I confess I have many doubts as to the healthiness of this place for children. Every morning since our arrival there has been a thick mist, which the sun does not disperse till nine or ten o'clock. I kiss you with all my heart.

**THEODOSIA.**

**FROM CHARLES BIDDLE.**

Philadelphia, February 3, 1803.

**DEAR SIR,**

The business of New-Orleans is much talked of here. In my opinion, and it is the opinion of many others, we should immediately take possession, and then treat about it. We have no business to make excuses for the conduct of the Spanish government, by saying that they gave no orders to treat us in this manner. For my own part I do not fear a war with France and Spain. We could do more injury to them than they could do us. If we were at war with them, and Great Britain did not join us, we should have our ports filled with their seamen, and the coasts of France and Spain would soon swarm with our cruisers.

I remember, just before the commencement of the revolutionary war, my mother was disputing with an English officer. He said the Americans, of right, should not go to war; they could do nothing; they could get no person to head them. She replied, that the Americans would have no difficulty in finding some person to command their army; that she had seven sons, and, if necessary, would lead them herself to oppose their army. *Two* of her sons fell during the war in the service of their country. I have seven sons, whom I would much sooner lead to the field than suffer our country to be insulted. Your friend,

**CHARLES BIDDLE.**

FROM JOHN TAYLOR, OF CAROLINA.

Virginia, near Port Royal, March 25, 1803,

DEAR SIR,

By your note from the Bowling Green I find you are under two mistakes. One, that I am a candidate for Congress; the other, that I am making a book. As to the first, I have withstood all solicitation; and, although a few gentlemen have been pleased, without my knowledge, to make a stir, as it is called, nothing will come of it, and the old colonel will once more be felicitated.

As to the second, writing is one of my amusements, but in a wild, careless, and desultory way. Judge, then, how unlikely such scraps are to come out a book. Not that I would hesitate to publish any thing which might do these people good, however it might effect my own name, about which the fifty years which have passed over my head have rendered me quite indifferent. My time goes along tolerably enough, one way or another. Fancy furnishes me with passions and amusements, and about one hundred dollars a year more than meets every want I have which money can gratify.

This election affair has, however, exposed me to five or six essays in the newspapers, composed of lies, malice, and nonsense. One writer (an old tory) charges yourself and Colonel Smith with having met in caucus here, to plot the expulsion of Anthony New from Congress. I would have given five guineas had you called again, for it is probable you would have met Smith at my gate, and another pretty piece would have appeared most prodigiously entertaining. Well, if you will call in June, I will give you a hearty welcome to the best I have. May you be happy.

Your friend,

JOHN TAYLOR.

FROM PIERCE BUTLER.

Near Darien, Georgia, March 30, 1803.

DEAR SIR,

The letter you did me the honour of writing, with the accompaniments you so kindly forwarded, have my warm and grateful acknowledgments. The selection of *ten miles square* for the seat of government appeared to me at the time, and has continued, an excrescence on the Constitution, like a wart on a fair skin. Neither the foreign ministers nor the resident citizens in the federal city have any thing to alarm them under state laws. There is no finger of blood in the laws of Maryland or Virginia. I am of Mr. Bacon's opinion—return the sovereignty to the states. I hope we shall preserve peace with Spain. I observe, with much gratification, that the debates in Congress are much more decorous than they were last session.

The object or end of Mr. Monroe's mission I am ignorant of, as I do not correspond with any public character but yourself. I suppose an explanation with France respecting New-Orleans. I leave my farm in a few days for Philadelphia, where it would afford me pleasure to see you.

Your friend,

P. BUTLER.

TO THEODOSIA.

New-York, July 30, 1803.

It was kind to announce to me, by the earliest opportunity, your safe arrival at Lebanon. Tell me more precisely the movements and intentions of the family, as they will in some measure control mine. I am negotiating for the possession of Richmond Hill, by exchanging with Colonel F. for my house in town. It will be interesting indeed to have you and your boy at the house where you have been once so happy. We will trace back our childish sports and our more grave amusements. In the sale of this estate I reserve the house and a due portion of the ground about it; yet a good price will tempt me to part with it.

Some obscure hints in one of your letters have saddened my heart. From *son pere* I have merited neither suspicion nor reserve. Is it, then, criminal that a person of mature age should converse on a subject most highly interesting with the friend most likely informed? Yet did I not even give advice; invariably and inflexibly I declared that I would never interfere in the matter unless *son pere* concurred. Have you forgotten the mad project of going to England? the anxiety and misery it cost us for some days? I should have thanked the man who had thus treated my child. Indeed, my dear Theodosia, such things sink into my soul. They seem to invade the very sanctuary of happiness. Had I any thing so much at heart as to render him happy? That I love him, you best know. God bless my dear Theodosia.

A. BURR.

TO THEODOSIA.

Providence, R. I., August 1, 1803.



I left New-York two days after you, that is, on Saturday, and had a pretty little passage of forty-eight hours. We were, on board, a British custom-house officer, a sensible, pleasant man, who played chess with me; two ladies, rather pretty, who did not molest us, *point exigentes*, bien amiable; five little children, who neither cried nor quarrelled the whole way! yet cheerful and playful.

Six days have I passed here very pleasantly. To-morrow I go, whither is not determined. You may, however, address me at New-York, which will most probably be my destination.

All those you saw when you were last here inquire about you with great civility and interest, and say pretty things of you. Don't be vain, madam, for I take this to be a kind of flattery to me, or to be so intended. Miss C. talks much of you, and L. N., and Miss A. Can you imagine what are Miss C.'s occupations and arrangements? Never; so I'll tell you. Why, she instructs two nieces and a nephew (things of twelve or thirteen) in astronomy, natural philosophy, and principles of botany! Her boudoir has globes, several mathematical instruments, &c. All this I discovered by accident; for she denies it all most strenuously, and with some pretty, unaffected embarrassment. Be assured this is an amiable, sensible girl. I don't believe you know her value: so I pray you to study her. She left town yesterday with her mother for Lebanon. Mr. C. went on Friday to New-York. What care you for all that?

Are you a good girl? Do you drink the waters, and bathe, and ride, and walk? I hear Mrs. W. is handsomer than during her widowhood, of which I am very glad. Mr. Russel left this on Thursday, intending to pass through Albany and Ballston on his way to Niagara. If he should come into your vicinage, desire Mr. Alston to recollect him. His wife is with him. I never saw her.

Tell me who you see, and what you do, and what are your plans. You had best return by Boston and Providence if you should have time. Can you make little *chose* drink the water? I dare say not. If I were there I would force some down his little throat. God bless you all.

A. BURR.

TO THEODOSIA.

New-York, August 6, 1803.

Your letter of the 20th of July was received from the postoffice on my arrival last evening. There must be some anachronism in the date, for you left New-York on the 21st. I learn, however, that you arrived, were well, and had danced. Lord, how I should have liked to see you dance. It is so long; how long is it? It is certain that you dance better than anybody and looked better. Not a word of the Spring waters, their effects, &c.

I made the journey from Providence by land in four days. Near town, yesterday, P.M., I met Mr. and Mrs. Harper, of Baltimore. They are to breakfast with me this morning; so I must make haste, for it is now eight o'clock. How bad I write to-day. With Mr. and Mrs. Harper was a pretty-looking, black-eyed lass, whose name I did not hear. I hope she is coming out to breakfast, for I like her. There was also that Liverpool merchant, who used to hang on Butler so in Charleston. I hope he won't come.

I wrote you from Providence, on Monday last, all I had to say of it and its inhabitants. I found the whole country, from Providence to this place, greatly alarmed about the yellow fever, said to be in New-York, and dreadful stories in circulation, as usual. There have been some suspicious cases, and some decided instances of yellow fever. Our practising

physicians, however, our mayor and police-officers deny its existence. There is no alarm in town. The coffee-house is attended as usual. This length of intolerable heat has, I fear, prepared an atmosphere for the kind reception, if not for the generation of the fever. Now I hear the carriage. *Bon jour*. Be a good girl. Love to H. 'Twas nothing but a cart.

L. and her little bang are here (*chez nous*); how happy are you mothers. She will descant on its beauties by the hour; will point them out to you distinctly, lest they might escape notice. The hair, the nose, the mouth, and, in short, every feature, limb, and muscle, is admirable and is admired. To all which I agreed.

Jerome Bonaparte is not here; nor is it certain that he is on the continent. The French consul, whom I met in the road, told me, with *une maniere mysterieuse*, that he had something to communicate on that subject. Maybe he is come, maybe he isn't. I conjecture that he is come or coming.

Here they come, in earnest. I see only one lady in the carriage; so miss has not come; well, she may stay.

**A. BURR.**

TO THEODOSIA.

New-York, August 8, 1803.

Your amiable letter of the 1st inst. has not yet come to hand, and therefore cannot yet be acknowledged; perhaps it has not yet been written.

Indeed, we are about to be scourged with the plague called yellow fever. John Bard dead; but, to keep the account good, Billy B. has twins (boys).

Catharine Church Cruger (Mrs. Peter C.) has a son. But of the deaths. We die reasonably fast. Six or eight new cases reported yesterday. Of those who take the fever three fourths die. The coffee-house was, nevertheless, pretty well attended. No appearances of alarm until to-day. Several families have removed from the neighbourhood of the Tontine Coffee-house, and five times the number will remove to-morrow. Laight claimed Mr. Alston's promise of Montalto, and I have admitted his pretensions. He will take possession to-morrow or next day. Our pretty (beautiful) Mrs. Talbot, late Miss Truxton, more lately Mrs. Cox, is in my neighbourhood.

I write in town, and in the most outrageous hurry, having nothing to do, but having, according to custom, omitted writing till the moment of closing the mail. Mr. and Mrs. Harper did come, and with them that black-eyed young lady, which proved to be Miss Chase, of Baltimore. Mr. —— came also.

Do you know Miss Joanna Livingston? Pray recollect all her good and amiable qualities. Reflect profoundly. Adieu, ma chere amie.

**A. BURR.**

FROM THEODOSIA.

Washington, October 16, 1803.

We arrived here yesterday somewhat fatigued. I was, however, very happy to find myself at Washington, for we had, in the morning, been near taking quite a different route. Some part of our harness having broken on the top of a pretty long descent, fortunately the leaders were frightened by the wheel horses crowding on them; and running aside, one got his leg over the pole and was stopped, or you would not have had the pleasure of

receiving this interesting scribleriad, and the *poor world* would have been deprived of the heir-apparent to all its admiration and glory.

Our friend L. I have not seen. She was not to be seen. She has gone to Lancaster, and intends returning by the way of Harper's Ferry. Her journey is taken with a view to recruit herself after a severe attack of the bilious fever; with which, also, her little daughter has been at the point of death—literally, I am told. Lest I might lose the pleasure of seeing her by some mistake, I would not trust to the information of Tunnecliffe as to her absence, but made him send directly to her house. There; is not that little incident related in the true heroic style? Mrs. Madison and myself have made an interchange of visits to-day. She is still pretty; but oh, that unfortunate propensity to snuff-taking. We drank tea with Mr. and Mrs. Gallatin by invitation. Nobody asked us to eat. The markets are bad, I hear. We live very well, however, and, if you have not engaged lodgings, I advise to apply here also.

To-morrow takes us to Dumfries, and the next day beyond Fredericksburgh. *Le pere* is at Bowling Green. I bear travelling remarkably well. Headaches have disappeared, and my appetite increases; but poor little *gampy* does not like the confinement of the carriage.

On inquiry, we find that the one-eyed Nicholas who was in Congress is named John, and has only three brothers, Wilson, Robert, and Normond; so your man is an impostor, consequently you have been imposed on and cheated out of fifty dollars. Wade Hampton arrived here this evening.

**THEODOSIA.**

**FROM THEODOSIA.**

Petersburgh, October 21, 1803.

We reached this last night without any accident or even incident, but with great fatigue. Mr. Alston appears so distressed and worn out with the child's fretting, that it returns on me with redoubled force.

*Le pere et frere* are here. *Toujours honnête et bon*. They breakfasted with us, for we are obliged to take separate lodgings, and my husband has now gone to the races with them; a party of pleasure I was very willing to resign for you and repose. The longer I live, the more frequently the truth of your advice evinces itself, and never was there any thing more true than that occupation is necessary to give one command over themselves. I confess I feel myself growing quite cross on the journey, and it is really to be feared that, unless we soon finish it, the serene tranquillity of my placid temper may be injured. Novel reading has, I find, not only the ill effect of rendering people romantic, which, thanks to my father on earth, I am long past, but they really furnish no occupation to the mind. A series of events follow so rapidly, and are interwoven with remarks so commonplace and so spun out, that there is nothing left to reflect upon. A collection of images, which amuse only from their variety and rapid succession, like the pictures of a magic lantern; not like a piece of Vanderlyn, where the painter makes fine touches, and leaves to your vanity at least the merit of discovering them. Oh! would I had my friend Sterne. Half he says has no meaning, and, therefore, every time I read him I find a different one.

The boy has perfectly recovered. He remembers you astonishingly. He is constantly repeating that you are gone, and calling after you. When I told him to call Mr. Alston grandfather—"Grandfather gone," says he. I kiss you from my heart.

THEODOSIA.

FROM THEODOSIA.

Lumberton, S. C., October 29, 1803.

Thank Heaven, my dear father, I am at Lumberton, and within a few days of rest. I am sick, fatigued, out of patience, and on the very brink of being out of temper. Judge, therefore, if I am not in great need of repose. What conduces to render the journey unpleasant is, that it frets the boy, who has acquired two jaw teeth since he left you, and still talks of *gampy*. We travel in company with the two Alstons. Pray teach me how to write two A's without producing something like an Ass.

We expect to reach Georgetown on the 1st of November. There we shall remain three or four days, and then proceed to Charleston. Adieu. *Mille baisses*.

THEODOSIA.

FROM THEODOSIA.

Clifton, November 8, 1803.

You are surprised at my date, but my last must have prepared you for it in some degree. I received such warm and repeated solicitations to come here, that I accepted. We came on the 3d, and shall remain here till the day after to-morrow, when-oh!-oh! I go to Hagley, where we shall remain till Natalie's arrival, which will carry me to Charleston. It might appear ill-natured and ungrateful for the kindness John and Sally show me to regret residing at Hagley. But you, who always put the best construction on my words and deeds, will allow, that a place in which we have suffered much and run a risk of suffering more must be unpleasant.

We have visited the Oaks house since our arrival. The lazy workmen have been wasting their time, and have not yet finished what two Northern workmen would have done in a month. They are in the act of plastering, and that will not be dry enough to admit us in some time. Thus I shall remain with John till Mr. Alston returns from Columbia. Do you not think we may safely enter the house then? The plastering will be finished in less than a week hence; and the legislature, you know, adjourns at Christmas. I am particular on this subject, because I have known persons to suffer much from inhabiting a house too newly finished, and I wish to have your opinion.

I am extremely anxious to hear from you. When we parted you were engaged in talking over a bargain with Mr. Astor. Pray tell me the event of your deliberations. I had almost forgotten to tell you that we have every prospect of a capital crop.

THEODOSIA.

TO THEODOSIA.

New-York, November 7, 1803.

Your letter from Chester was received in due time; that from Washington came only yesterday, having lain there fourteen days before it was put into the office. By this time you must have received all those which I have written to you since your departure—not a single one. This is the first time that I have put pen to paper at you; but I have been too busy, selling. All is sold, and well sold; not all, however. The house, outhouses, and some three or four acres remain. Enough to keep up the appearance, and all the pleasant recollections of your infantine days, and some of your matronly days also,



are reserved with interest. This weighty business, however, is completed, and a huge weight it has taken from the head and shoulders, and every other part, animal and intellectual, of A. B.

Mr. M'Kinnon wrote me, last June, a letter, which I received a few days ago, and with it came two shawls or cloaks (a kind of worked muslin, all the rage in Paris and London at that date), some visiting cards, and ornamented message paper. Half his letter is to you and of you. He begs you to accept one of the shawls, and to give Frances the other. I executed his instructions by giving F. one. Surely it is not worth while to send the other to the Oaks for the admiration of your Africans. It is, in my opinion, beautiful; though, at first sight, I thought so little of it that I was going to give it to Peggy or Nancy. Of the cards I enclose a sample.

If little *gamp* could read, I should write to him volumes. I find my thoughts straying to him every hour in the day, and think more of him twenty fold than of you two together. Mrs. Laight and child are well. They move to town in six or eight days. Anna is well. Cath. C. la la.

A. BURR.

TO THEODOSIA.

New-York, November 22, 1803.

My last went by water, in care of young Gibbs, the baker's son, with the curricule box, and some other articles which I have forgotten. The letter contained some samples of M'Kinnon's present. The shawl is still retained as being too precious to be sent by sea or land. Is this right?

Mr. Astor left with me some days ago for Mr. Alston a very beautiful map of Lower Canada, price *ten* dollars, and two views of Montreal and its vicinity, *two guineas*. I am particularly charged by Mr. Astor to inform Mr. Alston that his landlord at Montreal paid to him (Mr. Astor), for the account of Joseph Alston, Esq., the sum of *one half guinea*; the said landlord having discovered, after the departure of the said Joseph Alston *et ux.*, that they had not taken with them two bottles of Madeira wine which the said landlord had charged in the bill of the said Joseph Alston, and for which he had received payment. Thus I have discharged myself of a commission which has been enjoined upon me at least ten times.

Roger Morris's place, the large handsome house on the height beyond Mrs. Watkins, is for sale. I can get it for Richmond Hill with *four* acres. Shall I exchange? R. M.'s has one hundred and thirty acres. If I leave Richmond Hill, however, had I not better buy in town, that you may have a resting-place there ? Dear little *gampy*; tell me a great deal about him, or I shall not value your letters. Indeed, I will return them unopened. Is not that good Irish?

Mr. Law has arrived. Miss Wheeler [1] is also at Washington, and A. B. at New-York-*tant mieux*. Would you think it? I have been coquetted by a rich widow, and really I had some thoughts of yielding.

Jerome Bonaparte is here, and he will keep me three days to dine him. We have exchanged visits, but have not yet met. I think I have mixed up here every thing I have to say to T. B. A. or J. A. No one word of politics; but, on further reflection, Mari will be at Columbia when this arrives.

**A. BURR.**

## TO THEODOSIA.

Washington, December 4, 1803.

I arrived this afternoon, and found here your three letters from Petersburg, Lumberton, and Georgetown. The last is dated the 2d of November. How very long ago. These letters are very satisfactory, except on the article of your health; of that you must speak a little more plainly. How long are you to stay in Charleston? Without knowing this, I am at a loss where to address you. I shall conclude that you will remain there till the return of Mr. Alston from the legislature.

The manner of your letters pleases me "prodigiously." There is ease, good sense, and sprightliness. That from Petersburg merits still higher encomium. Tell dear little *gampy* that I have read over his letter a great many times, and with great admiration. Mrs. Law, to whom I showed it, thinks it a production of genius.

That good and ill fortune never come in single strokes, but in sequences, you have heard since you were four years old. Since we parted I have been almost daily surprised by some pleasant occurrence or discovery of a personal nature. I pray it may continue a little longer; even till a bust is found and obtained.

Mrs. Law was vexed and mortified beyond measure at missing you. She has bid me say more things than this sheet would hold. The Misses Butler are all here. I shall see them to-morrow. Mary Allen, that was, now Mrs. Livingston; that beautiful little Miss Gray, whom we saw in Boston; she became Mrs. Dobel, then a widow, and now Mrs. Payne.

At Philadelphia Mrs. Lenox and K. almost quarrelled with me for your passing their gate without calling. They had made some preparation, and, in

good faith, desired your visit. Miss Boadley, too, talked of you with great interest. At Wilmington I saw no one of your acquaintance; nor at Baltimore, except Susan Smith, who is there on a visit from Princeton.

To go back to New-York. All things are much as you left them, except that what regards gamp is a good deal better. Mrs. Laight, and child, and sisters all in good condition and in high spirits. Have already been dancing—I believe twice. At Mrs. General G.'s I met by accident Mrs. Rogers. She is a pleasant, cheerful, comely woman, to appearance not past thirty-eight or forty. You know we had heard otherwise. Eustis has sprained his ankle, which puts him, for the present, out of the gay world. I have not been abroad except to dine with Mrs. L. I am rejoiced at what you tell me of La Gree.

Pray take immediately in hand some book which requires attention and study. You will, I fear, lose the habit of study, which would be a greater misfortune than to lose your head. M'Kinnon has sent me out a beautiful picture of the celebrated Madame Ricammier. It is a good deal like your pretty widow, Mrs. Wright. *Bon soir.*

**A. BURR.**

FROM THEODOSIA.

Charleston, November 19, 1803.

All your trouble, good precepts, and better example have been thrown away on me. I am still a child. Your letter of the 7th inst. reached me yesterday. Of course it made me very happy; but those pretty little playthings from D. M'Kinnon delighted me. I looked at them over and over, with as much pleasure as a miser over his hoard. But you must send me the

shawl. I shall be down at the races, and want to have the gratification of displaying it.

From my date and my last letter you imagine that Natalie is in town, but you are mistaken. I came down in the hope of meeting her, and to buy some furniture for the Oaks. Mari on business. I return to Waccamaw to-morrow morning early. My husband left me to-day for Columbia. He received your letter too late to answer it hence, but will do so from Columbia. As for me, I am in the height of bustle and confusion. Before seven this morning I had packed up two or three trunks, and unpacked them all again. Is not that industry? I write as if I were in a hurry. You may perceive the state of my head and house from the style of my letter. More from Hagley. Good-by.

THEODOSIA.

TO THEODOSIA.

Washington, December 6, 1803.

Since closing a letter to you last evening, I have received two more, 8th and 19th of November. You are a good girl to write so often. Oh, yes! I knew how much of a child you were when I sent the pretty things. Just such another child is *son pere*.

I write from my breakfast-table, having not yet been abroad, and having denied myself to everybody. I have, therefore, nothing now to say, and should not so soon have *troubled* you again, but for that part of your letter which speaks of the condition of your house. I hasten to say that, in my opinion, your house will not be a fit or healthy residence for your boy before the middle of April or 1st of May. The walls may, to the touch, appear dry in three or four weeks; but shut up any room for twelve or

twenty-four hours, and enter before it be aired, you will meet an offensive, and, as I believe, a pernicious effluvia; an air totally unfit for respiration, unelastic, and which, when inhaled, leaves the lungs unsatisfied. This is the air you will breathe if you inhabit the house. I could, perhaps, show chymically how the atmosphere of the closed rooms becomes thus azotic, but I prefer to submit to the test of your senses.

The shawl shall be ordered on, since you will risk it. Yes, go to the races, and appear to be amused. Be more social.

**A. BURR.**

TO THEODOSIA.

Washington, December 9, 1803.

When any thing amuses me, my first thought is whether it would not also amuse you; and the pleasure is but half enjoyed until it is communicated. The enclosed has suggested this prologue.

Perhaps I did not tell you that Kate made breakfast for Bonaparte one morning at my house: a breakfast *à la François*, at twelve o'clock. Of four ladies, she was the only one who spoke French, and she really seemed inspired. No Parisian could have been more fluent, graceful, or sprightly.

I have nothing to add of A. B., nor of any of the rest of the alphabet; and my breakfast being on table, farewell.

**A. BURR.**

## FROM THEODOSIA.

Clifton, December 1, 1803.

I have been here about a week, *cher pere*. Since your letter by Gibbs, have not received a line from you. I do not know whether to be most sorry or mad: a little of both troubles me at present; but, to punish you for your silence, I will not tell you which preponderates. Pray write to me immediately.

On the morning after writing to you in Charleston, I set off for the country, as determined on; and, since my arrival, have learned that Natalie was at my house in less than three hours after my departure. Sumter's business will not allow him time to come here, so that I shall go there. William drives me down in his curricule, and we shall set off to-day—this morning—now. The flat is in the canal; the curricule on board; my clothes not yet packed up; so good-by. Before I finish I must tell you that I have again heard from La Greque; she is astonishingly improved in appearance, so say others, and is very happy. She has sent me a Parisian bonnet, two beautiful handkerchiefs, and a pair of walking shoes. To the boy a French and English library; and to Mari a beautiful little golden candlestick, and wax tapers to light his segar.

My health is infinitely improved, and I attribute it to nothing but the continual bustle I have been kept in for three weeks past. What a charming thing a bustle is. Oh, dear, delightful confusion. It gives a circulation to the blood, an activity to the mind, and a spring to the spirits.

THEODOSIA.

TO THEODOSIA.

Washington, December 27, 1803.

Indeed, indeed, my dear little Theodosia, I will write to you very soon. Don't scold and pout so, and I will tell you *how* I visited Annapolis, and *how* I returned about an hour ago. All that, however, may be told in half a line. I went and returned in my own little coachee. But what I did and who I saw are other matters. Something, too, about Celeste, and something about Madame G., whom you are pleased to term the rich widow. This, I think, will keep you quiet a week.

Your letter, written on your return from seeing Natalie, is received. You are a dear good little girl to write me so; and of dear little *gampy*, too, so much, yet never enough. God bless thee.

**A. BURR**

FROM THEODOSIA.

Clifton, December 10, 1803.

Behold me again at Clifton; and, in good truth, I begin to be cloyed with the delights of bustle. William and myself left this the day after the date of my last. Some difficulty in crossing the horses delayed us till then. We reached Charleston on the second day, and I found Natalie delighted to see me, and still pretty. She has grown thinner, much thinner; but her complexion is still good, though more languid. The loss of her hair is, however, an alteration much for the worse. Her crop is pretty, but not half so much so as her fine brown hair. I write you all these foolish little particulars because you enter into them all, or, rather, are sensible of all their importance to us. Natalie has a lovely little daughter called after her.



Mr. Sumter is very affectionate and attentive to her, and polite to me. I like him infinitely better than I did. He is an amiable, good-hearted man, with talents to render him respectable. The people of Charleston have paid Natalie every possible attention; indeed, much more than I ever received.

Your letter of the 22d of November greeted me on my arrival here. The exchange has employed my thoughts ever since. Richmond Hill will, for a few years to come, be more valuable than Morris's; and to you, who are so fond of town, a place so far from it would be useless. So much for my reasoning on one side; now for the other. Richmond Hill has lost many of its beauties, and is daily losing more. If you mean it for a residence, what avail its intrinsic value? If you sell part, you deprive it of every beauty save the mere view. Morris's is the most commanding view on the island. It is reputed to be indescribably beautiful. The grounds are pretty. How many delightful walks can be made on one hundred and thirty acres! How much of your taste displayed! In ten or twenty years hence, one hundred and thirty acres on New-York island will be a principality; and there is to me something stylish, elegant, respectable, and suitable to you in having a handsome country-seat. So that, upon the whole, I vote for Morris's.

You, perhaps, have not yet heard of the death of J. M'Pherson. He expired on the road from town to his brother's. Poor Sally was with him, and John here. He has gone for her, and thus Hagley will be deserted for a long time.

Men are indubitably born monkeys. *Gampy* imitates me in every thing I do, and to-day I had a lesson not to be forgotten. He was playing in my room while I was dressing; quite at the commencement of my toilet, *toute a fais en desabille*, I ran out in the entry to call my maid; while engaged in that operation, I turned round and saw my brother's door opening within a few yards of me; girl-like, or rather babylike, I ran to my room, threw the door open violently, and uttering a scream, was at the other end of it in one

jump. The boy, who was busily engaged in eating mint-drops, no sooner heard me scream and appear frightened than he yelled most loudly, and, running to me, caught my clothes, clinched his fists, and appeared really alarmed for two minutes. It was not affectation. Do you think this trait ominous of a coward? You know my abhorrence and contempt of those animals. Really I have been uneasy ever since it happened. You see I follow your injunction to the letter. How do you like this essay? Have you enough of *gampy* now?

**THEODOSIA.**

**TO CHARLES BIDDLE.**

New-York, July 20, 1800.

**MY DEAR SIR,**

The President has hauled out into the stream. Your boys left my house yesterday and went on board. They have gained very much of my esteem and attachment by their amiable manners, their modesty, and good sense; the friendship which I formerly bore them on your account is now due to them on their own.

The more I reflect on the destination of these young men, the more I am pleased with it; and if I had but one son, I think I should place him in the navy.

If the object be ambition, our navy presents the best prospect of honour and advancement. A young man of merit may be sure of rapid promotion and opportunities of distinction. If the pursuit be wealth, still the navy offers the fairest and most honourable means of acquiring it.

But another reason, perhaps not often attended to nor generally believed, would weigh very much with me. The young men of our day, those, I mean, who are deemed to be in the higher ranks of life, are addicted to gross and vicious habits, which are often ruinous to their health and constitutions, and always corrupt the morals and enfeeble the mind. In naval life they are certainly much less exposed to these vices. The profession calls for the active exertions both of body and mind; and I have always remarked that sailors, I mean those among them who are men of education, and are stimulated by motives of honour or ambition, have a generosity of temper, a frankness and manliness of character, which is much more seldom seen in other orders of life.

I am, therefore, firmly persuaded that, situated as our country now is, a young man of activity and talents has the best chance for health, fortune, and honour by entering the navy. Your sons are under peculiar advantages, for you may be assured that they will find not only a friend, but truly a parent in Captain Truxton. We have talked much about them, and I am happy to find that his dispositions towards them are such as you could wish.

I am, dear sir,

Your very affectionate friend and servant,

**A. BURR.**

Recollect, if you please, the Trenton bridge, and find me a copy of the law—any information with regard to the difficulties—the expense, and probable income—also the doings of the commissioners, if indeed they have done any thing.

FROM JAMES BIDDLE.

Tripoli Prison, November 29, 1803.

MY DEAR SIR,

I sit down to fulfil the promise made at parting, of writing you upon our arrival in the Mediterranean. I had flattered myself with the pleasure of hearing from you frequently during the long and happy cruise which I had contemplated; for, although the greater part of our time was to be spent far up the Mediterranean, where opportunities to America rarely occur, yet I should have written you from every port we visited, sealed, and forwarded my letters as a conveyance offered. But fate, it seems, had cruelly ordained that we should not realize those prospects of pleasure and gratification which we had, with so much certainty, calculated upon; and that this cruise, which had promised to be so agreeable, should be suddenly terminated, in its very commencement, by events the most distressing to ourselves and our friends, and which may involve our country in difficulties and perplexities with this regency.

For the unfortunate events of the thirty-first ultimo, the lamentable day which terminated in the loss of our ship [2] by being wrecked on rocks within a few miles of this town, and in ourselves becoming prisoners of war to the Bashaw of Tripoli (I should have said slaves, for we certainly are in the most abject slavery, our very lives being within the power and at the very nod of a most capricious tyrant), let me refer you to statements which I presume you will already have seen before the receipt of this. Suffice it to say, that the shoal we run upon was never laid down on any chart yet published, nor ever before discovered by any of our vessels cruising off this coast; consequently, the charts and soundings justifying as near an approach to the land as we made, not the smallest degree of censure can be attached

to Captain Bainbridge for the loss of the ship. That, after having grounded, every effort was made, and every expedient tried, without effect, that could have the remotest probability of getting her afloat; and that, after having sustained the fire of the enemy's gunboats for upward of four hours, and a re-enforcement approaching from the town, while our guns were rendered almost useless from the careening of the ship, there seemed no alternative left but the cruel, mortifying one of hauling down our colours. Let me also tell you that the treatment we received from these savages was such as raised our utmost indignation. Our swords were snatched from us; the money, and every thing in our pockets was stolen; some had their boots pulled off to examine if something was not concealed there; and some had their very coats stripped off their backs, which the barbarians exultingly put upon themselves; and, as if the trophies of some signal victory, seemed to triumph in obtaining what fortune alone had put them in possession of. To murmur at their treatment was only to expose ourselves to repeated and more provoking insults; to resist was only hazarding our lives. We were therefore obliged, however degrading in our own opinion, to submit to these lawless, unfeeling robbers.

We were all conducted, amid the shouts and acclamations of the rabble multitude, to the palace, and there ushered into the presence of the mighty bashaw, who, seated in state, with his council about him, and surrounded by guards, awaited our coming. He asked a variety of questions, principally concerning our ship and our squadron; and, after having us all paraded before him, and taken a full survey of each of us, at which a gracious smile appeared upon his countenance, expressive of his inward satisfaction at so unexpected a piece of good fortune, we were carried by our guards to the house allotted for us during our imprisonment in this country. It was the American consular house formerly occupied by Mr. Catchcart.

Here we were left undisturbed to our own reflections till the fifteenth instant. A few days previous to this the prime minister had written to inform Captain Bainbridge that a letter had been received from the Tripolitan captain of the ship captured by the U. S. Frigate John Adams, in which he complained of being ill treated by Captain Rogers; that, in consequence of this, he should be under the necessity of retaliating such ill treatment upon us, unless Captain B. would immediately write to Commodore Preble, and *order* him to deliver up all the prisoners he had, in which latter case we should continue to be treated as heretofore. No exchange was proposed, but we were to deliver up seventy-eight prisoners merely to ensure our not being cruelly treated. Captain B. told him that he would write to Commodore Preble, and acquaint him with their demands; but as to ordering or requesting him to deliver up the prisoners in question, he would not do it. We were, therefore, conducted to the castle, under the idea of being put to work. The change, indeed, was an unpleasant one, from a large, commodious house, to what they called a castle, which was, in fact, a most loathsome prison. We were crammed into the same room with all our ship's company—how well calculated to contain such a number, you may be enabled to judge, when I tell you that the place was about eighty feet by twenty-five. How comfortable, when I tell you that the only place to admit the air was through a small aperture in the top of the house, grated over, with no floor, nor a single article of furniture, so that, when we were tired standing up, we were obliged to lay down on the ground. While there, Lisle, the admiral, *accidentally* passed, and was very much *surprised* at our removal. He came to inquire the cause, observing that he had understood a letter was received, mentioning that the Tripolitan prisoners had been illy treated by Captain Rogers. Captain Bainbridge told him, that if such a letter had been written, the writer had asserted a most malicious falsehood; that the laws of the United States absolutely forbid any prisoners being illy treated; and that having grounded, every effort was made, and every

expedient tried, without effect, that could have the remotest probability of getting her afloat; and that, after having sustained the fire of the enemy's gunboats for upward of four hours, and a re-enforcement approaching from the town, while our guns were rendered almost useless from the careening of the ship, there seemed no alternative left but the cruel, mortifying one of hauling down our colours. Let me also tell you that the treatment we received from these savages was such as raised our utmost indignation. Our swords were snatched from us; the money, and every thing in our pockets was stolen; some had their boots pulled off to examine if something was not concealed there; and some had their very coats stripped off their backs, which the barbarians exultingly put upon themselves; and, as if the trophies of some signal victory, seemed to triumph in obtaining what fortune alone had put them in possession of. To murmur at their treatment was only to expose ourselves to repeated and more provoking insults; to resist was only hazarding our lives. We were therefore obliged, however degrading in our own opinion, to submit to these lawless, unfeeling robbers.

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might sacrifice the whole of us; but the United States had men and ships enough to send in our places.

In the evening we were reconducted to our former house, probably in consequence of the interposition of the Danish and French consuls in our behalf. The reason of our removal to the castle, as given out to us, was in order to retaliate upon us ill treatment which they say their prisoners received from us. A more probable reason was this:—

When our ship was plundered, all our chests and trunks, with every article of clothing, was carried off. The prime minister, with the view of making money, bought in at reduced prices as many of our clothes as he could collect, and offered them to us for twelve hundred dollars. Captain Bainbridge would not purchase them. Disappointed in his expectations of pecuniary profit, and, instead of gain, sustaining loss, he probably sought consolation in his disappointment by increasing the weight of our misfortunes. The prime minister and admiral are both renegadoes, the former a Prussian, the latter a Frenchman.

How long we are to remain in this savage country God only knows. No doubt it must depend in a great measure upon the exertions that are made in our favour. We rely with implicit confidence that the government of our country will make the most speedy, as well as effectual measures for our release. While we are here, our lives must be in constant jeopardy and uncertainty. Adieu. Remember me affectionately to Mrs. Alston; and believe me,

With much esteem and respect,

Your most obedient servant,

**JAMES BIDDLE.[3]**

Footnotes:

1. Subsequently Mrs. Commodore Decatur.
2. The Philadelphia.
3. Now Commodore Biddle, and son of the late Charles Biddle.

## **CHAPTER XV.**

An amendment to the Constitution of the United States having been proposed by Congress, and doubts existing as to the manner in which it should be authenticated and transmitted to the several states, Mr. Burr, as president of the Senate, addressed a note on the subject to the secretary of state, Mr. Madison, and to the secretary of the Senate, Mr. Otis, to which the following replies were made.

### **FROM MR. MADISON.**

Department of State, December 11, 1803.

J. Madison presents his respects to the vice-president, who will find in the enclosed the information afforded by the office of state on the subject of former amendments to the Constitution. Mr. Beckley recollects, that in one of the instances, copies equal to the number of the states were made out in the clerk's office of the House of Representatives. In the other, I understood from him that the copies were not furnished to the executive; but it does not appear, from any thing in the office of state, whether this was or was not the case.

### **J. WAGNER TO MR. MADISON.**

Department of State, December 10, 1803.

**DEAR SIR,**

I find that all the amendments to the Constitution, though none of them are signed by the president, have been enrolled in this office. I do not find that the first set was forwarded by this department to the states, though the president was requested to communicate them, as appears by the journals. The last amendment was forwarded by the secretary of state, by direction of the president, to the governors of the states.

The vice-president called this morning and stated two questions, which I was then unable to answer, viz., Whether the enrolment took place here, and whether the amendments were forwarded to the states from hence?

It is to enable you to give him satisfaction on these points that I have written this. With great respect, your obedient servant,

**J. WAGNER.**

**FROM SAMUEL A. OTIS.**

Senate Chamber, December 15, 1803.

**SIR,**

In answer to the note you did me the honour to send this morning, my first impression was that the amendments for each state should be enrolled in the office of the secretary of the Senate, as the resolution commenced in Senate. This impression arose from the proceeding in the *first* instance, when the enrolments were made in the House of Representatives, where the

amendments, commenced. This was at a time when the secretary of Senate and clerk of the House of Representatives were empowered to publish the laws. But, since the establishment Of the department of state, the amendments to the Constitution have been enrolled in the office of that house where they originated. This enrolment, as a bill, hath been sent to the President of the United States, with a joint resolution that he would forward authenticated copies. This was the case in March, 1794, as you will see by the journals of Senate. To confirm this idea, a resolution is on the table of the House of Representatives for the above purpose. If precedent is of avail, it certainly devolves, in the distribution, on the office of state.

Hearing there was some uncertainty, I have, through a friend, transmitted my opinion to the secretary of state.

Very respectfully,

SAMUEL A. OTIS.

FROM GEORGE DAVIS. [1]

Leghorn, December 3, 1803.

A letter to my brother [1] of this date will give you a detail of my pursuits since leaving Malaga until my arrival in Leghorn. I have only to say of Tuscany that two months have passed away in endeavouring to repair the ravages of Italian physicians. My pursuits, though not profitable, have still been flattering to myself. I am at the house of F. C. Degen, who married Miss Russell, of Boston. She is acquainted with you, and often retraces the hours you spent with Mrs. Russell. I may add, that I have been not only a welcome, but most happy guest of this worthy family for six weeks. My hours of relaxation have not been employed in playing the *cavallero*

*cervante*, but in acquiring the Italian; and, with the assistance of a tolerable tutor, I am making great progress. Pisa and Lucca I have been at twice, and about the 20th of this month I shall visit Florence. From thence I proceed to Rome, Naples, Palermo, and Malta, where I am directed to join the commodore, he having given me furlough for the purposed route.

I refrain speaking of those places *all the world* have seen. Should my expectations be realized when at Rome, I shall certainly offer you my first essay. Nothing has yet been done in the way of making me rich. The hospital establishment lays over till spring. Commodore Morris offers to leave me as chargé des affaires for Tripoli in the event of peace. If nothing better can be done, I will remain. Eaton has resigned the consulship of Tunis. Who will be appointed? Rufus King is expected daily in Tuscany. He sails early in the spring for the United States.

I ought not to omit mentioning Mrs. Derby, who arrived here a few days since from Florence. I have spent some pleasant hours with her. She is unaffected and untinged with the licentious manners of Paris and London. We shall meet at Rome. I yesterday dined with Mr. Pinckney, our minister for the court of Spain. He wants, I think, *ministerial dignity*, whatever may be his talents.

I have written you several times, and although this gives me no claim to expect a letter, yet, when you learn that I have not received a line from the United States since leaving it, you may judge how great is my desire, and what would be my gratification in hearing from you. The beautiful Mrs. D. is in the parlour, and I have been sent for three times. With perfect respect,

GEORGE DAVIS.

FROM CHARLES BIDDLE.

Philadelphia, December 12, 1803.

If you can, without inconvenience, let me know how James stands as a midshipman, I wish you would do it. Having lost a brother, a son, and two nephews in the service, I have some right to expect James will not be neglected. I have not the honour of knowing the secretary of the navy, but I am told he is a very worthy and respectable gentleman.

Yours,

CHARLES BIDDLE.

FROM ROBERT SMITH, SECRETARY OF NAVY.

Washington, December 31, 1803.

SIR,

It was my intention to have had the pleasure of calling upon you for the purpose of having some conversation with you about Mr. Biddle, midshipman. Not knowing what is the precise object of his father's inquiries, my communication may not afford the expected explanations. I can only state to you, at present, that the official reports which have been made of him by his commanding officers are highly favourable, and that, of course, I have a strong disposition to afford to him every opportunity of improvement, and to give him every advancement in the navy that can be done consistently with the just pretensions of his fellow-officers.

We regret sincerely that the weather has deprived us of the pleasure of presenting, in person, our reciprocal compliments and solicitations of the season.

Respectfully yours,

**R. SMITH.**

FROM ROBERT G. HARPER.

Baltimore, December 20, 1803.

Mr. Carroll, my dear sir, requests me to assure you that it will give him very particular pleasure to see you at his house on Christmas day, and as many days before and after as you may find it agreeable to favour him with your company. He regrets that there will not, at that time, be a room which he can offer you; but, in every thing except the article of lodging, he hopes that you will be his guest while you find it agreeable to remain at Annapolis.

Yours truly,

**ROBERT G. HARPER.**

FROM J. GUILLEMARD.

February 22, 1803.

SIR, You will not, I hope, think me over intrusive when I take the liberty of introducing to your attentions and kindness the Earl of Selkirk, a young



nobleman who has a project of making a settlement for some of his countrymen on the western side of the Atlantic. I need say nothing more of him. His merits will speak for themselves; and give me leave to add, that I am happy in this opportunity of expressing my grateful sense of your kindness and attention to me during my residence in the United States. With great respect, your obedient servant,

**J. GUILLEMARD.**

FROM JOHN VAUGHAN.

Wilmington (Delaware), January 3, 1804.

**DEAR SIR,**

I cannot resist, until morning, the pleasure of acknowledging how much I am indebted to you for an acquaintance with Doctor Peter Irving and Mr. Bishop. I found them all you intimated, and much more; and sincerely hope the reciprocation you anticipated may have taken place. We spent the evening with Mr. Dickinson, and, I believe, with mutual pleasure; and they have just left my house, Dr. Irving the last. We have many fine tales of the satisfaction inspired by a common sense of *public rights*, but I query whether a just sense of *political wrongs* do not bind men more closely together.

A very curious game, indeed, has been played here since you passed through our borough. A special caucus has been held, to counteract the political machinations which are to arise out of my pleasurable interview with you; but the clamour is unexpectedly checked. Some wicked man in New-York had the assurance to send to Mr. Dickinson and myself each a copy of a pamphlet, entitled, "*An Examination, &c., by Aristides*," and, after

perusing it with equal pleasure and avidity, I had the imprudence to hand it to a disinterested republican, who read it with the highest satisfaction. In one week it has passed through several hands, and has excited no inconsiderable interest. Dr. Irving has promised me a supply as soon as practicable.

I am authorized to say that Mr. Dickinson was never prejudiced, and is now highly gratified. He indeed regretted that I had not assured you, when here, that his opinion was untarnished by the malignant clamour of demagogues.

It is a more than lamentable fact, that factions have arisen up in several states which are determined to prostrate every man who might be capable of opposing them, or dared to lisp one expression of dissent to the machinations of favouritism. But, though I have borne too much, I am unalterably resolved to adhere inflexibly to the ground I have taken, and stand or fall in the honest path of political rectitude.

There is a crisis in the affairs of men which sooner or later unveils the hidden features of selfishness; and there is no position in which my opinion is more fixed than in the utility of a firm union of honest men. If the cabals of the day be not speedily arrested, where shall our political bark be anchored? The Sylla of oligarchy, or Charybdis of disorganization must be the portion of our government. Of all tyrannies, oligarchies are the most delusive and dreadful, and anarchy is equally to be deplored.

Wishing you, my dear sir, complete retribution for the past, and happy in the reflection of having preserved myself uncontrolled by artifice,

I am sincerely your friend,

**JOHN VAUGHAN.**

FROM JOHN DICKINSON.

Wilmington, Delaware, 4th 1st mo, 1804.

MY DEAR FRIEND,

Thy letter of the 30th of last month was delivered to me yesterday by Abraham Bishop, and I desire thee to accept my thanks for introducing one to the other.

He was so kind as to spend some hours with me, and I was exceedingly pleased with the traits of character displayed in the course of our conversation. He appears to me to be a man who possesses great and well-directed energies of mind. I rejoice in the prospect he opened to me of the advancement of republican principles and measures to the eastward.

I am thy sincere friend,

JOHN DICKINSON.

TO CHARLES BIDDLE.

Washington, January 2, 1804.

Last evening I received the answer of Robert Smith, of which a copy is enclosed. It may be satisfactory to you to know, *officially*, that James is favourably spoken of, and is in estimation with the government. A more precise answer could not, perhaps, be expected from a minister. The application may secure him from being forgotten, and the answer from being prejudiced in any future arrangements. He shall be informed of your precise object by

A. BURR.

TO THEODOSIA.

Washington, January 3, 1804.

This is only to assure you that I am in perfect health. That General Jackson is my good friend; that I have had no duel nor quarrel with anybody, and have not been wounded or hurt.

Jerome Bonaparte, wife, maids of honour (Miss Spear *et al.*), &c., &c., will be here to-morrow. There are various opinions about the expediency, policy, decency, propriety, and future prospects of this match. I adhere to Mrs. Caton. To be sure the French laws say something on this subject. As you are a learned lady, I will not say what; but, if you avow ignorance, you shall have all I know: not in my next, for Annapolis is yet on hand. Indeed, matters thicken so fast, that I may possibly leave this within twenty days to go northward, without saying a word about it. I hope the shawl (or cloak) has arrived safe, and that it may be so displayed as to add beauty to grace and grace to beauty.

A. BURR.

TO THEODOSIA.

Washington, January 4th or 5th, 1804.

How could I forget to tell you the very important event of the marriage of Jerome Bonaparte with Miss Patterson.

It took place on Saturday, the 24th ult. Mrs. Caton approves of this match, and therefore A. B. does, for he respects greatly the opinions of Mrs. Caton.

I like much your reasoning about Morris's place and Richmond Hill. Yet would not a permanent residence in town for some, for many, for all reasons, be better? La G. is much better than I had heard—*d'un certaine* age, and well-looking, considering that circumstance. Cheerful, good-tempered, the best of housewives, and, as it is thought, *willing*.

Celeste—(for this I begin a new line) Celeste will be seen on the way home, but that La R. spoils every thing in that place. La Planche; that you will never find out. I bet you thirty guineas against M'K.'s shawl. By-the-by, the shawl is ordered on; at this moment, perhaps, on the perilous ocean, and unensured. La Planche, I say, was seen on our way hither. All right and pretty; improved since the last inspection. Great friend of La R.; *tant pis*. Lex et ux. ill suited; mischief brewing. *Gamp*, the mutual friend and confidant.

Now for the trip to Annapolis. No, not now either. It is past two o'clock in the morning (no matter of what day, for I don't intend to date this, seeing it will equally suit all dates), and I am (not) sleepy. Yet I will go to bed, and not be kept up by any such baggage. So good-morning. Poor little Natalie, I have not written her a line. What's the matter I don't write to Natalie any more? I say I will go to bed. The fire is out, and I have no wood.

A. BURR.

TO PEGGY GAITIN (A SLAVE).

Washington, January 4, 1804.

You may assure the family that I never was in better health; that I have not been wounded or hurt, and have had no quarrel with anybody. I received your letter of the 29th this evening. Let nothing hinder you from going to school punctually. Make the master teach you arithmetic, so that you may be able to keep the accounts of the family. I am very much obliged to you for teaching Nancy. She will learn more from you than by going to school.

I shall be at home about the last of this month, when I will make you all New Year's presents. Tell Harry that I shall expect to find a good road up to the house. Tell me what Harry is about, and what is doing at Montalto. Sam and George are well.

You must write to Mrs. Alston about Leonora's child. Enclose your letter to me. I hope little Peter is doing well.

**A. BURR.**

TO THEODOSIA.

Washington, January 17, 1804.

Your kind wishes on the new year are received this evening in your letter dated 3d January, 1803. No matter what date, such things are always welcome. I don't believe it came into my head to say Happy New Year! my heart is so full of good wishes for you every day in the calendar. Yet I like to see attention paid to all *les jours de fête*. I am very sorry for poor Charlotte, and do most sincerely sympathize with Sally. She must know my great attachment for her brother.

Of my plans for the spring nothing can be said, for nothing is resolved. It is not probable that I shall be able to visit you; but I shall expect you very

early. If you are to come by land, I will meet you on the road; perhaps in this place, perhaps in Richmond. I do not now see that it will be possible for me to visit South Carolina. Now, what are your plans? The shawl was ordered on the very day I received your commands; whether it has actually been sent I know not, but most probably it has.

Of the boy you never say enough. Nothing about his French in your last. I hope you talk to him much in French, and Eleonore always. A letter from Peggy says that Eleonore's boy was well on the 13th. Your icehouse and vaults are finished. Of Annapolis I find the newspapers have anticipated me. They will tell you where I dined, and supped, and whom I saw.

Madame Bonaparte passed a week here. She is a charming little woman; just the size and nearly the figure of Theodosia Burr Alston; by some thought a little like her; perhaps not so well in the shoulders; dresses with taste and simplicity (by some thought too free); has sense, and spirit, and sprightliness. A little of the style and manner of Susan Smith.

Mrs. Merry [2] is tall, fair, fat—*pas trop*, however. No more than a desirable embonpoint. Much of grace and dignity, ease and sprightliness; full of intelligence. An Englishwoman who has lived much in Paris, and has all that could be wished of the manners of both countries. An amiable and interesting companion, with whose acquaintance you will, next summer, be much gratified. She proposes to pass some time in New-York.

I want a French translation of the Constitution of the United States, and, for the purpose, send you a copy in English. It will, I fear, be a great labour to you; but I cannot get it done here, and it may not be useless to you to burnish up your French a little. Do you ever hear from Natalie? I have not yet written to her. How scandalous.

You do not say whether the boy knows his letters. I am sure he may now be taught them, and then put a pen into his hand, and set him to imitate them. He may read and write before he is three years old. This, with speaking French, would make him a tolerably accomplished lad of that age, and worthy of his blood.

A most bitter cold day. *Bon jour*.

A. BURR.

TO JOSEPH ALSTON.

Washington, January 18, 1804.

I have been greatly flattered by the applauses bestowed on your speech at Columbia. Send me half a dozen copies. Why have you not already done it?

The papers herewith enclosed will show you our possession of Louisiana, and the manner of it. The Spanish government will endeavour to limit our west bounds to the Mississippi, with the addition of the Island of Orleans only; on this consideration that government would still hold on the west bank of the Mississippi, from the river Iberville to the 31st degree of latitude, an extent of one hundred miles.

In attempting to legislate for our newly-acquired territory, it is doubted whether the Louisianians can be received into the Union without an amendment to the Constitution. Consider of this. Again, are they citizens of the United States, or can Congress make them such? A bill establishing a form of government is now before the Senate; when it shall have passed that house I will send you a copy. It is at present in too crude a state to merit your notice.



The newspapers will have informed you that a committee has been appointed in the House of Representatives to inquire into the official conduct of Judge Chace. Peters is associated with him, but he is not the object, and the insertion of his name was accidental. This inquiry, as is obvious, is with a view to an impeachment. If it result in an impeachment, and an immediate trial be had, Congress will sit till May or June. Yours very affectionately,

**A. BURR.**

TO CHARLES BIDDLE.

Washington, January 20, 1804.

Dear Sir,

I thank you for the letter and the newspaper; for a short letter too, written on your return from Lancaster, which has not yet been answered.

It is seriously my intention to visit you next week, if I can get away, which will depend a little on the state of business in Senate. The association of Peters with Chace was, I believe, accidental. It was moved (I think by one of your members), and, as they sat together on the bench, it was not, at the time, seen how they could be separated. I presume it affords him a new subject for wit. On receipt of this, write me one line, saying when Mr. R. will leave Philadelphia. God bless you.

**A. BURR.**

TO CHARLES BIDDLE.

Washington, January 23, 1804.

**MY DEAR SIR,**

When I last wrote you (about Thursday, I think), I felt the approaches of a headache, which I concluded would be, as usual, the torment of twenty-four hours only. On the contrary, it has pursued me without intermission. I have undergone cathartic, emetic, and phlebotomy, operations not experienced by me in twenty years, and all to no purpose. The pain continues, but to-day has allowed me to leave my bed for an hour or so at a time. At one of these intervals I now write to you to say that this incident has rendered my journey doubtful, though on the day I last wrote you I informed the Senate that I should have occasion to be absent for two or three weeks.

It is extraordinary that all these medical experiments, and a total abstinence from food for three days, has produced no diminution of strength or spirits. At this instant I feel able to start for Philadelphia (the snow eight inches deep) not withstanding. It will, however, be impossible to move before Thursday, if at all.

January 24.

After writing, last evening, the nonsense on the other page, I recollected that the mail had closed. This postscript is added to say that I am much better to-day; but little pain, yet my head too weak to bear the least motion, and fear it will not allow me to travel for several days.

I. Brown is again in the chair as president of the Senate. It was a hard election. Ten or twelve ballotings. The Virginia interest supported Mr. Franklin. Yours,

**A. BURR.**

## TO NATALIE DELAGE SUMTER.

Washington, January 25, 1804.

Your safe arrival, my dear Natalie, gave me the greatest joy. Theodosia has given me a detailed account of yourself and your lovely little girl. All as I could wish. I could never realize that you were not lost to me till I heard that you were actually on American ground. Your letter relieved my anxieties and fulfilled my hopes, by assuring me of your unabated affection. But when or where, I pray, are we to meet? Engage Mr. Sumter to come and pass the summer with me at New-York; by the summer I mean from the 1st of May till the middle of November. Theodosia has told you that I am wholly at Richmond Hill, and that her house is only five miles off. You will review with pleasure the scenes of your sportive childhood, and you will gratify the fondest wishes of your affectionate friend and father,

A. BURR.

P. S. I enclose some papers for the amusement of your husband. Pray present them to him with the assurance of my respectful and affectionate regard. You, too, my dear Natalie, will read with instruction and amusement the account of Louisiana.

A. B.

## TO THEODOSIA.

Washington, January 25, 1804.

A letter from Mari, without a line from Theodosia, is novel. If the compliment should be returned, I should bring an old house about my ears.

But no apologies or explanations.

I hate them, and the matter will be forgotten before they can reach me.

I have been a week confined to my room by a headache, but there are no mortal or alarming symptoms. On Saturday I take a ride to Baltimore, where I am to dine with Madame Bonaparte. Then on to Philadelphia; thence, perhaps, to New-York, and here again by the time your answer can arrive. Have not yet written to Natalie. How shameful!

Fine sleighing here. Eight inches snow; clear and cold. Having nothing more at present of great importance to add I remain yours, &c.,

A. BURR.

P. S. Since the conclusion of this performance I have set down in a rage, and written a *pretty* little letter to Natalie. Lord, how much easier and lighter I feel.

A. B.

TO NATALIE DELAGE SUMTER.

Washington, January 27, 1804.

The *brochure*, containing proclamations and manifestoes regarding Louisiana, was intended to accompany those which I lately transmitted to you for Mr. Sumter.

You will be proud, as a New-Yorker, to see that the first attempt to create a taste for painting and sculpture has been made in our city. We have about forty busts and groups. Lailson's theatre (west side Greenwich-street) has

been fitted up for their reception. It forms a circular room of about sixty or seventy feet diameter, lighted by a dome, and to us, who have seen nothing better, the thing, of course, looks well. Come and see our infant efforts.

I am just leaving this place for a few days on a visit to Philadelphia; a visit, however, of business only. On my return you will hear again from me. In the mean time, pray write me when I may expect you at New-York.

**A. BURR,**

TO THEODOSIA.

Washington, January 29, 1804.

There is no end to the trouble such a baggage gives me. Another thing occurs, which, forsooth, must be sent to her too. It would not, perhaps, merit so high an honour as that of being perused by your——eyes and touched by your fair hands, but that it is the production of a youth [3] of about nineteen, the youngest brother of Dr. Peter Irving, of New-York.

*Salut.*

**A. BURR.**

TO A. R. ELLERY.

Washington, January 29, 1804.

**DEAR SIR,**

Your letter of the 6th of January is received at the moment that I am leaving this city on a tour to Philadelphia for two or three weeks. I can, therefore, only acknowledge it. The map was a most acceptable present. I value it greatly as the work of Madame Ellery; a circumstance which my vanity has not allowed me to conceal.

You may rely on my zeal and my good will. You can estimate their importance. On my return you will hear again from me.

The bill, or project of law, herewith enclosed, is now under debate in the Senate. You will, therefore, consider it as a project merely, not yet a law. In the course of this discussion it may receive important alterations, and may be finally rejected. Do not, therefore, suffer any copy to be taken of it, still less to get into newspapers, if any you have. You may show it to whom you please. If you have any acquaintance with Mr. Daniel Clarke, pray let him see it. I wish his and your opinions, though they may, probably, be received too late to influence the result. Mr. Clarke is not known to me personally, but very much through our common friend General Dayton. With respectful compliments and thanks to Mrs. Ellery, I am your friend,

A. Burr.

## TO THEODOSIA.

Havre de Grace (Susquehannah), January 30, 1804. In a former letter I told you we had eight inches snow at Washington. On Saturday last, 28th, fell six or eight inches more, so that we had a foot depth of snow, cold weather, and, of course, good sleighing. The vice-president having, with great judgment and science, calculated the gradations of cold in different latitudes, discovered that for every degree he should go north he might

count on *four and a half inches* of snow. Thus he was sure of *sixteen and a half inches* at Philadelphia; *twenty-one inches* at New-York, and so for all the intermediate space. Hence he wisely concluded to take off the wheels from his coachee and to set it on runners. This was no sooner resolved than done. With his sleigh and four horses he arrived at Baltimore at early dinner. Passed the evening with Madame Bonaparte; all very charming. Came off this morning; fine sleighing. A hundred times he applauded the wisdom of his plan. Within *six miles* of the Susquehannah the snow appeared thin; within *four*, the ground was bare. It had not thawed, but none had fallen. He dragged on to this place, and here he is in the midst of the most forlorn dilemma. This is palpable fraud in *monsieur le tems*, to hold out such lures merely to draw one into jeopardy. Having neither wife nor daughter near me on whom to vent my spleen, renders the case more deplorable. It is downright desperation.

After pacing the floor with a very quick step for about five minutes, I determined to call for a good dinner and a bottle of wine, and, after the discussion whereof, I hope to be more able to meet the exigence. You shall presently know.

New-York, February 8, 1804.

Just arrived—all well. The dinner and wine mentioned t'other side operated so happily, that, before the repast was concluded, I ordered my horses to the door, drove over the Susquehannah on the ice, and came that night to the head of Elk. Next day to Chester, having seen friend Dickenson *en passant* (the daughters not visible, on account of the loss of their mother, who died *last summer*), and breakfasted in Philadelphia on the morning of the 1st of February. The ebullition of the 30th January was intended to have been finished at Havre de Grace and sent to the postoffice. I came off in too

much haste, and, seeing it now in my writing-case, I thought it a pity that so precious a morceau should be lost to the world.

*Tout le monde* is marrying at Philadelphia. You will not have a *single single* (decipher that) acquaintance there on your return. Yes, La R., La Planche, and La Bin. may remain. I went to a wedding supper at Mrs. Moore's, whose daughter has married Willing—could any one suppose she was *unwilling*? Execrable! Mr. Boadley died a few days ago. Madame of course was invisible. Ann Stuart will, most likely, marry P. C.—very well. She is very pretty. Mary Rush just married Manners, a captain in the British army. She looked quite melancholy, being on the point of setting off for Niagara, where her husband is stationed. Binney and Keene look better than I ever saw them. Keene is learning the harp. They are at lodgings in town, and, happening to be near my quarters, I saw them two or three times a day.

I left Philadelphia yesterday, and arrived, as you see, after a very pleasant journey. Fine, mild winter weather. Roads hard and smooth. Note. I left my runners and got wheels at Philadelphia. How could I omit Celeste and her sisters, whom I saw several times? What of that? Pray can it be true that she was engaged to a young man whom we knew and valued, and who lately died in your country? To-morrow I am to see La G. Pray for me.

To-morrow, February 9th.

A most ugly northeast storm of rain, and hail, and mist. Shall not see La G. to-day. God bless thee.

A. BURR.

TO THEODOSIA.



New-York, February 16, 1804.

In one hour I shall be on the west side of the Hudson river, and in the mail stage. Goldsmith is the very book I should have recommended. A critical knowledge of historical events may assist a statesman or form a pedant. For you, something less will do, and something more is necessary. La G. will not do. I have written twice to Natalie.

Say to Mari, the Clintons, Livingstons, &c., had not, at the last advice from Albany, decided on their candidate for governor. Hamilton is intriguing for any candidate who can have a chance of success against A. B. He would, doubtless, become the advocate even of Dewitt Clinton if he should be the opponent.

**A. BURR.**

## TO THEODOSIA.

Baltimore, February 21, 1804. I left New-York on the 16th. The roads were so very bad that I sent back Sam, George, and the horses from Trenton, and came on in the mail stage *sans valet*. One great discovery has been made by the experiment, namely, that George is not only useless on the road, but requires abundance of my care, so that, in fact, I have less trouble without him.

On the way I saw Celeste, and renewed, with some levity, a certain subject. It excited an agitation perfectly astonishing. The emotion was so great as to produce universal tremour, which attracted the notice of the company (there was a room full); I was exceedingly alarmed and perplexed, having imagined the denouement of last summer to have been conclusive, in good faith. Undoubtedly there is some secret agent, some underwork,

perhaps restraint, of which I am ignorant. I strongly suspect that she has done violence to her feelings. Shall I or shall I not investigate this point? Humph! heighho!

I have just been visiting Monsieur Dubourg, president of the French College. The visit, indeed, was to the institution rather than to the man. Both please me greatly. It (the college) seems to me to possess some advantages over any other in the United States; more decorous subordination. The living languages, French and Spanish, may there be learned by association and habit. The French, the Spanish, the English (I mean the learners of those languages) are each in separate apartments. Not a word is spoken but in the language intended to be taught. It is even the medium of instruction for every other branch. The Senats speak Spanish fluently. *Bon soir.*

**A. BURR.**

TO THOMAS SUMTER, JUN.

Washington, February 27, 1504.

**DEAR SIR,**

On my return from New-York a few days past, I had the pleasure to meet here your father, and to receive your letter of the 21st of January. It is not probable that it will be in my power to visit South Carolina this spring. If, fortunately, I should find leisure for a journey which I have so much at heart, my first object would be Statesburgh; but as Mr. and Mrs. Alston will be in New-York early in the season, I entertain hopes that this, with other motives, may induce you to pass the summer and autumn with me. Yet great as is my solicitude to see your wife and child, to renew my acquaintance

with you, to tender you my friendship and affection, and to claim a return, I would by no means urge a measure inconsistent with your interest. Of this you only can judge. I should not, perhaps, have repeated the invitation expressed in my last letter to Natalie, but that I learn from your father that her health has suffered materially. Hence I am filled with apprehension of the effects of your long summer on a northern constitution already debilitated.

Presuming that you hear from your father as much as you desire to know of the doings of Congress, I abstain from those subjects. Be assured of the great consideration and esteem with which I am your friend,

**A. BURR.**

TO CHARLES BIDDLE.

Washington, March 3, 1804.

Your letter of the 28th February, covering a newspaper, was received last evening. It cannot yet be settled whether there will be commissioners to run the boundary line with Spain; but I will mention the thing to the Smiths, who still profess friendship for General Wilkinson. My direct interference otherwise would not probably be useful to him. Please to put the enclosed, for Truxton, in the postoffice. One of his friends here (not a man in power, for he has, I believe, no such friend) thinks he will certainly be called into service; and he states to me pretty plausible grounds for the opinion. Yet I doubt, which is perhaps the result only of my ignorance.

I shall be with you the last of next week, or, at farthest, within ten days, on my way home.

Very affectionately yours,

A. BURR.

TO FREDERIC A. VANDERKEMP.

Washington, March 6, 1804.

SIR,

Immediately on the receipt of your letter of the 15th of February, I wrote to Mr. Madison for the information you desired. It affords me great pleasure to learn that you are engaged in a literary pursuit so congenial with your taste and your talents. If I can in any way promote your views in this or in any other instance, I entreat that you will command me, *without apology*. I have now the satisfaction to enclose you Mr. Madison's answer, which I this day received.

You speak of a letter written to me some time ago-on the subject of Captain Ingraham's voyage. It is impossible, sir, that I can have been guilty of so gross an inattention as to have permitted a letter from you to have remained unnoticed. I have no recollection of that which you mention, and am persuaded that it never came to hand.

Allow me to repeat the assurance of the very great consideration and respect with which I am

Your obedient servant,

A. BURR.

TO WILLIAM P. VAN NESS.

Washington, March 7, 1804.

Friday last was the day assigned for the appearance of Judge Pickering on his impeachment. He did not appear; but an *amicus curiae* suggested that the judge was insane, and tendered the proof of that fact.

This has given rise to some troublesome questions, rendered more embarrassing by the total want of rule or precedent, and still increased by some dissatisfaction on the part of the managers, which seems to have also infected the House of Representatives. In this dilemma it would be improper that I should leave the Senate. Considerations, however, of a nature which you will more readily approve, have had an influence in detaining me. A decision is hoped this day on the points now under discussion. I take my leave as soon as this business is disposed of, and will be with you in the course of mail-stage.

A. BURR.

TO THEODOSIA.

New-York, March 28, 1804

Your letter, dated early in this month—I don't recollect the very day, having left the letter in town; but you write so seldom that a reference to the month is sufficiently descriptive; your letter, then, of March, announcing your removal to the Oaks, the pretty description of your house and establishment, *and all that*, were very amusing. I had really begun to doubt whether you were not all dead or something worse.

I shall get the speech, no thanks to you; there is a copy in Philadelphia, for which I have written, and it will come endorsed by the fair hand of Celeste: truly her hand and arm are handsome. I did not see her on my way through—*tant mieux*; for I took great affront; thence ensued explanations, &c. Nothing like a quarrel to advance love. La Planche I did see twice in one day; the last a long, very long visit. Lovely in weeds. La G., of whom you inquire, is of the grave age of forty-six; about the age of the vice-president.

They are very busy here about an election between Morgan Lewis and A. Burr. The former supported by the Livingstons and Clintons, the latter *per se*. I would send you some new and amusing libels against the vice-president, but, as you did not send the speech, nor did even acknowledge the receipt of one of the many public documents which I took the trouble of forwarding, it may be presumed that this sort of intercourse is not desired.

Ph. Church and Miss Stewart, of Philadelphia, it is said, are to be married; Duer (which Duer I don't know) and Miss M. Denning reported as engaged; Bunner and Miss Church said to be mutually in love; on his part avowed, on hers not denied.

The Earl of Selkirk is here: a frank, unassuming, sensible man of about thirty. Whether he thinks of La R. is unknown to the writer. He dines with me on Monday.

If you had one particle of invention or genius, you would have taught A. B. A. his *a, b, c* before this. God mend you. His fibbing is an inheritance, which pride, an inheritance, will cure. His mother went through that process. Adieu.

**A. BURR.**

TO THEODOSIA.

New-York, April 3, 1804.

I hasten to acknowledge your long, interesting, and beautiful letter of the 14th. It is received this morning, and finds me in the midst of occupations connected with the approaching election: of course, every moment interruptions.

The History of Frederic II. will amuse you. You will read Montesquieu with interest and instruction. Yet he has a character—I mean that his "*Esprit des Loix*" has a character above its merit. His historical facts are, nevertheless, collected and arranged with judgment, and his reasoning is ingenuous. The political dogmas are not, however, to be received as axioms. They are neither founded on experience nor on a knowledge of human nature.

You improve greatly in your style and manner of writing. A little more pains and a little more reading, and you will exceed Lady Mary W. Montague. Practice, however, is indispensable. The art of writing is an acquirement, as much as music or dancing.

April 7.

Since the 3d I have vainly endeavoured to get a minute to write to you. It will not, I fear, be possible before the 30th inst., when, or soon after, I hope to be in Philadelphia, whence you will hear from me. As you have a great taste for mischief, I send you a new paper [4] established in this city, by whom edited unknown. Some of the numbers are allowed to have wit. Whether these have any I know not. God bless thee.

A. BURR.

TO MRS. ——

New-York, April 18, 1804.

Your vanity, if in any degree concerned, will be fully satisfied by the assurance that my heart, my wishes, and my thoughts will be with you. The mortal part of me is indispensably otherwise engaged. As you cannot fail to have admirers, you cannot fail to be amused. Knowing that you are happy, I shall be so by sympathy, though in a less degree, as reflected light is less potent than direct.

A. BURR.

TO THEODOSIA.

New-York, April 25, 1804.

What nice, pretty paper. I verily believe that it would not have entered into my head to write to you; but *Peet* or *Peter* just brought in a ream of paper so handsome looking, that it tempted me to write, and *chose* being generally uppermost in my mind, of course it will be addressed to *chose*, though, for aught that yet appears, it will suit as well *quelque autre chose*.

I, too, write in a storm; an election storm, of the like you have once been a witness. The thing began yesterday, and will terminate to-morrow. My headquarters are in Johnstreet, and I have, since beginning this letter, been already three times interrupted.

A very modest and amiable proposition! that I should ride sixteen hundred miles to see a couple of *varmins*. As to your system of economy, I should rejoice at it if I believed it; but I well know that you will spend



double at the Mills that you would here. Now for my plan, which is to be submitted to the judgment and the *feelings* of Mr. Alston.

You take Richmond Hill; bring no horse nor carriage. I have got a nice, new, beautiful little chariot, made purposely to please you. I have also a new coachee, very light, on an entire new construction, invented by the vice-president. Now these two machines are severally adapted to two horses, and you may take your choice of them. Of horses I have five; three always and wholly at your devotion, and the whole five occasionally. Harry and Sam are both good coachmen, either at your orders. Of servants there are enough for family purposes. Eleonore, however, must attend you, for the sake of the heir apparent. You will want no others, as there are at my house Peggy, Nancy, and a small girl of about eleven. Mr. Alston may bring a footman. Any thing further will be useless; he may, however, bring six or eight of them, if he like. The cellars and garrets are well stocked with wine, having had a great supply last fall. I shall take rooms (a house, &c.) in town, but will live with you as much or as little as you may please and as we can agree; but my establishment at Richmond Hill must remain, whether you come or not. Great part of the summer I shall be off eight or ten days at a time, but no long journeys. You will have to ride every day or two to Montalto to direct the laying out of the grounds, &c.

In this way you cannot, without wanton extravagance, expend more than four hundred dollars. If you insist on bringing your horses, there is now room for them, and plenty of provender. You ought to come by water, but not to be swindled again by taking a cabin. Bring your Ada, if you please, to finish her education.

Tell Mr. Alston that I ordered my booksellers to open a correspondence with him, and to send out, by way of sample, and under the advice of M'Kinnon, not to exceed the value of fifty guineas. M'Kinnon writes me

that the articles will be here by the first or before the middle of June, shipped for New-York.

I forgot to speak of the election. [5]

Both parties claim majorities, and there never was, in my opinion, an election, of the result of which so little judgment could be formed. A. B. will have a small majority in this city *if to-morrow should be a fair day*, and not else.

You may wonder how I live and mean to live in town. Peter and Alexis are all my attendants. My breakfast is made *a la garcon*: dinners, &c., from a neighbouring eatinghouse. Adieu.

A. BURR.

TO THEODOSIA.

New-York, May 1, 1804.

Your letter of the 16th of April had better luck than that other of the 1st.; on the road, I mean, for the reception of both was equally kind. The last arrived yesterday. I do not remember exactly what it is about, and it is on my table in the library up stairs, and I am writing in the dining-room beside a good fire on this evening of the first of May. Now *madame pour quelque chose tres interessante*.

How limited is human foresight! How truly are we the sport of accident. To-morrow I had proposed to visit Celeste, and now, alas! *cetera desunt*.

La G. may be forty-one. Something of the style and manners of *la tante de La R.* Is about as silly; talks as much, and as much nonsense; is certainly good-tempered and cheerful; rather comely, abating a flat chest; about two inches taller than Theodosia. Things are not gone to extremities; but there is danger—poor gampy.

The election is lost by a great majority: *tant mieux*. It does not appear possible that I should make you a visit; even if La G. should not prevent it, which ought to be hoped, some other thing of like kind will.

Tell Natalie that I have just now received her letter, which she acknowledges to be in answer to *four of mine*. Of the boy you have been remarkably reserved in your two last letters. I conclude, however, that he cannot be dead, as you would, probably, have thought that a circumstance worthy of being mentioned, at least in a postscript. Now Natalie has written me a whole page about her girl, for which I am very grateful.

What would you bet that La G. is not in a kind of quandary just now? Gods! what a pathetic love-scene it will make if it shall go on. Adieu.

A. BURR.

TO MISS ——

New-York, May 20, 1804. I send you a sample of that species of philosophy which I have thought particularly suited to your cast of mind and the delicacy of your taste. You are to read from the 66th page to the 125th. What precedes and follows will fatigue, without interesting or amusing you. Indeed, some of it will not be very intelligible, and you must not be disgusted in the outset.

The author has not noticed those advantages which personal beauty derives from intellectual improvement, or expansion of the mind tempered by commerce with the world, nor how grace and expression may be thus heightened and improved. I wish some one would write a volume on this subject. Indeed, I have had thoughts of doing it myself, and holding you up as the example to verify my theory. To this some thoughtless ones may object, that, where nature had done so much, nothing was left for the work of art. There cannot be a greater error. The essential difference between the silly and the wise consists in their different capacity for improvement. Bestow what pains, offer what advantages you may to a dull subject, and she will remain stationary. One of taste and talents, on the contrary, extracts improvement from every thing, and approaches perfection in proportion as the means of advancement are afforded.

What grave nonsense, you will say, or at least think, if this should find you, as is probable, surrounded by admirers uniting to persuade you that you are already perfect; and in such company how stupid a compliment will it seem to tell you that you may still improve; that there are no limits to the improvement and approaches which you may make towards perfection. Such, however ungallant, will be the language of your admirer and friend,

**A. BURR.**

TO THEODOSIA.

New-York, May 8, 1804.

I think I have answered, or at least have noticed, your letter of the 17th, being the last which has been received, and, as usual, postmarked nine days after its date.

The affair of La G. is becoming serious. After due reflection, this does appear to me to be the most discreet thing—prudence, cheerfulness, and good-temper are ingredients of importance. I will offer homage. Are you content? Answer quickly.

Madame Bonaparte and husband are here. I have just seen them and no more. For reasons unknown to me (doubtless some state policy), we are suddenly become strangers.

Of all earthly things I most want to see your boy. Does he yet know his letters? If not, you surely must want skill, for, most certain, he can't want genius. You must tell me of all his acquirements.

It ought to have been mentioned that I have not seen my inamorata since the time of which I wrote you, which you may think passing strange.

May 26, 1804.

I think I will never again be so long without writing to you. It has been a daily and nightly reproach to me since the 8th of May, the date of the preceding part of this letter. The matter there spoken of seemed to be in so precarious a state, that I did not like to send you that page alone, and, in fact, knew not what to add to it. It is just so now; but from that day to this I have not seen La G., owing partly to accident and partly to apathy.

Your long and interesting letter of the 5th and 6th inst has been received. It shall be answered anon. In the mean time I repeat the injunction that you read, and in sequence. Study philosophy, if nothing should more allure you. Darwin and Harris you have; others I will send. Read over Shakspeare critically, marking the passages which are beautiful, absurd, or obscure. I will do the same, and one of these days we will compare. To improve your style and language is, however, the most interesting point. In this you will

be aided by regaining your Latin. Gods! how much you might accomplish this year.

Miss Cruger, youngest daughter of the late widow Cruger, now Mrs. Rogers, married two or three days ago to one of your Haywards, I think William. A runaway job. *La mere et beau pere bien fachés*. How far are you from Natalie?

A. BURR.

TO THEODOSIA.

New-York, June 11, 1804.

Your letter of the 14th of May is the last, and, I believe, unanswered, which is rather scandalous on both sides; but the letter of A.B.A., at the foot of yours, was far the most interesting. I have studied every pothook and trammel of his first literary performance, to see what rays of genius could be discovered. You remember our friend Schweitzer, nephew and pupil of Lavater. He used to insist that as much was to be inferred from the handwriting as from the face. I showed him a letter from a man of great fame, and he saw genius in every stroke. I then produced a letter from an arrant blockhead and great knave, but so like the other as not to be distinguished, at least by my unphysiognomical discernment. He acknowledged that there was resemblance to an ignorant eye; but, said he, triumphantly, this (latter) could never have made that scratch, which sybilistic scratch was the mere prolongation of the last letter of the last word in a sentence. Now it occurs to me that one of A.B.A.'s scratches is exactly in the line of genius according to Schweitzer; and surely more may be presumed from the instinctive effort of untutored infancy than from the

laboured essay of scientific cultivation. To aid your observations in this line, I pray you to read Martinus Scriblerius. Mr. and Mrs. Hayward are happily living with the mother.

I am stationary (*not paper, wax, and quills*), but, adjectively speaking, unlocomotive. The affair of La G. has also been perfectly stationary since my last, the parties not having met; but hearing that La G. has expressed a sort of surprise, approaching to vexation, at this apathy, the other party has *kindly* promised an interview to-morrow. If it should take place, you will, in due time, know the result. Your permission or dissent is impatiently expected by

A. BURR.

TO THEODOSIA.

New-York, June 13, 1804.

The joint and several letter of Natalie and Theodosia was received yesterday, and will be answered to-morrow or next day. It seems that you write once a fortnight. Two such idle sluts might find half an hour daily to give a sort of journal to papa.

Another interview yesterday with La G. One more would be fatal and final. I shall seek it to-day; *after which* I will read Moore's fables, you impudence. My time, till near closing the mail, has been occupied in writing to your husband. At present I can only thank you both.

A. BURR.

## TO THEODOSIA.

New-York, June 24, 1804.

"To-morrow, did I say? 'Tis nowhere to be found but in the fool's calendar;" and yet I said "to-morrow." The morrow brought me an ague in the face, which I have been nursing from that day to this, in great ill-humour. 'Till yesterday I could not dispense with my mufflings, and yesterday we kept Theo.'s birthday. The Laights and half a dozen others laughed an hour, and danced an hour, and drank her health at Richmond Hill. We had your picture in the dining-room; but, as it is a profile, and would not look at us, we hung it up, and placed Natalie's at table, which laughs and talks with us.

I do not like the boy looking pale so early in the season. It argues ill; but I like much his heroism and his gallantry. You can't think how much these little details amuse and interest me. If you were quite mistress of natural philosophy, he would now be hourly acquiring a knowledge of various branches, particularly natural history, botany, and chymistry. Pursue these studies, and also that of language. For fifty dollars you may get, in Philadelphia, a chymical apparatus, put up in a small box, with which more than one hundred experiments may be made.

Your idea of dressing up pieces of ancient mythology in the form of amusing tales for children is very good. You *yourself* must write them. Send your performances to me, and, within three weeks after they are received, you shall have them again in print. This will be not only an amusing occupation, but a very useful one to yourself. It will improve your style and your language, give you habits of accuracy, and add a little to your stock of knowledge. Natalie, too, must work at it, and I'll bet that she makes the best tale. I will be your editor and your critic.



You laugh at me so much and so impudently, that I will not say a word more of certain things till something be concluded. Your permission seems to be that I may hang or drown, or make any other apotheosis I may please. Dear indulgent creature, how I thank thee.

Pray, madam, give your orders to Peggy yourself. She writes a better hand than I do, and would be so proud to receive a letter from *Missy*. I have shown her that part of your letter which concerns her, and she is now engaged in executing your commands.

**A. BURR.**

TO THEODOSIA.

New-York, July 1, 1804.

Having been shivering with cold all day, though in perfect health, I have now, just at sunset, had a fire in my library, and am sitting near it and enjoying it, if that word be applicable to any thing done in solitude. Some very wise man, however, has exclaimed,

"Oh! fools, who think it solitude to be alone."

This is but poetry. Let us, therefore, drop the subject, lest it lead to another on which I have imposed silence on myself.

You may recollect, and, if you do not, your husband will, that he has several times requested me to open a correspondence between him and my bookseller in London. To introduce the thing, I desired Mr. White to send with my next parcel of books a parcel for Mr. Alston, not exceeding the value of fifty guineas, and referred him to Mr. M'Kinnon for instructions.

The books came out accordingly, and, with respect to my box, all was smooth and fair; but it was alleged by the owners of the ship and by the captain, that the box for Mr. Alston, having been irregularly shipped, occasioned the seizure and detention of the ship, and the owners refused to deliver the box unless I would pay thirty guineas damages. This I declined, and the box was taken to the custom-house, where it has lain these six weeks unopened. After the expiration of nine months it will be opened, and the contents sold at auction by order of the officers of the customs. I shall write to the bookseller, Mr. White, to employ his own agent here to look to the box as his property. This trifling tale would not have been told but to show Mr. Alston that I really have made an attempt to establish a correspondence for him.

You ought to be collecting a few books for your own use. One way of forming a small library, and which I recommend to you, is to note down the title of every book which, either from its reputation or from perusal, you may wish to possess. Make you a small memorandum book for this purpose. If they be written on loose scraps, by the time you get a dozen eleven of them will be lost. I recommend to you a new publication called the Edinburgh Review. One number is issued every three months. The plan of the editors differs from that of similar works in that they give more copious extracts, and notice only books of merit or *reputation*.

I wait impatiently for some of your tales. No hasty scrawls, madam, for I will correct nothing. We have now here three shiploads of South Carolinians, who all find the weather intolerably hot, though I have slept under a blanket every night except one in all June.

Jerome Bonaparte has taken Belvidere for the season. The two French frigates remain here blockaded. C. C. says you are a good-for-nothing, lazy  
\*\*\*\*\* (I really cannot write her words; they are too dreadful, and must be

left to your imagination to supply), because you never write to her, nor even answer her letters. I assented to all this.

All strangers go to see Montalto as one of the curiosities or beauties of the island. Your last letter is dated the 31st of May, whence I conclude that you submit to the labour of writing to me once a fortnight only.

**A. BURR.**

Footnotes:

1. Matthew L. Davis.
2. The lady of the then British Minister Plenipotentiary to the United States.
3. Washington Irving
4. The Corrector, by *Toby Tickler*.
5. The election for governor; Morgan Lewis and Aaron Burr being the candidates.

## CHAPTER XVI.

In February, 1804, Colonel Burr was nominated, at a public meeting held in the city of New-York, as a candidate for the office of governor. At this meeting Colonel Marinus Willett presided as chairman, and Ezekiel Robbins acted as secretary. Both these gentlemen were well known as efficient members of the democratic party. Judge Morgan Lewis was the opposing and successful candidate. This contest was of an acrimonious character. While the great mass of the democratic party supported Judge Lewis, a section of that party, alike distinguished for their talents and patriotism, sustained Colonel Burr. Nor were these divisions confined to the ranks of the democracy. Among the federalists similar dissensions sprang up. General Hamilton, and all that portion of politicians over whom he had a controlling influence, opposed the election of Colonel Burr with an ardour bordering on fanaticism. The press teemed with libels of the most atrocious character. An event connected with this election has rendered it memorable in the history of our state and country. A letter, written by Dr. Charles D. Cooper, and published pending the election, ultimately led to the hostile and fatal meeting between General Hamilton and Colonel Burr. Immediately after the death of the former gentleman, Judge William P. Van Ness, the second of Colonel Burr, published the correspondence between the parties, with a statement of the conversations he held with General Hamilton and Judge Pendleton, the second of the general. As their accuracy has never

been called in question, they are now presented in the form in which they then appeared.

## **STATEMENT.**

On the afternoon of the 17th of June last (1804), says Judge Van Ness, I received a note from Colonel Burr [1] requesting me to call on him the following morning. Upon my arrival he alleged that it had, of late, been frequently stated to him that General Hamilton had, at different times and upon various occasions, used language and expressed opinions highly injurious to his reputation; that he had for some time felt the necessity of calling on General Hamilton for an explanation of his conduct, but that the statements which had been made to him did not appear sufficiently authentic to justify the measure; that, a newspaper had, however, been recently put into his hands, in which he perceived a letter signed Charles D. Cooper, containing something which he thought demanded immediate investigation. Urged by these circumstances, and justified by the evident opinion of his friends, he had determined to write General Hamilton a note upon the subject, which he requested me to deliver. I assented to this request, and, on my return to the city, which was at eleven o'clock the same morning, I delivered to General Hamilton the note which I received from Colonel Burr for that purpose, and of which the following is a copy.

No. I.

New-York, June 18, 1804.

**SIR,**

I send for your perusal a letter signed Charles D. Cooper, which, though apparently published some time ago, has but very recently come to my

knowledge. Mr. Van Ness, who does me the favour to deliver this, will point out to you that clause of the letter to which I particularly request your attention.

You must perceive, sir, the necessity of a prompt and unqualified acknowledgment or denial of the use of any expressions which would warrant the assertions of Mr. Cooper.

I have the honour to be

Your obedient servant,

**A. BURR.**

General HAMILTON.

General Hamilton read the note of Mr. Burr, and the printed letter of Mr. Cooper to which it refers, and remarked that they required some consideration, and that in the course of the day he would send an answer to my office. At half past ten o'clock General Hamilton called at my house, and said that a variety of engagements would demand his attention during the whole of that day and the next; but that on Wednesday, the 20th inst., he would furnish me with such an answer to Colonel Burr's letter as he should deem most suitable and compatible with his feelings. In the evening of Wednesday, the 20th, while I was from home, the following letter, addressed to Colonel Burr, was left at my house, under cover to me.

No. II.

New-York, June 20, 1804.

SIR,

I have maturely reflected on the subject of your letter of the 18th inst., and the more I have reflected the more I have become convinced that I could not, without manifest impropriety, make the avowal or disavowal which you seem to think necessary. The clause pointed out by Mr. Van Ness is in these terms: "I could detail to you *a still more despicable* opinion which General Hamilton *has expressed* of Mr. Burr." To endeavour to discover the meaning of this declaration, I was obliged to seek in the antecedent part of this letter for the opinion to which it referred as having been already disclosed. I found it in these words: "General Hamilton and Judge Kent have declared, in *substance*, that they looked upon Mr. Burr to be a *dangerous man*, and one *who ought not to be trusted with the reins of government*."

The language of Doctor Cooper plainly implies that *he* considered this opinion of you, which he attributes to me, as a *despicable* one; but he affirms that I have expressed some other *more despicable*, without, however, mentioning to whom, when, or where. 'Tis evident that the phrase "still more despicable" admits of infinite shades, from very light to very dark. How am I to judge of the degree intended? Or how shall I annex any precise idea to language so indefinite?

Between gentlemen, *despicable* and *more despicable* are not worth the pains of distinction; when, therefore, you do not interrogate me as to the opinion which is specifically ascribed to me, I must conclude that you view it as within the limits to which the animadversions of political opponents upon each other may justifiably extend, and, consequently, as not warranting the idea which Doctor Cooper appears to entertain. If so, what precise inference could you draw as a guide for your conduct, were I to acknowledge that I had expressed an opinion of you *still more despicable*

than the one which is particularized? How could you be sure that even this opinion had exceeded the bounds which you would yourself deem admissible between political opponents?

But I forbear further comment on the embarrassment to which the requisition you have made naturally leads. The occasion forbids a more ample illustration, though nothing could be more easy than to pursue it.

Repeating that I cannot reconcile it with propriety to make the acknowledgment or denial you desire, I will add, that I deem it inadmissible, on principle, to consent to be interrogated as to the justice of the *inferences* which may be drawn by others from whatever I have said of a political opponent in the course of fifteen years competition. If there were no other objection to it, this is sufficient, that it would tend to expose my sincerity and delicacy to injurious imputations from every person who may at any time have conceived the *import* of my expressions differently from what I may then have intended or may afterward recollect. I stand ready to avow or disavow promptly and explicitly any precise or definite opinion which I may be charged with having declared of any gentleman. More than this cannot fitly be expected from me; and, especially, it cannot be reasonably expected that I shall enter into any explanation upon a basis so vague as that you have adopted. I trust, on more reflection, you will see the matter in the same light with me. If not, I can only regret the circumstance, and must abide the consequences.

The publication of Doctor Cooper was never seen by me till after the receipt of your letter. I have the honour to be, &c.,

A. HAMILTON.

Colonel BURR.



On the morning of Thursday, the 21st, I delivered to Colonel Burr the above letter, and, in the evening, was furnished with the following letter for General Hamilton, which I delivered to him at 12 o'clock on Friday, the 22d inst.

No. III.

New-York, June 21, 1804.

**SIR,**

Your letter of the 20th inst. has been this day received. Having considered it attentively, I regret to find in it nothing of that sincerity and delicacy which you profess to value.

Political opposition can never absolve gentlemen from the necessity of a rigid adherence to the laws of honour and the rules of decorum. I neither claim such privilege nor indulge it in others.

The common sense of mankind affixes to the epithet adopted by Doctor Cooper the idea of dishonour. It has been publicly applied to me under the sanction of your name. The question is not whether he has understood the meaning of the word, or has used it according to syntax and with grammatical accuracy, but whether you have authorized this application, either directly or by uttering expressions or opinions derogatory to my honour. The time "when" is in your own knowledge, but no way material to me, as the calumny has now first been disclosed so as to become the subject of my notice, and as the effect is present and palpable.

Your letter has furnished me with new reasons for requiring a definite reply.

I have the honour to be,

Sir, your obedient

**A. BURR.**

General HAMILTON.

General Hamilton perused it, and said it was such a letter as he had hoped not to have received; that it contained several offensive expressions, and seemed to close the door to all further reply; that he had hoped the answer he had returned to Colonel Burr's first letter would have given a different direction to the controversy; that he thought Mr. Burr would have perceived that there was a difficulty in his making a more specific reply, and would have desired him to state what had fallen from him that might have given rise to the inference of Doctor Cooper. He would have done this frankly; and he believed it would not have been found to exceed the limits justifiable among political opponents. If Mr. Burr should be disposed to give a different complexion to the discussion, he was willing to consider the last letter not delivered; but if that communication was not withdrawn, he could make no reply; and Mr. Burr must pursue such course as he should deem most proper.

At the request of General Hamilton, I replied that I would detail these ideas to Colonel Burr; but added, that if in his first letter he had introduced the idea (if it was a correct one) that he could recollect of no terms that would justify the construction made by Dr. Cooper, it would, in my opinion, have opened a door for accommodation. General Hamilton then repeated the same objections to this measure which were stated in substance in his first letter to Colonel Burr.

When I was about leaving him he observed, that if I preferred it, he would commit his refusal to writing. I replied, that if he had resolved not to answer Colonel Burr's letter, that I could report that to him verbally, without giving him the trouble of writing it. He again repeated his determination not to answer; and that Colonel Burr must pursue such course as he should deem most proper.

In the afternoon of this day I reported to Colonel Burr, at his house out of town, the answer and the determination of General Hamilton, and promised to call on him again in the evening to learn his further wishes. I was detained in town, however, this evening, by some private business, and did not call on Colonel Burr until the following morning, Saturday, the 23d June. I then received from him a letter for General Hamilton, which is numbered IV.; but, as will presently be explained, never was delivered. The substance of it will be found in number XII.

When I returned with this letter to the city, which was about two o'clock in the afternoon of the same day, I sent a note to General Hamilton's office, and also to his house, desiring to know when it would be convenient to him to receive a communication. The servant, as he informed me, received for answer at both places that General Hamilton had gone to his country seat. I then wrote the note of which No. V. is a copy, and sent it out to him in the country.

No. V.

June 23, 1804.

SIR,

In the afternoon of yesterday I reported to Colonel Burr the result of my last interview with you, and appointed the evening to receive his further instructions. Some private engagements, however, prevented me from calling on him till this morning. On my return to the city, I found, upon inquiry, both at your office and house, that you had returned to your residence in the country. Lest an interview there might be less agreeable to you than elsewhere, I have taken the liberty of addressing you this note, to inquire when and where it will be most convenient to you to receive a communication.

Your most obedient and very humble servant,

W. P. VAN NESS.

General HAMILTON.

To this I received for answer No. VI., which follows.

No. VI.

Grange, June 23, 1804.

SIR,

I was in town to-day till half past one. I thank you for the delicacy which dictated your note to me. If it is indispensable the communication should be made before Monday morning, I must receive it here; but I should think this cannot be important. On Monday, by nine o'clock, I shall be in town at my house in Cedar-street, No. 52, where I should be glad to see you. An additional reason for preferring this is, that I am unwilling to occasion you trouble.

With esteem I am your obedient servant,

A. HAMILTON.

At nine o'clock on Monday, the 25th of June, I called on General Hamilton, at his house in Cedar-street, to present the letter No. IV. already alluded to, and with instructions for a verbal communication, of which the following notes, No. VII, handed me by Mr. Burr, were to be the basis. The substance of which, though in terms as much softened as my injunctions would permit, was accordingly communicated to General Hamilton.

No. VII.

A. Burr, far from conceiving that rivalry authorizes a latitude not otherwise justifiable, always feels greater delicacy in such cases, and would think it meanness to speak of a rival but in terms of respect; to do justice to his merits; to be silent of his foibles. Such has invariably been his conduct towards Jay, Adams, and Hamilton; the only three who can be supposed to have stood in that relation to him.

That he has too much reason to believe that, in regard to Mr. Hamilton, there has been no reciprocity. For several years his name has been lent to the support of base slanders. He has never had the generosity, the magnanimity, or the candour to contradict or disavow. Burr forbears to particularize, as it could only tend to produce new irritations; but, having made great sacrifices for the sake of harmony; having exercised forbearance until it approached to humiliation, he has seen no effect produced by such conduct but a repetition of injury. He is obliged to conclude that there is, on the part of Mr. Hamilton, a settled and implacable malevolence; that he will never cease, in his conduct towards Mr. Burr, to violate those courtesies of

life; and that, hence, he has no alternative but to announce these things to the world; which, consistently with Mr. Burr's ideas of propriety, can be done in no way but that which he has adopted. He is incapable of revenge, still less is he capable of imitating the conduct of Mr. Hamilton, by committing secret depredations on his fame and character. But these things must have an end.

Before I delivered the written communication with which I was charged, General Hamilton said that he had prepared a written reply to Colonel Burr's letter of the 21st, which he had left with Mr. Pendleton, and wished me to receive. I answered, that the communication I had to make to him was predicated upon the idea that he would make no reply to Mr. Burr's letter of the 21st of June, and that I had so understood him in our conversation of the 22d. General Hamilton said that he believed, before I left him, he had proffered a written reply. I observed that, when he answered verbally, he had offered to put that *refusal* in writing; but that, if he had now prepared a written reply, I would receive it with pleasure. I accordingly called on Mr. Pendleton on the same day (Monday, June 25th), between *one* and *two* o'clock P. M., and stated to him the result of my recent interview with General Hamilton, and the reference he had made to him.

I then received from Mr. Pendleton No. VIII., which follows:—

No. VIII.

New-York, June 22, 1804.

**SIR,**

Your first letter, in a style too peremptory, made a demand, in my opinion, unprecedented and unwarrantable. My answer, pointing out the

embarrassment, gave you an opportunity to take a less exceptionable course. You have not chosen to do it; but, by your last letter, received this day, containing expressions *indecorous* and improper, you have increased the difficulties to explanation intrinsically incident to the nature of your application.

If by a "definite reply" you mean the direct avowal or disavowal required in your first letter, I have no other answer to give than that which has already been given. If you mean any thing different, admitting of greater latitude, it is requisite you should explain.

I have the honour to be, sir, your obedient servant,

ALEX. HAMILTON.

A. BURR, Esq.

This letter was unsealed, but I did not read it in his presence. After some conversation relative to what General Hamilton would say on the subject of the present controversy, during which Mr. Pendleton read from a paper his ideas on the subject, he left me for the purpose of seeing and consulting Mr. Hamilton, taking the paper with him. In about an hour he called at my house. I informed him that I had shown to Colonel Burr the letter he had given me from General Hamilton; that, in his opinion, it amounted to nothing more than the verbal reply I had already reported; that it left the business precisely where it then was; that Mr. Burr had very explicitly stated the injuries he had received and the reparation he demanded, and that he did not think it proper to be asked now for further explanation. Towards the conclusion of the conversation I informed him that Colonel Burr required a general disavowal of any intention, on the part of General Hamilton, in his various conversations, to convey expressions derogatory to

the honour of Mr. Burr. Mr. Pendleton replied that he believed General Hamilton would have no objections to make such declaration, and left me for the purpose of consulting him, requesting me to call in the course of the afternoon for an answer. I called on him, accordingly, about six o'clock. He then observed that General Hamilton declined making such a disavowal as I had stated in our last conversation; that he, Mr. Pendleton, did not then perceive the whole force and extent of it; and presented me with the following paper, No. IX., which I transmitted in the evening to Mr. Burr.

#### No. IX.

In answer to a letter properly adapted to obtain from General Hamilton a declaration whether he had charged Colonel Burr with any particular instance of dishonourable conduct, or had impeached his private character either in the conversation alluded to by Doctor Cooper, or in any other particular instance to be specified, he would be able to answer consistently with his honour and the truth, in substance, that the conversation to which Doctor Cooper alluded turned wholly on political topics, and did not attribute to Colonel Burr any instance of dishonourable conduct, nor relate to his private character; and in relation to any other language or conversation of General Hamilton which Colonel Burr will specify, a prompt and frank avowal or denial will be given.

The following day (Tuesday, 26th June), as early as was convenient, I had an interview with Colonel Burr, who informed me that he considered General Hamilton's proposition a mere evasion, that evinced a desire to leave the injurious impressions which had arisen from the conversations of General Hamilton in full force; that when he had undertaken to investigate an injury his honour had sustained, it would be unworthy of him not to



make that investigation complete. He gave me further instructions, which are substantially contained in the following letter to Mr. Pendleton, No. X.

No. X.

June 26, 1804.

**SIR,**

The letter which you yesterday delivered to me, and your subsequent communication, in Colonel Burr's opinion, evince no disposition, on the part of General Hamilton, to come to a satisfactory accommodation. The injury complained of and the reparation expected are so definitely expressed in Colonel Burr's letter of the 21st instant, that there is not perceived a necessity for further explanation on his part. The difficulty that would result from confining the inquiry to any particular times and occasions must be manifest. The denial of a specified conversation only would leave strong implication that on other occasions improper language had been used. When and where injurious opinions and expressions had been uttered by General Hamilton must be best known to him, and of him only will Colonel Burr inquire. No denial or declaration will be satisfactory unless it be general, so as wholly to exclude the idea that rumours derogatory to Colonel Burr's honour has originated with General Hamilton, or have been fairly inferred from any thing he has said. A definite reply to a requisition of this nature was demanded by Colonel Burr's letter of the 21st instant. This being refused, invites the alternative alluded to in General Hamilton's letter of the 20th.

It was required by the position in which the controversy was placed by General Hamilton on Friday (June 22d) last, and I was immediately

furnished with a communication demanding a personal interview. The necessity of this measure has not, in the opinion of Colonel Burr, been diminished by the general's last letter, or any communication which has since been received. I am, consequently, again instructed to deliver you a message as soon as it may be convenient for you to receive it. I beg, therefore, you will be so good as to inform me at what hour I can have the pleasure of seeing you.

Your most obedient and humble servant,

W. P. VAN NESS.

NATHANIEL PENDLETON, Esq.

In the evening of the same day I received from him the following answer:

—

No. XI.

June 26, 1804.

SIR,

I have communicated the letter which you did me the honour to write to me of this date, to General Hamilton. The expectations now disclosed on the part of Colonel Burr appear to him to have greatly extended the original ground of inquiry, and, instead of presenting a particular and definite case for explanation, seem to aim at nothing less than an inquisition into his most confidential conversations, as well as others, through the whole period of his acquaintance with Colonel Burr.

While he was prepared to meet the particular case fairly and fully, he thinks it inadmissible that he should be expected to answer at large as to every thing that he may possibly have said in relation to the character of Colonel Burr at any time or upon any occasion. Though he is not conscious that any charges which are in circulation to the prejudice of Colonel Burr have originated with him, except one which may have been so considered, and which has long since been fully explained between Colonel Burr and himself, yet he cannot consent to be questioned generally as to any rumours which may be afloat derogatory to the character of Colonel Burr, without specification of the several rumours, many of them, probably, unknown to him. He does not, however, mean to authorize any conclusion as to the real nature of his conduct in relation to Colonel Burr by his declining so loose and vague a basis of explanation, and he disavows an unwillingness to come to a satisfactory, provided it be an honourable, accommodation. His objection is the very indefinite ground which Colonel Burr has assumed, in which he is sorry to be able to discern nothing short of predetermined hostility. Presuming, therefore, that it will be adhered to, he has instructed me to receive the message which you have it in charge to deliver. For this purpose I shall be at home and at your command to-morrow morning from eight to ten o'clock.

I have the honour to be, respectfully,

Your obedient servant,

**NATHANIEL PENDLETON.**

WM. P. VAN NESS, Esq.

I transmitted this to Colonel Burr; and, after a conference with him, in which I received his further instructions, and that no misunderstanding

might arise from verbal communication, I committed to writing the remarks contained in No. XII., which follows:

No. XII.

Wednesday morning, June 27, 1804.

SIR,

The letter which I had the honour to receive from you, under date of yesterday, states, among other things, that, in General Hamilton's opinion, Colonel Burr has taken a very indefinite ground, in which he evinces nothing short of predetermined hostility, and General Hamilton thinks it inadmissible that the inquiry should extend to his confidential as well as other conversations. To this Colonel Burr can only reply, that secret whispers traducing his fame and impeaching his honour are at least equally injurious with slanders publicly uttered; that General Hamilton had, at no time and in no place, a right to use any such injurious expression; and that the partial negative he is disposed to give, with the reservations he wishes to make, are proofs that he has done the injury specified.

Colonel Burr's request was, in the first instance, proposed in a form the most simple, in order that General Hamilton might give to the affair that course to which he might be induced by his temper and his knowledge of facts. Colonel Burr trusted with confidence, that, from the frankness of a soldier and the candour of a gentleman, he might expect an ingenuous declaration. That if, as he had reason to believe, General Hamilton had used expressions derogatory to his honour, he would have had the magnanimity to retract them; and that if, from his language, injurious inferences had been improperly drawn, he would have perceived the propriety of correcting

errors which might thus have been widely diffused. With these impressions Colonel Burr was greatly surprised at receiving a letter which he considered as evasive, and which, in manner, he deemed not altogether decorous. In one expectation, however, he was not wholly deceived; for the close of General Hamilton's letter contained an intimation that, if Colonel Burr should dislike his refusal to acknowledge or deny, he was ready to meet the consequences. This Colonel Burr deemed a sort of defiance, and would have felt justified in making it the basis of an immediate message; but, as the communication contained something concerning the indefiniteness of the request; as he believed it rather the offspring of false pride than of reflection; and as he felt the utmost reluctance to proceed to extremities while any other hope remained, his request was repeated in terms more explicit. The replies and propositions on the part of General Hamilton have, in Colonel Burr's opinion, been constantly, in substance, the same.

Colonel Burr disavows all motives of predetermined hostility, a charge by which he thinks insult added to injury. He feels as a gentleman should when his honour is impeached or assailed; and, without sensations of hostility or wishes of revenge, he is determined to vindicate that honour at such hazard as the nature of the case demands.

The length to which this correspondence has extended only tending to prove that the satisfactory redress, earnestly desired, cannot be attained, he deems it useless to offer any proposition except the single message which I shall now have the honour to deliver.

With great respect, your obedient servant,

W. P. VAN NESS.

NATHANIEL PENDLETON, Esq.

I handed this to Mr. Pendleton at twelve o'clock on Wednesday the 27th. After he had perused it, agreeable to my instructions, I delivered the message which it is unnecessary to repeat. The request it contained was acceded to. After which Mr. Pendleton remarked that a court was then sitting in which General Hamilton had much business to transact, and that he had also some private arrangements to make, which would render some delay unavoidable. I acceded to his wish, and Mr. Pendleton said he would call on me again in the course of the day or the following morning, to confer further relative to time and place.

Thursday, June 28th, ten o'clock P. M., Mr. Pendleton called on me with a paper which he said contained some views of General Hamilton, and which he had received from him. I replied, that if the paper contained a definite and specific proposition for an accommodation, I would with pleasure receive it, and submit it to the consideration of my principal; if not, that I must decline taking it, as Mr. Burr conceived the correspondence completely terminated by the acceptance of the invitation contained in the message I had yesterday delivered. Mr. Pendleton replied that the paper did not contain any proposition of the kind I alluded to, but remarks on my last letter. I, of course, declined receiving it. Mr. Pendleton then took leave, and said that he would call again in a day or two to arrange time and place. Tuesday, July 3d, I again saw Mr. Pendleton; and, after a few subsequent interviews, the time when the parties were to meet was ultimately fixed for the morning of the 11th of July instant. The occurrences of that interview will appear from the following statement, No. XIII., which has been drawn up and mutually agreed to by the seconds of the parties.

No. XIII.

Colonel Burr arrived first on the ground, as had been previously agreed. When General Hamilton arrived, the parties exchanged salutations, and the seconds proceeded to make their arrangements. They measured the distance, ten full paces, and cast lots for the choice of position, as also to determine by whom the word should be given, both of which fell to the second of General Hamilton. They then proceeded to load the pistols in each other's presence, after which the parties took their stations. The gentleman who was to give the word then explained to the parties the rules which were to govern them in firing, which were as follows: "The parties being placed at their stations, the second who gives the word shall ask them whether they are ready; being answered in the affirmative, he shall say—*present!* After this the parties shall present and fire *when they please*. If one fires before the other, the opposite second shall say *one, two, three, fire*, and he shall then fire or lose his fire. He then asked if they were prepared; being answered in the affirmative, he gave the word *present*, as had been agreed on, and both parties presented and fired in succession. The intervening time is not expressed, as the seconds do not precisely agree on that point. The fire of Colonel Burr took effect, and General Hamilton almost instantly fell. Colonel Burr advanced towards General Hamilton with a manner and gesture that appeared to General Hamilton's friend to be expressive of regret; but, without speaking, turned about and withdrew, being urged from the field by his friend, as has been subsequently stated, with a view to prevent his being recognised by the surgeon and bargemen who were then approaching. No further communication took place between the principals, and the barge that carried Colonel Burr immediately returned to the city. We conceive it proper to add, that the conduct of the parties in this interview was perfectly proper, as suited the occasion."

In the interviews between Mr. Pendleton and Mr. Van Ness, they were not able to agree in two important facts that passed on the ground. "Mr. Pendleton expressed a confident opinion that General Hamilton did not fire

first, and that he did not fire at all at Colonel Burr. Mr. Van Ness seemed equally confident in opinion that General Hamilton did fire first; and, of course, that it must have been *at* his antagonist."

Such was the statement made by the friend of Colonel Burr. It is now proposed to insert such explanations of, or remarks on, the communications between the parties as emanated from the friend of General Hamilton. None were given previous to document No. III. Immediately after that letter, dated 21st June, are the following remarks:—

"On Saturday, the 22d of June, General Hamilton for the first time called on Mr. Pendleton, and communicated to him the preceding correspondence. He informed him that, in a conversation with Mr. Van Ness at the time of receiving the last letter (No. III.), he told Mr. Van Ness that he considered that letter as rude and offensive, and that it was not possible for him to give any other answer than that Mr. Burr must take such steps as he might think proper. He said, further, that Mr. Van Ness requested him to take time to deliberate, and then return an answer, when he might possibly entertain a different opinion, and that he would call on him to receive it. That his reply to Mr. Van Ness was, that he did not perceive it possible for him to give any other answer than that he had mentioned, unless Mr. Burr would take back his last letter, and write one which would admit of a different reply. He then gave Mr. Pendleton the letter hereafter mentioned of the 22d of June, to be delivered to Mr. Van Ness when he should call on Mr. Pendleton for an answer, and went to his country house."

[After No. V., dated June 23d, is the following:—]

"Mr. Pendleton understood from General Hamilton that he immediately answered that, if the communication was pressing, he would receive it at his country house that day; if not, he would be at his house in town the next



morning at nine o'clock. But he did not give Mr. Pendleton any copy of this note."

[After No. VIII., dated June 22d, is the following:—]

"This letter, although dated on the 22d of June, remained in Mr. Pendleton's possession until the 25th, within which period he had several conversations with Mr. Van Ness. In these conversations Mr. Pendleton endeavoured to illustrate and enforce the propriety of the ground General Hamilton had taken. Mr. Pendleton mentioned to Mr. Van Ness as the result, that if Colonel Burr would write a letter, requesting to know, in substance, whether, in the conversation to which Dr. Cooper alluded, any particular instance of dishonourable conduct was imputed to Colonel Burr, or whether there was any impeachment of his private character, General Hamilton would declare, to the best of his recollection, what passed in that conversation; and Mr. Pendleton read to Mr. Van Ness a paper containing the substance of what General Hamilton would say on that subject, which is as follows:—

"General Hamilton says he cannot imagine to what Doctor Cooper may have alluded, unless it were to a conversation at Mr. Taylor's, in Albany, last winter (at which he and General Hamilton were present). General Hamilton cannot recollect distinctly the particulars of that conversation, so as to undertake to repeat them without running the risk of varying, or omitting what might be deemed important circumstances. The expressions are entirely forgotten, and the specific ideas imperfectly remembered; but, to the best of his recollection, it consisted of comments on the political principles and views of Colonel Burr, and the results that might be expected from them in the event of his election as governor, without reference to any particular instance of past conduct or to private character."

"After the delivery of the letter of the 22d, as above mentioned, in another interview with Mr. Van Ness, he desired Mr. Pendleton to give him, in writing, the substance of what he had proposed on the part of General Hamilton, which Mr. Pendleton did, in the following words." [See No. IX] [After No. XII., dated June 27th, is the following:—]

"With this letter a message was received, such as was to be expected, containing an invitation which was accepted, and Mr. Pendleton informed Mr. Van Ness he should hear from him the next day as to further particulars.

"This letter was delivered to General Hamilton on the same evening, and a very short conversation ensued between him and Mr. Pendleton, who was to call on him early the next morning for a further conference. When he did so, General Hamilton said he had not understood whether the message and answer was definitively concluded, or whether another meeting was to take place for that purpose between Mr. Pendleton and Mr. Van Ness. Under the latter impression, and as the last letter contained matter that naturally led to animadversion, he gave Mr. Pendleton a paper of remarks in his own handwriting, to be communicated to Mr. Van Ness, if the state of the affair rendered it proper.

"In an interview with Mr. Van Ness on the same day, after explaining the causes which had induced General Hamilton to suppose that the state of the affair did not render it improper, Mr. Pendleton offered this paper to Mr. Van Ness, but he declined receiving it, alleging that he considered the correspondence as closed by the acceptance of the message that he had delivered.

"Mr. Pendleton then informed Mr. Van Ness of the inducements mentioned by General Hamilton in the paper for at least postponing the meeting until the close of the circuit; and, as this was uncertain, Mr. Pendleton was to let him know when it would be convenient."

*Remarks on the letter of June 27, 1804, which Mr. Van Ness declined to receive.*

"Whether the observations on this letter are designed merely to justify the result which is indicated in the close of the letter, or may be intended to give an opening for rendering any thing explicit which may have been deemed vague heretofore, can only be judged of by the sequel. At any rate, it appears to me necessary not to be misunderstood. Mr. Pendleton is therefore authorized to say, that in the course of the present discussion, written or verbal, there has been no intention to evade, defy, or insult, but a sincere disposition to avoid extremities, if it could be done with propriety. With this view General Hamilton has been ready to enter into a frank and free explanation on any and every object of a specific nature; but not to answer a general and abstract inquiry, embracing a period too long for any accurate recollection, and exposing him to unpleasant criticisms from, or unpleasant discussions with, any and every person who may have understood him in an unfavourable sense. This (admitting that he could answer in a manner the most satisfactory to Colonel Burr) he should deem inadmissible in principle and precedent, and humiliating in practice. To this, therefore, he can never submit. Frequent allusion has been made to slanders said to be in circulation. Whether they are openly or in whispers, they have a form and shape, and might be specified."

"If the alternative alluded to in the close of the letter is definitively tendered, it must be accepted; the time, place, and manner to be afterward regulated. I should not think it right, in the midst of a circuit court, to withdraw my services from those who may have confided important interests to me, and expose them to the embarrassment of seeking other counsel, who may not have time to be sufficiently instructed in their causes. I shall also want a little time to make some arrangements respecting my own affairs."

"On Friday, the 6th of July, the circuit being closed, Mr. Pendleton informed Mr. Van Ness that General Hamilton would be ready at any time after the Sunday following. On Monday the particulars were arranged. On Wednesday the parties met at Weehawk, on the Jersey shore, at seven o'clock A.M. The particulars of what then took place appear in the statement, as agreed upon and corrected by the seconds of the parties." [See No. XIII.]

## DOCTOR DAVID HOSACK TO WILLIAM COLEMAN.

August 17, 1804.

DEAR SIR,

To comply with your request is a painful task; but I will repress my feelings while I endeavour to furnish you with an enumeration of such particulars relative to the melancholy end of our beloved friend Hamilton as dwell most forcibly on my recollection.

When called to him upon his receiving the fatal wound, I found him half sitting on the ground, supported in the arms of Mr. Pendleton. His countenance of death I shall never forget. He had at that instant just strength to say, "This is a mortal wound, doctor;" when he sunk away, and became to all appearance lifeless. I immediately stripped up his clothes, and soon, alas! ascertained that the direction of the ball must have been through some vital part. [2]

His pulses were not to be felt, his respiration was entirely suspended, and, upon laying my hand on his heart and perceiving no motion there, I considered him as irrecoverably gone. I, however, observed to Mr.

Pendleton, that the only chance for his reviving was immediately to get him upon the water. We therefore lifted him up, and carried him out of the wood to the margin of the bank, where the bargemen aided us in conveying him into the boat, which immediately put off. During all this time I could not discover the least symptom of returning life. I now rubbed his face, lips, and temples with spirits of hartshorn, applied it to his neck and breast, and to the wrists and palms of his hands, and endeavoured to pour some into his mouth. When we had got, as I should judge, about fifty yards from the shore, some imperfect efforts to breathe were for the first time manifest; in a few minutes he sighed, and became sensible to the impression of the hartshorn or the fresh air of the water. He breathed; his eyes, hardly opened, wandered, without fixing upon any object; to our great joy, he at length spoke. "My vision is indistinct," were his first words. His pulse became more perceptible, his respiration more regular, his sight returned. I then examined the wound to know if there was any dangerous discharge of blood; upon slightly pressing his side it gave him pain, on which I desisted. Soon after recovering his sight, he happened to cast his eye upon the case of pistols, and observing the one that he had had in his hand lying on the outside, he said, "Take care of that pistol; it is undischarged, and still cocked; it may go off and do harm. Pendleton knows" (attempting to turn his head towards him) "that I did not intend to fire at him." "Yes," said Mr. Pendleton, understanding his wish, "I have already made Dr. Hosack acquainted with your determination as to that." He then closed his eyes and remained calm, without any disposition to speak; nor did he say much afterward, except in reply to my questions. He asked me once or twice how I found his pulse; and he informed me that his lower extremities had lost all feeling, manifesting to me that he entertained no hopes that he should long survive. I changed the posture of his limbs, but to no purpose; they had entirely lost their sensibility. Perceiving that we approached the shore, he said, "Let Mrs. Hamilton be immediately sent for; let the event be gradually

broken to her, but give her hopes." Looking up we saw his friend, Mr. Bayard, standing on the wharf in great agitation. He had been told by his servant that General Hamilton, Mr. Pendleton, and myself had crossed the river in a boat together, and too well he conjectured the fatal errand, and foreboded the dreadful result. Perceiving, as we came nearer, that Mr. Pendleton and myself only sat up in the stern sheets, he clasped his hands together in the most violent apprehension; but when I called to him to have a cot prepared, and he at the same moment saw his poor friend lying in the bottom of the boat, he threw up his eyes and burst into a flood of tears and lamentation. Hamilton alone appeared tranquil and composed. We then conveyed him as tenderly as possible up to the house. The distresses of this amiable family were such that, till the first shock was abated, they were scarcely able to summon fortitude enough to yield sufficient assistance to their dying friend.

Upon our reaching the house he became more languid, occasioned probably by the agitation of his removal from the boat. I gave him a little weak wine and water. When he recovered his feelings, he complained of pain in his back; we immediately undressed him, laid him in bed, and darkened the room. I then gave him a large anodyne, which I frequently repeated. During the first day he took upward of an ounce of laudanum; and tepid anodyne fomentations were also applied to those parts nearest the seat of his pain. Yet were his sufferings during the whole of the day almost intolerable. [3]

I had not the shadow of a hope of his recovery; and Dr. Post, whom I requested might be sent for immediately on our reaching Mr. Bayard's house, united with me in this opinion. General Rey, the French consul, also had the goodness to invite the surgeons of the French frigates in our harbour, as they had had much experience in gunshot wounds, to render their assistance. They immediately came; but, to prevent his being

disturbed, I stated to them his situation, described the nature of his wound, and the direction of the ball, with all the symptoms that could enable them to form an opinion as to the event. One of the gentlemen then accompanied me to the bedside. The result was a confirmation of the opinion that had already been expressed by Dr. Post and myself.

During the night he had some imperfect sleep, but the succeeding morning his symptoms were aggravated, attended, however, with a diminution of pain. His mind retained all its usual strength and composure. The great source of his anxiety seemed to be in his sympathy with his half-distracted—wife and children. He spoke to me frequently of them—"My beloved wife and children" were always his expressions. But his fortitude triumphed over his situation, dreadful as it was; once, indeed, at the sight of his children, brought to the bedside together, seven in number, his utterance forsook him; he opened his eyes, gave them one look, and closed them again till they were taken away. As a proof of his extraordinary composure of mind, let me add, that he alone could calm the frantic grief of their mother. "*Remember, my Eliza, you are a Christian,*" were the expressions with which he frequently, with a firm voice, but, in a pathetic and impressive manner, addressed her. His words, and the tone in which they were uttered, will never be effaced from my memory. About two o'clock, as the public well know, he expired—

"Incorrupta fides—nudaque veritas  
Quando ullum invenient parem?  
Multis ille quidem flebilis occidit."

Your friend and humble servant,

**DAVID HOSACK.**

"After his death, a note, which had been written the evening before the interview, was found addressed to the gentleman who accompanied him to the field; thanking him with tenderness for his friendship to him, and informing him where would be found the keys of certain drawers in his desk, in which he had deposited such papers as he had thought proper to leave behind him, together with his last will." Among these papers was the following.

On my expected interview with Colonel Burr, I think it proper to make some remarks explanatory of my conduct, motives, and views.

I was certainly desirous of avoiding this interview for the most cogent reasons.

1. My religious and moral principles are strongly opposed to the practice of duelling, and it would ever give me pain to be obliged to shed the blood of a fellow-creature in a private combat forbidden by the laws.

2. My wife and children are extremely dear to me, and my life is of the utmost importance to them in various views.

3. I feel a sense of obligation towards my creditors; who, in case of accident to me, by the forced sale of my property, may be in some degree sufferers. I did not think myself at liberty, as a man of probity, lightly to expose them to this hazard.

4. I am conscious of no *ill will* to Colonel Burr distinct from political opposition, which, as I trust, has proceeded from pure and upright motives.

Lastly, I shall hazard much, and can possibly gain nothing by the issue of the interview.



But it was, as I conceive, impossible for me to avoid it. There were *intrinsic* difficulties in the thing, and *artificial* embarrassments from the manner of proceeding on the part of Colonel Burr.

*Intrinsic*, because it is not to be denied that my animadversions on the political principles, character, and views of Colonel Burr have been extremely severe; and, on different occasions, I, in common with many others, have made very unfavourable criticisms on particular instances of the private conduct of this gentleman.

In proportion as these impressions were entertained with sincerity, and uttered with motives and for purposes which might appear to me commendable, would be the difficulty (until they could be removed by evidence of their being erroneous) of explanation or apology. *The disavowal required of me by Colonel Burr, in a general and definite form, was out of my power*, if it had really been proper for me to submit to be so questioned; but I was sincerely of the opinion that this could not be; and in this opinion I was confirmed by that of a very moderate and judicious friend whom I consulted. Besides that, Colonel Burr appeared to me to assume, in the first instance, a tone unnecessarily peremptory and menacing, and, in the second, positively offensive. Yet I wished, as far as might be practicable, to leave a door open for accommodation. This, I think, will be inferred from the written communications made by me and by my direction, and would be confirmed by the conversations between Mr. Van Ness and myself which arose out of the subject.

I am not sure whether, under all the circumstances, I did not go further in the attempt to accommodate than a punctilious delicacy will justify. If so, I hope the motives I have stated will excuse me.

It is not my design, by what I have said, to affix any odium on the character of Colonel Burr in this case. *He doubtless has heard of*

*animadversions of mine which bore very hard upon him; and it is probable that, as usual, they were accompanied with some falsehoods. He may have supposed himself under a necessity of acting as he has done. I hope the grounds of his proceeding have been such as ought to satisfy his own conscience.*

I trust, at the same time, that the world will do me the justice to believe *that I have not censured him on light grounds nor from unworthy inducements. I certainly have had strong reasons for what I have said, though it is possible that in some particulars I have been influenced by misconstruction or misinformation.* It is also my ardent wish *that I may have been more mistaken than I think I have been,* and that he, by his future conduct, may show himself worthy of all confidence and esteem, and prove an ornament and blessing to the country.

As well, because it is possible that I may have injured Colonel Burr, however convinced myself that my opinions and declarations have been well founded, as from my general principles and temper in relation to similar affairs, I have resolved, if our interview is conducted in the usual manner, and it pleases God to give me the opportunity, to reserve and throw away my first fire, and I have thoughts even of reserving my second fire, and thus giving a double opportunity to Colonel Burr to pause and to reflect.

It is not, however, my intention to enter into any explanations on the ground—apology from principle, I hope, rather than pride, is out of the question.

To those who, with me, abhorring the practice of duelling, may think that I ought on no account to add to the number of bad examples, I answer, that my *relative* situation, as well in public as private, enforcing all the considerations which men of the world denominate honour, imposed on me

(as I thought) a peculiar necessity not to decline the call. The ability to be in future useful, whether in resisting mischief or effecting good, in those crises of our public affairs which seem likely to happen, would probably be inseparable from a conformity with prejudice in this particular.

A.H.

The impression which the death of General Hamilton made on every class of people in the city of New-York is best described by simply remarking, that all party distinction was lost in the general sentiment of respect expressed for the illustrious dead. On Wednesday morning, the 11th of July, 1804, the parties met; on Thursday, the 12th, General Hamilton died; and on Saturday, the 14th, he was interred, with military honours, "the Society of the Cincinnati being charged with the direction of the funeral ceremonies of its president-general." About noon, the different bodies forming the procession took their respective places. The body was conducted from the house of his brother-in-law, John B. Church, Esq., to Trinity Church, where an appropriate oration was delivered by the Hon. Gouverneur Morris.

TO THEODOSIA.

New-York, July 10, 1804.

Having lately written my will, and given my private letters and papers in charge to you, I have no other direction to give you on the subject but to request you to burn all such as, if by accident made public, would injure any person. This is more particularly applicable to the letters of my female correspondents. All my letters, and copies of letters, of which I have retained copies, are in the six blue boxes. If your husband or any one else

(no one, however, could do it so well as he) should think it worth while to write a sketch of my life, some materials will be found among these letters.

Tell my dear Natalie that I have not left her any thing, for the very good reason that I had nothing to leave to any one. My estate will just about pay my debts and no more—I mean, if I should die this year. If I live a few years, it is probable things may be better. Give Natalie one of the pictures of me. There are three in this house; that of Stewart, and two by Vanderlyn. Give her any other little tokens she may desire. One of those pictures, also, I pray you to give to Doctor Eustis. To Bartow something—what you please.

I pray you and your husband to convey to Peggy the small lot, not numbered, which is the fourth article mentioned in my list of property. It is worth about two hundred and fifty dollars. Give her also fifty dollars in cash as a reward for her fidelity. Dispose of Nancy as you please. She is honest, robust, and good-tempered. Peter is the most intelligent and best-disposed black I have ever known. (I mean the black boy I bought last fall from Mr. Turnbull.) I advise you, by all means, to keep him as the valet of your son. Persuade Peggy to live with you if you can.

I have desired that my wearing apparel be given to Frederic. Give him also a sword or pair of pistols.

Burn immediately a small bundle, tied with a red string, which you will find in the little flat writing-case—that which we used with the curricule. The bundle is marked "*Put.*"

The letters of *Clara* (the greater part of them) are tied up in a white handkerchief, which you will find in the blue box No. 5. You may hand them to Mari, if you please. My letters to Clara are in the same bundle. You,

and by-and-by Aaron Burr Alston, may laugh at *gamp* when you look over this nonsense.

Many of the letters of *Clara* will be found among my ordinary letters, filed and marked, sometimes "*Clara*", sometimes "L."

I am indebted to you, my dearest Theodosia, for a very great portion of the happiness which I have enjoyed in this life. You have completely satisfied all that my heart and affections had hoped or even wished. With a little more perseverance, determination, and industry, you will obtain all that my ambition or vanity had fondly imagined. Let your son have occasion to be proud that he had a mother. Adieu. Adieu.

**A. BURR.**

I have directed that the flat writing-case and the blue box No. 5, both in the library, be opened only by you. There are six of these blue boxes, which contain my letters and copies of letters, except those two clumsy quarto volumes, in which letter-press copies are pasted. They are somewhere in the library. The keys of the other five boxes are in No. 5.

It just now occurs to me to give poor dear Frederic my watch. I have already directed my executors here to give him my wearing apparel. When you come hither you must send for Frederic, and open your whole heart to him. He loves *me* almost as much as Theodosia does; and he does love *you* to adoration.

I have just now found four packets of letters between *Clara and Mentor* besides those in the handkerchief. I have thrown them loose into box No. 5. What a medley you will find in that box!

The seal of the late General Washington, which you will find in the blue box No. 5, was given to me by Mr. and Mrs. Law. You may keep it for your son, or give it to whom you please.

Assure Mrs. Law of my latest recollection. Adieu. Adieu.

**A. BURR.**

TO JOSEPH ALSTON.

New-York, July 10, 1804.

**MY DEAR SIR,**

You will find enclosed a statement of my affairs. Swartwout and Van Ness are joint executors with you and Theodosia. It was indispensable that there should be an executor on the spot. I have directed them to sell immediately my horses, and to sell nothing else until your pleasure shall be known. I pray that Theodosia may be consulted and gratified in this particular.

Explanations of every concern of my property is given in two sheets of paper which accompany my will. The enclosed is an abstract.

It would have been a great satisfaction to me to have had your assurance that you would assume my debts, and take and dispose of the property at discretion. It may be done in a way which you would find a convenience. My creditors would take your assumption at such time as you might judge convenient. The property will, undoubtedly, produce more than the amount of my debts. What you may not incline to keep may be forthwith turned into cash.

The library, maps, pictures, and wine are articles which you will need, and which you cannot procure without great trouble and more money. I think, too, you would do well to retain Richmond Hill, as a more convenient residence than Montalto, particularly as no expense will be necessary for buildings or improvements.

My private letters I have directed to be put in the hands of Theodosia, that she may select from them her own, those of her mother, and some others. Among them and my copies you will find much of trifling, something of amusement, and a little of interest.

Get from Mr. Taylor (the younger), of Columbia or Camden, my letters to his brother-in-law, the late J.E. Hunt, who was one of your chancellors.

Messrs. R. Bunner, William Duer, John Duer, and J.W. Smith, of this city, and John Van Ness Yates, of Albany, all lawyers and young men of talents, have manifested great and disinterested zeal in my favour on some recent occasions. [4]

I pray you to take some notice of them, and give to each of them, and to William T. Broome, now in Paris, some small token of remembrance of me. William T. Broome, with great defects of temper, unites very considerable literary talents and acquirements. A little attention would attach them all to you.

My very worthy friend, Charles Biddle, of Philadelphia, has six or seven sons—three of them grown up. With different characters and various degrees of intelligence, they will all be men of eminence and of influence. Call to see the father when you pass through Philadelphia, and receive the sons kindly.

I have taught my friends in every quarter to look to you as my representative. There are many of them, your discernment will distinguish which, on whose loyalty and firmness you may rely through all changes.

I have called out General Hamilton, and we meet tomorrow morning. Van Ness will give you the particulars. The preceding has been written in contemplation of this event. If it should be my lot to fall, \* \* \* \* \* yet I shall live in you and your son. I commit to you all that is most dear to me—my reputation and my daughter. Your talents and your attachment will be the guardian of the one—your kindness and your generosity of the other. Let me entreat you to stimulate and aid Theodosia in the cultivation of her mind. It is indispensable to her happiness and essential to yours. It is also of the utmost importance to your son. She would presently acquire a critical knowledge of Latin, English, and all branches of natural philosophy. All this would be poured into your son. If you should differ with me as to the importance of this measure, suffer me to ask it of you as a last favour. She will richly compensate your trouble.

Most affectionately adieu,

**A. BURR.**

The elder Prevost, [5] Augustine James Frederic Prevost, is a most amiable and honourable man. Under the garb of coarse rusticity you will find, if you know him, refinement, wit, a delicate sense of propriety, the most inflexible intrepidity, incorruptible integrity, and disinterestedness. I wish you could know him; but it would be difficult, by reason of his diffidence and great reluctance to mingle with the world. It has been a source of extreme regret and mortification to me that he should be lost to



society and to his friends. The case seems almost remediless, for, alas! *he is married!*

**A. BURR.**

If you can pardon and indulge a folly, I would suggest that Madame Sansay, too well known under the name of Leonora, has claims on my recollection. She is now with her husband at St. Jago of Cuba.

**A. BURR.**

Footnotes:

1. Colonel Burr then resided at Richmond Hill.

2. For the satisfaction of some of General Hamilton's friends, I examined his body after death, in presence of Dr. Post and two other gentlemen. I discovered that the ball struck the second or third false rib, and fractured it about in the middle; it then passed through the liver and diaphragm, and, as far as we could ascertain without a minute examination, lodged in the first or second lumbar vertebra. The vertebra in which it was lodged was considerably splintered, so that the spiculae were distinctly perceptible to the finger. About a pint of clotted blood was found in the cavity of the belly, which had probably been effused from the divided vessels of the liver.

3. As his habit was delicate, and had been lately rendered more feeble by ill health, particularly by a disorder of the stomach and bowels, I carefully avoided all those remedies which are usually indicated on such occasions.

4. They supported Colonel Burr for the office of governor in opposition to Morgan Lewis.

5. Mrs. Burr's son by her first husband, Colonel Prevost, of the British army.

## **CHAPTER XVII.**

**TO JOSEPH ALSTON.**

New-York, July 13, 1804.

GENERAL HAMILTON died yesterday. The malignant federalists or Tories, and the imbibed Clintonians, unite in endeavouring to excite public sympathy in his favour and indignation against his antagonist. Thousands of absurd falsehoods are circulated with industry. The most illiberal means are practised in order to produce excitement, and, for the moment, with effect.

I propose leaving town for a few days, and meditate also a journey for some weeks, but whither is not resolved. Perhaps to Statesburgh. You will hear from me again in about eight days.

**A. BURR.**

**TO JOSEPH ALSTON.**

July 18, 1804.

The event of which you have been advised has driven me into a sort of exile, and may terminate in an actual and permanent ostracism. Our most

unprincipled Jacobins are the loudest in their lamentations for the death of General Hamilton, whom, for many years, they have uniformly represented as the most detestable and unprincipled of men—the motives are obvious. Every sort of persecution is to be exercised against me. A coroner's jury will sit this evening, being the *fourth* time. The object of this unexampled measure is to obtain an inquest of murder. Upon this a warrant will issue to apprehend me, and, if I should be taken, no bail would probably be allowed. You know enough of the temper and principles of the generality of the officers of our state government to form a judgment of my position.

The statement [1] in the Morning Chronicle was not submitted to my perusal, I being absent at the time of the publication. Several circumstances not very favourable to the deceased are suppressed; I presume, from holy reverence for the dead. I am waiting the report of this jury; when that is known, you shall be advised of my movements. At present I have decided on nothing. Write under cover to Charles Biddle, Philadelphia.

**A. BURR.**

TO THEODOSIA.

July 20, 1804.

La G. has, on a recent occasion, manifested a degree of sensibility and attachment which have their influence on *gamp*. Her conduct is also highly honourable to the independence of her mind, for all her associations and connexions would lead to a different result. An interview is expected this evening, which, if it take place, will terminate in something definitive.

It was, indeed, a pretty ludicrous description which you received. On the other side you may add, real good-temper and cheerfulness; a good

education, according to the estimation of the world. I shall journey somewhere within a few days, but whither is not yet decided. My heart will travel southward, and repose on the hills of Santee.

Adieu, my dear child.

A. BURR.

TO JOSEPH ALSTON.

Philadelphia, July 29, 1804.

The coroner's jury continued to the 26th (my last New-York date) to sit and adjourn. Upon suspicion that my friends had some knowledge of the subject, derived either from Van Ness or me, *warrants* have issued to bring them in to testify. Matthew L. Davis was apprehended, and, refusing to answer, was committed to prison, where he now lies; probably Colonel Willett is now also in jail on the same account. Swartwout, Van Ness, and others are secreted. How long this sort of persecution may endure cannot be conjectured.

The ferment, which was with so much industry excited, has subsided, and public opinion begins to take its proper course.

A. BURR.

FROM JOHN SWARTWOUT.

New-York, August 2, 1804.

I was interrupted in my letter yesterday. The jury agreed to their verdict this morning at *two o'clock, viz.,* wilful murder by the hand of A. B. William P. Van Ness and Nathaniel Pendleton accessories before the fact. The only evidence, Bishop Moore. Edward Ferris, James Ferris, and a Mr. Milne dissented, and contemplate a protest against the illegal conduct of the coroner. Their counsel is James Woods. At four o'clock this morning I despatched an express to Van Ness. The printers, you perceive, continue their malevolence through the vilest motives; notwithstanding all this, there is a considerable reaction. The public palate has become satiated. The Nicholsons, the Gelstons, the Mills's, and may other demo's are rapidly travelling back to 1800. Mr. P. called and begged that the Chronicle might still be kept silent. He observed, that he mixed with these people, and found it to be the true policy. Although this is not my opinion, yet we must be governed by the advice of the majority.

The oration (by Gouverneur Morris) has displeased many republicans of the first water. Governor Morgan Lewis speaks of the proceedings openly as disgraceful, illiberal, and ungentlemanly. In short, a little more noise on their side, and a little further magnanimity on ours, is all that is necessary. In all this bustle, judicious men see nothing but the workings of the meanest passions. The Salem Gazette and the Boston Chronicle seem to take the most correct ground.

TO JOSEPH ALSTON.

Philadelphia, August 3, 1804.

The preceding is a summary of the intelligence by this day's mail. The purport of the inquest is confirmed by a letter from J.B.P. I am further advised that an application has been made to Governor Lewis, of New-

York, requiring him to demand me of the governor of this state, with which Lewis will most probably be obliged to comply. I shall, nevertheless, remain here some days (from 8 to 20), that I may the better know the measures of the enemy. *Have no anxiety about the issue of this business.*

**A. BURR.**

TO THEODOSIA.

Philadelphia, August 2, 1804.

Your letters of the 8th and 18th of July are received; the latter yesterday. You must not complain or find fault if I omit to answer, or even to write. Don't let me have the idea that you are dissatisfied with me a moment. I can't just now endure it. At another time you may play the Juno if you please. Your letters amuse and console me. Continue to write with this reliance, and without the expectation of pay in kind. I owe you no thanks for a letter if you demand prompt payment to the full amount.

All you write of the boy represents him such as I would have him. His refusal of the peaches reminded me of his mother. Just so she has done fifty times, and just so I kissed her; but then I did not give her peaches.

Nothing can be done with Celeste. There is a strange indecision and timidity which I cannot fathom. The thing, however, is abandoned; and, for a few months, I believe, all such things.

I shall be here for some days. How many cannot now be resolved. I am very well, and not without occupation or amusement. Nothing would give me so much pleasure as to hear that your time, or any part of it, is usefully employed.

**A. BURR.**

**TO THEODOSIA.**

Philadelphia, August 3, 1804.

You will have learned, through Mr. Alston, of certain measures pursuing against me in New-York. I absent myself from home merely to give a little time for passions to subside, not from any apprehension of the final effects of proceedings in courts of law. They can, by no possibility, eventually affect my person. You will find the papers filled with all manner of nonsense and lies. Among other things, accounts of attempts to assassinate me. These, I assure you, are mere fables. Those who wish me dead prefer to keep at a very respectful distance. No such attempt has been made nor will be made. I walk and ride about here as usual.

**A. BURR.**

**TO THEODOSIA.**

Philadelphia, August 11, 1804.

Your letter of the 25th July finds me in a moment of great occupation, being on the point of embarking for St. Simons. Write to me on receipt of this, and enclose to the postmaster at Darien, Georgia. The letter to me to be addressed to A. B., at Hampton, St. Simons; and pray write over again all you have written since the 25th, for the letters now on the way will not be received for some time. I shall lay a plan for meeting you somewhere, but whether I may have it in my power to visit the high hills of Santee is doubtful; I fear improbable. They say there is no going through the flat



country at this season without hazard of life. Consult your husband about this, and write me as above directed. You shall hear from me the moment of my arrival anywhere; that is, I shall write, and you may read as soon as you can get the letter.

If any male friend of yours should be dying of ennui, recommend to him to engage in a duel and a courtship at the same time—prob. est.

Celeste seems more pliant. I do believe that eight days would have produced some grave event; but, alas! those eight days, and perhaps eight days more, are to be passed on the ocean.

My love to Natalie; to her girl and your boy. I have received a very charming letter from her, which shall be noticed when I get the other side of you. Adieu.

**A. BURR.**

TO JOSEPH ALSTON.

Philadelphia, August 11, 1804.

Your letters of the 21st and 25th July are just now received, and I have barely time to read them and transmit your orders to New-York about Montalto.

My plan is to visit the Floridas for five or six weeks. I have desired Theodosia to consult you whether there be any healthy point within a hundred miles or so of St. Simons at which we might meet. Might I safely travel through your low country at this season?

Theodosia fat and the boy pale are bad omens. For God's sake, or rather for theirs, your own, and mine, hurry them off to the mountains. I could, perhaps, as easily find you there as elsewhere. Warrants have been issued in New-York against all those charged with an agency in the death of General Hamilton, but no requisition or demand has been made by the governor of that state on this or any other, nor does it seem very probable that such demand will be immediately made.

I am negotiating to get an assurance from authority that I shall be bailed, on receipt of which I shall surrender.

The eastern republicans take part against the calumniators in New-York. Swartwout is now here. He thinks the tide has already turned in New-York. You had better open a correspondence with him.

**A. BURR.**

TO THEODOSIA.

Hampton, St. Simon's, August 28, 1804.

We arrived on Saturday evening, all well. The mail, which arrives but once a week, had just gone. An accidental opportunity enables me to forward this to Savannah.

I am at the house of Major Butler, comfortably settled. A very agreeable family within half a mile. My project is to go next week to Florida, which may take up a fortnight or ten days, and soon after my return to go northward, by Augusta and Columbia, if I can find ways and means to get on; but I have no horse, nor does this country furnish one. In my letter to your husband, written at the moment of leaving Philadelphia, I desired him

to name some place (healthy place) at which he could meet me. Enclose to "Mr. R. King, Hampton, St. Simon's."

**A. BURR.**

## TO THEODOSIA.

St. Simon's, August 31, 1804.

I am now quite settled. My establishment consists of a housekeeper, cook, and chambermaid, seamstress, and two footmen. There are, besides, two fishermen and four bargemen always at command. The department of laundress is done abroad. The plantation affords plenty of milk, cream, and butter; turkeys, fowls, kids, pigs, geese, and mutton; fish, of course, in abundance. Of figs, peaches, and melons there are yet a few. Oranges and pomegranates just begin to be eatable. The house affords Madeira wine, brandy, and porter. Yesterday my neighbour, Mr. Couper, sent me an assortment of French wines, consisting of Claret, Sauterne, and Champagne, all excellent; and at least a twelve months' supply of orange shrub, which makes a most delicious punch. Madame Couper added sweetmeats and pickles. The plantations of Butler and Couper are divided by a small creek, and the houses within one quarter of a mile of each other; accessible, however, only by water. We have not a fly, moscheto, or bug. I can sit a whole evening, with open windows and lighted candles, without the least annoyance from insects; a circumstance which I have never beheld in any other place. I have not even seen a cockroach.

At Mr. Couper's, besides his family, there are three young ladies, visitors. One of them arrived about three months ago from France, to join a brother who had been shipwrecked on this coast, liked the country so much that he

resolved to settle here, and sent for this sister and a younger brother. About the time of their arrival, the elder brother was accidentally drowned; the younger went with views to make an establishment some miles inland, where he now lies dangerously ill. Both circumstances are concealed from the knowledge of Mademoiselle Nicholson. In any event, she will find refuge and protection in the benevolent house of Mr. Couper.

The cotton in this neighbourhood, on the coast southward to the extremity of Florida, and northward as far as we have heard, has been totally destroyed. The crop of Mr. C. was supposed to be worth one hundred thousand dollars, and not an extravagant estimate, for he has eight hundred slaves. He will not get enough to pay half the expenses of the plantation. Yet he laughs about it with good humour and without affectation. Butler suffers about half this loss. Part of his force had been turned to rice. My travelling companion, secretary, and aid-de-camp is Samuel Swartwout, the youngest brother of John, a very amiable young man of twenty or twenty-one.

Now, verily, were it not for the intervention of one hundred miles of low, swampy, pestiferous country, I would insist on your coming to see me, all, all! Little *gamp*, and Mademoiselle Sum\_tare\_, and their appendages; for they are the principals.

I still propose to visit Florida. To set off in three or four days, and to return hither about the 16th of September; beyond this I have at present no plan. It is my wish, God knows how ardently I wish, to return by land, and pass a week with you; but, being without horses, and there being no possibility of hiring or buying, the thing seems scarcely practicable. Two modes only offer themselves—either to embark in the kind of mail stage which goes from Darien through Savannah, Augusta, and Columbia, to Camden, or to take a water passage either to Charleston or Georgetown.

Either of these being accomplished, new difficulties will occur in getting from Statesburgh northward. I must be at New-York the first week in November. Consult your husband, and write me of these matters. Enclose to Mr. Roswell King, which I repeat, lest my former letters should not have been received. Our mail has just arrived, but has brought me no letter.

I erred a little in my history of the family of Mademoiselle N. There are still two brothers here. One a man d'une certaine age. Though not wealthy, they are not destitute of property.

Mr. C. has just now gone with his boat for the dashers who live about thirty miles southwest on the main. He has requested me to escort Madame C. on Sunday to his plantation on the south end of this island, where we are to meet him and his party on Monday, and bring them home in our coach. Madame C. is still young, tall, comely, and well bred.

I have been studying all the maps and gazetteers to discover the best access to Statesburgh. Georgetown seems to be the nearest port; but whether there be thence a direct road, I cannot discover. Does our friend Doctor Blythe still reside at Georgetown? If so, I should repose on him for the means of transportation. Desire Mari to write to him to aid me in case I should take that route. If I should go to Charleston, meaning to Sullivan's Island, for Charleston I shall at this season most certainly avoid, I should put myself on General M'Pherson, who, I hear, is now living there with his family; thence up the Cooper river, about four miles above the town, is a ferryhouse and tavern on the north side, and thence by Strawberry, where is the best tavern in the state, is a very direct and beautiful road, and thence, according to the maps, a very straight road to the high hills of Santee. But how to get from that ferryhouse is a question I cannot resolve. All these circumstances are mentioned that I may have your advice, meaning that of your husband. And, after all, it is possible that I may not be able to find a

passage either to Charleston or Georgetown, and so be obliged to sail for New-York. Will close this letter, for to-morrow it must go to the postoffice at Darien, which is only about twenty-two miles distant.

September 1.

In one of Mr. Alston's letters he spoke of taking you and A. B. A. to the mountains; and, in a letter which I wrote him from Philadelphia, I proposed to meet you in the mountains. Now, for aught which I as yet know, it will be as easy for me to get to the mountains, or to the Alps, or the Andes, as to Statesburgh, and therefore, as before, I crave counsel.

Do you recollect the second daughter of Mr. Barclay, of Philadelphia, the sister of Nelly? She has grown up the very image of her sister. I saw her very often while I was last in Philadelphia. She talked perpetually of you, and made me promise that I would tell you so.

Adieu, my dear Theodosia. Remember that I have not received a letter from you since that of the 22d or 25th of July. I forget which was the date. I have no faith in the climate of your high hills, surrounded as they are by noxious swamps. God bless and preserve thee.

**A. BURR.**

TO THEODOSIA.

St. Simon's, September 3, 1804.

You see me returned from Gaston's Bluff, now called *Hamilton's Bluff*, a London merchant, partner of Mr. Couper. We were four in the carriage; the three ladies and myself.

Mr. Morse informs you that this island is forty-five miles long, and that it lies north of the mouth Altamaha, commonly spelled Alatomaha. It is, in fact, twelve and a half miles in length, and lies southeast of that river. Its width is about two and a half miles. There are now residing on the island about twenty-five white families. Frederica, now known only by the name of *Old Town*, is on the west side of the island, and about midway between its northern and southern extremities. It was first settled by Governor Oglethorpe, and was, about fifty years ago, a very gay place, consisting of perhaps twenty-five or thirty houses. The walls of several of them still remain. Three or four families only now reside here. In the vicinity of the town several ruins were pointed out to me, as having been, formerly, country seats of the governor, and officers of the garrison, and gentlemen of the town. At present, nothing can be more gloomy than what was once called Frederica. The few families now remaining, or rather residing there, for they are all new-comers, have a sickly, melancholy appearance, well assorted with the ruins which surround them. The southern part of this island abounds with fetid swamps, which must render it very unhealthy. On the northern half I have seen no stagnant water.

Mr. Couper, with his escort of ladies, was to have met us this afternoon, but he has sent us word that he is taken ill on the way; that, owing to illness in the family of the ladies who were to have accompanied him, they have been obliged to renounce the visit. We therefore returned as we went. At Frederica and Gaston's Bluff we were convinced that insects can subsist on this island. Moschetoes, flies, and cockroaches abounded.

Thursday, September 6, 1804

Just returned from Darien. And what took you to Darien? To see the plantation of Mr. Butler on an island opposite that town, and to meet a day sooner the letters which I expected from you. In the last object I have been

again disappointed, which I ascribe wholly to the irregularity of the mails. It is most mortifying and vexatious to be seven weeks without hearing of you or from you, and now a whole week must elapse before I can expect it.

You are probably ignorant that Darien is a settlement (called a town) on the north bank of the Alatomaha, about eight miles from its mouth. Major Butler's Island in this river is one mile below the town. It must become a fine rice country, for the water is fresh four miles below Major Butler's, and the tide rises from four to five feet, and the flats or swamps are from five to seven miles in width for a considerable distance up the river. The country, of course, presents no scenes for a painter. I visited Little St. Simon's and several other islands; frightened the crocodiles, shot some rice-birds, and caught some trout. Honey of fine flavour is found in great abundance in the woods about the mouth of the river, and, for aught I know, in every part of the country. You perceive that I am constantly discovering new luxuries for my table. Not having been able to kill a crocodile (alligator), I have offered a reward for one, which I mean to eat, dressed in soup, fricassees, and steaks. Oh! how you long to partake of this repast.

Wednesday, September 12, 1804.

On Friday last, hearing that Mr. Couper had returned and was very seriously ill, I took a small canoe with two boys, and went to see him. He lay in a high fever. When about to return in the evening, the wind had risen so that, after an ineffectual attempt, I was obliged to give it up, and remain at Mr. C.'s. In the morning the wind was still higher. It continued to rise, and by noon blew a gale from the north, which, together with the swelling of the water, became alarming. From twelve to three, several of the out-houses had been destroyed; most of the trees about the house were blown down. The house in which we were shook and rocked so much that Mr. C. began to express his apprehensions for our safety. Before three, part of the



piazza was carried away; two or three of the windows bursted in. The house was inundated with water, and presently one of the chimneys fell. Mr. C. then commanded a retreat to a storehouse about fifty yards off, and we decamped, men, women, and children. You may imagine, in this scene of confusion and dismay, a good many incidents to amuse one if one had dared to be amused in a moment of much anxiety. The house, however, did not blow down. The storm continued till four, and then very suddenly abated, and in ten minutes it was almost a calm. I seized the moment to return home. Before I had got quite over, the gale rose from the southeast and threatened new destruction. It lasted great part of the night, but did not attain the violence of that from the north; yet it contributed to raise still higher the water, which was the principal instrument of devastation. The flood was about seven feet above the height of an ordinary high tide. This has been sufficient to inundate great part of the coast; to destroy all the rice; to carry off most of the buildings which were on low lands, and to destroy the lives of many blacks. The roads are rendered impassable, and scarcely a boat has been preserved. Thus all intercourse is suspended. The mail-boat, which ought to have passed northward last Saturday, and by which it was intended to forward this letter, has not been heard of. This will go by a man who will attempt to get from Darien to Savannah on foot, being sent express by the manager of Major Butler; but how, or whether it will go on from Savannah, is not imagined.

Major Butler has lost nineteen negroes (drowned), and I fear his whole crop of rice, being about two hundred and sixty acres. Mr. Brailsford, of Charleston, who cultivates in rice an island at the mouth of the Alatamaha, has lost, reports say, seventy-four blacks. The banks and the buildings on the low lands are greatly injured. We have heard nothing from the southward, nor farther than from Darien northward. I greatly fear that this hurricane, so it is here called, has extended to the Waccama.

The illness of Mr. C., which still continues, and the effects of the storm, have defeated all my plans. To get to Florida seems now impracticable; nor do any present means occur of getting from this island in any direction. Young Swartwout, who went ten days ago to Savannah, has not returned, nor is it possible that he should very speedily return. I have not received a letter since my arrival from any person north of Savannah (yes, one from C. Biddle, of 19th August), nor do I expect one for many days to come.

I had taken up another sheet to say something more, I know not what; but the appearance of a fine sheep's-head smoking on the table has attractions not to be resisted. *Laissez moi diner*, "and then," &c.

*Madame j'ais bien diner*, and *j'ai fait mettre mon* writing-desk *sur le table a diner*. What a scandalous thing to sit here all alone drinking Champagne—and yet—(*madame je bois a votre santé et a celle de monsieur* votre fils)—and yet, I say, if Champagne be that exhilarating cordial which (*je bois a la santé de Madame Sumtare*) songs and rumour ascribe to it (*a la santé de Mademoiselle Sumtare*), can there be ever an occasion in which its application could be more appropriate, or its virtues more (*mais buvons a la santé de mon hôte et bon ami*, Major Butler). By-the-by, you have no idea—how should you have, seeing that you never heard a word about it?—you have no idea, I was going to say, of the zeal and animation, of the intrepidity and frankness with which he avowed and maintained—but I forget that this letter goes to Savannah by a negro, who has to swim half a dozen creeks, in one of which, *at least*, it is probable he may drown, and that, if he escape drowning, various other accidents may bring it to you through the newspapers, and then how many enemies might my indiscretion create for a man who had the sensibility and the honour to feel and to judge, and the firmness to avow (*a la santé de Celeste un bumper toast*). *La pauvre Celeste*. Adieu.

A. BURR.

## TO THEODOSIA.

Frederica, St. Simon's, September 15, 1804.

Having very unexpectedly procured a boat, I left my house yesterday afternoon, came hither by land, and proceed in a few minutes for St. Mary's. It is possible that I may extend my tour to St. John's, and even to St. Augustine's; but, if so, it will be very rapid; a mere flight, for I propose to be at home (Hampton, St. Simon's) again in eight days.

On the 12th I sent by a special messenger, who was to go from Darien to Savannah on foot, my journal for the ten or fifteen days preceding, with some account of the hurricane; but a man this day from Darien says that our express can by no possibility reach Savannah; for that every bridge and causeway is destroyed, and the road so filled with fallen trees as to be utterly impassable. I apprehend that the roads on the whole coast as far north, at least, as Cape Hatteras, are in the same condition. If on my return I should receive intelligence confirming those apprehensions, it will compel me to abandon the hope of seeing you until the last of February. On this, as on all other occasions, let me find that you exhibit the firmness which I have been proud to ascribe to you. Let me hear that you are seriously engaged in some useful pursuit. Let me see the progressive improvement of your mind, and it will console me for all the evils of life.

My young friend Swartwout is still absent, and I suppose at Savannah. It is not probable that I shall see him again before my return to New-York.

A Mr. Bartram, of Philadelphia, travelled through Georgia and the Floridas in 1772. His travels are published in one large octavo volume. Procure and read it, and you will better understand what I may write you. I promise myself much gratification in this little trip. If an opportunity should offer for Charleston by water, I shall venture a letter to you. This will be forwarded before my return; if not, it will lay here. I am writing to you before sunrise, and am now summoned to the boat (canoe).

**A. BURR.**

TO THEODOSIA.

Hampton, St. Simon's, September 26, 1804.

I returned yesterday from my Florida excursion, about which I wrote you on the 15th inst. The weather prevented me from going farther than the river St. John's, about thirty miles from St. Augustine. I have been making out for you a journal of my tour, but I still entertain a slight hope of seeing you somewhere within a fortnight; if at all, it will be by the 10th of October. Pray keep yourselves in readiness to meet me at Columbia, or still more southward if I should require it.

Not a line from you or your husband since those of the 25th of July. Your letters have either been lost in the hurricane or are now in the mail-boat, which, by some mistake, has brought down the Darien mail and carried it on more southward, so that it will not reach Darien till I am off; yet I entertain a hope of finding letters at Savannah.

A boat has at length been found to take me to Savannah, and thither I go to-morrow, or rather set out, for I shall not reach it till the 30th instant. What course I shall take thence will be determined by what I may hear at

that city. You will have a line from me as soon as I arrive there; meaning always that the line will be written, and sent on by the first mail, to get to you as soon as it can.

It is a fact that the Spanish ladies smoke segars. They say that a young lady will take a few puffs and hand it to her favoured lover as a mark of great kindness. This rumour, however, I cannot verify from personal observation, much less have I to boast of any such favour. But we will talk of these things if we should meet; if not, we will write about them.

I was treated with great kindness and respect at St. Mary's, and have everywhere experienced the utmost hospitality. My health has been perfect and uninterrupted. God bless thee.

**A. BURR.**

## TO THEODOSIA.

Savannah, October 1, 1804. Ten o'clock A.M., arrived in a storm (northeast). They had last evening a minor hurricane here, for the special use of this city. It overset some canoes, drowned a few negroes, unroofed some houses, and forced in a few windows. It was the affair of a few minutes, confined to a small space, and did no other mischief that I learn.

My last letter to you was from St. Simon's, about the 27th ult., the day previous to my departure. My voyage hither was full of variety, and not of the most pleasant kind, but no accident to affect health. My first reflection on landing was that I was one hundred miles nearer to you; but my inquiries since my arrival afford no prospect of getting on by land, except by the purchase of horses, to which there is one insuperable objection. The

condition of the roads has not yet admitted of travelling northward or westward in a carriage. The mail goes on horseback.

Not a line from any creature north of this place since I left Philadelphia. I hear, however, that the Darien mail, which I passed at Frederica, as mentioned with vexation in my last, had letters for me, doubtless from you.

I was kindly interrupted in these idle regrets by visitors, who continued in succession till dinner was announced. At the lodging-house, where rooms were provided for me, were the governor, a Scotch merchant, and a sea captain. In the evening a band of music came under the window, which I supposed to be a compliment to the governor, till one of the gentlemen who accompanied it came in and said that a number of citizens at the door wished to see the vice-president. Interrupted again.

Tuesday, October 2.

Firstly, your pardon is craved for this torn sheet; it was entire when I commenced, but one half went last night to answer a note, there being no paper in the house, and Peter abroad with my key. You have not, I think, been introduced to Peter, my *now* valet. It is a black boy purchased last fall. An intelligent, good-tempered, willing fellow, about fifteen; a dirty, careless dog, who, with the best intentions, is always in trouble by sins of omission or commission. The latter through inadvertence, and often through excess of zeal. About three times a day, sometimes oftener, I get angry enough to choke him, but his honesty and good-nature prevail. In my will, made about the 10th of July, I recommend him to you as valet to A.B.A.

I have been this morning scouring the town and the docks in quest of ways and means to get on. There is a packet which will sail for Charleston on Saturday; a great way off to one so impatient as the writer of this. No

stage nor a horse to be hired. Finding that the mail does not close till seven this evening, this letter shall be kept open till the last moment, and shall not be closed till I have settled some plan of getting forward, either to Statesburgh or New-York. It will, I think, be Statesburgh. Six hours hence you shall know. Have patience, my dear child, for six hours.

Lest I should forget it, let me now tell you that I am received with the warmest hospitality. Notwithstanding the desolation occasioned by the hurricane (and it is truly distressing), I have invitations which it would require weeks to satisfy. These attentions are almost exclusively from republicans.

Four o'clock P. M.

*Io triumphe!* A letter; two, three letters. Two from you and one from your husband. Since writing I have had other good luck; viz., two gentlemen have offered me each an excellent horse to go as far as Statesburgh by any route I may please. Another horse, and I am made. Note, my young friend Swartwout is with me, and I cannot well part with him. If another horse shall be found, I shall take the route through Orangeburgh, as being the most direct to Statesburgh. If the land route shall for any reason be found impracticable, I shall take possession of a Charleston packet, and perhaps take it on to Georgetown. By one way or the other you shall see me within ten or twelve days. Tell Mari that his letter being received this afternoon, and the postmaster having just now sent me word that the mail is about to close, I can only answer him thus.

You are now to keep your ground and expect me at the hills. Pray let A.B.A. know that *gamp* is a black man, otherwise he may be shocked at the appearance of A.B., who is now about the colour of Peter Yates. Not brown, but a true quadroon yellow; whether from the effects of climate, or travelling four hundred miles in a canoe, is no matter.

A. BURR.

## TO THEODOSIA.

Fayetteville, October 23, 1804. I get on as usual; arrived here this forenoon, but detained all day by some trifling repairs to the carriage. I promised you a journal in the manner of modern travels, to show you how such books could be made without facts or ideas. My first four days, to wit, from Statesburgh to this place, would, I find, from notes which I have actually taken, make about one hundred pages, and two hundred in the manner of Rochefoucault d'Liancourt; but the labour of so much writing has alarmed and almost discouraged me.

No more pauses, not even for weather, till Richmond, distant two hundred miles, and proposed to be travelled in five days. I know no person in this place but Mr. Grove, late member of Congress, who has not called on me. Tell your husband that I have heard nothing worthy of being communicated. Since I began to write it has begun to rain, as if to test my determination not to be stopped by weather. Adieu, chere T.

A. BURR.

Warrenton, October 27, 1804.

We parted at Fayetteville. The morning following I started one hour before day, the moon showing us the way, and, at about seven or eight in the evening, was at Raleigh, being full fifty miles. It was a hard day's journey, and greater than will be made again on this trip. The fatigues of the day were in some measure compensated by the very hospitable reception which



I met from the *negroes* of the capital of North Carolina. I reposed till nine the next morning, and came the next day only to Louisburgh (twenty-nine miles), where I slept in the little up-stairs room which you once occupied; but there is a new landlord. The Jew is broke up. The wind had been two days strong at northeast, threatening a storm, and raining a little from time to time. Last night it came on in earnest, raining and blowing vehemently. So I lay abed again till nine, and, after breakfasting for two hours, set off at eleven in all the storm. At twelve it began to snow, and continued to snow most plentifully till night. The ground looked like the depth of winter in Albany. Poor Andrew was almost perished; and *gamp's* hands were nearly frozen; still we kept on, and got here about five, being twenty-five miles. It will take me full three days more to reach Richmond, and perhaps longer, for the roads are so gullied as to be barely passable. This afternoon, stopping at a tavern and calling for the hostler, the man told me that, *foreseeing* the storm, he had sent him for a load of wood.

A gentleman who passed here yesterday says he left Major Butler on the way, going to Georgia by land. When I sat down to write my head was full of totally different matters; but, having gone on so far with road incidents, the other concerns must be omitted.

My landlord has just been telling me that Swartwout passed here eight days ago. They were three in the stage, all very apprehensive of being upset, as they were to start at two in the morning. In the excess of caution, they desired the landlord to give no rum to the driver. The landlord promised, and gave orders to the barkeeper. When the driver arrived, he called for a dram; was refused, and told the reason. Resenting this indignity, he swore he would get drunk; went to a store, bought rum, and got drunk. Set out at two, and upset the stage the first hour. The passengers were bruised, but not very seriously injured.

TO JOSEPH ALSTON.

Petersburgh, October 31, 1804.

I came here on the morning of the 29th, intending to stay two hours. The hospitalities of the place have detained me three days. A party was prepared for me on the evening of my arrival. There were present between fifty and sixty, all pure republican. An invitation from the republican citizens, communicated through the mayor, to a public dinner, was made in terms and in a manner which could not be declined. We had the dinner yesterday at the hotel. In the evening I was attended by some fifteen or twenty to the theatre, where I was greatly amused, particularly by Mrs. West, whom I think the best female actress in America, not excepting Mrs. Merry.

I send you a collection of Curran's speeches, compiled, however, only from newspapers. There is reason to hope for one more perfect, made under the inspection of the author. Burk's history has agreeably disappointed me. I speak from the reading of thirty or forty pages. If it should gain your approbation, you may render him a service by procuring him subscriptions at the meeting of your legislature. My horses are at the door to take me to Richmond.

A. BURR.

TO THEODOSIA.

Richmond, October 31 (Evening), 1804.

How faithfully I return you the paper which you *lent* me at Statesburgh. This is the last sheet, and I think you will have received back all but one of them.

My journey hither from Drummond, at which place you left me on Saturday evening, the 27th, just going to bed, beside a comfortable fire in a furnished room (what an unconscionable parenthesis), has been very pleasant; but why and wherefore cannot now be told, because you know it must be reserved for "The Travels of A. Gamp, Esq., A.M., LL.D., V.P.U.S.," &c., &c., &c., which will appear in due time.

Virginia is the last state, and Petersburg the last town in the state of Virginia, in which I should have expected any open marks of hospitality and respect. You will have seen from my note of this morning to Mr. Alston how illy I have judged.

To think of meeting with such an actress as Mrs. West in such a place. Her voice is as sweet as Mrs. Merry's (the actress, not the other Mrs. Merry), her manners superior. In comedy she is unequalled. They say she excites equally in tragedy. I have no doubt but she is good at every thing. I could make you laugh at a ridiculous embarrassment, but I won't; nay, I dare not, for who knows but you may first see this in the newspaper. Madam, this is Colonel B., V.P.U.S., all out loud. Sir, this is Mrs.——. Miss, this is, &c., &c. The players stand, and the pit stand, and the gallery stand. No, there is no gallery. Indeed, I don't know when I have been better entertained with a play.

I arrived here about sunset. Am to dine to-morrow with Dr. B., and, from appearances, might be amused here a week. At the utmost I shall stay but two days, desiring to be at Washington on Monday. I am most comfortably lodged.

Young Dr. Rush travels with Major Butler, which I forgot to mention to your husband. Pray exert yourself to please and amuse Major Butler.

**A. BURR.**

TO JOSEPH ALSTON.

Washington, November 5, 1804.

I arrived last evening. You will have received my two letters of the 30th ult. and 1st instant, communicating, among other things, some information which I received on the road respecting the feelings in Bergen county, New-Jersey. Since that a grand jury has been *empannelled*, who have found an indictment of murder. The witness, Parson Mason. The presiding judge, Boudinot, one of the most vehement of vehement federalists. The particulars shall be communicated as soon as I can find time to write them; they will furnish you with new materials for reflection. They talk of making a demand here.

My house and furniture have been sold for about twenty-five thousand dollars. Seven or eight thousand dollars of debts remain unpaid. My agents have not collected any of my debts, nor sold any of the detached lots. The library and the wine remain. They will, I think, become your property.

A. BURR.

TO THEODOSIA.

Washington, November 17, 1804.

Shall I write to her to-night, or omit it till to-morrow? Oh! to-night, dear pappy. Well, then, to-night it shall be—" *Je vous ecris parceque je n'ai rien a faire*," &c. That's not true; fifty unanswered letters on my table pronounce it false.

But when I deliberated about writing, it was with a view to write you sense—grave sense. What a dull thing is sense. How it mars half the pleasure of life, and yet how contemptible is all that has it not. Too much sense, by which I mean only a great deal, is very troublesome to the possessor and to the world. It is like one carrying a huge pack through a crowd. He is constantly hitting and annoying somebody, and is, in turn, annoyed and jostled by every one, and he must be a very powerful man indeed if he can keep upright and force his way. Now there appears to me to be but two modes of carrying this pack with any tolerable comfort to the owner.

Interrupted. A very extraordinary visit; you shall hear as soon as they go.

The visitors were a middle-aged gentleman; a man of fortune, of family; has travelled, and been received in the first circles on both continents; intelligent and well-informed; prompt, rapid, and decisive. A high federalist, yet a warm and open friend of *gamp* on all occasions. Reputed to be insane, of which this attachment may be deemed an evidence. Such is Mr. Y. The other, Mr. S., a very handsome, genteel young man, who never carried a pack. They sat two hours, and Mr. Y. was not only rational, but amusing. The only evidence of insanity which I have heard is that he quarrels with his dear *rib*; and if this be deemed evidence, I fear our madhouses will soon be filled with married men. I ought to have excepted one incident, which has been related to me as follows:—

Mr. R., a young lawyer of reputable connexions, but who had committed some follies, called to visit Mr. Y. After sitting some time, "Mr. R.," says Y., "it has been reported that you are a little deranged in mind (there had, in fact, been such a report), and I have heard that whipping has been found a sovereign remedy; indeed, in the case of the King of England, its benefit was manifest. Now as I have a very great regard for you, and doubt whether

your friends will take the trouble of administering this discipline, I will take it on myself to do it."

Two stout negroes were called in. The astonished R. was seized, stripped, and tied, and most unmercifully whipped. All, however, with the utmost composure on the part of Y., and mingled with expressions of kindness. When R. was taken down, bloody, lacerated, and exhausted—"Pray, sir, walk in and take a dish of tea." "No; d—n you." "But, as you must be somewhat fatigued with the exercise, perhaps you would prefer some brandy and water." R. walked sullenly off, and, as soon as he had recovered, left the neighbourhood, and has not since been heard of.

But by this digression we have lost sight of the pack. The further discussion of that subject must be reserved for the "Book of Travels." The "grave sense" is still further off, and must wait a more fit occasion. As you are skilled in ancient mythology, I pray you to inform me whether there was ever a goddess of nonsense. A god won't serve my purpose. Momus, for instance, is a loud, boisterous, rude, coarse fellow.

Leave off the *vice-president*, &c., in the direction of your letters. Let it be simply A.B. or Colonel B. Tell Mari so.

**A. BURR.**

TO THEODOSIA.

Washington, December 4, 1804.

You have doubtless heard that there has subsisted for some time a contention of a very singular nature between the states of New-York and New-Jersey. To what lengths it may go, or how it may terminate, cannot be

predicted; but, as you will take some interest in the question, I will state it for your satisfaction and consideration.

The subject in dispute is which shall have the honour of hanging the vice-president. I have not now the leisure to state the various pretensions of the parties, with the arguments on either side; nor is it yet known that the vice-president has made his election, though a paper received this morning asserts, but without authority, that he had determined in favour of the New-York tribunals. You shall have due notice of the time and place. Whenever it may be, you may rely on a great concourse of company, much gayety, and many rare sights; such as the lion, the elephant, &c.

On the subject of books, since I shall write to you only by this mail, tell Mr. Alston to order out from his bookseller the British Critic and the Edinburgh Review from their commencement, and to be continued as they shall come out. To form a library is the work of time, and by having these books you may select and give orders without danger of imposition; for though I disclaim much reliance on the judgments of the editors, yet from their extracts and remarks a pretty correct opinion may be formed. I recommend also that you prohibit the sending out of any folio or quarto, unless particularly ordered. Octavo is at about half the price, and much more convenient.

I hope you read Quintilian in the original, and not in translation; and let me entreat you not to pass a word or sentence without understanding it. If I hear a very good account of you, Stuart shall make a picture to please you. God bless thee.

**A. BURR.**

TO JOSEPH ALSTON.

Washington, December 15, 1804.

The trial of Judge Chace will not come on before the middle of January. He is summoned to appear the 2d January. I regret extremely that you cannot be present.

Biddle and Dallas have written a joint letter to Governor Bloomfield, of New-Jersey, urging a nol. pros. in the case of the vice-president. Dallas has, throughout this business, behaved with an independence, and open, active zeal which I could not have expected, and to which I had no personal claim.

The leading republican members of the United States Senate have addressed a similar joint letter to the governor. Many individuals of the same *sect* co-operate in the measure, and have expressed their opinions by letter and in conversation. Nothing final and favourable will promptly be done. On the other hand, nothing hostile will be attempted. I enclose you the articles of impeachment against Judge Chace, as agreed upon.

A. BURR.

TO THEODOSIA.

Washington, December 31, 1804.

Being the last time I shall write 1804. Now, how much wiser or better are we than this time last year? Have our enjoyments for that period been worth the trouble of living? These are inquiries not wholly congenial with the compliments of the new year, so we will drop them. You would laugh to



know the occupation of my New Year's eve. It cannot be written, but it shall at some time be told.

I propose to move my quarters to-morrow, and the confusion has already commenced, and even pervades this letter. Mrs. Merry arrived a few days ago, and looks extremely well. Madame Turreau is supposed to be lost or captured. Mr. Chace's trial will not come on till after the middle of January. Peter Van Ness, the father of General John P., died on the 23d instant. He has left his sons about forty thousand dollars apiece.

Madame, when I enclose you a book or paper, be pleased, at least, to let me know that you or your husband have read it. Pretty business, indeed, for me to be spending hours in cutting and folding pamphlets and papers for people who, perhaps, never open them. Heaven mend you.

**A. BURR.**

Footnotes:

1. The statement made by William P. Van Ness, Colonel Burr's second.

## CHAPTER XIX.

### TO THEODOSIA.

Washington, January 15, 1805.

At five in the morning I shall start for Philadelphia. The object of this journey has been intimated in a former letter. One motive, however, lays down at the bottom of my heart, and has scarcely, as yet, been avowed to myself. You will conjecture, and rightly, that I mean Celeste. That matter shall receive its final decision. Now, to confess the truth, which, however, I have but just discovered, but for this matter the journey would not have been taken. How little is this truth suspected by the hundreds who are at this moment *ascribing to the movement motives of profound political importance.*

I enclose you a pamphlet written with views the most friendly to A.B. So greatly do I differ from the author, that I have desired a friend to buy them up and burn them. I shall return to this city on the 29th. Adieu.

A. BURR.

TO THEODOSIA.

Washington, January 28, 1805.

Your letter of the 1st of January found me at Philadelphia, and at the moment of leaving it. Your kind wishes came so warm from the heart, that, in a journey of eight hundred miles, at this inclement season, they had not yet cooled.

You treat with too much gravity the New-Jersey affair. It should be considered as a farce, and you will yet see it terminated so as to leave only ridicule and contempt to its abettors. The affair of Celeste is for ever closed, so there is one trouble off hand.

After you get through the book you are now reading, which I think is Anacharsis, or is it Gibbon? you better suspend history till you have gone through B. You do wrong to read so slow the first reading of B. I had rather you went through it like a novel, to get fixed in your mind a kind of map of the whole; after which, when you come to read *scientifically*, you would better see the relations and bearings of one part to another. In all journeys, whether on foot or on horseback, it is a relief to know not only where you start from, but where you are going to, and all the intermediate stages. I beg that in every letter you will give me one line about B., and ask me questions if you please.

A. BURR.

TO THEODOSIA.

Washington, February 23, 1805.

I regret the unprofitable employment of your time, and sincerely hope such long visitations will not be repeated; but you are something to blame

to have taken no books with you, and again for not finding one at Clifton, where I know there are many. Still I believe in your good intentions and in their execution. It will add greatly to my happiness to know that the cultivation of your mind is not neglected; because I know that without it you will become unfit for the duties, as well as the enjoyments of life. Perhaps, also, my vanity may be something concerned.

Your last letters are written with more correctness, and apparently with more attention than is your habit. They have amused and pleased me much. By pleased, I mean gratified my pride. Your critical remarks are quite interesting. I advise you, as soon as you have finished a play, novel, pamphlet, or book, immediately to write an account and criticism of it. You can form no idea how much such a work will amuse you on perusal a few years hence. When A.B.A. has got so far as to read stories of the most simple kind, the least pleasing part of his intellectual education is finished. I might, perhaps, have added with truth, the most laborious part.

#### **A. BURR.**

The last public duty of any importance performed by Colonel Burr was to preside in the case of Judge Samuel Chace, who was impeached before the Senate of the United States for high crimes and misdemeanours. Colonel Burr evinced his accustomed promptitude, energy, and dignity. His impartiality and fairness won for him the applause of opponents as well as friends; and it may be confidently asserted, that never did president judge, in this or any other country, more justly merit applause than did the vice-president on this occasion.

The Senate Chamber, under his immediate direction, was fitted up in handsome style as a court, and laid out into apartments for the senators, the House of Representatives, the managers, the accused and counsel, the

members of the executive departments, besides a semicircular gallery constructed within the area of the chamber, which formed from its front an amphitheatre contiguous with the fixed gallery of the Senate Chamber.

On the right and left of the president of the Senate, and in a right line with his chair, there were two rows of benches, with desks in front, and the whole front and seats covered with crimson cloth, so that the senators fronted the auditory.

The secretary of the Senate retained his usual station in front of the president's chair; on the left of the secretary was placed the sergeant-at-arms of the Senate, and on his right the sergeant-at-arms of the House of Representatives.

A temporary semicircular gallery, which consisted of three ranges of benches, was elevated on pillars, and the whole front and seats thereof covered with green cloth. At the angles or points of this gallery there were two boxes, which projected into the area about three feet from the line of the front, which saved the abruptness of a square termination, and added considerably to the effect of the coup d'oeil. In this gallery ladies were accommodated, and they assembled in numbers.

On the floor beneath this temporary gallery three benches were provided, rising from front to rear, and also covered with green cloth; these benches were occupied by the members of the House of Representatives; on the right there was a spacious box, appropriated for the members of the executive departments, foreign ministers, &c.

A passage was opened in front from the president's chair to the door; on the right and left hand of the president, and in front of the members of the House of Representatives, were two boxes of two rows of seats; that facing the president's right was occupied by the managers, that on the other side of

the bar for the accused and his counsel. These boxes were covered with blue cloth. The marshal of the District of Columbia and a number of his officers were stationed in the avenues of the court and in the galleries.

On the 3d of January, 1805, the senators were sworn as judges, and Monday, the 4th of February ensuing, was fixed as "the day for receiving the answer and proceeding on the trial of the impeachment of Samuel Chace." Accordingly, on the day appointed, the senate convened, and

After proclamation was made that Samuel Chace should appear conformable to the summons, or that his default should be recorded, Mr. Chace appeared. The president of the senate (Mr. Burr) then stated to him, that, having been summoned to answer the articles of impeachment exhibited against him by the House of Representatives, the Senate were ready to hear any answer which he had to make; whereupon Mr. Chace addressed the court.

The trial continued until Friday, the first day of March, 1805, when, at half past twelve o'clock, the court took their seats; and the president, having directed the secretary to read the first article of impeachment, observed, that the question would be put to each member, on each article separately, as his name occurred in alphabetical order. The first article was then read. When the question was hereupon put by the president of the court, and repeated after each article as read, viz.:—

*Is Samuel Chase, Esquire, guilty of a high crime or misdemeanour in the article of impeachment just read?* The decision was as follows:—

Article 1st. Guilty 16; not guilty 18

2d. " 10; " 24

3d. " 18; " 16

4th. " 18; " 16

5th. Not guilty, *unanimous*.

6th. " 4; " 30

7th. " 10; " 24

8th. " 19; " 15

The president then said—"*There not being a constitutional majority on any one article, it becomes my duty to pronounce that Samuel Chace, Esquire, is acquitted on the articles of impeachment exhibited against him by the House of Representatives.*"

## TO THEODOSIA.

Washington, March 10, 1804.

Still lingering here, being detained by some trifling, important concerns of business, for trifles are important in matters of finance; nothing vexatious, however. That, I hope and believe, is past.

Your anxieties about me evince a sort of sickly sensibility, which indicates that you are not well. I fear that you are suffering a debility, arising from climate or other cause, which affects both mind and body. When you are in health you have no sort of solicitude or apprehension about me; you confide that, under any circumstances, I am able to fulfil your expectations and your wishes. Resume, I pray you, this confidence, so flattering to me, so consoling to yourself, may I add, so justly founded?

On the 13th I shall leave this for Philadelphia. There is no reason to think that I shall this season visit either New-York or New-Jersey. The plan of summer operations is to go from Philadelphia to Fort Pitt (Pittsburg), thence through the states on each side of the Ohio. To visit St. Louis and the mouth

of the Missouri; thence through Tennessee (where pass a month) to Orleans; and thence, either by water or land, to the Atlantic coast, not far from Yarnaco or the mouth of the Waccama. Thus you see that you are the end of all plans, and, wherever they may begin, the termination is the same. This tour has other objects than mere curiosity. An operation of business, which promises to render the tour both useful and agreeable. I may be at Philadelphia long enough to receive your answer to this, after which you must *surcease* from writing till further advice. You will hear of me occasionally on my route. Write now, therefore, all you have to say.

Just at the moment of writing the last word I receive a message from the president informing me that Dr. Browne may have the office of secretary of the government of Louisiana (which means the upper district, whereof St. Louis is the capital). General Wilkinson is appointed governor of that territory. St. Louis is on the banks of the Mississippi, about twenty miles below the mouth of the Missouri. It contains about two hundred houses, and some very wealthy people. The inhabitants are French; retain the French manners of the last century; are said to be hospitable; gay to dissipation; the society polished and fashionable. All accounts represent the country as remarkably healthy, fertile, and beautiful. The salary of secretary is, I think, but eight hundred dollars per annum. Certain contingences, however, will make it worth about double that sum. Wilkinson and Browne will suit most admirably as eaters and laughers, and, I believe, in all other particulars.

Charles Williamson has not returned from Europe, but is hourly expected. My right of franking letters will cease on the 23d of this month, so that you are not to expect pamphlets, &c., by the mail. God bless thee.

**A. BURR.**



## TO THEODOSIA.

Washington, March 13, 1805.

The enclosed newspaper is just now put into my hands. It is true, as is there said, that I made a talk, as was decent and proper, to the Senate on leaving them formally. There was nothing written or prepared, except that it had been some days on my mind to say something. It was the solemnity, the anxiety, the expectation, and the interest which I saw strongly painted in the countenances of the auditors, that inspired whatever was said. I neither shed tears nor assumed tenderness; but tears did flow abundantly. The story in this newspaper is rather awkwardly and pompously told. It has been gathered up, I presume, from different relations of the facts. This newspaper (*The Washington Federalist*) has been for months past, and, for aught I know (for I read none of them), still is, one of the most abusive against A. Burr. I am told that several papers lately make some qualified compliments; thus, for instance, referring to Judge Chace's trial—"He conducted with the dignity and impartiality of an angel, but with the rigour of a devil." May God have you in his holy keeping

A. BURR.

*From the Washington Federalist, 13th March, 1805.*

Having heard much said in commendation of Mr. Burr's valedictory address to the Senate, we have solicited and procured the following, which we present to our readers without comment.

On Saturday, the 2d of March, 1805, Mr. Burr took leave of the Senate. This was done at a time when the doors were closed; the Senate being engaged in executive business, and, of course, there was no spectators. It is,

however, said to be the most dignified, sublime, and impressive that ever was uttered; and the effect which it produced justifies these epithets. I will give you the best account I have been able to obtain, from the relation of several senators, as well federal as republican.

"Mr. Burr began by saying that he had intended to pass the day with them, but the increase of a slight indisposition (sore throat) had determined him then to take leave of them. He touched lightly on some of the rules and orders of the house, and recommended, in one or two points, alterations, of which he briefly explained the reasons and principles.

"He said he was sensible he must at times have wounded the feelings of individual members. He had ever avoided entering into explanations at the time, because a moment of irritation was not a moment for explanation; because his position (being in the chair) rendered it impossible to enter into explanations without obvious danger of consequences which might hazard the dignity of the Senate, or prove disagreeable and injurious in more than one point of view; that he had, therefore, preferred to leave to their reflections his justification; that, on his part, he had no injuries to complain of; if any had been done or attempted, he was ignorant of the authors; and if he had ever heard, he had forgotten, for, he thanked God, he had no memory for injuries.

"He doubted not but that they had found occasion to observe, that to be prompt was not therefore to be precipitate; and that to act without delay was not always to act without reflection; that error was often to be preferred to indecision, that his errors, whatever they might have been, were those of rule and principle, and not of caprice; that it could not be deemed arrogance in him to say that, in his official conduct, he had known no party—no cause—no friend; that if, in the opinion of any, the discipline which had been

established approached to rigour, they would at least admit that it was uniform and indiscriminate.

"He further remarked, that the ignorant and unthinking affected to treat as unnecessary and fastidious a rigid attention to rules and decorum; but he thought nothing trivial which touched, however remotely, the dignity of that body; and he appealed to their experience for the justice of this sentiment, and urged them in language the most impressive, and in a manner the most commanding, to avoid the smallest relaxation of the habits which he had endeavoured to inculcate and establish.

"But he challenged their attention to considerations more momentous than any which regarded merely their personal honour and character—the preservation of law, of liberty, and the Constitution. This house, said he, is a sanctuary; a citadel of law, of order, and of liberty; and it is here—it is here, in this exalted refuge—here, if anywhere, will resistance be made to the storms of political phrensy and the silent arts of corruption; and if the Constitution be destined ever to perish by the sacrilegious hands of the demagogue or the usurper, which God avert, its expiring agonies will be witnessed on this floor." [1]

"He then adverted to those affecting sentiments which attended a final separation—a dissolution, perhaps for ever, of those associations which he hoped had been mutually satisfactory. He consoled himself, however, and them, with the reflections that, though they separated, they would be engaged in the common cause of disseminating principles of freedom and social order. He should always regard the proceedings of that body with interest and with solicitude. He should feel for their honour and the national honour so intimately connected with it, and took his leave with expressions of personal respect, and with prayers, and wishes," &c.

In this cold relation a distant reader, especially one to whom Colonel Burr is not personally known, will be at a loss to discover the cause of those extraordinary emotions which were excited. The whole Senate were in tears, and so unmanned that it was half an hour before they could recover themselves sufficiently to come to order, and choose a vice-president pro tem.

At the president's, on Monday, two of the senators were relating these circumstances to a circle which had collected round them. One said that he wished that the tradition might be preserved as one of the most extraordinary events he had ever witnessed. Another senator being asked, on the day following that on which Mr. Burr took his leave, how long he was speaking, after a moment's pause, said he could form no idea; it might have been an hour, and it might have been but a moment; when he came to his senses, he seemed to have awakened as from a kind of trance.

The characteristics of the vice-president's manner seemed to have been elevation and dignity—a consciousness of superiority, &c. Nothing of that whining adulation; those canting, hypocritical complaints of want of talents; assurance of his endeavours to please them; hopes of their favour, &c. On the contrary, he told them explicitly that he had determined to pursue a conduct which his judgment should approve, and which should secure the suffrage of his own conscience, and that he had never considered who else might be pleased or displeased; although it was but justice on this occasion to thank them for their deference and respect to his official conduct—the constant and uniform support he had received from every member—for their prompt acquiescence in his decisions; and to remark, to their honour, that they had never descended to a single motion of passion or embarrassment; and so far was he from apologizing for his defects, that he told them that, on reviewing the decisions he had had occasion to make, there was no one which, on reflection, he was disposed to vary or retract.

As soon as the Senate could compose themselves sufficiently to choose a president pro tem., they calve to the following resolution:——

"Resolved, unanimously, That the thanks of the Senate be presented to *Aaron Burr*, in testimony of the impartiality, dignity, and ability with which he has presided over their deliberations, and of their entire approbation of his conduct in the discharge of the arduous and important duties assigned him as president of the Senate; and that Mr. Smith, of Maryland, and Mr. White be a committee to wait on him with this resolution.

*Attest.* SAM. A. OTIS, Secretary.

To which resolution Colonel Burr returned the following answer to the Senate:——

"Next to the satisfaction arising from a consciousness of having discharged my duty, is that which is derived from the approbation of those who have been the constant witnesses of my conduct, and the value of this testimony of their esteem is greatly enhanced by the promptitude and unanimity with which it is offered.

"I pray you to accept my respectful acknowledgments, and the assurance of my inviolable attachment to the interests and dignity of the Senate.

**A. BURR.**

TO JOSEPH ALSTON.

Philadelphia, March 22, 1805.

The enclosed paper will show you what is doing here. The subject of convention is about to divide this state into new and inveterate parties. The old names and the old animosities of federal and republican will be lost, but the passions will have full scope in the new.

I am not wholly free from apprehension that you take no interest in any thing but a rice-field. Fame says that you are about to degenerate into a mere planter. If so, it is to be lamented that you have any thing above common sense, and that you have learned any thing more than to read and write, for all above common sense and school education spoils the planter.

Though in my former letters I did not, in express terms, inform you that I was under ostracism, yet it must have been inferred. Such is the fact. In New-York I am to be disfranchised, and in New-Jersey hanged. Having substantial objections to both, I shall not, for the present, hazard either, but shall seek another country. You will not, from this, conclude that I have become passive, or disposed to submit tamely to the machinations of a banditti. If you should you would greatly err.—and his clan affect to deplore, but secretly rejoice at and stimulate the villanies of all sorts which are practised against me. Their alarm and anxiety, however, are palpable to a degree perfectly ridiculous. Their awkward attempts to propitiate reminds one of the Indian worship of the evil spirit. God bless you ever.

**A. BURR.**

TO THEODOSIA.

Philadelphia, March 29, 1805.

I arrived here on the 21st instant, and shall remain here yet ten days. John W. Smith is now here. He married Miss Duer a few weeks ago, and will

take her, with Frances, &c., to Orleans next month. Ann does not go; but one younger than Susan, whose name I forget. Miss Dallas is to be married in a few days to a handsome young man, just admitted to the bar: no fortune, but said to possess talents. Poor La R. quite pale and emaciated; the fruit of dissipation. Celeste as heretofore, abating the influence of time, which is a little too visible; courteous even to flattery. La Planche a recluse. Miss Binney is to be married next week to Mr. Wallace, a young lawyer of this city of good character and prospects.

People who are occupied are never dull, never melancholy. I learn, then, from your letter of the 10th, that you have been a little lazy. To be sure, if that letter was written for publication, it would do credit to the author; but to me, *en particulier*, other reflections might have occurred. The story, however, is prettily told, and I kiss your hand for some other pretty things. But let me see more of the effects of those precepts and that example.

I am apprehensive that your milk diet will not carry you through the summer. You will want stimulus of some kind. For this purpose something is used in all warm countries. In the West Indies they drink rum and they die. In the East Indies and China, ginseng is the panacea. Try ginseng. Some decoction or (bitter) infusion. When my stomach is out of order or wants tone, nothing serves so effectually as a cup of chamomile tea, without sugar or milk. I think this would give you an appetite. Make the experiment. Bathing in seawater is a grand preservative. If your bath be in the house, the best time is an hour or two before dinner. Tepid bath; none of your cold baths for such a machine as yours. If you have no convenience for a warm bath in the house, set a mason to work to-morrow and make one in each of your country houses. It is a high evidence of the barbarism of our Southern states that, in an extent of three hundred miles, filled with wealthy people, and in a hot climate, there should not be, in any one private family, a convenient bathing-room. Perhaps, indeed, some ruined French refugee

may have expended fifty dollars to furnish himself and family this luxury, as essential to comfort and cleanliness as to health.

In ten or twelve days I shall be on my way westward. My address, till further orders, is at Cincinnati, Ohio, to the care of the Hon. John Smith. As the objects of this journey, not mere curiosity, or *pour passer le tems*, may lead me to Orleans, and perhaps farther. I contemplate the tour with gayety and cheerfulness. The most weighty solicitude on my mind is your health and that of your boy. My letters have given you some advice as to yourself. You will have a letter from Pittsburg, and from other points as opportunities may offer, though I shall seldom be far from the route of some mail. God bless you

A. BURR.

TO THEODOSIA.

Philadelphia, April 10, 1805.

I rejoice that your nerves are in better tone, for truly, in some of your letters, I could scarcely recognise my daughter. As to the boy, I beseech you not to undertake to teach him the various sounds of the letters abstractedly from the words in which those sounds are found. This must be learned arbitrarily. Go on with his a, b, &c.; and when he shall have learned the language, and not till then, can you teach him (or ought it to be attempted) the principles of the construction of that language.

My ostracism is enlivened by a constant succession of visitors from New-York and New-Jersey. Swartwout and Bunner have just now come in, and I have not been a day without some *one*, *two*, or more. They stay generally two or three days with me, and I am privileged to take them with me



wherever I dine. Major Powell, the friend of Miss Keene, and the lover of her mother, returned lately from Europe and died here last week. He has left an estate of ten or twelve thousand guineas per annum.

I met Miss Sumter (overtook meaning) at Wilmington last winter, and thence to Baltimore we rode together in the stage. She is a frank, sensible, amiable girl. May make a very interesting companion. I was so much pleased with her, that I went several times to see her (two miles), though I visited no lady. I took her to General Van Ness's, where I made her at home. She plays on the piano in a style which may be called superior, and has a most uncommon fine voice, which has been neglected.

**A. BURR.**

TO THEODOSIA.

Pittsburg, April 30, 1805.

Arrived in good order yesterday. Find my boat and hands ready. The water high and weather fine. Shall set off in two hours. Have therefore no time to give any account of my journey hither. My boat is, properly speaking, a floating house, sixty feet by fourteen, containing dining-room, kitchen with fireplace, and two bedrooms; roofed from stem to stern; steps to go up, and a walk on the top the whole length; glass windows, &c. This edifice costs one hundred and thirty-three dollars, and how it can be made for that sum passes my comprehension.

I find that Frankfort will be better than Cincinnati; so address to me, Frankfort, Kentucky, to the care of the Honourable John Brown.

**A. BURR.**

On the 30th of April, 1805, Colonel Burr and Gabriel Shaw, who had accompanied him from Philadelphia, left Pittsburg in their boat. At this period Colonel Burr commences, for the amusement of his daughter, a journal of his adventures, which contains some interesting details explanatory of the then situation of the western country. Extracts from this journal will be made. On the 2d of May they stopped at a little village on the north bank called M'Intosh. The next day "went on shore in the skiff (letting the ark float on) to see the town of *Wieling*, sometimes erroneously spelled *Wheeling*; a pretty, neat village, well situated on the south bank, containing sixty or eighty houses, some of brick, and some of a fine free stone found in the vicinity. Saw several well-dressed women, who had the air of fashion and movements of *vous autres* on the coast."

On the morning of the 5th reached Marietta, on the north side, "containing about eighty houses; some that would be called handsome in any village on the continent. After breakfast" (says Colonel Burr) "came in several gentlemen of the town to offer me civilities and hospitalities. We have been walking several miles to see the mounds, parapets, squares, and other remains of unknown antiquity which are found in this neighbourhood. I am astonished and confounded; totally unsatisfied with the conjectures of others, and unable to repose on any plausible one of my own. I shall continue to write to you journal-wise, but, having no copy, you must preserve the sheets, as I may wish to refer to them for facts and dates."

Arrived at Cincinnati on the 11th May, by the course of the river estimated to be 310 miles from Marietta. "Meeting here with General Dayton and several old army acquaintance, remained the whole day." In the evening started "for Louisville, which is at the rapids or falls of the Ohio. There it is proposed to take land, to ride through part of Kentucky, visit Lexington and Frankfort, and meet the ark again at the mouth of the

Cumberland, which empties into the Ohio about fifty miles before its junction with the Mississippi."

## TO THEODOSIA.

Lexington (Kentucky), May 23, 1805.

My journal has grown too big to be sent by mail. I have, therefore, only to assure you of my health and safety, without entering into any of those details which you will see anon. Shaw is with me. To-morrow we pursue our journey by land to Nashville in Tennessee, and thence down the Cumberland to Eddyville, where we expect to find our boat, and intend to go from that place to Orleans in ten days.

Arrived at Nashville on the 29th of May. "One is astonished at the number of sensible, well-informed, and well behaved people which is found here. I have been received with much hospitality and kindness, and could stay a month with pleasure; but General Andrew Jackson having provided us a boat, we shall set off on Sunday, the 2d of June, to navigate down the Cumberland, either to Smithland at its mouth, or to Eddyville, sixty or eighty miles above, at one of which places we expect to find our boat, with which we intend to make a rapid voyage down the Mississippi to Natchez and Orleans.

"Left Nashville on the 3d of June in an open boat. Came down the Cumberland to its mouth, about 220 miles, in an open boat, where our ark was in waiting. Reached Massac, on the Ohio, sixteen miles below, on the 6th. Here found General Wilkinson on his way to St. Louis. The general and his officers fitted me out with an elegant barge, sails, colours, and ten oars,

with a sergeant, and ten able, faithful hands. Thus equipped, I left Massac on the 10th of June, Shaw in company.

"On the 17th arrived at Natchez, being by water, as estimated, nearly eight hundred miles from Massac. Natchez is a town of three or four hundred houses; the inhabitants traders and mechanics, but surrounded by wealthy planters, among whom I have been entertained with great hospitality and taste. These planters are, many of them, men of education and refinement; live as well as yours, and have generally better houses. We are now going through a settled country, and, during the residue of my voyage to Orleans, about three hundred miles, I shall take breakfast and dinner each day at the house of some gentleman on shore. I take no letters of introduction; but, whenever I hear of any gentleman whose acquaintance or hospitalities I should desire, I send word that I am coming to see him, and have always met a most cordial reception.

"Edward Livingston was married about a fortnight ago to Madame Moreau, *veuve*, lately from St. Domingo, rich in beauty and accomplishments. I hear so many pleasant things of Orleans, that I should certainly (if one half of them are verified on inspection) settle down there were it not for Theodosia and her boy; but these will control my fate.

"On the 25th of June reached New-Orleans. The lady of your laughing friend is a charming woman. She was a widow from St. Domingo; *sans argent et sans enfants*. Without a single good feature, she is very agreeable. She is nearly the size and figure of Lady Nesbet. Fair, pale, with jet black hair and eyes—little, sparkling black eyes, which seem to be made for far other purposes than those of mere vision. Ph. Jones is to be married in a few days to a pretty little American, Miss Brown. The inhabitants of the United States are here called Americans. I have been received with distinction.

"The mark of attention with which I have been most flattered is a letter from the holy sisters, the Ursuline nuns, congratulating me on my arrival. Having returned a polite answer to this letter, it was intimated to me that the saints had a desire to see me. The bishop conducted me to the cloister. We conversed at first through the grates; but presently I was admitted within, and I passed an hour with them greatly to my satisfaction. None of that calm monotony which I expected. All was gayety, wit, and sprightliness. Saint A. is a very accomplished lady. In manners and appearance a good deal like Mrs. Merry. All, except two, appear to be past thirty. They were dressed with perfect neatness; their veils thrown back. We had a repast of wine, fruit, and cakes. I was conducted to every part of the building. All is neatness, simplicity, and order. At parting, I asked them to remember me in their prayers, which they all promised with great promptness and courtesy—Saint A. with earnestness.

"This city is larger than I expected, and there are found many more than would be supposed living in handsome style. They are cheerful, gay, and easy. I have promised to return here next fall. I go on the 10th instant (July) by land to Kentucky, and thence, probably, to St. Louis. *A la santé Madame Alston*, is generally the first toast at every table I have been. Then we say some evil things of Mr. Alston. *Encore*, adieu. I will ask Saint A. to pray for thee too. I believe much in the efficacy of her prayers. *Le pauvre A.B.A.*, I can find nothing here to send him.

"Arrived at Nashville on the 6th August. You now see me safe through the wilderness, though I doubt (hussey) whether you knew that I had a wilderness to pass in order to get here. Yes, about four hundred and fifty miles of wilderness. The hospitality of these people will keep me here till the 12th instant, when I shall partake of a public dinner, given not to the vice-president, but to A.B. I shall be at Lexington on the 19th. I have

directed Bradley's new map of the United States to be sent to you; this will enable you to trace my route, and I pray you to study the map attentively.

"I am still at Nashville (August 13th). For a week I have been lounging at the house of General Jackson, once a lawyer, after a judge, now a planter; a man of intelligence, and one of those prompt, frank, ardent souls whom I love to meet. The general has no children, but two lovely nieces made a visit of some days, contributed greatly to my amusement, and have cured me of all the evils of my wilderness jaunt. If I had time I would describe to you these two girls, for they deserve it. To-morrow I move on towards Lexington.

"I ought to tell you how I came hither. It was thus: I embarked in a little schooner at the mouth of the Bayou St. Jean on Lake Ponchartrain, and landed on the opposite side of the lake about ten miles below the mouth of the Chefonti, a traverse of about twenty-five miles, which I made in six hours. Took a guide, and went on next morning in a footpath; crossed the Chefonti about four miles above its mouth, and then turned northerly; crossed the 31st degree of latitude at forty-two miles from the Mississippi. Note; this line has been actually run, and marked with great accuracy by commissioners on the part of the United States and of Spain, as the north bound of the Floridas and the south bound of the United States, till it strikes the St. Mary's. You will see on the map. Continued on to Natchez. From the mouth of the Chefonti to Natchez by this route is about one hundred and forty miles. I was four days from New-Orleans to Natchez. Passed near a week in the vicinity of Natchez, and saw some tears of regret when I left it; but I am *now* to give you the route; my journal will give you the incidents.

"The path from Natchez, going northward, keeps east of the Yazoo, and, I think, nearly on the dividing ridge between the waters of the Yazoo and those of the Tombigbee or Tambeckbee; a vile country, destitute of springs

and of running water—think of drinking the nasty puddle-water, covered with green scum, and full of animalculae—bah! I crossed the Tennessee; how glad I was to get on the waters of the Tennessee; all fine, transparent, lively streams, and itself a clear, beautiful, magnificent river. I crossed it, I say, forty miles below the muscle shoals, and three hundred and sixty above its mouth, reckoning by the meanders of the river. Thence to Nashville through the town of Franklin. On the map you will see laid down a road from Nashville to Natchez as having been cut by the order of the minister of war. This is imaginary; there is no such road.

"Arrived at Lexington on the 20th August, 1805. Left it for Frankfort, distant twenty-two miles, on the 31st. I am magnificently lodged at the house of John Brown, who married your old friend and neighbour Miss Mason, who is, you know, the sister of *my friend*, the priest (John Mason). She has two fine boys; the youngest, now four, I find something like A.B.A., and, of course, amuse myself with him a great deal. Mrs. Brown is still handsome, and speaks of you with attachment and respect.

"My plans for the two next months are now made up, or rather imposed on me by letters received since I last wrote you, and by my previous engagements. On the 1st of September I leave this for St. Louis. My route is to Louisville, 55 miles; Vincennes, on the Wabash, 150 miles; Kaskaskias, on the Mississippi, 150 miles; St. Louis, 75 miles. These distances are probably inaccurate, but St. Louis is called 450 miles from this. I propose to be at Cincinnati on the 1st of October; at Chilicothe and Marietta from the 7th to the 15th; at Pittsburg about the 20th, and at Bedford till the 1st of November. If by that time I should hear nothing from you, shall take measures for going by land or water to Theoville, so that you see it must be late in November before I can see you.

"Arrived at Louisville (Falls of the Ohio) on the 2d of September, being sixty miles on my way to the Missouri. I have now again one hundred and fifty miles of wilderness to encounter. I will be at Berkeley Springs by the 20th of October, where I hope to meet you and Mari. Address to me at the city of Washington."

TO JOSEPH ALSTON.

Washington, November 29, 1804.

I came to Berkeley as was proposed. You were not there; no letter from you. I sent a messenger to Washington city for intelligence, and waited his return in unpleasant suspense. At the termination of six days my messenger returned with letters advising that you would be at Hillsborough, whither I resolved immediately to go, but thought it best to take Washington in my way, in the hope of other letters. You were all at the Oaks, and no movement spoken of. You were to go alone to the legislature. Wife and child to be left at the Oaks.

Though oppressed with important engagements, I would nevertheless set off with the stage of this day for Georgetown and the Oaks if I could have been assured of finding preparations ready made for the contemplated journey of Theodosia and the boy; but as you may have left home without attending to this point, it seemed probable that I might make a fruitless journey of nine hundred miles; fruitless, except the pleasure of passing one day at the Oaks, and even this with the alloy of your absence. My course will, therefore, be now to Philadelphia, where I have made appointments, and either at that place or this shall wait your reply, and we must endeavour to arrange our plans with precision. Address me at this place.



My solicitude about the health of Theodosia is no way relieved by the sort of recovery of which she advises me. The boy, too, has a relapse of the ague, a disease of all others the most fatal to the infant constitution. Great God! what sacrifices do you make, and to what end? These solitudes poison all my enjoyments, and often unfit me for business. Being apprized from recollection of our personal communications last autumn, and of our correspondence last winter, of the engagements and ties which will prevent you, at least for some months, from leaving South Carolina, I determine, at any sacrifice, to rescue Theodosia and son.

There will be no war with Spain unless we shall declare it, which is not expected. England continues a course of malevolence, which will still continue and be borne. France, more courteous in words, under the pressure of her own affairs. Affectionately,

**A. BURR.**

The letters and extracts from the journal of Colonel Burr, which have been given in the preceding part of this chapter, sufficiently indicate that he was actively employed in travelling during the year 1805. From January, 1806, until August following, his time was principally spent in the cities of Washington and Philadelphia. During this period his correspondence [2] is voluminous, but in no manner develops any other views than such as relate to land speculations. Commodore Truxton, on the trial at Richmond, swore that Colonel Burr, in the latter end of July, 1806, informed him that he was about concluding a bargain for the Washita lands. In August Mr. Burr commenced his western tour. In the summer and autumn, and during that tour, he was brought before two different grand juries in Kentucky and discharged. So far as any testimony was produced, it went to prove an intention of settling the Washita lands. On the 3d of March, 1807, he was

arrested, by order of the government, on a charge of treason, in the Tombigbee country, and transported to Richmond, Virginia, for trial.

Footnotes:

1. There was something prophetic in this prediction; for a few hours afterward, in the House of Representatives, Messrs. Nicholson and Randolph were betrayed into a violence of conduct which was noticed in our last.

*Editor of the Washington Federalist.*

2. Portions of the letters to and from Colonel Burr are interesting; many highly amusing; but the space yet remaining in which these memoirs are to be closed renders it absolutely necessary to exclude them from the work.

## CHAPTER XX.

A separation of the South American provinces from the government of Spain had long been anticipated. As early as the year 1796, while John Jay was governor, Colonel Burr had various conversations with him on the subject of these provinces. In these conversations Colonel Burr expressed his views in reference to South America, which, he said, he could revolutionize and take possession of. Governor Jay replied that the boldness of the project would contribute to its success; expressing his opinion that it was not impracticable. From this period until 1805, Mr. Burr's mind seemed to have been constantly engaged in reflecting on the feasibility of the measure, and the proper period for carrying it into operation.

As matter of history connected with this subject, but not generally known, it may not be improper to refer to an occurrence as early as the year 1797, 98. About this period General Miranda was in the United States. He formed an acquaintance with Generals Hamilton, Knox, and other distinguished Americans. To these gentlemen he communicated his project of revolutionizing South America. From the United States he proceeded to England, and presented himself to the British ministry. They entered into his views. The proposition was, that the United States should furnish ten thousand troops, and, in that event, the British government agreed to supply the necessary funds and ships to carry on an expedition. As soon as Miranda had completed his arrangements with the British minister, he addressed a

letter to General Alexander Hamilton, dated April 6th, 1798, in which he says:——

"This, my dear and respectable friend, will be handed to you by my countryman Don ——, who is charged with despatches of the highest importance for the President of the United States. He will tell you, *confidentially*, all that you wish to know on this subject. It appears that the moment of our emancipation approaches, and the establishment of liberty on all the continent of the New World is confided by Providence to us. The only danger which I foresee is the introduction of French principles, which would poison our liberty in its cradle, and would finish by destroying yours."

So far did these arrangements advance, that Miranda again wrote General Hamilton, under date of the 19th of October, 1798:——

"Your wishes are, in some sort, already accomplished, seeing that it has been agreed here on one side not to employ in the operations on land English troops; seeing that the auxiliary land forces are to be exclusively American, while the naval force shall be purely English. Every thing is smooth, and we wait only for the fiat of your illustrious president to depart like lightning."

On the same day (October 19th) General Miranda wrote General Knox as follows:——

"I cannot express to you, my dear general, with what pleasure I heard of your nomination [1] in the continental army of the United States of America. It would appear that your *wishes* are at length *accomplished*, and that every possible circumstance is united, at this moment, in our favour. Would to God that Providence would endow us with sufficient wisdom to make the most advantageous use of these circumstances."

At this time Mr. Adams, senior, was president of the United States, and declined entering into the arrangement. It is believed that no reply was made to the letter addressed to the president. Two questions here present themselves to the inquiring mind.

Was there any connexion between this plan of Miranda for the invasion of Mexico, and the raising of an army in the year 1798, under the pretext of resisting an attack upon this country by France?

Was the policy adopted by President Adams on that occasion any way connected with the embittered warfare which subsequently ensued between Mr. Adams and Mr. Hamilton? These are questions for the consideration of speculative politicians, but not for discussion in this place.

It has been seen that Mr. Burr was actively engaged during the years 1805 and 1806 in traversing the western country. In his latter days Colonel Burr had no longer any motive for concealment; nor did he evince the least desire to suppress the facts in relation to any of his acts, even where the promulgation of those facts was calculated to affect his moral character. According to his representations, repeated at a time and under circumstances the most solemn [2] and impressive, his views were twofold: viz., *First*. The revolutionizing of Mexico; and, *Second*, A settlement on what was known as the Bastrop lands. Burr, from early manhood, had a turn for speculation, and frequently entered into large contracts for the purchase and sale of lands.

At this period (1806) the difficulties with Spain in relation to the Mississippi and the right of deposit at New-Orleans created an opinion that a Spanish war was inevitable. Such a war would have been popular with the western people. Of these opinions and these feelings Burr took advantage, and undoubtedly, by innuendoes or otherwise, induced some to believe that

his arrangements for the invasion of Mexico were with the knowledge, if not the approbation of the government.

Previous to the cession of Louisiana to the United States, Baron P.N. Tut Bastrop contracted with the Spanish government for a tract of land exceeding thirty miles square near Nachitoches. By the terms of the contract he was, within a given period of time, to settle upon these lands two hundred families. Subsequently Colonel Charles Lynch made an arrangement with Bastrop for an interest in this contract. Burr purchased from Lynch nearly four hundred thousand acres, and Nachitoches. On the trial at Richmond this purchase was established, and the actual payment to Lynch by Burr of five thousand dollars was also proved.

General Adair possessed the confidence of Colonel Burr in relation to his western movements in a greater degree than any other individual. Burr was introduced to Adair by General Wilkinson. In a letter dated March, 1807, General Adair says, and there is no doubt truly says—"So far as I know or believe of the intentions of Colonel Burr (and my enemies will agree I am not ignorant on this subject), they were to prepare and lead an expedition into Mexico, predicated on a war between the two governments; without a war he knew he could do nothing. On this war taking place he calculated with certainty, as well from the policy of the measure at this time as from the positive assurances of Wilkinson, who seemed to have the power to force it in his own hands. This continued to be the object of Colonel Burr until he heard of the venal and shameful bargain made by Wilkinson at the Sabine river; this information he received soon after the attempt to arrest him in Frankfort. He then turned his attention altogether towards strengthening himself on the Washita, and waiting a more favourable crisis. I thought the first of these objects honourable and worthy the attention of any man; but I was not engaged in it, my political as well as private pursuits forbidding me from taking a part until it was over; nor did I ever believe,

notwithstanding Wilkinson's swaggering letters to me on that subject, which may be seen, that a war would take place."

The grant of the Spanish government to Bastrop amounted to 1,200,000 acres. Six tenths of this grant was conveyed to Colonel Lynch, and cost him about one hundred thousand dollars. As the time within which two hundred families were to be settled on the land was rapidly drawing to a close, Lynch conveyed one half his right to Burr for fifty thousand dollars. In this purchase many private citizens of worth and respectability were interested. The two projects, however, became in some degree blended. The great object of Burr was the conquest of Mexico. With this view he conferred with General Wilkinson, who was ardent in the cause. Wilkinson's regular force, about six hundred men, was intended as a nucleus, around which the followers of Burr were to form. They were the only disciplined corps that could be expected. As Wilkinson was the American commander-in-chief, and stationed upon the borders of Mexico, he possessed the power, and was pledged to strike the blow whenever it should be deemed expedient. This commencement of the war would thus have been apparently under the sanction and authority of the American government, and would have drawn to the standard of Burr numerous volunteers from the western states. Such, undoubtedly, was the plan; and Burr entertained no suspicion of Wilkinson's treachery towards him until his interview with Swartwout. As soon as he made that discovery, in the language of General Adair, "he turned his attention towards strengthening himself on the Washita, and waiting a more favourable crisis."

Daniel Clarke, of New-Orleans, entered into the Mexican project. He engaged to advance fifty thousand dollars; but subsequently, from disappointments, he was unable to fulfil his contract. General Wilkinson detailed to Colonel Burr all the information he possessed respecting that country, and pointed out the facilities which would probably be afforded by

the inhabitants in effecting a revolution. Without Wilkinson's troops, Burr declared most solemnly, a short time before his death, that he would not have made the attempt on Mexico; that he was perfectly aware the men he would collect, so far as it respected military operations, would be at first little better than a mob.

Colonel Burr had repeated conferences on the subject with Mr. Merry, the British plenipotentiary resident in the United States. Mr. Merry communicated to his government the project of Mr. Burr. Colonel Charles Williamson, the brother of Lord Balgray, went to England on the business, and, from the encouragement which he received, it was hoped and believed that a British naval squadron would have been furnished in aid of the expedition. At this juncture Mr. Pitt died. Wilkinson must have heard of the death of the premier late in the spring or early in the summer of 1806. From this moment, in Mr. Burr's opinion, Wilkinson became alarmed, and resolved on an abandonment of the enterprise at the sacrifice of his associates.

On the suggestion of Wilkinson, Mexico was twice visited by Daniel Clark. He held conferences and effected arrangements with many of the principal militia officers, who engaged to favour the revolution. The Catholic bishop, resident at New-Orleans, was also consulted, and prepared to promote the enterprise. He designated three priests, of the order of Jesuits, as suitable agents, and they were accordingly employed. The bishop was an intelligent and social man. He had been in Mexico, and spoke with great freedom of the dissatisfaction of the clergy in South America. The religious establishments of the country were not to be molested. Madame Xavier Tarjcon, superior of the convent of Ursuline nuns at New-Orleans, was in the secret. Some of the sisterhood were also employed in Mexico. So far as any decision had been formed, the landing was to have been effected at Tampico.



During the year 1806 Colonel Burr was at the house of General Andrew Jackson for some days. Repeated and detailed conversations were held between them in relation to the expedition. Subsequently, General Jackson addressed a letter to Colonel Burr, in which he alluded to rumours that were afloat of his having hostile designs against the United States; adding that, if this were true, he would hold no communication on the subject; but, if untrue, and his intentions were to proceed to Mexico, he (Jackson) would join and accompany him with his whole division. To this the proper answer was given.

About the same time Colonel Burr wrote Senator John Smith, of Ohio, on the subject of these rumours, in which letter he says—"If Bonaparte, with all his army, was in the western country for the purpose of accomplishing that object, they would never again see salt water." It may be proper to state here that Colonel Burr's whole force at no time exceeded *one hundred and thirty men*.

This is a brief, but it is believed to be a true and faithful account of Colonel Burr's views and projects during the years 1805 and 1806. In the progress of these transactions many individuals were implicated. While the promulgation of their names might tend to gratify an idle curiosity, it could be productive of no possible good. (The charge of treason, now that the storm has blown over, is so perfectly ridiculous, that one who investigates the subject will be astounded that it ever gained credence. It originated with the most corrupt and unprincipled, and was countenanced, propagated, and sustained by the most malignant.) When the charge of treason was first spread abroad, Colonel Burr appeared to be deserted and abandoned by his confidential and devoted friends. Even his son-in-law, Governor Alston, seemed to shrink from the consequences of an intercourse with him. All those who were in any manner connected with the contemplated expedition disclaimed the idea of treasonable designs, averring that, if such were the

views of Colonel Burr, they had been deceived. And what does all this prove? Does it not demonstrate that if his object was a separation of the Union, that object was to be accomplished without the knowledge or aid of his friends and associates? Can any thing place the charge in a more ridiculous point of view?

Colonel Burr was arrested as a traitor on the Tombigbee river, Mississippi territory, and transported to Richmond, where he arrived on the 26th of March, 1807. He was bailed until the 22d of May, when the court was to convene. A description of the outrages and cruelty which he endured would fill volumes. A calm and dispassionate detail of the means which were adopted by Mr. Jefferson to obtain an opportunity of shedding his blood, under colour of law, would be revolting to the philanthropist and the patriot, while it would not change public opinion of this philosopher.

In October, 1806, Mr. Swartwout delivered to General Wilkinson a letter from Burr, written in cipher. That letter Wilkinson *altered*, and then deciphered it. The forgery was detected before the grand jury, and he compelled to acknowledge the fact, although he had sworn to the translation as being correct in all its parts. Notwithstanding Mr. Jefferson's knowledge that Wilkinson was a Spanish pensioner, which fact Mr. Derbigny had stated to Secretary Gallatin in a letter, and subsequently swore to its truth; and notwithstanding his perjury before the grand jury, yet did the president sustain and countenance the general as a fit instrument for his purposes.

Other arrests were made during this military reign of terror, viz., Generals Adair and Dayton, Blennerhassett, Swartwout, Alexander, Smith, Bollman, Ogden, &c. Burr and Blennerhassett alone were brought to trial. On the 22d of May, 1807, came on the cause of Aaron Burr before the Circuit Court of the United States, Judge Marshall presiding. No indictment was found by the grand jury until the 25th of June, when two bills were presented against

Burr; one for treason, and the other for a misdemeanour. On the 30th of June he was committed to the penitentiary for safe keeping until the third day of August. From the 5th until the 17th of August the court was engaged in obtaining a jury and discussing points of law. On that day the treason case was opened, and an examination of witnesses on the part of the government commenced. Colonel Burr had more than thirty witnesses in attendance, but deemed it unnecessary to call any of them.

On the 1st day of September, 1807, the jury retired, and in a short time returned with the following verdict, which was read by Colonel Carrington, their foreman.

"We of the jury say that Aaron Burr is not proved to be guilty under this indictment by any evidence submitted to us. We therefore find him not guilty."

This verdict was objected to by Colonel Burr as informal. He observed that, whenever a verdict is informal, the court will either send back the jury to alter it, or correct it itself; that they had no right to depart from the usual form, &c. Mr. Hay thought the verdict ought to be recorded as found by the jury, which was substantially a verdict of acquittal; and that no principle of humanity, policy, or law forbade its being received in the very terms used by the jury.

Mr. Martin said that it was like the *whole play*, "Much ado about Nothing;" that this was a verdict of acquittal; that there was nothing to do but to answer the question of guilty or not guilty; that it was the case with every jury in every instance; they had or had not evidence before them.

Colonel Carrington, one of the jury, observed, that it was said among themselves that, if the verdict was informal, they would alter it; that it was, in fact, a verdict of acquittal.

The court then directed that the verdict should remain as found by the jury; and that an entry should be made on the record of "*Not Guilty*."

On the 9th of September a jury was empannelled to try Colonel Burr on the indictment for misdemeanour, which consisted of seven counts; the substance of which were, that Aaron Burr did set on foot a military enterprise, to be carried on against the territory of a foreign prince; viz., the province of Mexico, which was within the territory of the King of Spain, with whom the United States were at peace.

After the prosecution had examined some of their witnesses, and the court had decided that the testimony of others was not relevant, the district attorney, Mr. Hay, made a motion that the jury be discharged. To this motion Colonel Burr objected, insisting upon a verdict. This was on the 15th of September. The court being of opinion that the jury could not in this stage of the case be discharged without the consent of the accused, and that they must give a verdict, they accordingly retired, and very soon returned with a verdict of "*Not Guilty*."

Previous to the trial for treason it was industriously circulated that Commodore Truxton had most honourably repelled Colonel Burr's advances, and pointed out the infamy which awaited him. He was subpoenaed on the part of the United States, and on his examination said—"That Colonel Burr told him (some time in July, 1806) that he contemplated an expedition to Mexico in the event of a war with Spain, which he thought inevitable. He asked me if the Havannah could be easily taken in the event of a war. I told him that it would require the co-operation of a naval force. Mr. Burr observed to me that *that* might be obtained. He asked me if I had any personal knowledge of Carthagen and La Vera Cruz, and what would be the best mode of attacking them by sea and land. I gave him my opinion very freely. Mr. Burr then asked me if I would take the

command of a naval expedition. I asked him if the executive of the United States were privy to or concerned in the project. He answered *emphatically* that he was not: I asked that question because the executive had been charged with a knowledge of Miranda's expedition. I told Mr. Burr that I would have nothing to do with it; that Miranda's project had been intimated to me, but I declined to have any thing to do with such affairs. He observed to me that, in the event of a war, he intended to establish an independent government in Mexico; that Wilkinson, the army, and many officers of the navy would join. I told Mr. Burr that I could not see how any officer of the United States could join. He said that General Wilkinson had projected the expedition, and he had matured it; that many greater men than Wilkinson would join, and that thousands to the westward would join. I told Colonel Burr that there would be no war. He was sanguine there would be war. He said, however, that if he was disappointed as to the event of a war, he was about to complete a contract for a large quantity of land on the Washita; that he intended to invite his friends to settle it; that in one year he would have a thousand families of respectable and fashionable people, and some of them of considerable property; that it was a fine country, and that they would have a charming society, and in two years he would have double the number of settlers; and, being on the frontier, he would be ready to move whenever a war took place."

On his cross examination Commodore Truxton added "that he was very intimate with Colonel Burr; that in their conversations there appeared to be no reserve; that he never heard Colonel Burr speak of a division of the Union; that Burr said his Mexican expedition would be beneficial to the United States; that, so far from doubting Burr's intention to settle the Washita lands, he was astonished at hearing he had different views, which accounts were contained in newspapers received from the western country."

From among numerous instances of Mr. Jefferson's idea of *honour* and *morality*, as practised by him and by his order pending that trial, only one will be selected as a *sample*. Dr. Erick Bollman, the friend of Lafayette, was arrested by the order of Wilkinson as a co-conspirator with Burr. He was called as a witness on the part of the United States; and in open court, the district attorney, Mr. Hay, by order of Mr. Jefferson, tendered him a pardon, which he indignantly refused, asserting his innocence of any act requiring a pardon. Immediately after the trial, he published, under his own signature, an account of what occurred between himself and the president. From that publication, which was never controverted, sufficient will be extracted to show Mr. Jefferson's *feelings* and *principles*.

Bollman says, "In the month of December, 1806, I was seized and arrested at New-Orleans by order of General Wilkinson, but in the name of the United States. When I arrived at Charleston, Annapolis, and Washington, the newspapers represented Colonel Burr as being at the head of two thousand men, and they were ringing at the same time with reports of his *pretended treason*."

"These circumstances occasioned in my mind great indignation with regard to the reports just mentioned, and great solicitude lest General Wilkinson's conduct and Burr's situation might lead to occurrences which Colonel Burr would deprecate, and which involuntarily would put him in the wrong."

"I therefore requested an interview with the president of the United States for two decided objects. 1st, To remove from his mind the false impressions he had received with regard to treason. 2d, To endeavour to convince him that the interests of the United States would be best consulted by going to war with Spain, and giving countenance to the expedition which Colonel Burr had planned."

"It appeared to me that this step might do some good, could do no harm, and, in my situation, ought to be attempted. I saw the president, together with Mr. Madison; and having first, when questioned on that point, declared to the former that I had no *personal motives* for this interview, spoke to them to the effect just mentioned. The day after the interview I received the following note from the president, the original of which, in *his own handwriting*, now remains in my possession:—

"The communications which Doctor Bollman made yesterday to Thomas Jefferson were certainly interesting; but they were too much for his memory. From *their complexion and tendency*, he presumes that Doctor Bollman would have no objection to commit them to writing, in all the details into which he went yesterday, and such others as he may have then omitted, Thomas Jefferson giving him *his word of honour* that they shall never be used against himself, and *that the paper shall never go out of his hand.*'

January 25, 1807.

"I immediately complied with the president's request; and considering the communication, in conformity with the tenour of his note, *as strictly confidential*, I had no motive to be unusually guarded, or to weigh every expression with more than ordinary care. The paper, containing nearly twenty pages, was hardly finished, when I immediately sent it to the president. I borrowed it from him some time afterward when in prison, in order to take a copy, and then returned it.

"The whole of it goes to the two points above mentioned, *viz.*, to disprove treason, and to show the expediency of war. It can give no other ideas to an unbiased reader, unless one or two expressions, improperly used, and for which the allowance ought to be made, that the English is not my native

tongue, are singled out, are considered disconnectedly with what precedes and follows, and construed in a hostile manner.

"The president had given *'his word of honour'* that this paper should not be used against myself; and yet *on it* was predicated the pretended necessity of a *pardon* for my personal safety. The attorney for the district (Mr. Hay), in open court, when offering me the patent pardon, referred to it. Nay, when I indignantly refused that pardon, he reminded me of the *horrors of an ignominious fate*, in order, if possible, to change my determination. Is a paper not used against me when, on account of its contents being misunderstood, I am thus assailed with the *tender of a badge of infamy*? Is *life*, in Mr. Jefferson's opinion, *all*; and *character* and *reputation*, which alone can render it desirable, *nothing*? The great inquest of the nation, after hearing a great variety of testimony, and particularly that of General Wilkinson, *by an opinion nearly unanimous on my subject, have absolved me from guilt!* No indictment has been preferred against me, though they have indicted various gentlemen in different parts of the United States. Was it, then, becoming the first magistrate of the Union, whom I had approached with some degree of confidence, and with regard to whom neither my conduct nor my language have ever been unfriendly—was it becoming in *him*, in a measure, to forestall the opinion of the grand jury, and to stigmatize me as a pardoned criminal?

"The paper was never to get out of the president's hands, but it is *now* in the hands of the attorney for the Virginia district. On the 23d of June, an occurrence of which the prints have taken no notice, the grand jury came into court. Their foreman stated that one of the witnesses had mentioned to him an important paper, written by another witness, which was in the possession of Mr. Hay, and of which they wished the delivery. Mr. Hay replied, that this referred to my letter to the president, which was in his possession, but that he did not consider himself warranted to give it to the



grand jury. He also declared it to be his firm persuasion that the paper was written in my own handwriting; it has further appeared that he had occasioned General Wilkinson to read it. Through him he had brought what is falsely stated to be its contents insidiously before the grand jury. General Wilkinson, when before that body, and, of course, on his oath, did assert that he knew the paper in Mr. Hay's hands; that it was my handwriting and my signature.

"The history of the proposed pardon will have flown over Europe, and the impression of treachery to a friend—this more detestable, more odious crime than any infraction of the laws of the country, because essentially fraught with turpitude, will be blended with my name in the minds of men who may never see *this* letter. And if all this injury could be inflicted by Mr. Jefferson without *ill will*, merely from want of consideration, under the disturbing influence of *passion and resentment against Colonel Burr*, notwithstanding his mature age and the dignity of his station, it will amount to strong proof, at least, that I, in my humble sphere and with a more youthful imagination, may have become warmed with the beautiful prospect of the emancipation of an enslaved kingdom; a project which Mr. Jefferson himself approved of and connived at when planned, not by Colonel Burr, but by Miranda; and that I may have engaged in it without meaning any harm to the United States or their president.

"But since the measure of the pardon has proved abortive and ridiculous, and since the fact of his breach of the '*word of honour*' can no longer be denied, their tone is changed. As usual, I am abused, not for the wrong I did, but for the wrong which has been committed upon me. They insinuate, among other things, that at Washington I had *obtained promises* from Mr. Jefferson, and had *agreed* with him, for a pardon; that I refused it at Richmond, in order to have a pretext for withholding testimony, on the ground that it would criminate myself, though it is well known that such

promise, such agreement never took place; and that before the grand jury, during an examination of upward of two hours, I answered, *without a single exception, every question that was asked me.*

"When party spirit and passion go so far, it would be improper to remain silent; and should what I have said in my defence operate to the prejudice of Mr. Jefferson or wound his feelings, it is not my fault.

**"ERICK BOLLMAN."**

#### Footnotes:

1. In July, 1798, Generals Hamilton, Pinckney, and Knox were appointed major generals in the standing army raised that summer, *nominally*, for the purpose of repelling a French invasion, at a moment when France had not a ship of war on the ocean, and while British squadrons were hovering on her whole coast.

2. On the 10th of June, 1835, Dr. Hosack, the friend and physician of Colonel Burr, supposed that he could not continue but a few days, perhaps a few hours. Mr. Burr was so informed, and was then asked by M.L. Davis whether at any time he had contemplated a separation of the Union. His reply was—"No; I would as soon have thought of taking possession of the moon, and informing my friends that I intended to divide it among them." While making the reply his indignation seemed to be aroused.

## CHAPTER XXI.

The excitement produced by Mr. Jefferson, Mr. Eaton, and Mr. Wilkinson in relation to Burr's movements, exceeded any thing that can be well imagined. That grave and dignified body, the Senate of the United States, were *terrified*, or they were *used* for the purpose of *terrifying* the good people of the country. On the 22d of January, 1807, Mr. Jefferson sent a message to Congress developing the treasonable designs of Burr and his associates. On the 26th, with the aid of General Wilkinson, a second message was transmitted on the same subject; and, by *accident*, about the same time that this message of the president was received by the House of Representatives, that honourable body received a message from the Senate also, announcing that they had passed a "*bill for suspending the writ of habeas corpus*," and asking the concurrence of the house. This was carrying the *farce* too far, and a motion was therefore made and adopted to reject the bill on its *first reading*. Ayes 113; nays 19. Thus the bill was rejected.

During the years 1806 and 1807 Herman Blennerhassett kept a private journal, in which are recorded the principal incidents arising out of his connexion with Colonel Burr. Portions of it are interesting and amusing. The entries confirm in every particular the statements of Truxton, Bollman, and others, and repudiate the idea of treasonable designs. That journal, having been transmitted from England, is before me. From it a few brief extracts will be made. It appears that in December, 1805, Blennerhassett

addressed a letter to Colonel Burr, expressing a wish to participate in any speculation in the western country that might present itself to Burr. A Spanish war was hourly anticipated, and Blennerhassett proposed to join Burr in any expedition that might be undertaken against the Spanish dominions.

In August, 1806, in consequence of this overture, Burr visited Blennerhassett at his house on the Ohio, and the next day rode with him to Marietta, and there they separated, Burr being on his way to Chillicothe. From Marietta to Blennerhassett's was about fifteen miles. Some time after Burr returned to Blennerhassett's. Burr said that an expulsion of the Spaniards from the American territory or an invasion of Mexico would be pleasing to the administration; if it could be accomplished without an open formal war, which would be avoided as long as possible, from parsimony on the one hand and the dread of France on the other.

Blennerhassett tendered his services to Burr generally. Blennerhassett states that General Jackson and others were to join, and that the general was in readiness to march whenever he should think himself authorized by the position of the government.

## EXTRACTS.

"The vivacity of Burr's wit, and the exercise of his proper talents, now (at Richmond) constantly solicited here, in private and public exhibition, while they display his powers and address at the levee and the bar, must engross more of his time than he can spare from the demands of other gratifications; while they display him to the eager eyes of the multitude, like a favourite gladiator, measuring over the arena of his fame with firm step and manly grace, the pledges of easy victory."

"August 17, 1807. This led me to praise a pamphlet, *Agrestis*, which Alston yesterday brought me, being two letters on Wilkinson's proceedings at New-Orleans, which, for its arrangement and strength, as well as for the imagery of the language, I observed would not be unworthy of a Curran; at the same time inquiring who was the author. Alston said that was not known. I then repeated the question to Colonel M'Kee, who said it was a friend of ours; at least, Mr. Alston was suspected. I mention this trifling occurrence for the sake of observing that Alston was now silent, thereby appropriating to himself the merit of the book, which his *wife*, I have no doubt, might produce. To suppose Alston [1] the author would be preposterous."

"August 23, 1807. My revery was soon broken in upon by the appearance of Mr. Douglas with a stranger. I should rather have said by two apparitions; for it was now near nightfall, and Douglas no sooner appeared than he turned on his heel, saying, 'Colonel Duane, sir,' and ran down stairs. The surprise of this interruption the stranger, whom I had never before seen, did not suffer to endure long enough to allow me to invoke the angels and ministers of grace for my protection. I was already within the grasp of this Gabriel of the government. He seized my hand, and bade me dismiss my surprise, however natural it might be, on his appearance before me. I handed him a chair, and said 'I had lived long enough in this country to be surprised at nothing it could produce or exhibit, but yet desired to learn from what cause I had the favour of this visit.' 'Having heard Mr. Douglas observe,' said he, 'that you would be pleased to see me—' 'Sir, Mr. Douglas has made a mistake; he must have meant somebody else.' 'No matter,' continued he; 'having known and seen your present situation, I could not as a man, as an Irishman' (here he digressed to show me how he both was and was not an Irishman), 'I would not leave this town (Richmond) without warning you of the sacrifice now preparing to appease the government by your friends, of which you are destined to be the victim. You cannot desire

any other key to my meaning than the course the defence has this week taken. But if you think the government will not cease to pursue that justice they possess the means of ensuring, and suspect, as you ought, the designs of those you have too long thought your friends, it might yet appear no better on my part than a nominal service to give you these cautions: I have therefore sought you, not to tender you words, but deeds. The only return on your part will be that care of yourself which will find a shield in *my honour*' (here he very awkwardly struck his breast, and grinned a ghastly smile), 'and that confidence I can *command* in the government whose good faith is not misplaced in the zeal I have testified to serve it.' To this harangue he added violent protestations of his wishes to serve me, saying, that for that purpose he would put off his journey back to Philadelphia, which otherwise was irrevocably fixed for Wednesday, and would now, or at any time hereafter, go to Washington for me, where *nothing he should ask would be refused him*. In thanking him for the frankness and zeal with which he cautioned me against my friends and a negligence of my safety, I assured him I was not afraid to meet the prosecution, as I expected I should before my arrival here, without counsel or friends; but, from present appearances, I was more curious than interested to learn what were those means the said government possessed of ensuring justice. Finding by his answer that he was now disposed to allure me into a confession of having written certain papers in the hands of the prosecutors, I told him, the warmth of his offers to serve me could not make me forget either his situation or my own with relation to the government; that I cared not what writings should be charged upon me; that I should admit none till fairly proved, which, if any such should ever appear, I would justify, if necessary, on the scaffold. He now summed up the objects of his mission, whatever produced it, with abuse of Burr, Tyler, and Smith, *acknowledging that he had been served gratis by Burr in the most handsome manner*; that the others were more concerned against the government than I was; but swearing that he believed, if I did

not follow his advice, they would make a scapegoat sacrifice of me for their deliverance."

"August 25, 1807. I asked Alston, 'Would you wish to see my notes of what passed between Duane and me?' 'Yes,' said he, 'very much.' I then read to him the minutes I had taken on Sunday evening, with which he seemed highly pleased, and said they ought to be published. To this I told him I could not accede. \* \* \* \* \* I informed him that Duane had intimated that government had got possession of one of his letters to me. 'One of my letters,' cried he; 'I never wrote to you but two upon business of a private nature; and, by G—d, any other letter they can have of mine must be a forgery.' 'To be sure,' said I; 'or, at all events, from the favourable course things are now likely to take, such a letter could do no harm.' 'But what did the rascal,' continued he, 'state to be the purport of the letter?' 'Nothing more,' said I, 'than that you and myself were equally involved in all Colonel Burr's projects. He then abused Duane, and repeated his wish that my notes were published."

"September 13, 1807. I visited Burr this morning. He is as gay as usual, and as busy in speculations on reorganizing his projects for action as if he had never suffered the least interruption. He observed to Major Smith and me, that in six months our schemes could be all remounted; that we could now new model them in a better mould than formerly, having a better view of the ground and a more perfect knowledge of our men. We were silent. It should yet be granted, that if Burr possessed sensibility of the right sort, with one hundredth part of the energies for which, with many, he has obtained such ill-grounded credit, his first and last determination, with the morning and the night, should be the destruction of those enemies who have so long and so cruelly wreaked their malicious vengeance upon him."

"September 16, 1807. I was glad to find Burr had at last thought of asking us to dine with him, as I was rather curious again to see him shine in a *partie quarrie*, consisting of new characters. We therefore walked with him from court; Luther Martin, who lives with him, accompanying us. \* \* \*

\* \* The dinner was neat, and followed by three or four sorts of wine. Splendid poverty! During the chit-chat, after the cloth was removed, a letter was handed to Burr, next to whom I sat. I immediately smelt musk. Burr broke the seal, put the cover to his nose, and then handed it to me, saying —'This amounts to a disclosure!' I smelt the paper, and said, 'I think so.' The whole physiognomy of the man now assumed an alteration and vivacity that, to a stranger who had never seen him before, would have sunk full fifteen years of his age. 'This,' said he, 'reminds me of a detection once very neatly practised upon me at New-York. One day a lady stepped into my library while I was reading, came softly behind my chair, and giving me a slap on the cheek, said, "Come, tell me directly, what little French girl, pray, have you had here?" The abruptness of the question and surprise left me little room to doubt the discovery had been completely made. So I thought it best to confess the whole fact; upon which the inquisitress burst out into a loud laugh on the success of her artifice, which she was led to play off upon me from the mere circumstance of, having smelt musk in the room.' I have given this anecdote a place here only to convey an idea of that temperament and address which enables this character to uphold his ascendancy over the sex. After some time Martin and Prevost withdrew, and we passed to the topics of our late adventures on the Mississippi, in which Burr said little, but declared he did not know of any reason to blame General Jackson, of Tennessee, for any thing he had done or omitted. But he declares he will not lose a day after the favourable issue at the Capitol (his acquittal), of which he has no doubt, to direct his entire attention to setting up his projects (which have only been suspended) on a better model, 'in which work,' he says, 'he has even here made some progress.'"



"September 20, 1807. I found Burr, just after a consultation with his counsel, secretly writhing under much irritation at the conduct of Judge Marshall, but affecting an air of contempt for his alleged inconsistencies, as Burr asserted he (the judge) did not, for the last two days, understand either the questions or himself; that he had wavered in his opinions before yesterday's adjournment, and should, in future, be put right by *strong language*. I am afraid to say *abuse*, though I think I could swear he used that word. I learned from Major Smith to-day a confirmation of what Colonel de Pestre had also mentioned to me, that Burr sets off immediately for England after his liberation to collect money for reorganizing his projects."

"September 22, 1807. I have seen a complete file of all the depositions made before the grand jury in Burr's possession. It must be confessed that few other men in his circumstances could have procured these documents out of the custody of offices filled by his inveterate enemies. Burr asserted to-day, in court, that he expected documents that would disqualify Eaton as a witness."

"September 26, 1807. Wilkinson, in his examination, confessed that he had altered the cipher letter, and sworn that there were no alterations."

"Of Dudley Woodbridge, [2] it must not be concealed from those who may have access to these *notes* that, although he is reputed to have given a fair, candid, and to us an advantageous testimony, *he has not yet told the whole truth, having suppressed my communication to him of our designs being unequivocally against Mexico*, which I suppose he kept back because he embraced and embarked in the plan on the first mention of it to him, though he afterward receded from it upon his own reflections or counsel of others. Such is the address with which ingratitude and dishonesty are made to pass in the garb of integrity, like towcloth under fine muslin."

"October 8, 1807. I called on Burr this morning, when he at last mentioned to me, during a short tête-à-tête, that he was preparing to go to England; that the time was now auspicious for him, and he wished to know whether I could give him letters. I answered that I supposed, when he mentioned England, he meant London, as his business would probably be with people in office; that I knew none of the present ministry, nor did I believe I had a single acquaintance in London. He replied, that he meant to visit every part of the country, and would be glad to get letters to any one. I said I would think of it, that I might discover whether I had any friends there whom it would be an object worth his attention to know, and took leave. We can only conjecture his designs. For my part, I am disposed to suspect he has no serious intent of reviving any of his speculations in America, or even of returning from Europe if he can get there."

After Colonel Burr's return to the United States from Europe, he received several letters from Blennerhassett; in two of them he refers to a suit which he commenced against General Andrew Jackson, in Adams county, Mississippi territory, for a balance due Burr. In reply to an inquiry made on the subject under date of the 4th of October, 1812, he says, "I allude to an account between yourself and Andrew Jackson, in his own handwriting, on which appears a balance in your favour of \$1726 62," &c. He then speaks of other papers, and adds, "As to the manner in which I obtained the papers, it happened to be discovered that the portmanteau you left with me, to be transmitted to Mr. Alston, which lay at my disposal in the house of Mr. Harding, near Natchez, was broken open by his servants. On this discovery I called for the portmanteau, found the lock torn off, and some papers tumbled and abused, which had seemingly been all opened. I observed and took out the above document. The rest, with a silk tent, await the disposition of your orders."

In another letter, in a paroxysm of passion, he threatens the publication of a book, which he says is to be entitled,

"A review of the projects and intrigues of Aaron Burr during the years 1805, 1806, and 1807, involving therein, as parties or privies, Thomas Jefferson, A. Gallatin, Dr. Eustis, Governor Alston, Daniel Clark, Generals Wilkinson, Dearborn, Harrison, Jackson, and Smith, and the late Spanish ambassador Yrujo, exhibiting original documents and correspondence hitherto unpublished. Compiled from the notes and private journal kept during the above period by Herman Blennerhassett, LLD."

It has been seen that General Wilkinson *altered* the letter written in cipher by Colonel Burr, and then swore that the translation was a true copy of the original. This alteration was for the purpose of establishing *treasonable* designs in Burr and his associates, to which fact the general had also sworn. But while he was thus urging the charge of *treason* at home, he had to give his Spanish employers a different account of the movements and object of Burr. Accordingly, after the trial at Richmond, General Wilkinson despatched Captain Walter Burling, his aid, to demand of the vice-king of Mexico the repayment of his expenditures and compensation for his services to Spain in defeating Burr's expedition against Mexico. The modesty of this demand, being only about *two hundred thousand dollars*, is worthy of notice. The development of this fact places in a new point of view Mr. Jefferson's confidential friend (General Wilkinson)—that friend whom he recommended to Congress on the 22d of January, 1807, as having acted "*with the honour of a soldier and the fidelity of a good citizen.*" The documents are presented without comment.

*State of Louisiana, City of New-Orleans.*

Before me, William Young Lewis, notary public in and for the city of New-Orleans, duly commissioned and sworn, this day personally appeared

Richard Raynal Keene, Esq., attorney and counsellor at law of this city, who delivered to me, the said notary, and requested the same to be annexed to the current records of my office, the following documents, *to wit*:—

*First.* A certificate of the vice-queen of Mexico, dated at Madrid on the twenty-fourth day of January, eighteen hundred and sixteen.

*Second.* A letter from the said Richard R. Keene to the Reverend Dr. Mangan, dated at Madrid on the twenty-first day of July, eighteen hundred and twenty-one.

*Third.* The reply of the Reverend Dr. Mangan to the aforesaid letter, dated at Madrid on the twenty-third day of July, eighteen hundred and twenty-one.

All of which said documents I have accordingly annexed to my current register, there to remain and serve as the case may be, after having marked the same *ne varietur*, to identify them with this act.

Done and passed at New-Orleans, this twenty-fourth day of December, eighteen hundred and thirty-six, in presence of William T. Lewis and Gustavus Harper, both of this city, witnesses, who have hereunto signed their names with said, and me the said notary. Signed, Richard R. Keene, William T. Lewis, Gustavus Harper.

W. Y. Lewis, Not. Pub.

*Certificate of the Vice-queen.*

"Whereas his excellency, the Marquis of Campo-Sagrado, minister of war, has been pleased to accede to the request of Richard Raynal Keene, colonel of the royal armies, addressed to him under date of the 12th instant, with the view of obtaining my declaration respecting the mission sent by

the Anglo-American brigadier, James Wilkinson, to my late husband, Don Jose Yturrigaray, lieutenant-general of the royal armies in Mexico, during the period of his command as viceroy in that country; now, for the purpose required, I do declare and certify, that, having accompanied my said husband to Mexico, and stayed there with him during the time of his command as viceroy in that country, to wit, from the year 1802 to the year 1808, I recollect perfectly well the aforesaid mission, which was carried into effect by a person of the name of Burling; and although I cannot now undertake to relate all the details of that mission, nevertheless my memory enables me to state that, in substance, the exposition made by Keene to the minister of war, of the artifices and stratagems resorted to by Wilkinson on that occasion, through his confidential agent, is just and true. The interested views manifested by Wilkinson *in his reclamation of large sums of money for his alleged disbursements* in counteracting the hostile plans of the American vice-president, Burr, against Mexico, appeared to the viceroy to be no less incompatible with the rights of his majesty than they were *irreconcilable to the honour of an officer and patriot* of a foreign state. The viceroy, therefore, did not give a single ducat to Burling, but took immediate steps for having him removed from the country.

This is what I declare, in compliance with the requisition of his excellency the minister of war. Madrid, January 24, 1816.

**MARIA INES JAUREGUI DE YTURRIGARAY.**

Madrid, July 21, 1821.

**REV. SIR,**

I send you an exposition of the vice-queen Donna Maria Ines Jauregui de Yturrigaray, of the 24th January, 1816, relative to the intrigue which the

brigadier Wilkinson attempted to carry into effect in 1806 or 1807, through the agency of Mr. Burling, for the purpose of getting money from the vice-king of Mexico. The vice-queen told me, in the different conversations I had with her on this subject, that you enjoyed the full and entire confidence of her husband, and that he, besides speaking with you unreservedly about this affair, commissioned you to interpret the letter which Wilkinson sent him through Mr. Burling, the said letter having been written in English. The vice-king, had he not died suddenly, would have given me the same exposition which his widow gave me. It being then, in some sort, a matter of justice that you should give your declaration relative to the aforesaid exposition of the vice-queen, I therefore pray you to do so.

I will merely add that, in one of my conversations with the vice-king, he told me that, in the aforesaid letter, Wilkinson, in speaking of his service rendered in frustrating what he called the invasion of Mexico by the ex-vice-president, Mr. Burr, likened himself to *Leonidas in the pass of Thermopylae*. Be assured, reverend sir, of my profound respect.

**RICHARD RAYNAL KEENE,**

Colonel in the service of H. C. M.

Rev. Dr. MANGAN, *Rector of the Irish College in Salamanca*. Madrid,  
July 23, 1821

**MY DEAR SIR,**

I have carefully read the exposition you enclosed me in your esteemed favour of the 21st instant, of the former vice-queen of Mexico, La Senora Donna Maria Ines Jauregui de Yturrigaray, relative to the famous embassy of General Wilkinson to her husband Don Joseph de Yturrigaray, viceroy of Mexico.

As his excellency was pleased to make use of me as interpreter in the interview he granted Mr. Walter Burling, the bearer of a letter from the aforesaid General Wilkinson, and commissioned by him to manifest to the viceroy the importance of his embassy, I candidly confess that, to the best of my recollection, the exposition of the vice-queen is perfectly correct, for the object of the famous embassy of Mr. Burling was to display to the viceroy *the great pecuniary sacrifices* made by General Wilkinson to frustrate the plan of invasion meditated by the ex-vice-president, Mr. Burr, against the kingdom of Mexico, and to solicit, in consideration of such important services, a pretty round sum of *at least two hundred thousand dollars*.

I cannot help observing that the viceroy, Don Joseph de Yturrigaray, received this communication with due contempt and indignation, bidding me to tell Mr. Burling that General Wilkinson, in counteracting any treasonable plan of Mr. Burr, did no more than comply with his duty; that he (the viceroy) would take good care to defend the kingdom of Mexico against any attack or invasion, and that he did not think himself authorized to give one farthing to General Wilkinson in compensation for his pretended services. He concluded by ordering Mr. Burling to leave the city of Mexico, and had him safely escorted to the port of Vera Cruz, where he immediately embarked for the United States.

This is, believe me, the substance (as far as I can recollect) of the famous embassy of General Wilkinson to the viceroy of Mexico, Don Joseph de Yturrigaray, who certainly was not mistaken in the passage he mentioned to you of Leonidas, as I recollect well that General Wilkinson, after displaying in a pompous style the great difficulties he had to encounter to render Mr. Burr's plan fruitless, concluded by affirming—"I, like Leonidas, boldly threw myself in the pass," &c.

I return you the original exposition of the vice-queen, Donna Maria Ines Jauregui de Yturrigaray, and remain yours,

PATRICK MANGAN, Rector of the Irish College of Salamanca.

RICHARD R. KEENE, Colonel in the service H. C. M.

I hereby certify that the foregoing is a true copy of the originals annexed to my current register. In witness whereof I grant these presents, under my hand and seal, at New-Orleans, this 26th day of December, 1836.

WILLIAM Y. LEWIS, Not. Pub.

The following short extracts from the letters of Colonel Burr to his daughter, while he was imprisoned in Richmond, will serve to show the state of his mind under circumstances thus oppressive and mortifying.

### **TO THEODOSIA.**

"Richmond, March 27, 1807.

"My military escort having arrived at Fredericksburgh on our way to Washington, there met a special messenger, with orders to convey me to this place. Hither we came forthwith, and arrived last evening. It seems that here the business is to be tried and concluded. I am to be surrendered to the civil authority to-morrow, when the question of bail will be determined. In the mean time I remain at the Eagle tavern."

"April 26, 1807.

"Your letters of the 10th and those preceding seemed to indicate a sort of stupor; but now you rise into phrensy. Another ten days will, it is hoped,



have brought you back to reason. It ought not, however, to be forgotten that the letter of the 15th was written under a paroxysm of the toothache.

"You have read to very little purpose if you have not remarked that such things happen in all democratic governments. Was there in Greece or Rome a man of virtue and independence, and supposed to possess great talents, who was not the object of vindictive and unrelenting persecution? Now, madame, I pray you to amuse yourself by collecting and collating all the instances to be found in ancient history, which you may connect together, if you please, in an essay, with reflections, comments, and applications. This I may hope to receive about the 22d of May. I promise myself great pleasure in the perusal, and I promise you great satisfaction and consolation in the composition."

"May 15, 1807.

"Respecting the approaching investigation, I can communicate nothing new. The grand jury is composed of twenty democrats and four federalists. Among the former is W. C. Nicholas, my vindictive and avowed personal enemy—the most so that could be found in this state (Virginia).

The most indefatigable industry is used by the agents of government, and they have money at command without stint. If I were possessed of the same means, I could not only foil the prosecutors, but render them ridiculous and infamous. The democratic papers teem with abuse against me and my counsel, and even against the chief justice. Nothing is left undone or unsaid which can tend to prejudice the public mind, and produce a conviction without evidence. The machinations of this description which were used against Moreau in France were treated in this country with indignation. They are practised against me in a still more impudent degree, not only with impunity, but with applause; and the authors and abettors suppose, with reason, that they are acquiring favour with the administration."

"June 3, 1807.

"Still waiting for Wilkinson, and no certain accounts of his approach. The grand jury, the witnesses, and the country grow impatient. It is an ungracious thing, and so deemed, after having for six months been branded as a traitor; after directing that Burr and his followers should be attacked, put to death, and their property seized; after all the violations of law and constitution which have been practised, that government should now say it has not proof!

"Busy, busy, busy from morning till night—from night till morning, yet there are daily amusing incidents; things at which you will laugh, also things at which you will pout and scold."

"June 18, 1807.

"On Saturday morning General Wilkinson, with ten or eleven witnesses from New Orleans, arrived in Richmond. Four bills were immediately delivered to the grand jury against Blennerhassett and Burr; one for treason and one for misdemeanour against each. The examination of the witnesses was immediately commenced. They had gone through thirty-two last evening. There are about forty-six. General Eaton has been already examined. He came out of the jury-room in such rage and agitation that he shed tears, and complained bitterly that he had been questioned as if he were a villain. How else could he have been questioned with any propriety?

"Poor Bollman is placed in a most awkward predicament. Some days ago Mr. Hay, the district attorney, in open court tendered him a pardon under the great seal and with the sign manual of *Thomas Jefferson*. Bollman refused to receive it. Hay urged it upon him. Bollman said that no man could force on him such a badge of infamy. Hay insisted that he was a pardoned man,

whether he would or not; and this question will, probably, also come before the court in argument to-day or to-morrow."

"June 22, 1807.

On Friday Mr. Hay complained that Burr had so constantly occupied the court for the four weeks past with his extraordinary motions, that he (Mr. Hay) could not get an opportunity of making one on his part; he therefore gave notice that he should, at the first interval, move for leave to send to the grand jury interrogatories for their instruction, to be put to the witnesses, in order that the *whole truth* might come out.

"Burr said it was a thing without example, and which the court could not permit without his assent; but he thought there was reason in the proposal of Mr. Hay, and that he should cheerfully assent, with the condition only that he (Burr) should also send interrogatories, to be put to the same witnesses, the better to extract the '*whole truth*.'

"The court said that it certainly could not be permitted to Mr. Hay to send interrogatories, being against usage and reason; but as Mr. Burr had assented, there seemed to be no objection that both parties should send in interrogatories; and such permission was granted, whereupon Mr. Hay withdrew his motion."

"June 24, 1807.

"While we were engaged to-day in the argument of the question for an attachment against Wilkinson, the grand jury came into court with bills against Blennerhassett and myself for treason and misdemeanour. Two bills against each of us. These indictments for treason are founded on the following allegations: that Colonel Tyler, with twenty or thirty men, stopped at Blennerhassett's Island on their way down the Ohio; that though these

men were not armed, and had no military array or organization, and though they did neither use force nor threaten it, yet, having set out with a view of taking temporary possession of New-Orleans on their way to Mexico, that such intent was treasonable, and therefore a war was levied on Blennerhassett's Island by *construction*; and that, though Colonel Burr was then at Frankfort on his way to Tennessee, yet, having advised the measure, he was, *by construction of law*, present at the island, and levied war there. In fact, the indictment charges that Aaron Burr was on that day present at the island, though not a man of the jury supposed this to be true.

"This idea of *constructive war* is, by this jury, carried far beyond the dictum advanced by Judge Chace in the case of Fries; for Chace laid down that the actual exertion of force, in a hostile or traitorous manner, was indispensable to establish treason. Yet the opinions of Chace in this case were complained of by the whole republican party, and condemned by all the lawyers of all parties in Philadelphia, as tending to introduce the odious and unconstitutional doctrine of *constructive treason*.

"Out of fifty witnesses who have been examined before the grand jury, it may be safely alleged that thirty at least have been perjured.

"I beg and expect it of you that you will conduct yourself as becomes my daughter, and that you manifest no signs of weakness or alarm."

June 30, 1807.

"Of myself you could expect to hear nothing new; yet something new and unexpected was moved yesterday. The counsel for the prosecution proposed to the court that Aaron Burr should be sent to the penitentiary for safe keeping, and stated that the governor and council had offered to provide me with an apartment in the third story of that building. This is extremely kind and obliging in the governor and his council. The distance, however, would

render it so inconvenient to my counsel to visit me, that I should prefer to remain where I am; yet the rooms proposed are said to be airy and healthy."

July 3, 1807.

"I have three rooms in the third story of the penitentiary, making an extent of one hundred feet. My jailer is quite a polite and civil man—altogether unlike the idea one would form of a jailer. You would have laughed to have heard our compliments the first evening.

"*Jailer*. I hope, sir, it would not be disagreeable to you if I should lock this door after dark.

"*Burr*. By no means, sir; I should prefer it, to keep out intruders.

"*Jailer*. It is our custom, sir, to extinguish all lights at nine o'clock; I hope, sir, you will have no objection to conform to that.

"*Burr*. That, Sir, I am sorry to say, is impossible; for I never go to bed till twelve, and always burn two candles.

"*Jailer*. Very well, sir, just as you please. I should have been glad if it had been otherwise; but, as you please, sir.

"While I have been writing different servants have arrived with messages, notes, and inquiries, bringing oranges, lemons, pineapples, raspberries, apricots, cream, butter, ice, and some ordinary articles."

"July 6, 1807.

"My friends and acquaintance of both sexes are permitted to visit me without interruption, without inquiring their business, and without the

*presence of a spy*. It is well that I have an antechamber, or I should often be gêné with visitors.

"If you come I can give you a bedroom and parlour on this floor. The bedroom has three large closets, and it is a much more commodious one than you ever had in your life. Remember, no agitations, no complaints, no fears or anxieties on the road, or I renounce thee."

"July 24, 1807.

"I want an independent and discerning witness to my conduct and to that of the government. The scenes which have passed and those about to be transacted will exceed all reasonable credibility, and will hereafter be deemed fables, unless attested by very high authority.

"I repeat what has heretofore been written, that I should never invite any one, much less those so dear to me, to witness my disgrace. I may be immured in dungeons, chained, murdered in legal form, but I cannot be humiliated or disgraced. If absent, you will suffer great solicitude. In my presence you will feel none, whatever may be the *malice* or the *power* of my enemies, and in both they abound."

"July 30, 1807.

"I am informed that some good-natured people here have provided you a house, and furnished it, a few steps from my *townhouse*. I had also made a temporary provision for you in my townhouse, whither I shall remove on Sunday; but I will not, if I can possibly avoid it, move before your arrival, having a great desire to *receive you all in this mansion*. Pray, therefore, drive directly out here. You may get admission at any time from four in the morning till ten at night. Write me by the mail from Petersburg, that I may know of your approach."

[On this letter is endorsed, in Theodosia's handwriting, "*Received on our approach to Richmond. How happy it made me!*"]

The following was written after Theodosia had left Richmond and returned to South Carolina.

"Richmond, September 28, 1807.

"It is impossible to predict when this business may terminate, as the chief justice has gradually relaxed from former rules of evidence, and will now hear any thing, without regard to distance of time or place. Wilkinson has been examined, and had partly gone through the cross-examination when we closed on Saturday. *He acknowledged, very modestly, that he had made certain alterations in the letter received from me, by erasures, &c., and then swore it to be a true copy.* He has not yet acknowledged the substitution of names."

"October 9, 1807.

"Major Bruff, who was produced as a witness on my behalf, deposed that, in a conversation with Dearborn and Rodney, the attorney-general, in March last, he accused Wilkinson of several crimes, and gave the names of witnesses who would establish the charges. Those gentlemen replied that General Wilkinson *had* stood very low in the estimation of the President, but that his energetic conduct at New-Orleans had raised him in estimation; that he now stood very high, and that the president would support him; that if the government should now prosecute Wilkinson, or do any thing to impair his credit, Burr would escape, and that was just what the federalists and the enemies to the administration wished."

"October 23, 1807.

"After all, this is a sort of drawn battle. The chief justice gave his opinion on Tuesday. After declaring that there were no grounds of suspicion as to the treason, he directed that Burr and Blennerhassett should give bail in three thousand dollars for further trial in Ohio. This opinion was matter of regret and surprise to the friends of the chief justice, and of ridicule to his enemies—all believing that it was a sacrifice of principle to conciliate *Jack Cade*. Mr. Hay immediately said that he should advise the government to *desist from further prosecution*. That he has actually so advised there is no doubt.

"A. BURR."

Footnotes:

1. At this period Blennerhassett was at war with both Colonel Burr and Alston, on the subject of their pecuniary transactions.
2. Former mercantile partner of Blennerhassett, and contractor for building Burr's boats on the Muskingum.



## CHAPTER XXII.

On the 7th of June, 1808, Colonel Burr sailed from New-York on board the British packet for England, via Halifax. The personal and political prejudices which the influence of power and the death of Hamilton had excited against him; rendered, as he conceived, a temporary absence from this country desirable; and, at the same time, believing that the political situation of Europe offered opportunities for accomplishing the object he had long contemplated, of emancipating the Spanish American colonies from the degrading tyranny of Spain, it was his design to solicit the aid of some European government in such an undertaking. With these views he embarked for England.

During his residence in Europe he regularly corresponded with his daughter, Mrs. Alston, and also kept a private diary; but probably from the apprehension that his papers were at all times subject to the supervision of the government police, his memoranda are in a great measure restricted to occurrences private and personal. An amusing volume [1] *might* be made of these daily records of his privations and personal adventures during his protracted and forced residence in Europe, but the limits of the present work compel us to pass hastily over this period of his life.

He arrived in Falmouth on the 15th, and in London on the 16th July; and on the same day, with characteristic promptitude, he presented his letters of introduction, and, among others, to John Reeves, Esq., then in the

department of the secretary of state, through whom he seems to have hoped to gain access to the ministry.

During the next three months he made, through Mr. Reeves and others, various unsuccessful efforts to approach the government; but there were two obstacles in his way, both of which were insuperable. The Spaniards were then in the commencement of their noble resistance to the invasion of Napoleon, and the enthusiasm of the British nation in favour of the Spanish patriots, as well as the policy of the British government, were absolutely opposed to any scheme for separating the colonies from Spain. But, in addition to this obstacle, Colonel Burr, from the moment of his landing in England, was an object of suspicion and distrust to the government. The alien-bill was then in stern operation, and apprehensions were entertained of the emissaries of France; and it is not to be doubted that the same hostility which, as we shall see, openly displayed itself in the conduct of the United States' agents towards Colonel Burr in France, had been excited to misrepresent and anticipate him in his negotiations with the British government. After various interviews, that led to nothing, with Mr. Canning, Lord Mulgrave, and Lord Melville, on the 6th November, 1808, the following communication from A. Merry put an end to all hopes of assistance in his plans from the English ministry:—

Sunday morning, November 6.

**DEAR SIR,**

Although I could not see Mr. Canning yesterday, from his being gone into the country, to stay till Tuesday morning, for the recovery of his health, I conversed with another person of nearly equal authority, who told me he was sure that what you proposed to me yesterday could never be consented to, pointing it out in every way to be impracticable. I beg you to excuse the haste in which I write, and believe me to be, dear sir,

Your most faithful humble servant,

A. MERRY.

In private life in England Colonel Burr received much attention, and from no one more than *Jeremy Bentham*, with whom he formed a warm and intimate friendship. In a letter to his daughter of the 8th September, 1808, he speaks of Mr. Bentham:—"I hasten to make you acquainted with Jeremy Bentham, author of a work entitled 'Principles of Morals and Legislation' (edited in French by Dumont), and of many other works of less labour and research. You will well recollect to have heard me place this man second to no one, ancient or modern, in profound thinking, in logical and analytic reasoning. On the 8th of August I received a letter from him, containing a most friendly invitation to come and pass some days with him at a farm (where he passes the summer) called Barrowgreen, near Gadstone, and twenty miles from London. I was not tardy in profiting of this invitation. He met me at the gate with the frankness and affection of an old friend. Mr. Bentham's countenance has all that character of intense thought which you would expect to find; but it is impossible to conceive a physiognomy more strongly marked with ingenuousness and philanthropy. I have passed twelve days there, and shall return to-morrow, to stay most probably till he returns to town. His house in the city, which I now occupy solely and exclusively—[N. B. Three servants in the house at my command]—is most beautifully situated on St. James's Park, with extensive gardens, and built and fitted up more to my taste than any one I ever saw. In his library I am now writing."

The friendship of Mr. Bentham was uniform and constant; and if it did not preserve his friend from severe pecuniary privations and distress in Colonel Burr's second residence in England, it was because the extent of these privations was industriously and ingeniously concealed from him.

"The benevolent heart of J. B." (Burr remarks in his diary, when apprehending an arrest for debt) "shall never be pained by the exhibition of my distress." Bentham, long after Burr's return to the United States, continued to correspond with him.

With William Godwin Mr. Burr also formed an intimate and friendly acquaintance. In a visit to Edinburgh in the winter of 1809, he seems to have been treated with great distinction; and his diary is sprinkled with the names of visitors the most distinguished in rank, fashion, and letters of the Scottish metropolis. He writes to his daughter 12th February, 1809: "Among the literary men of Edinburgh I have met M'Kenzie, author of the *Man of Feeling*, and Scott, author of the *Minstrel*. I met both frequently, and from both received civilities and hospitality. M'Kenzie has twelve children—six daughters, all very interesting and handsome. He is remarkably sprightly in company, amiable, witty—might pass for forty-two, though certainly much older. Scott, with less softness than M'Kenzie, has still more animation; talks much, and very agreeably."

While in Edinburgh Colonel Burr was informed by Lord Justice Clarke that Lord Melville had mentioned in a letter that it would be necessary for Mr. Burr to return to London. The government began now to evince great distrust of him. He seems at one time, and before he had abandoned all hope of receiving assistance in his political schemes, to have resolved to resist the operation of the alien bill, by claiming the rights of a British subject. He probably suggested this singular claim at the instance of his friend Reeves. The ground he took was that, having been born a British subject, he had a right to reassume his allegiance at pleasure; or rather that it was indefeasible, and never could be parted with. The claim appears to have caused some sensation among the crown lawyers. It was certainly unfounded and injudiciously asserted. Lord Liverpool pronounced it

monstrous; and it probably increased the suspicion and distrust already existing.

On the 4th April, 1809, the government took active measures against him. He writes in his journal of that day—"Having a confused presentiment that something was wrong, I packed up my papers and clothes with intent to go out and seek other lodgings. At one o'clock came in without knocking four coarse-looking men, who said they had a state warrant for seizing me and my papers, but refused to show the warrant. I was peremptory, and the warrant was produced, signed 'Liverpool,' but I was not permitted to read the whole. They took possession of my trunks, searched every part of the rooms for papers, threw all the loose articles into a sack, called a coach, and away we went to the alien office. Before going I wrote a note to Reeves, and on our arrival sent it in—waited one hour in the coach—very cold, but I refused to go in. Wrote in pencil to Reeves another note. He came out. We had a little conversation. He could not then explain, but said I must have patience. After half an hour more orders were that I must go with one of the messengers to his house. On this order I first went into the office to see Brooks, the under secretary, whom I knew [you may recollect the transaction in July, which must have fixed me in his memory]. He did not know me—none of them knew me—though every devil of them knew me as well as I know you. Seeing the measure was resolved on, and having inquired of the sort of restraint to which I was doomed, I wrote a note to Koe, which Brooks took to show to Lord Liverpool for his approbation to forward it—arrived at my prison, 31 Stafford Place, at four." In two days, however, he was released, and his papers returned unopened; but he was informed he must leave the kingdom. Some days afterward, as he still lingered, a message was conveyed to him:—"Lord Liverpool expects you to leave London to-morrow, and the kingdom in forty-eight hours." And on the 24th April, 1809, he sailed from Harwich in his B. M. packet *Diana* for Gottenburgh.

On leaving England Mr. Burr seems to have been undetermined as to his future movements. He was unwilling to renounce the projects which had carried him to Europe; and all hope of assistance from England being ended, he looked next for aid to Napoleon, whose policy, from the resistance of Spain and the preponderancy of the British navy, was now in favour of the independence of the Spanish American colonies. He finally resolved to wait in Sweden till he received advices from America, and then proceed to Paris to communicate with the emperor.

We must pass over his residence in Sweden, and his subsequent tour through Germany to Paris, during the whole of which period he kept a journal. He visited Hamburg, Hanover, Saxe-Gotha, Weimar, and Frankfort; and, though travelling without letters or introduction, it appears from his itinerary that he was everywhere treated with distinction and attention. At Hamburg, where he arrived the 20th November, 1809, De Bourrienne, since known as the author of the *Memoirs of Bonaparte*, was the French minister. It will be amusing, perhaps, to compare the following extracts from De Bourrienne's work with a brief memorandum from Colonel Burr's diary, showing in what light they reciprocally regarded each other.

"At the height of his glory and power, Bonaparte was so suspicious that the veriest trifle sufficed to alarm him. I recollect that about the time the complaints were made respecting the *Minerva* (newspaper), Colonel Burr, formerly vice-president of the United States, who had recently arrived at Altona, was pointed out to me as a dangerous man, and I received orders to watch him very closely, and to arrest him on the slightest ground of suspicion if he should come to Hamburg. Colonel Burr was one of those in favour of whom I ventured to disobey the orders I received from the restless police of Paris. As soon as the minister of the police heard of his arrival at Altona, he directed me to adopt towards him those violent measures which

are equivalent to persecution. In answer to these instructions, I stated that Colonel Burr conducted himself at Altona with much prudence and propriety; that he kept but little company, and that he was scarcely spoken of. Far from regarding him as a man who required watching; having learned that he wished to go to Paris, I caused a passport to be procured for him, which he was to receive at Frankfort; and I never heard that this dangerous citizen had compromised the safety of the state in any way." *Bourrienne's Memoirs of Napoleon*, vol. iv., p. 108.

In his journal of November 24, Burr writes:—

"I learn that A. B. is announced in the Paris papers in a manner no way auspicious. Resolved to go direct to the French minister, to see if he had any orders to give or refuse me passports. Sent in my name, but did not get out of my carriage; after some minutes the servant returned, saying his excellency was then much engaged, but would be glad to see me at three. At three, to minister's; begged to call tomorrow at twelve. November 25. At twelve, the minister's; was at once received; he is the transcript of our *Mari*, [2] only fifteen years older, but marked with the same characters. His reception was courteous, but with a mixture of surprise and curiosity. At once offered me passports to any frontier town, but has no authority to do more. Passports to go to Paris must come from Paris, and to that end I must write. Advises that I direct reply to be transmitted to Mayence. Asked me to dine, at his country-house tomorrow."

At Mayence, however, he found no passport; and he was detained in suspense there and at Frankfort for a month, before permission could be obtained to go to Paris.

On the 16th February, 1810, he arrived in Paris.

He commenced here a long and most vexatious and wearisome course of attendance on the minister of foreign relations and other high officers of state, endeavouring in vain, by personal solicitations and memorials, to obtain an audience of the emperor and an answer to his propositions. He attended the levees of the Duc de Cadore, the Duc de Rovigo, Jerome Bonaparte, King of Westphalia; but uniformly failed in his efforts, and was turned off with unmeaning professions. He records in his diary, with gratitude, the friendly attentions of Volney, Denon, and the Duc de Bassano; but, with these exceptions, he seems to have been treated with great coolness, even by those to whom his hospitality had been freely tendered in America. He always suspected that the alienation and immutable discountenance of the emperor were to be ascribed to the representations of *Talleyrand* and the representatives of the United States in France.

Several months neglect and inattention at length discouraged him, and he resolved to return home; but, on applying for a passport to the United States, he was informed by the police that he could not have a passport to go out of the empire. "Me voila [he writes in his journal], prisonier d'Etat! et presque sans sous." This event changed the course of his solicitations; and for the next year we find him, having abandoned all projects of ambition, limiting himself to solicitation for permission to go home, and without success. A memorial which he addressed to Napoleon sets forth in these manly terms the harshness and injustice of his treatment.

"While in Germany last winter I saw in the *Moniteur* an expression of your majesty's assent to the independence of the Spanish American colonies. Believing that I could be useful in the execution of that object, I hastened to Frankfort, and there addressed myself to your majesty's minister, Monsieur Hedouville, who, at my request, wrote to the minister of exterior relations, stating my views, and asking a passport if those views should be deemed worthy of your majesty's attention. A passport was



transmitted to me. On the day of my arrival in Paris I announced myself to the Duc de Cadore, and on the day following had an audience, in which I explained, as fully as the time would admit, the nature of my projects and the means of execution. Further details were added in subsequent conversations had with one of the chiefs of that department. Afterward, at the request of the Duc de Cadore, they were reduced to writing, of which memoir one copy was delivered to the Duc de Cadore and another to the Duc de Rovigo, to be submitted to your majesty's perusal. After the lapse of some weeks, having received no reply, nor any intimation that my views accorded with those of your majesty, being here without occupation and without the means of support, I asked a passport to return to the United States, where not only the state of the country, but my personal concerns, demand my presence. This passport has been refused; for nearly four months I have in vain solicited. The only answer I receive is—'His majesty has not signified his assent.'

"After conduct so frank and loyal on my part, it is with reason that I am hurt and surprised at this refusal. Not only did the motives of my visit and my conduct since my residence in France deserve a different return; at all times I have deserved well of your majesty and of the French nation. My home in the United States has been always open to French citizens, and few of any note who have visited the United States have not experienced my hospitalities. At a period when the administration of the government of the United States was hostile to France and Frenchmen, they received from me efficient protection. These, sire, are my crimes against France!

"Presuming that a proceeding so distressing and unmerited—so contrary to the laws of hospitality, to the fame of your majesty's magnanimity and justice, and to that of the courtesy of the French nation, must be without your majesty's knowledge, and that, amid the mighty concerns which weigh on your majesty's mind, those of an individual so humble as myself may

have escaped your notice, I venture to intrude into your presence, and to ask either a passport to return to the United States, or, if in fact your majesty, with the expectation of rendering me useful to you, should wish a further delay, that I may be informed of the period of that delay, that I may take measures accordingly for my subsistence."

This memorial passed without notice.

The following correspondence between Colonel Burr and Mr. Jonathan Russell, then Chargé d'Affaires at Paris, and Mr. M'Rae, American Consul at Paris, will show the conduct of representatives of the United States to an American citizen in want and in a foreign land.

TO MR. RUSSELL.

Paris, October 25, 1810.

Mr. Burr presents respectful compliments. As a citizen of the United States, he requests of Mr. Russell an official certificate to that effect, and will have the honour of calling for the purpose at any hour which he may be pleased to name. The fact of Mr. Burr's citizenship being sufficiently known to Mr. Russell, it is presumed that other proof will be deemed unnecessary.

FROM MR. RUSSELL.

Paris, October 25, 1810.

In reply to Mr. Burr's note of this morning, Mr. Russell begs leave to inform him that the province of granting passports to citizens of the United

States belongs to the consul, to whom all wishing for that protection must apply.

TO MR. M'RAE.

Paris, October 29, 1810.

Mr. Burr presents compliments. Having addressed himself to Mr. Russell for a certificate of citizenship, has been informed by him that the business of granting certificates was transferred to the consul. He therefore repeats the request to Mr. M'Rae. If a personal attendance be deemed necessary, Mr. Burr will wait on Mr. M'Rae for the purpose at any hour he may be pleased to appoint.

FROM MR. M'RAE.

Paris, October 29, 1810.

Mr. M'Rae answers to Mr. Burr's note of this morning, that his knowledge of the circumstances under which Mr. Burr left the United States renders it his duty to decline giving Mr. Burr either a passport or a permis de séjour. If, however, the opinion Mr. M'Rae has formed and the determination he has adopted on this subject be erroneous, there is a remedy at hand.

Although the business of granting passports and permis de séjour generally is confided to the consul, the chargé des affaires unquestionably possesses full authority to grant protection in either of those forms to any person to whom it may be improperly denied by the consul.

TO MR. RUSSELL.

Paris, November 1, 1810.

On receipt of Mr. Russell's note, Mr. Burr applied to the consul; a copy of his reply is herewith enclosed. It cannot be material to inquire what are the "*circumstances*" referred to by the consul, nor whether true or false. Mr. Burr is ignorant of any statute or instruction which authorizes a foreign minister or agent to inquire into any circumstances other than those which tend to establish the fact of citizen or not. If, however, Mr. Russell should be of a different opinion, Mr. Burr is ready to satisfy him that no circumstances exist which can, by any construction, in the slightest degree impair his rights as a citizen, and that the conclusions of the consul are founded in error, either in point of fact or of inference. Yet, conceiving that every citizen has a right to demand a certificate or passport, Mr. Burr is constrained to renew his application to Mr. Russell, to whom the consul has been pleased to refer the decision.

FROM MR. RUSSELL.

Paris, November 4, 1810.

Without subscribing to the opinion of Mr. M'Rae with regard to the appeal that lays from the erroneous decisions of the consul to the chargé d'affaires, Mr. Russell has no objection to judging the case which Mr. Burr has presented to him.

The man who evades the offended laws of his country, abandons, for the time, the right to their protection. This fugitive from justice, during his voluntary exile, has a claim to no other passport than one which shall

enable him to surrender himself for trial for the offences with which he stands charged. Such a passport Mr. Russell will furnish to Mr. Burr, but no other.

In the winter of 1810 and 1811, being cut off from remittances from America, it appears from his journal that he suffered sad privations from the want of money.

In his diary of November 23, he writes—"Nothing from America, and really I shall starve. Borrowed three francs to-day. Four or five little debts keep me in constant alarm; all together, about two Louis."

December 1, 1810. "——- came in upon me this morning, just as I was out of bed, for twenty-seven livres. Paid him, which took literally my last sous. When at Denon's, thought I might as well go to St. Pelasgie; set off, but recollected I owed the woman who sits in the passage two sous for a segar, so turned about to pursue my way by Pont des Arts, which was within fifty paces; remembered I had not wherewith to pay the toll, being one sous; had to go all the way round by the Pont Royal, more than half a mile."

His journal for a year is filled with similar details, and would be a melancholy narration were it not that it exhibits him under every vicissitude, suspected and watched by the French government, misrepresented by the representatives of his own country, treated with almost universal coldness and neglect, cut off from all communication with America, without money, without occupation, and without any reasonable hope of a termination of his troubles, uniformly composed, firm, and cheerful. Not a discontented or fretful expression is to be found in his voluminous memoranda.

At length, in July, 1811, a ship being about sailing in ballast for America, with Napoleon's permission, Colonel Burr, through the influence of the Duc

de Bassano, received permission to leave Paris. He arrived at Amsterdam on the 3d of August; and after a month's delay, apparently from the capricious tyranny of the French authorities, he sailed for America in the ship *Vigilant* on the 20th of September; and, escaping from the toils of one of the great belligerents, he fell into the power of the other, and was on the next day captured by an English frigate and carried into Yarmouth.

The *Vigilant* and the effects of her passengers were taken possession of by the government for trial in the admiralty; and as Burr had paid for passage to America, and was reduced very low in funds, he was obliged to remain in England. He continued in England from the 9th of October, 1811, till the 6th of March, 1812, when he sailed for America in the ship *Aurora*, and arrived in New-York, via Boston, on the 8th of June, 1812, just four years after his departure from America. During his second sojourn in England he enjoyed the society and friendship of Bentham and Godwin; but the latter could not alleviate his pecuniary distress, and the former was probably never fully aware of it. The diary contains a protracted record of privations, sometimes threatening absolute and hopeless want, but endured throughout with undisturbed and characteristic fortitude and gayety. He seems to have missed the attentions and society which he found on his first visit to London, and the following extract from his journal of 26th March, 1812, shows that he left England without feeling affection or regret.

"I shake the dust off my feet. Adieu, John Bull! *Insula inhospitabilis*, as you were truly called 1800 years ago."

#### Footnotes:

1. It is highly probable that portions of Colonel Burr's journal, with his correspondence while in Europe, may hereafter be published in a single

volume, as a separate and distinct work.

2. Joseph Alston, son-in-law of Colonel Burr.

## CHAPTER XXIII.

Immediately after Colonel Burr's arrival in the city of New-York, he opened an office and commenced the practice of law. The high and distinguished reputation with which he had retired from the bar in 1801 secured to him, on his return, an extensive and profitable business. A few individuals of the profession, under the influence of former prejudices, some of them hereditary, and as ancient as the 4th of July, 1776, endeavoured to throw impediments in his way; but these efforts were of short duration, and productive of but little effect. In general, he was courteously, if not kindly received, by gentlemen of the profession. In reference to this subject it was his request, that while no individual should be censured, the name of his friend, Colonel Robert Troup, should be recorded as meriting and receiving his most grateful acknowledgments. It has been seen that their intimacy was formed while they were yet but boys, at a period and under circumstances "that tried men's souls." On Burr's opening his office, Colonel Troup, having abandoned the practice of law, generously tendered him the use of his library until it should be required for his (Troup's) own son; which, to Burr, was a most acceptable kindness, as he was destitute of the means of supplying even his most pressing wants. His prospects, for the moment, were cheering and auspicious. But they were soon "o'er-clouded with wo."

In his daughter (Mrs. Alston) and her son were centred all his hopes, all his affections, all the ties that bound him to this life. The following appears



to have been the first letter, after his arrival in the United States, that Burr received from his son-in-law Alston.

FROM JOSEPH ALSTON.

July 26, 1812.

A few miserable weeks since, my dear sir, and in spite of all the embarrassments, the troubles, and disappointments which have fallen to our lot since we parted, I would have congratulated you on your return in the language of happiness. With my wife on one side and my boy on the other, I felt myself superior to depression. The present was enjoyed, the future was anticipated with enthusiasm. One dreadful blow has destroyed us; reduced us to the veriest, the most sublimated wretchedness. That boy, on whom all rested; our companion, our friend—he who was to have transmitted down the mingled blood of Theodosia and myself—he who was to have redeemed all your glory, and shed new lustre upon our families—that boy, at once our happiness and our pride, is taken from us—*is dead*. We saw him dead. My own hand surrendered him to the grave; yet we are alive. But it is past. I will not conceal from you that life is a burden, which, heavy as it is, we shall both support, if not with dignity, at least with decency and firmness. Theodosia has endured all that a human being could endure; but her admirable mind will triumph. She supports herself in a manner worthy of your daughter.

We have not yet been able to form any definite plan of life. My present wish is that Theodosia should join you, with or without me, as soon as possible. My command here, as brigadier-general, embarrasses me a good deal in the disposal of *myself*. I would part with Theodosia reluctantly; but if I find myself detained here, I shall certainly do so. I not only recognise

your claim to her after such a separation, but change of scene and your society will aid her, I am conscious, in recovering at least that tone of mind which we are destined to carry through life with us.

I have great anxiety to be employed against Quebec, should an army be ordered thither, and have letters prepared asking of the president a brigade in that army. From the support which that request will have, if not obtained now, I doubt not it will be at the first increase of the military force, which, if the war be seriously carried on, must be as soon as Congress meet. Then, be the event what it may, I shall at least gain something. Adieu.

Yours, with respect and regard,

**JOSEPH ALSTON.**

The effect upon Burr of this blow may be imagined by those who have noticed his constant and unceasing anxiety for his grandson, Aaron Burr Alston. In his intercourse, however, with the world, and in his business pursuits, there was a promptitude and an apparent cheerfulness which seemed to indicate a tranquillity of mind. But not so in his lone and solitary hours. When in the society of a single friend, if an accidental reference was made to the event, the manly tear would be seen slowly stealing down his furrowed cheek, until, as if awakening from a slumber, he would suddenly check those emotions of the heart, and all would again become subdued, calm, dignified.

During this autumn (1812) Theodosia's health continued to be precarious. Deep-settled grief, in addition to her protracted disease, was rapidly wasting her away. She continued to correspond with her father; but at length, in November, it was determined that she should join him in New-York. A few short extracts of letters will unfold and close this melancholy tale.

FROM TIMOTHY GREEN.

Charleston, S. C., December 7, 1812.

I arrived here from New-York on the 28th ult., and on the 29th started for Columbia. Mr. Alston seemed rather hurt that you should conceive it necessary to send a person here, as he or one of his brothers would attend Mrs. Alston to New-York. I told him you had some opinion of my medical talents; that you had learned your daughter was in a low state of health, and required unusual attention, and medical attention on her voyage; that I had torn myself from my family to perform this service for my friend. He said that he was inclined to charter a vessel to take her on. I informed him that I should return to Charleston, where I should remain a day or two, and then proceed to Georgetown (S. C.) and wait his arrival.

Georgetown, S. C., December 22, 1812.

I have engaged a passage to New-York for your daughter in a pilot-boat that has been out privateering, but has come in here, and is refitting merely to get to New-York. My only fears are that Governor Alston may think the mode of conveyance too undignified, and object to it; but Mrs. Alston is fully bent on going. You must not be surprised to see her very low, feeble, and emaciated. Her complaint is an almost incessant nervous fever. We shall sail in about eight days.

TIMOTHY GREEN.

FROM JOSEPH ALSTON TO THEODOSIA.

Columbia, S. C., January 15, 1813.

Another mail, and still no letter! I hear, too, rumours of a gale off Cape Hatteras the beginning of the month! The state of my mind is dreadful. Let no man, wretched as he may be, presume to think himself beyond the reach of another blow. I shall count the hours till noon to-morrow. If I do not hear then, there will be no hope till Tuesday. To feelings like mine, what an interval! May God grant me one word from you to-morrow. Adieu. All that I have left of heart is yours. All my prayers are for your safety and well-being.

January 19, 1813.

Forebodings! wretched, heart-rending forebodings distract my mind. I may no longer have a wife; and yet my impatient restlessness addresses her a letter. To-morrow will be three weeks since our separation, and not yet one line. Gracious God! for what am I reserved?

JOSEPH ALSTON.

FROM JOSEPH ALSTON TO COL. BURR.

Columbia, January 19, 1813.

To-morrow will be three weeks since, in obedience to your wishes, Theodosia left me. It is three weeks, and not yet one line from her. My mind is tortured. I wrote you on the 29th ult., the day before Theo. sailed, that on the next day she would embark in the privateer *Patriot*, a pilot-boat-built schooner, commanded by Captain Overstocks, with an old New-York pilot as sailing-master. The vessel had dismissed her crew, and was returning home with her guns under deck. Her reputed swiftness in sailing inspired

such confidence of a voyage of not more than five or six days, that the three weeks without a letter fill me with an unhappiness—a wretchedness I can neither describe nor conquer. Gracious God! Is my wife, too, taken from me? I do not know why I write, but I feel that I am miserable.

Charleston, January 31, 1813.

A call of business to this place for a few days occasioned your letter of the 20th not to be received till this morning. Not a moment is lost in replying to it. Yet wherefore? You ask of me to relieve your suspense. Alas! it was to you I looked for similar relief. I have written you twice since my letter of December 29. I can add nothing to the information then given. I parted with our Theo. near the bar about noon on Thursday, the last of December. The wind was moderate and fair. She was in the pilot-boat-built schooner Patriot, Captain Overstocks, with an experienced New-York pilot, Coon, as sailing-master. This vessel, the same which had been sent by government last summer in pursuit of Commodore Rodgers's squadron, had been selected as one which, from her reputed excellence and swiftness in sailing, would ensure a passage of not more than five or six days. From that moment I have heard nothing of the schooner nor my wife. I have been the prey of feelings which you only can imagine. When I turned from the grave of my boy I deemed myself no longer vulnerable. Misfortune had no more a blow for me. I was wrong. It is true, I no longer feel, I never shall feel as I was wont; but I have been taught that there was still one being in whom I was inexpressibly interested. I have in vain endeavoured to build upon the hope of long passage. Thirty days are decisive. My wife is *either captured or lost*. What a destiny is mine! and I live under it, engage in business, appear to the world as though all was tranquil, easy. 'Tis so, but it cannot endure. A short time since, and the idea of capture would have been the source of painful, terrible apprehension; it now furnishes me the only ray of comfort, or rather of hope, that I have. Each mail is anticipated with

impatient, yet fearful and appalling anxiety. Should you hear aught relative to the object of this our common solicitude, do not, I pray, forget me.

JOSEPH ALSTON.

FROM JOSEPH ALSTON.

February 25, 1813.

Your letter of the 10th, my friend, is received. This assurance of my fate was not wanting. Authentic accounts from Bermuda and Nassau, as late as January 30, connected with your letter from New-York of the 28th, had already forced upon me the dreadful conviction that we had no more to hope. Without this victim, too, the desolation would not have been complete. My boy—my wife—gone, both! This, then, is the end of all the hopes we had formed. You may well observe that you feel severed from the human race. She was the last tie that bound us to the species. What have we left? In surviving the 30th of June [1] I thought I could meet all other afflictions with ease, yet I have staggered under this in a manner that I am glad had not a witness. Your letter of January 28 was not received till February 9. The Oaks, for some months visited only at intervals, when the feelings the world thought gone by were not to be controlled, was the asylum I sought. It was there, in the chamber of my wife, where every thing was disposed as usual; with the clothes, the books, the play-things of my boy around me, that I sustained this second shock, doubled in a manner that I could not account for. My son seemed to have been reanimated, to have been restored to me, and to have just perished again with his mother. It was the loss of both pressing upon me at the same moment.

Should it be my misfortune to live a Century, the 30th of June and the 10th of February are so impressed upon my mind that they will always seem to have just passed. I visited the grave of my boy. The little plans we had all three formed rushed upon my memory. Where now was the boy? The mother I cherished with so much pride? I felt like the very spirit of desolation. If it had not been for a kind of stupefaction and confusion of mind which followed, God knows how I should have borne it. Oh, my friend, if there be such a thing as the sublime of misery, it is for us that it has been reserved.

You are the only person in the world with whom I can commune on this subject; for you are the only person whose feelings can have any community with mine. You knew those we loved. With you, therefore, it will be no weakness to feel their loss. Here, none knew them; none valued them as they deserved. The talents of my boy, his rare elevation of character, his already extensive reputation for so early an age, made his death regretted by the pride of my family; but, though certain of the loss of my not less admirable wife, they seem to consider it like the loss of an ordinary woman. Alas! they know nothing of my heart. They never have known any thing of it. Yet, after all, he is a poor actor who cannot sustain his little hour upon the stage, be his part what it may. But the man who has been deemed worthy of the heart of *Theodosia Burr*, and who has felt what it was to be blessed with such a woman's, will never forget his elevation.

**JOSEPH ALSTON.**

This distressing correspondence between Colonel Burr and Governor Alston was continued during the year 1813; but the unfortunate Theodosia was never again heard of, except in idle rumours and exaggerated tales of her capture and murder by pirates. These reports, it is believed, were without foundation. The schooner on board which she had taken passage

probably foundered, and every soul perished in a heavy gale which was experienced along our whole coast a few days after her departure from Georgetown.

Colonel Burr, on his return to the United States, mingled but little in society. He only knew those who first recognised him. In the ordinary conflicts of the political parties of the day he seemed to feel but little interest, and rarely interfered. From them he sought neither honour nor emolument. He pursued his profession, however, with great ardour and some success; but was continually embarrassed, and sometimes experienced great difficulty from the pressure of his old debts. The following extract will afford some general idea of his situation.

TO JOSEPH ALSTON.

New-York, October 16, 1815.

I have found it so difficult to answer that part of your letter which regards myself and my concerns, that it has been deferred, though often in my mind. At some other time I may give you, in detail, a sketch of the sad period which has elapsed since my return. For the present, it will suffice to say that my business affords me a decent support. If I had not been interrupted in the career which I began, I should, before this, have paid all my debts and been at ease.

My old creditors (principally the holders of the Mexican debts) came upon me last winter with vindictive fury. I was held to bail in large sums, and saw no probability of keeping out of prison for six months. This danger is still menacing, but not quite so imminent. I shall neither borrow nor



receive from any one, not even from you. I have determined not to begin to pay unless I see a prospect of paying all.

**A. BURR.**

When any great political question agitated the country, such as a presidential election, Mr. Burr seemed to feel it his duty to express his opinion to those whom he supposed confided in his discernment or his patriotism. On these occasions he spoke with great freedom and boldness. Many of his letters exhibit all that sagacity and talent for which he was so pre-eminently distinguished. It has been seen by the extract from Blennerhassett's private journal, that he did not complain in 1807 of any act done by General Andrew Jackson. The following will show that he remained under the influence of similar feelings in 1815.

TO GOVERNOR JOSEPH ALSTON.

New-York, November 20, 1815.

A congressional caucus will, in the course of the ensuing month, nominate James Monroe for President of the United States, and will call on all good republicans to support the nomination.

Whether we consider the measure itself, the character and talents of the man, or the state whence he comes, this nomination is equally exceptionable and odious.

I have often heard your opinion of these congressional nominations. They are hostile to all freedom and independence of suffrage. A certain junto of actual and factitious Virginians, having had possession of the government

for twenty-four years, consider the United States as their property, and, by bawling "Support the Administration," have so long succeeded in duping the republican public. One of their principal arts, and which has been systematically taught by Jefferson, is that of promoting state dissensions, not between republican and federal—that would do them no good—but schisms in the republican party. By looking round you will see how the attention of leading men in the different states has thus been turned from general and *state* politics. Let not this disgraceful domination continue.

Independently of the manner of the nomination and the location of the candidate, the man himself is one of the most improper and incompetent that could be selected. Naturally dull and stupid; extremely illiterate; indecisive to a degree that would be incredible to one who did not know him; pusillanimous, and, of course, hypocritical; has no opinion on any subject, and will be always under the government of the worst men; pretends, as I am told, to some knowledge of military matters, but never commanded a platoon, nor was ever fit to command one. "*He served in the Revolutionary War!*"—that is, he acted a short time as aid-de-camp to Lord Stirling, who was regularly \*\*\*\*\*. Monroe's whole duty was to fill his lordship's tankard, and hear, with indications of admiration, his lordship's long stories about himself. Such is Monroe's military experience. I was with my regiment in the same division at the time. As a lawyer, Monroe was far below mediocrity.

He never rose to the honour of trying a cause of the value of a hundred pounds. This is a character exactly suited to the views of the Virginia junto.

To this junto you have twice sacrificed yourself, and what have you got by it? Their hatred and abhorrence. Did you ever know them to countenance a man of talents and independence? Never—nor ever will.

It is time that you manifested that you had some individual character; some opinion of your own; some influence to support that opinion. Make them fear you, and they will be at your feet. Thus far they have reason to believe that you fear them.

The moment is extremely auspicious for breaking down this degrading system. The best citizens of our country acknowledge the feebleness of our administration. They acknowledge that offices are bestowed merely to preserve power, and without the smallest regard to fitness. If, then, there be a man in the United States of firmness and decision, and having standing enough to afford even a hope of success, it is your duty to hold him up to public view: that man is *Andrew Jackson*. Nothing is wanting but a respectable nomination, made before the proclamation of the Virginia caucus, and *Jackson's* success is inevitable.

If this project should accord with your views, I could wish to see *you* prominent in the execution of it. It must be known to be *your* work. Whether a formal and open nomination should now be made, or whether you should, for the present, content yourself with barely denouncing, by a joint resolution of both houses of your legislature, congressional caucuses and nominations, you only can judge. One consideration inclines me to hesitate about the policy of a present nomination. It is this—that Jackson ought first to be admonished to be passive: for, the moment he shall be announced as a candidate, he will be assailed by the Virginia junto with menaces, and with insidious promises of boons and favours. *There is danger that Jackson might be wrought upon by such practices*. If an open nomination be made, an express should be instantly sent to him.

This suggestion has not arisen from any exclusive attachment to Jackson. The object is to break down this vile combination which rules and degrades the United States. If you should think that any other man could be held up

with better prospect of success, name that man. I know of no such. But the business must be accomplished, and on this occasion, and by you. So long as the present system prevails, you will be struggling against wind and tide to preserve a precarious influence. You will never be forgiven for the crime of having talents and independence.

Exhibit yourself, then, and emerge from this state of nullity. You owe it to yourself, you owe it to me, you owe it to your country, you owe it to the memory of the dead.

I have talked of this matter to your late secretary, but he has not seen this letter.

**A. BURR.**

Your secretary was to have delivered this personally, but has changed his course on hearing that Jackson is on his way to Washington. If you should have any confidential friend among the members of Congress from your state, charge him to caution Jackson against the perfidious caresses with which he will be overwhelmed at Washington.

**A. B.**

New-York, December 11, 1815.

A copy of the preceding went under cover to Dr. Wragg. Since that date things are wonderfully advanced, as your secretary will write or tell you. These will require a written message (letter) from yourself and others (or yourself alone, but three names would look more formal), advising Jackson what is doing; that communications have been had with the Northern states, requiring him only to be passive, and asking from him a list of persons in the Western states to whom you may address your letters.

A. BURR.

FROM JOSEPH ALSTON.

Charleston, February 16, 1816.

Your letter of the 20th of November, entrusted to Mr. Phillips, was received through the postoffice about the middle of last month. It was, of course, too late, had circumstances been ever so favourable, to be acted upon in the manner proposed. Had it even been received, however, in due season, it would have found me utterly incapable of exertion. On my way to Columbia, in November, I had another severe attack of illness, which rendered absolutely impracticable either the immediate prosecution of my journey or my attendance during the session of the legislature. As soon as I was able to bear the motion of a carriage, I was brought by short stages to this place, where I have been confined ever since. Yesterday was the first time for two months that I have been out of the house. So much for the miserable remnant of myself.

With regard to the subject of your letter of the 20th of November, I fully coincide with you in sentiment; but the spirit, the energy, the health necessary to give practical effect to sentiment, are all gone. I feel too much alone, too entirely unconnected with the world, to take much interest in any thing. Yet, without the smallest solicitude about the result, I shall certainly not fail to discharge my public duty, whenever the opportunity occurs, by giving a very strong and frank expression of my opinion on the subject suggested.

Vanderlyn, I perceive from the papers, has returned to New-York. Nothing, I trust, has prevented his bringing back the portrait [2] you left

with him. Let me again entreat you to use your influence with him in procuring me a good copy. I received some days since, through the kindness of Mr. John B. Prevost, a miniature, which appears to have been taken from Vanderlyn's portrait. The execution is good, but in expression it is by no means equal to the portrait. There was a small portrait of Natalie which you took with you, of which, if Vanderlyn embraces that kind of painting in his present plan, I should be glad also to obtain of him a copy. The original picture, I think, was the best portrait I ever saw.

Yours affectionately,

JOSEPH ALSTON.

In this depressed state of mind and debilitated state of body Governor Alston remained until summer, when he died. Whatever may have been appearances to the contrary, it is highly probable that, after the death of his son and wife, he never enjoyed happiness. Their loss continually preyed upon him. To Colonel Burr, and, it would seem, to him alone, he unbosomed himself. All his letters breathe a deep and settled gloom, bordering on despondency—a gloom which time could not subdue or change.

FROM WILLIAM A. ALSTON.

Rosehill, near Georgetown, October 4, 1916.

SIR,

It was enjoined on me, and my brother John A. Alston, verbally, by our late brother Joseph Alston, to send a certain trunk to you, which he never

had the courage to open, containing, as he said, some things that belonged to your daughter Theodosia; and to send a certain collection of other articles (of dress, I believe), that had also been hers, to the eldest daughter of Mr. J. B. Prevost. Pray point you out the way, sir, in which our trust is to be executed.

In his will, of which a copy shall be sent you if desired, my brother has given all demands up to you that he had against you. Very respectfully,

**WILLIAM A. ALSTON.**

P. S. These are alone the words relating to you in the will: "To my father-in-law, Aaron Burr, I give, devise, and bequeath all demands I may have against him, whether by judgment or otherwise."

The trunk and other articles above referred to were subsequently transmitted to Colonel Burr. Among the private papers of Theodosia there are some fragments and scraps of much interest. In the summer of 1805 she was dangerously ill, and she appears, from the following letter, to have been greatly depressed in mind.

**FROM THEODOSIA TO JOSEPH ALSTON.**

August 6, 1805.

Whether it is the effect of extreme debility and disordered nerves, or whether it is really presentiment, the existence of which I have been often told of, and always doubted, I cannot tell; but something whispers me that my end approaches. In vain I reason with myself; in vain I occupy my mind, and seek to fix my attention on other subjects ; there is about me that dreadful heaviness and sinking of the heart, that awful foreboding, of which

it is impossible to divest myself. Perhaps I am now standing on the brink of eternity; and, ere I plunge in the fearful abyss, I have some few requests to make.

I wish your sisters (one of them, it is immaterial which) would select from my clothes certain things which they will easily perceive belonged to my mother. These, with whatever lace they find in a large trunk in a garret-room of the Oaks house, added to a little satinwood box (the largest, and having a lock and key), and a black satin embroidered box, with a pincushion; all these things I wish they would put together in one trunk, and send them to Frederic, with the enclosed letter. I prefer him, because Bartow's wife would have little respect for what, however trifling it may appear, I nevertheless deem sacred.

I beg Sister Maria will accept of my watch-ring. She will find a locket which she gave me, containing the hair of her mother; she had better take it. If the lace in my wardrobe at the Oaks will be of any use to Charlotte, I beg she will take it, or any thing else she wishes. My heart is with those dear amiable sisters, to give them something worth preserving in recollection of me; but they know that a warm friendship is all I have to give.

Return to mamma the eagle she gave me. Should an opportunity to Catharine Brown ever occur, send her a pearl necklace, a small diamond ring, a little pair of coral tablets, which are among my trinkets at the Oaks. I pray you, my dear husband, send Bartow's daughter some present for me, and to himself and Frederic a lock of my hair. Return Natalie the little desk she gave me, accompanied by assurances of my affectionate recollection, and a ring of my hair. Remember me to Sally, who is truly amiable, and whom I sincerely esteem.

I beg, also, you will write immediately to New-York, for warding some money for the comfortable support of *Peggy* until my father can provide for



her. Do not permit grief at the loss of me to render you forgetful of this, for the poor creature may expire of want in the mean time. I beg this may be attended to without delay.

To you, my beloved, I leave our child; the child of my bosom, who was once a part of myself, and from whom I shall shortly be separated by the cold grave. You love him now; henceforth love him for me also. And oh, my husband, attend to this last prayer of a doting mother. Never, never listen to what any other person tells you of him. Be yourself his judge on all occasions. He has faults; see them, and correct them yourself. Desist not an instant from your endeavours to secure his confidence. It is a work which requires as much uniformity of conduct as warmth of affection towards him. I know, my beloved, that you can perceive what is right on this subject as on every other. But recollect, these are the last words I can ever utter. It will tranquillize my last moments to have disburdened myself of them.

I fear you will scarcely be able to read this scrawl, but I feel hurried and agitated. Death is not welcome to me. I confess it is ever dreaded. You have made me too fond of life. Adieu, then, thou kind, thou tender husband. Adieu, friend of my heart. May Heaven prosper you, and may we meet hereafter. Adieu; perhaps we may never see each other again in this world. You are away, I wished to hold you fast, and prevented you from going this morning. But He who is wisdom itself ordains events; we must submit to them. Least of all should I murmur. I, on whom so many blessings have been showered—whose days have been numbered by bounties—who have had such a husband, such a child, and such a father. Oh pardon me, my God, if I regret leaving these. I resign myself. Adieu, once more, and for the last time, my beloved. Speak of me often to our son. Let him love the memory of his mother, and let him know how he was loved by her. Your wife, your fond wife,

THEO.

Let my father see my son sometimes. Do not be unkind towards him whom I have loved so much, I beseech you. Burn all my papers except my father's letters, which I beg you to return him. Adieu, my sweet boy. Love your father; be grateful and affectionate to him while he lives; be the pride of his meridian, the support of his departing days. Be all that he wishes; for he made your mother happy. Oh! my heavenly Father, bless them both. If it is permitted, I will hover round you, and guard you, and intercede for you. I hope for happiness in the next world, for I have not been bad in this.

I had nearly forgotten to say that I charge you not to allow me to be stripped and washed, as is usual. I am pure enough thus to return to dust. Why, then, expose my person? Pray see to this. If it does not appear contradictory or silly, I beg to be kept as long as possible before I am consigned to the earth.

[Directed—"My husband. To be delivered after my death. I wish this to be read *immediately*, and before my burial."]

Although Colonel Burr seldom interfered in the politics of his own country, yet he continued to feel a deep and abiding interest in the emancipation of South America. He was constantly projecting some measure which in his opinion was calculated to promote this object. He encouraged the friends of freedom in that benighted land. He corresponded with those who were connected with any enterprise favouring the revolution, and consulted and advised with all who visited the United States, and sought his advice on the subject. The following letter will show the wishes of distinguished Mexicans in the year 1816.

FROM GENERAL TOLEDO.

TRANSLATION.

New-York, September 20, 1816.

Sir,

Although I have not the honour of knowing you personally, the reputation of your talents and good wishes for the cause of America have made your name familiar among us; and since this will dispense the accustomed forms of introduction, I dare present to your consideration the actual state of our revolution, our evils, and the remedies which we believe may be applied to them.

It is six years since that, almost simultaneously, the standard of liberty was raised by different provinces of Spanish America, and the cry of independence was heard from the territory of Mexico to the extremities of Chili. The inhabitants, determined to resist their European oppressors, formed themselves in groups under the name of armies, and placed at the head of them persons of the first reputation. Hundreds of battles have been fought, decided solely by dint of valour, without the assistance of military art or skill; the youth and most illustrious families have been sacrificed, and even entire populations have disappeared in a struggle so just, but unfortunately conducted with inaptitude or marked with cruelty.

I, among others, have been honoured with the confidence of the command of the Mexican troops; and at the close of so many sacrifices we have only come to a knowledge of the character of the people and of ourselves. Both are well disposed, and there is only wanting, to complete our wishes, that these dispositions be directed with calculation and wisdom for the public good.

My voyage to this country has for its object not only to obtain the means for continuing the war, but to seek the person best capable of employing them. This is the desire of that people; and I can assure you that their wish and mine would be satisfied at the same time, if we should have the fortune of your assuming the management of our political and military affairs in the dangerous crisis in which we find ourselves.

I hope that, in behalf of the cause of America and of humanity, you will accept this offer, which I have the honour to make you in the name of that people, and

I am, sir,

With the greatest respect and consideration,

Yours,

**JOSE ALVAREZ DE TOLEDO.**

The invitation of General Toledo was not accepted. Colonel Burr, however, continued to act with his accustomed zeal in behalf of the South American patriots; and in 1819 the Republic of Venezuela granted him the following commission:—

#### **TRANSLATION.**

Republic of Venezuela, Palace of the Governor, Angostura, October 9, 1819.

John Baptiste Arismendi, of the Order of Liberators,

Captain-general of the Armies, and Vice-president of the State, &c., &c.,  
&c.

Whereas Aaron Burr, citizen of the United States of North America, has proved, to the satisfaction of this government, his ardent love for the cause of liberty and independence, and his desire to be actively employed in its service, as one most worthy of a freeman and a philanthropist, and most glorious for an American who has fought for the rights of his native land:

Therefore, in compliance with his (noble) praiseworthy wishes, and in fulfilment of a duty imposed upon me by the absence of the president of the republic in the territory of New Grenada, and impressed with the necessity of rendering assistance to all other countries of South America and Mexico now contending against the civil and religious tyranny of the Spanish government,

I hereby authorize the above-named Aaron Burr (without violation of established laws and customs) to raise troops for sea and land service, to aid this government or any other now struggling in the same cause against the despotism of Spain; provided that, in thus contending against the common enemy, he conform to established ordinances, the laws of nations, and the acknowledged usages among countries that aspire to emancipation and liberty.

And I declare that, it not being possible to organize *gratuitously* naval or land expeditions in all parts of the country, the property taken from the enemy being insufficient to defray the expenses, this republic and any other that may be benefited or assisted by the said Aaron Burr shall hold their funds responsible for any debts contracted by him in the premises.

Therefore, that he may proceed with that order which the exigence of the case requires, the "*commissioned*" (A. B.) shall render an account, and

advise of all contracts entered into by him in the fulfilment of his commission, in order that they may be examined and approved in anticipation (of payment). But it will be understood that the government is unable at this time to pay its troops regularly; and the latter will not be justified in relying on any thing more than a bare subsistence or an occasional provision, more or less, according to circumstances. This notice to be given to *all* enlisting under his banners. This measure is rendered necessary, lest the good faith of the government should be compromised. An account of all military stipends will be kept by the government, that they may be liquidated in proportion to the increase of its resources. The republic exacts this service only during the continuance of the war. At its termination each soldier shall receive as a bounty a landed estate of the value of five hundred dollars; and all officers shall be paid in proportion, in conformity with the provisions of the law, or the decree for the division of national property, in addition to the personal rights with which the gratitude of Venezuela constitutionally recognises the services performed in its cause.

And that the above-named Aaron Burr may legally exert himself in favour of the emancipation and liberty of Venezuela and New Grenada, and all other countries of South America and Mexico now contending against the arbitrary and oppressive power of Spain, without in any manner giving offence to friendly or neutral powers, so long as they shall preserve their amity and neutrality, I grant to him this commission, signed with my hand, sealed with the provisional seal of the republic, and countersigned by the secretary of state and foreign affairs, in the place, day, month, and year above named.

**J. BAPTISTE ARISMENDI.**

(Seal)

JUAN G. ROSCW, Secretary of State and F.A.

It was thus that Colonel Burr was employed after his return from Europe until near the close of his life. During his leisure hours, if any such he had, his mind was occupied for several years in directing the education of two young ladies (Misses Eden) who were his wards, and for whom, in a protracted lawsuit, he had recovered a valuable estate. His regular and constant correspondence with these ladies, pointing out their errors, their improvements, and the studies which they were to pursue from day to day, was to them invaluable, and well calculated to "teach the young idea how to shoot." Copies of these letters are preserved, and it was originally intended to have published portions of them in this work, but no space remains. They would form a pleasing and interesting treatise on female education.

Although Colonel Burr's pecuniary means were limited, yet he was not destitute. He had an annual income of a few hundred dollars, in addition to his half-pay as a colonel in the revolutionary army. For two or three years before his death he suffered under the effects of a paralysis. Much of the time he was in a measure helpless, so far as locomotion was concerned. His general health, however, was tolerably good, by using great precaution in his diet. He had long abstained from the use of either tea or coffee as affecting his nervous system. His mind retained much of its vigour, and his memory, as to events of long standing, seemed to be unimpaired. Few octogenarians had as little of what is termed the garrulity of age as Colonel Burr. He never was a great talker, and in the decline of life retained much of that dignified sedateness which had characterized his meridian. When visited by strangers he received them with courtesy, unless his pride became awakened by a suspicion that the visit was one of idle or impertinent curiosity. On such occasions his manner was formal, cold, repulsive. Under sufferings of body or mind he seldom complained; but, during the last year of his life, he became more restive and impatient. The friends of his youth had gone before him. All the ties of consanguinity which could operate in uniting him to the world were severed asunder. To him there remained no

brother, no sister, no child, no lineal descendant. He had numbered four-score years, and was incapable, from disease, of moving abroad, or even dressing himself. He therefore became restless, and seemed anxious for the arrival of the hour when his eyes should be closed in everlasting sleep. At length that hour came, and his mortal career terminated without a struggle on Wednesday, the 14th of September, 1836, in the eighty-first year of his age, on Staten Island, Richmond county, state of New-York, whither he had been removed for the benefit of pure air during the warm season. In conformity with his wish, his body was removed to Princeton, New-Jersey. The New-York Courier and Enquirer of the 19th of September gives the following account of his funeral.

*From the Courier and Enquirer.*

"On Friday morning, the 16th of September, the body of the late Colonel Aaron Burr was put on board a steamboat at Staten Island, and conveyed, with a number of his friends and relatives, from New-York to Amboy. Here it, with the followers, was received by the railroad cars and taken to Hightstown, nine miles from Princeton. A hearse and carriage having been previously prepared, the remains, with the friends of the departed, proceeded immediately to Princeton College, where the body was deposited until the hour of interment should arrive—half past three o'clock.

"At the appointed hour, the professors, collegians, and citizens having assembled, the ceremony commenced by a prayer to the Throne of Grace. It was succeeded by a most eloquent, appropriate, and judicious sermon, delivered by the president of the college; after which the procession was formed on the college green, and proceeded to the burying-ground under an escort of the military, accompanied by martial music. He was interred with the honours of war. The firing over the grave was performed by a well-disciplined infantry corps, designated as the Mercer Guards. The professors



and students of the college, and some of the clergy and citizens, united with the relatives and friends of the deceased in the procession.

"The interment was in the college burying-place, near the tombs of his ancestors, in his native state, under the superintendence of the fathers of that seat of learning where the budding of his mighty mind first displayed itself, where it was cultivated and matured, and where the foundation was laid for those intellectual endowments which he afterward exhibited on the great theatre of life. He has shed a halo of literary glory around Nassau Hall. Through a long pilgrimage he loved her as the disciplinarian of his youthful mind. He vaunted that he was one of her earliest and most attached sons. He joyed in her success and sorrowed in her misfortunes. In this her last act of respect to his memory, she has repaid those kind feelings in which he indulged during a long life; and heartless must be the friend of the deceased who remembers not with gratitude this testimony of regard for the giant mind of him who must fill a large space in the history of his country. Peace be to his manes."

*Extract from the Minutes of the Cliosophic Society.*

"The Cliosophic Society having this morning received the mournful intelligence of the decease of Colonel Aaron Burr, formerly Vice-president of the United States, an eminent member, and one of the founders of our institution, would, in consideration of his eminence and talents, as well as the zeal with which he has promoted the interests of our association, pay to his memory a tribute of respect expressive of our admiration of his greatness and regret at his demise. Be it therefore

*"Resolved,* That the efforts of this individual in behalf of our society during her infant struggle, and the affectionate interest which he has at all

times manifested for her success, claim from us an expression of condolence for his loss and gratitude for his services.

"2d. That the whole society follow his remains to the grave as mourners.

"3d. That, as a feeble testimony of our respect, the members wear crape on the left arm for the space of thirty days.

"4th. That these resolutions be published in the Princeton Whig, New-York Courier and Enquirer, New-York Gazette, Commercial Advertiser, United States Gazette, and United States Telegraph."

Footnotes:

1. The day on which his son died.
2. The portrait of Theodosia.

**THE END.**

\*\*\* END OF THE PROJECT GUTENBERG EBOOK MEMOIRS OF  
AARON BURR, COMPLETE \*\*\*

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